



CONTENTS

- 1. Administration**
- 2. General Regulations**
- 3. Residential Land Use Districts**
- 4. Commercial Land Use Districts**
- 5. Industrial Land Use Districts**
- 6. Miscellaneous Land Use Districts**
- 7. Development Overlays**
- 8. Use Specific Regulations**
- 9. Signage**
- 10. Green Building Regulations**
- 11. Community Architectural & Urban Design Standards**
- 12. Density Bonus Regulations**
- 13. Definitions**
- 14. Direct Control Districts**
- 15. Land Use District Maps**

REVISED LAND USE BYLAW 2018-22: SCHEDULE A



BYLAW 2018-22

A BYLAW OF THE TOWN OF CANMORE, IN THE PROVINCE OF ALBERTA, TO PROHIBIT OR REGULATE AND CONTROL THE USE AND DEVELOPMENT OF LANDS AND BUILDINGS

Revised April 1, 2020

The Council of the Town of Canmore, in the Province of Alberta, duly assembled, enacts as follows:

1: TITLE

- 1.1. This bylaw shall be known as the "Revised Land Use Bylaw."

2: PROVISIONS

- 2.1. Land Use Bylaw 2018-22 as set out as Schedule A of this bylaw is hereby adopted.

3: ENACTMENT/TRANSITION

- 3.1. If any clause in this bylaw is found to be invalid, it shall be severed from the remainder of the bylaw and shall not invalidate the whole bylaw.
- 3.2. Schedule A forms part of this bylaw.
- 3.3. Bylaw 22-2010 and all its amending bylaws are repealed.
- 3.4. This bylaw comes into force on April 1, 2020.

FIRST READING: November 20, 2018

PUBLIC HEARING: February 5, 2019

SECOND READING: October 1, 2019

THIRD READING: December 10, 2019

REVISED LAND USE BYLAW 2018-22: SCHEDULE A

OFFICE CONSOLIDATION

This document is a consolidation of a bylaw with one or more revising and amending bylaws. Anyone making use of this consolidation is reminded that it has no legislative sanction. Amendments have been included for convenience of reference only. The approved bylaws should be consulted for all purposes of interpreting and applying the law.

Bylaws included in this consolidation:

2018-22	Land Use Bylaw	
2020-30	Land Use Bylaw Revising Bylaw	
2020-17	Revisions to CW District	In force 28 September 2020
2020-15	Replacement of TPT-CR District	In force 6 October 2020
2020-14	Van Horne Direct Control District	In force 17 November 2020
2020-16	Omnibus	In force 7 January 2021
2020-29	Tourist Home Density Sub-District C	In force 7 January 2021
2020-19	Three Sisters DC District	In force 13 April 2021
2021-24	Omnibus	In force 12 January 2022
2021-21	BVT General Commercial District	In force 4 May 2022
2021-23	Spring Creek Mountain Village	In force 17 August 2022

REVISED LAND USE BYLAW 2018-22: SCHEDULE A

SECTION 1 ADMINISTRATION

- 1.1 Title**
- 1.2 Purpose**
- 1.3 Repeal of Bylaw 22-2010 and Implementation of Bylaw 2018-22**
- 1.4 Application**
- 1.5 Rules of Interpretation**
- 1.6 Portions found Invalid**
- 1.7 Direct Control Districts**
- 1.8 Development Permits Required**
- 1.9 Development Permits not Required**
- 1.10 Processing of Development Applications**
- 1.11 Conditions Attached to a Development Permit**
- 1.12 Commencement and Completion of Development**
- 1.13 Development Authority - Duties and Responsibilities**
- 1.14 Variance Powers of Development Authority**
- 1.15 Uses Not Listed But Allowed in all Districts**
- 1.16 Non-Conforming Buildings and Uses**
- 1.17 Compliance With Other Bylaws, Regulations and Legislation**
- 1.18 Bylaw Contravention**
- 1.19 Appeals**
- 1.20 Subdivision of Land**
- 1.21 Bylaw Amendments**
- 1.22 Telecommunications and Facilities**

1.1 TITLE

- 1.1.0.1 This Bylaw shall be referred to as the “Town of Canmore Revised Land Use Bylaw”.

1.2 PURPOSE

- 1.2.0.1 The intent of this Land Use Bylaw (“this Bylaw”) is to build a community based on the vision of the Town’s Municipal Development Plan, and to regulate and control the use and development of land and buildings within the Municipality to achieve efficient, orderly and economical development of land.
- 1.2.0.2 Specifically, this Bylaw, in accordance with provisions of the Municipal Government Act (“the Act”), amongst other things:
- a. Divides the Town of Canmore into districts;
 - b. Prescribes and regulates for each district the purpose for which land or buildings may be used and the design of sites and buildings;
 - c. Establishes the office of the Development Authority, including the Development Officer, and the Canmore Planning Commission;
 - d. Establishes a method of making decisions on applications for Development Permits including the issuing of Development Permits; and
 - e. Prescribes notification procedures.

1.3 REPEAL OF BYLAW 22-2010 AND IMPLEMENTATION OF BYLAW 2018-22

- 1.3.0.1 The Town of Canmore Land Use Bylaw 22-2010, as amended, is repealed. No provisions of any other Bylaw with respect to zoning, development control, development schemes and Uses shall hereafter apply to any parts of the Town described in this Bylaw.
- 1.3.0.2 The provisions of this Bylaw will come into full effect April 1, 2020 (the “effective date”).
- 1.3.0.3 Subject only to the provisions of the Municipal Government Act respecting non-conforming Uses and notwithstanding the effect it may have on rights, vested or otherwise, the provisions of this Bylaw govern from the effective date onward. In particular, no Development Permit Application shall be evaluated under the procedural or substantive provisions of a previous Land Use Bylaw after the effective date, even if the application was received before the effective date.
- 1.3.0.4 Any Direct Control Districts that were in effect immediately prior to the effective date are hereby deemed to continue in full force and effect and are hereby incorporated into Section 14 of this Bylaw.

1.4 APPLICATION

- 1.4.0.1 This Bylaw shall apply to the whole of the Town of Canmore being all lands contained within its corporate limits.
- 1.4.0.2 No person shall commence development within the Town of Canmore except in compliance

with this Bylaw.

1.5 RULES OF INTERPRETATION

- 1.5.0.1 Unless otherwise required by the context, words used in the present tense include the future tense, words in the singular include the plural and the word “person” includes a corporation as well as an individual, and words have the same meaning whether capitalized or not.
- 1.5.0.2 The Alberta Interpretation Act shall be used for the interpretation of language within the Land Use Bylaw unless specifically defined in this Bylaw.
- 1.5.0.3 The words ‘shall’ or ‘must’ require mandatory compliance except where a variance has been granted pursuant to the Act or this Bylaw. ‘May’ means a choice is available, with no particular direction or guidance intended.
- 1.5.0.4 Written regulations take precedence over any diagrams, schedules or maps if there is a perceived conflict.
- 1.5.0.5 Maps of the Land Use Districts in Section 15 take precedence over other maps and diagrams in the Land Use Bylaw if there is an apparent discrepancy between boundaries or other information.
- 1.5.0.6 Where a term refers to a defined use within this Bylaw, the term is underlined and capitalized.

1.6 PORTIONS FOUND INVALID

- 1.6.0.1 In the event any portion of this Bylaw is found invalid by a Court of Law or is overturned by a superior jurisdiction, the validity of the remaining portions of the Bylaw shall not be affected.

1.7 DIRECT CONTROL DISTRICTS

- 1.7.0.1 Direct Control Districts shall only be used for the purpose of providing for land or developments that, due to their unique characteristics or unusual site constraints, require specific regulation unavailable in other Land Use Districts.
- 1.7.0.2 Direct Control Districts shall not be used in substitution of any other Land Use District in this Bylaw that could be used to achieve the same result either with or without variances to this Bylaw.
- 1.7.0.3 An application for a Direct Control District must provide a written statement indicating why, in the applicant’s opinion, a Direct Control District is necessary and why the same results cannot be achieved through the use of an existing Land Use District in this Bylaw.
- 1.7.0.4 Variances to regulations within Direct Control Districts shall not be granted.

1.8 DEVELOPMENT PERMITS REQUIRED

- 1.8.0.1 Except as provided in this Bylaw, no person shall undertake any development unless:
 - a. A Development Permit has first been issued pursuant to this Bylaw; and

- b. The development is proceeded with in accordance with the conditions of the Development Permit issued; or
 - c. The development is exempted in accordance with Subsection 1.9 and is otherwise in conformance with this Bylaw.
- 1.8.0.2 A Tourist Home constitutes a separate and additional development of a Dwelling Unit and requires a Development Permit for its operation.
- 1.8.0.3 All proposed Detached Dwellings which do not include an Accessory Dwelling Unit.

1.9 DEVELOPMENT PERMITS NOT REQUIRED

- 1.9.0.1 The following developments do not require a Development Permit where the work proposed or development complies with all regulations of this Bylaw:
- a. Those uses exempted by the Act and regulations thereto.
 - b. Works of maintenance, renovation, or repair on a structure, either internally or externally, if, in the opinion of the Development Officer, such work is consistent with any Development Permits issued for the site, and does not include:
 - i. Structural alterations;
 - ii. Changes to the use or intensity of the use of the structure; and
 - iii. Multi-unit residential buildings and buildings within commercial Land Use Districts, which do not, in the opinion of the Development Authority, substantially change the exterior appearance of the building.
 - c. The completion of a building which was lawfully under construction at the date this Bylaw comes into full force and effect, provided that:
 - i. The building is completed in accordance with the terms of any permit granted by the Municipality, subject to the conditions of that permit; and
 - ii. The building, whether or not a permit was granted in respect of it, is completed in accordance with 1.12.0.1 or as otherwise specified in the Development Permit or in the conditions of development approval. **[2021-24]**
 - d. The use of any building referred to in Subsection 1.9.0.1c for the purpose for which construction was commenced.
 - e. The erection or installation of machinery and equipment needed in connection with construction of a building for which a Development Permit has been issued, for the period of construction.
 - f. The construction and maintenance of a Public Utility by the Town placed in or upon a public thoroughfare or public utility easement provided any required authorizations have been obtained.
 - g. The erection, construction, or the maintenance of pedestrian gates, fences, walls, or other means of enclosure less than 2.5 m in height.
 - h. The installation and operation of a satellite dish antenna 1.0 m or less in diameter and the installation of tower antenna no more than 1.0 m higher than the maximum height of the principal building on site.

- i. The installation of solar collectors or other energy collecting and storage devices, including geothermal or other subsurface works.
- j. The use by the Municipality of publicly owned or controlled land in connection with any municipal project and may without restricting the generality of the foregoing, include buildings, roads, traffic management projects, interchanges, vehicular and pedestrian bridges, water, gas, telephone and power installations, substations and pumping stations, water reservoirs, storm and sanitary sewer including treatment or related facilities, street furniture, street lighting, public recreational facilities, or similar facilities, works depots, parks, playgrounds, landscaping and streetscape improvement projects.
- k. The construction, maintenance and repair of private walkways, pathways, landscaping and similar works. Driveways are not excluded from requiring a Development Permit unless they are approved by the Town of Canmore as part of a valid Building Permit.
- l. Removal of trees or soil from a site or stockpiling of soil on a site when a Development Permit or subdivision approval has been issued, and where a Development Agreement has been duly executed for that site and said permit or agreement allows for or requires such activity.
- m. The digging of test holes requiring less than 6.0 m² in surface area for exploration purposes.
- n. The erection of a retaining wall that is no more than 1.0 m in height measured from the lowest ground elevation adjacent to the wall, and does not require a letter of engagement from a professional engineer as per the Engineering Design and Construction Guidelines (EDCG). **[2020-16]**
- o. The construction of an Accessory Building located in a residential district.
- p. A change of use or interior renovations within an existing commercial or industrial building where the following requirements are met to the satisfaction of the Development Officer:
 - i. The change of use is from a Permitted or Discretionary Use to a Permitted Use in the Land Use District applicable to the site; and
 - ii. The total GFA of the structure or structures constituting the development is less than 500 m²; and
 - iii. The requirements of the Development Permit for the building have been fulfilled; and
 - iv. A Certificate of Conformance has been applied for and received from the Development Authority that certifies that the proposed change of use conforms to the above clauses; and
 - v. The change is to a use that has required Employee Housing no greater than that of the use it is replacing; and
 - vi. The change of use is not located within a building or on a portion of a site identified to be in the Steep Creek Hazard Development Overlay. **[2021-24]**
- q. Construction of, internal or external addition to, or demolition of a Detached Dwelling (with or without an Accessory Dwelling Unit), Manufactured Dwelling, or Duplex Dwelling, where: **[2021-24]**

- i. The total gross floor area of the structure or structures constituting the development is less than 500 m²; and
- ii. The use is a Permitted Use, or for an external renovation or addition to an approved Discretionary Use; and
- iii. The construction complies with all provisions of this Bylaw; and
- iv. The exterior details of such Dwelling Units are completed in accordance with approved Building Permit plans within one year of the completion of the foundations; and
- v. The development is not located in the Steep Creek Hazard Development Overlay; and
- vi. Where there are no off-site levies, local improvement levies, or municipal fees owing against the land, or where the present owner has entered into an agreement with the Town for the payment of such levies or fees. **[2020-15]**
- r. An Accessory Dwelling Unit, Attached or Accessory Dwelling Unit, Detached.
- s. Home Occupation – Class 1.
- t. The installation of a Sign that is compliant with all the regulations as set out in Section 9: Signage or is exempt as per Section 9.14. **[2021-24]**
- u. The restoration, rehabilitation or reclamation of disturbed areas.
- v. The use of a Dwelling Unit as a Show Home. **[2021-24]**

1.10 PROCESSING OF DEVELOPMENT APPLICATIONS

- 1.10.0.1 The Development Authority shall approve all applications for a Permitted Use which conform in all respects to the provisions of this Bylaw. The Development Authority may impose conditions to ensure compliance with this Bylaw.
- 1.10.0.2 In making a decision on an application for a Discretionary Use or where a variance has been requested, the Development Authority may:
 - a. Approve the application; or
 - b. Approve the application subject to conditions considered appropriate or necessary; or
 - c. Refuse the application, stating reasons for the refusal.
- 1.10.0.3 When making a decision on a Development Permit for a Discretionary Use, the Development Authority shall consider:
 - a. Any plans or policies affecting the parcel;
 - b. The location of the parcel and the appropriateness of the proposed development;
 - c. The merits of the proposed development and its compatibility with the intent of its Land Use District;
 - d. The potential impact of the development with respect to adjacent parcels;
 - e. Servicing and access requirements; and
 - f. General planning principles.

- 1.10.0.4 The Development Authority shall not approve a Development Permit for a use that is not listed as a Permitted or Discretionary Use in the relevant Land Use District.
- 1.10.0.5 Where required as part of an application, a Sustainability Screening Report will be reviewed by the Development Authority and be considered in the decision-making process in accordance with the Sustainability Screening Policy. **[2020-16]**
- 1.10.0.6 All multi-unit residential developments, including Townhouse, Townhouse, Stacked, and Apartment Building developments are subject to Section 11: Community Architectural and Design Standards of this Bylaw. **[2021-24]**

1.10.1 Notice of Complete Application

- 1.10.1.1 Upon receipt of a Development Permit application, the Development Officer shall determine if the application is complete within 20 days.
- 1.10.1.2 An application is complete if, in the opinion of the Development Authority, the application contains the documents and other information necessary to review the application, including a Sustainability Screening Report.
- 1.10.1.3 If the Development Authority determines that the application is incomplete, the Development Authority shall issue to the applicant a written notice that the information is incomplete and that any outstanding documents and information shall be submitted by a date set out in the notice, or a later date agreed on between the applicant and the Development Authority in order for the application to be considered complete.
- 1.10.1.4 Additional extensions may be granted if in the opinion of the Development Authority, there is adequate rationale to continue extending the application.
- 1.10.1.5 If the applicant fails to submit all the outstanding information and documents on or before the agreed upon date, the application is deemed to be refused.
- 1.10.1.6 Upon request, the Development Authority may issue a notice in writing to the applicant that their application is complete, or if the Development Authority does not make a determination of completeness within 20 days, the application is deemed to be complete.
- 1.10.1.7 Despite that an application is deemed to be complete, the Development Authority may request additional information or documentation from the applicant that the Development Authority considers necessary to review the application.

1.10.2 Notice of Application

- 1.10.2.1 Once an application has been deemed to be complete and prior to making a decision on an application for a Development Permit for a Discretionary Use, or for a Permitted Use requiring a variance, the applicant is required to post a notice on the property in a location and format determined by the Town describing the proposed development and advising any interested parties where further information regarding the application may be obtained.
- 1.10.2.2 A Notice of Application shall be posted for a minimum of 10 calendar days prior to the issuance of a Notice of Decision.

- 1.10.2.3 Notwithstanding the notification requirements described in Subsection 1.10.2.1, the posting of a Notice of Application shall not be required for:
- a. A Sign;
 - b. The renewal of a Home Occupation - Class 2;
 - c. The renewal of a Bed and Breakfast;
 - d. Existing buildings when a Development Permit is required to address non-conforming aspects of the building structure; or
 - e. A Temporary Business.

1.10.3 Referrals

- 1.10.3.1 The Development Authority may refer an application to any authority, jurisdiction or party that the Authority deems appropriate or necessary. The Development Authority may consider any timely responses to such referrals, but any comments received are not binding upon the Development Authority.

1.10.4 Notice of Decision

- 1.10.4.1 The Development Authority shall make a decision on an application for a Development Permit within 40 days after the determination of a complete application.
- 1.10.4.2 The Development Authority may extend the 40-day time period to render a decision by entering into an agreement in writing with the applicant.
- 1.10.4.3 If no decision is made after 40 days, and no extension agreed upon, the application is deemed refused.
- 1.10.4.4 When an application for a Development Permit for a Permitted Use with no variances is approved, the Development Authority shall issue a Development Permit.
- 1.10.4.5 When an application for a Development Permit is approved for a Discretionary Use or for a Permitted Use in which a variance has been granted, the Development Authority shall:
- a. Provide a Notice of Decision to the applicant of the approval;
 - b. Require the applicant to post the Notice of Decision conspicuously for a period of not less than 21 days on the property for which the application has been made;
 - c. Publish a Notice of Decision in a local newspaper;
 - d. State the procedure for any appeal and the date the appeal period expires, which shall be 21 days following the Notice of Decision being posted on the property; and
 - e. Issue a Development Permit after the appeal period has expired, subject to any additional amendments or information that may be required for submittal and review by the Development Authority.
- 1.10.4.6 When an application for a Development Permit is refused, the Notice of Decision shall be issued to the applicant.
- 1.10.4.7 When an appeal is made within the appeal period, a Development Permit which has been

approved shall not be valid until and unless the permit is upheld, either in whole or as varied, by the Subdivision and Development Appeal Board.

- 1.10.4.8 When an application for a Development Permit has been refused pursuant to this Bylaw, or ultimately after appeal, the submission of another application for a Development Permit on the same parcel of land for the same or similar use by the same or any other applicant may not be accepted by the Development Officer for at least six (6) months after the date of refusal.
- 1.10.4.9 Except where a Development Permit has been approved for a limited period of time, a permit remains in effect unless the Development Permit is suspended or cancelled or development has not commenced in accordance with Subsection 1.12.

1.10.5 Development Permits for sites within the Airport Vicinity Protection Area

- 1.10.5.1 For the purposes of this section and Section 7.5, the Airport Vicinity Protection Area is divided into the following districts:
 - a. The Airport Property District, designated A-P, and
 - b. The Airport Urban District, designated A-U
 as per Schedule 1 in Subsection 7.5.5.
- 1.10.5.2 For the purposes of this section, one land use is substantially similar to another if, in the opinion of the Development Officer:
 - a. Its intended use is the same as that of the other;
 - b. It is no more sensitive to external noise than the other;
 - c. It does not attract birds;
 - d. It does not generate a large amount of smoke or dust;
 - e. It does not exceed the height limitations in Subsection 7.5.3; and
 - f. It does not detrimentally impact flight paths or the NEF.
- 1.10.5.3 The Development Officer may issue a Development Permit for a development that involves a land use that is designated "P" in Subsection 7.5.7, Table 1.
- 1.10.5.4 The Development Officer may issue a Development Permit for a development that involves a land use that is designated "C" followed by a number in Subsection 7.5.7, Table 1.
- 1.10.5.5 The Development Officer shall not issue a Development Permit for a development that involves a land use that:
 - a. Is designated "NA" in Table 1 of Subsection 7.5.7, or;
 - b. Is neither listed in Table 1 of Subsection 7.5.7 nor authorized under Subsection 1.10.5.3 or 1.10.5.4.
- 1.10.5.6 If a Development Permit application is made for a development that involves a land use that, in the opinion of the Development Officer, may attract birds or generate large amounts of smoke or dust or both, the Development Officer shall require the applicant to submit a

report prepared by a qualified professional regarding the potential impacts of the proposed development on the operation of the heliport.

1.10.6 Development Permits for Historic Resources

- 1.10.6.1 Upon receipt of a Development Permit for a Historic Resource on the Inventory, if necessary the Development Authority will request an extension to the time period allowed for the review of a Development Permit contained in the Act. An additional review period of 45 days will be requested of the applicant, to allow for the conservation measures contained below to be evaluated to determine which may be appropriate to the application. During this period the Development Authority will work with the resource owner to encourage the preservation of the Historic Resource and its character defining elements.
- 1.10.6.2 The review period may be waived or reduced by the Development Authority in case of an emergency situation requiring immediate demolition for reasons of public safety, or where a professional structural engineer engaged by the resource owner or the applicant, confirms that the structure or historic resource cannot be reasonably maintained in its existing state.

1.11 CONDITIONS ATTACHED TO A DEVELOPMENT PERMIT

- 1.11.0.1 Where a Development Permit application does not demonstrate that the proposed development conforms to all the applicable requirements of this Bylaw, the Development Authority may, as a condition of issuing the Development Permit, require that the applicant amend specific elements of the plans to conform with the applicable requirements.
- 1.11.0.2 The Development Authority may, as a condition of issuing a Development Permit for a Permitted or Discretionary Use, require the applicant to enter into an agreement with the Town to do any of the following:
- a. The construction or payment for the construction of a road required to give access to the development;
 - b. The construction or payment for the construction of a pedestrian walkway system to serve the development, and/or pedestrian walkways to connect the pedestrian walkway system serving the development with a pedestrian walkway system that serves or is proposed to serve an adjacent development;
 - c. The installation or payment for the installation of public utilities, other than telecommunications systems or works, that are necessary to serve the development;
 - d. The construction, or payment for the construction, of off-street or other parking facilities, and loading and unloading facilities;
 - e. The payment of an off-site levy or redevelopment levy; and
 - f. To give security to ensure that the terms of the agreement under this section are carried out. The security may amount to 100% of the value of performing or completing particular requirements of the agreement or permit.
- 1.11.0.3 The Town may register a caveat against the Certificate of Title with respect to a Development Agreement for a property that is the subject of a Development Permit. This caveat shall be discharged when the agreement has been complied with, at the request of the land owner or

the land owners' agent.

- 1.11.0.4 The Development Authority may attach conditions to a Development Permit which may include entering into a Development Agreement, adherence to the Town of Canmore Engineering Design and Construction Guidelines, and the completion of any required reports and studies, including conditions that require adherence to standards, commitments and other provisions set out in any Sustainability Screening Report approved by the Development Authority as part of the permit review process.
- 1.11.0.5 **[Repealed by 2020-16]**
- 1.11.0.6 A Development Permit for an Administrative/Sales Office may be issued for a maximum of 3 years. **[2020-16]**
- 1.11.0.7 Restricted lighting may be permitted on a temporary basis for a special event through a temporary Development Permit at the discretion of the Development Authority.
- 1.11.0.8 The following lighting systems may be considered for approval under a temporary Development Permit:
 - a. Temporary lighting in which any single luminaire exceeds 250 watts or the total lighting load exceeds 2000 watts.
 - b. Aerial lasers.
 - c. Search lights.
 - d. Other very intense lighting defined as having a light source exceeding 200,000 lumens.
 - e. Flashing or Intermittent light (except when considered winter holiday lighting).
 - f. Strip lighting or any lighting installations intended to outline the structure of a building.
 - g. Floodlights.

1.12 COMMENCEMENT AND COMPLETION OF DEVELOPMENT

- 1.12.0.1 Unless otherwise specified in the Development Permit or in the conditions of development approval, if the development authorized by a Development Permit is not commenced and pursued within one (1) year from the effective date of the permit, and completed within two (2) years of the issue, such permit approval ceases and the permit itself is deemed void, expired and without effect, unless an extension to this period has been granted by the Development Authority.
- 1.12.0.2 Once commenced, a development is not to be discontinued or suspended for period(s) totaling more than six (6) months, unless upon request by the developer, the Development Authority has granted an extension in writing. If the notification of extension has not been obtained, the Development Permit shall be considered to have lapsed. A development once begun shall not be abandoned or left for an extended period of time if, in the opinion of the Development Authority, it is in an unsightly or unsafe condition. Notwithstanding 1.12.0.1, the period for the completion of construction may be extended at the discretion of the Development Officer by means of a written request for such an extension received by the Development Officer not less than thirty (30) days prior to the scheduled expiration date.

- 1.12.0.3 For the purposes of this Bylaw, commencement of construction includes excavation, but does not include fencing the site, posting signage, obtaining permits or demolition.
- 1.12.0.4 The approval or issuance of a Development Permit does not authorize commencement of construction except in conjunction with all other required permits and conditions of the Development Permit.

1.13 DEVELOPMENT AUTHORITY - DUTIES AND RESPONSIBILITIES

1.13.1 Development Officer

- 1.13.1.1 A Development Officer is hereby established and one or more employees of the Town of Canmore shall be appointed as Development Officer. The Development Officer shall:
- a. Advise, assist and provide recommendations to the Canmore Planning Commission and Council, where applicable, in regard to the planning of orderly and economical development;
 - b. Receive and process all applications for Development Permits and subdivision applications;
 - c. Consider and decide upon Development Permit applications, unless the application is referred to the Canmore Planning Commission or Council in accordance with this Bylaw;
 - d. Sign and issue all Development Permits;
 - e. Refer for comment, applications for Development Permit or subdivision applications to those authorities and agencies prescribed within the Subdivision and Development Regulations;
 - f. Perform such duties as established by Council to enforce this Bylaw in conformance with the Act;
 - g. Keep and maintain for the inspection of the public during office hours, a copy of this Bylaw and all amendments thereto and ensure that copies of same are available to the public at a cost established by Resolution of Council;
 - h. Make available for inspection by the public during office hours a register of all applications for Development Permits and the decisions made thereon; and
 - i. Collect fees according to a schedule established by Resolution of Council.
- 1.13.1.2 The Development Officer may:
- a. Refer to the Canmore Planning Commission for its consideration and decision, Development Permit applications for Discretionary Uses or any other development applications;
 - b. Refer any other planning or development matter to the Canmore Planning Commission for its review, support or advice; and
 - c. Complete an office consolidation of this Bylaw and any amendments thereto.
- 1.13.1.3 The Development Officer is a Designated Officer in accordance with the Act for the purposes of this Bylaw.

1.13.2 Canmore Planning Commission

- 1.13.2.1 The Canmore Planning Commission is hereby authorized to decide upon all Development Permit applications referred to it by a Development Officer including Development Permit applications for lands designated Direct Control District where such district(s) identify the Canmore Planning Commission as the Development Authority.

1.14 VARIANCE POWERS OF DEVELOPMENT AUTHORITY

- 1.14.0.1 The Development Authority may grant a variance(s) to the standards and regulations of this Bylaw as part of the Development Permit approval process, where there is deemed to be a public benefit or where site conditions constrain reasonable development as described in this section.

1.14.1 Discretion of Development Authority

- 1.14.1.1 Where the Development Authority deems that the variance provides a community or neighbourhood benefit and that the proposed development would not unduly interfere with the amenities of the area or materially interfere with, or affect the use, enjoyment, safety, aesthetics, or value of neighbouring properties, the Development Officer may grant a variance of up to 10% and the Canmore Planning Commission a variance up to 20% where the variances are related to the following regulations:
- a. Maximum building height;
 - b. Minimum front yard setback;
 - c. Minimum rear yard setback;
 - d. Minimum side yard setback;
 - e. Maximum site coverage;
 - f. Maximum automobile parking stall requirements; **[2020-16]**
 - g. Minimum bicycle parking stall requirements; **[2020-16]**
 - h. Maximum density; and
 - i. Minimum density.
- 1.14.1.2 The authority to grant variances to other regulations and guidelines contained in this Bylaw shall remain at the discretion of the Development Authority and shall not be limited by the percentages described above.
- 1.14.1.3 In considering any variance to the height of buildings and/or eavelines, the Development Authority may consider the impact of the additional height on such issues as:
- a. Access to light for neighbouring properties;
 - b. The protection of views from neighbouring properties;
 - c. Privacy for neighbouring properties; and
 - d. Site constraints.
- 1.14.1.4 Additional variances to building height may be granted at the discretion of the Development

Authority where, due to site constraints, compliance would cause unreasonable hardship for the constructing of a building.

1.14.1.5 Notwithstanding 1.14.1.1, variances to Accessory Buildings remain at the discretion of the Development Authority and shall not be limited by the percentages described above.

1.14.1.6 Notwithstanding 1.14.1.1, in accordance with the Green Building Regulations of this Bylaw, neither a Development Officer nor the Canmore Planning Commission shall grant a variance to a commercial, industrial or institutional development, or a residential development to which the EnerGuide program cannot be applied, unless the development meets the Town's Enhanced Green Construction requirements. **[2020-15]**

1.14.2 Variances to Setbacks from Waterbodies

1.14.2.1 The following setback variances may be granted by the Development Authority on lots registered on or before April 8, 1997:

- a. Commercial and Mixed-Use Buildings: A variance of up to 5.0 m to the bank setback may be granted to commercial and mixed use buildings if the Development Authority is satisfied that the remaining setback area between the building and the bank will enhance either riparian habitat or be landscaped in accordance with the requirements of Section 11: Community Architectural and Urban Design Standards, or both.
- b. Residential Buildings: A variance of up to 5.0 m to the bank setback may be granted to residential buildings if the variance is required in order to accommodate a residential building with a gross floor area of 325 m² or less or a floor area ratio of 0.35 or less. Residential buildings which do not meet either of these requirements shall not be eligible for a variance from the 20.0 m setback. **[2020-16]**
- c. Notwithstanding lot registration dates, the residential area in Spring Creek Mountain Village that is generally formed by Lot 1, Block 9, Plan 1810013; Lot 5, Block 83, Plan 1095F; and Lot 6, Block 83, Plan 1095F shall be allowed a 5m variance to the bank setback in accordance with 1.14.2.1b." **[2021-23]**

1.14.2.2 Notwithstanding the above-described provisions, the Development Authority shall not grant any variances not approved prior to the adoption of this Bylaw to setbacks from the bank of a waterbody except in accordance with Subsection 2.5.1. **[2020-16]**

1.14.3 Additional Variances

1.14.3.1 Variances in excess of the limits described in Subsection 1.14.1.1 shall only be considered and may only be granted by the Development Authority where the Development Authority is satisfied that the proposed development provides an extraordinary net benefit to the community pursuant to one or more of the following:

- a. Historic Resource Conservation (Subsection 7.7)
- b. Density Bonusing providing PAH housing (Section 12)
- c. Enhanced Green Construction (Section 10)

1.14.3.2 Minimum densities may be reduced further at the discretion of the Development Authority

when development is proposed adjacent to or in the vicinity of wildlife corridors or other environmentally sensitive lands, or in order for the development to comply with the requirements of an Area Structure Plan or where the topography of the site does not allow for minimum densities to be achieved without excessive regrading of the site.

- 1.14.3.3 Notwithstanding Subsection 1.14.1.1, variances may be granted at the discretion of the Development Authority where the Development Authority is satisfied, based on a professional analysis of the site, that due to topographic, soil, geotechnical or other constraints full compliance with the standards and regulations of this Bylaw is not possible or such compliance would cause unreasonable hardship for constructing a building.

1.15 USES NOT LISTED BUT ALLOWED IN ALL DISTRICTS

- 1.15.0.1 The following uses are discretionary in all districts, regardless of whether they are listed in the district:
- a. Excavation, Stripping and Grading. Where permitted, if the site is not subject to additional development within nine (9) months after the commencement of excavation, stripping or grading, remediation of the site to control sediment and erosion, dust, and aesthetics shall be completed to the satisfaction of the Town. This may include planting of vegetation of a type and quantity similar to adjacent areas.
 - b. Signs, subject to the regulations of Section 9: Signage of this Bylaw.
 - c. Public Utility, when not listed as a Permitted Use. **[2020-16]**
 - d. Administrative/Sales Office. **[2021-24]**

1.16 NON-CONFORMING BUILDINGS AND USES

- 1.16.0.1 Except where otherwise specified within this Bylaw, the regulation of non-conforming uses and non-conforming buildings shall be in accordance with the Act.
- 1.16.0.2 As authorized by the Act, a non-conforming building may continue to be used, and the building may be enlarged, added to, rebuilt or structurally altered, if at the discretion of the Development Authority, the alterations do not substantially increase the extent of non-conformance and are within all other requirements of the Bylaw.
- 1.16.0.3 A Development Permit shall be required for any such additions or structural alterations.
- 1.16.0.4 Notwithstanding 1.16.0.2, within the TBD Transition Business District, an approved development existing on the date of approval of this Bylaw shall be deemed to be a Discretionary Use on that site only. If that use is discontinued for a period of six consecutive months or more, any future use of the land shall conform with the uses and development standards specified in the TBD Transition Business District.
- 1.16.0.5 Notwithstanding 1.16.0.2, a Detached Dwelling unit within the R1 Residential Detached District, R1A Residential Detached Small-Lot District and R1B Residential Detached Plus District which is legally existing or approved prior to the effective date of this Bylaw shall be deemed to conform with the maximum gross floor area requirements as specified in subsections 3.1.3.11, 3.2.3.8 and 3.4.3.9, whichever is applicable.

- 1.16.0.6 A Detached Dwelling unit which has been deemed to conform with the maximum gross floor area of this Bylaw in accordance with Subsection 1.16.0.5 and that is accidentally destroyed by fire or a natural disaster may be rebuilt to the original floor area or FAR, and such rebuilt Detached Dwelling unit shall be deemed to be legally existing or approved prior to the effective date of this Bylaw.

1.17 COMPLIANCE WITH OTHER BYLAWS, REGULATIONS AND LEGISLATION

- 1.17.0.1 In addition to this Bylaw, an applicant is responsible for complying with any federal, provincial or municipal legislation, bylaw or plans which may apply to a proposed development.
- 1.17.0.2 The applicant is responsible for complying with the conditions of any easement, covenant, lease, scheme, or agreement which affects the development or subdivision.
- 1.17.0.3 Whether the use is a Permitted or a Discretionary use, a Development Authority may deny an application for a Development Permit or attach such conditions to a Development Permit as are deemed appropriate by the Development Authority to enhance compliance with a duly registered Conservation Easement agreement.

1.18 BYLAW CONTRAVENTION

1.18.1 Offences

- 1.18.1.1 Where a Development Officer finds that a development or use of land or buildings is not in accordance with the Act or the Regulations, or a Development Permit or subdivision approval, or this Bylaw, the Development Officer may issue an Order in writing to:
- a. The registered land owner; or
 - b. The person in possession of the land or buildings; or
 - c. The person responsible for the contravention; or
 - d. All or any of them to:
 - i. Stop the development or use of the land or building in whole or in part as directed by the notice; or
 - ii. Demolish, remove or replace the development; or
 - iii. Take such other measures as are specified in the Order so that the development or use of the land or buildings is in accordance with the Act, the Regulations, a Development Permit, subdivision approval or this Bylaw, as the case may be, within the time specified by the Order.
- 1.18.1.2 A person who receives an Order may appeal to the Subdivision and Development Appeal Board.
- 1.18.1.3 Where a person fails or refuses to comply with an Order directed to him/her, the Town may, in accordance with the Act, enter upon the land or building and take such action as is necessary to carry out the Order.
- 1.18.1.4 Where the Development Officer carries out an Order, the Town may cause the costs and

expenses incurred in carrying out the Order to be placed on the tax roll, and that amount shall be collected in the same manner as taxes on land.

- 1.18.1.5 Where reasonable written evidence has been presented to the Development Officer that a Development Permit has been obtained through misrepresentation, the Development Officer may suspend or cancel the Development Permit and shall give written notification of such suspension or cancellation to the applicant.

1.18.2 Right of Entry

- 1.18.2.1 Pursuant to the Act, an authorized person may only enter land or a building for the purpose of ensuring compliance with the Act and the Regulations thereunder, or this Bylaw if:
- a. The owner or person in possession of it gives his consent to the entry, or
 - b. The entry is authorized by an Order of the Court of Queen's Bench, and
 - c. Only for the purpose of ensuring compliance with the Act and the Regulations thereunder, or this Bylaw.
- 1.18.2.2 The Enforcement Officer, or such other person appointed by resolution of Council, is designated as the "authorized person".

1.18.3 Offences and Penalties

- 1.18.3.1 The authority regarding offences and penalties of this Bylaw are governed by the Act.
- 1.18.3.2 A person who:
- a. Contravenes or fails to comply with any provision of the Act or the Regulations; or
 - b. Contravenes or fails to comply with an order under this Bylaw; or
 - c. Contravenes or fails to comply with a Development Permit or subdivision approval or a condition attached thereto; or
 - d. Obstructs or hinders any person in the exercise or performance of his powers or duties under the Act, the Regulations, or the Land Use Bylaw,
- is guilty of an offence and is liable on summary conviction to a fine.
- 1.18.3.3 Where a person is found guilty of an offence under this Bylaw, the Court may, in addition to any other penalty imposed, order the person to comply with the Act, the Regulations, the Land Use Bylaw, an order issued under the Act or this Bylaw or a Development Permit, subdivision approval or a condition attached to an approval, as the case may be.
- 1.18.3.4 Any person who contravenes or fails to comply with any provision of this Bylaw is guilty of an offence and is liable upon summary conviction to a fine not less than \$100.00 and not exceeding \$10,000 per violation after conviction and costs, and upon failure to pay the fine and costs, to imprisonment for a period not exceeding 30 days unless such fine and costs are sooner paid. In addition, the Development Officer may suspend or revoke the Development Permit for the site on which the violation of this Bylaw has occurred.

1.18.4 Violation Tags

- 1.18.4.1 A Peace Officer is hereby authorized and empowered to issue a Violation Tag to any person who the Peace Officer has reasonable and probable grounds to believe:
- Is conducting a development after the expiry of a temporary Development Permit.
 - Is conducting a Temporary Business without a Development Permit.
 - Is continuing development without a Development Permit or contrary to the conditions of a Development Permit when an Order has been issued in accordance with the Act.
 - Has developed, is operating, or is allowing to exist a Dwelling Unit on a site which is in excess of the number of Dwelling Units allowed for by the Land Use Bylaw or approved as part of a Development Permit.
 - Is operating, or is allowing to be operated, a Tourist Home without a valid Development Permit.
 - Has a vehicle, or is allowing the presence of a vehicle within a residential district which contravenes the regulations of Section 2: General Regulations.
 - Is occupying a premises without an Occupancy Certificate.
 - Has contravened any provision of Section 2: General Regulations.
 - Is conducting a Logging Operation without a Development Permit and without the authorization required in this Bylaw.
 - Has contravened any provision of Section 9: Signage.
- 1.18.4.2 A Violation Tag may be issued to such person:
- Either personally, or
 - By mailing a copy to such person at their last known post office address.
- 1.18.4.3 Where contravention of this Bylaw is of a continuing nature, further Violation Tags or a Violation Ticket may be issued by a Peace Officer, provided that no more than one Violation Tag or Violation Ticket shall be issued for each calendar day that the contravention continues.
- 1.18.4.4 Where a Violation Tag is issued pursuant to this Bylaw, the Person or Company to whom the Violation Tag is issued may, in lieu of being prosecuted for the offense, pay to the Town of Canmore the penalty specified on the Violation Tag as follows:
- General offences related to developments conducted without Development Permits or contrary to the conditions of a Development Permit as described in “a”, “b”, and “c” of Subsection 1.18.4.1, above:

First offence within calendar year:	Minimum penalty:	\$ 500
Second offence within calendar year:	Minimum penalty:	\$ 1,000
Third and additional offences:	Minimum penalty:	\$ 2,000
 - Offenses related to unpermitted Dwelling Units:

First offence within calendar year:	Minimum penalty:	\$ 2,500
-------------------------------------	------------------	----------

- | | | |
|---------------------------------|------------------|----------|
| Second and additional offences: | Minimum penalty: | \$ 5,000 |
|---------------------------------|------------------|----------|
- c. Offenses related to unpermitted Tourist Homes:
- | | | |
|-------------------------------------|------------------|----------|
| First offence within calendar year: | Minimum penalty: | \$ 2,500 |
| Second and additional offences: | Minimum penalty: | \$ 5,000 |
- d. Offenses related to vehicles on residential properties:
- | | | |
|--------------------------------------|--------------------|--------|
| First offence within calendar year: | Specified penalty: | \$ 100 |
| Second offence within calendar year: | Specified penalty: | \$ 200 |
| Third and additional offence: | Specified penalty: | \$ 500 |
- e. Offenses related to unauthorized occupancy of premises:
- | | | |
|--------------------------------------|--------------------|--------|
| First offence within calendar year: | Specified penalty: | \$ 250 |
| Second offence within calendar year: | Specified penalty: | \$ 350 |
| Third and additional offence: | Specified penalty: | \$ 500 |
- f. Offenses relating to signage:
- | | | |
|--|--------------------|--------|
| First offence within calendar year: | Specified penalty: | \$ 50 |
| Second offence within calendar year: | Specified penalty: | \$ 100 |
| Third & additional offence within calendar year: | Specified penalty: | \$ 250 |
| Signage Impound Fee: | Specified penalty: | \$ 50 |
- g. Offenses relating to unauthorized Logging:
- | | | |
|-------------------------------------|------------------|----------|
| First offence within calendar year: | Minimum penalty: | \$ 1,000 |
| Second and additional offences: | Minimum penalty: | \$ 5,000 |
- 1.18.4.5 Nothing in this Bylaw shall prevent a Peace Officer from issuing summons for the Mandatory Court appearance of any person or company who contravenes any provision of this Bylaw.

1.18.5 Violation Ticket

- 1.18.5.1 Notwithstanding any other provision of this Bylaw, a Peace Officer is hereby authorized and empowered to immediately issue a Violation Ticket pursuant to the Provincial Offences Procedures Act, as amended, to any person who the Peace Officer has reasonable grounds to believe has contravened any provision of this Bylaw.
- 1.18.5.2 Any person or company that contravenes the provisions of this Bylaw is guilty of an offence and is liable for the minimum penalty set out in 1.18.4.4 or, if no penalty is specified in for the particular offence, for a minimum specified penalty of \$500.00.

1.19 APPEALS

- 1.19.0.1 Where the Development Authority:
- a. Refuses or fails to render a decision on an application for a Development Permit; or

- b. Approves an application for a development; or
- c. Issues an order under this Bylaw;

the person applying for the Permit or affected by the order, or any other affected person, as the case may be, may appeal to the Subdivision and Development Appeal Board within the dates outlined in the Act and the Regulation.

1.20 SUBDIVISION OF LAND

1.20.1 Notice of Complete Application

- 1.20.1.1 Upon receipt of a subdivision application, the Development Officer shall determine if the application is complete within 20 days.
- 1.20.1.2 An application is complete if, in the opinion of the Subdivision Authority, the application contains the documents and other information necessary to review the application.
- 1.20.1.3 If the Subdivision Authority determines that the application is incomplete, the Subdivision Authority shall issue to the applicant a written notice that the information is incomplete and that any outstanding documents and information shall be submitted by a date set out in the notice, or a later date agreed on between the applicant and the Subdivision Authority in order for the application to be considered complete.
- 1.20.1.4 If the Subdivision Authority determines that the application is complete, the Subdivision Authority shall issue a notice in writing to the applicant that their application is complete.
- 1.20.1.5 If the applicant fails to submit all the outstanding information and documents on or before the agreed upon date, the application is deemed to be refused and the Subdivision Authority shall issue a notice in writing to the applicant that their application is refused.
- 1.20.1.6 If the Subdivision Authority does not make a determination of completeness within 20 days, the application is deemed to be complete.
- 1.20.1.7 Despite that an application is deemed to be complete, the Development Authority may request additional information or documentation from the applicant that the development authority considers necessary to review the application.

1.21 BYLAW AMENDMENTS

- 1.21.0.1 The Town may initiate amendments to this Bylaw.
- 1.21.0.2 Any person may request an amendment to this Bylaw by applying in writing.
- 1.21.0.3 Proposed amendments to this Bylaw shall be undertaken in accordance with the Act.

1.22 TELECOMMUNICATIONS AND FACILITIES

- 1.22.0.1 Industry Canada has the ultimate authority for the approval of telecommunications facilities. In order to ensure that these developments address municipal planning issues the following subsections describe what is required for the installation of telecommunications towers and

facilities.

1.22.1 Information Requirements

- 1.22.1.1 An application for the construction of new telecommunications facilities shall include the following:
- a. Site plans and drawings illustrating the dimensions and appearance of telecommunications towers and associated facilities;
 - b. Information demonstrating to the satisfaction of the Development Authority that the proposed development cannot share existing telecommunications facilities or structures in the area;
 - c. If the case of development proposed for a new, freestanding site, that the location and proposed development are designed to allow for the co-location of future telecommunications facilities on any towers or other structures proposed; and
 - d. Information regarding options for the design, height, location, and number of proposed towers and the rationale for the proposed choice of location and height.

1.22.2 Tower Design and Lighting

- 1.22.2.1 Towers and associated antennas and other facilities shall be designed, finished, and where required for regulatory reasons, illuminated in a manner to minimize the visual impact of the facilities from residential and public areas in the vicinity.
- 1.22.2.2 Any required lighting shall be designed to minimize potential negative impacts on migratory birds. No signage, other than signage required for regulatory or safety purposes, shall be mounted on a telecommunications tower.

1.22.3 Public Consultation Process

- 1.22.3.1 An applicant for a telecommunications facility shall conduct a public consultation program based on the requirements of the Town of Canmore Public Participation Policy.
- 1.22.3.2 The applicant's public consultation program shall inform the citizens of Canmore and provide a reasonable and adequate opportunity for Canmore citizens to have an opportunity to voice concerns and propose options to the Town and/or the applicant regarding the proposed facility.
- 1.22.3.3 As part of the application process the applicant shall include a proposed public consultation process describing the neighbourhood(s) and person who will be consulted, how that consultation will take place, and how responses will be accepted and responded to. The applicant's proposed public consultation process shall be subject to review and approval by the Development Authority.

SECTION 2 GENERAL REGULATIONS

- 2.1 Applicability**
- 2.2 Slope Adaptive Design**
- 2.3 Vehicle Access and Driveways**
- 2.4 Setback Regulations**
- 2.5 Environmental Protection**
- 2.6 Developments, Objects and Vehicles Prohibited in Residential Districts**
- 2.7 Parking and Loading Requirements**
- 2.8 Building Height and Roof Design [2020-16]**
- 2.9 Dwelling Units Permitted per Lot**
- 2.10 Lighting Standards**
- 2.11 Energy Collection and Storage Devices**
- 2.12 Garbage and Recycling**
- 2.13 Fences, Gates and Hedges**
- 2.14 Satellite Dish, Radio, and Other Antenna Structures**
- 2.15 Mechanical Systems and Outdoor Storage**
- 2.16 FireSmart**
- 2.17 Relocation of Buildings**
- 2.18 Noise Attenuation from Trans-Canada Highway**
- 2.19 Noise and Vibration Attenuation From Railway**

2.1 APPLICABILITY

- 2.1.0.1 The regulations in Section 2: General Regulations, shall apply to all developments within the Town of Canmore, unless otherwise exempted.
- 2.1.0.2 Where any regulation in this section may be in conflict with any regulation of a given Land Use District, the regulation in the District shall take precedence.

2.2 SLOPE ADAPTIVE DESIGN

- 2.2.0.1 Any landscaping, topographic reconstruction or site grading shall be in accordance with the Engineering Design and Construction Guidelines and acceptable to the Town of Canmore. [2021-24]

2.3 VEHICLE ACCESS AND DRIVEWAYS

- 2.3.0.1 Vehicular access to a residential lot shall be subject to the following criteria:
- a. A Detached Dwelling or Duplex Dwelling shall be permitted only one (1) driveway.
 - b. [Repealed by 2020-16]
 - c. [Repealed by 2020-16]
 - d. For all new Detached or Duplex Dwellings with access to a rear lane, front-access driveways shall not be allowed, unless 51% or more of the street including the adjacent block face already consists of front-access driveways.
 - e. Notwithstanding Section 2.3.0.1(a), a second driveway with access from a lane shall be allowed when used to provide automobile parking and access for an Accessory Dwelling Unit.
 - f. Notwithstanding Section 2.3.0.2, when no lane access is present, a driveway for a Detached Dwelling with a double garage door and an Accessory Dwelling Unit may have a maximum driveway width of 7.5 m.
 - g. Townhouse and Townhouse, Stacked shall be permitted only one (1) driveway, with access provided from a lane (when present).
 - h. Townhouse and Townhouse, Stacked may be permitted two driveways (one from the rear yard and one from the front yard) when the front access driveway is:
 - i. Constructed of high quality materials. Asphalt, gravel or similar materials shall not be permitted. Decorative forms of concrete, such as, pavers, stamped, stained, exposed aggregate, dyed, and/or cut concrete may be permitted for use on the driveway and as a contrasting boarder material: and
 - ii. [Repealed by 2020-16]
 - iii. Designed to a maximum width of 5m at the property line which, includes any proposed decorative borders.
 - i. Where a contrasting border material is proposed for a driveway associated with a Townhouse or Townhouse, Stacked development, the border shall have minimum width of 0.3m. [2020-16]

- j. Residential driveways shall not be allowed direct access to an arterial street except for in unique circumstances, as determined by the Development Authority. In situations where access is granted to an arterial street, it shall be demonstrated that adequate automobile maneuvering is provided on site to ensure all automobiles are able to enter and exit the property forward facing. **[2020-16]**
- 2.3.0.2 With the exception of lanes, the maximum width of a residential driveway at the property line shall be 5.0 m for all Detached Dwellings, including those with Accessory Dwelling Units, Duplex Dwellings, Townhouses, and Townhouses, Stacked. Where three (3) or more units share a driveway, the maximum width of the driveway at property line shall be 4.0 m per double garage door and 2.5 m per single garage door. **[2020-16]**
- 2.3.0.3 The minimum usable length of a driveway between a private garage or carport and a property line shall be:
 - a. 6.0 m to a property line adjacent to a roadway, which is not an arterial street; and
 - b. 1.5 m to a property line adjacent to a public lane.

2.4 SETBACK REGULATIONS

2.4.1 Corner Visibility Triangle

- 2.4.1.1 No person shall place or maintain any structure, fence, Sign, landscaping or similar object that is greater than 1 m in height and lower than 4 m in height that may restrict visibility from a public road and therefore create a safety hazard in or on that part of a corner site as follows:
 - a. The area formed at the corner of a property where two roads meet at a right angle to form a triangle with two equal sides 4.5 m in length where the 90-degree corner of the triangle is located at the top of curb closest to the corner of the property; or
 - b. The intersection of a public pathway with a road when the pathway is located mid-block and connects directly with a crosswalk at the intersection.

Fig 2.4-1 Co



2.4.1.2 In areas where there is no top of curb, the corner visibility triangle will be measured from a point 1.5 m from the corner of the property or as determined by the Development Authority.

2.4.1.3 The corner visibility triangle does not apply to lanes or lane/road intersections unless the lane provides the only physical access to the site.

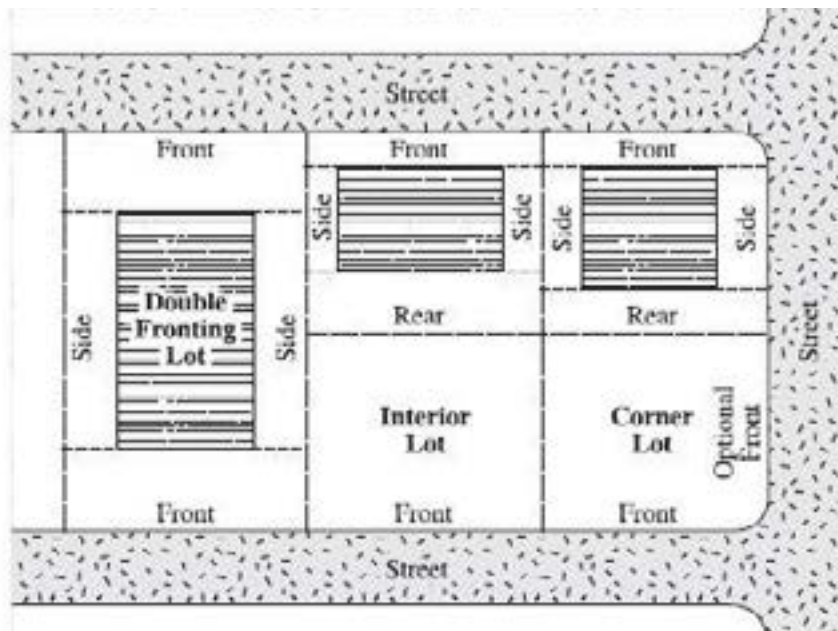
2.4.2 Corner and Double Frontage Lots

2.4.2.1 The front yard of a corner lot shall be on the same road as the front yard of the abutting properties, having regard to the orientation of lots on the longest adjoining block face.

2.4.2.2 Notwithstanding 2.4.2.1, the Development Authority may determine a corner lot to have more than one front yard. In such cases, the Development Authority shall determine the setback requirements for the additional front yard by taking into account the location of existing adjacent buildings, the required setbacks on adjacent sites, and the need to ensure safe traffic movement at the intersection considering the primary flow of traffic and access to the development.

2.4.2.3 For lots other than corner lots which have frontage on two roads, or for lots which are not rectangular in shape, the Development Authority shall determine the yard designations.

Fig 2.4-2 Corner and double frontage lots



2.4.3 Building Projections

2.4.3.1 Every part of any front, rear or side yard setback, or waterbody setback, required by this Bylaw shall be open and unobstructed by any structure from the ground to the sky except for the items listed in Table 2.4-1. Unless otherwise specified, the structures listed in Table 2.4-1 may encroach into a waterbody setback to the same extent, but not in addition to, as that permitted for a yard setback. [2021-24]

Table 2.4-1 Maximum permitted residential projections in yard setbacks

Structure	Front yard	Rear yard	Side yard
Air conditioning equipment	None	None	None
Bay Window that does not increase the floor area	1 m	1 m	None
Canopy [2020-16]	0.61 m	0.61 m	0.61 m
Cantilever on the principal dwelling	1 m	1 m	0.61 m
Chimneys	0.61 m	0.61 m	0.61 m, but in no cases closer than 1.2 m to the property line
Eaves, sills, gutters	0.61 m	0.61 m	0.61 m
	An additional 0.3 m where extending beyond a cantilever on a Detached Dwelling or Duplex Dwelling.		
Patio	1 m into waterbody setback [2021-24] - Full projection for all other setbacks [2021-24]		
Stairways and landings greater than 0.61 m above grade, leading to the principal dwelling	3 m	3 m	1 m (into one side yard only, where the stairs/landings are 2 m or less above grade)
Uncovered balconies, Uncovered decks and porches less than 4m above grade [2020-16]	2 m	2 m	None
Mechanical venting	0.61 m	0.61 m	0.61 m

- 2.4.3.2 The surface area of all enclosed projections shall not exceed 40% of the total area of the wall from which the projections are constructed.
- 2.4.3.3 Enclosures to any porch or deck projection shall not exceed 1.2 m in height above the surface of the deck or porch. Railings or walls may not exceed the maximum height of 1.2 m.
- 2.4.3.4 Notwithstanding any of the above noted projections, no projections of any type are permitted over any yard setbacks required for vehicular access that are less than 2.5 m above finished grade.
- 2.4.3.5 Individual cantilevers encroaching into a yard setback shall not exceed 12 m² of wall area with a maximum horizontal or vertical dimension of 4.0 m.

- 2.4.3.6 Wheel-chair ramps may be permitted to encroach into any required yard setback, at the discretion of the Development Authority, provided that the ramp:
- Does not impede fire access to or around the building;
 - Is complementary to and well integrated into the existing building design;
 - Does not extend beyond the property line; and
 - Is composed of non-combustible material.
- 2.4.3.7 For condominium units with separate titles or lots, yard setbacks shall apply from the property line of adjacent lots.
- 2.4.3.8 Building projections in commercial and industrial districts are not permitted to extend into yard setbacks with the exception of building eaves, which may extend 1.0 m into any yard setback.
- 2.4.3.9 A permanent structural canopy may be allowed at the discretion of the Development Authority, where it provides shelter to a public walkway below.
- 2.4.3.10 Any projection over a street will only be permitted at the discretion of the Development Authority.

2.4.4 Rooftop Terraces

- 2.4.4.1 Rooftop terraces shall:
- Be integrated into the principal building;
 - Not project into yard setbacks; and
 - Be set back a minimum of 1.5 m from the building façade below.

2.4.5 [Repealed by 2020-16]

2.4.6 CPR Railway Line

- 2.4.6.1 Where development is proposed within 30.0 m from a railway right-of-way, a railway risk assessment may be required at the discretion of the Development Authority. Any mitigations identified in the risk assessment shall be incorporated in the development to the satisfaction of the Development Authority.

2.4.7 Future Road Widening on Bow Valley Trail

- 2.4.7.1 When considering an application on a site fronting onto the Bow Valley Trail right-of-way described in Table 2.4-2, the Development Authority shall require that buildings are setback from the property line by the additional setback described in Table 2.4-2, plus the required yard setbacks of the district it is located within.

Table 2.4-2 Building setbacks for future road widening on Bow Valley Trail

From	To	Required Bow Valley Trail Right Of Way	Additional setback required
Old Canmore Road	Montane Rd	35 m	9.1 m on the east side
17 th Street	Ray McBride Street	43 m	12.8 m on the west side

- 2.4.7.2 Notwithstanding any other provisions in this Bylaw, the Development Authority shall not reduce the setback requirements contained in Table 2.4-2 unless the applicable minimum right of way width shown in the table has been acquired by the Town or can be acquired in an alternative manner to the satisfaction of the Town.

2.5 ENVIRONMENTAL PROTECTION

2.5.1 Setbacks from Bodies of Water

- 2.5.1.1 In neighbourhoods or residential subdivisions established after September 22, 1998, buildings and development, other than public access and utilities, shall be set back a minimum of 60 m from the bank of the Bow River and 20 m from the banks of all other naturally occurring watercourses and waterbodies.
- 2.5.1.2 For redevelopment within subdivisions approved before September 22, 1998, buildings and structures shall be set back a minimum distance of 20 m from the bank of Canmore Creek, Policeman Creek, Spring Creek, Cougar Creek, the Bow River and any other naturally occurring permanent streams and channels of these bodies of water.

2.6 DEVELOPMENTS, OBJECTS AND VEHICLES PROHIBITED IN RESIDENTIAL DISTRICTS

2.6.1 Prohibited Vehicles

- 2.6.1.1 No person shall be allowed to keep or maintain within a residential district:
- A commercial vehicle of a gross vehicle weight rating in excess of 4,000 kg except while actively loading or unloading.
 - An industrial or construction vehicle with a gross vehicle weight rating in excess of 4,000 kg or construction equipment stored outside except when required for construction purposes on the site.
 - A physically inoperable, dismantled or derelict vehicle outside a building for more than 48 hours.

2.6.2 Shipping Containers

- 2.6.2.1 Shipping containers are prohibited in all residential districts except for construction storage

during the period of construction for which a valid Building Permit has been issued or during the period of a residential move if such a container is part of a moving system.

- 2.6.2.2 Notwithstanding 2.6.2.1, shipping containers may be used as elements of building envelopes, provided they adhere to the Town's Community Architectural and Urban Design Standards.

2.7 PARKING AND LOADING REQUIREMENTS

2.7.1 General Requirements

- 2.7.1.1 The automobile and bicycle parking stall requirements of this Bylaw shall be met for all new developments, including new buildings, addition to existing buildings, and interior expansion within existing buildings.

- 2.7.1.2 Notwithstanding 2.7.1.1, where automobile parking requirements have been established for an existing or approved development, a change of use application shall not require additional automobile parking stalls, regardless of the proposed use. However, it may require additional bicycle parking stalls, subject to the Development Authority.

- 2.7.1.3 All automobile and bicycle parking stalls and loading spaces required by this Bylaw shall be located on the same site as the development except where the provisions within a Land Use District allow for cash-in-lieu of parking or off-site parking through shared parking strategies. Such off-site parking shall be used exclusively as a Parking Area and shall be secured by written agreement for a time period equal to that of the approved use.

- 2.7.1.4 Where the calculation of the required number of automobile parking stalls results in a fractional number, the requirements shall be rounded down to the nearest full stall. Where relevant, the cash-in-lieu fee for any fractional parking stalls shall be calculated in accordance with the Town's Parking Cash-in-Lieu Policy.

- 2.7.1.5 Where the calculation of the required number of bicycle parking stalls results in a fractional number, the requirements shall be rounded up to the nearest full stall.

- 2.7.1.6 Developments containing or providing for more than one use shall provide parking stalls and loading spaces equal to the sum of the requirements for the individual uses, or shall employ shared parking strategies to the satisfaction of the Development Authority.

- 2.7.1.7 Development applications proposing to exceed the maximum automobile parking requirements by any amount shall be a variance to this Bylaw and shall require the submission of a parking study that demonstrates the need for additional stalls to the satisfaction of the Development Authority.

2.7.2 Shared Parking Strategies

- 2.7.2.1 Where the Development Authority is satisfied that parking stalls can be shared by off-peak uses or due to other daily, weekly or seasonal differences, parking requirements may be varied at the discretion of the Development Authority.

- 2.7.2.2 Where shared parking between two sites is approved, a binding agreement for shared parking must be executed between the owner of the site in which the parking is provided and the

owner of the site in which the parking is required, and registered on the title of the property providing the shared parking.

2.7.3 Loading Stalls

- 2.7.3.1 A minimum of one (1) loading stall shall be required per multi-unit residential building or non-residential building, unless it can be otherwise demonstrated to the Development Authority that loading can reasonably take place without a dedicated stall on-site, or that it can be shared amongst multiple developments and/or tenants to minimize the number of loading stalls required.
- 2.7.3.2 All loading stalls shall be designed and located so that all automobiles using them can be parked and maneuvered entirely within the bounds of the site.
- 2.7.3.3 All loading stalls required by this Bylaw shall have direct access to a public roadway or to a maneuvering aisle with adequate access to a public roadway, to the satisfaction of the Development Authority.
- 2.7.3.4 Loading stalls shall not be provided in a tandem configuration.

2.7.4 Bicycle Parking Stall Design

- 2.7.4.1 The design of all bicycle parking stalls shall be in accordance with the Engineering Design and Construction Guidelines.

2.7.5 Automobile Parking Stall Design

- 2.7.5.1 The minimum dimensions for the design of Parking Areas shall be in accordance with the Engineering Design and Construction Guidelines.
- 2.7.5.2 **[Repealed by 2020-16]**
- 2.7.5.3 All automobile parking stalls and loading spaces required by this Bylaw shall have direct access to a public roadway or to a maneuvering aisle with adequate access to a public roadway to the satisfaction of the Development Authority. Parking stalls and loading spaces shall not be provided in a tandem or stacked configuration unless such a configuration is specifically allowed for elsewhere within these regulations.

2.7.6 Parking Stall Requirements – Non-Residential Developments

- 2.7.6.1 All uses within the Bylaw are included within a “Class.” Each use and its corresponding Class shall be as outlined in Table 2.7-1 below.

TABLE 2.7-1 - NON-RESIDENTIAL PARKING CLASSES [2020-16]		
Class	Land Uses	
A	Arts and Crafts Studio Cannabis Retail Store Eating and Drinking Establishment Financial Institution	Personal Service Business Office Retail Sales with less than 500 m ² of GFA

TABLE 2.7-1 - NON-RESIDENTIAL PARKING CLASSES [2020-16]		
B	Visitor Accommodation	Hostel
C	Automotive and Equipment Repair Automotive Sales and Rentals Automotive Part Sales Bulk Fuel Station Car Wash Contractor Services and Repair Gas Bar and Service Station Industrial Equipment Sales and Rentals Kennel Laboratory Laundry Facility	Light Manufacturing Medical Clinic Museum Pet Care Facility Printing Establishment Private Club Storage Facility Warehouse Wholesale Store Veterinary Clinic
D	Athletic and Recreational Facility, Indoor Athletic and Recreational Facility, Outdoor Brewery/Distillery Care Facility Convention Centre Daycare Entertainment Establishment	Education Institution Funeral Home Hospital Library Public Building Religious Assembly Recycling Depot Retail Sales with 500 m ² or greater of GFA

- 2.7.6.2 Unless otherwise excepted in this Bylaw, the automobile and bicycle parking stall requirements for non-residential uses, outlined in Table 2.7-2 below, apply to all non-residential developments.

TABLE 2.7-2 – PARKING STALL REQUIREMENTS FOR NON-RESIDENTIAL DEVELOPMENTS				
Class	Minimum Number of Automobile Parking Stalls Required	Maximum Number of Automobile Parking Stalls Allowed	Required Minimum Number of Short-Term Bicycle Parking Stalls	Required Minimum Number of Long-Term Bicycle Parking Stalls
A	Two (2) stalls per 100 m ² of GFA	2.5 stalls per 100 m ² of GFA	Two (2) stalls per 100 m ² of GFA	One (1) stalls per 100 m ² of GFA

TABLE 2.7-2 – PARKING STALL REQUIREMENTS FOR NON-RESIDENTIAL DEVELOPMENTS				
B	Visitor Accommodation: 1.0 stalls per accommodation unit Hostel: N/A	Visitor Accommodation: 1.0 stalls per accommodation unit Hostel: 0.4 stalls per bed	Visitor Accommodation: 0.15 stalls per accommodation unit Hostel: 0.15 stalls per bed	Visitor Accommodation: 0.3 stalls per accommodation unit Hostel: 0.3 stalls per bed
C	N/A	10 stalls (regardless of GFA per proposed use)	One (1) stall per 100 m ² of GFA	One (1) stall per 100 m ² of GFA
D	Automobile and bicycle parking stall requirements for each use within this Class will be determined through the completion of a Parking Study by a qualified professional. A supporting Transportation Impact Assessment (TIA) may also be required, to the satisfaction of the Town's Engineering department.			

2.7.6.3 For uses within Class B, up to 30% of the required automobile parking stalls may be satisfied through tour bus parking stalls.

2.7.6.4 One (1) bus parking stall shall be equivalent to 15 car parking stalls for the purpose of calculating the total required automobile parking.

2.7.7 Parking Stall Requirements – Residential Uses

2.7.7.1 Unless otherwise excepted in this Bylaw, the automobile and bicycle parking stall requirements, outlined in Table 2.7-3, apply to all residential developments.

TABLE 2.7-3 – RESIDENTIAL AUTOMOBILE AND BICYCLE PARKING STALL REQUIREMENTS				
Residential Use	Minimum Number of Automobile Parking Stalls Required (per Dwelling Unit)	Maximum Number of Automobile Parking Stalls Allowed (per Dwelling Unit)	Required Minimum Number of Short-Term Bicycle Parking Stalls (per Dwelling Unit)	Required Minimum Number of Long-Term Bicycle Parking Stalls (per Dwelling Unit)
Detached Dwelling	Two (2) stalls	N/A	N/A	N/A
Accessory Dwelling Unit	One (1) stall	One (1) stall	N/A	Two (2) stalls
Manufactured Dwelling	Two (2) stalls	N/A	N/A	N/A
Duplex Dwelling	Two (2) stalls	N/A	N/A	N/A

TABLE 2.7-3 – RESIDENTIAL AUTOMOBILE AND BICYCLE PARKING STALL REQUIREMENTS				
Townhouse	One (1) stall 0.15 visitor stalls	1 Bedroom: One (1) stall 2 Bedroom: 1.5 stalls 3+ Bedroom: 2.0 stalls	0.15 visitor stalls	w/garage - N/A w/o garage – Two (2) stalls
Townhouse, Stacked	One (1) stall 0.15 visitor stalls	1 Bedroom: One (1) stall 2 Bedroom: 1.5 stalls 3+ Bedroom: 2.0 stalls	0.15 visitor stalls	w/garage - N/A w/o garage – Two (2) stalls
Common Amenity Housing	Automobile and bicycle parking stall requirements for this use will be determined through the completion of a Parking Study by a qualified professional. A supporting Transportation Impact Assessment (TIA) may also be required, to the satisfaction of the Town's Engineering department			
Apartment Building	Studio: 0.25 stalls 1-3+ Bedrooms: One (1) Stall 0.15 visitor stalls	Studio: 0.75 stalls 1 Bedroom: One (1) stall 2 Bedroom: 1.5 stalls 3+ Bedroom: 2.5 stalls	0.25 visitor stalls	1.5 stalls
Live/Work Studio	One (1) stall. 0.15 visitor stalls	Two (2) stalls	One (1) stall	N/A
Bed and Breakfast	One (1) stall for the principal resident. One (1) stall per Accommodation Unit.	1.5 stalls per Accommodation Unit	N/A	One (1) stall per Accommodation Unit
Home Occupation - Class 2	At the discretion of the Development Authority, based on the nature of the business.	N/A	N/A	N/A
Care Facility	0.1 stalls, plus 0.15 visitor stalls	One (1) stall	0.5 stalls	0.1 stalls

2.7.7.2 Additional regulations for residential parking design and surfacing are as follows:

- a. If a development with three (3) or more Dwelling Units has parking within the front yard, a minimum of 50% of the rear yard area accessible from a public lane shall be landscaped, to the satisfaction of the Development Authority.
- b. For Detached Dwellings and Duplex Dwellings, each required automobile parking stall and driveway shall be surfaced with a material which does not generate dust or result in the migration of debris to an adjacent sidewalk, street or lane.
- c. For the Detached Dwelling, Manufactured Dwelling, Duplex Dwelling, Townhouse, Townhouse, Stacked, and Apartment Building uses, automobile parking stalls for up to

two (2) stalls per Dwelling Unit may be provided in tandem.

- d. For Townhouses, Townhouses, Stacked, and Apartment Buildings, where there are three (3) or more Dwelling Units, neither parking stalls nor driveways shall be allowed within the front yard unless the parking is on a driveway which provides access to an attached garage and a minimum of 50% of the front yard is landscaped to the satisfaction of the Development Authority.

2.8 BUILDING HEIGHT AND ROOF DESIGN [2020-16]

2.8.1 Where to Measure Building Height From

2.8.1.1 Where maximum building heights have not been established as part of a development grading plan approved by the Town of Canmore, Maximum Building Height shall be determined as follows:

- a. Where the finished grade results in a lower or higher grade than existing, building height shall be measured from the existing grade.
- 2.8.1.2 Notwithstanding 2.8.1.1, where raising the elevation of a lot is required to meet the 1:100 year design groundwater level specified in Subsection 7.3, height shall be measured from the 1:100 groundwater level. If such an elevation does not result in positive drainage toward the adjacent street the grade point may be further adjusted to allow for such drainage.
- 2.8.1.3 Notwithstanding 2.8.1.1, where raising the elevation of a lot is required to meet the design flood elevation level specified in Subsection 7.2 and 7.8, height shall be measured from the design flood level. If such an elevation does not result in positive drainage toward the adjacent street the grade point may be further adjusted to allow for such drainage.

2.8.2 Height Calculation for Residential Development With Fewer Than Three Units

- 2.8.2.1 To meet the intent of limiting building height, Maximum Building Height shall be regulated by either the H_{max} formula (2.8.3) or the building envelope model (2.8.4).
- 2.8.2.2 The building envelope model shall be used when a building with any of the following roof styles is proposed:
 - a. Reverse pitch;
 - b. Single pitch;
 - c. Roofs with two or more different roof pitches, excluding roofs above cantilevers and dormers.

2.8.3 Building H_{max} Calculations

2.8.3.1 Building height shall be determined by using Table 2.8-1 and the H_{max} formula as follows:

$$H_{max} = f_{ave} + H + c \frac{(b_{ave} - f_{ave})}{L}$$

where (see Figures 2.8-1 and 2.8-2)

- a. H_{max} is the maximum height of the relevant portion (front or rear) of the building.

02 GENERAL REGULATIONS

- b. $f1$ and $f2$ are the elevations at the front property corners;
 - c. f_{ave} is the average of $f1$ and $f2$;
 - d. $b1$ and $b2$ are the elevations on the side property lines at the bylaw rear yard setback;
 - e. b_{ave} is the average of $b1$ and $b2$;
 - f. H is determined based upon roof pitch according to Table 2.8-1 and the maximum building height listed in the applicable land use district;
 - g. L is the distance between the midpoints of the front property line and the rear setback line; and
 - h. c represents a factor of 8 for the front 25% of building on an Uphill Site and the front 75% of a building on a Downhill Site, and 12 for the rear of the building as shown in Figure 2.8-2 unless other factors have been established to suit topographic or other conditions as part of a Subdivision Servicing Agreement and a development grading plan.
- 2.8.3.2 Only one H-value shall be applied to a building to determine maximum height.
- 2.8.3.3 The H-value is the building height maximum listed in the regulations for each individual land use district.

Figure 2.8-1 H_{max} calculation f , b and L

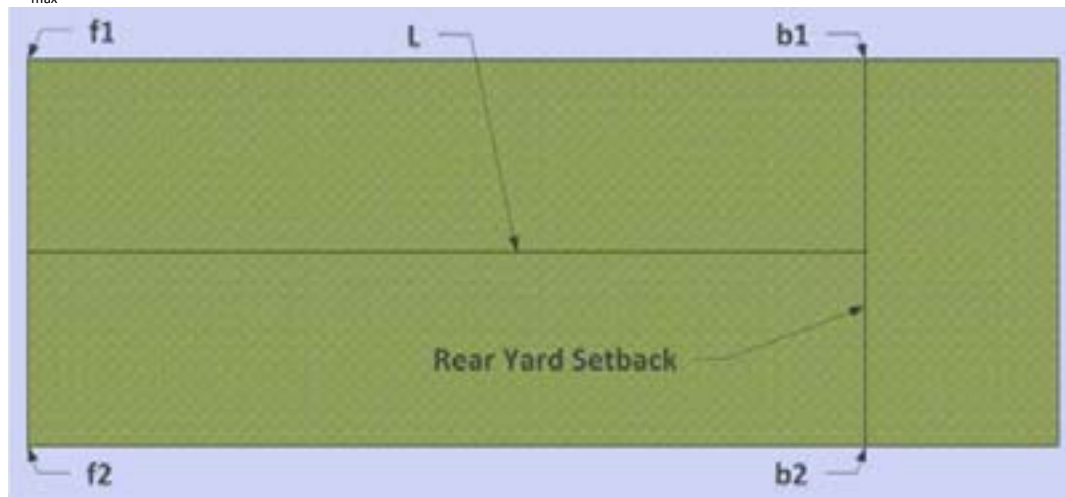


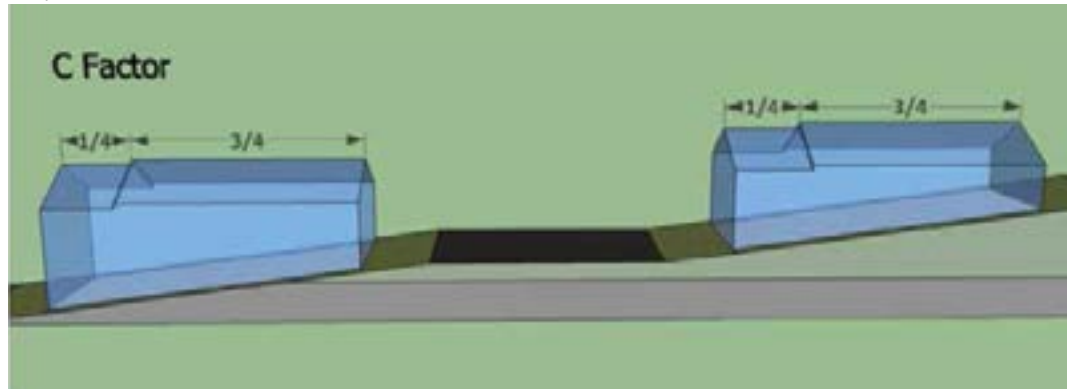
Figure 2.8-2 $H_{\max}$ calculation C-factor

TABLE 2.8-1 H-VALUE BASED ON ROOF PITCH	
Roof pitch	H Value (Building height from the land use district)
>6:12	H Value
6:12	H Value
5:12	H Value - 0.5 m
4:12	H Value - 1.0 m
3:12	H Value - 1.5 m
2:12	H Value - 2.0 m
1:12	H Value - 2.5 m
Flat	H Value - 3.0 m

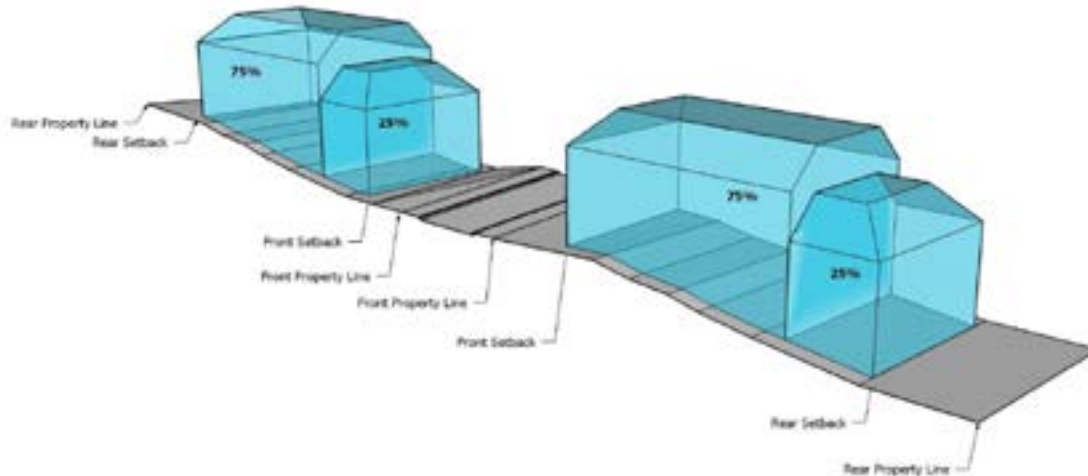
2.8.4 Building Envelope Model

2.8.4.1 All of the building structure shall be contained within the building envelope with the exception of the residential projections detailed in Subsection 2.4.3. **[2020-16]**

2.8.4.2 The following procedure shall be used to calculate building envelope:

- a. Four heights are calculated for the building envelope:
 - i. Hf_1 and Hf_2 for the front portions of the building envelope
 - ii. Hb_1 and Hb_2 for the rear portions of the building envelope.
- b. If the property is situated on an uphill or downhill sloping site, the following shall be applied, unless other factors have been established to suit topographic or other conditions as part of a Subdivision Servicing Agreement and a development grading plan:
 - i. Hf_1 and Hf_2 apply to the front 25% of the building envelope and Hb_1 and Hb_2 apply to the rear 75% of the building envelope for upsloping properties.
 - ii. Hf_1 and Hf_2 apply to the front 75% of the building and Hb_1 and Hb_2 apply to the rear 25% of the building envelope for downsloping properties.

Figure 2.8-3 Building envelope ratio for upsloping and downsloping properties



2.8.4.3 The heights of the building envelope are calculated using the following formulas:

$$Hf_1 = f_{ave} + H + 8 \left(\frac{b_{ave} - f_{ave}}{L} \right)$$

$$Hb_1 = f_{ave} + H + 12 \left(\frac{b_{ave} - f_{ave}}{L} \right)$$

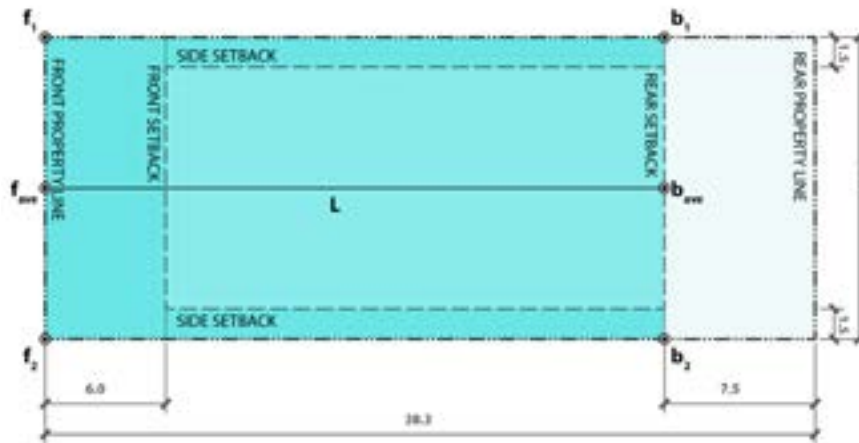
$$Hf_2 = Hf_1 - 2.5m$$

$$Hb_2 = Hb_1 - 2.5m$$

Where (see Figure 2.8-4):

- Hf_1 and Hb_1 are the maximum heights of the front and rear portions of the building envelope, measured from f_{ave} and b_{ave} ;
- Hf_2 and Hb_2 are the heights from which the top 45-degree building envelope setback is calculated;
- f_1 and f_2 are the elevations at the front property corners;
- f_{ave} is the average of f_1 and f_2 ;
- b_1 and b_2 are the elevations on the side property lines at the bylaw rear yard setback;
- b_{ave} is the average of b_1 and b_2 ;
- L is the distance between the midpoints of the front property line and the rear setback line; and
- H is determined based upon the maximum building height listed in the applicable land use district. **[2020-16]**

Figure 2.8-4 Elevations used in envelope calculation

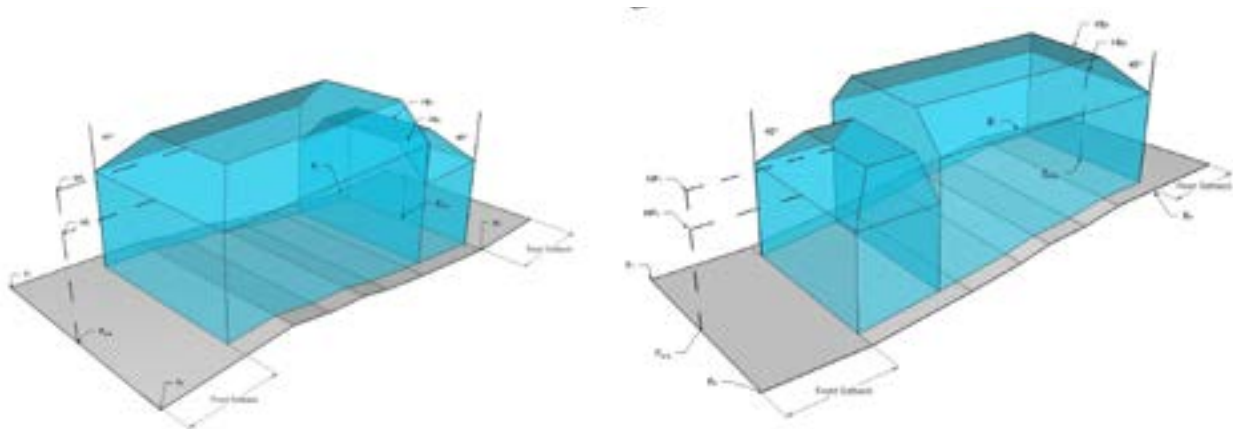


Note: Hf_1 is based on elevations at the front property line and rear setback, "f" and "b", not on the footprint of the building.

2.8.4.4 The building envelope is created as follows (Figure 2.8-5):

- Extend upwards from the established elevation at the front and side setbacks to Hf_2 for the front portion of the building envelope;
- Extend upwards from the established elevation at the rear and side setbacks to Hb_2 for the rear portion of the building envelope;
- From Hf_2 at the front setback continue at a 45-degree angle inward up to Hf_1 ;
- From Hb_2 at the rear setback continue vertically to Hb_1 ;
- From Hf_2 at the side setbacks continue at a 45-degree angle inward to Hf_1 for the front portion of the building envelope;
- From Hb_2 at the side setbacks continue at a 45-degree angle inward to Hb_1 for the rear portion of the building envelope; and
- Hf_1 forms the top of the front portion of the building envelope and Hb_1 forms the top of rear portion of the building envelope.

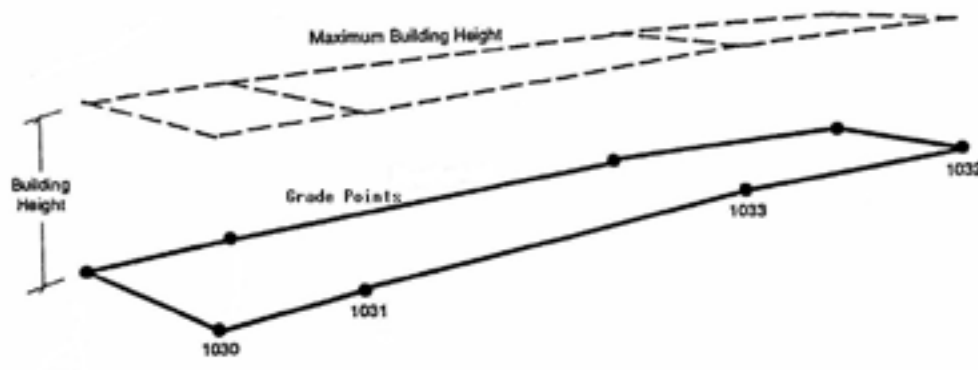
Figure 2.8-5. Building envelope



2.8.5 Height Calculations for Non-Residential, Mixed Use, and Residential Development with Three or more Dwelling Units

- 2.8.5.1 The maximum height of all non-residential, mixed use, and residential buildings with three or more principal Dwelling Units shall be calculated in accordance with this section.
- 2.8.5.2 The height of buildings shall be calculated as the vertical distance between the geodetic elevation of grade-points on the site and the highest part of the building nearest the grade-point as illustrated in the following diagram.

Figure 2.8-6 Building height relationship to building reference grade

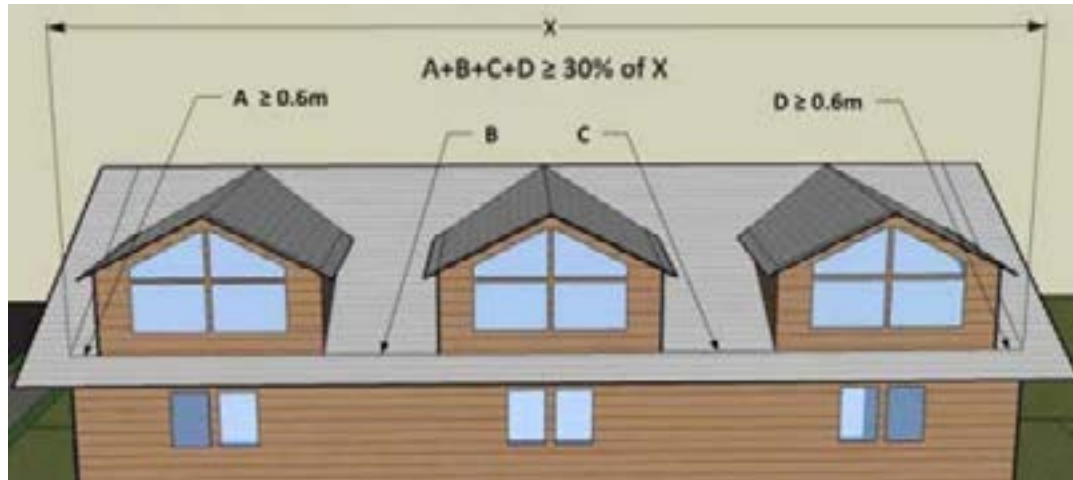


- 2.8.5.3 The number and location of grade-points to be utilized at the perimeter of each building shall be determined by the Development Authority taking into account the topography of the site and the number and complexity of the building(s) proposed.

2.8.6 Dormers

- 2.8.6.1 Dormers shall be a secondary element of a roof and not dominate the roof in size or appearance.
- 2.8.6.2 Dormers may affect the perceived height and pitch of a roof. Dormers shall be compatible in size, scale, and placement with the rest of the building and shall ensure that:
- The main roof peak is directly connected with the eaveline to allow light penetration (into required yards and reduce overall building mass) for a minimum of 30% of the linear distance of the building wall; and
 - The wall of any dormer is set back a minimum of 0.6 m from the outermost corners of the wall directly below the dormer as shown on Figure 2.8-7.
- 2.8.6.3 Dormers shall not project higher than the main roof peak.
- 2.8.6.4 The front wall of a dormer shall not extend beyond the main wall of the building.

Figure 2.8-7 Eave/Dormer ratio



2.9 DWELLING UNITS PERMITTED PER LOT

- 2.9.6.1 Where the Land Use District allows for Dwelling Units, no more than one Dwelling Unit shall be developed on a lot, except where an Accessory Dwelling Unit is listed as either a Permitted or Discretionary Use within the Land Use District.
- 2.9.6.2 The Development Authority may approve a Development Permit that would allow the development of more than one Dwelling Unit on a lot if it:
- Is contained in a building, or buildings which, is designed for, or divided into, one or more Dwelling Units;
 - Is a Manufactured Dwelling forming part of a manufactured home park;
 - Is contained in a building, as defined in the Condominium Property Act, that is the subject of a condominium plan to be registered in the Land Titles Office under that Act.
- 2.9.6.3 For the purposes of this section only, the term “lot” shall have the same meaning as “parcel of land”, as defined in Part 17 of the Act.

2.10 LIGHTING STANDARDS

Purpose

The illumination of site and buildings can enhance or detract from the night-time mountain setting of Canmore. Good lighting may enhance safety, visibility and architecture. Uncontrolled lighting impedes visibility of the natural setting, interferes with biological cycles, creates uncomfortable glare and can establish an undesirable sky glow. The purpose of these lighting regulations is to enhance the nighttime setting of Canmore.

2.10.1 Applicability

- 2.10.1.1 The following standards apply to all exterior lighting within the Town of Canmore except:
- Lighting on public or private roads;

- b. Lighting required under the Alberta Building Code;
- c. Lighting placed underwater to illuminate outdoor swimming pools or water features;
- d. Lighting used for public outdoor athletic facilities;
- e. Winter holiday lighting during winter months only; and
- f. Lighting in relation to Detached Dwellings or Duplex Dwellings where glare does not affect neighbouring properties or public rights of way

2.10.2 Design Objectives

- 2.10.2.1 Lighting should be used for safety purposes.
- 2.10.2.2 Lighting should affect only its target area and not trespass on or affect adjacent areas.
- 2.10.2.3 Lighting should be designed to control and mitigate glare.
- 2.10.2.4 The intensity of illumination should be consistent with the location and lighting zone.
- 2.10.2.5 The use of more luminaires of lower strength with closer spacing should be used to provide uniform light coverage instead of a few very bright luminaires.
- 2.10.2.6 Internal building light should not be directed outside of a building.
- 2.10.2.7 Energy efficient and sustainable lighting solutions are encouraged.
- 2.10.2.8 Ensure the lowest possible light levels are used while addressing safety, security, access, wayfinding, identification and aesthetics.

2.10.3 Lighting Zones

The town includes many areas where ambient light levels, uses and lighting requirements are different. These areas have been grouped into three lighting zones each with contextually relevant regulations, as follows:

2.10.3.1 Zone 0

- a. Future Development District, Environment District, Conservation of Wildlands District, Public Use District and all Direct Control Districts that are not residential, commercial or industrial in nature.
- b. Zone 0 is a low ambient light area where exterior lighting is limited to safety purposes or where other regulations require it. Architectural or decorative lighting is prohibited. Due to the low ambient light levels, the strength of luminaire needed to perform a task is low. Luminaires in these areas should be turned off when not actively in use. Care should be taken to not disturb wildlife with lighting.

2.10.3.2 Zone 1

- a. All Residential Districts and all Direct Control Districts that are residential in nature.
- b. Zone 1 is an area with human activity where the vision of human residents and users is adapted to moderate light levels. Lighting may typically be used for safety, security and/or convenience but it is not necessarily uniform or continuous. Architectural lighting

may be used in these areas but should be minimal. Lighting should be extinguished or reduced whenever it is not necessary. Lighting on a site should be at levels less than or equal to that of the roadway adjacent to the site.

2.10.3.3 Zone 2

- a. All Commercial, Mixed Use and Industrial Districts and all Direct Control Districts that are commercial, mixed use or industrial in nature.
- b. Zone 2 is a higher ambient light area with high levels of human activity at night. Light is used in these areas to provide safety and security and may be used as part of the site design and building architecture. Lighting in shops should be extinguished or minimized after hours; however, window displays may continue to be lit after hours.

2.10.4 Regulations

2.10.4.1 All luminaires shall provide for effective glare control and shielding.

2.10.4.2 All onsite lighting including lighting on the interior of a building shall be located, oriented and baffled so as to not create unnecessary glare or light trespass on adjacent properties to the satisfaction of the Development Authority.

2.10.4.3 Bulbs/Lamps shall not be visible from adjacent roadways or sidewalks or create glare for motorists, or interfere with the visibility of traffic signs or signals.

2.10.4.4 Lighting used for enhancing landscaping or other site design features shall have a baffled lamp and not create glare or unnecessary light trespass onto adjacent properties.

2.10.4.5 Accent lighting may be approved where a developer can demonstrate it meets the intent of the Lighting Regulations.

2.10.4.6 Height of Lighting

- a. Lighting fixtures shall be mounted no higher than 4.0 m above grade.
- b. Lighting fixtures shall be mounted no higher than 5.5 m above grade in all the Bow Valley Trail districts, the Visitor Information Centre district and the Southern Business district.
- c. Notwithstanding (a) and (b) above, fixtures may be mounted above the prescribed height limits provided they are for the purpose of lighting an outdoor deck or patio or are considered accent lighting and do not exceed the height of the roof.

2.10.4.7 Luminaire Design

- a. All luminaires shall be full cut-off fixtures mounted such that no light projects above the horizontal plane.
- b. Notwithstanding (a), non-full cutoff fixtures may be used where the architecture of the building restricts light above the horizontal plane or the luminaire is mounted less than 1.0m above grade for the purpose of pedestrian lighting.
- c. Individual freestanding luminaires may emit up to 5000 lumens.
- d. Individual building mounted luminaires may emit up to 3000 lumens.
- e. All luminaires should emit light at a correlated colour temperature (CCT) between 2700

and 5500K and have a colour rendering index between 70 and 100.

- f. All fixtures shall have the following features:
 - i. Fixture colour: dark tones of green, burgundy or blue, grey, brown or black (overly bright hues will not be permitted).
 - ii. Fixture material: painted metal, wood or weathering steel, shall provide effective control of visible light source, no fully exposed light bulbs.
 - iii. Fixture size: in keeping with the scale of the standard or structure and shall be fixed directly to the standard where multiple heads are used.
- 2.10.4.8 Total lighting allowance per site shall be calculated based on the total area of hardscape for a site as follows:
 - Lighting Zone 0: 16 lumen/m²
 - Lighting Zone 1: 27 lumen/m²
 - Lighting Zone 2: 43 lumen/m²
- 2.10.4.9 Lighting on residential patios shall not be included in the total lighting allowance.
- 2.10.4.10 If a variance is proposed to the maximum total lighting allowance an applicant shall submit a report from a qualified professional demonstrating that the proposed variance is both necessary and in conformance with the intent of the lighting standards.

Figure 2.9-1 Examples of Appropriate Lighting

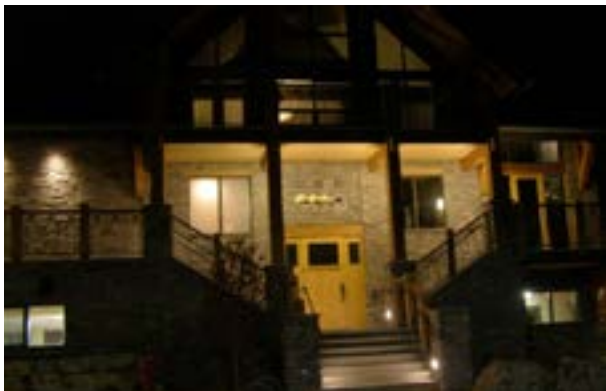


Figure 2.9-2 Examples of Inappropriate Lighting



2.11 ENERGY COLLECTION AND STORAGE DEVICES

- 2.11.0.1 Energy Collection and Storage Devices that are attached to a principal or Accessory Building shall:
- a. Not extend above the peak of the roof;
 - b. Not project past a roof by 1.5 m at any point;
 - c. Have finishing colours on the device that fit into the range of appropriate roof colours described in Section 11: Community Architectural and Urban Design Standards; and
 - d. Not generate noise.
- 2.11.0.2 Energy collection and storage devices that are freestanding structures shall:
- a. Meet the height and setback requirements for an Accessory Building within the district;
 - b. Not have a footprint that exceeds 6.0 m², footprint includes all solar panels or other attachments;
 - c. Have finishing colours on the device that fit into the range of appropriate roof colours described in Section 11: Community Architectural and Urban Design Standards; and
 - d. Not generate noise.
- 2.11.0.3 Clotheslines are considered energy saving devices and shall be allowed in all districts.

2.12 GARBAGE AND RECYCLING

- 2.12.0.1 In addition to any requirements specified within a Land Use District, garbage, compost and recycling shall be stored in weather proof and animal proof containers and screened from adjacent sites and public thoroughfares. **[2020-16]**
- 2.12.0.2 All waste containers shall be made easily accessible for pickup in conformance with the Engineering Design and Construction Guidelines. **[2020-16]**

2.13 FENCES, GATES AND HEDGES

- 2.13.0.1 Within residential and commercial districts, the height of a fence or hedge measured at any point along the top of the hedge or fence line from existing grade, including the height of any retaining walls, shall not exceed 1.2 m in the front yard and 1.8 m in the side and rear yards and 2.5 m at the highest point of a gateway. On corner lots, where the height of a fence or hedge may affect visibility, the maximum height allowed is 1.0 m within the corner visibility triangle.

Figure 2.12-1 Fence height



- 2.13.0.2 The use of barbed wire as part of a fence or gate is prohibited in residential and commercial districts.
- 2.13.0.3 Gates, fences or other structures across or above private or public roadways intended to limit access to a multi-unit residential property require Development Permits.
- 2.13.0.4 Barbed wire may be used as part of a fence within Industrial districts only, provided the barbed wire is not less than 2.0 m, and not more than 2.4 m, above existing grade at any point.
- 2.13.0.5 Within Industrial districts, the height of a fence measured at any point along the fence line from existing grade, including the height of any retaining wall, shall not exceed 2.0 m at any point, except that barbed wire may extend to 2.4 m above grade.

2.14 SATELLITE DISH, RADIO, AND OTHER ANTENNA STRUCTURES

- 2.14.0.1 Satellite dishes greater than 1.0 m in diameter are subject to the following regulations:
 - a. A satellite dish antenna shall not be located in a front yard or side yard abutting a street.
 - b. Where any part of a satellite dish antenna is more than 1.8 m above grade in a residential district, or more than 11.0 m above grade in a commercial, industrial, or other non-residential district, a Development Permit shall be required.
 - c. No advertising shall be allowed on a satellite dish antenna except for manufacturer's identification.
 - d. The illumination of a satellite dish antenna is prohibited.
 - e. Radio or other antennas, which exceed the maximum building height with any district, require a Development Permit.

2.15 MECHANICAL SYSTEMS AND OUTDOOR STORAGE

- 2.15.0.1 Uses which involve the Outdoor Storage of goods, machinery, vehicles, building materials, waste materials and other similar objects may be required to screen such objects from adjacent sites and roads, through the use of fences, berms, landscaping or a combination thereof, to the satisfaction of the Development Authority.
- 2.15.0.2 Screening may be required to limit visual impacts as well as noises and odours which may negatively impact adjacent uses.
- 2.15.0.3 Garbage and storage areas, mechanical systems including heating, ventilation, air conditioning, generators and pumps, shall be:
- Enclosed within a building; or
 - Screened.

2.16 FIRESMART

- 2.16.0.1 To reduce the threat from wildfire, the following measures may be required by the Development Authority:
- A Wildfire Risk Assessment may be required for the submission of a complete subdivision application; and
 - The recommendations from the Wildfire Risk Assessment be included as a condition of Subdivision.
 - Roofs shall be constructed of non-combustible or fire retardant materials with a minimum Class B fire rating.
- 2.16.0.2 All habitable buildings shall have a minimum 1.5 m area of non-combustible landscaping materials, such as rock, gravel, asphalt, brick or concrete adjacent to the building perimeter.
- 2.16.0.3 Woody shrubs, trees or other similar plant materials shall not be located within the 1.5 m distance.

2.17 RELOCATION OF BUILDINGS

- 2.17.0.1 A Development Permit shall be required for the relocation of any building or buildings to any lot or lots in the Town of Canmore.
- 2.17.0.2 Approval of a Development Permit for the relocation of a building may be granted where the Development Authority is satisfied that:
- The building and the proposed location of the building meets the requirements of the Land Use District in which the building is to be located,
 - The building is compatible with the character of the neighbourhood in which the building is to be relocated to; or
 - Conditions of the permit will ensure that the building is renovated to a satisfactory condition.

- 2.17.0.3 The Development Authority may require the developer to enter into a development agreement with the municipality to:
- a. Ensure completion of any proposed renovations within the specified time period; and
 - b. Provide a security deposit against any damages that may occur to public utilities, roads or sidewalks as a result of the relocated building.

2.18 NOISE ATTENUATION FROM TRANS-CANADA HIGHWAY

- 2.18.0.1 Where development is proposed adjacent to the Trans Canada Highway, a professionally prepared noise impact assessment may be required at the discretion of the Development Authority giving consideration to the types of uses and scale of development proposed. Any mitigations identified in the noise assessment shall be incorporated in the development to the satisfaction of the Development Authority.

2.19 NOISE AND VIBRATION ATTENUATION FROM RAILWAY

- 2.19.0.1 Where development is proposed adjacent to the railway, a professionally prepared noise impact assessment may be required at the discretion of the Development Authority giving consideration to the types of uses and scale of development proposed. Any mitigations identified in the noise assessment shall be incorporated in the development to the satisfaction of the Development Authority.

SECTION 3 RESIDENTIAL LAND USE DISTRICTS

- 3.1 R1 Residential Detached District
- 3.2 R1A Residential Detached Small-Lot District
- 3.3 R1N-M Residential Moraine Road Detached Narrow Lot District
- 3.4 R1B Residential Detached Plus District
- 3.5 R1B-E Residential Detached Plus Entry-Level Lot District
- 3.6 R1B-W Residential Detached Plus Wide Lot District
- 3.7 R2 Residential Two-Unit District
- 3.8 R2A Residential Low Density District
- 3.9 R3 Residential Comprehensive Multiple Unit District
- 3.10 R3 SC Residential Comprehensive Multiple Unit, Stewart Creek District
- 3.11 R3 SC1 Residential Comprehensive Multiple Unit, Stewart Creek District
- 3.12 R4 Residential Medium Density District
- 3.13 R5 Residential Apartment District
- 3.14 MHP Residential Manufactured Home Park District
- 3.15 MHR Residential Manufactured Dwelling District
- 3.16 STR-1 Silvertip Residential Low Density District
- 3.17 STR-2 Silvertip Comprehensive Residential District
- 3.18 TPT-CR Teepee Town Comprehensive Redevelopment District
- 3.19 EHD Employee Housing District
- 3.20 R1B-SC Residential Detached, Stewart Creek District
- 3.21 R2A-SC Residential Low Density, Stewart Creek District

3.1 R1 RESIDENTIAL DETACHED DISTRICT

Purpose

To provide for Detached Dwelling units on standard lots with provisions to allow for Accessory Dwelling Units and other compatible residential neighbourhood uses.

3.1.1 Permitted Uses

Accessory Building

Accessory Dwelling Unit, Attached

Accessory Dwelling Unit, Detached

Detached Dwelling (with an Accessory Dwelling Unit)

Home Occupation - Class 1

Open Space

Public Utility

3.1.2 Discretionary Uses

Administrative/Sales Office

Bed and Breakfast

Care Facility

Common Amenity Housing

Cultural Establishment

Day Care

Detached Dwelling

Home Occupation - Class 2

Logging Operation

Manufactured Dwelling

Public Building

3.1.3 Regulations

3.1.3.1 The minimum lot area shall be 460.0 m².

3.1.3.2 The maximum lot area shall be 920 m².

3.1.3.3 The minimum lot width shall be 12.0 m.

3.1.3.4 The maximum lot width shall be 28.0 m.

3.1.3.5 The minimum front yard setback shall be 6.0 m, except on key sites where it shall be 4.5 m.

3.1.3.6 The minimum side yard setback shall be 1.5 m for each side yard, except on the street side of a corner site where it shall be 3.0 m.

3.1.3.7 The minimum rear yard setback shall be 7.5 m.

3.1.3.8 The height of a building may be determined by using either the H_{max} formula or the envelope method, in accordance with Section 2: General Regulations. When the H_{max} formula is used, a building shall be maximum of two (2) storeys plus a loft. When the envelope method is used, there is no maximum number of storeys.

3.1.3.9 Unless otherwise specified in an approved subdivision plan, the maximum building height shall be 9.5 m.

3.1.3.10 The maximum site coverage for all buildings shall be 40%.

3.1.3.11 Maximum Gross Floor Area

Residential buildings shall not exceed:

- a. 325 m² for lots smaller than 930 m²
- b. 0.35 FAR for lots greater than or equal to 930 m²

For the purpose of this regulation only, Accessory Dwelling Unit, Attached and habitable space in basement areas with a ceiling less than 1.2 m above grade are excluded from the calculation of GFA as defined in Section 13. **[2020-16]**

3.2 R1A RESIDENTIAL DETACHED SMALL-LOT DISTRICT

Purpose

To provide for Detached Dwelling units on smaller lots with provisions to allow for Accessory Dwelling Units and other compatible residential neighbourhood uses.

3.2.1 Permitted Uses

Accessory Building

Accessory Dwelling Unit, Attached

Accessory Dwelling Unit, Detached

Detached Dwelling (with an Accessory Dwelling Unit)

Home Occupation - Class 1

Open Space

Public Utility

3.2.2 Discretionary Uses

Administrative/Sales Office

Bed and Breakfast

Care Facility

Common Amenity Housing

Cultural Establishment

Day Care

Detached Dwelling

Home Occupation - Class 2

Logging Operation

Manufactured Dwelling

Public Building

3.2.3 Regulations

3.2.3.1 The minimum lot area shall be 400.0 m².

3.2.3.2 The minimum lot width shall be 12.0 m.

3.2.3.3 The minimum front yard setback shall be 6.0 m, except on key sites where it shall be 4.5 m.

3.2.3.4 The minimum side yard setback shall be 1.5 m for each side yard, except on the street side of a corner site where it shall be 3.0 m.

3.2.3.5 The minimum rear yard setback shall be 7.5 m.

3.2.3.6 The maximum building height shall be as indicated on a development grading plan approved as part of a subdivision plan. In the absence of an approved development grading plan, the maximum building height shall be 9.5 m, determined in accordance with Section 2: General Regulations. Where the H_{max} formula is used for traditional gable roofs, a maximum of two (2) storeys plus loft is allowed. Where the envelope method is used, there is no limit to the number of storeys.

3.2.3.7 The maximum site coverage for all buildings is 40%.

3.2.3.8 Maximum Gross Floor Area

Residential buildings shall not exceed:

- a. 325 m² for lots smaller than 930 m²
- b. 0.35 FAR for lots greater than or equal to 930 m²

For the purpose of this regulation only, Accessory Dwelling Unit, Attached and habitable space in basement areas with a ceiling less than 1.2 m above grade are excluded from the calculation of GFA as defined in Section 13. **[2020-16]**

3.3 R1N-M RESIDENTIAL MORaine ROAD DETACHED NARROW LOT DISTRICT

Purpose

To provide for Detached Dwelling units on narrow lots on Moraine Road with provisions to allow for Accessory Dwelling Units and other compatible residential neighbourhood uses.

3.3.1 Permitted Uses

Accessory Building

Accessory Dwelling Unit, Attached

Detached Dwelling (with an Accessory Dwelling Unit)

Home Occupation - Class 1

3.3.2 Discretionary Uses

Administrative/Sales Office

Bed and Breakfast

Common Amenity Housing

Day Care

Detached Dwelling

Home Occupation - Class 2

Logging Operation

Manufactured Dwelling

Open Space

Public Building

Public Utility

3.3.3 Regulations

3.3.3.1 The minimum lot width shall be 7.6 m.

3.3.3.2 The maximum lot width shall be 12.0 m.

3.3.3.3 The minimum front yard setback shall be 6.0 m.

3.3.3.4 The minimum side yard setback shall be 1.2 m, except for Accessory Building developments, where it shall be 1.0 m.

3.3.3.5 The minimum side yard setback for a corner lot shall be 3.0 m, except for Accessory Building developments, where it shall be 1.5 m.

3.3.3.6 The minimum rear yard setback shall be 7.5 m, except for Accessory Building developments, including garages, where it shall be 1.0 m.

3.3.3.7 The maximum building height shall be 10.0 m, determined in accordance with Section 2: General Regulations. When the H_{max} formula is used, a building shall be a maximum of two (2) storeys plus a loft. When the building envelope model is used, there is no maximum number of storeys.

3.3.3.8 The maximum site coverage per lot shall be 40%. A maximum of 15% of the site coverage may consist of Accessory Building developments.

3.4 R1B RESIDENTIAL DETACHED PLUS DISTRICT

Purpose

To provide for Detached Dwelling units that include Accessory Dwelling Units and other compatible residential neighbourhood uses.

3.4.1 Permitted Uses

Accessory Building
Accessory Dwelling Unit, Attached
Accessory Dwelling Unit, Detached
Detached Dwelling (with an Accessory Dwelling Unit)
Home Occupation - Class 1
Open Space
Public Utility

3.4.2 Discretionary Uses

Administrative/Sales Office
Bed and Breakfast
Care Facility
Common Amenity Housing
Cultural Establishment
Day Care
Detached Dwelling
Home Occupation - Class 2
Logging Operation
Manufactured Dwelling
Public Building

3.4.3 Regulations

- 3.4.3.1 The minimum lot area shall be 230.0 m².
- 3.4.3.2 The minimum lot width shall be 9.7 m, except for lots without lanes where it shall be 10.5 m.
- 3.4.3.3 The maximum lot width shall be 12.0 m.
- 3.4.3.4 The minimum front yard setback shall be 6.0 m, except on key sites where it shall be 4.5 m.
- 3.4.3.5 The minimum side yard setback shall be 1.5 m for each side yard, except on the street side of a corner site where it shall be 3.0 m.
- 3.4.3.6 The minimum rear yard setback shall be 7.5 m.
- 3.4.3.7 The maximum building height shall be as indicated on a development grading plan approved as part of a subdivision plan. In the absence of an approved development grading plan, the maximum building height shall be 9.5 m, determined in accordance with Section 2: General Regulations. When the $H_{\max}$ formula is used, a building shall be a maximum of two (2) storeys plus a loft. When the envelope model is used, there is no maximum number of storeys.
- 3.4.3.8 The maximum site coverage for all buildings shall be 40%.

03 RESIDENTIAL LAND USE DISTRICTS

3.4.3.9 Maximum Gross Floor Area

Residential buildings shall not exceed:

- a. 325 m² for lots smaller than 930 m²
- b. 0.35 FAR for lots greater than or equal to 930 m²

For the purpose of this regulation only, Accessory Dwelling Unit, Attached and habitable space in basement areas with a ceiling less than 1.2 m above grade are excluded from the calculation of GFA as defined in Section 13. **[2020-16]**

3.5 R1B-E RESIDENTIAL DETACHED PLUS ENTRY-LEVEL LOT DISTRICT

Purpose

To provide for Detached Dwelling units that include Accessory Dwelling Units and Entry Level Housing units, as well as other compatible residential neighbourhood uses.

3.5.1 Permitted Uses

Accessory Building
Accessory Dwelling Unit, Attached
Accessory Dwelling Unit, Detached [2020-16]
Detached Dwelling (with an Accessory Dwelling Unit)
Entry Level Housing
Home Occupation - Class 1
Open Space
Public Utility

3.5.2 Discretionary Uses

Administrative/Sales Office
Bed and Breakfast
Care Facility
Common Amenity Housing
Cultural Establishment
Day Care
Detached Dwelling
Home Occupation - Class 2
Logging Operation
Manufactured Dwelling
Public Building

3.5.3 Regulations

- 3.5.3.1 The minimum lot area shall be 230 m².
- 3.5.3.2 The minimum lot width shall be 9.7 m, except for lots without lanes where it shall be 10.5 m.
- 3.5.3.3 The maximum lot width shall be 12.0 m.
- 3.5.3.4 The minimum front yard setback shall be 6.0 m, except on key sites where it shall be 4.5 m.
- 3.5.3.5 The minimum side yard setback shall be 1.5 m for each side yard, except on the street side of a corner site where it shall be 3.0 m.
- 3.5.3.6 The minimum rear yard setback shall be 7.5 m.
- 3.5.3.7 The maximum building height shall be as indicated on a development grading plan approved as part of a subdivision plan. In the absence of an approved development grading plan, the maximum building height shall be 9.5 m, determined in accordance with Section 2: General Regulations. When the $H_{\max}$ formula is used, a building shall be a maximum of two (2) storeys plus a loft. When the envelope model is used, there is no maximum number of storeys.

03 RESIDENTIAL LAND USE DISTRICTS

3.5.3.8 The maximum site coverage for all buildings is 40%.

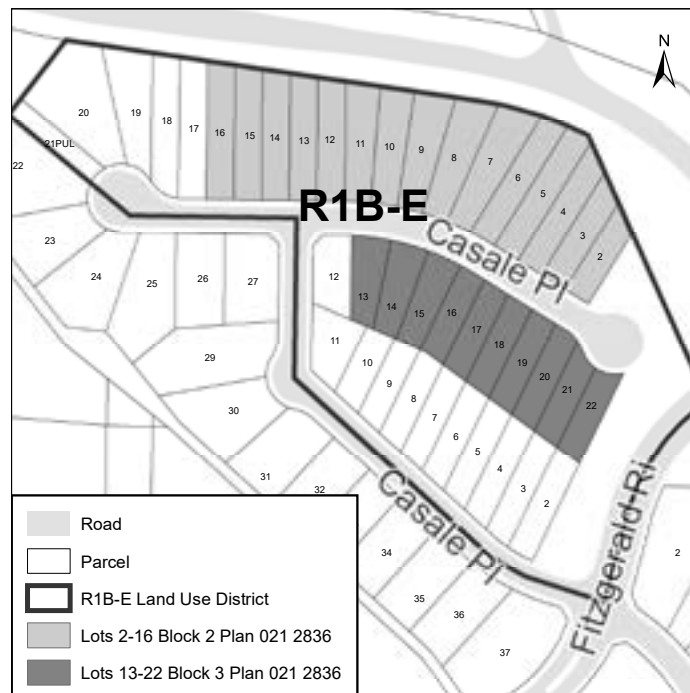
3.5.3.9 The maximum GFA for a principal residential use within a Detached Dwelling unit shall be 130 m², and the maximum GFA of an Accessory Dwelling Unit, Attached shall be 84 m².

3.5.4 Additional Requirements

3.5.4.1 Lots 2 through 16 of Block 2 Plan 0212836 and Lots 13 through 22 of Block 3 Plan 0212836, shown on Figure 3.5-1 below, require the mandatory construction of Entry Level Housing units which shall include one of the following requirements:

- a. A principal residential use with no more than 130 m² of GFA, and an Accessory Dwelling Unit, Attached with no more than 84 m² of GFA; or
- b. A Detached Dwelling with a principal residential use with an area greater than 130 m² of GFA, provided the combined area of the principal unit and associated Accessory Dwelling Unit is no greater than 214 m² of GFA, subject to the satisfaction of the Development Authority.

Figure 3.5-1



3.6 R1B-W RESIDENTIAL DETACHED PLUS WIDE LOT DISTRICT

Purpose

To provide for Detached Dwelling units on wider lots with provisions to allow for Accessory Dwelling Units and other compatible residential neighbourhood uses.

3.6.1 Permitted Uses

Accessory Building
Accessory Dwelling Unit, Attached
Accessory Dwelling Unit, Detached
Detached Dwelling (with an Accessory Dwelling Unit)
Home Occupation - Class 1
Open Space
Public Utility

3.6.2 Discretionary Uses

Administrative/Sales Office
Bed and Breakfast
Care Facility
Common Amenity Housing
Cultural Establishment
Day Care
Detached Dwelling
Home Occupation - Class 2
Logging Operation
Manufactured Dwelling
Public Building

3.6.3 Regulations

- 3.6.3.1 The minimum lot area shall be 800 m².
- 3.6.3.2 The minimum lot width shall be 16.0 m.
- 3.6.3.3 The maximum lot width shall be 25.0 m.
- 3.6.3.4 The minimum front yard setback shall be 7.0 m.
- 3.6.3.5 The minimum side yard setback shall be 2.0 m for each side yard, except on the street side of a corner site where it shall be 3.0 m.
- 3.6.3.6 The minimum rear yard setback shall be 7.5 m.
- 3.6.3.7 The maximum building height shall be as indicated on a development grading plan approved as part of a subdivision plan. In the absence of an approved development grading plan, the maximum building height shall be 9.5 m, determined in accordance with Section 2: General Regulations. When the $H_{\max}$ formula is used, a building shall be a maximum of two (2) storeys plus a loft. When the envelope model is used, there is no maximum number of storeys.
- 3.6.3.8 The maximum site coverage for all buildings shall be 30%.

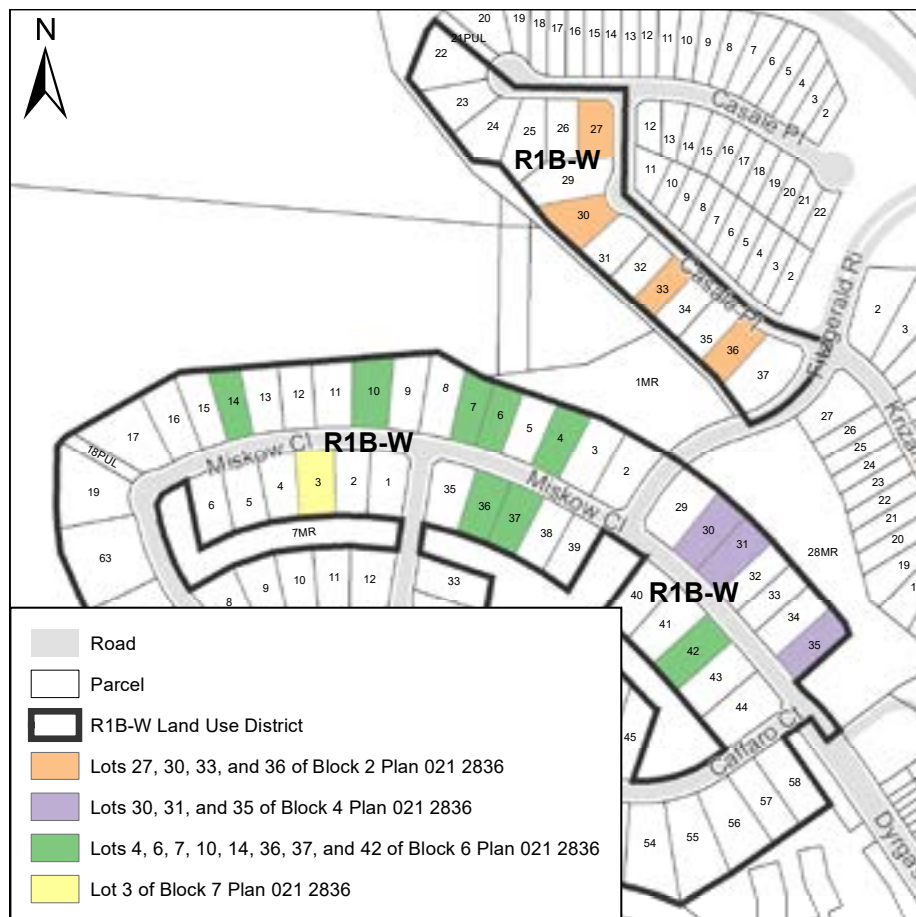
03 RESIDENTIAL LAND USE DISTRICTS

- 3.6.3.9 The maximum GFA of an Accessory Dwelling Unit when associated with a Detached Dwelling shall not exceed 40% of the GFA of the principal residential building or 93 m², whichever is less.

3.6.4 Additional Requirements

- 3.6.4.1 Lots 27, 30, 33, and 36 of Block 2 Plan 021 2836; Lots 30, 31, and 35 of Block 4 Plan 021 2836; Lots 4, 6, 7, 10, 14, 36, 37, and 42 of Block 6 Plan 021 2836; and Lot 3 of Block 7 Plan 021 2836, as shown in Figure 3.6-1 below, require the mandatory construction of Detached Dwellings with an Accessory Dwelling Unit.

Figure 3.6-1



3.7 R2 RESIDENTIAL TWO-UNIT DISTRICT

Purpose

To provide for residential development of Duplex Dwellings with the provision for Accessory Dwelling Units and other compatible residential neighbourhood uses.

3.7.1 Permitted Uses

Accessory Building
Accessory Dwelling Unit, Attached
Accessory Dwelling Unit, Detached
Detached Dwelling (with an Accessory Dwelling Unit)
Duplex Dwelling
Home Occupation - Class 1
Open Space
Public Utility

3.7.2 Discretionary Uses

Administrative/Sales Office
Bed and Breakfast
Care Facility
Common Amenity Housing
Cultural Establishment
Day Care
Detached Dwelling
Home Occupation - Class 2
Logging Operation
Manufactured Dwelling
Public Building

3.7.3 Regulations

- 3.7.3.1 The minimum lot area for each principal Dwelling Unit shall be 230.0 m².
- 3.7.3.2 The maximum lot width per principal Dwelling Unit shall be 8.0 m. Where existing lots within this District are subdivided for the purposes of facilitating a Duplex development, the Subdivision Approval Authority may vary the maximum lot width, where the resulting lots exceed 8.0 m in width.
- 3.7.3.3 The minimum front yard setback shall be 6.0 m.
- 3.7.3.4 The minimum side yard setback shall be 1.5 m for each side yard, except:
- For a common property line where it shall be zero; or
 - On the street side of a corner site where it shall be 3.0 m.
- 3.7.3.5 The minimum rear yard setback shall be 7.5 m.
- 3.7.3.6 The maximum building height shall be as indicated on a development grading plan approved as part of a subdivision plan. In the absence of an approved development grading plan, the

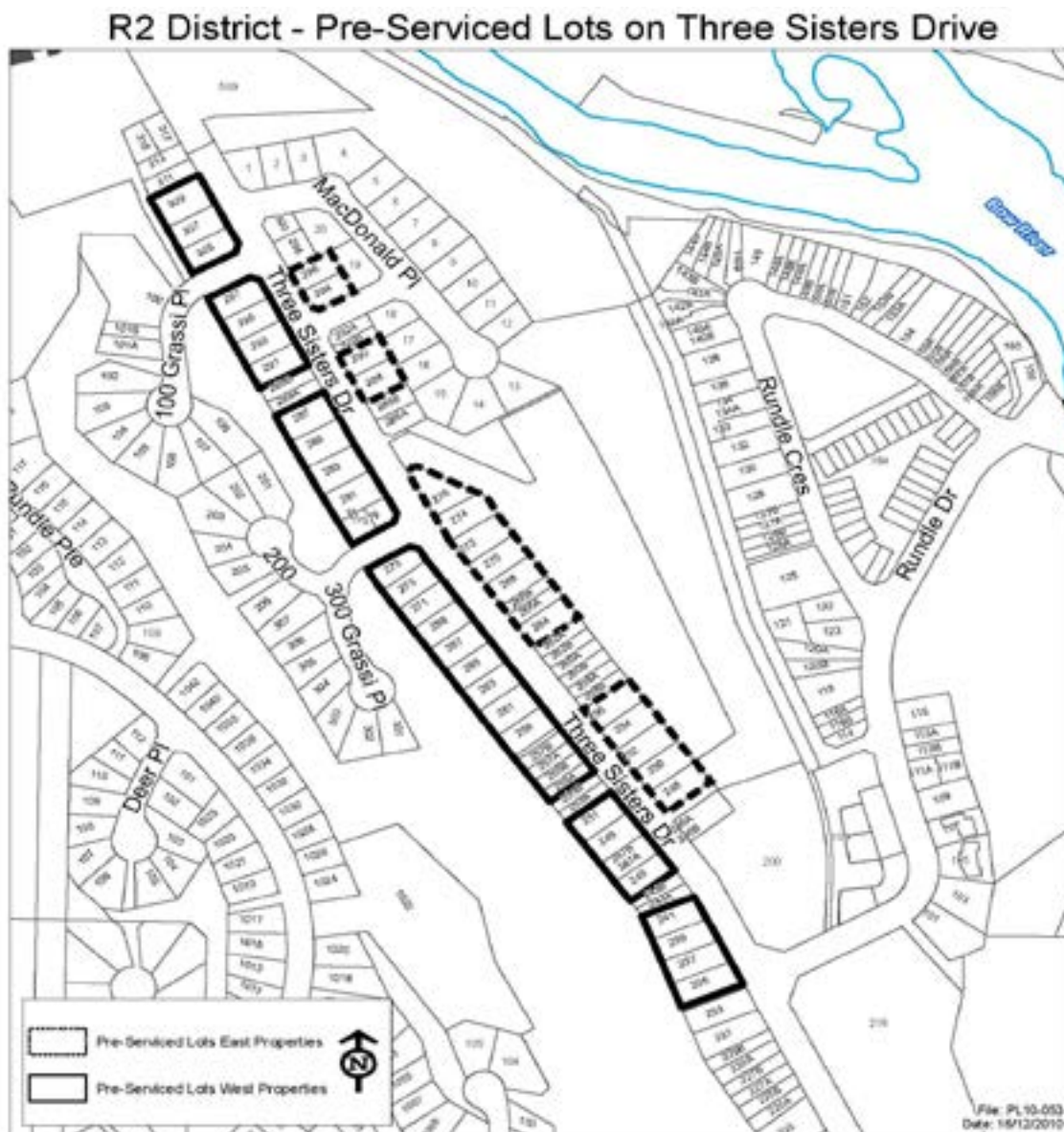
maximum building height shall be 9.5 m, determined in accordance with Section 2: General Regulations. When the $H_{\max}$ formula is used, a building shall be a maximum of two (2) storeys plus a loft. When the envelope model is used, there is no maximum number of storeys.

3.7.3.7 The maximum site coverage for all buildings shall be 45%.

3.7.4 Additional Requirements

3.7.4.1 All lots outlined in Figure 3.7-1 are required to pay costs incurred by the Town of Canmore for the pre-servicing of their Utility Services at the time redevelopment occurs on each of those lots indicated, should the developer choose to take advantage of the pre-servicing provided by the Town.

Figure 3.7-1



3.8 R2A RESIDENTIAL LOW DENSITY DISTRICT

Purpose

To provide for medium density residential development, including Duplex Dwellings and Townhouses, as well as other compatible residential neighbourhood uses.

3.8.1 Permitted Uses

Accessory Building
Accessory Dwelling Unit, Attached
Accessory Dwelling Unit, Detached [2020-16]
Detached Dwelling (with an Accessory Dwelling Unit)
Duplex Dwelling
Home Occupation - Class 1
Open Space
Public Utility
Townhouse
Townhouse, Stacked

3.8.2 Discretionary Uses

Administrative/Sales Office
Bed and Breakfast on a site originally approved as of January 3, 2012
Bed and Breakfast associated with a Detached Dwelling
Care Facility
Common Amenity Housing
Cultural Establishment
Day Care
Detached Dwelling
Home Occupation - Class 2
Logging Operation
Manufactured Dwelling
Public Building

3.8.3 Regulations

- 3.8.3.1 The minimum lot area for each principal Dwelling Unit shall be 230.0 m².
- 3.8.3.2 The minimum front yard setback shall be 6.0 m.
- 3.8.3.3 The minimum side yard setback shall be 1.5 m for each side yard, except:
- On a common property line where it shall be zero or
 - On the street side of a corner site where it shall be 3.0 m.
- 3.8.3.4 The minimum rear yard setback shall be 7.5 m.
- 3.8.3.5 The maximum building height shall be as indicated on a development grading plan approved as part of a subdivision plan. In the absence of an approved development grading plan, the maximum building height shall be 9.5 m, determined in accordance with Section 2: General Regulations. When the H_{max} formula is used, a building shall be a maximum of two (2) storeys plus a loft. When the envelope model is used, there is no maximum number of storeys.
- 3.8.3.6 The maximum site coverage for all buildings shall be 45%.

3.9 R3 RESIDENTIAL COMPREHENSIVE MULTIPLE UNIT DISTRICT

Purpose

To provide for multi-unit residential dwellings at medium densities and on larger lots to facilitate comprehensively designed developments and other compatible residential neighbourhood uses.

3.9.1 Permitted Uses

Accessory Building

Apartment Building

Home Occupation – Class 1

Open Space

Public Utility

Townhouse

Townhouse, Stacked

3.9.2 Discretionary Uses

Administrative/Sales Office

Care Facility

Common Amenity Housing

Day Care

Duplex Dwelling

Employee Housing

Home Occupation - Class 2

Logging Operation

Manufactured Dwelling

Public Building

3.9.3 Regulations

3.9.3.1 The minimum front yard setback shall be 7.5 m.

3.9.3.2 The minimum side yard setback shall be 3.0 m.

3.9.3.3 The minimum rear yard setback shall be 9.0 m.

3.9.3.4 The maximum building height shall be 12.0 m, not exceeding 9.0 m at any eaveline.

3.9.3.5 A minimum of 40% of the site area shall be landscaped.

3.9.3.6 The maximum site coverage for all buildings shall be 40%.

3.9.3.7 The minimum density for Apartment Building, Townhouse and Townhouse, Stacked developments shall be 30 units per hectare.

3.9.3.8 The maximum density for Apartment Building, Townhouse and Townhouse, Stacked developments shall be 67 units per hectare.

3.10 R3 SC RESIDENTIAL COMPREHENSIVE MULTIPLE UNIT, STEWART CREEK DISTRICT

Purpose

To provide for multi-unit residential development in Stewart Creek at medium densities and on larger sites to facilitate comprehensively designed developments and other compatible residential neighbourhood uses.

3.10.1 Permitted Uses

Accessory Building

Accessory Dwelling Unit, Attached [2020-16]

Apartment Building

Home Occupation - Class 1

Open Space

Public Utility

Townhouse

Townhouse, Stacked

3.10.2 Discretionary Uses

Administrative/Sales Office

Common Amenity Housing

Day Care

Duplex Dwelling

Employee Housing

Home Occupation - Class 2

Logging Operation

Manufactured Dwelling

Public Building

3.10.3 Regulations

3.10.3.1 The minimum front yard setback shall be 7.5 m.

3.10.3.2 The minimum side yard setback shall be 3.0 m.

3.10.3.3 The minimum rear yard setback shall be 9.0 m.

3.10.3.4 The maximum building height shall be 12.0 m not exceeding 9.0 m at any eaveline.

3.10.3.5 A minimum of 40% of the site area shall be landscaped.

3.10.3.6 The maximum site coverage for all buildings shall be 40%.

3.10.3.7 The minimum density for Apartment Building, Townhouse and Townhouse, Stacked developments shall be 30 units per hectare.

3.10.3.8 The maximum density for Apartment Building, Townhouse and Townhouse, Stacked developments shall be 67 units per hectare.

3.10.4 Multi-Unit Entry Level Housing Requirements

- 3.10.4.1 25% of the units developed within this District must qualify as Entry Level Housing or Perpetually Affordable Housing (PAH), at the discretion of the Development Authority in accordance with the following:
- a. The maximum GFA of an Entry Level, Multi-Unit Residential dwelling shall be 93 m², or
 - b. The ratio of PAH to be credited towards the required Entry Level Housing will be mutually agreeable to the Town of Canmore and the applicant. The PAH ratio shall be significantly lower than the entry-level ratio, notwithstanding a minimum of 5% of all units within the district shall qualify as entry-level units.

3.11 R3 SC1 RESIDENTIAL COMPREHENSIVE MULTIPLE UNIT, STEWART CREEK DISTRICT

Purpose

To provide for multi-unit residential development in Stewart Creek at medium densities on larger sites for comprehensively designed developments and other compatible residential neighbourhood uses.

3.11.1 Permitted Uses

Accessory Building

Accessory Dwelling Unit, Attached [2020-16]

Apartment Building

Home Occupation – Class 1

Open Space

Public Utility

Townhouse

Townhouse, Stacked

3.11.2 Discretionary Uses

Administrative/Sales Office

Common Amenity Housing

Day Care

Duplex Dwelling

Employee Housing

Home Occupation – Class 2

Logging Operation

Manufactured Dwelling

Public Building

3.11.3 Regulations

3.11.3.1 The minimum front yard setback shall be 3.0 m.

3.11.3.2 The minimum side yard setback shall be 3.0 m.

3.11.3.3 The minimum rear yard setback shall be 3.0 m.

3.11.3.4 The combined front and rear yard shall be a minimum of 16.5 m.

3.11.3.5 The maximum building height shall be 12.0 m not exceeding 9.0 m at any eaveline.

3.11.3.6 A minimum of 40% of the site area shall be landscaped.

3.11.3.7 The maximum site coverage for all buildings shall be 40%.

3.11.3.8 The minimum density for Apartment Building, Townhouse and Townhouse, Stacked developments shall be 30 units per hectare.

3.11.3.9 The maximum density for Apartment Building, Townhouse and Townhouse, Stacked developments shall be 67 units per hectare.

3.11.4 Multi-Unit Entry Level Housing Requirements

- 3.11.4.1 25% of the units developed within this District must qualify as Entry Level Housing or Perpetually Affordable Housing (PAH), at the discretion of the Development Authority in accordance with the following:
- a. The maximum GFA of an Entry Level, Multi-Unit Residential dwelling shall be 93 m², or
 - b. The ratio of PAH to be credited towards the required Entry Level Housing will be mutually agreeable to the Town of Canmore and the applicant. The PAH ratio shall be significantly lower than the entry-level ratio, notwithstanding a minimum of 5% of all units within the district shall qualify as entry-level units.

3.12 R4 RESIDENTIAL MEDIUM DENSITY DISTRICT

Purpose

To provide for medium density, multi-unit residential development and other compatible residential neighbourhood uses.

3.12.1 Permitted Uses

Accessory Building
Accessory Dwelling Unit, Attached [2020-16]
Accessory Dwelling Unit, Detached [2020-16]
Apartment Building
Home Occupation - Class 1
Open Space
Public Utility
Townhouse
Townhouse, Stacked

3.12.2 Discretionary Uses

Administrative/Sales Office
Care Facility
Common Amenity Housing
Cultural Establishment
Day Care
Home Occupation - Class 2
Logging Operation
Manufactured Dwelling
Public Building

3.12.3 Regulations

- 3.12.3.1 The minimum front yard setback shall be 6.0 m.
- 3.12.3.2 The minimum side yard setback shall be 1.5 m, except on the street side of a corner site where it shall be 3.0 m.
- 3.12.3.3 The minimum rear yard setback shall be 7.5 m.
- 3.12.3.4 The maximum building height shall be 10.0 m not exceeding 7.0 m at any eaveline.
- 3.12.3.5 A minimum of 40% of the site area shall be landscaped. Where density is greater than 80 units per hectare, a minimum of 37% of the site area shall be landscaped.
- 3.12.3.6 The minimum density shall be 49 units per hectare.
- 3.12.3.7 The maximum density shall be 98 units per hectare.

3.13 R5 RESIDENTIAL APARTMENT DISTRICT

Purpose

To provide for high-density, multi-unit residential development and other compatible residential neighbourhood uses.

3.13.1 Permitted Uses

Accessory Building

Apartment Building

Home Occupation - Class 1

Open Space

Public Utility

3.13.2 Discretionary Uses

Administrative/Sales Office

Common Amenity Housing

Day Care

Employee Housing

Home Occupation – Class 2

Logging Operation

Parking Structure

3.13.3 Regulations

- 3.13.3.1 The minimum lot area shall be 900.0 m².
- 3.13.3.2 The minimum lot width shall be 25.0 m.
- 3.13.3.3 The minimum front yard setback shall be 6.0 m.
- 3.13.3.4 The minimum side yard setback shall be 2.0 m, except on the street side of a corner site where it shall be 3.0 m.
- 3.13.3.5 The minimum rear yard setback shall be 7.5 m.
- 3.13.3.6 The maximum building height shall be 14.0 m, not exceeding 9.0 m at any eaveline.
- 3.13.3.7 A minimum of 25% of the site area shall be landscaped.
- 3.13.3.8 The minimum density shall be 49 units per hectare.
- 3.13.3.9 The maximum density shall be 148 units per hectare.
- 3.13.3.10 The maximum site coverage shall be 50%.

3.14 MHP RESIDENTIAL MANUFACTURED HOME PARK DISTRICT

Purpose

To provide for comprehensively designed residential developments in which Manufactured Dwellings are accommodated on individual rented designated sites, each of which has service connections to municipal roads and utilities, and other compatible residential neighbourhood uses.

3.14.1 Permitted Uses

Accessory Building

Home Occupation - Class 1

Manufactured Dwelling

Open Space

3.14.2 Discretionary Uses

Administrative/Sales Office

Common Amenity Housing

Day Care

Home Occupation - Class 2

Logging Operation

Public Utility

3.14.3 Regulations

3.14.3.1 The minimum site area shall be 2.02 ha.

3.14.3.2 The minimum width of dedicated site for each Manufactured Dwelling unit shall be 12.0 m.

3.14.3.3 The minimum area of dedicated site for each Manufactured Dwelling unit shall be 334.0 m².

3.14.3.4 The maximum building height shall be 6.0 m.

3.14.3.5 The maximum site coverage for all buildings on a dedicated Manufactured Dwelling unit site shall be 33%.

3.14.4 Additional Requirements

3.14.4.1 A Manufactured Dwelling shall be located in accordance with an approved Development Permit.

3.14.4.2 A Manufactured Dwelling, including all attached structures, shall be located as follows:

- a. A minimum of 3.5 m away from an adjacent Manufactured Dwelling, carport, porch, or other permanent structure;
- b. A minimum of 15.0 m from any Manufactured Dwelling located across a street;
- c. A minimum of 3.0 m from any property line;
- d. A minimum of 3.5 m from any private roadway; and
- e. A minimum of 15.0 m from any public roadway.

03 RESIDENTIAL LAND USE DISTRICTS

- 3.14.4.3 A Manufactured Dwelling shall be sited on parking aprons.
- 3.14.4.4 Each Manufactured Dwelling lot shall abut a public or private street and shall have a driveway with a minimum width of 4.0 m.
- 3.14.4.5 Each Manufactured Dwelling shall be connected to and serviced by public sanitary sewer, water supply, and electric power systems.
- 3.14.4.6 Electricity shall be individually metered for each Manufactured Dwelling.

3.15 MHR RESIDENTIAL MANUFACTURED DWELLING DISTRICT

Purpose

To provide for the development of Manufactured Dwellings and other uses compatible with low-density residential development.

3.15.1 Permitted Uses

Accessory Building

Accessory Dwelling Unit, Attached [2020-16]

Detached Dwelling (with an Accessory Dwelling Unit)

Home Occupation – Class 1

Manufactured Dwelling

Open Space

Public Utility

3.15.2 Discretionary Uses

Administrative/Sales Office

Bed and Breakfast

Care Facility

Common Amenity Housing

Cultural Establishment

Day Care

Detached Dwelling

Home Occupation - Class 2

Logging Operation

3.15.3 Regulations

3.15.3.1 The minimum lot area shall be 250.0 m².

3.15.3.2 The minimum lot width shall be 12.0 m.

3.15.3.3 The minimum front yard setback shall be 4.6 m, except on key sites where it shall be 3.0 m.

3.15.3.4 The minimum side yard setback shall be 1.2 m. .

3.15.3.5 The minimum rear yard setback shall be 3.0 m.

3.15.3.6 The maximum building height shall be 6.5 m, measured from grade.

3.15.3.7 The maximum site coverage for all buildings shall be 40%.

3.15.4 Special Requirements for “Mountview 2” Subdivision

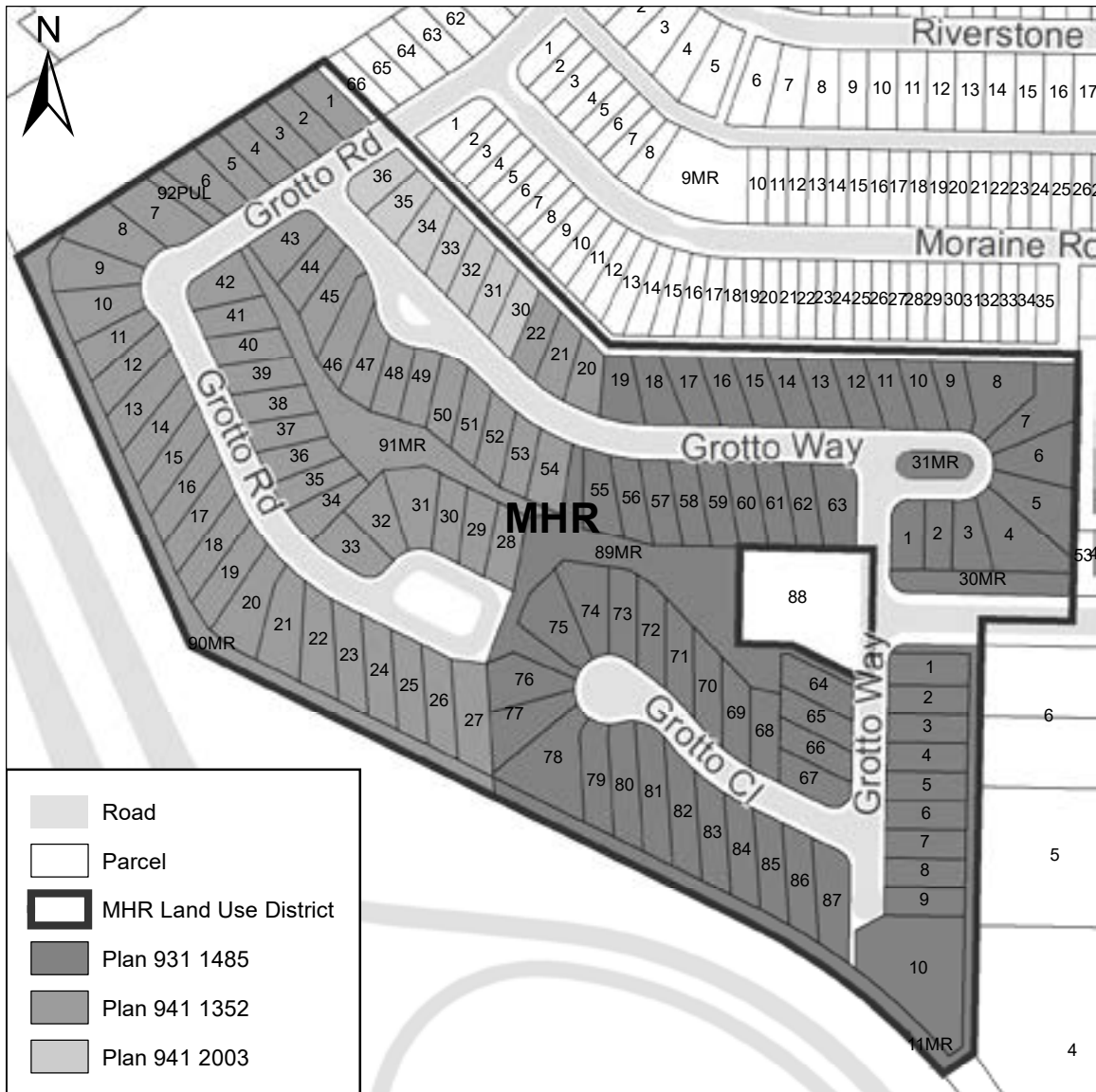
3.15.4.1 All properties designated “MHR” within the boundaries of Plans 931 1485, 941 1352 and 941 2003 as shown on Figure 3.15-1 will, in addition to the above regulations, be governed by the following:

- a. The minimum side yard setback for all internal sites will be zero lot line where:
 - i. The owner of the adjacent site has granted a 3.0 m access easement for

maintenance and fire separation, which shall be registered by caveat against the title of any site proposed for development and the title of the adjacent site, including a 0.6 m eave and footing encroachment.

- ii. All roof drainage from the building is directed onto the site by eaves troughs and downspouts.
- b. The minimum side yard setback for the street side of a corner site is 4.6 m.

Figure 3.15-1



3.16 STR-1 SILVERTIP RESIDENTIAL LOW DENSITY DISTRICT

Purpose

To provide for residential development within Detached Dwellings and Duplex Dwellings and for other compatible residential neighbourhood uses within the Silvertip Resort area.

3.16.1 Permitted Uses

Accessory Building
Accessory Dwelling Unit, Attached
Accessory Dwelling Unit, Detached
Detached Dwelling (with an Accessory Dwelling Unit)
Duplex Dwelling
Home Occupation – Class 1
Open Space
Public Utility
Tourist Home

3.16.2 Discretionary Uses

Administrative/Sales Office
Common Amenity Housing
Detached Dwelling
Logging Operation
Public Building

3.16.3 Regulations

- 3.16.3.1 The minimum lot area for a Detached Dwelling shall be 460 m².
- 3.16.3.2 The minimum lot area for a Duplex Dwelling shall be 230 m² per principal Dwelling Unit.
- 3.16.3.3 The minimum lot width for a Detached Dwelling shall be 12.0 m.
- 3.16.3.4 The minimum lot width for a Duplex Dwelling shall be 6.0 m per principal Dwelling Unit.
- 3.16.3.5 The minimum front yard setback shall be 5.5 m.
- 3.16.3.6 The minimum side yard setback shall be 3.0 m for each side yard, except for a common property line for a Duplex Dwelling, where it shall be zero.
- 3.16.3.7 The minimum rear yard setback shall be 5.5 m.
- 3.16.3.8 The maximum building height shall be as indicated on a development grading plan approved as part of a subdivision plan. In the absence of an approved development grading plan, the maximum building height shall be 9.5 m, determined in accordance with Section 2, General Regulations. When the H_{max} formula is used, a building shall be a maximum of two (2) storeys plus a loft. When the envelope model is used, there is no maximum number of storeys.
- 3.16.3.9 The maximum site coverage for all buildings shall be 40%.
- 3.16.3.10 The minimum driveway length shall be 6.0 m, measured from the property line to the garage along the centre line of the driveway.

3.17 STR-2 SILVERTIP COMPREHENSIVE RESIDENTIAL DISTRICT

Purpose

To provide for comprehensive residential development, including a range of residential densities and a mix of housing types, and other compatible residential neighbourhood uses.

3.17.1 Permitted Uses

Accessory Building
Accessory Dwelling Unit, Attached
Accessory Dwelling Unit, Detached
Apartment Building
Detached Dwelling (with an Accessory Dwelling Unit)
Duplex Dwelling
Entry Level Housing
Entry Level Housing, Multi-Unit Residential
Home Occupation - Class 1
Open Space
Public Utility
Tourist Home
Townhouse
Townhouse, Stacked

3.17.2 Discretionary Uses

Administrative/Sales Office
Common Amenity Housing
Detached Dwelling
Logging Operation
Public Building

3.17.3 Regulations

- 3.17.3.1 The minimum front yard setback shall be 5.5 m.
- 3.17.3.2 The minimum side yard setback shall be 3.0 m.
- 3.17.3.3 The minimum rear yard setback shall be 5.5 m.
- 3.17.3.4 The maximum building height shall be as indicated on a development grading plan approved as part of a subdivision plan. In the absence of an approved development grading plan, the maximum building height for a Detached Dwelling and a Duplex Dwelling shall be 9.5 m, determined in accordance with Section 2, General Regulations. When the H_{max} formula is used, a building shall be a maximum of two (2) storeys plus a loft. When the envelope model is used, there is no maximum number of storeys.
- 3.17.3.5 The maximum building height for an Apartment Building, Townhouse, and Townhouse, Stacked development is 12.0 m, not exceeding 9.5 m at any eaveline. The building height shall be measured from the main floor of the apartment to the roof peak, with a maximum of up to 1.2 m allowed below the main floor and the ground elevation.

- 3.17.3.6 A minimum of 40% of the site area shall be landscaped.
- 3.17.3.7 The maximum site coverage for all Detached Dwelling and Duplex Dwelling developments shall be 40%.
- 3.17.3.8 The maximum site coverage for all Townhouse, Townhouse, Stacked, and Apartment Building developments shall be 45%.
- 3.17.3.9 The minimum driveway length shall be 6.0 m.

3.17.4 Entry Level Housing Units

- 3.17.4.1 A minimum proportion of 25% of all residential Dwelling Units approved and constructed within this district as part of any subdivision application approved by the Town of Canmore, shall be Entry Level Housing units, as defined by the Town of Canmore. Entry Level Housing units shall be included in the total maximum residential unit count described in the Silvertip ASP. However, where Entry Level units are accepted by the Town as PAH units, such units shall be exempted from the maximum residential units allowed for in the Silvertip ASP.
- 3.17.4.2 Within Lot 3, Block 9, Plan 041 1061, the number of Entry Level Housing units to be provided shall be determined at the time of a subdivision application for Lot 3, Block 9, Plan 041 1061, pursuant to Subsection 3.17.4.1 of this Bylaw.
- 3.17.4.3 In addition to those Entry Level Housing units required by Subsection 3.17.4.1 of this Bylaw, the required Entry Level Housing units deferred by approval from the Town of Canmore from Lot 1, Block 10, Plan 041 1061 shall be provided within this land use district within Lot 3, Block 9, Plan 041 1061.
- 3.17.4.4 Entry Level Housing units shall meet the following criteria as a minimum, or such alternate criteria as defined by the Town of Canmore:
 - a. Detached Dwelling with an Accessory Dwelling Unit, Attached [2020-16]
 - i. Unless otherwise specified herein, Entry Level Housing shall meet the requirements of the R1-B or R1-BE land use districts of this Bylaw;
 - ii. The average lot width within the entry level portion of the subdivision shall be no more than 13.0 m;
 - iii. Lots will be offered for sale for a selling period of 45 days to local residents of Canmore to criteria established in consultation with the Town of Canmore at the time of the review or approval of a tentative plan of subdivision by the Town;
 - iv. The sale of lots shall be accompanied by a commitment to build within six (6) months of a lot sale;
 - v. Entry level Detached Dwelling units shall comprise a primary unit of no more than 130 m² of GFA, and an Accessory Dwelling Unit, Attached of no more than 84 m² of GFA. The Accessory Dwelling Unit, Attached shall be constructed at the same time as the Detached Dwelling. [2020-16]
 - b. Entry Level Housing, Multi-Unit Residential
 - i. Multi-Unit Residential Entry Level Housing units approved by the Town of Canmore shall have a GFA of no less than 28 m² and no more than 93 m².

- ii. At the discretion of the Town, the Entry Level Housing units required to be provided as part of the development within Lot 3, Block 9, Plan 041 1061, may be deferred to another parcel or parcels outside of this land use district.
- iii. Any of the Entry Level Housing units required to be constructed within Lot 3, Block 9, Plan 041 1061, that have been deferred from Lot 1, Block 10, Plan 041 1061, may not be deferred pursuant to clause b(ii), above.
- iv. If Entry Level Housing units are deferred by approval of the Town of Canmore, these units should be deferred to the Employee Housing lands outlined in the Silvertip ASP.

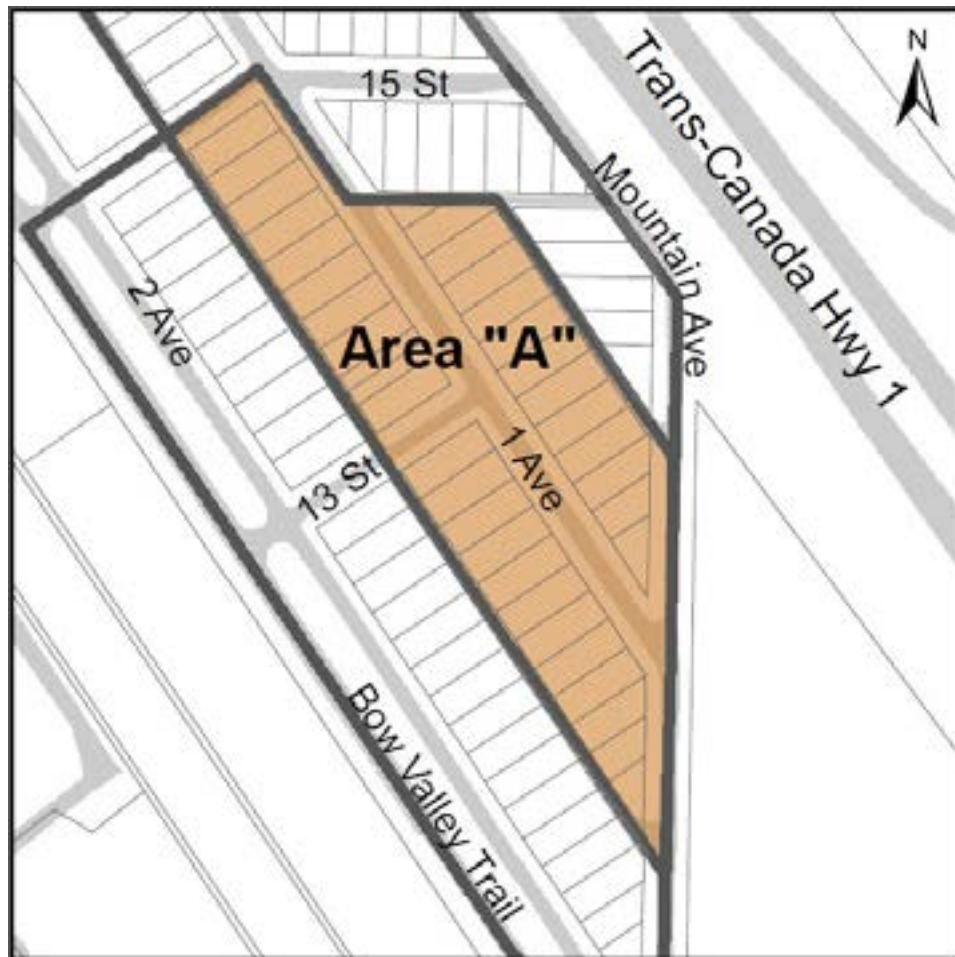
3.18 TPT-CR TEEPEE TOWN COMPREHENSIVE REDEVELOPMENT DISTRICT

3.18.1 Purpose

To allow for the residential and mixed-use redevelopment of the Teepee Town area, in accordance with the Teepee Town Area Redevelopment Plan.

This district is divided into three sub-districts, A through C, as shown in Figure 1. The uses and development standards of each sub-district have been tailored to implement the area specific policies of each sub-district as noted in the Teepee Town Area Redevelopment Plan.

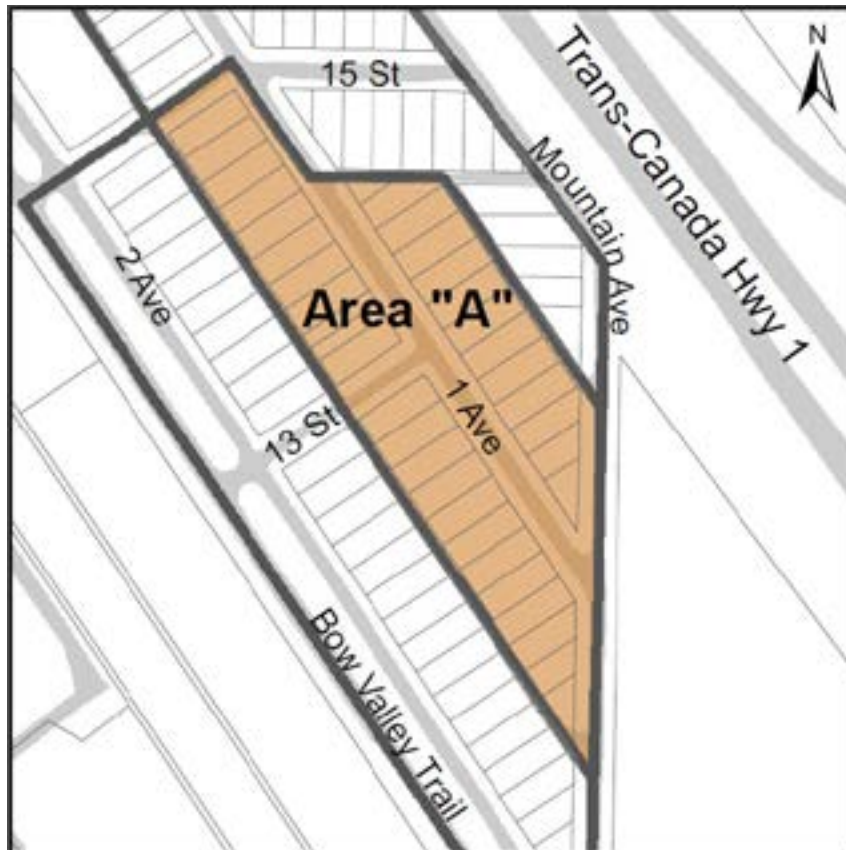
Figure 3.18-1 Map of TPT – CR Sub Areas/Districts



3.18.2 Sub-District A

3.18.2.1 Purpose

The purpose of this district is to provide for residential development at low to medium densities that may include accessory dwelling units and other compatible residential neighbourhood uses



3.18.2.2 Permitted Uses

Accessory Building
Accessory Dwelling Unit, Attached
Accessory Dwelling Unit, Detached
Duplex Dwelling
Home Occupation – Class 1
Open Space
Public Utility
Townhouse
Townhouse, Stacked

3.18.2.3 Discretionary Uses

Bed and Breakfast associated with Detached Dwelling
Care Facility
Common Amenity Housing

Cultural EstablishmentDay CareHome Occupation – Class 2Public Building

- 3.18.2.4 The maximum lot width for a Duplex unit shall be 8.0 m. Where existing lots within this District are subdivided for the purposes of facilitating a Duplex development, the Subdivision Approval Authority may vary the maximum lot width, where the resulting lots exceed 8.0 m in width.
- 3.18.2.5 The minimum front yard setback shall be 4.0 m.
- 3.18.2.6 The minimum side yard setback shall be 1.5 m, except on the street side of a corner site, it shall be 3.0 m.
- 3.18.2.7 The minimum rear yard setback shall be 7.5 m.
- 3.18.2.8 Any portions of the building above the designated eaveline height shall step back as follows:
- Front and rear facing facades: a minimum of 1 m from the building façade below.
- 3.18.2.9 The maximum building height shall be 9.5 m, not exceeding 7.0 m at any eaveline.
- 3.18.2.10 The maximum site coverage is 43%.
- 3.18.2.11 The maximum building height and site coverage may be increased as shown in Table 3.18.2-1. The building height increase cannot be combined with the building height increase as allowed pursuant to Section 8.4.2.3.

Table 3.18.2-1			
Unit Type	Increase Criteria	Maximum Site Coverage	Maximum Building Height
Common Amenity Housing	None	51%	10 m, not exceeding 7.5 m at any eaveline
Duplex	Two Accessory Dwelling Units	51%	10 m, not exceeding 7.5 m at any eaveline
Townhouse and Townhouse, Stacked	One Accessory Dwelling Unit	51%	10 m, not exceeding 7.5 m at any eaveline

- 3.18.2.12 The maximum density shall be 66 units per hectare. Up to two Attached Accessory Dwelling Units shall be excluded from this maximum.
- 3.18.2.13 A minimum of 40% of the site area shall be landscaped in accordance with Section 11, Community Architectural and Urban Design Standards.
- 3.18.2.14 Where a mature tree with a caliper equal to or greater than 0.3 m is preserved, the number of new trees required with new development shall be reduced by a ratio of one preserved tree to two new trees.
- 3.18.2.15 Private outdoor amenity or yard space for multi-unit residential shall be in accordance with

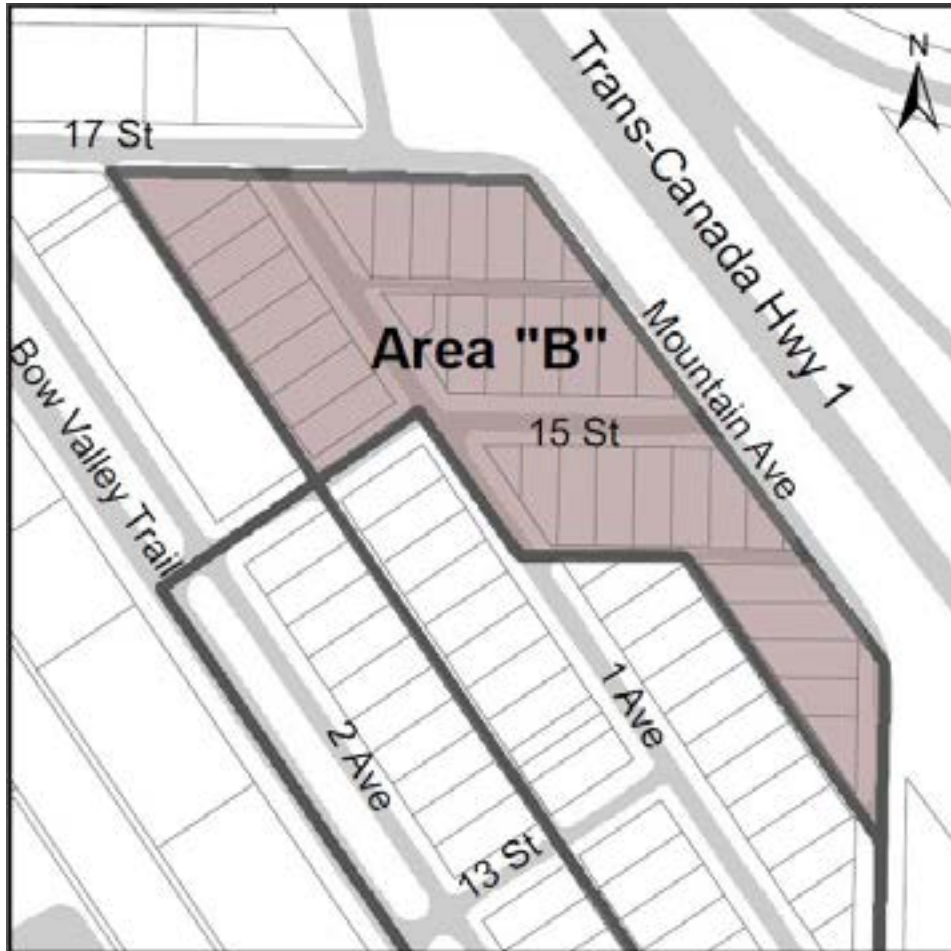
Section 8.7. Notwithstanding Section 8.7.0.2c, the minimum area for an amenity or yard space shall be 20 m² with a minimum horizontal dimension of 3.0 m (when averaged for all units in the project). More than one area can count towards the minimum requirement for an amenity or yard space for each unit at the discretion of the Development Authority.

- 3.18.2.16 Notwithstanding Section 8.4.2.1a, when an Accessory Dwelling Unit, Attached is provided in a Townhouse or Townhouse, Stacked unit it shall be no larger than 50 m² in Gross Floor Area.
- 3.18.2.17 Notwithstanding Section 2.7.7.1, automobile parking is not required for an Accessory Dwelling Unit for Townhouse and Townhouse, Stacked.
- 3.18.2.18 Parking stalls shall be located in the rear yard and accessed from the rear lane for all uses except Townhouse and Townhouse, Stacked development, which may allow for front parking and driveways and not be considered a variance when:
 - a. The materials used for the driveway are of high quality. Asphalt, gravel or similar materials shall not be permitted. Decorative forms of concrete, such as, pavers, stamped, stained, exposed aggregate, dyed, and/or cut concrete may be permitted for use on the driveway and cut concrete may be permitted for use as a border.
 - b. The driveway is bordered in full by a contrasting material or form and colour with a minimum width of 0.3 m and a maximum width of 0.5 m; and
 - c. The width of the driveway, not including the border, does not exceed 2.1 m and at the property line the width conforms to Section 2.3.0.2.
- 3.18.2.19 Contemporary architectural forms are encouraged in this District and are not required to adhere to the requirements for green building initiatives outlined in Section 11.6.2.2 or the roof pitch requirements of Section 11.6.4.1 should the Development Authority be satisfied the development does not unduly impact the access to light and privacy of neighbouring properties.
- 3.18.2.20 In addition to Section 11, new development shall have:
 - a. A minimum of two dwelling units facing the street, with unit entrances being clearly identifiable and visible from the street;
 - b. No main entrances facing the side yard, excluding those entrances for Accessory Dwelling Unit, Attached;
 - c. Equal design treatment given to both frontages on a corner lot, with each frontage having at least one dwelling unit facing a street;
 - d. Entrances forming the most prominent part of the front façade of the building; and
 - e. No duplicate, or very similar buildings, adjacent to each other.

3.18.3 Sub-District B

3.18.3.1 Purpose

The purpose of this district is to provide for Apartment, Stacked Townhouse and Townhouse development along with other compatible residential neighbourhood uses.



3.18.3.2 Permitted Uses

Accessory Building
Accessory Dwelling Unit, Attached
Accessory Dwelling Unit, Detached
Apartment Building
Home Occupation – Class 1
Open Space
Public Utility
Townhouse
Townhouse, Stacked

3.18.3.3 Discretionary Uses

Bed and Breakfast associated with Detached Dwelling

Common Amenity Housing

Cultural Establishment

Day Care

Employee Housing

Home Occupation – Class 2

Public Building

- 3.18.3.4 The minimum lot width shall be 15.0 m.
- 3.18.3.5 The minimum lot depth shall be 30.0 m.
- 3.18.3.6 The minimum front yard setback shall be 4.0 m.
- 3.18.3.7 The minimum side yard setback shall be 1.5 m, except on the street side of a corner site where it shall be 3.0 m.
- 3.18.3.8 The minimum rear yard setback shall be 6.0 m.
- 3.18.3.9 Any portions of the building above the designated eaveline height shall step back as follows:
- Front and rear facing façades: a minimum of 1.0 m from the building façade below.
- 3.18.3.10 The maximum building height shall be 9.5 m with a maximum eaveline height of 7.0 m.
- 3.18.3.11 The maximum site coverage is 45%.
- 3.18.3.12 The maximum building height and site coverage may be increased as shown in Table 3.18.3-1. This building height increase cannot be combined with the building height increase as allowed pursuant to Section 8.4.2.3.

Table 3.18.3-1			
Unit Type	Increase Criteria	Maximum Site Coverage	Maximum Building Height
Townhouse and Townhouse, Stacked	Minimum of five Dwelling Units or one Attached Accessory Dwelling Unit	51%	10m, not exceeding 7.5 m at any eaveline
Townhouse and Townhouse, Stacked	Minimum of six Dwelling Units or two Attached Accessory Dwelling Units	60%	12m, not exceeding 8.5 m at any eaveline
Common Amenity Housing	None	60%	12m, not exceeding 8.5 m at any eaveline
Apartment	None	60%	12m, not exceeding 9.0 m at any eaveline

- 3.18.3.13 The minimum residential density shall be 66 units per hectare.
- 3.18.3.14 In accordance with Section 11, Community Architectural and Urban Design Standards, the minimum landscaped area shall be:
- 40% for Townhouse and Townhouse, Stacked development that does not include six Dwelling Units or two Attached Accessory Dwelling Units.

- b. 25% for all other uses.
- 3.18.3.15 Where a mature tree with a caliper equal to or greater than 0.3 m is preserved, the number of new trees required with new development shall be reduced by a ratio of one preserved tree to two new trees.
- 3.18.3.16 Private outdoor amenity or yard space for multi-unit residential shall be in accordance with Section 8.7. Notwithstanding Section 8.7.0.2c, the minimum area for an amenity or yard space shall be 20 m² with a minimum horizontal dimension of 3.0 m (when averaged for all units in the project). More than one area can count towards the minimum requirement for an amenity or yard space for each unit at the discretion of the Development Authority.
- 3.18.3.17 Notwithstanding Section 8.4.2.1a, when an Accessory Dwelling Unit, Attached is provided in a Townhouse or Townhouse, Stacked unit it shall be no larger than 50 m² in Gross Floor Area.
- 3.18.3.18 Parking stalls shall be located in the rear yard and accessed from the rear lane for all uses except Townhouse and Townhouse, Stacked development, which may allow for front parking and driveways and not be considered a variance when:
- a. The materials used for the driveway are of high quality. Asphalt, gravel or similar materials shall not be permitted. Decorative forms of concrete, such as, pavers, stamped, stained, exposed aggregate, dyed, and/or cut concrete may be permitted for use on the driveway and cut concrete may be permitted for use as a border;
 - b. The driveway is bordered in full by a contrasting material or form and colour with a minimum width of 0.3 m and a maximum width of 0.5 m; and
 - c. The width of the driveway, not including the border, does not exceed 2.1 m and at the property line the width conforms with Section 2.3.0.2.
- 3.18.3.19 Notwithstanding Section 2.7,
- a. Visitor automobile parking is not required for Apartments; and
 - b. Automobile parking is not required for an Accessory Dwelling Unit for Townhouse and Townhouse, Stacked.
- 3.18.3.20 Contemporary architectural forms are encouraged in this District and are not required to adhere to the green building initiatives requirements of Section 11.6.2.2 or the roof pitch requirements of Section 11.6.4.1 should the Development Authority be satisfied the development does not unduly impact the access to light and privacy of neighbouring properties.
- 3.18.3.21 In addition to Section 11, new development shall have:
- a. Unit and common entrances, where feasible, that are clearly identifiable and visible from the street;
 - b. Equal design treatment given to both frontages on a corner lot with each frontage, excluding apartment development, having at least one dwelling unit facing a street;
 - c. Entrances forming the most prominent part of the front façade of the building; and
 - d. No duplicate, or very similar buildings, adjacent to each other to encourage architectural variety.

3.18.4 Sub-District C

3.18.4.1 Purpose

The purpose of this district is to create a mixed-use area that accommodates a range of residential development at higher densities as well as small scale commercial developments that meet both local and visitor needs.



3.18.4.2 Permitted Uses

Accessory Building
Accessory Dwelling Unit, Attached
Accessory Dwelling Unit, Detached
Arts & Crafts Studio
Dwelling Unit
Eating and Drinking Establishment
Home Occupation – Class 1
Office
Personal Service Business

Public Utility
Retail Sales
Tourist Home
Townhouse
Townhouse, Stacked

3.18.4.3 Discretionary Uses

Athletic and Recreational Facility, Indoor
Bed & Breakfast associated with Detached Dwelling
Care Facility
Common Amenity Housing
Cultural Establishment
Day Care
Home Occupation – Class 2
Live/Work Studio
Public Building
Sign
Visitor Accommodation

3.18.4.4 The minimum lot width shall be 15.0 m.

3.18.4.5 The maximum lot width for commercial development shall be 31.0 m.

3.18.4.6 The minimum lot depth shall be 30.0 m.

3.18.4.7 The front yard setback shall be a minimum of 2.0 m and a maximum of 4.0m. The maximum front yard setback may be increased to 4.5 m should the adjacent property include a fourplex located more than 5.0 m from the front property line.

3.18.4.8 The minimum side yard setback shall be 1.5 m.

3.18.4.9 The minimum rear yard setback shall be 7.5 m.

3.18.4.10 Any portions of the building above the designated eaveline height shall step back as follows:

a. Front and rear facing façades: a minimum of 1.0 m from the building façade below.

3.18.4.11 The maximum building height shall be 9.5 m, not exceeding 7.0 m at any eaveline.

3.18.4.12 The maximum site coverage is 43%.

3.18.4.13 The maximum building height and site coverage may be increased as shown in Table 3.18.4-1. This building height increase cannot be combined with the building height increase as allowed pursuant to Section 8.4.2.3.

Table 3.18.4-1			
Unit Type	Increase Criteria	Maximum Site Coverage	Maximum Building Height
Common Amenity Housing	None	51%	10 m, not exceeding 7.5 m at any eaveline
Commercial or Commercial with Dwelling Units above	None	51%	10 m, not exceeding 7.5 m at any eaveline
Townhouse and Townhouse, Stacked	One Accessory Dwelling Unit	51%	10 m, not exceeding 7.5 m at any eaveline

- 3.18.4.14 The maximum residential density shall be 66 units per hectare. Up to two Attached Accessory Dwelling Units shall be excluded from this maximum.

Use Specific Regulations

- 3.18.4.15 Notwithstanding Section 8.4.2.1a, when an Accessory Dwelling Unit, Attached is provided in a Townhouse or Townhouse, Stacked unit it shall be no larger than 50 m² in Gross Floor Area.
- 3.18.4.16 The maximum GFA for an Eating and Drinking Establishment is 150 m².
- 3.18.4.17 The maximum GFA for Retail Sales is 150 m².
- 3.18.4.18 The maximum number of Visitor Accommodation units is 12.
- 3.18.4.19 The maximum GFA of an Office on the ground floor is 250 m².
- 3.18.4.20 Commercial uses shall be restricted to the ground floor of the building, with the exception of Office, Personal Service and Visitor Accommodation uses.
- 3.18.4.21 Dwelling Units or Tourist Homes, and Offices, Personal Services, and Visitor Accommodation, may occupy the same floor above grade; however, Tourist Homes and Dwelling Units shall have separate and distinct common entrances and circulation areas from any commercial component of the building.
- 3.18.4.22 Tourist Home units shall comprise no more than 50% of the residential units within a building with the exception of those properties located at the following legal land descriptions:
[2020-29]
- i. Plan 1095F; Block 91; Lots 1, 7, 11, 13, 15, 17 & 19
 - ii. Condo Plans 2010302, 20108005, 1412325, 0714579, 0713429 & 1811022

Where these properties shall be permitted to have 100% of residential units as Tourist Homes.

Landscaping Regulations

- 3.18.4.23 In accordance with Section 11, Community Architectural and Urban Design Standards, the minimum landscaped area shall be 15% of the site area for commercial development or commercial development with Dwelling Units above and 40% for all other uses.
- 3.18.4.24 Where a mature tree with a caliper equal to or greater than 0.3 m is preserved, the number of

new trees required with new development shall be reduced by a ratio of one preserved tree to two new trees.

- 3.18.4.25 Private outdoor amenity or yard space for multi-unit residential shall be in accordance with Section 8.7. Notwithstanding Section 8.7.0.2c, the minimum area for an amenity or yard space shall be 20 m² with a minimum horizontal dimension of 3.0 m (when averaged for all units in the project). More than one area can count towards the minimum requirement for an amenity or yard space for each unit at the discretion of the Development Authority.

Design

- 3.18.4.26 Developments shall conform to Section 11: Community Architectural and Urban Design Standards and the regulations of this section. Where there is a conflict between Section 11 and this section, this section shall prevail.

- 3.18.4.27 In addition to Section 3.18.4.25, new residential development shall have:

- a. A minimum of two dwelling units facing the street, with unit entrances being clearly identifiable and visible from the street;
- b. No main entrances facing the side yard, excluding those entrances for Attached Accessory Dwelling;
- c. Equal design treatment given to both frontages on a corner lot, with each frontage having at least one dwelling unit facing a street;
- d. Entrances forming the most prominent part of the front façade of the building; and
- e. No duplicate, or very similar buildings, adjacent to each other.

- 3.18.4.28 In addition to Section 3.18.4.25, the site design, landscaping and architecture of new commercial development or commercial development with Dwelling Units above shall complement their location within or adjacent to residential neighborhoods.

- 3.18.4.29 Contemporary architectural forms are encouraged in this District and are not required to adhere to the green building initiatives requirements of Section 11.6.2.2 or the roof pitch requirements of Section 11.6.4.1 should the Development Authority be satisfied the development does not unduly impact the access to light and privacy of neighbouring properties.

Parking, Loading, Storage, Waste and Recycling

- 3.18.4.30 Automobile parking stalls shall be located in the rear yard and accessed from the rear lane.
- 3.18.4.31 Notwithstanding Section 2.7.7.1, automobile parking is not required for an Accessory Dwelling Unit within a Townhouse and Townhouse, Stacked unit.
- 3.18.4.32 Garbage containers and waste material shall be stored either inside a principal building or, at the discretion of the Development Authority, in a weatherproof and animal-proof garbage enclosure if such an enclosure is required to accommodate a Town-approved solid waste management system. Garbage enclosures shall be designed and located to be visually integrated with the site.

3.19 EHD EMPLOYEE HOUSING DISTRICT

Purpose

To provide residential accommodation for employees in freestanding buildings.

3.19.1 Permitted Uses

Accessory Building

Employee Housing

Home Occupation – Class 1

3.19.2 Discretionary Uses

Administrative/Sales Office

Auxiliary Commercial Use

Common Amenity Housing

Day Care

Logging Operation

3.19.3 Regulations

3.19.3.1 The minimum front yard setback shall be 4.5 m.

3.19.3.2 The minimum side yard setback shall be 3.0 m.

3.19.3.3 The minimum rear yard setback shall be 6.0 m.

3.19.3.4 The minimum setback for any yard adjacent to the Trans Canada Highway shall be 15.0 m.

3.19.3.5 The maximum building height shall be 16.0 m with a maximum eaveline of 9.0 m.

3.19.3.6 A minimum of 20% of the site area shall be landscaped.

3.19.3.7 The maximum density shall be 148 units per hectare.

3.19.3.8 The minimum density shall be 35 units per hectare.

3.19.3.9 The maximum unit size shall be as follows:

Bachelor - 35.0 m²

One bedroom - 47.0 m²

Two bedroom - 65.0 m²

Three bedroom - 83.0 m²

3.19.4 Additional Requirements

3.19.4.1 The maximum number of employees per bedroom in all forms of Employee Housing shall be two (2).

3.19.4.2 Where the Development Authority is satisfied that the architectural integrity of a building would be enhanced, variances may be granted to allow 20% of the building to exceed the maximum height by up to 20%. No height variances shall be granted beyond the 20%

relaxation.

- 3.19.4.3 All developments within the district are subject to Section 11: Community Architectural and Urban Design Standards. At the discretion of the Development Authority, these requirements may be relaxed in low-visibility areas.
- 3.19.4.4 Employee Housing shall be owned and operated in a manner to ensure the housing is maintained for ‘employees’ as defined in Section 14, Definitions and/or for “eligible employees” as described in Subsection 3.19.5, below. The Development Authority may require, among other things, periodic declaration of solemn oaths confirming the occupancy of Employee Housing by “employees” or “eligible employees”, and restrictive covenants or other encumbrances on title as part of any approval for Employee Housing.
- 3.19.4.5 An Auxiliary Commercial Use serving an Employee Housing complex and immediate neighbourhood may include, among other potential uses, such commercial facilities as convenience stores, eating establishments, athletic and recreation facilities, and laundromats, which are intended and designed to service primarily residents of the Employee Housing development. The maximum GFA shall be 150 m² per retail establishment.
- 3.19.4.6 The maximum floor area for all uses other than Employee Housing shall be 20% of the GFA of a development.
- 3.19.4.7 An Employee Housing development shall include indoor Amenity Space for the use and enjoyment of the projected demographic profile of the resident employees to the satisfaction of the Development Authority.
- 3.19.4.8 An Employee Housing development shall include, either on site or in a location satisfactory to the Development Authority, an area for active outdoor activities appropriate for the demographic profile of the anticipated employee residents of the development.
- 3.19.4.9 An Employee Housing development shall provide secure indoor storage for each resident within the development to the satisfaction of the Development Authority. The general purpose of such storage shall be to provide space for bicycles, seasonal furnishings and other recreational goods.
- 3.19.4.10 An Employee Housing development shall provide for on-site domestic laundry facilities either within Dwelling Units or in common areas.

3.19.5 Eligible Employees

- 3.19.5.1 Candidates for “eligible employees” shall be required to provide the Development Authority with appropriate written evidence of residency and location of employment as proof of their eligibility.

3.20 R1B-SC RESIDENTIAL DETACHED, STEWART CREEK DISTRICT

Purpose

To provide for low density residential development and other compatible residential neighbourhood uses in Stewart Creek.

3.20.1 Permitted Uses

Accessory Building
Accessory Dwelling Unit, Attached
Accessory Dwelling Unit, Detached
Detached Dwelling (with an Accessory Dwelling Unit)
Entry Level Housing
Home Occupation – Class 1
Open Space
Public Utility

3.20.2 Discretionary Uses

Administrative/Sales Office
Bed and Breakfast
Care Facility
Common Amenity Housing
Cultural Establishment
Day Care
Detached Dwelling
Home Occupation – Class 2
Logging Operation
Manufactured Dwelling
Public Building

3.20.3 Regulations

- 3.20.3.1 The minimum lot area shall be 230.0 m².
- 3.20.3.2 The minimum lot width shall be 10.5 m.
- 3.20.3.3 The minimum front yard setback shall be 3.0 m.
- 3.20.3.4 The minimum side yard setback shall be 1.5 m for each side yard, except on the street side of a corner site where it shall be 3.0 m.
- 3.20.3.5 The minimum rear yard setback shall be 6.0 m.
- 3.20.3.6 The maximum building height shall be as indicated on a development grading plan approved as part of a subdivision plan. In the absence of an approved development grading plan, the maximum building height shall be 9.5 m for a Detached Dwelling and a 10.5 m for units incorporating an Accessory Dwelling Unit, Attached, determined in accordance with Section 2: General Regulations. When the H_{max} formula is used, a building shall be a maximum of two (2) storeys plus a loft. When the envelope model is used, there is no maximum number of storeys.

- 3.20.3.7 The minimum roof pitch shall be 6:12 for a minimum of 65% of the roof area.
- 3.20.3.8 The maximum site coverage for all buildings shall be 40%.
- 3.20.3.9 The GFA shall not exceed 200 m², except where commitment is made to meet or exceed the Enhanced Green Construction provisions of Section 10 of this Bylaw.

3.20.4 Accessory Buildings, Detached Accessory Dwelling Units

- 3.20.4.1 Notwithstanding Subsections 8.1 and 8.4, the following regulations shall apply to Accessory Dwelling Unit, Detached developments and Accessory Buildings within this district:
- a. An Accessory Building or Accessory Dwelling Unit, Detached development shall not be located within a front or side yard.
 - b. A maximum of three (3) Accessory Buildings shall be located on a lot.
 - c. The total maximum site coverage of all Accessory Buildings shall be the lesser of either 10% of the total lot area or 93 m².
 - d. Accessory Buildings and Accessory Dwelling Unit, Detached developments shall be located a minimum of 4.0 m from the principal dwelling.
 - e. The minimum rear yard setback shall be 1.0 m, except for lots along the eastern and southern boundary of Stewart Creek Phase 3 when not directly adjacent to a Public Use (PD) district, where it will be 6.0 m.
 - f. The minimum side yard setback shall be 1.5 m for each side yard, except on the street side of a corner site where it shall be 3.0 m.
 - g. The maximum GFA of an Accessory Dwelling Unit, Detached shall be 93 m².
 - h. The maximum height of an Accessory Building shall be 5.0 m at the peak of the roof and 3.0 m at the eaveline as measured from grade.
 - i. Notwithstanding 8.4.3.1, where the Accessory Building includes an Accessory Dwelling Unit, Detached development, the maximum height shall be calculated as follows:
 - i. Where the slope of all portions of the roof of an Accessory Dwelling Unit, Detached development are 6:12 or steeper the maximum height shall be 7.5 m with a maximum 5.5 m eaveline.
 - ii. Where the slope of any portion of the roof is less than 6:12, the maximum height shall be 6.5 m with a maximum 4.0 m eaveline.
 - j. Notwithstanding 3.20.4.1.h above, the maximum height of an Accessory Dwelling Unit, Detached development shall not exceed the height of the principal dwelling.
 - k. Eavelines shall be functional and connected to the peak of the roof.
 - l. A maximum of one (1) Accessory Dwelling Unit shall be permitted on a lot.
 - m. Eaves associated with an Accessory Building or an Accessory Dwelling Unit, Detached development may encroach into a required yard setback a maximum of 0.6 m.

3.20.5 Accessory Dwelling Units, Attached

- 3.20.5.1 Notwithstanding Subsection 8.4, the following regulations shall apply to all Attached

Accessory Dwelling Units.

- a. The maximum GFA of an Accessory Dwelling Unit, Attached development shall be 93 m².
- b. An Accessory Dwelling Unit, Attached development shall have an entrance separate from the entrance to the primary Dwelling Unit either from a common indoor landing or directly from the exterior of the structure. An exterior entrance for an Accessory Dwelling Unit, Attached development shall be subordinate in appearance to the entrance for the primary Dwelling Unit.
- c. A maximum of one (1) Accessory Dwelling Unit shall be located on a lot.

3.20.6 Entry Level Units

- 3.20.6.1 An Accessory Dwelling Unit shall be considered an Entry Level Housing unit in this district.
- 3.20.6.2 A minimum of 10% of the lots within this district must include an Accessory Dwelling Unit.
- 3.20.6.3 An Accessory Dwelling Unit, Attached development shall be developed at the time of initial construction of the principal residential use.
- 3.20.6.4 The Town of Canmore may accept PAH units in the place of Entry Level Housing units at a lower ratio acceptable to the developer and the Town. The ratio shall be not less than 5% of the units developed. PAH units developed and constructed by the Town of Canmore on Community Lands do not count towards the required provision of Entry Level Housing units.

3.20.7 Additional Requirements

- 3.20.7.1 Post and rail fencing shall be required within private property at the rear of lots along the eastern and southern boundary of Stewart Creek Phase 3 when not directly adjacent to a Public Use (PD) district. Maintenance of the post and rail fencing is the responsibility of the property owner.

3.21 R2A-SC RESIDENTIAL LOW DENSITY, STEWART CREEK DISTRICT

Purpose

To provide for comprehensively designed, low density residential development on larger sites in Stewart Creek, as well as other compatible residential neighbourhood uses.

3.21.1 Permitted Uses

Accessory Building
Accessory Dwelling Unit, Attached
Accessory Dwelling Unit, Detached [2020-16]
Duplex Dwelling (adjacent to Three Sisters Parkway)
Home Occupation - Class 1
Open Space
Public Utility
Townhouse
Townhouse, Stacked

3.21.2 Discretionary Uses

Administrative/Sales Office
Bed and Breakfast
Care Facility
Common Amenity Housing
Comprehensively Designed Multi-Unit Residential Development
Cultural Establishment
Day Care
Home Occupation - Class 2
Live/Work Studio
Long-Term Care Facility
Manufactured Dwelling
Public Building

3.21.3 Regulations

- 3.21.3.1 The minimum lot area for each principal Dwelling Unit shall be 215.0 m².
- 3.21.3.2 The minimum front yard setback shall be 3.0 m.
- 3.21.3.3 The minimum side yard setback shall be: 1.5 m for each side yard, zero in the case of a common property line; or a corner site where it shall be 3.0 m along the street.
- 3.21.3.4 The minimum rear yard setback shall be 6.0 m.
- 3.21.3.5 The maximum building height shall be as indicated on a development grading plan approved as part of a subdivision plan. In the absence of an approved development grading plan, the maximum building height shall be 11.0 m for a Townhouse, Stacked development, or 10.5 m for a Duplex Dwelling, Townhouse and Accessory Dwelling Unit, Detached development associated with a Comprehensively Designed Multi-Unit Residential Development as determined in accordance with Section 2: General Regulations.

- 3.21.3.6 An Accessory Dwelling Unit, Detached development that is associated with a front yard garage shall have a maximum building height of 6.5 m.
- 3.21.3.7 A Duplex Dwelling shall only be located adjacent to the Three Sisters Parkway.
- 3.21.3.8 For buildings designed to accommodate a Live/Work Studio, an additional 0.6 m of building height may be allowed to create a higher at-grade floor-to-ceiling height in order to accommodate commercial building infrastructure.
- 3.21.3.9 The maximum site coverage for all buildings shall be 45%.
- 3.21.3.10 The maximum GFA of a principal Dwelling Unit shall not exceed 200 m², except where commitment is made to meet or exceed the Enhanced Green Construction provisions of Section 10 of this Bylaw.
- 3.21.3.11 Landscaping consisting of trees and shrubs that provide screening is required along the rear of the duplex lots that back onto the Three Sisters Parkway, to the satisfaction of the Development Authority.
- 3.21.3.12 Fencing along Three Sisters Parkway shall be post and rail or similar, to the satisfaction of the Development Authority.

3.21.4 Comprehensively Designed Sites

- 3.21.4.1 A Comprehensively Designed Multi-Unit Residential Development may contain a variety of building forms, including Duplex Dwelling, Townhouse, and Accessory Dwelling Unit developments.
- 3.21.4.2 3.0 m setbacks required on front, side, and rear yards shall be used for comprehensively designed developments that include multi-unit residential uses only.
- 3.21.4.3 The minimum density of principal units for comprehensively designed development sites shall be 30 units per hectare.
- 3.21.4.4 The maximum density of principal units for comprehensively designed development sites shall be 67 units per hectare.

3.21.5 Entry Level Units

- 3.21.5.1 The number of Entry Level Housing units shall be 35% of all Townhouse and Townhouse, Stacked units, as well as Comprehensively Designed Multi-Unit Residential Developments.
- 3.21.5.2 Multi-unit residential Entry Level Housing units shall be defined as units which provide a total gross floor area in the range of 28 to 84 m².
- 3.21.5.3 All Entry Level Housing, Multi-Unit Residential units shall be offered for sale for a selling period of at least 45 days to local residents of Canmore.
- 3.21.5.4 The Town of Canmore may accept Perpetually Affordable Housing units in the place of Entry Level Housing units at a lower ratio acceptable to the developer and the Town. The ratio shall be not less than 5% of the units being developed. PAH units developed and constructed by the Town of Canmore on Community Lands do not count towards the required provision of Entry

Level Housing units.

- 3.21.5.5 Entry Level Housing units may be grouped as part of a comprehensively designed site where the Development Authority is satisfied that reasonable phasing and commitment for construction is provided.

3.21.6 Live/Work Studios

- 3.21.6.1 Live/Work Studios shall only be approved within buildings that front onto Three Sisters Parkway and where adequate customer parking is provided.
- 3.21.6.2 Public street parking on Three Sisters Parkway will be considered adequate customer parking.
- 3.21.6.3 Live/Work Studios shall be restricted to at-grade locations.

3.21.7 Design Requirements

- 3.21.7.1 A minimum roof pitch of 6:12 for 65% of all roof areas is required.
- 3.21.7.2 Notwithstanding limitations in Section 8.1 of this Bylaw that prohibit detached garages in the front yard, within this district detached garages may be allowed where a high quality streetscape can be maintained. Where permitted, design should include elements such as:
- a. Prominent pedestrian to the site entrances;
 - b. Entrance and doorways in front of or even with garage doors;
 - c. Landscaping to break up garage door facades;
 - d. Variation in garage setbacks along the street;
 - e. Building elements such as windows that facilitate “eyes on the street”
 - f. Inclusion of Accessory Dwelling Unit, Detached developments or Entry Level Housing units above the garage to maintain street presence; and
 - g. A limited number of double car garages (inclusion of some surface parking).
- 3.21.7.3 Detached front yard garages shall not be 100% of the required parking along any street.

3.21.8 Accessory Dwelling Units, Detached (associated with Comprehensively Designed Multi-Unit Residential)

- 3.21.8.1 Accessory Dwelling Units, Detached developments in this area may be permitted as Entry Level Housing, Multi-Unit Residential units and shall be defined as having a total GFA in the range of 28 m² to 80 m².

SECTION 4 COMMERCIAL LAND USE DISTRICTS

- 4.1 TC Town Centre District**
- 4.2 GD Gateway Commercial District**
- 4.3 GD-2 Gateway Commercial District with Automotive Uses**
- 4.4 BVT-C Bow Valley Trail Central Commercial District**
- 4.5 BVT-T Bow Valley Trail Teepee Town Commercial District**
- 4.6 BVT-G Bow Valley Trail General Commercial District**
- 4.7 CC Local Commercial District**
- 4.8 TBD Transition Business District**
- 4.9 TS-GD Three Sisters Gateway Commercial District**
- 4.10 TS-MU Three Sisters Mixed Use District**
- 4.11 CRD Commercial Resort District**
- 4.12 TS-RA1 Three Sisters Resort Accommodation District**
- 4.13 VIC Visitor Information Center District**

4.1 TC TOWN CENTRE DISTRICT

Purpose

To provide for a broad range of commercial, entertainment, cultural, and residential uses in mixed-use buildings and to serve as a focal point for community business and civic activities.

4.1.1 Permitted Uses

Amusement Arcade
Apartment Building
Arts and Crafts Studio
Convention Facility
Cultural Establishment
Dwelling Unit (above the ground floor)
Eating and Drinking Establishment
Employee Housing
Entertainment Establishment
Financial Institution
Home Occupation – Class 1
Laundry Facility
Medical Clinic
Open Space
Personal Service Business
Public Building
Public Utility
Retail Sales
Visitor Accommodation

4.1.2 Discretionary Uses

Accessory Building
Administrative/Sales Office
Athletic and Recreational Facility, Indoor
Cannabis Retail Store
Common Amenity Housing
Day Care
Educational Institution
Home Occupation – Class 2
Hostel
Liquor Store
Logging Operation
Office
Printing Establishment
Taxi Stand
Temporary Business
Tourist Home
Transportation Terminal

4.1.3 Regulations

- 4.1.3.1 The minimum site area shall be 300.0 m².
- 4.1.3.2 The minimum site width shall be 7.6 m.
- 4.1.3.3 The maximum FAR shall be 2.0.
- 4.1.3.4 The minimum FAR shall be 1.25.
- 4.1.3.5 The front yard setback shall be 1.0 m, as illustrated in Figure 4.1-1.
- 4.1.3.6 The minimum rear yard setback shall be 5.4 m except for double-frontage lots, where the rear yard setback shall be determined by the Development Authority.
- 4.1.3.7 The minimum side yard setback shall be zero except when adjacent to a residential district, where the setback shall be 1.5 m for portions of the building above the ground floor.
- 4.1.3.8 The maximum building height shall be 11.0 m with a maximum eaveline height of 7.0 m.
- 4.1.3.9 Floor area above the eaveline shall be incorporated into the roof structure and shall step back from the main building face for a minimum of 70% of the elevation.

4.1.4 Use-Specific Regulations

- 4.1.4.1 An Apartment Building development shall feature a ground-floor commercial use with Dwelling Units located above.
- 4.1.4.2 The maximum GFA of a Retail Sales store shall be 500 m².
- 4.1.4.3 Applications for a development with an Office on the ground floor will be evaluated in accordance with the following criteria in determining a proposal's effect on the streetscape:
 - a. At least 66% of the GFA for an Office use shall be located on the second floor of a building;
 - b. If more than 25% of the existing block face on which the proposed development is located does not have Retail Store or Eating and Drinking Establishment uses located at grade, an Office use shall not be located at the ground floor;
 - c. Notwithstanding (a) and (b) above, a development with an Office use located on the ground floor may be approved above under the following circumstances and subject to the Development Authority:
 - i. If the development faces an alley; or
 - ii. If more than 25% of the existing block face on which the proposed development is located is vacant at the time of the application; or
 - iii. If the development proposes a substantial enhancement to the public/private realm adjacent to the building, as determined by the Development Authority.
- 4.1.4.4 A Tourist Home shall only be located above the ground floor of a building.
- 4.1.4.5 A Tourist Home shall have an entrance that is separate and distinct from the entrance to any commercial use in a building.

- 4.1.4.6 Dwelling Units that have a Tourist Home designation shall have a separate entrance and circulation area from Dwelling Units that do not have a Tourist Home designation, to the satisfaction of the Development Authority.
- 4.1.4.7 A Tourist Home may be located on the same floor as commercial uses where there is a physical separation of uses, to the satisfaction of the Development Authority.
- 4.1.4.8 Parking for a Tourist Home shall be provided in the same location as parking for any other residential Dwelling Units on-site.
- 4.1.4.9 Where contemplated, Employee Housing units shall be accessory to a principal use of a building. When that principal use is commercial, Employee Housing units shall be located above the ground floor.
- 4.1.4.10 When Employee Housing units are located on the same floor as a non-residential use, there shall be a physical separation of uses and separate entrances to the Employee Housing units, to the satisfaction of the Development Authority.

4.1.5 Design Requirements

- 4.1.5.1 Developments within this District shall comply with the regulations in Section 11: Community and Architectural Design Standards of this Bylaw.
- 4.1.5.2 A pedestrian-oriented streetscape shall be established incorporating such design elements as: wide sidewalks, arcades, pedestrian scale street lighting, bicycle parking, canopies, vestibules, façade treatments that are sensitive to sidewalk location on a site specific basis and permeability of façades by the use of glass and doors.
- 4.1.5.3 All businesses adjacent to a public street and/or sidewalk shall have a functional entrance that faces that street/sidewalk.
- 4.1.5.4 Where businesses have multiple street frontages, functional entrances may be required for each frontage at the discretion of the Development Authority.
- 4.1.5.5 Buildings on corner lots shall be designed to retain the key views as described in Section 11: Community Architectural and Urban Design Standards.
- 4.1.5.6 Applicants shall demonstrate that any proposed building preserves these views which will normally require that roof areas close to the corner are designed to be below the maximum permitted height. Buildings subject to this regulation will be allowed to achieve the maximum FAR of 2.0. Where variances to the District regulations may be required to achieve the maximum FAR, such variances may be supported by the Town provided the building and site design meet the relevant requirements of Section 11: Community Architectural and Urban Design Standards.
- 4.1.5.7 Where the Development Authority is satisfied that the architectural integrity of a building would be enhanced, variances may be granted to allow 20% of the building to exceed the maximum height by up to 20%. No height variances shall be granted beyond the 20% relaxation.
- 4.1.5.8 In order to achieve a pedestrian oriented streetscape, parking and loading shall be designed

to minimize the visual impact and impacts on pedestrian activity. Techniques to achieve this may include structured parking, shared parking and intensive landscaping. Where structured parking is provided, it shall be integrated into the building design, preferably underground. Parking Structure buildings shall include retail, office and commercial service on a portion of the ground floor with direct access to the public sidewalk.

- 4.1.5.9 Developments abutting residential districts shall be designed to minimize the impacts of parking, loading, garbage storage, sun shadow, lighting, noise and business hours of operation on the residential environment to the satisfaction of the Development Authority. Specifically, such developments shall be designed and constructed as follows:
- a. No more than four (4) parking stalls, or two (2) parking stalls and a loading bay, shall have direct access to a lane from the rear of a development. Additional parking stalls or loading bays shall be accessed by a driveway and be screened from the lane to the satisfaction of the Development Authority.
 - b. Where a proposed development is adjacent to or across a lane from a residential district, the façade facing the residential district shall be considered an additional “frontage” for the purposes of architectural design and materials.
 - c. Mechanical equipment may not be mounted on walls adjacent to or across a lane from a residential district.
- 4.1.5.10 Signage shall be oriented to the pedestrian sidewalk.
- 4.1.5.11 Garbage containers and waste material shall be stored either inside a principal building or, at the discretion of the Development Authority, in a weatherproof and animal-proof garbage enclosure as outlined in the Engineering Design and Construction Guidelines.
- 4.1.5.12 Garbage enclosures shall be designed and located to be visually integrated with the site.
- 4.1.5.13 Outdoor Storage is prohibited.

4.1.6 Parking Alternatives

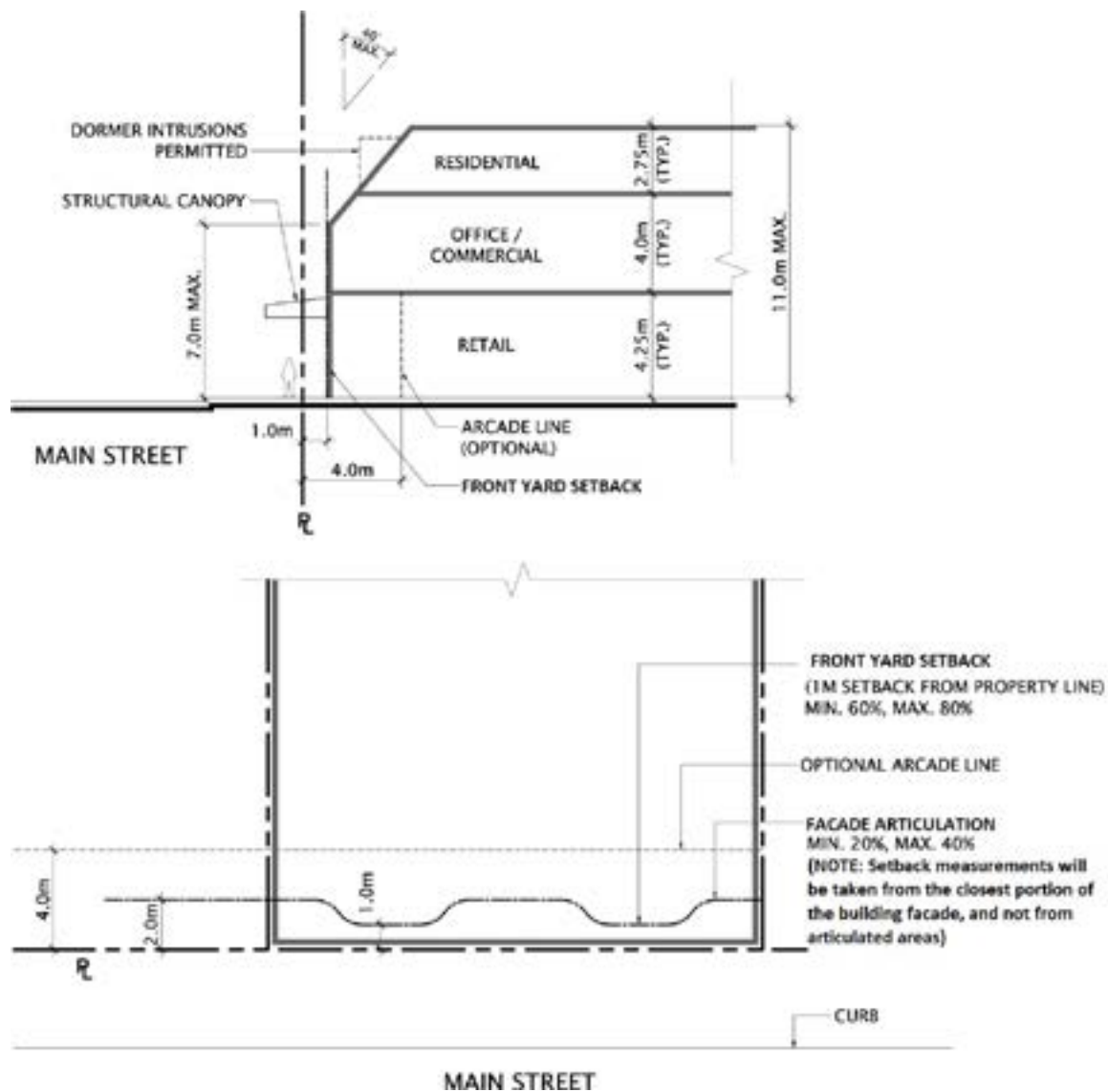
- 4.1.6.1 The Development Authority may, at its discretion, approve cash-in-lieu of parking for the difference between the total number of required parking stalls and the number of parking stalls provided within the development.
- 4.1.6.2 The Development Authority may allow a portion of the parking required by a development to be provided in an off-site location within the TC District only.

4.1.7 Historic Resources

- 4.1.7.1 Properties identified in Schedule “A”, as well as the properties adjacent to them are subject to the development regulations in Subsection 7.7 of this Bylaw.

4.1.8 Illustrations for Developments Located in the Town Centre

Figure 4.1-1



4.1.9 Schedule A



4.2 GD GATEWAY COMMERCIAL DISTRICT

Purpose

To provide for a combination of commercial and residential activities in mixed use buildings, which offer a wide range of goods and services.

4.2.1 Permitted Uses

Amusement Arcade
Arts and Crafts Studio
Athletic and Recreational Facility, Indoor
Convention Facility
Cultural Establishment
Dwelling Units (above the ground floor)
Eating and Drinking Establishment
Employee Housing
Entertainment Establishment
Financial Institution
Home Occupation - Class 1
Medical Clinic
Open Space
Personal Service Business
Public Building
Public Utility
Retail Sales
Visitor Accommodation

4.2.2 Discretionary Uses

Accessory Building
Administrative/Sales Office
Apartment Building (above the ground floor) [2020-16]
Cannabis Retail Store
Common Amenity Housing
Day Care
Educational Institution
Home Occupation – Class 2
Hostel
Liquor Store
Logging Operation
Office
Printing Establishment
Taxi Stand
Temporary Business
Tourist Home
Transportation Terminal

4.2.3 Regulations

- 4.2.3.1 The minimum site area shall be 550 m².
- 4.2.3.2 The minimum site width shall be 15.0 m.
- 4.2.3.3 The minimum FAR shall be 0.6 for properties east of Railway Avenue.
- 4.2.3.4 The minimum FAR shall be 0.5 for properties on the west side of Railway Avenue.
- 4.2.3.5 The maximum FAR shall be 2.0.
- 4.2.3.6 The maximum building height shall be 16.0 m for sites located east of Railway Avenue.
- 4.2.3.7 The maximum building height shall be 14.0 m for sites located west of Railway Avenue.
- 4.2.3.8 The maximum eaveline height shall be 3 storeys or 9.0 m for sites located east of Railway Avenue.
- 4.2.3.9 The maximum eaveline height shall be 2 storeys or 7.0 m for sites located west of Railway Avenue.
- 4.2.3.10 Floor area above the eaveline shall be incorporated into the roof structure and stepped back from the main building face for the substantial majority of the elevation (a minimum of 70%).
- 4.2.3.11 The minimum side yard setback shall be 3.0 m.
- 4.2.3.12 Where a property abuts Policeman Creek, one side yard with a minimum setback of 4.5 m shall be provided.
- 4.2.3.13 The minimum rear yard setback shall be 3.0 m.
- 4.2.3.14 The front yard setbacks shall be as outlined in Table 4.2-1 below.

TABLE 4.2-1 – GATEWAY COMMERCIAL DISTRICT FRONT YARD SETBACKS		
	East of Railway Avenue	West of Railway Avenue
1 st Storey	6.0 m	4.0 m
2 nd Storey	8.0 m	6.0 m
3 rd Storey	8.0 m	6.0 m

- 4.2.3.15 A minimum of 60% of each façade and a maximum of 80% shall be located at the front yard setback.
- 4.2.3.16 A maximum of 40% of each façade and a minimum of 20% shall be set back 2.0 m from the front yard setback.

4.2.4 Use-Specific Regulations

- 4.2.4.1 All development applications shall contain a residential component that is not less than 25% of the total GFA of a proposed development. Residential uses may include Employee Housing units and Tourist Home units in addition to other unit types.
- 4.2.4.2 The maximum GFA of a Retail Sales development shall be 5,000 m².

- 4.2.4.3 The maximum size of an Office use on the ground floor of a building shall be 250 m², with any additional floor area to be provided above the ground floor.
- 4.2.4.4 A Tourist Home shall only be located above the ground floor of a building.
- 4.2.4.5 A Tourist Home shall have an entrance that is separate and distinct from the entrance to any commercial use in a building.
- 4.2.4.6 Dwelling Units that have a Tourist Home designation shall have a separate entrance and circulation area from Dwelling Units that do not have a Tourist Home designation, to the satisfaction of the Development Authority.
- 4.2.4.7 A Tourist Home may be located on the same floor as commercial uses where there is a physical separation of uses, to the satisfaction of the Development Authority.
- 4.2.4.8 Parking for a Tourist Home shall be provided in the same location as parking on-site as for other residential Dwelling Units on-site.
- 4.2.4.9 Where contemplated, Employee Housing units shall be accessory to a principal use of a building. When that principal use is commercial, Employee Housing units shall be located above the ground floor.
- 4.2.4.10 When Employee Housing units are located on the same floor as a non-residential use, there shall be a physical separation of uses and separate entrances to the Employee Housing units, to the satisfaction of the Development Authority.

4.2.5 Design Requirements

- 4.2.5.1 All buildings adjacent to a public street and/or sidewalk shall have a functional entrance that faces that street/sidewalk.
- 4.2.5.2 Where businesses have multiple street frontages, functional entrances may be required for each frontage at the discretion of the Development Authority.
- 4.2.5.3 Substantial lowering of rooflines and/or separations between buildings shall be incorporated into streetscape designs at intervals of not more than 30 m.
- 4.2.5.4 A pedestrian-oriented streetscape shall be established. Features include wide sidewalks, separation of pedestrian use areas from vehicle use areas, outdoor furniture, patios, pedestrian scale street lighting, bicycle parking, canopies, vestibules, formal trail connections, façade treatments that are sensitive to sidewalk location on a site specific basis, and, subject to Section 11: Community Architectural and Urban Design Standards, permeability of facades by the use of glass and doors.
- 4.2.5.5 In order to achieve a pedestrian oriented streetscape, parking shall be designed to effectively screen vehicles when viewed from streets. Techniques to achieve this may include structured parking, shared parking and intensive landscaping. Where structured parking is provided, it shall be integrated into the building design, preferably underground.
- 4.2.5.6 Mountain vistas shall be preserved at the intersections of Railway Avenue with CPR right-of-way, with Main Street, and with 10 Street by retaining a minimum sight angle of 12.5° over all buildings on lots adjacent to the intersections. The sight angle shall be measured

from a horizontal plane established from a point 1.8 m above the centre-point of these intersections.

- 4.2.5.7 Signage shall be oriented to the pedestrian sidewalk.
- 4.2.5.8 Garbage containers and waste material shall be stored either inside a principal building or, at the discretion of the Development Authority, in a weatherproof and animal-proof garbage enclosure if such an enclosure is required to accommodate a Town-approved solid waste management system. Garbage enclosures shall be designed and located to be visually integrated with the site.

4.2.6 Additional Regulations

- 4.2.6.1 A minimum of 15% of a site shall be landscaped in accordance with the provisions of Section 11: Community and Architectural Design Standards.
- 4.2.6.2 Where a creek bank exists, 15% of the site above the bank of the creek shall be landscaped.
- 4.2.6.3 Outdoor Amenity Space including, but not limited to, plazas, patios, and other pedestrian gathering places may be substituted for some natural landscaping to the extent that it achieves a blend of natural environment and value as a people place.
- 4.2.6.4 Outdoor Amenity Space must be located adjacent to a sidewalk or public trail in order to be considered as landscaping.
- 4.2.6.5 Developments adjacent to Policeman Creek shall provide a 3.0 m wide pedestrian easement parallel to the bank of the creek.
- 4.2.6.6 Where a development is adjacent to the CP Rail right of way or adjacent to a portion of a public pathway system which is adjacent to that right of way, the developer shall construct a fence adjacent to the CP Rail right of way to the satisfaction of the Town for pedestrian safety purposes.

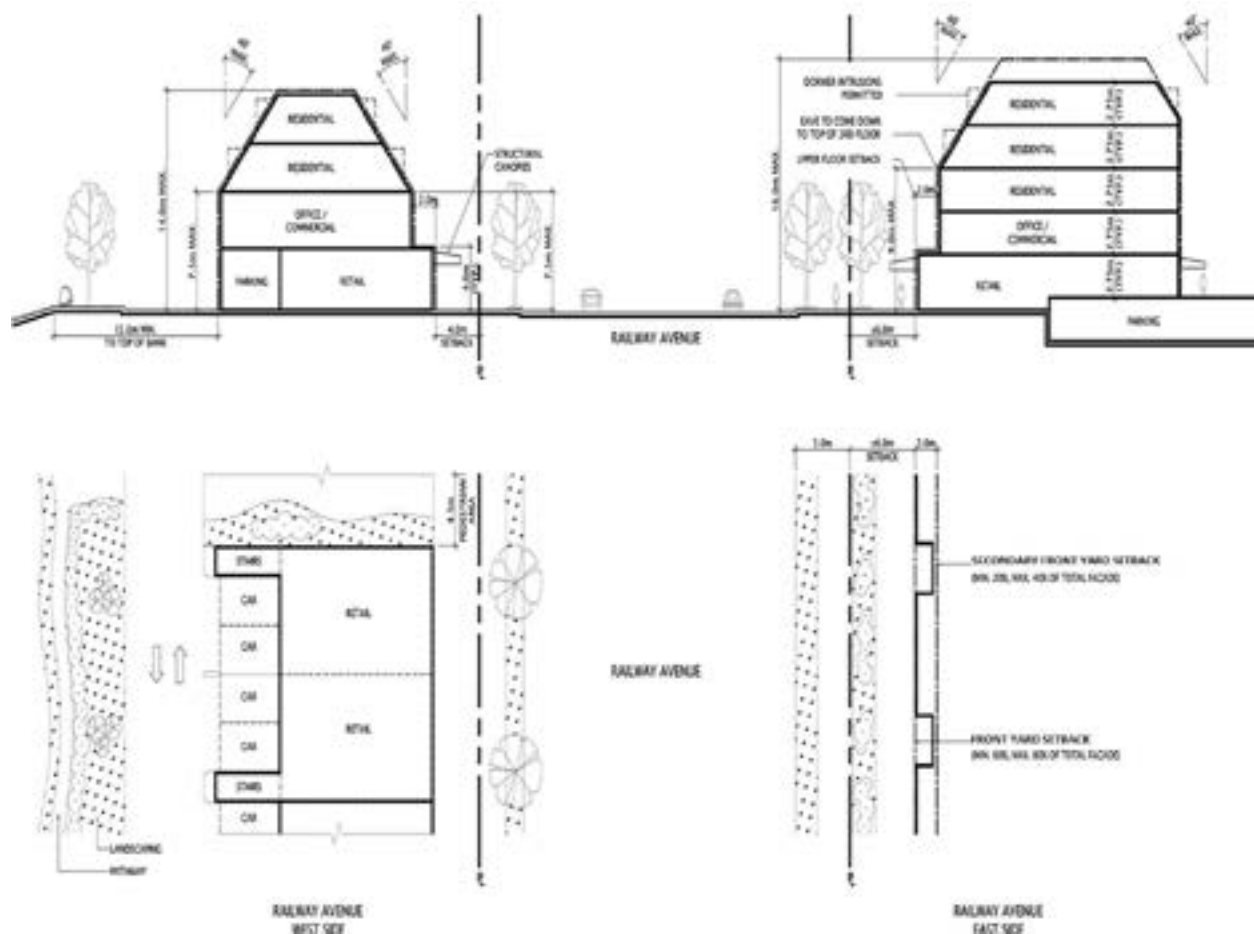
4.2.7 Parking Alternatives

- 4.2.7.1 The Development Authority may, at its discretion, approve cash-in-lieu of parking for the difference between the total number of required parking stalls and the number of parking stalls provided within the development.
- 4.2.7.2 The Development Authority may allow a portion of the parking required by a development to be provided in an off-site location within the GD District only.

4.2.8 Wellhead Protection

- 4.2.8.1 Developments and land uses in this District shall conform to the regulations and prohibitions of use described in Wellhead Protection Area Regulations (Subsection 7.4.2) of this Bylaw.

4.2.9 Illustrations For Developments Located In The Gateway



4.3 GD-2 GATEWAY COMMERCIAL DISTRICT WITH AUTOMOTIVE USES

Purpose

To provide for a combination of commercial and residential activities in mixed use buildings which offer a wide range of goods and services. The area shall be developed as an integral part of the downtown core and incorporate comprehensively designed developments to ensure the provision of residential units, pedestrian flow, adequate parking and a high standard of appearance and landscaping.

4.3.1 Permitted Uses

Amusement Arcade
Arts and Crafts Studio
Athletic and Recreational Facility, Indoor
Convention Facility
Cultural Establishment
Dwelling Units (above the ground floor)
Eating and Drinking Establishment
Employee Housing
Entertainment Establishment
Financial Institution
Home Occupation - Class 1
Medical Clinic
Open Space
Personal Service Business
Printing Establishment
Public Building
Public Utility
Retail Sales
Visitor Accommodation

4.3.2 Discretionary Uses

Accessory Building
Administrative/Sales Office
Apartment Building
Automotive and Equipment Repair
Cannabis Retail Store
Common Amenity Housing
Day Care
Educational Institution
Home Occupation - Class 2
Hostel
Liquor Store
Logging Operation
Office
Retail Sales
Taxi Stand

Temporary Business
Tourist Home [2021-24]
Transportation Terminal

4.3.3 Regulations

- 4.3.3.1 The minimum site area shall be 550 m².
- 4.3.3.2 The minimum site width shall be 15.0 m.
- 4.3.3.3 The minimum FAR shall be 0.6.
- 4.3.3.4 The maximum FAR shall be 2.0.
- 4.3.3.5 The maximum building height shall be 16.0 m for sites located east of Railway Avenue.
- 4.3.3.6 The maximum building height shall be 14.0 m for sites located west of Railway Avenue.
- 4.3.3.7 The maximum eaveline height shall be 3 storeys or 9.0 m for sites located east of Railway Avenue.
- 4.3.3.8 The maximum eaveline height shall be 2 storeys or 7.0 m for sites located west of Railway Avenue.
- 4.3.3.9 The minimum sideyard setback shall be 3.0 m.
- 4.3.3.10 Where a property abuts Policeman Creek, one sideyard with a minimum setback of 4.5 m shall be provided.
- 4.3.3.11 The minimum rear yard setback shall be 3.0 m.
- 4.3.3.12 The front yard setbacks shall be as outlined in Table 4.3-1 below:

TABLE 4.3-1 – GATEWAY COMMERCIAL DISTRICT WITH AUTOMOTIVE USES: FRONT YARD SETBACKS		
	East of Railway Avenue	West of Railway Avenue
1 st Storey	6.0 m	4.0 m
2 nd Storey	8.0 m	6.0 m
3 rd Storey	8.0 m	6.0 m

- 4.3.3.13 A minimum of 60% of each façade and a maximum of 80% shall be located at the front yard setback. A maximum of 40% of each façade and a minimum of 20% shall be set back 2.0 m from the front yard setback.

4.3.4 Use-Specific Regulations

- 4.3.4.1 Automotive and Equipment Repair shall be accessory to a principal use and shall comprise up to 20% of the GFA of the ground floor of the principal building.
- 4.3.4.2 Prior to the approval of any Development Permit for any Automotive and Equipment Repair development, a study shall be provided to the satisfaction of the Town of Canmore, prepared by a qualified professional, to determine any potential impact on groundwater and shall

include recommendations on protective measures to be undertaken to substantially eliminate the potential for negative effect on groundwater. The implementation of the recommended measures shall form a part of the Development Permit approval under this Bylaw.

4.3.4.3 An Automotive and Equipment Repair development that includes the storage of any petrochemicals or materials that may impact on groundwater shall ensure such chemicals or materials are stored in an approved container and shall be located in an area immediately above a lower parkade (or other accessible subgrade area) to the satisfaction of the Town of Canmore.

4.3.4.4 The maximum GFA of a Retail Sales development is 5,000 m².

4.3.4.5 The maximum size of an Office development when located on the ground floor is 250 m². Additional GFA for this use shall only be provided above the ground floor.

4.3.4.6 A Tourist Home shall only be located above the ground floor of a building.

4.3.4.7 A Tourist Home shall have an entrance that is separate and distinct from the entrance to any commercial use in a building

4.3.4.8 Dwelling Units that have a Tourist Home designation shall have a separate entrance and circulation area from Dwelling Units that do not have a Tourist Home designation, to the satisfaction of the Development Authority.

4.3.4.9 A Tourist Home may be located on the same floor as commercial uses where there is a physical separation of uses, to the satisfaction of the Development Authority.

4.3.4.10 Parking for a Tourist Home shall be provided in the same location as parking for any other residential Dwelling Units on-site.

4.3.4.11 Where contemplated, Employee Housing units shall be accessory to a principal use of a building. When that principal use is commercial, Employee Housing units shall be located above the ground floor.

4.3.4.12 When Employee Housing units are located on the same floor as a non-residential use, there shall be a physical separation of uses and separate entrances to the Employee Housing units, to the satisfaction of the Development Authority.

4.3.5 Design Requirements

4.3.5.1 Where the Development Authority is satisfied that the architectural integrity of a building would be enhanced, variances may be granted to allow 20% of the building to exceed the maximum height by up to 20%. No height variances shall be granted beyond the 20% relaxation.

4.3.5.2 Substantial lowering of rooflines and/or separations between buildings shall be incorporated into streetscape designs at intervals of not more than 30 m.

4.3.5.3 A pedestrian-oriented streetscape shall be established in accordance with the Town Centre Enhancement Concept Plan. Features include wide sidewalks, separation of pedestrian use areas from vehicle use areas, outdoor furniture, patios, pedestrian scale street lighting, bicycle parking, canopies, vestibules, formal trail connections, façade treatments that are sensitive to

sidewalk location on a site specific basis, and, subject to Section 11: Community Architectural and Urban Design Standards, permeability of facades by the use of glass and doors.

- 4.3.5.4 Mountain vistas shall be preserved at the intersections of Railway Avenue with CPR right-of-way, with Main Street, and with 10 Street by retaining a minimum sight angle of 12.5° over all buildings on lots adjacent to the intersections. The sight angle shall be measured from a horizontal plane established from a point 1.8 m above the centre-point of these intersections.
- 4.3.5.5 Design of buildings must be in conformity with Section 11: Community Architectural and Urban Design Standards.
- 4.3.5.6 Signage shall be oriented to the pedestrian sidewalk.
- 4.3.5.7 A minimum of 15% of a site shall be landscaped in accordance with the provisions of Section 11: Community Architectural and Urban Design Standards. Where a creek bank exists, 15% of the site above the bank of the creek shall be landscaped. Outdoor Amenity Space including, but not limited to, plazas, patios, and other pedestrian gathering places may be substituted for some natural landscaping to the extent that it achieves a blend of natural environment and value as a people place. Outdoor Amenity Space must be located adjacent to a sidewalk or public trail in order to be considered as landscaping.
- 4.3.5.8 Developments adjacent to Policeman Creek shall provide a 3.0 m wide pedestrian easement parallel to the bank of the creek. Development Permit applications shall include professionally produced streetscape drawings or three-dimensional simulations of the overall development as viewed from the public sidewalk.
- 4.3.5.9 All garbage and waste material shall be stored and located within the principal building.
- 4.3.5.10 Where a development is adjacent to the CP Rail right of way or adjacent to a portion of a public pathway system which is adjacent to that right of way, the developer shall construct a fence adjacent to the CP Rail right of way to the satisfaction of the Town for pedestrian safety purposes.

4.3.6 Parking Alternatives

- 4.3.6.1 The Development Authority may, at its discretion, approve cash-in-lieu of parking for the difference between the total number of required parking stalls and the number of parking stalls provided within the development.
- 4.3.6.2 The Development Authority may allow a portion of the parking required by a development to be provided in an off-site location within the GD2 District only.

4.4 BVT-C BOW VALLEY TRAIL CENTRAL COMMERCIAL DISTRICT

Purpose

This District is intended to complement, not compete with, the downtown area to facilitate the expansion of the health and wellness sector of our economy, and to provide services to visitors and residents of Canmore.

4.4.1 Permitted Uses

Amusement Arcade
Arts and Crafts Studio
Athletic and Recreation Facility, Indoor
Convention Facility
Eating and Drinking Establishment
Entertainment Establishment
Home Occupation – Class 1
Hostel
Medical Clinic
Open Space
Perpetually Affordable Housing
Personal Service Business
Public Building
Public Utility
Retail Sales
Visitor Accommodation

4.4.2 Discretionary Uses

Accessory Building
Administrative/Sales Office
Apartment Building
Brewery/Distillery
Cannabis Retail Store
Care Facility
Common Amenity Housing
Cultural Establishment
Day Care
Dwelling Units (above the ground floor)
Employee Housing
Essential Public Service
Funeral Home
Home Occupation – Class 2
Laundry Facility
Light Manufacturing
Liquor Store
Logging Operation
Office
Staff Accommodation

Taxi Stand
Temporary Staff Housing
Tourist Home [2021-24]
Transportation Terminal
Warehouse

4.4.3 Regulations

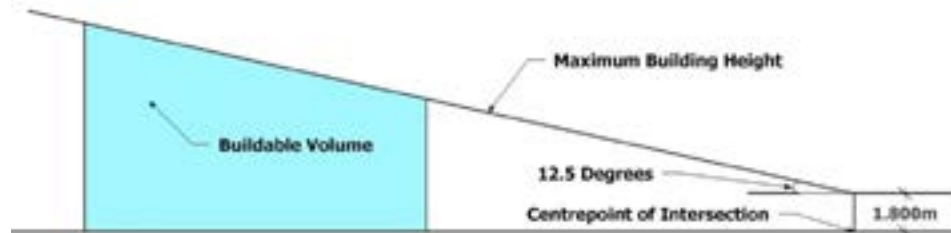
- 4.4.3.1 The minimum site area shall be 1000 m².
- 4.4.3.2 The minimum site width shall be 30 m.
- 4.4.3.3 The minimum FAR shall be 0.75.
- 4.4.3.4 The maximum FAR shall be 1.5.
- 4.4.3.5 The maximum site coverage of all buildings shall be 55%.
- 4.4.3.6 The minimum front yard setback shall be as follows:
 - a. Fronting on to Bow Valley Trail: to be characterized by a street-oriented building design located no more than 2.0 m from the property line.
 - b. All other locations: 3.0 m.
 - c. A minimum of 20% of the building shall be built to the front yard setback except where pedestrian infrastructure or hardscaping (e.g. plaza, seating) is provided.
- 4.4.3.7 The minimum rear yard setback shall be 6.0 m.
- 4.4.3.8 The minimum side yard setback shall be 3.0 m.
- 4.4.3.9 Notwithstanding the yard setbacks above, all development shall be set back a minimum of 15.0 m from the Trans Canada Highway right of way.
- 4.4.3.10 The maximum building height is 16.0 m.
- 4.4.3.11 The maximum eaveline height is 7.0 m.
- 4.4.3.12 Floor area above the eaveline shall be incorporated into the roof structure and step back from the front building face for a minimum of 70% of the elevation.
- 4.4.3.13 A minimum of 25% of the site shall be landscaped.

4.4.4 Design Requirements

- 4.4.4.1 A pedestrian-oriented streetscape shall be established to allow for or encourage pedestrian traffic. The streetscape shall incorporate design elements such as: wide sidewalks/paths (minimum width of 2.0 m), separation of pedestrian use areas from motor vehicle use areas, outdoor furniture, patios, pedestrian scale street lighting, bicycle parking, canopies, vestibules, formal trail connections, façade treatments that are sensitive to sidewalk location on a site specific basis, and permeability of facades by the use of glass and doors subject to Section 11.
- 4.4.4.2 Notwithstanding 4.4.3.10, mountain vistas shall be preserved at the intersections of Bow

Valley Trail with Benchlands Trail and Bow Valley Trail with 17th Street by retaining a minimum sight angle of 12.5° over all buildings on lots adjacent to the intersections. The sight angle shall be measured from a horizontal plane established from a point 1.8 m above the centre-point of these intersections.

Figure 4.4-1. Minimum sight angle



- 4.4.4.3 Signage shall not be oriented to or be legible from the Trans-Canada Highway.
- 4.4.4.4 Where a development is adjacent to the CP Rail right of way or adjacent to a portion of a public pathway system which is adjacent to that right of way, the developer shall construct a fence adjacent to the CP Rail right of way to restrict pedestrian access to the satisfaction of the Development Authority.
- 4.4.4.5 Where possible along Bow Valley Trail, the ground floor of developments for sites lower than the crown of road should be raised to be closer to the elevation of the crown of the road.
- 4.4.4.6 Where sites are raised to bring the ground floor of the building closer to the elevation of the crown of Bow Valley Trail, the Development Authority shall use this new grade as the basis for calculating height.

4.4.5 Landscaping

- 4.4.5.1 Outdoor Amenity Space including, but not limited to, plazas, patios, and other pedestrian gathering places may be substituted for some natural landscaping to the extent that it achieves a blend of natural environment and value as a people place.
- 4.4.5.2 Outdoor Amenity Space must be located adjacent to a sidewalk or public trail in order to be considered as landscaping.
- 4.4.5.3 Areas devoted to the parking or circulation of motor vehicles shall not be counted towards the minimum 25% landscaped area.
- 4.4.5.4 Areas devoted to the parking of bicycles may, at the discretion of the Development Authority, be counted towards the minimum 25% landscaped area.
- 4.4.5.5 Where the front yard is provided, it shall be landscaped in accordance with the provisions of Section 11: Community Architectural and Urban Design Standards.
- 4.4.5.6 The Town may permit landscaping within the road right of way.
- 4.4.5.7 Landscaping within the road right of way shall not count towards the minimum 25% landscaped area; however, the plantings may be counted towards the total required trees and

shrubs at the discretion of the Development Authority.

4.4.6 Dwelling Units and Tourist Homes

- 4.4.6.1 A maximum of 50% of the total GFA of the building(s) on-site may be used for residential Dwelling Units and/or Tourist Home purposes. The Development Authority may consider relaxation of this limit where Dwelling Units are designed into the attic space under pitched roofs per 4.4.12.1.
- 4.4.6.2 A Tourist Home shall not be located on the main floor of a building.
- 4.4.6.3 Dwelling Units, Tourist Home and Visitor Accommodation units may occupy the same building; however, all must have separate and distinct entrances and circulation areas. Tourist Home units and Dwelling Units must also be separate from any commercial component of the building.
- 4.4.6.4 Where a Dwelling Unit and/or Tourist Home is proposed, the Development Authority shall require private outdoor Amenity Space in accordance with Subsection 8.7.
- 4.4.6.5 The maximum GFA of a Dwelling Unit or Tourist Home shall be 75.0 m².
- 4.4.6.6 Notwithstanding 4.4.6.1, 4.4.6.2, and 4.4.6.5, a Care Facility may occupy 100% of the GFA of a development, may be permitted on the main floor, and has no size restriction.
- 4.4.6.7 Employee Housing, Staff Accommodation, Temporary Staff Housing and Perpetually Affordable Housing shall not be counted towards the maximum residential GFA.

4.4.7 Employee Housing, Staff Accommodation and Temporary Staff Housing

- 4.4.7.1 Employee Housing, Staff Accommodation, and Temporary Staff Housing units may be permitted on the ground floor of a building where, in the opinion of the Development Authority, the proposed location and building design do not function well as business frontage.
- 4.4.7.2 Where provided, Staff Accommodation and Employee Housing units shall be integrated into the development. When integrated into the principal building, Staff Accommodation and Employee Housing units shall be functionally separated from Visitor Accommodation units and/or other commercial uses.
- 4.4.7.3 The conversion of a Visitor Accommodation unit to Temporary Staff Housing may be allowed, at the discretion of the Development Authority, where the unit is registered in a qualified staff housing program or where a set of eligibility criteria are established and appropriate restrictions are imposed on the unit.
- 4.4.7.4 Temporary Staff Housing is not required to be separate from Visitor Accommodation units, other commercial uses or residential uses.
- 4.4.7.5 Permits for Temporary Staff Housing may be granted for up to three (3) years in this District and may be renewed at the discretion of the Development Authority.

4.4.8 Perpetually Affordable Housing (PAH)

- 4.4.8.1 Perpetually Affordable Housing units are not subject to 4.4.6.
- 4.4.8.2 Perpetually Affordable Housing units may be permitted on the main floor of a building where, in the opinion of the Development Authority, the building design and proposed location does not function well as business frontage.

4.4.9 Use-Specific Regulations

- 4.4.9.1 Where an Office use is proposed, at least 51% of the GFA for the Office use within a development shall be located above the ground floor.
- 4.4.9.2 The maximum size of an Office use on the ground floor shall be 250 m², with any additional space to be located above the ground floor.
- 4.4.9.3 The maximum GFA of a Retail Sales development shall be 150 m². Where an application is made for Retail Sales and its primary purpose is to provide a service to visitors, a total GFA may be permitted up to a maximum of 300 m². [2021-24]

4.4.10 Parking, Loading, Storage, Waste and Recycling

- 4.4.10.1 All parking and loading areas not incorporated into the building or a Parking Structure shall be visually screened with fencing or landscaping so as to screen it from view from the street to the satisfaction of the Development Authority.
- 4.4.10.2 Except for Dwelling Units and Tourist Homes, the Development Authority may allow a portion of the parking required by a development to be provided in an off-site location within the BVT-C, BVT-G, or BVT-T Districts.
- 4.4.10.3 For Visitor Accommodation uses, on-site surface parking must be provided for anticipated over-sized vehicles or vehicles powered by propane.
- 4.4.10.4 Solid waste containers, grease containers, recycling c Retail Sales ontainers, and waste material shall be stored either inside a principal building or, at the discretion of the Development Authority, in a weatherproof and animal-proof enclosure.
- 4.4.10.5 Enclosures shall be designed and located to be visually integrated with the site.
- 4.4.10.6 All Outdoor Storage is prohibited.

4.4.11 Wellhead Protection

- 4.4.11.1 Notwithstanding the regulations and the permitted and discretionary uses of this District, developments located within the Wellhead Protection Area shall conform to the regulations and use prohibitions described in Subsection 7.4.2.

4.4.12 Special Variance Considerations

- 4.4.12.1 Notwithstanding the variance regulations set out in 1.14, the following variances may also be considered within this District:
 - a. Where the Development Authority is satisfied that the architectural integrity of a

building would be enhanced, variances may be granted to allow 20% of the building to exceed the maximum height by up to 20%.

- b. The required eave line height of a proposed development may be raised to 9.0 m where the Development Authority is satisfied that the intent of the “Massing and Scale Guidelines” in Section 11: Community Architectural and Urban Design Standards are still met.
- c. The Development Authority may vary 4.4.6.1 to allow greater than 50% of the GFA of a development to be Dwelling Units or Tourist Homes where the units are designed into the attic space under pitched roofs.

4.5 BVT-T BOW VALLEY TRAIL TEEPEE TOWN COMMERCIAL DISTRICT

Purpose

The purpose is to provide for a range and scale of services oriented to visitors and residents along Bow Valley Trail that also respects the adjacent residential development in the Teepee Town area.

4.5.1 Permitted Uses

Amusement Arcade
Arts and Crafts Studio
Athletic and Recreational Facility, Indoor
Convention Facility
Eating and Drinking Establishment
Entertainment Establishment
Essential Public Service
Home Occupation - Class 1
Medical Clinic
Office
Open Space
Personal Service Business
Perpetually Affordable Housing
Public Building
Public Utility
Retail Sales
Veterinary Clinic
Visitor Accommodation

4.5.2 Discretionary Uses

Accessory Building
Administrative/Sales Office [2020-16]
Apartment Building
Brewery/Distillery
Campground
Cannabis Retail Store
Care Facility
Common Amenity Housing
Cultural Establishment
Day Care
Educational Institution
Employee Housing
Home Occupation - Class 2
Hostel
Laundry Facility
Light Manufacturing
Liquor Store
Staff Accommodation

Taxi Stand
Temporary Staff Housing
Tourist Home
Transportation Terminal
Warehouse

4.5.3 Regulations

- 4.5.3.1 The minimum site area shall be 1,000 m².
- 4.5.3.2 The minimum site width shall be 30 m.
- 4.5.3.3 The minimum FAR shall be 0.75.
- 4.5.3.4 The maximum FAR shall be 1.25.
- 4.5.3.5 The maximum site coverage of all buildings shall be 55%.
- 4.5.3.6 The front yard setback shall be 4.5 m.
- 4.5.3.7 The minimum rear yard setback shall be 6.0 m.
- 4.5.3.8 The minimum side yard setback shall be 3.0 m.
- 4.5.3.9 The maximum building height shall be 12.0 m or three storeys, whichever is less.
- 4.5.3.10 The maximum eaveline height is 7.0 m.
- 4.5.3.11 Floor area above the eaveline shall be incorporated into the roof structure and step back from the front building face for a minimum of 70% of the elevation.
- 4.5.3.12 A minimum of 25% of the site shall be landscaped in accordance with Subsection 4.5.6 and Section 11: Community Architectural and Urban Design Standards.
- 4.5.3.13 Developments shall conform to Section 11: Community Architectural and Urban Design Standards and the regulations of this section. Where there is a conflict between Section 11 and this section, this section shall prevail.

4.5.4 Use-Specific Regulations

- 4.5.4.1 The maximum GFA of a Cannabis Retail Store is 150 m².
- 4.5.4.2 The maximum GFA of a Liquor Store is 150 m².
- 4.5.4.3 The maximum GFA of a Retail Sales development is 300 m². Where an application is made for Retail Sales, the applicant must demonstrate to the Development Authority's satisfaction that the proposed business is oriented to visitors.
- 4.5.4.4 The maximum GFA of a Warehouse development is 250 m².
- 4.5.4.5 A Light Manufacturing development may include up to 200 m² of Retail Sales as an accessory use.
- 4.5.4.6 A minimum of 51% of the GFA of an Office development shall be located above the ground

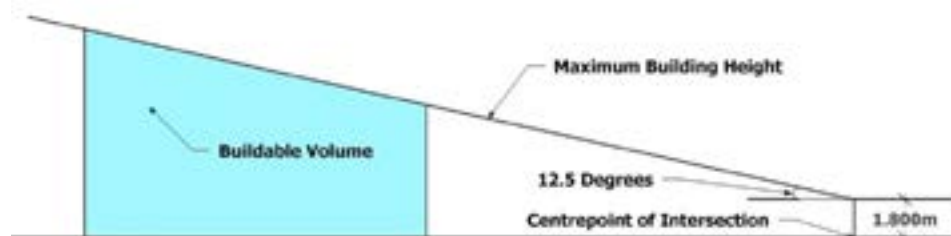
floor.

- 4.5.4.7 The maximum size of an Office development when located on the ground floor is 250 m². Additional GFA for this use shall only be provided above the ground floor.
- 4.5.4.8 A maximum of 50% of the total GFA of the building(s) on-site may be used for residential units, including Tourist Home units. The Development Authority may consider relaxation of this limit where Dwelling Units are designed into the attic space under pitched roofs.
- 4.5.4.9 Notwithstanding 4.5.4.8, a Care Facility and/or a Perpetually Affordable Housing development may occupy 100% of the GFA of a development, may be permitted on the ground floor, and is not subject to any size restriction.
- 4.5.4.10 The maximum size of a Tourist Home or Dwelling Unit shall be 75.0 m².
- 4.5.4.11 Tourist Home units shall not be located on the ground floor of a mixed-use building.
- 4.5.4.12 Tourist Home and Visitor Accommodation units may occupy the same building as other Dwelling Units; however, all must have separate and distinct entrances and circulation areas.
- 4.5.4.13 Tourist Home units and other Dwelling Units must be separated from any commercial use of a building.
- 4.5.4.14 Where Tourist Home or other Dwelling Units are proposed, the Development Authority shall require private outdoor Amenity Space in accordance with Subsection 8.7.

4.5.5 Design Requirements

- 4.5.5.1 A pedestrian-oriented streetscape shall be established to allow for or encourage pedestrian traffic. The streetscape shall incorporate design elements such as: wide sidewalks, separation of pedestrian use areas from vehicle use areas, outdoor furniture, patios, pedestrian scale street lighting, bicycle parking, canopies, vestibules, formal trail connections, façade treatments that are sensitive to sidewalk location on a site specific basis, and permeability of facades by the use of glass and doors subject to Section 11: Community Architectural and Urban Design Standards for Commercial Development .
- 4.5.5.2 Notwithstanding 4.5.5.1, mountain vistas shall be preserved at the intersection of Bow Valley Trail with 17th Street by retaining a minimum sight angle of 12.5° over all buildings on lots adjacent to the intersections. The sight angle shall be measured from a horizontal plane established from a point 1.8 m above the centre-point of these intersections.

Figure 4.5-1. Minimum sight angle



4.5.5.3 Signs shall not be oriented to or be legible from the Trans Canada Highway.

4.5.5.4 Developments abutting residential districts shall be designed and constructed as follows:

- a. Where a proposed development is adjacent to or across a lane from a residential district, the façade facing the residential district shall be considered an additional “frontage” for the purposes of architectural design and materials.
- b. Mechanical equipment shall not be mounted on walls adjacent to or across a lane from a residential district.

4.5.6 Landscaping

4.5.6.1 Outdoor Amenity Space including, but not limited to, plazas, patios, and other pedestrian gathering places may be substituted for some natural landscaping to the extent that it achieves a blend of natural environment and value as a people place.

4.5.6.2 Outdoor Amenity Space must be located adjacent to a sidewalk or public trail in order to be considered as landscaping.

4.5.6.3 Areas devoted to the parking or circulation of motor vehicles shall not be counted towards the minimum 25% landscaped area.

4.5.6.4 Areas devoted to the parking of bicycles may, at the discretion of the Development Authority, be counted towards the minimum 25% landscaped area.

4.5.6.5 A minimum of 50% of the front yard shall be natural landscaping in accordance with the provisions of Section 11: Community Architectural and Urban Design Standards.

4.5.6.6 The Town may permit landscaping within the road right of way.

4.5.6.7 Landscaping within the road right of way shall not count towards the minimum 25% landscaped area; however, the plantings may be counted towards the total required trees and shrubs at the discretion of the Development Authority.

4.5.7 Employee Housing, Staff Accommodation and Temporary Staff Housing

4.5.7.1 Employee Housing, Staff Accommodation, Temporary Staff Housing and Perpetually Affordable Housing units shall not be counted towards the maximum residential GFA set out in 4.5.4.8.

4.5.7.2 Employee Housing must be restricted for the exclusive use of employees as defined in Section 13, to the satisfaction of the Development Authority.

4.5.7.3 Employee Housing, Staff Accommodation, and Temporary Staff Housing units may be located on the ground floor of a building where, in the opinion of the Development Authority, the proposed location and building design do not function well as business frontage.

4.5.7.4 Staff Accommodation and Employee Housing shall be integrated into the development. When integrated into the principal building, Staff Accommodation shall be functionally separated from Visitor Accommodation units and/or other commercial uses.

4.5.7.5 The conversion of a Visitor Accommodation unit to Temporary Staff Housing may be allowed,

at the discretion of the Development Authority, where the unit is registered in a qualified staff housing program or where a set of eligibility criteria are established and appropriate restrictions are imposed on the unit.

- 4.5.7.6 Temporary Staff Housing is not required to be separate from Visitor Accommodation units, other commercial uses or residential uses.
- 4.5.7.7 Permits for Temporary Staff Housing may be granted for up to three (3) years in this District. Consecutive permits valid for of up to three (3) years each may be granted at the discretion of the Development Authority.

4.5.8 Parking, Loading and Storage

- 4.5.8.1 All parking and loading areas not incorporated into the building or a Parking Structure shall be provided at the side and/or the rear of the site.
- 4.5.8.2 All parking and loading areas not incorporated into the building or a Parking Structure shall be visually screened with fencing or landscaping so as to screen it from view from the street to the satisfaction of the Development Authority.
- 4.5.8.3 No more than four (4) parking stalls, or two (2) parking stalls and a loading bay, shall have direct access to a lane from the rear of a development. Additional parking stalls or loading bays shall be accessed by a driveway and be screened from the lane to the satisfaction of the Development Authority.
- 4.5.8.4 Except for Dwelling Units and Tourist Home developments, the Development Authority may allow a portion of the parking required by a development to be provided in an off-site location within the BVT-C, BVT-G, or BVT-T Districts.
- 4.5.8.5 For Visitor Accommodation uses, up to 30% of the required parking can be provided through dedicated bus parking, provided that adequate bus maneuvering space is incorporated into the site design. One bus parking stall shall be equivalent to fifteen (15) car parking stalls for the purpose of calculating total required parking.
- 4.5.8.6 For Visitor Accommodation uses, on-site surface parking must be provided for anticipated over-sized vehicles or vehicles powered by propane.
- 4.5.8.7 Solid waste containers, grease containers, recycling containers, and waste material shall be stored either inside a principal building or, at the discretion of the Development Authority, in a weatherproof and animal-proof enclosure. Enclosures shall be designed and located to be visually integrated with the site.
- 4.5.8.8 Outdoor Storage is prohibited.

4.5.9 Special Variance Considerations

- 4.5.9.1 Notwithstanding the variance regulations set out in 1.14, the following variances may also be considered within this District:
 - a. Where the Development Authority is satisfied that the architectural integrity of a building would be enhanced, variances may be granted to allow 10% of the building to

04 COMMERCIAL LAND USE DISTRICTS

exceed the maximum height by up to 10%. No height variances shall be granted beyond the 10%.

4.6 BVT-G BOW VALLEY TRAIL GENERAL COMMERCIAL DISTRICT

Purpose

This District is intended to form the core of Canmore's Visitor Accommodation outside the resorts and provide a variety of commercial uses including visitor-oriented services and activities, and small retail outlets that serve both residents and visitors.

4.6.1 Permitted Uses

Amusement Arcade
Arts and Crafts Studio
Athletic and Recreation Facility, Indoor
Convention Facility
Eating and Drinking Establishment
Entertainment Establishment
Home Occupation – Class 1
Hostel
Medical Clinic
Open Space
Perpetually Affordable Housing
Personal Service Business
Public Building
Public Utility
Retail Sales
Veterinary Clinic
Visitor Accommodation

4.6.2 Discretionary Uses

Accessory Building
Administrative/Sales Office
Automotive Sales and Rentals
Brewery/Distillery [2020-19]
Campground
Cannabis Retail Store
Care Facility
Common Amenity Housing
Cultural Establishment
Day Care
Drive-In/Drive-Through Food Service [2020-19]
Dwelling Unit (above the ground floor) [2020-16]
Employee Housing
Essential Public Service
Funeral Home
Gas Bar and Service Station
Home Occupation - Class 2
Kennel
Laundry Facility

Light Manufacturing [2020-19]

Liquor Store

Logging Operation

Office

Pet Care Facility

Printing Establishment

Staff Accommodation

Taxi Stand

Temporary Business

Temporary Staff Housing

Tourist Home

Transportation Terminal

Wholesale Sales [2021-21]

Warehouse

4.6.3 Regulations

- 4.6.3.1 The minimum site area shall be 1000 m².
- 4.6.3.2 The minimum site width shall be 30 m.
- 4.6.3.3 The minimum FAR shall be 0.75.
- 4.6.3.4 The maximum FAR shall be 1.5.
- 4.6.3.5 The maximum site coverage of all buildings shall be 55%.
- 4.6.3.6 The minimum front yard setback shall be as follows:
 - a. Fronting on to Bow Valley Trail: to be characterized by a street-oriented building design located no more than 2.0 m from the property line
 - b. All other locations: 3.0 m
- 4.6.3.7 Buildings must be constructed to the front yard setback for a minimum 20% of the building, except where pedestrian infrastructure or hardscaping (e.g. plaza, seating) is provided.
- 4.6.3.8 The minimum rear yard setback shall be 6.0 m.
- 4.6.3.9 The minimum side yard setback shall be 3.0 m.
- 4.6.3.10 Notwithstanding the yard setbacks above, all development shall be set back from the Trans Canada right of way by a minimum 15.0 m.
- 4.6.3.11 The maximum building height is 16.0 m.
- 4.6.3.12 The maximum eaveline height is 7.0 m.
- 4.6.3.13 Floor area above the eaveline shall be incorporated into the roof structure and step back from the front building face for a minimum of 70% of the elevation.
- 4.6.3.14 Developments shall conform to Section 11: Community Architectural and Urban Design Standards and the regulations of this section. Where there is a conflict between Section 11

and this section, this section shall prevail.

4.6.4 Use-Specific Regulations

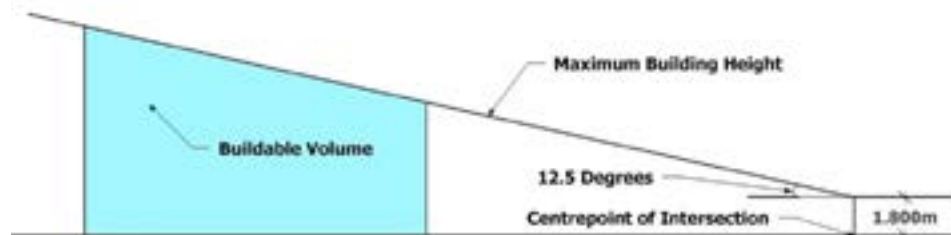
- 4.6.4.1 The maximum GFA of a Cannabis Retail Store is 150 m².
- 4.6.4.2 The maximum GFA of a Liquor Store is 150 m².
- 4.6.4.3 The maximum size of an Office development when located on the ground floor is 250 m². Additional GFA for this use shall only be provided above the ground floor.
- 4.6.4.4 The maximum GFA of a Retail Sales development shall be 150 m². Where an application is made for Retail Sales and its primary purpose is to provide a service to visitors, a total GFA may be permitted up to a maximum of 300 m². **[2021-24]**
- 4.6.4.5 Wholesale Sales shall only be permitted when as part of a mixed-use development that includes Perpetually Affordable Housing, Employee Housing, or Common Amenity Housing at a ratio of 1 Bedroom per 20 m² of Wholesale Sales area, rounded up to the nearest full bedroom. The maximum GFA of a Wholesale Sales is 950 m². **[2021-21]**
- 4.6.4.6 The maximum GFA of a Warehouse development is 250 m². An increase of up to 250 m² is permitted where the Warehouse is accessory to a Wholesale Sales development, and the development includes Perpetually Affordable Housing, Employee Housing, or Common Amenity Housing at a ratio of 1 Bedroom per 10 m² of Warehouse area, rounded up to the nearest full bedroom. **[2021-21]**
- 4.6.4.7 A Light Manufacturing development may include up to 200 m² of Retail Sales as an accessory use.
- 4.6.4.8 A Gas Bar and Service Station shall be located south of Benchlands Trail only.
- 4.6.4.9 A Drive-In/Drive-Through Food Service development shall be located north of 17th Street only.
- 4.6.4.10 A Dwelling Unit, including Employee Housing or Tourist Home unit(s), shall be located above the ground floor and outside the 30 NEF contour only.
- 4.6.4.11 Except as allowed in sections 4.6.4.5 and 4.6.4.6, a maximum of 50% of the total GFA of the building(s) on-site may be used for residential units, including Tourist Home units. The Development Authority may consider relaxation of this limit where Dwelling Units are designed into the attic space under pitched roofs. **[2021-21]**
- 4.6.4.12 Notwithstanding 4.6.4.11, a Care Facility and/or a Perpetually Affordable Housing development may occupy 100% of the GFA of a development, may be permitted on the main floor, and is not subject to any size restriction.
- 4.6.4.13 The maximum size of a Tourist Home or other Dwelling Unit shall be 75.0 m².
- 4.6.4.14 Tourist Home units shall not be located on the main floor of a mixed-use building.
- 4.6.4.15 Tourist Home and Visitor Accommodation units may occupy the same as other Dwelling Units; however, all must have separate and distinct entrances and circulation areas.

- 4.6.4.16 Tourist Home units and other Dwelling Units must be separated from any commercial use of a building.
- 4.6.4.17 Where Tourist Home or other Dwelling Units are proposed, the Development Authority shall require private outdoor Amenity Space in accordance with Subsection 8.7.
- 4.6.4.18 Where Common Amenity Housing or Employee Housing is developed, Section 8.7 shall not be required, except that the development authority may require the amenities listed in Section 8.7.0.3.[2021-21]
- 4.6.4.19 Employee Housing, Common Amenity Housing, or Perpetually Affordable Housing required to be constructed as part of a statutory plan, condition of development permit approval, or other forms of commitment, are not eligible for the development bonuses outlined in 4.6.4.5, 4.6.4.6, and 4.6.9.1.c.[2021-21]

4.6.5 Design Requirements

- 4.6.5.1 A pedestrian-oriented streetscape shall be established to allow for or encourage pedestrian traffic. The streetscape shall incorporate design elements such as: wide sidewalks/paths (minimum width of 2.0 m), separation of pedestrian use areas from motor vehicle use areas, outdoor furniture, patios, pedestrian scale street lighting, bicycle parking, canopies, vestibules, formal trail connections, façade treatments that are sensitive to sidewalk location on a site specific basis, and permeability of facades by the use of glass and doors subject to Section 11: Community and Architectural Design Standards.
- 4.6.5.2 Notwithstanding 4.6.3.11, mountain vistas shall be preserved at the intersections of Bow Valley Trail with Benchlands Trail and Bow Valley Trail with 17th Street by retaining a minimum sight angle of 12.5° over all buildings on lots adjacent to the intersections. The sight angle shall be measured from a horizontal plane established from a point 1.8 m above the centre-point of these intersections.

Figure 4.6-1. Minimum sight angle



- 4.6.5.3 Signage shall not be oriented to or be legible from the Trans-Canada Highway.
- 4.6.5.4 Where a development is adjacent to the CP Rail right of way or adjacent to a portion of a public pathway system which is adjacent to that right of way, the developer shall construct a fence adjacent to the CP Rail right of way to restrict pedestrian access to the satisfaction of the Development Authority.
- 4.6.5.5 When along Bow Valley Trail, the ground floor of developments for sites lower than the crown of road should be raised to be closer to the elevation of the crown of the road. Where sites are raised to bring the ground floor of the building closer to the elevation of the crown of Bow

Valley Trail, the Development Authority shall use this new grade as the basis for calculating height.

4.6.6 Landscaping

- 4.6.6.1 A minimum of 25% of the site shall be landscaped in accordance with Section 11: Community and Architectural Design Standards.
- 4.6.6.2 Outdoor Amenity Space including, but not limited to, plazas, patios, and other pedestrian gathering places may be substituted for some natural landscaping to the extent that it achieves a blend of natural environment and value as a people place. Outdoor Amenity Space must be located adjacent to a sidewalk or public trail in order to be considered as landscaping.
- 4.6.6.3 Areas devoted to the parking or circulation of motor vehicles shall not be counted towards the minimum 25% landscaped area.
- 4.6.6.4 Areas devoted to the parking of bicycles may, at the discretion of the Development Authority, be counted towards the minimum 25% landscaped area.
- 4.6.6.5 Where the front yard is provided, it shall be landscaped in accordance with the provisions of Section 11: Community Architectural and Urban Design Standards.
- 4.6.6.6 The Town may permit landscaping within the road right of way.
- 4.6.6.7 Landscaping within the road right of way shall not count towards the minimum 25% landscaped area; however, the plantings may be counted towards the total required trees and shrubs at the discretion of the Development Authority.

4.6.7 Parking, Loading, Storage, Waste and Recycling

- 4.6.7.1 All parking and loading areas not incorporated into the building or a Parking Structure shall be visually screened with fencing or landscaping so as to screen it from view from the street to the satisfaction of the Development Authority.
- 4.6.7.2 Except for Dwelling Units and Tourist Home developments, the Development Authority may allow a portion of the parking required by a development to be provided in an off-site location within the BVT-C, BVT-G, or BVT-T Districts.
- 4.6.7.3 For Visitor Accommodation uses, on-site surface parking must be provided for anticipated over-sized vehicles or vehicle powered by propane.
- 4.6.7.4 Solid waste containers, grease containers, recycling containers, and waste material shall be stored either inside a principal building or, at the discretion of the Development Authority, in a weatherproof and animal-proof enclosure.
- 4.6.7.5 Enclosures shall be designed and located to be visually integrated with the site.
- 4.6.7.6 All Outdoor Storage is prohibited.

4.6.8 Wellhead Protection

- 4.6.8.1 Notwithstanding the regulations and the permitted and discretionary uses of this District,

developments located within the Wellhead Protection Area shall conform to the regulations and use prohibitions described in Subsection 7.4.2.

4.6.9 Special Variance Considerations

4.6.9.1 Notwithstanding the variance regulations set out in 1.14, the following variances may also be considered within this District:

- a. Where the Development Authority is satisfied that the architectural integrity of a building would be enhanced, variances may be granted to allow 20% of the building to exceed the maximum height by up to 20%. No height variances shall be granted beyond the 20% relaxation.
- b. The required eave line height of a proposed development may be raised to 9.0 m where the Development Authority is satisfied that the intent of the “Massing and Scale Guidelines” in Section 11: Community Architectural and Urban Design Standards, are still met.
- c. The required eave line height of a proposed mixed-use development which includes Perpetually Affordable Housing, Employee Housing, or Common Amenity Housing above the main floor, may be raised to 11.0 m where:
 - i. the development includes a full story dedicated to Perpetually Affordable Housing, Employee Housing, or Common Amenity Housing above the main floor,
 - ii. where the Development Authority is satisfied that the intent of the “Massing and Scale Guidelines” in Section 11: Community Architectural and Urban Design Standards are met, and
 - iii. where the Development Authority is satisfied that there is no impact on access to light for neighbouring properties, the protection of views from neighbouring properties and the privacy for neighbouring properties.[2021-21]

4.7 CC LOCAL COMMERCIAL DISTRICT

Purpose

To allow for a limited range of moderate scale commercial establishments which provide services oriented primarily to the residents of neighbourhoods in the general vicinity of the District. The Local Commercial Districts is also intended to provide residents with basic retail, personal and food services that can be readily accessed without motorized transportation.

4.7.1 Permitted Uses

Athletic and Recreational Facility, Indoor

Cultural Establishment

Day Care

Dwelling Unit (when located above commercial uses)

Eating and Drinking Establishment

Home Occupation - Class 1

Medical Clinic

Open Space

Personal Service Business

Public Building

Retail Sales

4.7.2 Discretionary Uses

Accessory Building

Administrative/Sales Office [2020-16]

Amusement Arcade

Cannabis Retail Store

Educational Institution

Employee Housing

Home Occupation - Class 2

Laundry Facility

Liquor Store

Office

4.7.3 Regulations

4.7.3.1 The minimum lot area shall be 900 m².

4.7.3.2 The maximum lot area shall be 8000 m².

4.7.3.3 The minimum lot width shall be 30.5 m.

4.7.3.4 The minimum front yard setback shall be 4.5 m.

4.7.3.5 The minimum side yard setback abutting a residential district shall be 1.5 m.

4.7.3.6 The minimum rear yard setback abutting a residential district shall be 6.0 m.

4.7.3.7 The maximum building height shall be 11.0 m with a maximum eaveline of 7.0 m.

4.7.3.8 The minimum landscaped area shall be 15% of the site plus adjoining boulevards.

4.7.4 Use-Specific Regulations

- 4.7.4.1 The maximum GFA of a Cannabis Retail Store is 150 m².
- 4.7.4.2 The maximum GFA of a Liquor Store is 150 m².
- 4.7.4.3 The maximum GFA of a Medical Clinic is 150 m².
- 4.7.4.4 The maximum size of an Office development when located on the ground floor is 250 m². Additional GFA for this use shall only be provided above the ground floor.
- 4.7.4.5 The maximum GFA of a Retail Sales development is 150 m².
- 4.7.4.6 Dwelling Units, including Employee Housing units, shall:
 - a. Not be located below the second storey of a building;
 - b. Not be located on the same floor as a non-residential use other than a Home Occupation;
 - c. Have a density that does not exceed 40 units per hectare.

4.7.5 Site Design

- 4.7.5.1 All developments shall abut a collector or arterial road.
- 4.7.5.2 Garbage containers and waste material shall be stored either inside a principal building or, at the discretion of the Development Authority, in a weatherproof and animal-proof garbage enclosure if such an enclosure is required to accommodate a Town-approved solid waste management system.
- 4.7.5.3 Garbage enclosures shall be designed and located to be visually integrated with the site.

4.8 TBD TRANSITION BUSINESS DISTRICT

Purpose

To provide for development in the Aspen Park area that provides a transition between industrial and business uses and is compatible with the adjacent commercial and residential areas.

4.8.1 Permitted Uses

Amusement Arcade
Arts and Crafts Studio
Athletic and Recreational Facility, Indoor
Athletic and Recreational Facility, Outdoor
Contractor Service and Repair
Eating and Drinking Establishment
Entertainment Establishment
Open Space
Personal Service Business
Printing Establishment
Public Building
Public Utility
Veterinary Clinic

4.8.2 Discretionary Uses

Accessory Building
Administrative/Sales Office
Automotive Sales and Rentals
Brewery/Distillery
Cultural Establishment
Day Care
Educational Institution
Employee Housing
Financial Institution
Funeral Home
Industrial Sales and Rentals
Light Manufacturing
Logging Operation
Medical Clinic
Office
Recycling Depot
Retail Sales
Warehouse
Wholesale Sales

4.8.3 Regulations

4.8.3.1 The minimum site area shall be 550 m².

- 4.8.3.2 The minimum site width shall be 15.0 m.
- 4.8.3.3 The maximum FAR shall be 1.5.
- 4.8.3.4 The maximum building height shall be 11.0 m
- 4.8.3.5 The minimum front yard setback shall be 7.5 m.
- 4.8.3.6 The maximum eaveline height shall be 2 storeys or 7.0 m.

4.8.4 Use-Specific Regulations

- 4.8.4.1 The maximum GFA of a Retail Sales development is 150 m².
- 4.8.4.2 Where an Office development is approved within the District, a minimum of 51% of the Office space shall be located above the ground floor. The maximum size of an Office on the ground floor shall be 100 m².

4.8.5 Design Requirements

- 4.8.5.1 All development in this District shall comply with Section 11: Community Architectural and Design Standards.
- 4.8.5.2 Buildings shall have a roof pitch with a minimum of 6:12 slope, or other slope treatment acceptable to the Development Authority. Dormers or other similar features that break up the roofline shall be provided.
- 4.8.5.3 Site design shall include on-site and off-site pedestrian circulation walkways to the satisfaction of the Development Authority.
- 4.8.5.4 Development shall occur in a manner to allow for and encourage pedestrian circulation through the development to adjacent public sidewalks and trails.
- 4.8.5.5 Parking shall be designed to effectively screen vehicles when viewed from streets. Techniques to achieve this may include structured parking and intensive landscaping.
- 4.8.5.6 Where structured parking is provided, it shall be integrated into the building design, preferably underground.
- 4.8.5.7 Electrical and mechanical equipment located on rooftops shall be enclosed and screened so as not to be visible from public sidewalks and residential areas.
- 4.8.5.8 Signage shall be oriented to the pedestrian sidewalk.
- 4.8.5.9 Outdoor Storage, including the storage of trucks and trailers, may be allowed at the side or rear of buildings provided that:
 - a. Such storage areas do not include any required minimum yards;
 - b. The storage is visually screened from pubic thoroughfares;
 - c. All storage is related to the business or industry on the site; and
 - d. The Outdoor Storage area is not larger than the floor area of the associated business located on-site.

4.8.5.10 Garbage containers and waste material shall be stored either inside a principal building or, at the discretion of the Development Authority, in a weatherproof and animal-proof garbage enclosure if such an enclosure is required to accommodate a Town-approved solid waste management system.

4.8.5.11 Garbage enclosures shall be designed and located to be visually integrated with the site.

4.8.6 Landscaping

4.8.6.1 A minimum of 15% of a site shall be landscaped. Outdoor Amenity Space including, but not limited to, plazas, patios, and other pedestrian gathering places may be substituted for some natural landscaping to the extent that it achieves a blend of natural environment and value as a people place.

4.8.6.2 A minimum of 25% of the front yard must consist of natural landscaping.

4.8.7 Employee Housing

4.8.7.1 Employee Housing may be considered and approved in this District when located above the ground floor of a building and when the following issues can be addressed to the satisfaction of the Development Authority:

- a. Adequate long-term and legally-binding provisions are in place to ensure the units remain as bona fide Employee Housing and are demonstrably subordinate in terms of area and intensity to other uses in the building;
- b. The space proposed for Employee Housing would not be reasonably used for commercial or industrial purposes;
- c. The units are appropriate in design for Employee Housing, particularly with respect to the unit size;
- d. Employee Housing units would not constrain any future permitted or discretionary, commercial or industrial uses from developing on the site or on surrounding areas;
- e. Impacts of existing industrial development in the area, including the adjacent CP Rail line, would not unduly interfere with Employee Housing; and
- f. Outdoor Amenity Space such as balconies can be provided as part of the Employee Housing while meeting all of the above-described requirements in regard to impacts to or from adjacent industrial uses.

4.8.8 Groundwater Protection

4.8.8.1 Developments in this District shall conform to the regulations and use prohibitions described in Subsection 7.4.2 Wellhead Protection Area Regulations.

4.9 TS-GD THREE SISTERS GATEWAY COMMERCIAL DISTRICT

Purpose

To provide for a range of commercial, entertainment, cultural and residential uses in a comprehensively planned area that is designed to encourage new commercial, visitor markets and reduce leakage from Canmore. This District is intended to accommodate commercial development, primarily retail, personal services, entertainment and office uses on comprehensively designed sites. Residential, institutional, Visitor Accommodation and recreational uses should be encouraged and supported to complement core commercial development in mixed use buildings. This District is intended to complement commercial activity in the existing Town Centre.

4.9.1 Permitted Uses

Amenity Space/Plaza
Amusement Arcade
Arts and Crafts Studio
Athletic and Recreational Facility, Indoor
Athletic and Recreational Facility, Outdoor
Cultural Establishment
Day Care
Dwelling Unit (above the ground floor)
Eating and Drinking Establishment
Educational Institution
Employee Housing
Entertainment Establishment
Financial Institution
Home Occupation – Class 1
Hostel
Laundry Facility
Live/Work Studio
Medical Clinic
Office
Open Space
Personal Service Business
Printing Establishment
Public Building
Public Utility
Resort Accommodation - TSMV
Retail Sales (GFA up to 2000m²)
Temporary Business
Tourist Home
Transportation Terminal
Visitor Accommodation

4.9.2 Discretionary Uses

Accessory Building

Administrative/Sales Office
Apartment Building
Automotive Sales and Rental
Brewery/Distillery [2002-19]
Cannabis Retail Store (maximum GFA 150m²)
Drive-in/Drive-through Food Service [2002-19]
Gas Bar and Service Station
Home Occupation – Class 2
Light Manufacturing [2002-19]
Liquor Store
Logging Operation
Retail Sales (GFA greater than 2000m² to 5000m²)
Townhouse
Townhouse, Stacked

4.9.3 Regulations

- 4.9.3.1 The maximum GFA ratio shall be two times the site area, except in areas that have not been subdivided, where the maximum GFA shall be determined based on the extent of construction.
- 4.9.3.2 The maximum GFA for commercial uses shall be 32,515 m².
- 4.9.3.3 The front setback shall be the back of the sidewalk where the Development Authority is satisfied that the building provides sufficient architectural features and articulation in accordance with 4.9.5.3b.
- 4.9.3.4 The minimum rear yard setback shall be 10.0 m where a yard abuts a residential district.
- 4.9.3.5 The minimum side yard setback shall be 3.0 m where a yard abuts a residential district.
- 4.9.3.6 The maximum building height shall be 16.0 m or three storeys plus loft.
- 4.9.3.7 The maximum building height of a Landmark building, as defined in 4.9.5.1, may be 22.0 m for a maximum of 25% of the roof area.
- 4.9.3.8 The maximum base eaveline height shall be 7.0 m for a portion of the roof.
- 4.9.3.9 The overall maximum eaveline height shall ensure that a substantial pitched roof element comprises the significant majority of the roof to meet the intent of the “Massing and Scale Guidelines” in Section 11: Community Architectural and Urban Design Standards, to the satisfaction of the Development Authority.
- 4.9.3.10 A minimum of 20% of the site area shall be landscaped.

4.9.4 Use Performance Guidelines

- 4.9.4.1 The maximum GFA of an Automotive Sales and Rentals development is 150 m².
- 4.9.4.2 The maximum GFA of a Cannabis Retail Store development is 150 m².
- 4.9.4.3 The maximum GFA of a Printing Establishment is 150 m².

- 4.9.4.4 The maximum GFA of a Retail Sales development is 5,000 m².
- 4.9.4.5 A residential use in a mixed-use building shall comprise a minimum of 20% of the GFA of the commercial uses.
- 4.9.4.6 A maximum of 20% of the ground floor area of a building along the principal commercial street may be occupied for Office purposes.
- 4.9.4.7 Buildings along the principal commercial street should be predominantly mixed-use buildings. For purposes of this Bylaw, a principal commercial street is defined as a vehicular / pedestrian thoroughfare containing the primary commercial or other activity frontage within the comprehensive development area.
- 4.9.4.8 Dwelling Units shall not be located below the second storey of a building along the principal commercial street. Live/Work Studios shall be restricted to street level locations.
- 4.9.4.9 A Temporary Business can be erected in the district area for commercial uses and for the purpose of assembly, recreational, social, educational events in accordance with Section 2: General Regulations.
- 4.9.4.10 Any single commercial retail space larger than 2000 m² shall require a retail impact study to be retained and managed by the Town of Canmore, but paid for by the applicant, and consider prior retail impact analyses. Where an undue economic impact on existing commercial areas in the Downtown (TC District) and Gateway (GD District) is identified, measures such as the following may be undertaken:
- a. Restrictions on particular commercial uses;
 - b. Restrictions on the size of commercial uses or types of uses;
 - c. Phasing of commercial development with the area;
 - d. Other methods deemed mutually acceptable to the Town of Canmore and the Developer/Applicant; or
 - e. Refusal of Development Permit.
- 4.9.4.11 Where commercial tenancy in a single commercial retail space over 2000 m² changes, a revised retail impact study may be required at the discretion of the Town of Canmore.

4.9.5 Urban Design Guidelines

- 4.9.5.1 The site layout shall:
- a. Outline the principal commercial street.
 - b. Utilize building placement and appropriate urban and architectural design features to promote a sense of arrival at the entrance to the development and to create a formal landmark / focal point at the south end of the Principal commercial street. Landmark buildings may be utilized to achieve the appropriate entry condition and focal point at the south end of the principal commercial street. For purposes of this District a landmark building shall normally comprise a freestanding commercial building which is significantly taller than surrounding buildings and exhibit enhanced architectural detailing in order to create the necessary distinction. Where the Development Authority

is satisfied that the intent of a Landmark Building is met, a maximum of 25% of the roof area may exceed the maximum building height to a maximum of 22.0 m.

- c. Make provision for active space and passive outdoor public space for community activity within the commercial / mixed-use area and encourage the use of building position to create a sense of place and define the space in accordance with Subsection 4.9.6.7, below.

4.9.5.2 Parking Areas

- a. The parking areas shall be predominantly located behind the buildings to the periphery of the site.
- b. [Repealed by 2020-19]
- c. Intercept parking areas to accommodate day use of the resort centre may be constructed within this District and therefore justifies additional parking. These areas may be provided reasonably close to the entrance to the District, or may be located on adjacent areas north of the Parkway connection to the highway, or any location where the applicant can demonstrate that the parking can accommodate the traffic and would be complementary with the commercial development to the satisfaction of the Development Authority.

4.9.5.3 Building Orientation and Design

- a. The primary entry of all buildings shall face a street or a public space.
- b. Ground floor façades along the principal commercial street shall incorporate a high degree of visual interest through articulation including such design features as enhanced building or unit entries, arcades, display windows, porches, patios, projected windows, colonnades and canopies or other such features along no less than 40% of the horizontal length of the building. Horizontal articulation in the façade should be no less than 1.0 m;
- c. Side and rear elevations shall include architectural feature, material and treatment that complement the principal façade of the building;
- d. Buildings shall incorporate through access providing connections to the parking areas behind the principal commercial street.
- e. The integration of sustainable design principles in infrastructure and building design is required. Additional variances for parking, setbacks and building heights may be considered by the Development Authority for “green” buildings.
- f. Prior to the issuance of a Development Permit “green building” standards agreeable to the developer and the Town of Canmore must be established. The agreement will establish construction standards which achieve, as a minimum, a “Built Green” silver certification or equivalent. Monitoring and reporting on compliance with the “green building” standards shall be the responsibility of the developer. The development of standards and the monitoring requirements shall be a condition of any Development Permit issued in this Land Use District.

4.9.5.4 Pedestrian Connections

- a. The Concept Plan shall demonstrate that the concept provides the appropriate

connections to the Stewart Creek trail network. The trail locations shall meet the objectives of the Stewart Creek ASP;

- b. The internal pedestrian connection shall provide direct access to transit routes and efficient connection between the commercial and residential uses and parking areas;
- c. Sidewalks with a minimum of 1.8 m in width shall be provided along the full length of any building facades featuring a customer entrance.

4.9.5.5 Street Design

- a. The street network shall be designed to minimize the impact on the pedestrian connectivity and to take advantage of the significant landmarks and focal points within the bylaw area where appropriate;
- b. The street design should minimize the road width to maintain the connectivity in the plan to the satisfaction of the Development Authority.

4.9.5.6 Transit Node

Provision should be made to accommodate transit operations at the entrance of the District. Transit operation functions could be integrated within a commercial building and / or site and shall provide the appropriate road connections for large vehicle access. These areas may be provided reasonably close to the entrance to the district, or may be located on adjacent areas north of the Parkway connection to the highway, or any location where the applicant can demonstrate that the transit node can accommodate the traffic and would be complementary with the commercial development to the satisfaction of the Development Authority.

4.9.6 Design Requirements

4.9.6.1 All developments shall conform to Section 11: Architectural and Urban Design Standards as a minimum.

4.9.6.2 Architectural controls for development will be developed and administered by the Developer.

4.9.6.3 Where the Development Authority is satisfied that the architectural integrity of a building would be enhanced, variances may be granted to allow 20% of the building to exceed the maximum height by up to 20%.

4.9.6.4 Exceptions to the maximum building height may be permitted to allow vertical architectural feature elements such as spires, towers and iconic building elements. Such structures shall not be signs and shall not comprise more than 5% of the total roof area within this District and are distinct from Landmark buildings as defined in 4.9.5. Proposals for vertical elements which exceed the maximum building height under 4.9.5.1b and other height exceptions pursuant to this provision shall be to the satisfaction of the approving authority.

4.9.6.5 A pedestrian-oriented streetscape shall be established to allow for or encourage pedestrian traffic. The streetscape should incorporate design elements such as: wide sidewalks, outdoor furniture, patios, pedestrian scale street lighting, bicycle parking, canopies, vestibules, formal trail connections, façade treatments that are sensitive to sidewalk location on a site specific basis, and permeability of facades by the use of glass and doors subject to Section 11: Community Architectural and Urban Design Standards.

- 4.9.6.6 The Development Authority may allow a portion of the parking required by the development to be provided in an off-site location.
- 4.9.6.7 The site shall be landscaped in accordance with a comprehensive landscaping plan. Outdoor Amenity Space including, but not limited to, plazas, patios, and other pedestrian gathering places may be substituted for some natural landscaping to the extent that it achieves a blend of environment and value as a people place. Outdoor Amenity Space must be located in proximity to a sidewalk or public trail in order to be considered landscaping.
- 4.9.6.8 Roofs shall reflect function and the architectural requirement and tradition of providing sheltering roofs in a mountain environment, but may also incorporate flat sections where architecturally suitable. The minimum roof pitch shall be 6:12 for all visually prominent portions of the roof and dormers. Roof lines shall be articulated and larger structures shall incorporate roof designs that break up massing and add visual interest.
- 4.9.6.9 Electrical and mechanical equipment located on rooftops shall be enclosed and screened so as not to be visible from public sidewalks or commercial areas of similar elevation.
- 4.9.6.10 Dwelling Units and Tourist Homes shall:
- a. Have an entrance that is separate and distinct from the entrance to any commercial component of the building;
 - b. Not be located on the same floor as a non-residential use unless there is a physical separation of uses and separate entrances to the satisfaction of the Development Authority.
- 4.9.6.11 A comprehensive site signage package including proposed architectural details for freestanding, directional, and fascia signage shall be developed as part of a development permit application.
- 4.9.6.12 Garbage containers and waste material shall be stored either inside a principal building or, at the discretion of the Development Authority, in a weatherproof and animal-proof garbage enclosure as part of an approved collective garbage facility. Garbage enclosures shall be designed and located to be visually integrated with the site

4.9.7 Additional Requirements

- 4.9.7.1 All developments shall conform to Section 2: General Regulations. Where there are contradictions in the regulations, those stated in this District shall take precedence.
- 4.9.7.2 [Repealed by 2020-19]

4.9.8 Concept Plan

- 4.9.8.1 In conjunction with the first Subdivision Plan and/or first Development Permit application, a concept plan shall be submitted to the satisfaction of the Town of Canmore for the entire area of this District conceptually illustrating the proposed:
- a. Building footprint and sizes;
 - b. Principal commercial street, including mixed use buildings;

- c. Parking areas and transit node location;
- d. Internal roads;
- e. Access/egress points;
- f. Regional and internal pathway connections;
- g. Public spaces (which may include community/recreational floor space).

4.9.8.2 The concept plan may be revised and resubmitted to the satisfaction of the Town, as required by the developer, with subsequent Development Permit applications for the site.

4.9.9 Phasing Plan

4.9.9.1 In conjunction with the initial Development Permit application, a Phasing Plan shall be submitted showing:

- a. Phasing of development within the area of this District;
- b. Anticipated GFA of development within each phase.

4.9.10 Slope Stability

4.9.10.1 Alterations of existing natural contours and grades shall occur in accordance with a comprehensive grading plan, which shall take into account drainage and soil erosion.

4.9.10.2 The criteria for building setbacks shall be slope stability.

4.9.11 Entry Level Housing

4.9.11.1 25% of all Residential Units approved by Development Permit during any particular year within the bylaw area must qualify as Entry Level Housing units (single and multi-unit residential projects) under the terms set out within the Town of Canmore Bylaw 1-98(DC).

4.9.11.2 Provision of PAH units shall be creditable towards the required Entry Level Housing at a ratio mutually agreeable to the Town of Canmore and the applicant at the subdivision or Development Permit stage. The PAH ratio shall be significantly lower than the entry-level ratio, notwithstanding a minimum of ratio 5% of all residential units within the bylaw area shall qualify as entry-level units. Should a Town-wide municipal policy on PAH units be adopted by Council, the Town-wide policy will supersede any provisions of this District and any development within this District will comply with the Town-wide policy.

4.9.11.3 Entry Level Housing units and PAH units provided within the bylaw area shall be excluded from the annual growth management quotas. PAH units shall be excluded from total unit counts pursuant to Bylaw 1-98 DC.

4.9.12 Employee Housing

4.9.12.1 On-site Employee Housing, where accessory to a principal use, may be integrated into the principal building.

4.9.12.2 When incorporated into the principal building, Employee Housing shall be functionally separated from Visitor Accommodation units and/or other commercial uses.

- 4.9.12.3 The maximum number of persons per bedroom in all forms of Employee Housing shall be two (2).
- 4.9.12.4 The Development Authority shall allow a portion of the required Employee Housing to be provided in an off-site location. Employee Housing required for uses located outside this District shall be permitted within this District.
- 4.9.12.5 In the absence of a Town wide policy, the provision of Employee Housing for commercial developments within the bylaw area shall be based on an employee generation analysis provided by the applicant at the time of subdivision or Development Permit.
- 4.9.12.6 The methodology, criteria and requirements indicated by the employee generation analysis shall be to the mutual satisfaction of the Applicant and the Town of Canmore.
- 4.9.12.7 Employee Housing shall reasonably accommodate those full time employees unable to afford market housing or community Entry Level Housing as determined by the employee generation analysis, which shall consider factors such as detailed assessments of occupation types, expected incomes, market demand and available housing supply factors throughout the Town of Canmore.
- 4.9.12.8 Employee Housing should be provided in a range of multi-unit residential unit types and sizes to accommodate range of employment positions and range of incomes as determined by the employee generation analysis. – e.g. Dormitories, Apartments to Townhouses.
- 4.9.12.9 The Developers agree that they shall establish and be responsible for the operation of a Staff Accommodation Authority or similar authority whose functions shall include the operation and maintenance of Staff Accommodation.
- 4.9.12.10 Specific details of the provision type, size and location of the units shall be determined by the Town of Canmore and the applicant at the Development Permit stage.
- 4.9.12.11 Employee Housing shall be provided concurrently with the proposed commercial development.
- 4.9.12.12 Employee Housing units provided within the bylaw area shall be excluded from the annual growth management quotas.

4.9.13 Market Impact Analysis

- 4.9.13.1 Prior to the first subdivision application or the first Development Permit application, the applicant must submit a market impact analysis study. The study will evaluate the market demand and evaluate the impact on the existing commercial areas, and consider prior retail impact analyses and demonstrate compatibility with commercial development in the downtown and Gateway areas, and economic impact on the Resort Centre. The study must be consistent with the objectives and policies outlined in the Stewart Creek ASP. Where an undue impact on the Downtown or Gateway areas is identified, measures such as the following may be undertaken:
 - a. Phasing of commercial development within the area;
 - b. Restrictions on particular commercial uses;

- c. Restrictions on the size of commercial uses or types of uses;
- d. Resort management of commercial tenancies; and
- e. Other methods deemed mutually acceptable to the Town of Canmore and the applicant.

4.9.14 Development Authority

- 4.9.14.1 The Development Officer shall be the Development Authority for all Development Permit applications within this District, and may refer applications to the Canmore Planning Commission.

4.10 TS-MU THREE SISTERS MIXED USE DISTRICT

Purpose

To provide for a combination of residential and small to moderate scale commercial and service establishments in mixed use developments, recognizing both the gateway function for those entering Canmore and the Three Sisters Mountain Village and the proximity of existing multiple family residential and local commercial developments within the Three Sisters Creek neighbourhood. This District is intended to encourage comprehensively designed mixed-use buildings that will provide services largely oriented to the residential neighbourhoods in the area and serve as a transitional area between the regional commercial centre in Stewart Creek and residential developments. Commercial development is intended to be local in nature and subordinate to the nearby regional commercial centre in Stewart Creek.

4.10.1 Permitted Uses

Apartment Building (above the ground floor)
Arts and Crafts Studio
Athletic and Recreational Facility, Indoor
Athletic and Recreational Facility, Outdoor
Cultural Establishment
Dwelling Unit (above the ground floor)
Eating and Drinking Establishment
Home Occupation – Class 1
Medical Clinic
Office (above the ground floor with a GFA up to 250m²)
Open Space
Personal Service Business
Public Building
Public Utility
Retail Sales (maximum GFA 150m²)
Townhouse
Townhouse, Stacked

4.10.2 Discretionary Uses

Accessory Building
Administrative/Sales Office
Cannabis Retail Store (maximum GFA 150m²)
Common Amenity Housing
Contractor Service and Repair
Day Care
Dwelling Unit (on the ground floor)
Educational Institution
Entertainment Establishment
Liquor Store (maximum GFA 150m²)
Logging Operation
Office (on the ground floor)
Parking Areas and Structures

Printing Establishment
Tourist Home (above the ground floor)
Visitor Accommodation

4.10.3 Regulations

- 4.10.3.1 The minimum yard setback shall be 9.0 m where a yard abuts a residential district, 4.5 m where a yard abuts a public thoroughfare, and 3.0 m where a yard abuts a commercial district or municipal reserve parcel.
- 4.10.3.2 The maximum building height shall be 11.0 m.
- 4.10.3.3 The maximum eaveline height shall be 7.0 m.
- 4.10.3.4 The minimum landscaped area shall be 30% of the site.

4.10.4 Use-Specific Regulations

- 4.10.4.1 The maximum GFA of a Cannabis Retail Store is 150 m².
- 4.10.4.2 The maximum GFA of a Liquor Store is 150 m².
- 4.10.4.3 Where contemplated, a Tourist Home unit must be located above the ground floor of a building.

4.10.5 Additional Requirements

- 4.10.5.1 Commercial buildings should be oriented towards the adjacent streets and create a pedestrian oriented streetscape and continuous commercial frontage adjacent to these streets wherever possible.
- 4.10.5.2 In order to achieve the mixed-use purpose of the District, all development applications shall contain a residential component that is not less than 25% of the GFA. Office space shall not exceed 50% of the total commercial floor area of a development and when located on the main floor shall be limited to those commercial services open to the general public during normal business hours and providing professional, financial, consulting or other services to individual residents.
- 4.10.5.3 A minimum of 25% of all residential Dwelling Units approved and constructed within this District shall be Entry Level Housing units, as defined by the Town of Canmore.
- 4.10.5.4 Provision of PAH units shall be creditable towards the required entry-level housing at a ratio mutually agreeable to the Town of Canmore and the applicant at the subdivision or Development Permit stage. The PAH ratio shall be significantly lower than the Entry Level ratio, notwithstanding a minimum ratio of 5% of all residential units within the bylaw area shall qualify as Entry Level Units. Should a Town-wide municipal policy on PAH be adopted by Council, the Town-wide policy will supersede any provisions of this District and any development within this District will comply with the Town-wide policy.
- 4.10.5.5 Uses listed as discretionary shall be evaluated in part on how they meet intent of the purpose of the District to provide commercial services oriented to the adjacent neighbourhoods.

4.10.6 Design Requirements

- 4.10.6.1 All developments shall conform to Section 11: Community Architectural and Urban Design Standards as a minimum.
- 4.10.6.2 Architectural Controls will be developed and administered by the Developer.
- 4.10.6.3 Site design shall include on-site and off-site pedestrian circulation walkways to the satisfaction of the Development Authority. Pedestrian access and connectivity shall be addressed through the following:
- a. Pedestrian circulation shall enable pedestrians to move from the edges of the site to and between buildings as well as to the regional and local trails and Open Space areas. Landscaping shall be provided along internal and pedestrian walkways.
 - b. A pedestrian oriented site streetscape shall be established to allow for and encourage pedestrian traffic. The on-site streetscape shall incorporate design elements such as: walkways, separation of pedestrian use areas from vehicle use areas, outdoor furniture, patios, pedestrian scale site lighting, bicycle parking, canopies, vestibules, formal trail connections, façade treatments that are sensitive to sidewalk locations on a site specific basis, and subject to Section 11: Community and Architectural and Urban Design Standards, permeability of façade by the use of glass and doors.
 - c. A site development plan shall be submitted at the Development Permit stage to demonstrate Dyrgas Gate improvements, which are to include pedestrian safety and driveway access safety in a comprehensive way, and shall be subject to the approval of the Managers of Planning and Development, and Engineering.
- 4.10.6.4 Where the Development Authority is satisfied that the architectural integrity of a building would be enhanced, and / or to accommodate sloped sites, variances may be granted to allow 10% of the building to exceed the maximum building height and maximum eaveline height by up to 10%.
- 4.10.6.5 Development above the 7.0 m eaveline shall step back to decrease the overall mass of the building, although dormers are permitted to provide visual interest and detail to the roof structure.
- 4.10.6.6 In order to achieve a pedestrian oriented streetscape, parking and loading shall be designed to minimize the visual impact and impacts on pedestrian activity on local roadways. Techniques to achieve this may include underground structured parking, shared parking and intensive landscaping. Parking Areas shall not be located between a building and an adjacent street and shall be screened from arterial roadways.
- 4.10.6.7 Development abutting residential districts shall be designed to minimize the impacts of parking, loading, sun shadow, lighting, noise and business hours of operation on the residential environment to the satisfaction of the Development Authority. Specifically, such developments shall be designed and constructed as follows:
- a. Buildings adjacent to residential areas shall incorporate a high degree of visual interest in the rear elevations through the provision of such design features as wall articulation, building materials and colors.

- b. All parking and loading areas not incorporated into the building or a Parking Structure shall be provided on-site and shall be screened from arterial roadways.
 - c. All parking and loading areas not incorporated into the building or a Parking Structure shall be visually screened with landscaping in a manner that would minimize visibility from a residential district to the satisfaction of the Development Authority.
 - d. Outdoor Storage shall be prohibited.
 - e. Electrical and mechanical equipment located on rooftops shall be enclosed and screened so as not to be visible from public sidewalks and adjacent residential areas.
 - f. Exterior utility lighting on building façades oriented towards an adjacent residential district shall utilize techniques such as downcast orientation and appropriate lighting levels and device control mechanisms to the satisfaction of the Development Authority.
- 4.10.6.8 Development proposals for a portion of a larger site shall include a comprehensive concept plan for the entire site with the initial Development Permit to the satisfaction of the Development Authority, and shall form the basis for subsequent development reviews. A comprehensive site plan shall include possible building footprints, Parking Areas, vehicular and pedestrian circulation routes, landscaping and screening techniques where applicable.
- 4.10.6.9 Primary access shall be from Dyrkas Gate, unless an alternative is provided acceptable to the Town of Canmore. A traffic engineer should review any proposed alternative access location and adjacent roadway configuration for conformance with TAC recommendations in light of the anticipated traffic generated by a site and within the development at the Development Permit stage.
- 4.10.6.10 A comprehensive site signage package including proposed architectural details for freestanding, directional, and fascia signage shall be developed as part of a Development Permit application. All signage shall be pedestrian-oriented and conform to Section 9: Signage Regulations. Signage in this District shall conform to the requirements specified for the Town Centre District; except that:
- a. No freestanding Signs are allowed except for multi-unit / multi-use developments where one freestanding Sign may be utilized to identify the name and address of the site development and directory signage as follows:
 - i. Directory signage shall be located at the entrance to the development, in a location subject to the approval of the developing authority, and shall be limited to those commercial tenants without frontage on the public street;
 - ii. Directory signage may include the development name and shall include the address of the development;
 - iii. All tenants shall be equally represented on the directory Sign.
 - b. Architectural elements or generic descriptor signage (GDS) may be allowed in accordance with the “Hanging or Projecting Signs” guidelines of the Land Use Bylaw and subject to the following:
 - i. One GDS representing each type of commercial tenant is allowed to a maximum of four such Signs for the development site;
 - ii. Each GDS shall be a visual (no text) representation of the type of current commercial

tenant (all outdated signage must be removed);

iii. GDS shall use a consistent design that is complementary with building architecture and be of high quality materials; and

iv. Each GDS shall be three-dimensional and shall have a maximum size of 0.35 m³.

- 4.10.6.11 A minimum of 30% of a site shall be landscaped. Outdoor Amenity Space including, but not limited to, plazas, patios, and other pedestrian gathering places may be substituted for some natural landscaping to the extent that it achieves a blend of natural environment and value as a people place. Outdoor Amenity Space must be located adjacent to a sidewalk or public trail or be utilized as buffering to a residential district in order to be considered landscaping.
- 4.10.6.12 Existing vegetation and grading shall be retained at the southeastern edge of the site at the corner of Dyrgas Gate and Three Sisters Parkway to preserve the natural entrance in the form of the berm and existing vegetation. Additional planting should be added to ensure diversity in the age of vegetation at this site.
- 4.10.6.13 Roofs shall reflect function and the architectural requirement and tradition of providing sheltering roofs in a mountain environment. A minimum roof pitch of 6:12 is required for all portions of the roof and dormers; roof lines shall be articulated and larger structures shall incorporate a cascade of roofs to break up massing and add visual interest.
- 4.10.6.14 Dwelling Units and Tourist Homes may be located below the second storey of a mixed use building where the Development Authority is satisfied that residential uses on the ground floor are consistent with the purpose of the District and in an appropriate location. Dwelling Units and Tourist Homes shall have an entrance that is separate and distinct from the entrance to any commercial component of the building, and may be allowed on the same floor as commercial uses where there is a physical separation of uses and separate entrances to the satisfaction of the Development Authority. Tourist Homes and Dwelling Units (without a permit for a Tourist Home) shall not be located in the same building unless the entrance and circulation areas are separate and distinct.
- 4.10.6.15 Garbage containers and waste material shall be stored either inside a principal building or, at the discretion of the Development Authority, in a weatherproof and animal-proof garbage enclosure if such an enclosure is required to accommodate a Town-approved solid waste management system. Garbage enclosures shall be designed and located to be visually integrated with the site
- 4.10.6.16 The integration of sustainable design principles in infrastructure and building design is required. Additional variances for parking, setbacks and building heights may be considered by the Development Authority for “green” buildings.

4.11 CRD COMMERCIAL RESORT DISTRICT

Purpose

To provide for a comprehensively planned commercial development that offers a range of commercial and retail uses associated with a resort.

4.11.1 Permitted Uses

Athletic and Recreation Facility, Indoor
Athletic and Recreational Facility, Outdoor
Cultural Establishment
Eating and Drinking Establishment
Employee Housing
Open Space
Personal Service Business
Public Utility
Visitor Accommodation

4.11.2 Discretionary Uses

Accessory Building
Administrative/Sales Office
Day Care
Dwelling Units (above the ground floor)
Logging Operation
Office
Parking Area and Structures
Resort Accommodation
Retail Sales
Tourist Home (above the ground floor)

4.11.3 Regulations

- 4.11.3.1 The lot area shall be a minimum of 0.4 hectares
- 4.11.3.2 The lot area shall be a maximum of 6.0 hectares.
- 4.11.3.3 The maximum site coverage of all buildings shall be 40%.
- 4.11.3.4 The maximum floor area for Retail Sales shall be 150 m².
- 4.11.3.5 The maximum building height shall be 10.0 m, except for Visitor Accommodation, which shall be as follows:
 - a. A maximum building height of 12.0 m except that the maximum allowable height of a Visitor Accommodation development shall be subject to acceptance of the Development Authority of an evaluation of the building's visible features submitted as a visual impact assessment in conjunction with an application for Development Permit.
 - b. Perimeter Setback shall be as follows: The Land Use District shall have a minimum perimeter boundary of 9.0 m surrounding the entire District. However, at the discretion of the Development Authority, the perimeter setback for any portion of the zoning

boundary (side yard) may be decreased to zero if a portion of the perimeter (side yard) is increased to a distance greater than the minimum setback to a maximum distance of 15.0 m, depending on the characteristics of the site and the proposed development. The distances to the side yard, front yard and rear yards for buildings located within the District shall be determined as part of the comprehensive plan and will be determined according to the requirements of the Alberta Building Code.

4.11.4 Parking and Loading

- 4.11.4.1 Parking and loading spaces shall be provided in accordance with the requirements as set out in Section 2: General Regulations, except that some or all of the required parking spaces may be provided off-site at the discretion of the Development Authority.
- 4.11.4.2 Those sites designated for Visitor Accommodation shall provide a minimum of 40% of the required parking spaces underground or enclosed under the building used as guest accommodation, or in an above ground Parking Structure, or a combination of the two and may be provided off-site, within a one minute walking distance or at the discretion of the Development Authority.
- 4.11.4.3 Access to underground parking lots and Parking Structures shall be from the side or rear yards only. However, in special circumstances, underground parking entrances may be located in the front yard, at the discretion of the Development Authority.

4.11.5 Landscaping

- 4.11.5.1 The landscape plan shall conform to the following:
 - a. The boulevard and a minimum of 40% of the site area shall be landscaped.
 - b. The site shall be buffered by landscaping from the Parkway or adjacent roads.
 - c. All side and rear yard setbacks require landscaping
 - d. Wherever possible, existing native vegetation shall be retained and indigenous species shall be used for additional landscaping.
 - e. Up to a maximum of 50% of the landscaped area may be in the form of hard landscaping including recreation facilities (e.g. tennis courts) at the discretion of the Development Authority

4.11.6 Design Requirements

- 4.11.6.1 All development in this District shall conform to Section 11: Community Architectural and Urban Design Standards.

4.11.7 Additional Requirements

- 4.11.7.1 Where contemplated, a Tourist Home unit shall be located above the ground floor of a building.
- 4.11.7.2 For the purposes of this District, Employee Housing shall be provided as follows:
 - a. Eating and Drinking Establishments: one bedroom per 20 m² of GFA;

- b. Visitor Accommodation:
 - i. Less than 60 Visitor Accommodation units: 1 bedroom per 10 units;
 - ii. Between 60 and 100 Visitor Accommodation units: 1 bedroom per 8 units;
 - iii. Greater than 100 Visitor Accommodation units: 1 bedroom per 6 units, plus the additional Employee Housing requirements for Eating and Drinking Establishments, Retail Sales, and other uses accessory to the principal use.
 - c. Retail Sales: 1 bedroom per 100 m² of GFA;
 - d. Office Support Services: 1 bedroom per 50 m² of GFA;
 - e. Other commercial and commercial services: 1.5 bedrooms per 50 m² of GFA.
- 4.11.7.3 Where a proposed use is not listed above, the Employee Housing requirement shall be determined by the Development Authority, who may either determine that the proposed use is similar to one which is listed, or, make its own determination based on a requirement for 0.5 bedrooms per employee, having regard to the potential number of employees utilizing the site and circumstances of the development.
- 4.11.7.4 Additional housing requirements for development on a site, changes of use, or redevelopment shall be based on the new incremental development only. No additional requirements shall be made with respect to any existing development, other than the replacement of integrated Employee Housing units eliminated by the new development.
- 4.11.7.5 Employee Housing shall:
- a. Not be located below the second storey of a mixed use building, but may be allowed in the basement of a mixed use building at the discretion of the Development Authority.
 - b. Not be located on the same floor as a non-residential use unless there is a physical separation of uses and separate entrances to the satisfaction of the Development Authority; and
 - c. Notwithstanding the above requirements, Employee Housing required within this Land Use District may also be constructed as free standing Townhouses or Stacked Townhouses as long as their placement and design is consistent with the overall comprehensive architectural theme of the site development. These Dwelling Units shall include kitchen and dining areas for staff.
- 4.11.7.6 Employee Housing units may be constructed at another location subject to the approval of the Development Authority.
- 4.11.7.7 An Eating and Drinking Establishment shall be located in such a way as to mitigate noise exposure to adjacent residential development, to the satisfaction of the Development Authority.
- 4.11.7.8 An Accessory Use or Accessory Building located within this District shall be complementary to the principal use of the resort District and may include but not be limited to Retail Sales, Offices and Entertainment Establishments.

4.12 TS-RA1 THREE SISTERS RESORT ACCOMMODATION DISTRICT

Purpose

The purpose of this District is to ensure a range of Resort Accommodation options are provided in proximity to the Resort Core to support resort commercial uses on a year-round basis by providing Visitor Accommodation and Resort Accommodation to promote sustained use of the resort center and provide a sense of place.

4.12.1 Permitted Uses (Subject to Subsection 4.12.3)

Athletic and Recreational Facility, Indoor

Athletic and Recreational Facility, Outdoor

Eating and Drinking Establishment

Employee Housing

Golf Course Clubhouse and Facility

Public Utility

Open Space

Personal Services Business

Resort Accommodation – TSMV including the following built forms: Apartment Resort

Accommodation units, Stacked Townhouse Resort Accommodation units, Townhouse

Resort Accommodation units

Retail Sales (contained in an Apartment Building to a maximum size of 250m²)

Taxi Stand

Visitor Accommodation

4.12.2 Discretionary Uses (Subject to 4.12.3)

Accessory Building

Administrative/Sales Office

Common Amenity Housing

Day Care

Duplex Resort Accommodation Unit

Logging Operation

Office

Public Building (in the built form of Duplex Resort Accommodation Units)

Temporary Business

4.12.3 Development Scheduling

4.12.3.1 Non-compliance with this Subsection (4.12.3) constitutes a valid reason for the refusal of any Development Permit application made within this District, notwithstanding the permitted or discretionary use proposed. Variances to this section are specifically prohibited by Council, and shall be altered only through the Land Use Bylaw amendment process.

4.12.3.2 Prior to the 150th Visitor Accommodation or Resort Accommodation unit within the boundary of the Resort Centre ASP shown in Bylaw 23-2004 being given approval through the Development Permit process, the developer shall establish an “Employee Housing Authority.”

4.12.3.3 Prior to the 150th Resort Accommodation unit within the boundary of the Resort Centre ASP shown in Bylaw 23-2004 being given approval through the Development Permit process, the

developer shall establish a Resort Accommodation reservation system.

4.12.4 Specific Definitions

- 4.12.4.1 Resort Accommodation – TSMV means a building or group of buildings for visitors to the resort area, which may be utilized for non-residential tenancies and is not intended to be used for permanent living accommodation, and shall include Visitor Accommodation and other tourist accommodation, and fractionally owned property. Resort Accommodation may be in the form of Visitor Accommodation units, Apartment Building Resort Accommodation units, and Townhouse Resort Accommodation units / Stacked Townhouse Resort Accommodation units, and shall in all cases be considered as a commercial land use for the purposes of municipal assessment and taxation, with no restrictions or minimum or maximum occupancy periods.
- 4.12.4.2 Resort Accommodation reservation system means a mechanism by which the general public can readily access via phone or the internet, for the purposes of renting or leasing a Resort Accommodation unit. The reservation system is intended to facilitate a regular turnover in the occupancy of the Resort Accommodation units, and to minimize the number of units that are privately owned and not accessible for rental or reservation by visitors.

4.12.5 Regulations

- 4.12.5.1 The minimum front yard setback shall be 3.0 m.
- 4.12.5.2 The minimum side yard setback shall be 2.0 m.
- 4.12.5.3 The minimum rear yard setback shall be 3.0 m.
- 4.12.5.4 A minimum of 15% of the site area shall be landscaped.
- 4.12.5.5 Notwithstanding 4.12.5.1, 4.12.5.2, and 4.12.5.3, the minimum setback for buildings, parking areas, loading areas and vehicle driveways shall be 5.0 m from the Resort Centre ASP “Open Space Area” on the north side of the District, from the existing commuter trail within the District and from the public natural surface trail located on the southern boundary of the District adjacent to the golf course to allow for natural landscaping to be installed between adjacent buildings and the trail in order to provide a park-like trail experience.
- 4.12.5.6 In accordance with the policies of the Resort Centre ASP (Bylaw 23-2004) the total number of Resort Accommodation units within Areas “A” and “B” in Figure 4.12-1 shall not exceed 675.

Figure 4.12-1



4.12.5.7 Regulations within Area “A”

- a. The maximum building height shall be 16.0 m.
- b. The maximum eaveline height shall be 11.0 m
- c. The minimum density shall be 55 Resort Accommodation and/or Employee Housing units per hectare. Variances to the minimum density may be granted where the Development Authority is satisfied that the proposal meets the intent of the conceptual site plan for Area “A” as described below in Subsection 4.12.9, Subdivision Requirements.
- d. The maximum density shall be 97 Resort Accommodation and/or Employee Housing units per hectare.

4.12.5.8 Regulations within Area “B”

- a. The maximum building height shall be 12.0 m.
- b. The maximum eaveline shall be 9.0 m.
- c. The minimum density shall be 22 Resort Accommodation and/or Employee Housing units per hectare. Variances to the minimum density may be granted where the Development Authority is satisfied that the proposal meets the intent of the conceptual site plan for Area “B” as described below in Subsection 4.12.9, Subdivision Requirements.
- d. The maximum density shall be 40 Resort Accommodation and/or Employee Housing units per hectare.

4.12.6 Additional Requirements

- 4.12.6.1 The maximum GFA of a Retail Sales development 250 m².
- 4.12.6.2 A Retail Sales development shall be located within an Apartment Building.

- 4.12.6.3 All developments shall conform to Section 2: General Regulations and Section 11: Community Architectural and Urban Design Standards.
- 4.12.6.4 All developments shall be consistent with the objectives and policies of the Resort Centre ASP unless additional details have been described within this District.
- 4.12.6.5 Environmentally Sensitive Areas identified in the 2005 Environmental Impact Statement for the Three Sisters Golf Resort shall be reviewed for potential impacts and mitigated through the design of the subdivision or other mitigation techniques.
- 4.12.6.6 Details of a reservation system, as defined in this District, shall be submitted as part of an application for a Development Permit for Resort Accommodation.
- 4.12.6.7 Development applications in this land use District shall comply with any requirements to undertake or complete a review using the Sustainability Screening Matrix as required by approved policy of the Town.

4.12.7 Urban Design Guidelines

- 4.12.7.1 Traffic calming measures may be employed in appropriate locations in order to reduce vehicle speed, enhance the aesthetic appearance of the road, and enhance pedestrian safety and comfort, while maintaining roadway capacity.
- 4.12.7.2 Major gateways may receive special treatment including the prominent placing of structures and key pedestrian linkages and open space areas, intersection design and formal landmarks.
- 4.12.7.3 Pedestrian and trail linkages shall be provided to connect developments within the District as well as providing appropriate connections to adjacent areas.
- 4.12.7.4 A minimum of a 20 m building setback shall be provided from the top of bank of the Three Sisters Creek.
- 4.12.7.5 Development within this District should provide an interconnected system of Amenity Spaces and public places that provide key activity areas and focal points, and function as zones of commercial and transportation foci within the District where possible. Assurances of continued public access to outdoor Amenity Spaces shall be provided by the Developer to the satisfaction of the Town. Trails shall be secured for public access to the satisfaction of the Town at the subdivision or Development Permit stage.

4.12.8 Design Requirements

- 4.12.8.1 Architectural Guidelines: Site design and building design and construction materials shall be consistent with Section 11: Community Architectural and Urban Design Standards as a minimum as well as with architectural guidelines established for the District and enforced by the developer.
- 4.12.8.2 Monitoring requirements by the developer for “green building” standards shall be a condition of any Development Permit issued in this land use District. Variances for parking, setbacks and building heights may be considered by the Development Authority for “green” buildings.
- 4.12.8.3 Site design: Slope-adaptive building design shall be utilized on sloped sites. Where the

Development Authority is satisfied that slope-adaptive design is being utilized on a site, and the proposed architectural design of the building warrants a variance, variances may be granted to allow a total of 15% of the roof areas to exceed the maximum height by up to 15% in order to allow additional design flexibility.

- 4.12.8.4 Roof design. Roofs shall reflect function and the architectural requirement and tradition of providing sheltering roofs in a mountain environment. A minimum roof pitch of 6:12 is required for all visible portions of the roof and dormers; where a 6:12 roof slope for a real “working” roof is impractical due to the depth of the building, a lower slope may be used at the discretion of the Development Authority; lower slopes may also be used on smaller portions of roof such as dormers, canopies and gables provided that the overall structure meets the design intent of Section 11: Community Architectural and Urban Design Standards; roof lines shall be articulated and larger structures shall incorporate a cascade of roofs to break up massing and add visual interest.
- 4.12.8.5 Building facades. The facades of multi-unit Resort Accommodation structures shall incorporate substantial articulation in order to break up the massing of any buildings which have more than three units fronting onto a public roadway. Any development above a third storey shall incorporate some stepping back of the building face to ensure consistency with the Massing and Scale, Section 11: Community Architectural and Urban Design Standards.
- 4.12.8.6 Resource-saving design and building techniques, such as optimizing solar exposure, xeriscaping, and ecological landscaping should be incorporated into subdivision, site and building designs.
- 4.12.8.7 Construction Management Plans shall be prepared as part of all new subdivision and significant Development Permit applications.

4.12.9 Subdivision Requirements

- 4.12.9.1 A conceptual site plan to the satisfaction of the Town shall be provided for the District with the first application for subdivision or development in the District. The conceptual site plan shall include open space and trail linkages to demonstrate the functional connections between public and private open space in accordance with the Resort Centre ASP. The conceptual site plan shall include proposed development nodes with density ranges for each node showing how the intent of the minimum density requirements of no fewer than 557 Resort Accommodation units within the District described in Subsection 4.12.5.7 and 4.12.5.8 is to be met.
- 4.12.9.2 Prior to subdivision on or adjacent to steep slopes, suitable geotechnical analysis shall be provided to the Town to determine that the proposed development can be safely constructed.

4.12.10 Employee Housing

- 4.12.10.1 All applications for Visitor Accommodation uses within the District shall include an employee generation study. Employee Housing for Visitor Accommodation shall be provided to the satisfaction of the Development Authority in accordance with the greater of the following calculations:

For Visitor Accommodation developments <60 units: 1 bedroom / 10 units;

For Visitor Accommodation developments 60-100 units: 1 bedroom / 8 units;

For Visitor Accommodation developments >100 units: 1 bedroom / 6 units;

- a. 50% of the new direct employment for the development.
- 4.12.10.2 Employee Housing requirements for commercial uses other than Visitor Accommodation shall be determined on a case by case basis between the Town and the developer at the Development permit application stage, and provided at no less than 50% of the anticipated new direct employment for the development.
- 4.12.10.3 Employee Housing for Resort Accommodation shall be provided in the following manner:

Table 4.12-1 Employee Housing for Resort Accommodation	
Size of Resort Accommodation Unit	Employees Created
Sq. Metres	FTE
< 92.9	0.1
92.9 – 185.8	0.15
185.9 – 371.6	0.25
371.7 – 557.4	0.5
557.5 – 650.3	0.75
650.4 – 743.2	1.0
743.3 – 929.0	1.5
929.1 – 1021.9	2.0
1022.0 – 1114.8	2.5
1114.9 +	3.0

These numbers shall be reviewed from time to time to ensure that adequate Employee Housing is being provided. When calculations are completed and result in a partial Full Time Equivalent (FTE) number, this number shall be rounded up to the next highest whole number.

- 4.12.10.4 Employee Housing shall be constructed concurrently with any new development proposal and available for occupancy at the same time as the commercial development.
- 4.12.10.5 At the request of the developer, Employee Housing provided in the form of Perpetually Affordable Housing or other alternatives (such as proven leasehold arrangements) may be accepted at the discretion of the Development Authority to provide ownership opportunities for employees.
- 4.12.10.6 The Employee Housing requirement generated within this District may be provided within the Stewart Creek Area Structure Plan or, alternately, other areas offsite to the satisfaction of the Development Authority.
- 4.12.10.7 Any future Employee Housing requirements adopted by Council intended to apply uniformly to all new commercial development throughout the Town shall supersede the requirements noted above.
- 4.12.10.8 All Employee Housing units provided pursuant to the regulations of this District shall be

managed by an Employee Housing Authority or similar organization. The Employee Housing Authority shall ensure that Employee Housing is maintained and operated as Employee Housing, and shall ensure to the satisfaction of the Town that Employee Housing is maintained and operated as Employee Housing (including the possible use of restrictive covenants or other methods) as long as the commercial development operates and requires housing for its staff. The Employee Housing Authority shall also be responsible for periodic verification that Employee Housing is being occupied as intended.

4.12.10.9 The Employee Housing Authority shall report on an annual basis to the Town or to the Canmore Community Housing Corporation, indicating the number of units currently under its management, the commercial operation to which those units are attached, and the results of its verification efforts.

4.12.10.10 The Employee Housing Authority shall also be responsible for ensuring that appropriate remedies and enforcement action is taken should verification efforts reveal that Employee Housing units under its management are not being used or occupied as intended.

4.12.11 Development on Sloped Terrain

4.12.11.1 Alteration of the existing natural contours and grades shall occur in accordance with a comprehensive grading plan, which shall take into account drainage and erosion impacts.

4.12.11.2 The main criteria for building setbacks from the top or bottom of slope should be slope stability.

4.12.12 Transportation System

4.12.12.1 Road right of way widths for the principal through street only shall be designed to accommodate stops or pull outs for transit vehicles. These need only be constructed when transit services are extended to this District.

4.12.12.2 Road, sidewalk and trail designs shall be undertaken to accommodate comfortable, safe pedestrian and cycling environments.

4.12.12.3 Road design should employ traffic calming measures in appropriate locations in order to reduce vehicle speed, enhance the aesthetic appearance of the roadway, and enhance pedestrian safety as required, while maintaining roadway capacity.

4.12.12.4 The design of pedestrian and cyclist routes should provide for convenient connections and multiple route choices to origin / destination points within the plan area, and inter-connected pedestrian and cyclist systems within the District.

4.12.12.5 Alternative design standards for public roadways shall be encouraged with respect to:

- a. Pavement widths for travel and parking lanes;
- b. Potential to provide bicycle lanes;
- c. Boulevards / green space areas;
- d. Stormwater drainage;
- e. Snow removal and snow storage management;

- f. Building setbacks from the property line; and
- g. Horizontal and vertical curves and design grades, where deemed appropriate.
- h. Detailed design and storm water, emergency access and utility line assignment analyses.

4.12.13 Parking

- 4.12.13.1 The development of surface parking facilities should be minimized in this District.
- 4.12.13.2 Parking Areas and Parking Structures should be located in such a manner as to not adversely affect the pedestrian streetscape. Surface Parking Areas should be located behind buildings and parkade structures ideally would have other uses on the ground floor that contribute to the public street.
- 4.12.13.3 Larger Parking Areas and structures for this District should be located on the periphery of these areas at major transportation nodes wherever possible, to promote non-vehicular transportation.
- 4.12.13.4 Consideration of shared use of parking facilities shall be included in any Development Permit application with the intent of reducing the overall amount required by maximizing their ability to serve daytime, evening and weekend demands.
- 4.12.13.5 Parking for Resort Accommodation shall be provided in the same manner as residential developments outlined in Section 2: General Regulations, with the exception of “visitor” parking, which shall not be required.
- 4.12.13.6 Where appropriate, surface and above grade Parking Areas should be terraced to conform to the natural terrain.

4.12.14 Municipal Infrastructure Servicing

- 4.12.14.1 A developer shall review the potential for the application of alternative sustainable techniques for municipal infrastructure at the subdivision application stage.
- 4.12.14.2 A developer shall assess, as part of the preparation of a Stormwater Management Plan, sustainable alternatives for stormwater quality and quantity enhancement, treatment and disposal, including:
 - a. Source controls as opposed to end-of-pipe solutions;
 - b. Off-site solutions; and,
 - c. Naturalized methods, such as natural wetlands.
- 4.12.14.3 All Stormwater Management Plans shall follow best management practices in the application of erosion and sedimentation controls.

4.12.15 Development Authority

- 4.12.15.1 The Development Officer shall be the Development Authority for all Development Permit applications within this District. Applications may be referred to the Canmore Planning Commission at the discretion of the Development Officer.

4.13 VIC VISITOR INFORMATION CENTER DISTRICT

Purpose

To provide a gateway for visitors to both Canmore and Alberta, the first experience of Canmore for eastbound travelers, and trailhead amenities for the Legacy Trail and users of the Town's trail system.

4.13.1 Permitted Uses

Campground

Employee Housing

Hostel

Open Space

Public Building

4.13.2 Discretionary Uses

Accessory Building

Administrative/Sales Office

Convention Facility

Eating and Drinking Establishment

Logging Operation

Retail Sales (maximum GFA 300.0m²)

Taxi Stand

Transportation Terminal

4.13.3 Regulations

4.13.3.1 The minimum site area shall be 10,000 m².

4.13.3.2 The setbacks shall be as follows:

- a. Front Yard (when abutting Bow Valley Trail): 3.0 m
- b. Rear Yard (Adjacent to the Trans-Canada Highway): 15.0 m
- c. All other yards: 3.0 m

4.13.3.3 The maximum building height is 11.0 m.

4.13.3.4 The maximum eave line or cornice line height is 6.0 m.

4.13.3.5 Floor area above the eave line shall be incorporated into the roof structure and stepped back from the front building face for a minimum of 70% of the elevation.

4.13.4 Design Regulations

4.13.4.1 Design of site and buildings shall conform to the Landscaping (Subsection 11.4.3), and Materials and Colours (Subsection 11.5.7) sections of the Community Architectural and Urban Design Standards.

4.13.5 Retail

4.13.5.1 The maximum GFA of a Retail Sales development is 300 m².

- 4.13.5.2 Where an application is made for Retail Sales, the applicant must demonstrate to the Development Authority's satisfaction that the proposed business is visitor oriented.

4.13.6 Parking, Loading, Storage Waste and Recycling

- 4.13.6.1 All parking and loading areas not incorporated into the building or a Parking Structure shall be visually screened with fencing or landscaping in a manner that would screen it from adjacent roads to the satisfaction of the Development Authority.
- 4.13.6.2 Parking shall not be permitted within the yard setback along Bow Valley Trail.
- 4.13.6.3 The Bow Valley Trail yard setback shall be landscaped in accordance with the landscaping standards set in Subsection 11.4.3.
- 4.13.6.4 Solid waste containers, grease containers, recycling containers, and waste material shall be stored either inside a principal building or, at the discretion of the Development Authority, in a weatherproof and animal-proof enclosure.
- 4.13.6.5 Enclosures shall be designed and located to be visually integrated with the site.
- 4.13.6.6 Outdoor Storage may be permitted by the Development Authority where:
- a. The Outdoor Storage is accessory to an approved use; and
 - b. The Outdoor Storage is visually screened from Bow Valley Trail and the Trans Canada Highway in accordance with Subsection 11.4.3.8 to the satisfaction of the Development Authority.

SECTION 5 INDUSTRIAL LAND USE DISTRICTS

- 5.1 TID Transition Industrial District**
- 5.2 IND 1 Light Industrial District**
- 5.3 IND 2 General Industrial District**
- 5.4 SB Southern Business District**

5.1 TID TRANSITION INDUSTRIAL DISTRICT

Purpose

To provide for a range of Light Manufacturing and other light industrial uses. [2021-24]

5.1.1 Permitted Uses

Accessory Building
Automotive Sales and Rentals
Contractor Service and Repair
Printing Establishment
Public Building
Public Utility
Veterinary Clinic

5.1.2 Discretionary Uses

Administrative/Sales Office
Arts and Craft Studio [2020-16]
Athletic and Recreational Facility, Indoor
Athletic and Recreational Facility, Outdoor
Brewery/Distillery
Eating and Drinking Establishment
Educational Institution
Employee Housing (above the ground floor)
Light Manufacturing
Logging Operation
Lumber Yard
Office (above the ground floor)
Recycling Depot
Retail Sales
Wholesale Sales

5.1.3 Regulations

- 5.1.3.1 The minimum site area shall be 550.0 m².
- 5.1.3.2 The minimum site width shall be 15.0 m.
- 5.1.3.3 The maximum FAR shall be 1.0.
- 5.1.3.4 The maximum building height shall be 11.0 m with a maximum eaveline height of 7.0 m.
- 5.1.3.5 The minimum front yard setback shall be 6.0 m.
- 5.1.3.6 The minimum side yard setback shall be zero except where a side yard abuts a residential district or a public roadway, in which case, the minimum side yard setback shall be 3.0 m.
- 5.1.3.7 The minimum rear yard setback shall be zero except where a rear yard abuts a residential district or a public roadway, in which case the minimum rear yard setback shall be 3.0 m.

5.1.4 Additional Requirements

- 5.1.4.1 Development within this District shall comply with Section 11: Community Architectural and Urban Design Standards.
- 5.1.4.2 Where contemplated, Office developments shall be located above the ground floor of buildings.
- 5.1.4.3 Sidewalk and landscaping shall be incorporated into front yards.
- 5.1.4.4 Electrical and mechanical equipment located on rooftops shall be enclosed and screened so as not to be visible from public sidewalks and residential areas.
- 5.1.4.5 Buildings shall have a roof pitch with a minimum of 6:12 slope, or other roof treatment acceptable to the Development Authority. Dormers or other similar features that break up the roofline shall be provided.
- 5.1.4.6 Metal clad or sided buildings shall utilize non-reflective materials and colors, to the satisfaction of the Development Authority.
- 5.1.4.7 The front façade shall include natural finishing materials such as timber, river rock, rundle stone, or brick, to the satisfaction of the Development Authority.
- 5.1.4.8 Finishing colors for buildings shall include natural and earth tones with complementary trim colors.
- 5.1.4.9 A minimum of 10% of a site shall be landscaped, predominantly in the front yard.
- 5.1.4.10 Outdoor Storage, including the storage of trucks and trailers, may be allowed to the side or rear of buildings provided that:
 - a. Such storage areas do not encroach into any required minimum yards;
 - b. The storage is visually screened from public thoroughfares; and
 - c. All storage is related to the business or industry on the site.
- 5.1.4.11 Garbage and waste material shall be stored in weatherproof and animal-proof containers and shall be visually screened from all adjacent sites and public thoroughfares.

5.1.5 Employee Housing Provisions

- 5.1.5.1 Employee Housing may be considered and approved in this District, only when located above the ground floor of a building and when the following issues can be addressed to the satisfaction of the Development Authority:
 - a. Adequate long-term and legally-binding provisions are in place to ensure the Dwelling Units remain as bona fide Employee Housing and are demonstrably subordinate in terms of area and intensity to other uses in the building;
 - b. The space proposed for Employee Housing units would not be reasonably used for commercial or industrial purposes;
 - c. The Employee Housing units are appropriate in design for Employee Housing, particularly with respect to the unit size;

05 INDUSTRIAL LAND USE DISTRICTS

- d. Employee Housing units would not constrain any future permitted or discretionary, commercial or industrial uses from developing on the site or on surrounding areas;
- e. Impacts of existing industrial development in the area, including the adjacent CP Rail line, would not unduly interfere with Employee Housing units; and
- f. Outdoor Amenity Space such as balconies can be provided as part of the Employee Housing while meeting all of the above-described requirements in regard to impacts to or from adjacent industrial uses.

5.2 IND 1 LIGHT INDUSTRIAL DISTRICT

Purpose

The purpose of this district is to provide for a limited range of industrial uses which are located adjacent to arterial roads or residential areas and which have a high standard of architectural appearance. Non-industrial uses are appropriate only in the limited circumstances and locations where such uses do not displace industrial uses or utilize land or buildings with potential for light industrial development.

5.2.1 Permitted Uses

Accessory Building
Arts and Craft Studio [2020-16]
Brewery/Distillery
Contractor Service and Repair
Industrial Operation
Laboratory
Laundry Facility, Industrial
Light Manufacturing
Open Space
Public Building

5.2.2 Discretionary Uses

Administrative/Sales Office
Agriculture, Intensive
Athletic and Recreation Facility, Indoor
Automotive and Equipment Repair
Automotive Sales and Rentals
Car Wash
Eating and Drinking Establishment
Educational Institution
Employee Housing (above the ground floor)
Industrial Sale and Rental
Kennel
Logging Operation
Lumber Yard
Office (above the ground floor with a GFA up to 250m²)
Outdoor Storage
Pet Care Facility
Printing Establishment
Recycling Depot
Retail Sales
Storage Facility
Transportation Terminal
Trucking Establishment
Warehouse
Wholesale Sales

5.2.3 Regulations

- 5.2.3.1 The minimum lot area shall be 557 m².
- 5.2.3.2 The minimum lot width shall be 15.0 m.
- 5.2.3.3 The minimum front yard setback shall be 15.0 m adjacent to Bow Valley Trail and 7.5 m on all other sites.
- 5.2.3.4 The minimum side yard setback shall be 3.0 m abutting any residential district; 3.0 m on the street side of a corner site; and zero at other locations.
- 5.2.3.5 The minimum rear yard setback shall be zero except where the site abuts a residential district, where the minimum rear yard setback shall be 6.0 m.
- 5.2.3.6 The maximum building height shall be 11.0 m.

5.2.4 Additional Regulations

- 5.2.4.1 Where provided, Employee Housing units and Office uses shall be located above the ground floor of buildings.
- 5.2.4.2 An Eating and Drinking Establishment may be considered and approved in this District where the proposed location is not generally suitable for industrial uses.
- 5.2.4.3 The maximum GFA of an Eating and Drinking Establishment shall be 93 m².
- 5.2.4.4 In order to ensure that this District meets its purpose as a light industrial area, non-industrial uses will only be approved where such uses do not displace current industrial uses nor utilize land or buildings with potential light industrial development.
- 5.2.4.5 Environmental Issues
 - a. The applicant shall supply to the Development Officer, at the time of application for a Development Permit, relevant information describing any noxious, dangerous, or offensive feature of the proposed development in relation to airborne pollutants or odors, and release of any toxic, radioactive or environmentally hazardous materials
 - b. A storage vessel with a volume exceeding 7,570 litres and which contains liquefied petroleum products shall:
 - i. meet all applicable Federal or Provincial safety standards;
 - ii. be set back at least 15.0 m from all property lines; and
 - iii. be at least 121 m from any place used or which may be used for public assembly and residential areas.
- 5.2.4.6 Landscaping and Screening
 - a. Outdoor Storage shall be screened and fenced to the satisfaction of the Development Authority.
 - b. A Kenel or Pet Care Facility shall be designed, constructed and operated in a manner to prevent a nuisance to any residential area in regard to such factors as noise, odours and waste.

- c. All outdoor areas for the purpose of conducting Industrial Operations, storage areas, and waste handling areas shall be screened from roadways and park areas to the satisfaction of the Development Authority.
- d. Development on all sites adjacent to a residential district shall be screened from the view of the residential district, to the satisfaction of the Development Authority.
- e. All apparatus on the roof shall be screened to the satisfaction of the Development Authority.

5.2.5 Employee Housing Provisions

5.2.5.1 Employee Housing may be considered and approved in this District only when located above the ground floor of a building and when the following issues can be addressed to the satisfaction of the Development Authority:

- a. Adequate long-term and legally-binding provisions are in place to ensure the units remain as bona fide Employee Housing and are demonstrably subordinate in terms of area and intensity to other uses in the building.
- b. The space proposed for Employee Housing would not be reasonably used for commercial or industrial purposes.
- c. The Employee Housing units are appropriate in design for Employee Housing, particularly with respect to the unit size.
- d. Employee Housing units would not constrain any future permitted or discretionary, commercial or industrial uses from developing on the site or on surrounding areas.
- e. Employee Housing would not unduly interfere with existing and any potential industrial development in the area.
- f. Outdoor Amenity Space such as balconies may be provided as part of the Employee Housing while meeting all of the above-described requirements in regard to impacts to or from adjacent industrial uses.

5.3 IND 2 GENERAL INDUSTRIAL DISTRICT

Purpose

The purpose of this District is to provide for a range of industrial uses which allow for intensive and efficient use of Canmore's industrial land base in accordance with policies in the Municipal Development Plan. Non-industrial uses are appropriate only in the limited circumstances and locations where such uses do not displace current industrial uses or utilize land or buildings with potential for general industrial development.

5.3.1 Permitted Uses

Accessory Building

Arts and Craft Studio [2020-16]

Brewery/Distillery

Contractor Service and Repair

Laboratory

Laundry Facility, Industrial

Light Manufacturing

Lumber Yard

Public Building

Warehouse

5.3.2 Discretionary Uses

Administrative/Sales Office

Agriculture, Intensive

Athletic and Recreational Facility, Indoor

Automotive and Equipment Repair

Automotive Sales and Rentals

Bulk Fuel Station

Car Wash

Crematorium

Eating and Drinking Establishment

Educational Institution

Employee Housing

Industrial Sales and Rentals

Kennel

Logging Operation

Office (above the ground floor, east of Elk Run Boulevard only)

Open Space

Outdoor Storage

Pet Care Facility

Printing Establishment

Recycling Depot

Retail Sales

Storage Facility

Transportation Terminal

Trucking Establishment

5.3.3 Regulations

- 5.3.3.1 The minimum lot area shall be 557 m².
- 5.3.3.2 The minimum lot width shall be 15.0 m.
- 5.3.3.3 The minimum front yard setback shall be 15.0 m adjacent to Bow Valley Trail and 7.5 m on all other sites.
- 5.3.3.4 The minimum side yard setback shall be 3.0 m abutting any residential district; 3.0 m on the street side of a corner site; and zero at other locations,
- 5.3.3.5 The minimum rear yard setback shall be zero except where the site abuts a residential district, in which the minimum rear yard setback shall be 6.0 m.
- 5.3.3.6 The maximum building height shall be 11.0 m.

5.3.4 Restrictions on Non-Industrial Uses and Developments

- 5.3.4.1 In order to ensure that this District meets its purpose as a general industrial area, non-industrial uses will only be approved where such uses do not displace current industrial uses nor utilize land or buildings with potential development for general industrial purposes.

5.3.5 Additional Regulations

- 5.3.5.1 The maximum GFA of an Automotive Sales and Rentals development shall be 4,000 m².
- 5.3.5.2 An Eating and Drinking Establishment may be considered and approved in this District only where the proposed location is not generally suitable for industrial uses.
- 5.3.5.3 The maximum GFA of an Eating and Drinking Establishment shall be 93.0 m².
- 5.3.5.4 An Office development shall only be located above the ground floor of a building and shall be located east of Elk Run Boulevard only.
- 5.3.5.5 Environmental Issues
 - a. At the discretion of the Development Authority, uses which involve the storage of hazardous materials may be considered where the Authority is satisfied contaminants can be safely contained on site.
 - b. Industrial uses which emit airborne pollutants or noxious odours or which have unacceptable fire or explosive risks shall not be allowed within this District.
 - c. An application for approval of a use employing flammable chemical materials must be accompanied by the plan approved by the Provincial Fire Marshall.
 - d. A storage vessel with a volume exceeding 7,570 litres and which contains liquefied petroleum products shall:
 - i. Meet all applicable Federal or Provincial safety standards;
 - ii. Be set back at least 15.0 m from all property lines; and
 - iii. Be at least 121 m from any place used or which may be used for public assembly such as schools, Hospitals, theatres, and residential areas.

5.3.5.6 Landscaping and Screening

- a. Outdoor Storage shall be screened and fenced to the satisfaction of the Development Authority.
- b. A Kenel or Pet Care Facility shall have adequate separation from residential areas and must be designed, constructed and operated in a manner to prevent a nuisance to any residential area in regard to such factors as noise, odours and waste.
- c. The front yard setbacks shall not apply to freestanding or projecting Signs.
- d. All outdoor areas for the purpose of conducting Industrial Operations, storage areas, and waste handling areas shall be screened from view from roadways and park reserves, to the satisfaction of the Development Authority.
- e. Development on all sites adjacent to a residential district shall be screened from the view of the residential district, to the satisfaction of the Development Authority.
- f. All apparatus on the roof shall be screened to the satisfaction of the Development Authority.

5.3.6 Employee Housing Provisions

5.3.6.1 Employee Housing may be considered and approved in this District, only when located above the ground floor of a building and when the following issues can be addressed to the satisfaction of the Development Authority:

- a. Adequate long-term and legally-binding provisions are in place to ensure the units remain as bona fide Employee Housing and are demonstrably subordinate in terms of area and intensity to other uses in the building.
- b. The space proposed for Employee Housing would not be reasonably used for commercial or industrial purposes.
- c. The Employee Housing units are appropriate in design for Employee Housing, particularly with respect to the unit size.
- d. Employee Housing units would not constrain any future permitted or discretionary, commercial or industrial uses from developing on the site or on surrounding areas.
- e. Employee Housing would not unduly interfere with existing and any potential industrial development in the area.
- f. Outdoor Amenity Space such as balconies may be provided as part of the Employee Housing while meeting all of the above-described requirements in regard to impacts to or from adjacent industrial uses.

5.4 SB SOUTHERN BUSINESS DISTRICT

Purpose

To be a gateway to the community and provide for a range of Light Manufacturing and other light industrial uses.

5.4.1 Permitted Uses

Accessory Building
Arts and Craft Studio [2020-16]
Brewery/Distillery
Contractor Service and Repair
Essential Public Service
Laboratory
Laundry Facility, Industrial
Light Manufacturing
Open Space
Transportation Terminal
Veterinary Clinic

5.4.2 Discretionary Uses

Administrative/Sales Office
Airport [2020-16]
Athletic and Recreation Facility, Indoor
Automotive and Equipment Repair
Automotive Sales and Rentals
Car Wash
Eating and Drinking Establishment
Educational Institution
Employee Housing
Funeral Home
Gas Bar and Service Station
Industrial Operation
Kennel
Logging Operation
Office
Outdoor Storage
Pet Care Facility
Retail Sales

5.4.3 Regulations

- 5.4.3.1 The minimum lot area shall be 1,000.0 m².
- 5.4.3.2 The front yard setback shall be 4.5 m.
- 5.4.3.3 Development shall be setback from the Trans Canada highway by a minimum of 15.0 m.
- 5.4.3.4 Development shall be setback from a roadway by a minimum of 3.0 m.

- 5.4.3.5 The maximum building height shall be 11.0 m with a maximum eave line height of 8.0 m.

5.4.4 Use-Specific Regulations

- 5.4.4.1 Outdoor Storage shall only be approved where, in the opinion of the Development Authority, the storage area would not be visible from the Bow Valley Trail or the Trans-Canada Highway.
- 5.4.4.2 A use accessory to any permitted or discretionary use may be approved so long as it does not exceed a maximum GFA of 200 m².
- 5.4.4.3 Notwithstanding 5.4.5.4, where a development is approved for Automotive Sales and Rentals, display of vehicles in the front yard may be permitted. In these instances the majority of vehicles should be in the rear or side yard.
- 5.4.4.4 The maximum GFA of a Retail Sales development shall be 150 m². Where an application is made for Retail Sales and its primary purpose is to provide a service to visitors, a total GFA may be permitted up to a maximum of 300 m². **[2021-24]**

5.4.5 Special Regulations

- 5.4.5.1 The minimum first floor ceiling height shall be ≥ 5.0 m. **[2021-24]**
- 5.4.5.2 Areas approved for Outdoor Storage must be paved and include adequate drainage facilities to the satisfaction of the Development Authority.
- 5.4.5.3 All developments adjacent to the Trans-Canada Highway must be visually screened with landscaping.
- 5.4.5.4 For developments fronting on Bow Valley Trail, parking spaces are not permitted between the building(s) and Bow Valley Trail.
- 5.4.5.5 Design of site and buildings shall conform to the Landscaping (Subsection 11.4.3) and Materials and Colours (Subsection 11.5.7) sections of Section 11: Community Architectural and Urban Design Standards.

5.4.6 Employee Housing Provisions

- 5.4.6.1 Employee Housing shall be restricted for the exclusive use of employees as defined in Section 13: Definitions, to the satisfaction of the Development Authority.
- 5.4.6.2 Employee Housing shall meet the following maximum unit size criteria:
- a. Bachelor - 37.0 m²
 - b. One bedroom - 51.0 m²
 - c. Two bedroom - 65.0 m²
 - d. Three bedroom - 84.0 m²
 - e. The total unit size for Employee Housing in Common Amenity Housing style development is 35 m²/bedroom. **[2020-16]**
- 5.4.6.3 Employee Housing shall be located above the ground floor.

- 5.4.6.4 Employee Housing shall be integrated into the development.
- 5.4.6.5 A maximum of 30% of the total GFA of the building(s) on site may be used for Employee Housing purposes.
- 5.4.6.6 Employee Housing units shall be designed to reduce exterior noise and vibration from adjacent uses. All Employee Housing units shall be designed so that noise levels from adjacent uses do not exceed 35dBA (Leq) in bedrooms and 40dBA (Leq) in all other living spaces. Development Permit applications shall include a professionally prepared acoustical report to confirm compliance with this requirement.

SECTION 6 MISCELLANEOUS LAND USE DISTRICTS

- 6.1 PD Public Use District**
- 6.2 FD Future Development District**
- 6.3 ED Environment District**
- 6.4 NP Natural Park District**
- 6.5 CW Conservation of Wildlands District**

6.1 PD PUBLIC USE DISTRICT

Purpose

To provide for public, quasi-public and community uses and developments on lands owned or operated by the Town, not-for-profit community organizations, or Provincial or Federal governments.

6.1.1 Permitted Uses

Open Space

Public Building

Public Utility

6.1.2 Discretionary Uses

Accessory Building

Athletic and Recreational Facility, Indoor

Athletic and Recreational Facility, Outdoor

Campground

Care Facility

Cemetery

Cultural Establishment

Day Care

Educational Institution

Hospital

Transportation Terminal

6.1.3 Regulations

6.1.3.1 The minimum setback for all yards shall be 6.0 m.

6.1.3.2 The maximum building height shall be 11.0 m.

6.1.4 Historic Resources

6.1.4.1 The properties identified in Schedule A, as well as the properties adjacent to them are subject to Subsection 7.7 - Historic Resources.

6.2 FD FUTURE DEVELOPMENT DISTRICT

Purpose

To designate land that is potentially suited for future urban uses including subdivision and development.

6.2.1 Permitted Uses

Public Utility

6.2.2 Discretionary Uses

Accessory Building

Agriculture, Extensive

Agriculture, Intensive

Athletic and Recreational Facility, Outdoor

Campground

Open Space

Public Building

6.2.3 Regulations

6.2.3.1 The minimum lot area shall be 16.0 hectares.

6.2.3.2 The minimum site width shall be 91.0 m.

6.2.3.3 The minimum setback for all yards shall be 15.0 m.

6.2.3.4 The maximum building height shall be 8.5 m.

6.2.4 Groundwater Protection

6.2.4.1 Where developments in this district are within the Wellhead Protection Area, they shall conform to the regulations and use prohibitions described in the Wellhead Protection Area Regulations, Subsection 7.4.2 in this Bylaw.

6.3 ED ENVIRONMENT DISTRICT

Purpose

To identify publicly owned lands to be left in their natural state for the protection, conservation, and enhancement of the environment.

6.3.1 Permitted Uses

Open Space

Public Utility

Wildlife Corridor

Wildlife Habitat Patch

6.3.2 Discretionary Uses

Accessory Building

6.3.3 Regulations

- 6.3.3.1 Developments and uses shall conform to the requirements of Environmental Reserve and Municipal Reserve parcels as described in the Act.

6.4 NP NATURAL PARK DISTRICT

Purpose

To protect existing open spaces which are primarily in a natural condition for the purpose of recreation uses which do not require modifications to existing vegetation or terrain. The District is intended for non-intensive uses which utilize the existing terrain and vegetation present on the site.

6.4.1 Permitted Uses

Open Space

Trail

Sign

Wildlife Habitat Patch

Wildlife Corridor

6.4.2 Discretionary Uses

Accessory Building

6.4.3 Regulations

- 6.4.3.1 Development that requires changes to existing grades over extensive areas for purposes other than trails, individual benches, picnic tables, or basic sanitary facilities shall not be located within this District.
- 6.4.3.2 Any development, including an increased intensity of existing uses, shall be evaluated for potential impact on wildlife habitat and movement both within, and adjacent to, the proposed development.

6.5 CW CONSERVATION OF WILDLANDS DISTRICT

Purpose

To designate areas for the protection, conservation and enhancement of the environment including biological diversity, the protection, conservation and enhancement of natural scenic or aesthetic values and where consistent with either of the above, for low-impact recreational, open space or environmental educational use.

6.5.1 Permitted Uses

Wildlife Corridor

Wildlife Habitat Patch

6.5.2 Discretionary Uses

Accessory Building

Accessory Uses to developments approved prior to third reading of Bylaw 09-99 **[2020-17]**

Existing developments on a specific site prior to third reading of Bylaw 09-99 **[2020-17]**

Pedestrian Pathway

Public Utility

Trail

6.5.3 Regulations

6.5.3.1 The minimum setback for all yards shall be 15.0 m.

6.5.3.2 The maximum height of buildings shall be 10.0 m.

6.5.3.3 Development Permit applications shall demonstrate to the satisfaction of the Development Authority that the proposed development or expansion to existing development will not detract from the quality of the natural values of the area surrounding the proposed development or expansion. **[2020-17]**

6.5.3.4 Operating and progressive reclamation plans shall be required as part of the Development Permit application requirement for the surface expansion of any existing quarrying operation. **[2020-17]**

SECTION 7 DEVELOPMENT OVERLAYS

- 7.1 Development Overlays Overview**
- 7.2 Valley Bottom Flood Hazard Overlay**
- 7.3 High Groundwater Area Overlay**
- 7.4 Groundwater Protection Overlay**
- 7.5 Airport Vicinity Protection Area Overlay**
- 7.6 Sub-Surface Hazards Overlay**
- 7.7 Historic Resources Overlay**
- 7.8 Steep Creek Hazard Overlay**

7.1 DEVELOPMENT OVERLAYS OVERVIEW

Purpose

The purpose of an overlay is:

- a. To facilitate the implementation of specific goals and objectives contained in adopted statutory plans, including the Municipal Development Plan, Area Structure and Redevelopment Plans or conceptual schemes, including the protection of preservation of areas having topographical or environmental features or hazards that encompass large areas of the town; or
- b. For any other purpose deemed necessary by Council.

7.1.0.1 All overlays shall be applied and interpreted such that the underlying land use district and its regulations are read in conjunction with the overlay, but that the underlying district is considered subordinate when there is a discrepancy between the two districts.

7.1.0.2 Lands subject to an overlay are indicated on the land use overlay maps provided in this section of this Bylaw.

7.2 VALLEY BOTTOM FLOOD HAZARD OVERLAY

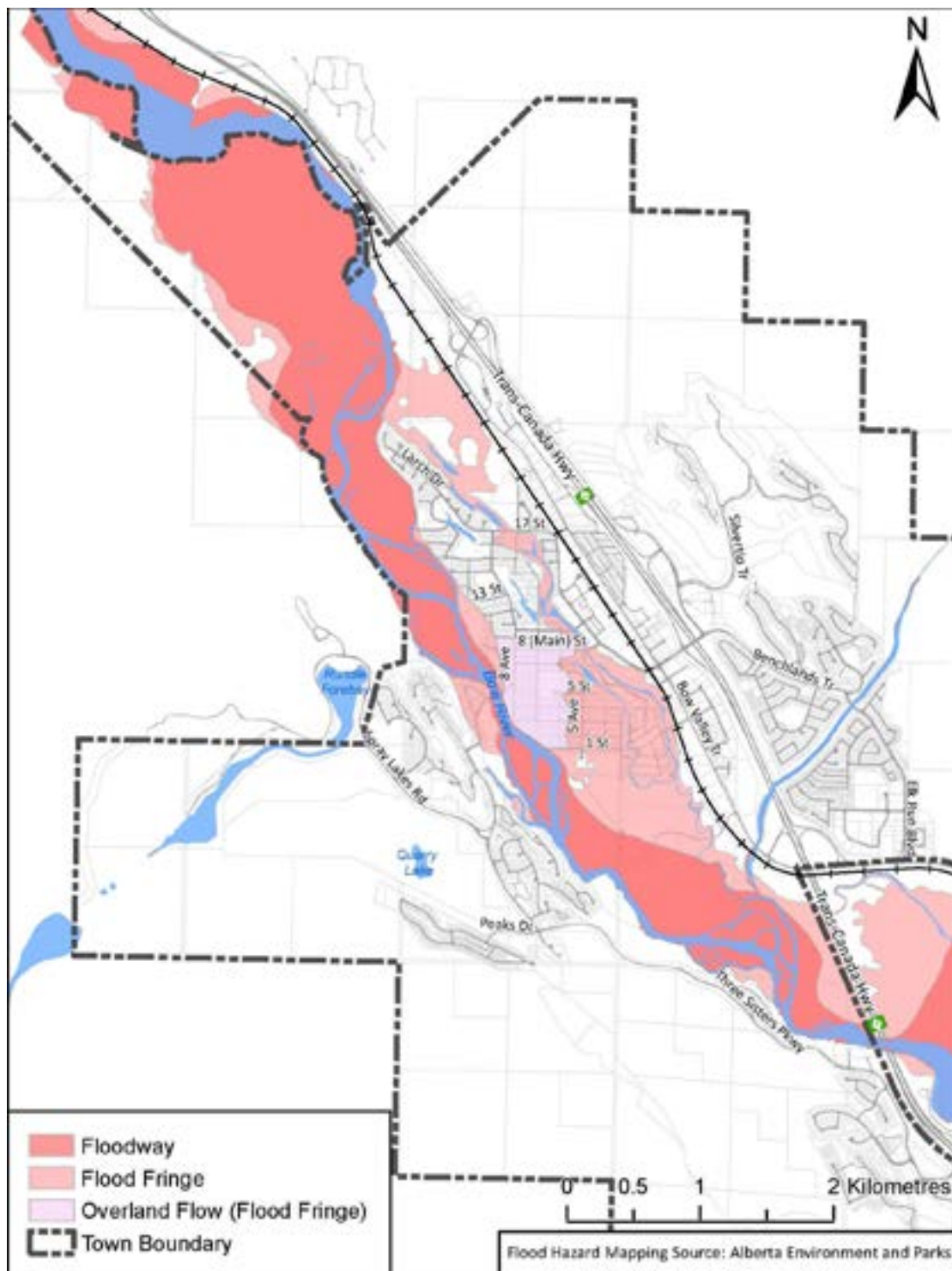
Purpose

The purpose of this section is to regulate the use of land within areas affected by floods in the Valley Bottom.

7.2.1 Regulations

7.2.1.1 For parcels located in the Floodway, Flood Fringe or Overland Flow area, as shown in Figure 7.2-1, the requirements of this section apply. Where there is any conflict between this section and any other requirements of this Bylaw, the provisions of this section shall prevail.

Figure 7.2-1 Floodway, Flood Fringe, and Overland Flow Areas



- 7.2.1.2 The Overland Flow Elevations map in the Town of Canmore Engineering Design and Construction Guidelines provides the minimum design flood level elevations within the Flood Fringe and Overland Flow areas. The minimum design elevations established shall be a requirement for all properties proposing development in these areas.

7.2.2 Floodway Area Uses and Regulations

- 7.2.2.1 The following uses shall be allowed in the Floodway, when listed as either Permitted or Discretionary in the underlying Land Use District for which the site is designated:
- a. Agriculture, Extensive
 - b. Athletic and Recreational Facility, Outdoor
 - c. Open Space
 - d. Public Utility
 - e. Wildlife Corridor
 - f. Wildlife Habitat Patch
- 7.2.2.2 Except for Public Utilities, no new buildings or Outdoor Storage shall be allowed in the Floodway.
- 7.2.2.3 No alterations shall be made to a Floodway.
- 7.2.2.4 No structures shall be constructed on, in, or under a Floodway, unless, in the opinion of the Development Authority, there will be no obstruction to floodwaters and no detrimental effect on the hydrological system or water quality, including the natural interface of the riparian and aquatic habitat. Such structures include, but are not limited to, riprap, berms, fences, walls, gates, patios, docks or decks.

7.2.3 Flood Fringe Area and Overland Flow Area Regulations

- 7.2.3.1 For the Flood Fringe Area and Overland Flow Area, the uses listed in the applicable Land Use District for the site shall be allowed.
- 7.2.3.2 No storage of chemicals, explosives, flammable liquids, toxic or waste materials that cannot be readily removed in the event of a flood shall be allowed.
- 7.2.3.3 All electrical, heating, air conditioning and other mechanical equipment shall be located at or above the design flood level.
- 7.2.3.4 All buildings shall be designed and constructed with the ground floor elevation at or above the design flood level.
- 7.2.3.5 The requirements of Subsection 7.2.3.4 are encouraged but not required in the following situations:
- a. Construction of an Accessory Building, provided that the Accessory Building is not an Accessory Dwelling Unit,
 - b. Attached garages, where work is conducted in accordance with the recommendations of the Alberta Building Code STANDATA relating to flood mitigation;

- c. Renovations and repairs to an existing building; and
 - d. Where the Development Authority deems it unreasonable to meet the requirements due to site specific constraints and where work is conducted in accordance with the recommendations of the Alberta Building Code STANDATA relating to flood mitigation.
- 7.2.3.6 Notwithstanding 7.2.3.5, basements or building additions below the design flood level shall not be allowed.

7.3 HIGH GROUNDWATER AREA OVERLAY

Purpose

The purpose of this section is to regulate the use of land within areas affected by high groundwater.

7.3.1 Regulations

- 7.3.1.1 The requirements of this section shall apply for all parcels within the area shown in Figure 7.3-1.
- 7.3.1.2 Figure HLC9.8 in Section 9 of the Town of Canmore Engineering Design and Construction Guidelines provide the design 1:100 year groundwater flood elevations for the High Groundwater Area and this design shall apply.
- 7.3.1.3 All electrical, heating, air conditioning and other mechanical equipment shall be located at or above the design groundwater flood elevation.
- 7.3.1.4 All buildings shall be designed and constructed with the ground floor elevation at or above the design groundwater flood elevation.
- 7.3.1.5 The requirements of Subsection 7.3.1.4 are encouraged but not required in the following situations:
- a. Construction of an Accessory Building, provided that the Accessory Building is not an Accessory Dwelling Unit;
 - b. Attached garages, where work is conducted in accordance with the recommendations of the Alberta Building Code STANDATA relating to flood mitigation and in accordance with the provisions of the Engineering Design and Construction Guidelines;
 - c. Renovations and repairs to an existing building;
 - d. In mixed use, commercial or multi-unit residential developments the Development Authority may allow underground parking below the 1:100 year design groundwater table geodetic elevation, in accordance with the provisions of the Engineering Design and Construction Guidelines; and
 - e. Where the Development Authority deems it unreasonable to meet the requirements due to site specific constraints and where work is conducted in accordance with the recommendations of the Alberta Building Code STANDATA relating to flood mitigation.
- 7.3.1.6 Notwithstanding 7.3.1.5, a new basement or building addition(s) that is below the 1:100 design groundwater flood elevation shall not be allowed. **[2020-16]**

7.3.2 Schedules

Figure 7.3-1



7.4 GROUNDWATER PROTECTION OVERLAY

Purpose

The purpose of this section is to regulate the use of land to protect groundwater.

7.4.1 General Groundwater Protection Regulations

- 7.4.1.1 All development within the Town of Canmore shall adhere to the requirements for the protection of groundwater as described in this Bylaw and the Engineering Design and Construction Guidelines.

7.4.2 Wellhead Protection Area Regulations and Prohibited Uses

- 7.4.2.1 Development wholly or partly within the Wellhead Protection Area, Schedule A, shall comply with the relevant wellhead protection requirements of the Engineering Design and Construction Guidelines.
- 7.4.2.2 Notwithstanding the Permitted or Discretionary Uses within any Land Use District, the following uses and developments are prohibited within the Wellhead Protection Area unless a District contains regulations that require use-specific conditions for the extraordinary protection of groundwater within the Wellhead Protection Area (e.g. Automotive and Equipment Repair within the GD-2 Land Use District):
- a. Automotive and Equipment Repair
 - b. Hazardous waste Recycling Depot
 - c. Hazardous waste transfer stations
 - d. Gas Bar and Service Station
 - e. Laboratory
 - f. Laundry Facility
 - g. Laundry Facility, industrial
 - h. Any other uses or developments that are determined through a qualified professional assessment to pose a serious risk to the aquifer.

7.4.3 Construction Activity Control Area

- 7.4.3.1 Construction activities located within the Wellhead Capture and Protection Zone shall be conducted in accordance with the Engineering Design and Construction Guidelines.

7.4.4 Stormwater Disposal Control near Watercourses

- 7.4.4.1 Stormwater treatment and disposal for areas within 500 m of a water course (500 m Infiltration Zone) shall be in accordance with the Town of Canmore Engineering Design and Construction Guidelines.

7.4.5 Schedules

Figure 7.4-1



7.5 AIRPORT VICINITY PROTECTION AREA OVERLAY

Purpose

The purpose of this section is to regulate the use of land within areas in proximity to the airport.

7.5.1 General Provisions

7.5.1.1 The area described in 1.10.5 is established as the Canmore Airport Vicinity Protection Area

7.5.1.2 This AVPA Overlay applies to a development wholly or partly within the boundary of the Protection Area.

7.5.1.3 All developments within the Protection Area require a Development Permit except for those that comply with both the height limitations in Subsection 7.5.8 and with the exemptions for Development Permits described in Section 1: Administration.

7.5.2 Accessory Land Use

7.5.2.1 If a Development Permit application is made for a development that involves an accessory land use, structure or development that, in the opinion of the Development Officer:

- a. Is more sensitive to external noise than the major land use, structure or development;
- b. Attracts birds;
- c. Generates a large amount of smoke or dust or both;
- d. May detrimentally impacts flight paths or the NEF

then the Development Officer shall require the applicant to submit a report prepared by a qualified professional regarding the potential impacts of the proposed development on the operation of the heliport.

7.5.3 Height Limitations

7.5.3.1 For the purposes of this section:

- a. If the development is a railway, the highest point of the development shall be deemed to be 6.0 m higher than the actual height of the rails.
- b. If the development is a highway or public roadway, the highest point of the development shall be deemed to be 4.5 m higher than the actual height of the part of the highway or public roadway on which vehicles travel.

7.5.4 Amendment

7.5.4.1 An application for amendment to the AVPA or NEF boundaries may be made to the Town with the submission of an acoustical report demonstrating that the proposed development is not within current NEF Contours and is in compliance with Section 1: Administration.

7.5.5 Schedule 1: AVPA Boundary and Noise Exposure Forecast Zones



7.5.6 Schedule 2: Land Use in Relation to Noise Exposure Forecast Areas

7.5.6.1 The performance criteria utilized to determine permitted and conditional land uses are as follows:

- a. Uses that involve continuous human occupancy:

Conditional approval above the 25 NEF Contour; not permitted above the 30 NEF Contour.

- b. Uses that involve temporary medium term human occupancy where the majority of people occupy the space for an 8-hour work period (employee oriented) (e.g. commercial/office uses, restaurants and hotels):

Conditional approval above the 30 NEF Contour; not permitted above the 40 NEF Contour.

- c. Uses that involve temporary short term human occupancy where the majority of people occupy the space temporarily (customer oriented) (e.g. drive-in restaurants, vehicle and equipment sales):

Not permitted above the 40 NEF Contour.

- d. Uses that involve the assembly of people (e.g. clubs, fraternal organizations):

Conditional approval above the 30 NEF Contour; not permitted above the 40 NEF Contour.

- e. Uses that involve outdoor recreation:

Conditional approval above the 30 NEF Contour.

- f. Uses that involve outdoor accommodation (e.g. camping, R.V. trailer park):

Not permitted above the 35 NEF Contour.

- g. Uses that may attract birds or produce large quantities of smoke, dust or both:

Referral required.

- h. Uses that, because of their nature, are not adversely affected by external noise due to limited or no human occupancy or sufficient internal noise generation:

Permitted.

- i. Uses that may be adversely affected by external noise but do not involve human occupancy (e.g. Kennel, fur farm):

Referral required above the 25 NEF Contour.

- 7.5.6.2 Other uses than those listed above in 7.5.6.1 require specific determination of noise compatibility.

7.5.7 Schedule 3: Land Use Classification

- 7.5.7.1 The Airport Urban District (A-U) refers to the area within the AVPA Overlay where the Town of Canmore Land Use Bylaw districts apply.

- 7.5.7.2 Within Table 1, the abbreviations mean the following:

C - use may be approved conditionally provided that the following processes and/or conditions are applied to an application:

C1 - Construction shall conform to the exterior acoustic insulation requirements of the Alberta Building Code (current version) for those NEF areas other than the NEF 25-Area unless otherwise stated in this Regulation. Where this condition is specified, the Development Officer shall indicate on the Development Permit the noise contours between which the proposed development site would be located for reference of a Safety Codes Officer at the time the building permit application is filed.

C2 - A copy of the application must be reviewed by a qualified professional as part of the development application process before the Development Officer decides whether or not a Development Permit will be issued.

C3 - The development shall not include structures for the seating of spectators except as varied to allow seating that, in the opinion of the Development Officer, is minor in nature.

P - The use is permitted without special conditions to accommodate the AVPA if the use is provided for in the applicable Land Use District in the Land Use Bylaw.

NA - The use is not allowed notwithstanding that it may be a Permitted Use or a Discretionary Use within the applicable Land Use District.

TABLE 1: LAND USE CLASSES IN THE AIRPORT URBAN DISTRICT (A-U) [2020-16]

LAND USE	PERFORMANCE CRITERIA	NOISE EXPOSURE FORECAST AREAS				
		NEF 25 Area	NEF 25-30 Area	NEF 30-35 Area	NEF 35-40 Area	NEF 40 Area
ATHLETIC & RECREATIONAL USES						
Archery Range	6	P	P	C3	C3	C3
Arenas and Swimming Pool	5	P	P	C1	C1	NA
Gun Club	9	P	P	P	P	P
Tennis Court	6	P	P	C3	C3	C3
AUTO SERVICE USE						
Automotive Sales and Rentals	4	P	P	P	P	NA
Auto Wreckers	9	P	P	P	P	P
Car Wash	9	P	P	P	P	P
Gas Bar	4	P	P	P	P	NA
Parking Facility	9	P	P	P	P	P
Recreational Vehicle Sale and Rental	4	P	P	P	P	NA
Recreational Vehicle Parking	9	P	P	P	P	P
Service Station	4	P	P	P	P	NA
Trailer Drop-off Site	9	P	P	P	P	P
ENTERTAINMENT USES						
Cultural Establishments	5	P	P	C1	C1	NA
Drive-in Food Services	4	P	P	P	P	NA

LAND USE	PERFORMANCE CRITERIA	NOISE EXPOSURE FORECAST AREAS				
		NEF 25 Area	NEF 25-30 Area	NEF 30-35 Area	NEF 35-40 Area	NEF 40 Area
Eating and Drinking Establishments	3	P	P	C1	C1	NA
Entertainment Establishments	5	P	P	C1	C1	NA
Private Clubs and Lodges	5	P	P	C1	C1	NA
Theatre	5	P	P	C1	C1	NA
GENERAL COMMERCIAL USES						
Amusement Arcades	4	P	P	P	P	NA
Arts and Crafts Studio	3	P	P	C1	C1	NA
Banks	3	P	P	C1	C1	NA
Barber and Beauty Shop	3	P	P	C1	C1	NA
Bowling Alleys and Pool Halls	4	P	P	P	P	NA
Convenience Store and Grocery Store	4	P	P	P	P	NA
Clinics, Medical Office	3	P	P	C1	C1	NA
Garden Centres	9	P	P	P	P	P
Hotels, Motels	3	P	C1	C1	NA	NA
Laundromat	4	P	P	P	P	NA
Liquor Store	4	P	P	P	P	NA
Office and Laboratories	3	P	P	C1	C1	NA
Shopping Centres	3	P	P	C1	C1	NA
Souvenir Shops	3	P	P	C1	C1	NA
Tourist Information Centre	4	P	P	P	P	NA
MISCELLANEOUS SERVICE USES						
Bus Depot	4	P	P	P	P	NA
Kennel	10	P	C2	C2	C2	C2
Sign	9	P	P	P	P	P
Train Station	4	P	P	P	P	NA
Taxi Stand	9	P	P	P	P	P

LAND USE	PERFORMANCE CRITERIA	NOISE EXPOSURE FORECAST AREAS				
		NEF 25 Area	NEF 25-30 Area	NEF 30-35 Area	NEF 35-40 Area	NEF 40 Area
Veterinary Clinic	10	P	C2	C2	C2	C2
OUTDOOR PARK USES						
Campgrounds	7	P	P	P	NA	NA
Cross-country Skiing Trails	6	P	P	C3	C3	C3
Golf Course	6	P	P	C3	C3	C3
Jogging Trail	6	P	P	C3	C3	C3
Managed or Supplemental Natural Bird Habitats	8	C2	C2	C2	C2	C2
Outdoor Theatre	8	C2	C2	C2	C2	C2
Playground	6	P	P	C3	C3	C3
Public Park	6	P	P	C3	C3	C3
PUBLIC & QUASI-PUBLIC USES						
Church	5	P	P	C1	C1	NA
Community Centre	5	P	P	C1	C1	NA
Hospital and Nursing Home	1	P	C1	NA	NA	NA
Library	3	P	P	C1	C1	NA
School	3	P	P	C1	C1	NA
PUBLIC UTILITY USES						
Communications Tower (radio, television, etc)	9	P	P	P	P	P
Public Incinerator	8	C2	C2	C2	C2	C2
Radio Station	3	P	P	C1	C1	NA
Sanitary Landfill Site	8	C2	C2	C2	C2	C2
Residential Infill and Replacement	2	P	C1	C1	C1	C1

7.5.8 Schedule 4: Structural Height Limitations

- 7.5.8.1 Schedule 4 illustrates the maximum height, in metres, of buildings and any other structures above the AVPA Base Elevation of 1309.42 m above sea level.



7.6 SUB-SURFACE HAZARDS OVERLAY

Purpose

To designate areas that are subject to development constraints caused by undermining or other potential sub-surface hazards.

7.6.1 General Regulations

7.6.1.1 The requirements of this section shall apply for all parcels within the area shown in Figure 7.6-1.

7.6.1.2 Except for Public Utilities, no new buildings shall be permitted in this overlay.

7.6.1.3 The following uses shall be allowed in this overlay, when listed as either Permitted or Discretionary in the underlying Land Use District for which the site is designated:

- a. Agriculture, Extensive
- b. Agriculture, Intensive
- c. Athletic and Recreational Facility, Outdoor
- d. Open Space
- e. Public Building
- f. Public Utility

7.6.2 Special Requirements: Lands in the Vicinity of Reclaimed Landfill Site

7.6.2.1 No development application shall be approved and no Development Permit shall be issued for lands within this Overlay that are in the vicinity of the former landfill site unless a report satisfactory to the Town of Canmore confirms that the potential development problems associated with the proposed development in the vicinity of a former sanitary landfill site have been examined and resolved. Such report is to include examination and resolution of the possible subsidence and problems and possible danger arising from accumulations of methane or other gases.

07 DEVELOPMENT OVERLAYS

Figure 7.6-1 Sub-surface hazard



7.7 HISTORIC RESOURCES OVERLAY

Purpose

The purpose of this section is to encourage the conservation, preservation of heritage character and reuse of historic buildings and sites.

7.7.1 Historic Resources Inventory

7.7.1.1 The properties as noted in Schedule A are those that comprise the Historic Resource Inventory. Additional Historic Resources may be added by Council following further review and public consultation.

7.7.1.2 Properties on the Inventory and those properties adjacent to Inventory properties shall be subject to the provisions of this section of this Bylaw.

7.7.1.3 The criteria utilized to include properties on the Historic Resources Inventory include:

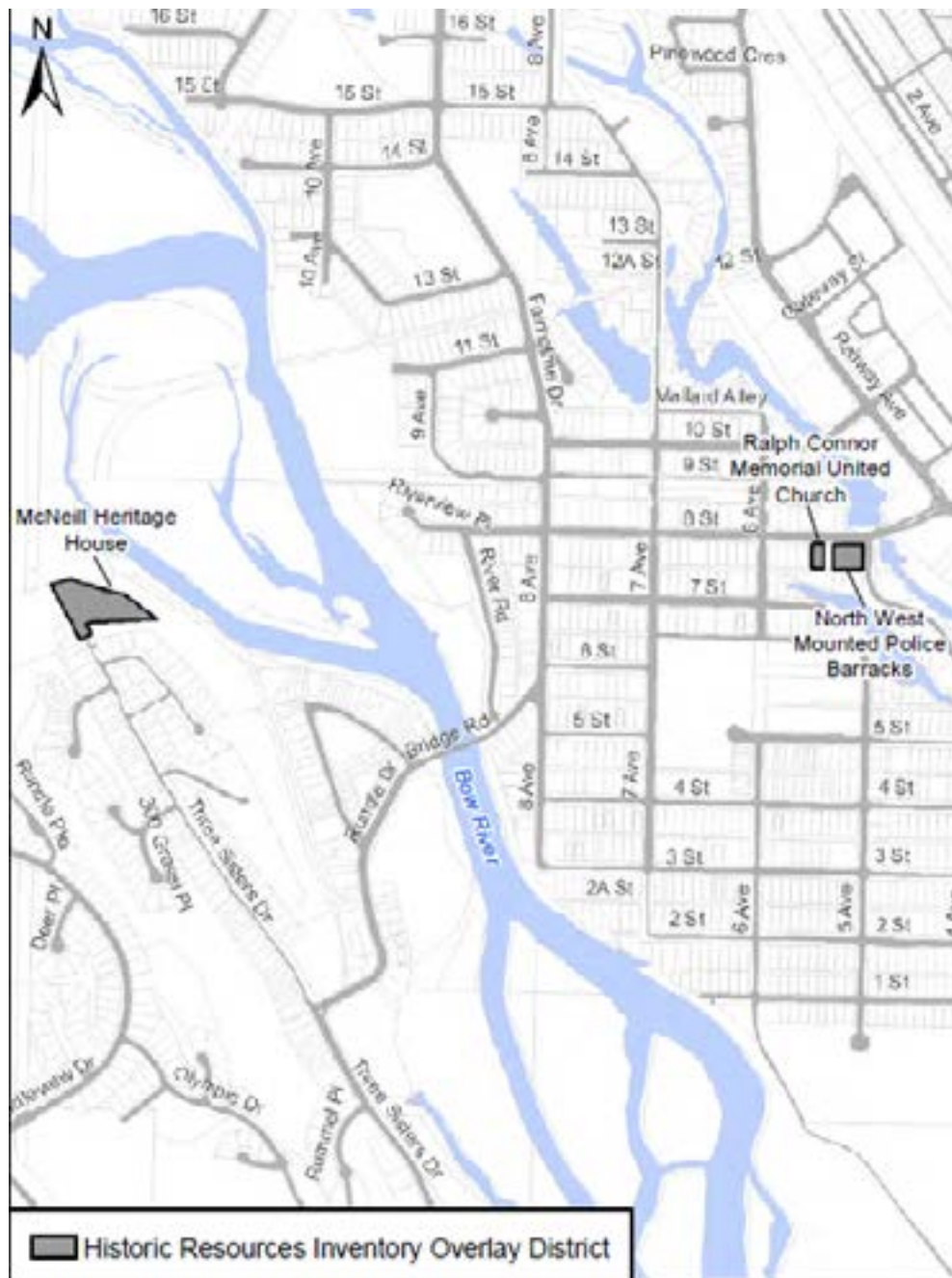
- a. The age of the structure should generally be 60 to 70 years or older; and
- b. The unique nature or appearance of the structure or site; and
- c. The historic significance of the structure or site with respect to events or people of interest; and
- d. The degree of modification made to the structure internally and externally; and
- e. The potential for the structure or site to accommodate redevelopment appropriate to the land use district in which it is located.

7.7.2 Schedule A Inventory – Protected Properties

Level of Current Designation	Historic Resource Name & Location	
Provincial Historic Resource	North West Mounted Police Barracks 601 – 609 Main Street Lots 18, 19 & 20, Block 71, Plan 1095 F	
Provincial Historic Resource	Ralph Connor Memorial United Church 617 Main Street Lot 15, Block 71, Plan 1095 F	

Level of Current Designation	Historic Resource Name & Location	
Registered Historic Resource	McNeill Heritage House 500 Three Sisters Drive Lot 24, Block 5, Plan 7610775	

Figure 7.7-1 Historic Resources Inventory Overlay



7.7.3 Modifications to the Historic Resources Inventory

7.7.3.1 The Historic Resources Inventory may be updated periodically by Council. New historical resources may be considered for inclusion on the Inventory upon:

- a. Direction of Council; or
- b. Application by a historic resource owner; or

- c. Recommendation by the Centennial Museum Society of Canmore.
- 7.7.3.2 Any review or update of the Inventory shall involve all resource landowners and adjacent property owners, and shall include appropriate public consultation to the satisfaction of Council.
- 7.7.3.3 Removal of resources from the Inventory shall be by decision of Council, and may be considered upon request from the relevant resource owner.
- 7.7.3.4 All Historic Resources on the Inventory are eligible for Municipal Historic Resource Designation, pursuant to Subsection 7.7.6.
- 7.7.3.5 The Inventory in itself provides no legal authority to preserve or restrict development of a Historic Resource, except as provided for in Subsection 7.7.6.

7.7.4 Development Regulations

- 7.7.4.1 Any Development Permit application for a Historic Resource on the Inventory may be required to provide a Historic Resource Impact Assessment prepared by a qualified professional, if in the opinion of the Development Authority, the historic values or heritage character of the Resource would be affected by the application.
- 7.7.4.2 The Development Authority shall not issue a demolition permit until:
 - a. Conservation measures or options have been explored to its satisfaction; or
 - b. The additional time period for review has expired; or
 - c. Emergency conditions require that the demolition be undertaken; or
 - d. An engineer confirms that the structure cannot reasonably be maintained; or
 - e. The Town has sought permission from the owner to document or collect artifacts from the property.
- 7.7.4.3 Conservation and preservation of heritage character measures are available to all Historic Resources on the Inventory, and may be granted by the Town based on the specific property characteristics, and will be subject to an agreement between the Town and the resource owner. Conservation measures may include:
 - a. Land Use Bylaw amendments to address conservation concerns
 - b. Variances to the Land Use Bylaw setback and height restrictions
 - c. Variances to Land Use Bylaw parking and/or cash in lieu of parking provisions
 - d. Variances to the Architectural and Urban Design Standards
 - e. Technical assistance with protection or development of Historic Resources
 - f. Formal designation as a Municipal Historic Resource under Subsection 7.7.6.
- 7.7.4.4 Conservation and preservation of heritage character measures are intended to preserve the appearance of the Historic Resource principally as seen from the public realm, and may also preserve interior features where appropriate and with the agreement of the resource owner. Conservation measures shall also accommodate reuse and redevelopment of the Historic Resource.

- 7.7.4.5 Where a Development Permit application for a Property of Interest is submitted to the Town, the Town shall consult with the Property of Interest owner to determine if there is any interest on the part of the owner to include the property on the Inventory.

7.7.5 Development Adjacent to Historic Resources

- 7.7.5.1 A development on a site adjacent to a Historic Resource will be allowed to achieve the maximum FAR allowed in the relevant Land Use District.
- 7.7.5.2 Adjacent development shall be arranged on the site to protect significant views of the Historic Resource from the street and other public areas.
- 7.7.5.3 New adjacent development shall not eliminate significant views from or of the Historic Resource of mountains, waterways, landscapes or characteristic vegetation.
- 7.7.5.4 Development adjacent to an identified Historic Resource shall have reduced height and massing to ensure prominence of the Historic Resource.
- 7.7.5.5 Adjacent developments in commercial areas shall minimize the amount of concrete block fire walls adjacent to the Historic Resource.
- 7.7.5.6 The following variances may be granted if they are deemed to be required by the Development Authority to preserve or enhance the adjacent Historic Resource:
- a. Variances to property setbacks and height regulations.
 - b. Variances to parking and/or cash in lieu of parking regulations.
 - c. Variances to the Community Architectural and Urban Design Standards.
 - d. Variances to the distribution of building mass.

7.7.6 Municipal Historic Resource Designation

- 7.7.6.1 Designation of a formal Municipal Historic Resource shall only be undertaken where Council is of the opinion that the resource is sufficiently significant to warrant the legislated level of protection. Agreement of the owner of the Municipal Historic Resource shall be sought by Council prior to undertaking formal designation under this section.
- 7.7.6.2 Designation of a Municipal Historic Resource is intended to preserve the appearance of the Historic Resource principally as seen from the public realm, and may also preserve interior features where appropriate and with the agreement of the resource owner. Designation under a Bylaw shall also accommodate reuse of the Historic Resource.
- 7.7.6.3 Designation of a formal Municipal Historic Resource shall be through a Municipal Historic Resource Bylaw in accordance with the requirements of the Act.
- 7.7.6.4 If the Town seeks to designate a Municipal Historic Resource, the affected resource landowner shall be given 60 days' notice of Council's intention to consider a bylaw pursuant to the Act.
- 7.7.6.5 If the Town seeks to designate a Municipal Historic Resource, the Town may apply the 120-day waiting period pursuant to the Act. During the notice of intent period:
- a. The Historic Resource is protected from alteration

- b. Demolition is not permitted unless it is determined that there are immediate and professionally verified safety or structural concerns
 - c. Conservation incentives and development options will be collaboratively explored by the Town of Canmore and the resource landowner
 - d. Municipal Historic Resource designation may be granted between day 60 to day 120 of the period
- 7.7.6.6 If considered by the Town, a Municipal Historic Resource Bylaw must be passed to grant Municipal Historic Resource designation between days 60 - 120 of the notice period, unless the affected owner of the resource consents to a longer period in writing.
- 7.7.6.7 Landowners may voluntarily apply to have their property designated a Municipal Historic Resource.
- 7.7.6.8 A Municipal Historic Resource designation should only be granted by bylaw when mutually agreed to by the Town and the resource owner.
- 7.7.6.9 Properties who receive designation as a Municipal Historic Resource will be provided a plaque by the Town commemorating the designation.
- 7.7.6.10 Once a resource is designated as a Municipal Historic Resource, a caveat shall be registered on title at the Alberta Land Titles Office.
- 7.7.6.11 If Council repeals a Municipal Historic Resource Bylaw, the removal of the caveat registered on the title at the Alberta Land Titles Office shall also be completed.
- 7.7.6.12 A Municipal Heritage Resource Bylaw runs with the land and should the land or Historic Resource change ownership, the conditions of the Municipal Historic Resource Bylaw continue to apply to the designated resource.
- 7.7.6.13 Conservation incentives that are available only to properties that are formally designated as a Municipal or Provincial Historic Resource include the following:
 - a. Assistance accessing incentives offered by the Province of Alberta
 - b. Advice on heritage equivalencies with regard to the Alberta Building Code
 - c. Historic Resource Conservation through the Heritage Preservation Partnership Program
 - d. Alberta Historical Resources Foundation Heritage Awards
 - e. Technical assistance
 - f. Grant in aid of municipal property taxes through the Town of Canmore
- 7.7.6.14 If an owner of a Municipal Historic Resource is provided any financial incentives as part of a Municipal Historic Resource bylaw, then the Town shall require the owner to enter into an agreement waiving any further compensation claims pursuant to the Act.
- 7.7.6.15 A resource landowner may be eligible to receive a grant covering the municipal portion of their property taxes, commencing January 1 of the year following the year in which Council passes a Municipal Historic Resource Bylaw respecting the property, pursuant to Subsection 7.7.6.16 below.

- 7.7.6.16 Any grant in aid of municipal property tax amount shall be based on associated costs of preservation, rehabilitation, restoration and/or maintenance. A grant shall be tied to the lands on which the historic resource is located and will apply to subsequent resource landowners should the Historic Resource be sold prior to the completion of the grant term.
- 7.7.6.17 Any applications to receive Municipal Historic Resource designation submitted by a resource owner to the Town shall also provide a Statement of Significance including the following information:
- a. Name of the proposed Historic Resource.
 - b. Municipal address and legal description.
 - c. Name and contact information of resource landowner.
 - d. Current copy of the certificate of title.
 - e. Age and history of the Historic Resource.
 - f. Historic photographs or illustrations of the Historic Resource.
 - g. Current colour photographs of the Historic Resource and surrounding site.
 - h. A legal survey of the Historic Resource and site to be designated, prepared by an Alberta Land Surveyor.
 - i. How the project meets the intent of the Standards and Guidelines for Conservation of Historic Places in Canada.
 - j. A copy of the Town of Canmore property tax notice for the year previous to the request being made for compensation.
 - k. Which incentives, if any, are being requested.
- 7.7.6.18 The Town may refer an application to receive Municipal Historic Resource Designation and Bylaw to the Centennial Museum Society of Canmore for comments.
- 7.7.6.19 Any application to receive Municipal Historic Resource Designation should be evaluated on the following criteria:
- a. The manner in which the proposal conforms with the Standards and Guidelines for Historic Places in Canada, the Alberta Building Code, the local significance of the Historic Resource and the Land Use Bylaw.
 - b. Eligibility for inclusion on the Alberta and Canada Registry of Historic Places.
 - c. The extent to which the owner/developer is requesting incentive compensation.
 - d. The costs and benefits to the Town.

7.7.7 Historic Properties of Interest

- 7.7.7.1 Historic Properties of Interest listed below are listed only for the purposes of interest and shall not be subject to the provisions of Subsection 7.7.6 unless they have been moved to the Historic Resource Inventory, Subsection 7.7.2, by decision of Council.
- 7.7.7.2 Where a Development Permit application for a property adjacent to a Property of Interest is submitted to the Town, the Town shall consult with the applicant to determine if there are

design options or alternatives acceptable to the applicant that may mitigate any significant impact on the Property of Interest. The Town may offer incentives such as those described in Subsection 7.7.5.6, above, for design alternatives.

Level of Current Designation	Historic Property of Interest: Name & Location	
Undesignated	Canmore Hotel 738 Main Street Lots 9 & 10, Block 63, Plan 1095F	
Undesignated	Canmore Mines Lamphouse S.E. ¼ Sec. 29, Twp. 24, Rng. 10, W5M	

Level of Current Designation	Historic Property of Interest: Name & Location	
Undesignated	The Mine Manager's House 160 Rundle Crescent Lot 27, Block 2, Plan 841 0472	
Undesignated	Miner's Union Hall 738 7th Street Lot 10, Block 62, Plan 1095 F	

Level of Current Designation	Historic Property of Interest: Name & Location	
Undesignated	St Michael's Church 709 - 713 7th Street Lots 17 & 18, Block 61, Plan 1095 F	
Undesignated	Lot 13, Block 49, Plan 1095 F 830 Main Street	

07 DEVELOPMENT OVERLAYS

Level of Current Designation	Historic Property of Interest: Name & Location	
Undesignated	Lot 12, Block 71, Plan 1095 F 633 Main Street	

7.8 STEEP CREEK HAZARD OVERLAY

Purpose

The purpose of these provisions is to reduce risk to life to an acceptable level, while allowing for the use of land within the defined steep creek hazard zones. Regulations take into consideration both hazard and risk, and are based on the risk tolerance criteria established in the Municipal Development Plan (MDP).

7.8.1 General Regulations

- 7.8.1.1 For the purposes of this section, development which does not materially increase the hazard or the risk shall be allowed in all Steep Creek Hazard Areas and Steep Creek Study Areas and shall generally include, but not be limited to:
- a. Additions to an existing building, provided the addition does not increase the intensity of use;
 - b. Repairs or renovations to an existing building;
 - c. Construction of additional stories above an existing building, provided the addition does not increase the intensity of use;
 - d. Construction, repair or replacement of a deck; and
 - e. Landscaping activities that do not alter site grades or increase the hazard to other properties or buildings.
- 7.8.1.2 All development in the Steep Creek Hazard Overlay shall be designed and constructed in accordance with the Town of Canmore Engineering Design and Construction Guidelines. Development approvals may be granted subject to hazard mitigation in the form of avoidance, resistance and resilience measures, determined on a site-specific basis.

7.8.2 Extreme/High Hazard Zones

- 7.8.2.1 In an Extreme/High Hazard Zone, only the uses listed below shall be allowed if they are listed as Permitted or Discretionary uses in the underlying Land Use District for which the site is designated:
- a. Accessory Building
 - b. Agriculture, Extensive
 - c. Athletic and Recreational Facility, Outdoor
 - d. Bed and Breakfast
 - e. Home Occupation - Class 1
 - f. Home Occupation - Class 2
 - g. Open Space
 - h. Public Utility
 - i. Sign
 - j. Wildlife Corridor
 - k. Wildlife Habitat Patch

7.8.2.2 Bed and Breakfast developments shall not be permitted to operate during the high hazard flood season from May 15 to June 30, annually.

7.8.2.3 Notwithstanding Subsection 1.16, a non-conforming building that is damaged or destroyed greater than 75% of the value of the building above its foundation shall be allowed to be repaired or rebuilt.

7.8.3 Moderate Hazard Zone

7.8.3.1 In a Moderate Hazard Zone, only those uses listed as Permitted or Discretionary in the underlying land use district for which the site is designated shall be allowed where a Site Specific Steep Creek Risk Assessment prepared for the development is within the risk tolerance criteria.

7.8.3.2 Operation of a Bed and Breakfast development in the Moderate Hazard Zone during the period of May 15 to June 30 shall only be allowed where the results of a Site Specific Steep Creek Risk Assessment are within the risk tolerance criteria.

7.8.4 Low Hazard Zone

7.8.4.1 In Low Hazard Zones, only those uses listed as Permitted or Discretionary in the underlying land use district for which the site is designated shall be allowed.

7.8.4.2 At the discretion of the Development Authority, where a development proposal may result in significant damage to buildings or economic losses in the case of an event, the applicant may be required to submit a Site Specific Steep Creek Risk Assessment, to evaluate the development and proposed on-site mitigations.

7.8.5 Steep Creek Study Areas

7.8.5.1 In a Steep Creek Study Area, only the uses listed below shall be allowed, provided they are listed as Permitted or Discretionary in the underlying land use district for which the site is designated:

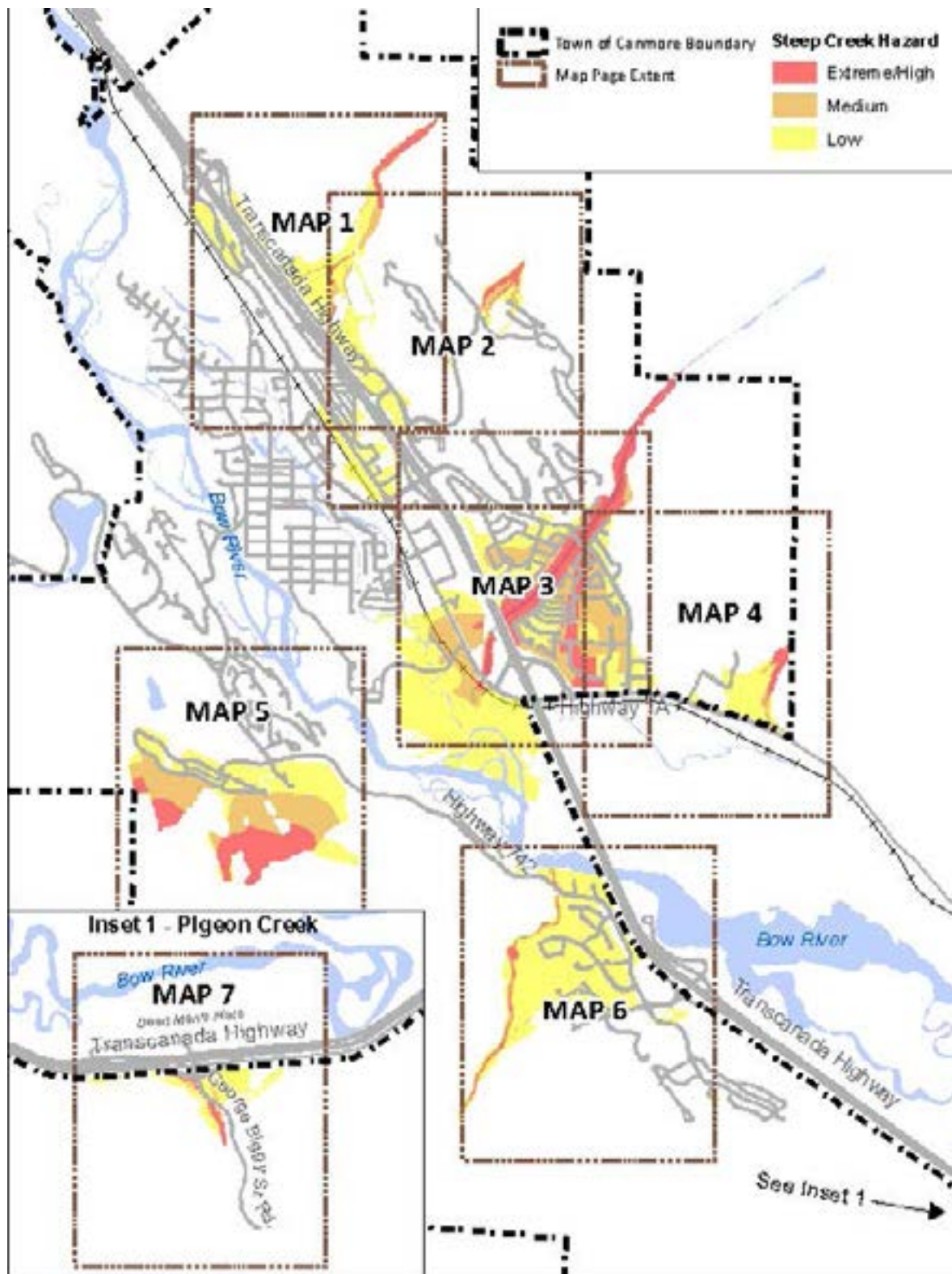
- a. Accessory Building
- b. Agriculture, Extensive
- c. Athletic and Recreational Facility, Outdoor
- d. Open Space
- e. Public Utility
- f. Sign
- g. Wildlife Corridor
- h. Wildlife Habitat Patch

7.8.6 Development Hold Zone

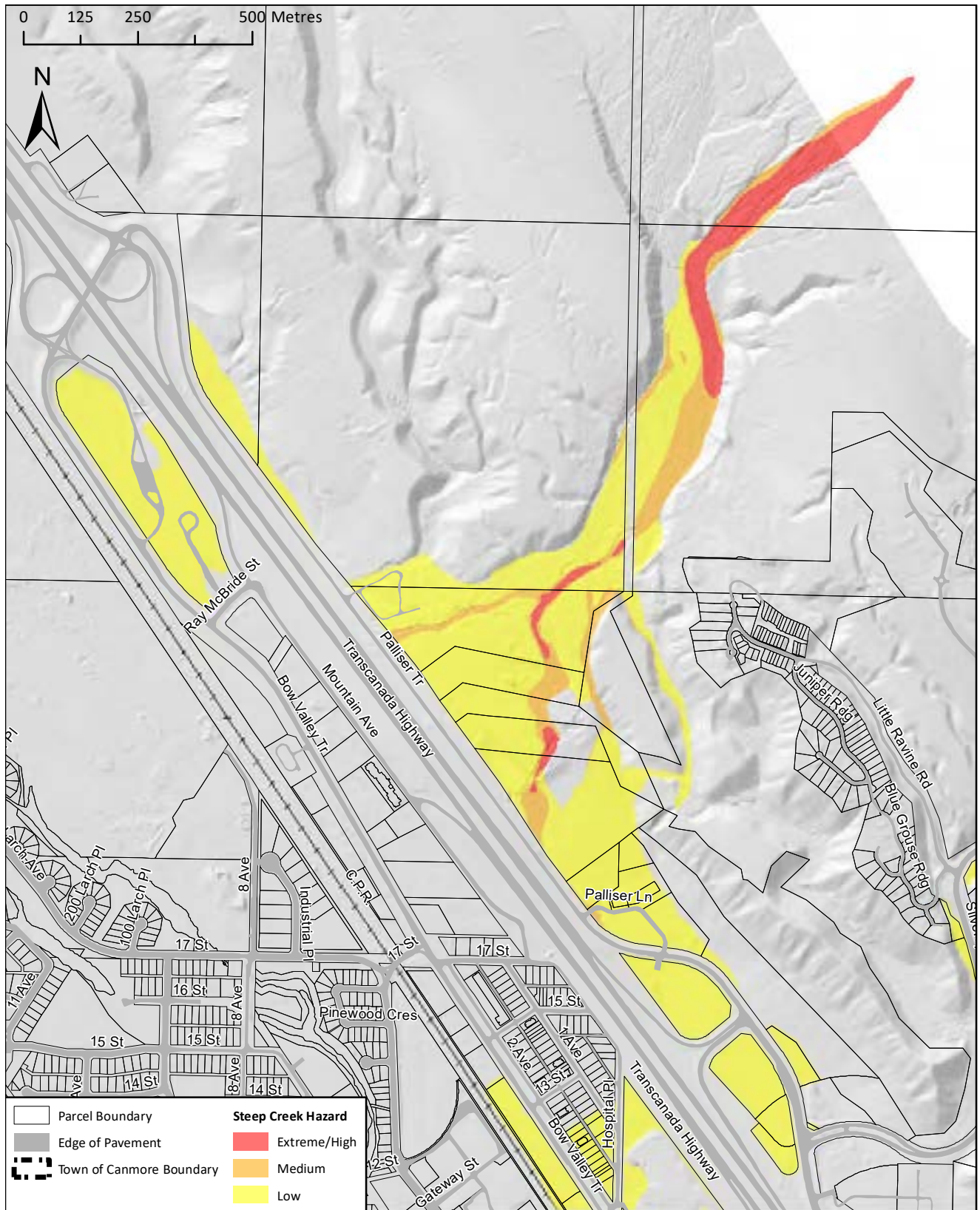
7.8.6.1 In a Development Hold Zone, only the uses listed below shall be allowed, so long as they are listed as Permitted or Discretionary in the underlying land use district for which the site is designated:

- a. Accessory Building
 - b. Athletic and Recreational Facility, Outdoor
 - c. Bed and Breakfast
 - d. Home Occupation - Class 1
 - e. Home Occupation - Class 2
 - f. Open Space
 - g. Public Utility
 - h. Sign
 - i. Wildlife Corridor
 - j. Wildlife Habitat Patch
- 7.8.6.2 At the discretion of the Development Authority, where a development proposal may result in significant damage to buildings or economic losses in the case of an event, the applicant may be required to submit a Site Specific Steep Creek Risk Assessment, specifically related to economic risk, to evaluate the development and proposed on-site mitigations
- 7.8.6.3 Bed and Breakfast developments shall not be permitted to operate during the high hazard flood season from May 15 to June 30, annually.
- 7.8.6.4 Notwithstanding Subsection 1.16, a non-conforming building that is damaged or destroyed greater than 75% of the value of the building above its foundation shall be allowed to be repaired or rebuilt.

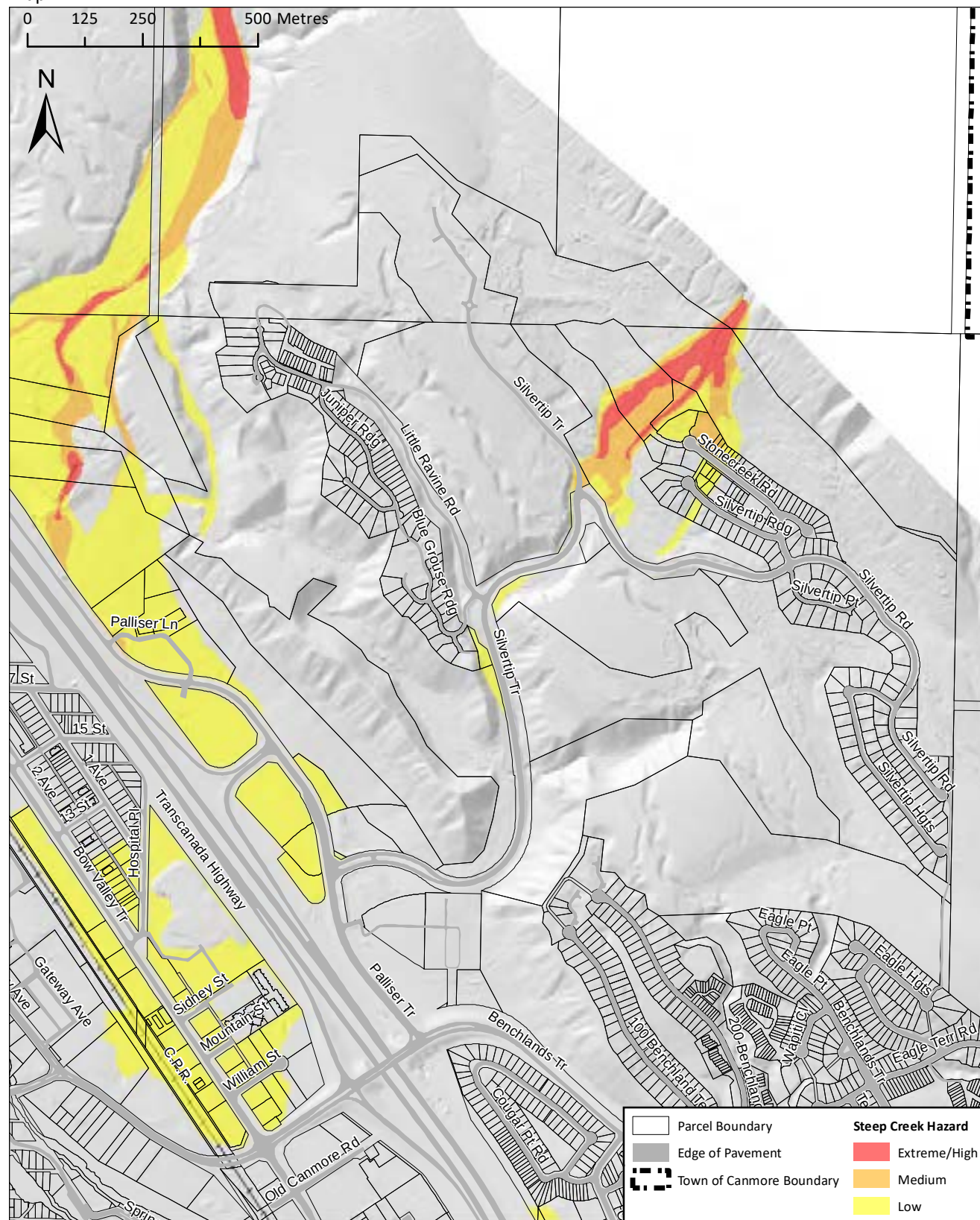
Figure 7.8-1 Steep Creek Hazards Key Map



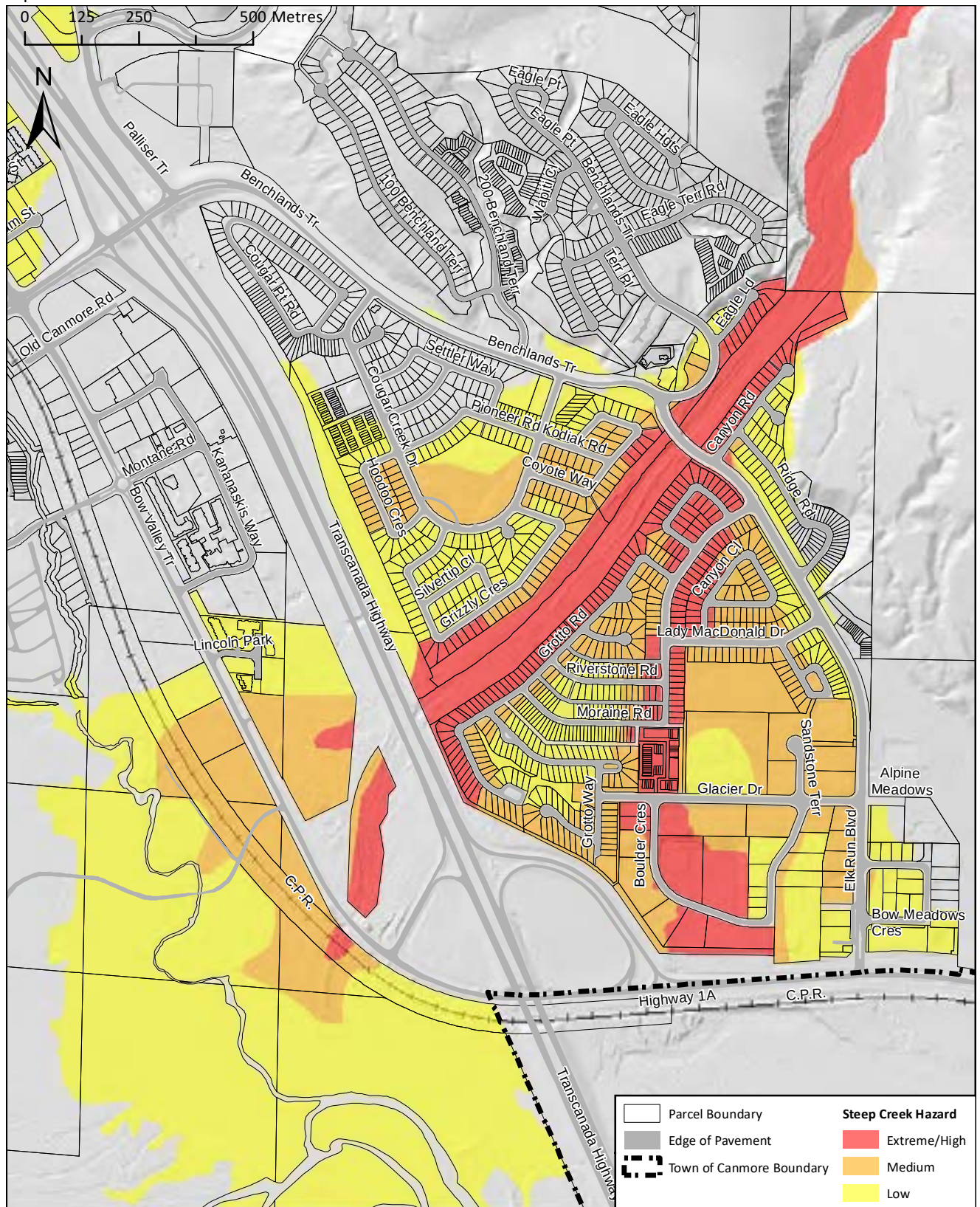
Map 1



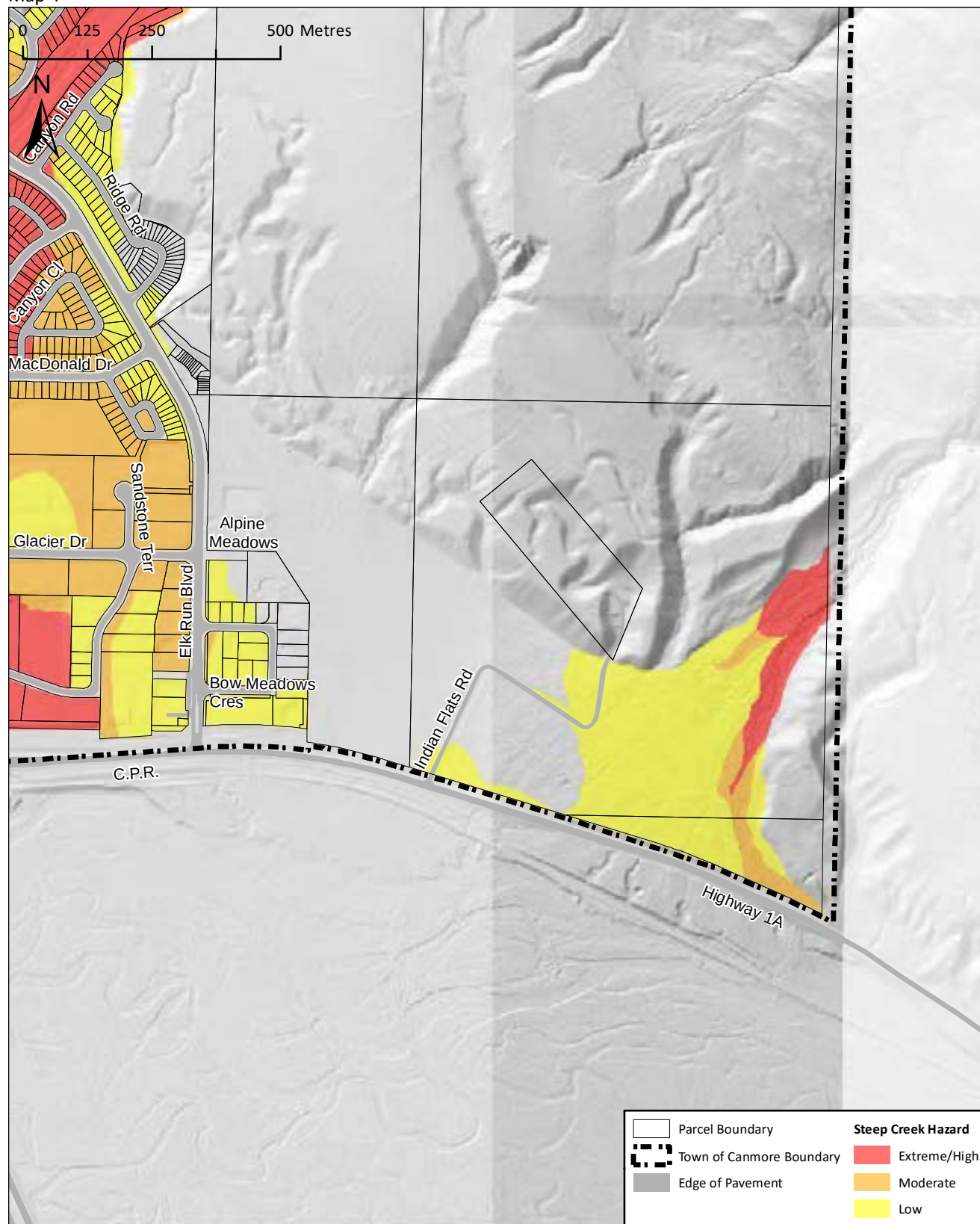
Map 2



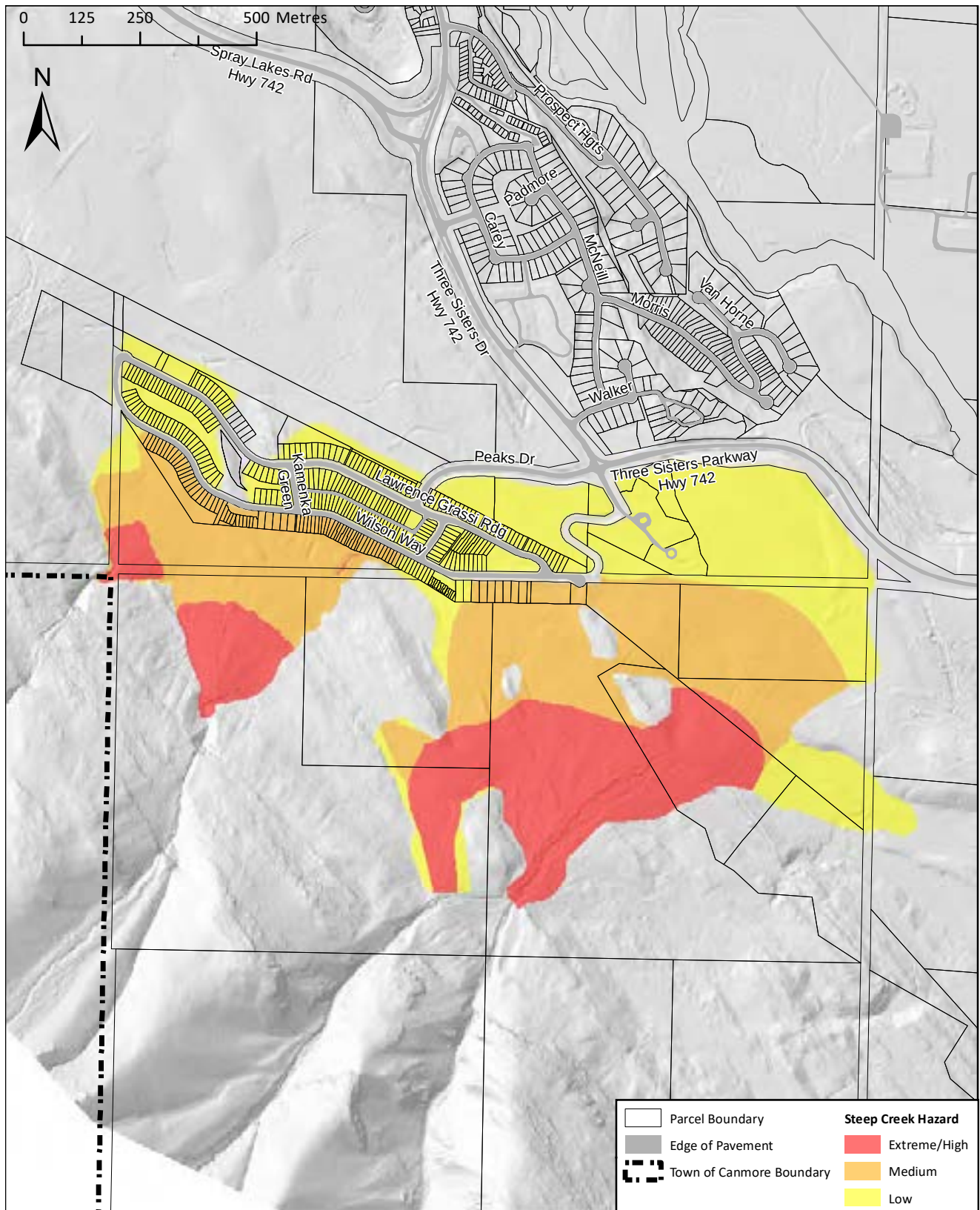
Map 3



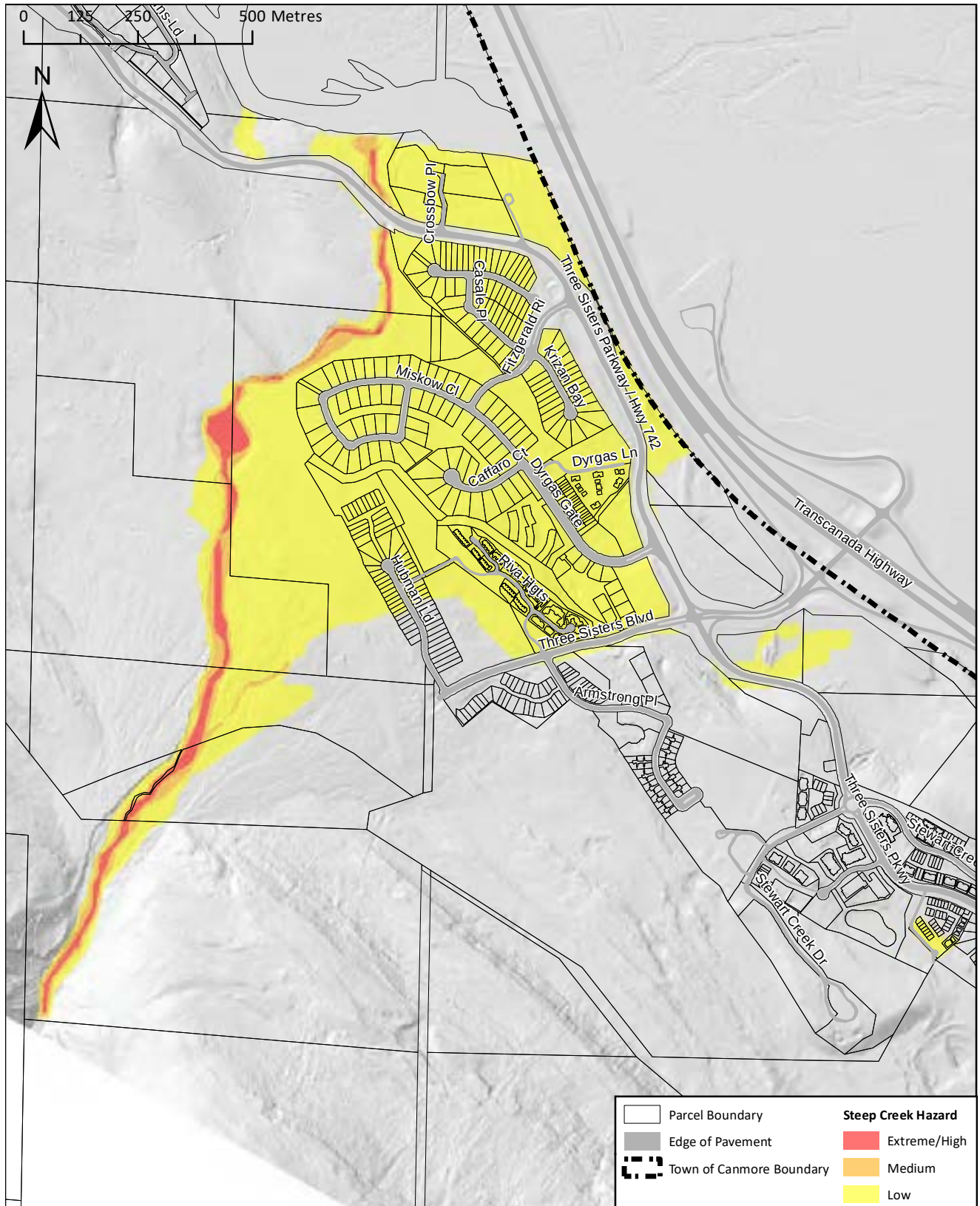
Map 4



Map 5



Map 6



Map 7

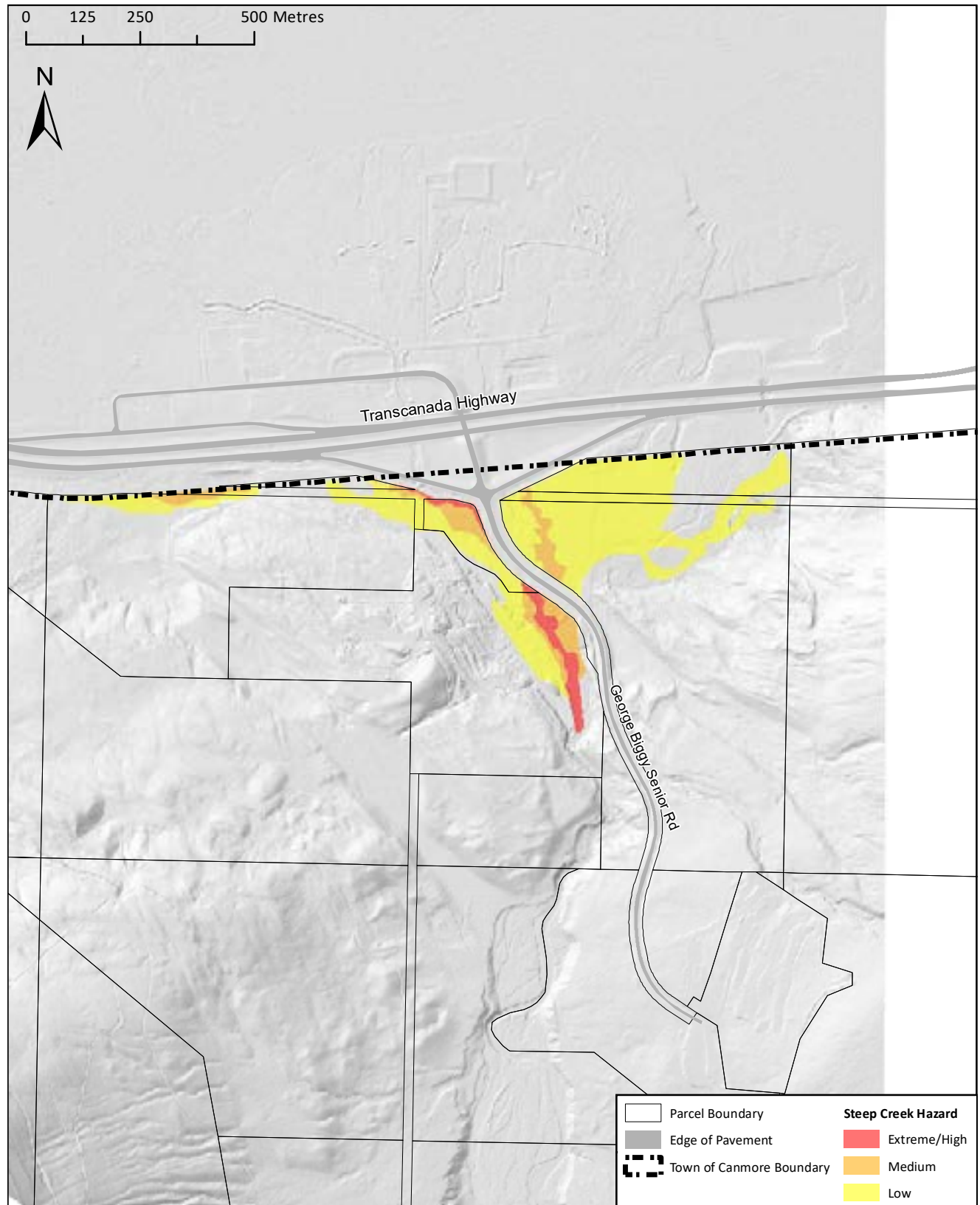
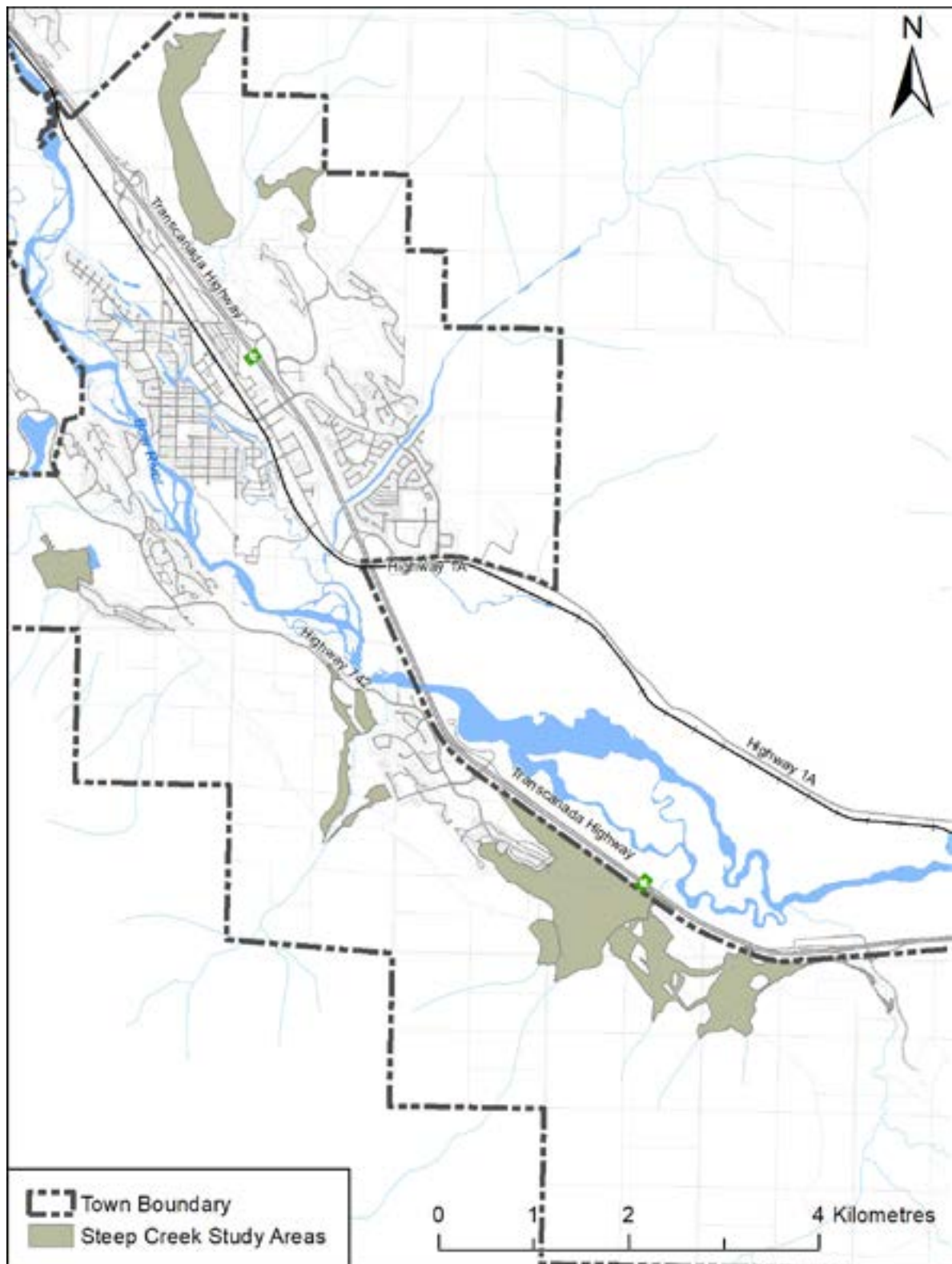


Figure 7.8-2 Steep creek study areas



SECTION 8 USE SPECIFIC REGULATIONS

- 8.1 Accessory Buildings**
- 8.2 Home Occupations**
- 8.3 Bed and Breakfast Developments**
- 8.4 Accessory Dwelling Units**
- 8.5 Visitor Accommodation**
- 8.6 Tourist Homes**
- 8.7 Amenities for Multi-Unit Residential Development**
- 8.8 Liquor Stores, Eating and Drinking Establishments and Cannabis Retail Stores**
- 8.9 Temporary Businesses**

8.1 ACCESSORY BUILDINGS

- 8.1.0.1 An Accessory Building shall not be used as a Dwelling Unit or a Visitor Accommodation unit, except in accordance with the provisions of this Bylaw.
- 8.1.0.2 An Accessory Building shall not be located in a front yard.
- 8.1.0.3 The maximum building height of an Accessory Building is 5.0 m, with a maximum height of 3.0 m at any eaveline, when measured from the highest existing grade adjacent to the building, except in accordance with other provisions of this Bylaw.
- 8.1.0.4 No part of an Accessory Building shall be located on or over an easement unless a written encroachment agreement is in place.
- 8.1.0.5 An Accessory Building shall not encroach into a side yard required for vehicular access.
- 8.1.0.6 Where an Accessory Building is attached in any manner to a principal building, it shall be deemed to be part of the principal building and subject to all yard setback and site coverage regulations of the district in which it is located.
- 8.1.0.7 All roof drainage shall be directed onto the site by eavestroughs and downspouts or other means to the satisfaction of the Development Authority.

8.1.1 Accessory Buildings in Residential Districts

- 8.1.1.1 The maximum number of Accessory Buildings that may be located on a residential lot is three (3).
- 8.1.1.2 The maximum site coverage for Accessory Buildings in a residential Land Use District is 10% or an area of 74 m², whichever is less.
- 8.1.1.3 Notwithstanding 8.1.1.2, where one of the Accessory Buildings includes an Accessory Dwelling Unit, Detached, the maximum site coverage for all Accessory Buildings is 15% or an area of 110 m², whichever is less.
- 8.1.1.4 The minimum setback from side and rear property lines shall be 1.0 m.
- 8.1.1.5 Notwithstanding 8.1.1.4, the minimum side yard on the street side of a corner site shall be the same as that of the principal building.

8.1.2 Accessory Buildings in Non-Residential Districts

- 8.1.2.1 The minimum setback from side and rear property lines shall be 0.6 m, except that no side yard is required where the building is a mutual structure erected on a common property line or the wall is constructed of materials which do not require maintenance and there is no overhang or eaves.
- 8.1.2.2 The minimum setback of an Accessory Building from a side property line shall be 3.0 m on the street side of a corner site.

8.2 HOME OCCUPATIONS

- 8.2.0.1 A business license must be obtained for each Home Occupation in accordance with the Canmore Business Registry Bylaw.
- 8.2.0.2 A Home Occupation shall be subordinate to the residential use and shall not interfere with the rights of other residents to quiet enjoyment of a residential neighbourhood.

8.2.1 Home Occupations - Class 1

- 8.2.1.1 Home Occupation - Class 1 shall be an incidental and subordinate use to the principal residential use and shall be contained within the principal building.
- 8.2.1.2 A Home Occupation - Class 1 shall not:
- a. Create a nuisance by way of dust, noise, odor, smoke, parking, electrical interruption, bright light or anything of an objectionable nature which is detectable to normal sensory perception outside the building containing the Home Occupation;
 - b. Have Outdoor Storage of materials, goods or equipment on the site;
 - c. Increase the need for parking or result in any traffic generation beyond that of a typical residential home;
 - d. Cause electrical interruption, bright light, or anything of an objectionable nature which is detectable to normal sensory perception outside the building containing the Home Occupation;
 - e. Erect or construct any form of signage related to the Home Occupation on the site;
 - f. Require alterations to the principal building that change the residential character of the building;
 - g. Include the direct sale of goods;
 - h. Have more than one vehicle associated with the business parked on-site or in the vicinity of the site at any time; and
 - i. Have more than 20% of the GFA of the Dwelling Unit or 30 m², whichever is less, devoted to business usage.

8.2.2 Home Occupation - Class 2

- 8.2.2.1 Home Occupation - Class 2 shall be an incidental and subordinate use to the principal residential use.
- 8.2.2.2 Home Occupations - Class 2 shall not be located within a Duplex Dwelling, Townhouse, Townhouse, Stacked, or Apartment Building development, with the exception of a day home.
- 8.2.2.3 Home Occupation - Class 2 requires a Development Permit.
- 8.2.2.4 Development Permits for a Home Occupation - Class 2 may be issued for a period of up to three (3) years to an operator with a valid Development Permit at the time application is made.
- 8.2.2.5 The operation of a Home Occupation - Class 2 within a detached garage may be allowed

by the Development Authority, provided that the proposed use does not interfere with the provision of the parking standards of this Bylaw or any additional parking required as a condition of approving a Development Permit under this Section.

8.2.2.6 Home Occupation - Class 2 is limited to those uses which shall not:

- a. Have any Outdoor Storage or display visible from the exterior, of products, materials, goods or equipment on the site;
- b. Create a nuisance by way of dust, noise, odor, smoke, parking, electrical interruption, bright light or anything of an objectionable nature which is detectable to normal sensory perception outside the building containing the Home Occupation;
- c. Generate vehicular traffic or parking in excess of that which is characteristic of the neighbourhood in which it is located;
- d. Require alterations to a building that alter the residential character of the building;
- e. Include the direct sale of goods or products which are not produced on-site;
- f. Have more than 20% of the gross floor area of the Dwelling Unit or 30 m², whichever is less, devoted to business usage;
- g. Have more than one commercially registered motor vehicle used by the business parked on-site or in the vicinity of the site at any time. Such vehicle shall be in compliance with Subsection 2.6, Developments, Objects and Vehicles Prohibited in Residential Districts; and
- h. Notwithstanding Clause “e”, above, Retail Sales may be permitted when those goods being sold are accessory to the service being provided, or when sales of the products or materials have been made earlier and customers are picking up the products or materials.

8.2.2.7 At the discretion of the Development Authority, additional on-site parking may be required to be provided, when, in the opinion of the Development Authority, such additional stalls are necessary to accommodate customers, employees and deliveries to the site.

8.2.2.8 Any additional on-site parking required shall be in accordance with Section 2: General Regulations, and shall not be tandem parking or reduce the natural landscaping in the front yard to be less than 50% of the front yard area.

8.2.3 Multiple Home Occupations

8.2.3.1 At the discretion of the Development Authority, a second Home Occupation may be permitted on the same site as another Home Occupation - Class 1, a Home Occupation - Class 2, or a Bed and Breakfast development.

8.2.3.2 A second Home Occupation or Bed and Breakfast development will only be considered where an applicant has adequately demonstrated that such an approval would result in a negligible increase in noise, traffic or parking on the property or in the neighbourhood. A Development Permit shall be required for a second Home Occupation.

8.3 BED AND BREAKFAST DEVELOPMENTS

- 8.3.0.1 A business license must be obtained for all Bed and Breakfast developments in accordance with the Canmore Business Registry Bylaw.
- 8.3.0.2 Bed and Breakfast developments require a Development Permit.
- 8.3.0.3 Bed and Breakfast developments shall not interfere with the rights of other residents to quiet enjoyment of a residential neighborhood.
- 8.3.0.4 Bed and Breakfast developments shall be an incidental and subordinate use to the principal residential use and shall be contained within the principal building.
- 8.3.0.5 Initial Development Permits for Bed and Breakfast developments are valid for a maximum of one (1) year. Subsequent Development Permits may be valid for a maximum of 3 years.
- 8.3.0.6 Bed and Breakfast developments that have an approved Development Permit and are existing on the date of approval of this bylaw shall be deemed to be a Discretionary Use within that district and further Development Permits may be issued on a continuing basis with the same conditions as those attached to the previous permit. If that use is discontinued for a period of six (6) consecutive months or more, or the permit has been revoked, any future Bed and Breakfast development shall conform to this Bylaw.
- 8.3.0.7 The maximum number of accommodation rooms within a Bed and Breakfast development shall be three (3), with a maximum of two (2) guests per bedroom.
- 8.3.0.8 Bed and Breakfast developments shall be limited to a maximum of 5% of the total number of occupied detached residences within the applicable Town of Canmore census district as identified in the most recent municipal census.
- 8.3.0.9 New Bed and Breakfast developments shall be separated from existing Bed and Breakfast developments by a minimum of 50 m when measured from any point along the front property line.
- 8.3.0.10 The Development Officer may inspect a Bed and Breakfast development to ensure compliance with this Bylaw and the Development Permit.
- 8.3.0.11 A Bed and Breakfast development shall:
- a. Not be advertised unless a Development Permit is in effect at the time the advertisement is placed;
 - b. Not contain cooking or food preparation facilities in bedrooms or suites for use by guests;
 - c. Provide access to guest bedrooms through the principal Dwelling Unit and not solely through a separate private entrance;
 - d. Provide natural landscaping over a minimum of 50% of the front yard area; and
 - e. **[Repealed by 2020-16]**
- 8.3.0.12 As part of an application for a Development Permit, the operator of a Bed and Breakfast development shall submit and sign a statutory declaration stating that they are the principal

resident of the dwelling.

8.3.0.13 Bed and Breakfast developments shall install a Sign which conforms to the signage guidelines as outlined in Section 9: Signage, for the purpose of providing identification for guests.
[2020-16]

8.3.0.14 At the discretion of the Development Authority, Bed and Breakfast developments may be permitted on the same site as a Home Occupation where an applicant has adequately demonstrated that such an approval would result in negligible increase in noise, traffic or parking on the property or in the neighbourhood.

8.4 ACCESSORY DWELLING UNITS

Intent of Accessory Dwelling Units

To achieve efficient use of land use and in accordance with policies in the Municipal Development Plan, Accessory Dwelling Units are intended to provide additional housing opportunities in existing and new low density areas, while taking into consideration their effect on the privacy of adjacent properties and to ensure that an Accessory Dwelling Unit is secondary in both size and appearance to the principal residential use.

8.4.1 General Regulations

8.4.1.1 An Accessory Dwelling Unit, Attached or Accessory Dwelling Unit, Detached:

- a. Shall be accessory to the principal residential use;
- b. Shall not be used as a Bed and Breakfast, Home Occupation - Class 2, Tourist Home, or Visitor Accommodation development;
- c. Have a minimum of 40% of the front yard landscaped, to the satisfaction of the Development Authority;
- d. Is limited to a maximum of one (1) Dwelling Unit per principal residential use;
- e. Is not required to meet lot area requirements for the number of Dwelling Units;
- f. Shall be serviced by the municipal water and sanitary system from the principal dwelling's connection;
- g. Shall not include a roof top terrace; and
- h. Shall have any vehicle parking that is provided for the Dwelling Unit be accessed from the lane when the property has direct access to a lane.

8.4.2 Accessory Dwelling Unit, Attached

8.4.2.1 An Accessory Dwelling Unit, Attached development shall:

- a. Not exceed either 40% of the total GFA of the building within which it is contained, or 80 m² (whichever is less), unless otherwise regulated in the Land Use District governing the property; and
- b. Have an entrance that is secondary to and separate from the principal residential use, either from a common landing or directly from the exterior of the structure.

8.4.2.2 Where an Accessory Dwelling Unit, Attached development occupies a basement within a one-storey Detached Dwelling, the Accessory Dwelling Unit, Attached may occupy a maximum of 50% of the total GFA of the structure.

8.4.2.3 New developments that include an Accessory Dwelling Unit, Attached development may be granted an extra 0.3 m in building height to account for the additional height required to accommodate a basement suite, at the discretion of the Development Authority.

8.4.3 Accessory Dwelling Unit, Detached

8.4.3.1 An Accessory Dwelling Unit, Detached:

- a. May be provided in a one-storey or one-storey plus loft form and may be located above a garage;
- b. Shall have a maximum total GFA of 60 m², unless otherwise regulated in the Land Use District governing the property;
- c. Shall have a minimum rear yard setback of 1.5 m;
- d. Shall have a minimum side yard setback of 1.0 m;
- e. Shall be subject to the height regulations as noted in table 8.4-3, unless otherwise regulated in the Land Use District governing the property:

Table 8.4-3 - Maximum Height of Detached Accessory Dwelling Units		
	Maximum height for roof slope 2:12 or greater	Maximum height for roof slope less than 2:12
One-Storey	5.5 m	4.0 m
One-Storey plus loft	6.0 m	5.5 m

- f. Shall not be located in the front yard of a property;
 - g. When featuring decks, the decks shall not exceed the floor elevation of the highest floor of the Accessory Dwelling Unit, Detached, development.
 - h. May have private outdoor Amenity Space. Where that amenity space is 1.0 m or more above grade, the maximum area of the amenity space shall be 4.5 m², unless it is located a minimum of 4.0 m from any side or rear property line, in which case the maximum area of the amenity space shall be 6.5 m².
 - i. That has windows 2.1 m or more above grade (entirely or partially), and is located within 4.0 m of a side or rear property line, shall be designed and located to minimize overlook onto adjacent properties.
 - j. Shall ensure the cumulative width of dormers does not exceed 70% of the length of the wall immediately below the dormers.
 - k. That incorporates a loft space shall only be located on a lot with access to both a lane and a street, or a lot with access to two streets.
- 8.4.3.2 All private outdoor Amenity Spaces associated with an Accessory Dwelling Unit, Detached that exceed 0.6 m² shall be screened to the satisfaction of the Development Authority.

- 8.4.3.3 The upper (loft) storey of an Accessory Dwelling Unit, Detached:
- Shall not exceed a maximum GFA of 40 m²;
 - Shall not be larger than 80% of the GFA of the lower storey; and
 - Shall have a maximum loft floor height of 3.0 m as measured from the floor to the lowest point of the ceiling of the top floor.

8.5 VISITOR ACCOMMODATION

- 8.5.0.1 Visitor Accommodation developments shall:
- Provide a central management and reservation service
 - Have a single address for mail (not for individual units);
 - Not serve as a residential address for utility billing or electoral enumeration purposes; and
 - Provide signage designating the development as a “hotel” or similar visitor use.
- 8.5.0.2 The Development Authority may allow alternatives to 8.5.0.1 where the intent is maintained to provide short-term Visitor Accommodation.
- 8.5.0.3 Irrespective of Section 11: Community and Architectural Design Standards of this Bylaw, Visitor Accommodation developments shall include a street facing entrance that:
- Is clearly marked as a prominent point of access into the buildings;
 - Punctuates the street and offers some form of shelter;
 - Is obvious and apparent from the street; and
 - Is not subordinate in use or design to any other on-site entrance way or doorway.
- 8.5.0.4 Visitor Accommodation developments shall not be located on the same floor of a multi-storey residential building containing residential Dwelling Units or a Tourist Home development.
- 8.5.0.5 A building which contains Visitor Accommodation and Dwelling Units and/or a Tourist Home shall provide a separate entrance to the portion of the building containing the Visitor Accommodation use.

8.6 TOURIST HOMES

- 8.6.0.1 Where approved, a Tourist Home shall be developed and operated in accordance with the following regulations:
- The maximum number of bedrooms in a Dwelling Unit used for a Tourist Home shall be four (4), with a maximum of two (2) guests per bedroom.
 - Parking shall be provided in accordance with the parking requirements of Section 2: General Regulations.
 - A Tourist Home shall not interfere with the rights of nearby residents to quiet enjoyment of a residential neighborhood or Dwelling Unit.

- d. The Development Officer may inspect a Tourist Home to ensure compliance with this Bylaw and the Development Permit.
 - e. The operator of the Tourist Home shall:
 - i. Not advertise the Tourist Home, unless in possession of a valid Development Permit at the time the advertisement is placed and displayed.
 - ii. Not utilize more than 50% of the area between the residence and the street for driveway and parking, within a residential district. The remainder of this area shall be landscaped with natural landscaping to the satisfaction of the Development Authority.
 - iii. Not display any form of on-site advertising related to the Tourist Home, except as provided for in this Bylaw.
 - iv. **[Repealed by 2020-16]**
 - v. Remain in conformance with the Canmore Business Registry License Bylaw for the operation of a Tourist Home.
- 8.6.0.2 A Tourist Home within an Apartment Building shall only be allowed where a Development Permit is issued for the entire building to be operated as a Tourist Home, or an entire floor of the building has Development Permit approval to be operated as a Tourist Home.

8.7 AMENITIES FOR MULTI-UNIT RESIDENTIAL DEVELOPMENT

- 8.7.0.1 Children's playground equipment, or other outdoor recreational amenities, shall be required on sites with ten (10) or more Dwelling Units, to the satisfaction of the Development Authority.
- 8.7.0.2 Private outdoor amenity or yard spaces shall:
- a. Be located adjacent to and be visible and accessible from each Dwelling Unit;
 - b. Have reasonable access or orientation to the sun;
 - c. For each Dwelling Unit located at or below grade, be a minimum area of 15 m² ;
 - d. Be clearly delineated by fencing or landscaping, or screened from common or public spaces;
 - e. Be connected to any common Amenity Spaces;
 - f. Ensure balconies and terraces for each Dwelling Unit located above grade are a minimum area of 4.5 m² with a minimum horizontal dimension of 1.5 m;
 - g. Not directly overlook private outdoor Amenity Spaces;
 - h. Be screened from each other by side wings or other means.
- 8.7.0.3 Where the above noted private Amenity Space standards are not met under Subsection 8.7.0.2, some of the following options may be provided to the satisfaction of the Development Authority:
- a. Common outdoor Amenity Space that is designed to provide opportunity for casual social connections, including seating areas and shelters, and is visible from a number of the Dwelling Units and defined clearly from any public spaces.

- b. Common outdoor Amenity Spaces that accommodate recreational activities.
 - c. A shared indoor workshop/Amenity Space serviced with electricity, intended to provide an opportunity for light carpentry, bike/ski maintenance, or similar activities.
 - d. Community garden spaces of approximately 2 m² per Dwelling Unit.
- 8.7.0.4 Within mixed-use commercial/residential developments, at-grade common amenity areas should be provided in addition to landscaping requirements to the satisfaction of the Development Authority.
- 8.7.0.5 Common amenity areas shall be:
- a. Designed to provide opportunity for casual social connections, including seating areas and shelter.
 - b. Designed to allow for solar access and shelter from the elements to facilitate all season use where possible.
 - c. Designed with lighting to allow nighttime use and enhance safety.
 - d. Defined clearly from any public spaces.
 - e. Visible from public spaces and adjacent stores and Dwelling Units.
 - f. Connected by pedestrian pathways to public space.

8.8 LIQUOR STORES, EATING AND DRINKING ESTABLISHMENTS AND CANNABIS RETAIL STORES

- 8.8.0.1 Approval in principle from the Alberta Gaming and Liquor Commission shall accompany an application for a Brewery/Distillery, Liquor Store, Eating and Drinking Establishment, and Cannabis Retail Store.
- 8.8.0.2 Commercial storefronts shall feature visually permeable windows when adjacent to a sidewalk.

8.9 TEMPORARY BUSINESSES

- 8.9.0.1 Temporary Businesses, kiosks, developments, facilities or uses shall occupy vacant or under-utilized sites, and conform to all of the regulations of the district in which they are located.
- 8.9.0.2 A temporary Development Permit may be approved as a Discretionary Use for a maximum of six (6) months within any Commercial or Direct Control District for seasonal/Temporary Businesses, which include services such as:
- a. Sales of seasonal food or beverages;
 - b. Short-term sales of tickets for local or regional events;
 - c. Fund raising for not-for-profit organizations; and
 - d. Distribution of information for licensed guiding outings in the region.
- 8.9.0.3 Signage for seasonal or Temporary Businesses shall be subject to the same signage regulations

as permanent businesses.

8.9.1 Seasonal Businesses in Town Centre District

8.9.1.1 In addition to the above, the Development Authority shall consider the following requirements for seasonal businesses proposed in the Town Centre District:

- a. Landscaping shall be in the form of planters or other streetscape enhancements at the front of the site.
- b. A minimum of one (1) on-site parking stall for each business operating on the site is required.
- c. Animal-proof garbage containers are required on site for any food or beverage businesses.
- d. Storage areas or structures shall be appropriately screened to the satisfaction of the Development Authority.
- e. Construction-style portable toilet facilities shall be screened and maintained to the satisfaction of the Development Authority. More permanent facilities may not require screening.
- f. Retail businesses will only be approved where the total area of the premises, including any storage, does not exceed 60 m².

SECTION 9 SIGNAGE

- 9.1 General Signage Regulations**
- 9.2 Variances to Signage Regulations**
- 9.3 Sign Administration**
- 9.4 Flush-Mounted and Individual Letter Signs**
- 9.5 Hanging and Projecting Signs**
- 9.6 Directory Signs**
- 9.7 Window Signs**
- 9.8 Chalkboard and Menu Signs**
- 9.9 Freestanding and Monument Signs**
- 9.10 Murals**
- 9.11 Residential Businesses**
- 9.12 Temporary Signage**
- 9.13 Prohibited Sign Locations, Types and Content**
- 9.14 Exempted Signs**
- 9.15 Addressing**
- 9.16 Enforcement**

9.1 GENERAL SIGNAGE REGULATIONS

9.1.0.1 All Signs are a Discretionary Use in all Land Use Districts.

9.1.0.2 All Signs shall be in accordance with the signage regulations specified in the applicable Land Use District. **[2021-24]**

9.1.0.3 **[Repealed by 2020-16]**

9.1.1 Building Form and Streetscape

9.1.1.1 The design and location of the Sign shall incorporate the architectural elements and materials of the building and site.

9.1.1.2 Buildings shall be designed to incorporate sign areas into the building façade as an integrated architectural element.

9.1.1.3 Buildings that include businesses without street frontage should incorporate Freestanding Signs or Directory Signs into the site and building design.

9.1.2 Materials

9.1.2.1 Signs shall be constructed of painted or stained wood, stone, painted or nonferrous metal or weathered steel.

9.1.2.2 Notwithstanding the above, and at the discretion of the Development Authority, composite wood materials and exterior grade plywood may be used when the Sign has relief by raising/recessing the letters from the sign face or building facade.

9.1.2.3 Notwithstanding the above, and at the discretion of the Development Authority, other materials may be incorporated into Signs such as vinyl, plastic, aluminum layered plastic and glass, with the following exceptions:

- a. Vinyl shall only be used for graphics or letter outlines with the remainder of the Sign using other materials, which may include wood composite material with relief.
- b. Plastic shall only be used for Individual Letter Signs above the main floor.
- c. Aluminum layered plastic shall only be used when the remainder of the Sign uses other material and relief.
- d. Glass shall only be used as a design element and the remainder of the Sign shall use other material.

9.1.3 Relief

9.1.3.1 Signs should incorporate backing material to bring the sign away from the façade, natural timber bordering material, or letters raised/recessed from the sign or building face.

9.1.4 Layout and Colour

9.1.4.1 A Sign that includes a background colour shall be designed with the colour visible towards all edges of the sign and around each of the sign letters.

9.1.4.2 The background colour of the Sign shall contrast with the lettering and logo.

9.1.5 Lighting

9.1.5.1 A business frontage shall have a maximum of one externally illuminated Sign.

9.1.5.2 All Sign lighting shall be designed to illuminate the sign face area only.

9.1.5.3 An illuminated Sign shall only use a full cut-off lighting fixture directed downwards or light attached to the rear of each individual letter directed towards the building façade.

9.1.5.4 The design and installation of the lighting shall ensure no element of the light connection is visible to a pedestrian.

9.2 VARIANCES TO SIGNAGE REGULATIONS

9.2.0.1 Variances may be granted to the sign dimensions and area of a Sign if, in the opinion of the Development Authority:

- a. The Sign is in accordance with the General Signage Regulations; and
- b. The Sign incorporates quality material or composite wood material and relief; and
- c. The Sign scale and design integrates with the architectural elements and the scale of the building.

9.2.0.2 Variances may be granted to the number and location of Signs if, in the opinion of the Development Authority:

- a. The Sign is in accordance with the Signage Objectives; and
- b. The Sign is in accordance with the General Signage Regulations; and
- c. The Sign incorporates quality material or composite wood material and relief; and
- d. The Sign scale and design integrates with the architectural elements and the scale of the building; and
- e. The site has multiple business frontages; or
- f. The site has poor visibility to the pedestrian environment.

9.3 SIGN ADMINISTRATION

9.3.1 Sign Validation Sticker

9.3.1.1 All Signs shall be issued a Sign Validation Sticker to be affixed to the Sign at the time of installation, except Window Signs, Monument Signs and Mural Signs. With the exception of the sign types noted above, any Sign that does not display a Sign Validation Sticker shall be considered in violation of this Bylaw and subject to enforcement.

9.3.2 Notice of Application and Decision

9.3.2.1 Notwithstanding the notification requirements described in Subsection 1.10.2, the posting of a Notice of Application shall not be required by the Development Authority for a Development Permit or Certificate of Conformance application for Signs.

- 9.3.2.2 Notwithstanding the notification requirements described in Subsection 1.10.4, the posting of a Notice of Decision shall not be required for a Development Permit or Certificate of Conformance application for Signs.

9.4 FLUSH-MOUNTED AND INDIVIDUAL LETTER SIGNS



Figure 9.4-1 and 9.4-2. Flush-Mounted Signs



Figure 9.4-3 and 9.4-4. Individual Letter Signs

9.4.1 Location Regulations

- 9.4.1.1 A Flush-Mounted or Individual Letter Sign shall be located on the building frontage directly adjacent to the business.
- 9.4.1.2 A Flush-Mounted Sign shall be located on the façade or structural awning of the main floor of the building.
- 9.4.1.3 An Individual Letter Sign shall either be located on either:
- The façade or structural awning of the main floor of the building; or
 - The façade of the second floor of the building where the building has been designed to incorporate signage into the architectural elements.

9.4.2 Dimension Regulations

- 9.4.2.1 The maximum height of the first letter of a word shall be 0.3 m.

- 9.4.2.2 The maximum height of the second letter and additional letters of a word shall be 0.2 m.
- 9.4.2.3 The maximum height of a word that is capitalised shall be 0.25 m.
- 9.4.2.4 For Signs that are located on a building that is further than 3.0 m from the front property line, the following apply:
- The first letter of a word may be a maximum height of 0.4 m
 - The second and additional letters of a word may have a maximum height of 0.3 m.
 - A word that is capitalised may have a maximum height of 0.3 m.
- 9.4.2.5 A Flush-Mounted Sign shall have a maximum overall sign area of 1.8 m², except where a business frontage is at least 9.0 m wide, the maximum overall sign area shall be 1.8 m² plus 0.1 m² per 1.5 m of frontage, to a maximum of 7.5 m².
- 9.4.2.6 An Individual Letter Sign shall have a maximum sign face area of 1.8 m², except where a business frontage is at least 9.0 m wide, the maximum sign face area shall be 1.8 m² plus 0.1 m² per 1.5 m of frontage, to a maximum of 7.5 m².
- 9.4.2.7 The maximum projection of a Flush-Mounted Sign or Individual Letter Sign from the building surface shall be 0.15 m.

9.4.3 Quantity Regulations

- 9.4.3.1 A business shall have a maximum of one (1) Flush-Mounted Sign or Individual Letter Sign per frontage.

9.4.4 Area Specific Regulations

- 9.4.4.1 A Sign located in or directly adjacent to the Town Centre District or Gateway District shall not incorporate plastic, vinyl (except graphic or letter outlines), or aluminum layered plastic material.
- 9.4.4.2 A business in the Town Centre or Gateway Districts may have a Flush-Mounted Sign with a maximum overall sign area of 0.5 m² on the second floor when the building has been designed to incorporate signage into the architectural elements and does not have a main floor Flush-Mounted or Individual Letter Sign.
- 9.4.4.3 A Sign in a Bow Valley Trail or an Industrial District may have a maximum height of the first and additional letters of a word to be 0.4 m.
- 9.4.4.4 A business in a Bow Valley Trail or Industrial District may have a maximum overall sign area of 3.0 m² when located on the main floor of a building, except where a business frontage is at least 9.0 m wide, the maximum overall sign area shall be 3.0 m² plus 0.1 m² per 1.5 m of frontage to a maximum of 7.5 m².
- 9.4.4.5 One (1) Flush-Mounted or Individual Letter Sign may be allowed per Townhouse, Townhouse, Stacked, or Apartment Building site, with a maximum overall area of 0.5 m².
- 9.4.4.6 One (1) Flush-Mounted or Individual Letter Sign may be allowed per Detached Dwelling or Duplex Dwelling, with a maximum area of 0.2 m².

9.5 HANGING AND PROJECTING SIGNS



Figure 9.5-1. Hanging sign



Figure 9.5-2. Projecting sign

9.5.1 General Regulations

9.5.1.1 The Sign shall be for a business that is located on the main or second floor of the building.

9.5.2 Location Regulations

9.5.2.1 The Sign shall be located below the eaveline or parapet of the building.

9.5.2.2 The bottom of the Sign shall be a minimum of 2.4 m above grade.

9.5.2.3 Signs located on or projecting over Town property shall enter into an Encroachment Agreement prior to installation.

9.5.3 Dimension Regulations

9.5.3.1 The maximum overall sign area shall be 0.5 m².

9.5.4 Quantity Regulations

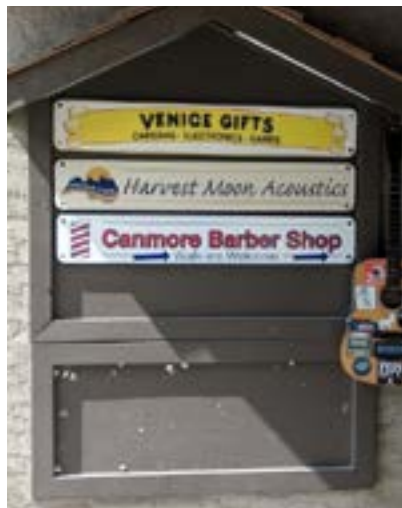
9.5.4.1 A business shall have a maximum of one (1) Hanging Sign or Projecting Sign per frontage.

9.5.5 Area Specific Regulations

9.5.5.1 Signs located on or project over Town property shall enter into an Encroachment Agreement prior to installation.

9.5.5.2 A Sign located in or directly adjacent to the Town Centre District or Gateway District shall not incorporate plastic, vinyl (except graphic or letter outlines), or aluminum layered plastic material.

9.6 DIRECTORY SIGNS



Figures 9.6-1, 9.6-2 and 9.6-3. Flush mounted directory signs

9.6.1 General Regulations

- 9.6.1.1 A Directory Sign shall be used only for businesses that do not have street frontage.
- 9.6.1.2 A Directory Sign shall be designed to incorporate all businesses within the building that do not have street frontage.
- 9.6.1.3 A Directory Sign shall be illuminated only with a full cut-off lighting fixture directed downwards.

9.6.2 Location Regulations

- 9.6.2.1 The Sign shall be flush-mounted on the main floor of the building within 4.0 m of the primary entrance of the building.

9.6.3 Dimension Regulations

- 9.6.3.1 The maximum individual business sign face area shall be 0.5 m².
- 9.6.3.2 The maximum overall sign area shall be 1.8 m².
- 9.6.3.3 The maximum projection from the building surface shall be 0.15 m.

9.6.4 Quantity Regulations

- 9.6.4.1 A site shall have a maximum of one (1) Directory Sign per frontage.

9.7 WINDOW SIGNS



Figure 9.7-1 and 9.7-2. Window signs

9.7.1 General Regulations

- 9.7.1.1 A Window Sign shall be designed to maintain the visual permeability of windows when adjacent to a sidewalk.
- 9.7.1.2 A solid colour behind the letters on a Window Sign may be required to ensure visual contrast to ensure legibility is maintained, at the discretion of the Development Authority.

9.7.2 Location Regulations

- 9.7.2.1 A Window Sign shall be located on the main or second floor of the building.
- 9.7.2.2 A Window Sign located on a door window shall not restrict visual permeability of the entrance.
- 9.7.2.3 When a window is located more than 2.0 m in height from an adjacent grade or sidewalk, a solid colour may be used behind the lettering for a Window Sign.

9.7.3 Dimension Regulations

- 9.7.3.1 A solid colour behind the letters shall cover a maximum of 10% of the window surface.
- 9.7.3.2 A Window Sign may cover a maximum of 15% of the window surface area with vinyl or painted lettering.
- 9.7.3.3 Window Signs directed to a public street that are located on a building more than 3.0 m from the property line may cover a maximum of 20% of the window surface area with vinyl or painted lettering.
- 9.7.3.4 A semi-transparent graphic may cover 30% of the window surface area, should the design maintain the visual permeability of the window.

9.8 CHALKBOARD AND MENU SIGNS



Figure 9.8-1 and 9.8-2. Chalkboard signs

Figure 9.8-3. Menu sign

9.8.1 General Regulations

- 9.8.1.1 The Chalkboard Sign area shall be of dark colour with contrasting letters.
- 9.8.1.2 A Menu Sign shall be for a business that serves food on site.
- 9.8.1.3 A Chalkboard Sign or Menu Sign shall be illuminated only with a full cut-off lighting fixture directed downwards.

9.8.2 Location Regulations

- 9.8.2.1 A Chalkboard Sign or Menu Sign shall be:
 - a. Flush-mounted on the ground floor of the building; or
 - b. Mounted on a fixed freestanding structure located on private property.

9.8.3 Dimension Regulations

- 9.8.3.1 The maximum Chalkboard Sign or Menu Sign face area shall be 0.5 m².
- 9.8.3.2 The maximum overall area of a Chalkboard Sign or Menu Sign shall be 0.7 m².
- 9.8.3.3 The maximum projection of a Flush-Mounted Sign from the building surface shall be 0.15 m.

9.8.4 Quantity Regulations

- 9.8.4.1 A business shall have a maximum of one (1) Chalkboard Sign or one (1) Menu Sign. **[2020-16]**

9.8.5 Area Specific Regulations

- 9.8.5.1 A Sign located in or directly adjacent to the Town Centre District or Gateway District shall not incorporate plastic, vinyl (except graphic or letter outlines), or aluminum layered plastic material.

9.9 FREESTANDING AND MONUMENT SIGNS



Figure 9.9-3 and 9.9-4. Monument Signs

9.9.1 General Regulations

- 9.9.1.1 The structure shall have a minimum of 2.0 m wide landscaped area around all sides of the Sign base, except for when the structure height is less than 1.0 m from grade. **[2020-16]**
- 9.9.1.2 The landscaping shall integrate with the design and landscaping of the site, and shall include one or more of the following: rocks, mulch, or non-wildlife attractant plants.
- 9.9.1.3 The quality, area and plants used in the landscaping shall be to the satisfaction of the Development Authority.
- 9.9.1.4 A double side 'V shape' Sign may be used when a single or double sided sign provides poor visibility to the streetscape or as determined by the Development Authority.
- 9.9.1.5 A Freestanding Sign shall not be illuminated with light attached to the rear of each individual letter directed towards the sign face area.
- 9.9.1.6 The sign face area of the structure may be illuminated and may be in addition to the maximum number of illuminated signs per business frontage.
- 9.9.1.7 A Monument Sign may be illuminated with a ground mounted lighting fixture or with light attached to the rear of each individual letter directed towards the Sign face area.

- 9.9.1.8 Within a Townhouse, Townhouse, Stacked, or Apartment Building development, a Sign to identify the street address and occupant of the dwelling does not require a Development Permit.

9.9.2 Location Regulations

- 9.9.2.1 The Sign base shall be a minimum of 2.0 m from a property line.
- 9.9.2.2 The roof structure or design elements shall be a minimum of 0.6 m from a property line.

9.9.3 Dimension Regulations

- 9.9.3.1 A Freestanding Sign shall have the maximum sign face height of 3.0 m from grade and the overall maximum sign structure height shall be 4.0 m from grade, including roof or design elements.
- 9.9.3.2 A Monument Sign shall have the overall maximum sign structure height of 2.0 m from grade.
- 9.9.3.3 The maximum overall Sign area for a Freestanding Sign or Monument Sign shall be 2.0 m².
- 9.9.3.4 The Freestanding Sign maximum area for changeable copy signs shall be 20% of the overall sign area.

9.9.4 Quantity Regulations

- 9.9.4.1 A site shall have a maximum of one (1) Freestanding Sign or Monument Sign.
- 9.9.4.2 A site may have one (1) primary Freestanding Sign or Monument Sign per street frontage when the site has street frontage to two parallel streets to a maximum of two (2) Freestanding Sign or Monument Signs per site.
- 9.9.4.3 For a Detached Dwelling or Duplex Dwelling, one (1) address Sign is allowed per building with a maximum overall area of 0.2 m².
- 9.9.4.4 For a Townhouse, Townhouse, Stacked, or Apartment Building development, one (1) Sign is allowed per building with a maximum overall area of 0.5 m². A Freestanding Sign or Monument Sign requires a Certificate of Compliance or Development Permit prior to installation.

9.9.5 Area Specific Regulations

- 9.9.5.1 A Freestanding Sign or Monument Sign in the Town Centre or a Gateway District shall only be installed on a site when the building is a minimum of 5.0 m from the property line, or the overall sign area shall be 0.5 m² and the overall maximum sign structure height shall be 1.0 m from grade.
- 9.9.5.2 A Freestanding Sign in a Bow Valley Trail or Industrial District may have a maximum sign face height of 4.27 m from grade or a maximum height of the principal building, whichever is less. The overall maximum height of the sign structure shall be 5.0 m from grade and may include roof or design elements.
- 9.9.5.3 A Monument Sign in a Bow Valley Trail or Industrial District shall have a maximum height of

3.0 m from grade, including the sign roof structure and design elements.

- 9.9.5.4 A Freestanding or Monument Sign in a Bow Valley Trail or Industrial District shall have a maximum overall sign area of 6.0 m².
- 9.9.5.5 A secondary Freestanding Sign in a Bow Valley Trail or Industrial District may be installed where two or more businesses are located in a building or within a cluster of buildings that share a common vehicular entrance and exit to a public street.
- 9.9.5.6 A secondary Freestanding Sign in a Bow Valley Trail or Industrial District shall have a maximum sign face height of 3.0 m from grade and overall maximum height of the sign structure shall be 4.0 m from grade.
- 9.9.5.7 A secondary Freestanding or Monument Sign shall have a maximum overall sign area of 3.0 m².
- 9.9.5.8 A Freestanding or Monument Sign in a Commercial or Industrial district on a site that contains a Gas Bar and Service Station may include an electronic Sign (despite being a prohibited sign type) to display the static price of no more than one energy source (e.g. gasoline) and shall have a maximum sign face area of 1.0 m².

9.10 MURALS



Figure 9.10-1 and 9.10-2. Mural signs

9.10.1 General Regulations

- 9.10.1.1 The Sign shall relate to Canmore's history, environment, culture or people.
- 9.10.1.2 The Sign shall not have content that is a product or business advertising unless it is considered to be historic in content.
- 9.10.1.3 The Sign may be illuminated, when lighting is integrated into the building design and façade.

9.10.2 Location Regulations

- 9.10.2.1 The Sign shall not be directed towards a street with a speed limit of more than 50km/hr, or towards the Trans-Canada Highway on/off ramps.

9.11 RESIDENTIAL BUSINESSES



Figure 9.11-1 and 9.11-2. Residential business signs

- 9.11.0.1 A maximum of one (1) Flush-Mounted or Individual Letter Sign may be provided per Dwelling Unit to identify a residential business, with a maximum overall area of 0.2m².
- 9.11.0.2 Should landscaping obscure the visibility of the dwelling, a Freestanding Sign, with a maximum overall sign area of 0.2m², a maximum height of 1.0m from grade, and a minimum setback of 1.0m from any property line, may be installed. [2021-24]

9.12 TEMPORARY SIGNAGE

- 9.12.0.1 Temporary Signs may be designed without raised or recessed letters, or sign relief.
- 9.12.0.2 Unless explicitly stated, or not in conformance with the following regulations, temporary signs do not require a Development Permit or a Certificate of Conformance. A Certificate of Conformance may be voluntarily obtained to verify compliance with the regulations. [2021-24]

9.12.1 Real estate signs

- 9.12.1.1 Regulations for these Signs are as follows:
- Signs shall be displayed for no longer than 12 consecutive months, except for Window Signs which may be displayed until the property is sold or leased.

- b. For Detached Dwelling, Duplex Dwelling, Townhouse, Townhouse, Stacked, or Apartment Building units, a property may have one (1) on-site Freestanding Sign, Flush-Mounted Sign or Window Sign with a maximum overall sign area of 0.7 m² per public frontage. The sign may be designed with plastic material.
 - c. For multi-unit residential development, commercial, industrial, institutional, or future development sites, a property may have two (2) on-site Freestanding Signs or Flush-Mounted Signs per public frontage, where one (1) Sign has a maximum overall sign area of 1.0 m² and one (1) Sign has a maximum overall sign area of 3.0 m². The Sign shall be removed once occupancy is granted to 100% of the units, or the property is sold or leased, whichever is first.
 - d. A mixed use property may have one (1) on-site Freestanding Sign or Flush-Mounted Sign with a maximum overall sign area of 1.5 m² per public frontage. The Sign shall be removed once an Occupancy Certificate is issued to 100% of the units, or the property is sold or leased, whichever is first.
 - e. A multi-lot subdivision or land use amendment area may have one (1) on-site Freestanding Sign with a maximum overall sign area of 3.0 m² and a maximum height of 3.0 m from grade per public frontage. The Sign shall be removed once an Occupancy Certificate is issued to 75% of the lots, and a Development Permit shall be required prior to installation.
- 9.12.0.2 Signs may be placed on public property to guide vehicles to residential units that are currently advertised for sale, lease or to a show home.
- 9.12.0.3 Signs shall not obstruct traffic or lines of sight in any manner. Signs shall not interfere with the safety and convenience of pedestrians, cyclists or motorists, or other uses of public sidewalks, streets, boulevards or property.
- 9.12.2 Directional Signs**
- 9.12.0.1 Regulations for Directional Signs are as follows:
- a. The Sign shall have a maximum overall sign area of 0.7 m².
 - b. The Sign shall have a maximum height of 1.0 m above grade.
 - c. A maximum of five (5) Signs may be installed.
 - d. The design of the Sign may use 'A' or 'T' frame sign type.
 - e. A Sign may be used for multi-unit residential or mixed use buildings that are under construction.
 - f. A Sign should only be considered when the area is subject to an Area Structure Plan.
 - g. A location plan for all Signs shall be submitted to the Development Authority and approved prior to installation.
- 9.12.3 Contractor, Construction or Maintenance Signs on Private Property**
- 9.12.3.1 Signs may be placed directly adjacent to the area of work for advertising purposes.
- 9.12.3.2 Sites may have a maximum of one (1) Freestanding Sign and one (1) Flush-Mounted Sign per

public frontage.

- 9.12.3.3 The Sign shall have a maximum overall area of 1.5 m² in residential districts.
- 9.12.3.4 The Sign shall have a maximum overall area of 2.0 m² in non-residential districts.
- 9.12.3.5 The Sign may include contact details and website addresses.
- 9.12.3.6 The Sign may be designed with plastic or banner material.
- 9.12.3.7 The Sign may be displayed for the period of work and shall be removed within 48 hours once the work is complete.
- 9.12.3.8 Signs shall be displayed for no longer than three (3) consecutive months, except that Signs for new construction shall be displayed for no longer than 12 consecutive months or until an Occupancy Certificate is issued.
- 9.12.3.9 Sites that contain new construction may display one (1) Freestanding Sign per 10.0 m of frontage.

9.12.4 Public Event Signs

- 9.12.4.1 Signs may be installed for a maximum of two (2) weeks prior to the event and shall be removed within 24 hours following an event.
- 9.12.4.2 The type of Sign may be Freestanding Sign, Window Sign, Banner or Flag Sign.
- 9.12.4.3 The maximum size of a Sign should relate to the site and the pedestrian environment.
- 9.12.4.4 Approval in principle from the Town of Canmore Arts and Events Committee should accompany a Development Permit application.
- 9.12.4.5 A location plan and design for all Signs shall be submitted to the Development Authority and approved prior to installation.

9.12.5 Private Event Signs

- 9.12.5.1 Signs may be installed to announce an event at a business.
- 9.12.5.2 A Window Sign shall have a maximum size of 0.5 m² and located on the main floor of the building. The Sign may be displayed for two (2) weeks and removed within 48 hours following an event.
- 9.12.5.3 A Banner Sign shall have a maximum size of 1.0 m² and located on the main floor of the building. The Sign may be displayed for two (2) weeks and removed within 48 hours following the event.
- 9.12.5.4 The business shall have a maximum of one (1) event Sign per street frontage.

9.12.6 Political Campaign Signs

- 9.12.6.1 Signs may be installed on public or private property.
- 9.12.6.2 The Sign shall have a maximum overall area of 0.5 m² when installed on public property.

- 9.12.6.3 There is no maximum area for Signs installed on private property.
- 9.12.6.4 The Sign may be designed with plastic material.
- 9.12.6.5 Signs shall not interfere with the safety and convenience of pedestrians, cyclists or motorists, or other uses of public sidewalks, streets, boulevards or property.
- 9.12.6.6 Signs shall be removed within 48 hours of the closing of the polls following the election.

9.13 PROHIBITED SIGN LOCATIONS, TYPES AND CONTENT

- 9.13.0.1 A Sign shall not be located to obstruct the movement or free and clear vision of a pedestrian, cyclist or motorist.
- 9.13.0.2 A Sign shall not be located such that it interferes with or be confused with an authorized traffic sign, signal or device.
- 9.13.0.3 A Sign shall not be located where it creates a pedestrian, cyclist or motorist hazard.
- 9.13.0.4 A Sign shall not be located on or overhang a street or public property, including but not limited to, municipal reserve, unless specifically exempted or approved by the development Authority. An encroachment agreement is required for a Sign that is allowed to overhang a street or public property.
- 9.13.0.5 Signs that interfere with building architecture are prohibited, as follows:
 - a. A Sign shall not be mounted on or above a roof eaveline.
 - b. A Sign shall not be located on a balcony or railing above the main floor.
 - c. A Sign shall not be located on an awning or canopy, except a structural awning that has been designed to incorporate a signage area as an integrated architectural element.
 - d. A Sign shall not be located below storefront windows (e.g. in the base panel).
- 9.13.0.6 The following Sign types and designs are prohibited unless otherwise stated in this Bylaw:
 - a. Mobile signs, including any non-fixed moveable signs such as “A” frame signs, inverted “T” frame, signs with wheels, vehicle signs, handheld commercial signs, or other forms of signage designed and constructed to be moved on a frequent or regular basis except Chalkboard Signs or Menu Signs approved in accordance with the above regulations.
 - b. Changeable copy signs.
 - c. Signs with moving parts, or moving, animated, chasing border, scintillating or flashing lights .
 - d. Electronic signs, including video or image displayed on a device or projected on a building/structure that is intended to be viewed from the exterior of a building or site.
 - e. Billboard signs.
 - f. Signs from business no longer in operation and all related structural components.
 - g. Unsightly signs that have decayed, cracked, chipped or have deteriorated through age, neglect, damage, or misuse and no longer perform their intended function adequately.

- h. Internally lit signs or internally lit sign areas or awnings.
- i. Exterior vending machines with internal lighting.
- j. Plastic panel foam or fiberglass signs.
- k. Sign backgrounds, lettering or logos with fluorescent, luminous or reflective materials.
- l. Banner or Flag Signs used as permanent signs.
- m. Continuous sign bands.
- n. Inflatable or balloon signs.
- o. Poster signs unless posted on a Town approved Kiosk or a specific Town approved notice board on private property.
- p. Neon signs except as exempted in this Bylaw.
- q. Graffiti signs.
- r. Building wrap that includes signage.

9.14 EXEMPTED SIGNS

9.14.0.1 Unless explicitly stated in the above regulations, the following Signs do not require a Certificate of Signage Conformance or Development Permit:

- a. A Sign that is located inside a building and is not visible from the exterior.
- b. A Flush-Mounted Sign or Individual Letter Sign that states the municipal address, owner or name of the building, to a maximum area of 0.2 m² in a Residential district and 0.5 m² in all other districts.
- c. International, national, municipal or provincial flags to a maximum area of 3.0 m².
- d. A Sign, notice, placard or bulletin required to be displayed pursuant to provisions of Federal, Provincial or Municipal legislation and by or on behalf of the Federal, Provincial, or Municipal Governments for community awareness, warning, or traffic management purposes.
- e. A Political Campaign Sign used for Municipal, School Board, Regional Health Authority, Provincial or Federal Political elections located on private or public property and in accordance with the above regulations.
- f. Neon Signs that states “open”, “closed”, “vacancy”, or “no vacancy”, to a maximum area of 0.5 m² per frontage in commercial, industrial, and where appropriate, direct control districts located on the main or second floor of the building.
- g. A Menu Sign with a sign face area of 0.5 m² and located on the interior of a window.
- h. A Window Sign with a sign face area of 0.2 m² stating only the opening hours of the business.
- i. Directional Signs or Signs placed on a site for the guidance, warning, danger, hazard or restraint of persons.
- j. Temporary Real Estate, Directional, Contractor, Business and Event Signs installed in accordance with Subsection 9.12.

- k. Individual business Signs on an approved Freestanding Sign, provided that the following requirements are met:
 - i. The Sign is in accordance with the approved conditions of the Development Permit.
 - ii. The sign area and sign height is consistent with the approved Development Permit.
 - iii. The Sign is in accordance with the Signage General Regulations.
- l. Municipal wayfinding Signs or street decorations.
- m. A Window Sign with a sign face area of 0.7 m² stating that a unit or building is for sale, lease or a show home.
- n. A freestanding Garage Sale Sign located on private property shall have a maximum overall sign area of 0.5 m². The Sign may be displayed for three (3) days and removed within 24 hours following the event.
- o. Entry Signs located within the road right of way and accompanied by an entrance sign agreement and approved by the Town of Canmore.
- p. The repair or maintenance of a Sign that obtained a Certificate of Conformance, Development Permit or is an Exempted Sign provided that the sign dimensions, location, letters, logos, images remain in accordance approved conditions of the Development Permit, consistent with a Certificate of Conformance, Development Permit, or is in accordance with this Bylaw.
- q. A Sign that is directly adjacent to a Parking Area or parking stall that contains only parking information, has a maximum overall sign area of 0.5 m² and a maximum height of 3.0 m.

9.15 ADDRESSING

- 9.15.0.1 The owner of a property on which a structure has been erected shall display the municipal address assigned to the property (pursuant to the Addressing Bylaw) at all times.
- 9.15.0.2 External address numbers are to be in a location plainly visible in daytime and at night from the roadway to which the property is addressed, and shall be at least 0.13 m in height.
- 9.15.0.3 Internal addresses, such as the unit number of a multi-unit development, are to be located beside or on the entry door to the particular unit and shall be at least 0.07 m in height.

9.16 ENFORCEMENT

- 9.16.0.1 Any Sign located on public property that interferes with the work of a Town operation may be removed and disposed of by a Town employee, officer or agent without notice to the owner of the Sign.
- 9.16.0.2 Any Sign that a Bylaw Enforcement Officer or Development Officer considers to not be in accordance with this Bylaw is authorized to seize, remove and impound the Sign. The fees for the impounding and storage of Signs shall be charged in accordance with this Bylaw.
- 9.16.0.3 A Sign impounded by the Town and not claimed by the owner within 14 days of receiving written notification may be destroyed by the Town without compensation to the owner.

- 9.16.0.4 Any Sign constructed or installed in a manner that is not in accordance with the approved Development Permit or Certificate of Conformance for that Sign, (e.g. where a variation exists from the approved colour or material), shall be considered in violation of the Land Use Bylaw and a stop order may be issued for the removal of the Sign.
- 9.16.0.5 A Sign for an obsolete business or development shall be removed within 90 days from business closure or relocation.

SECTION 10 GREEN BUILDING REGULATIONS

Purpose

The purpose of these Green Building Regulations is to encourage development that is more environmentally sustainable than is achievable through traditional building practices.

Guiding Principles for Green Building Regulations

Flexibility: the applicant is provided with options for meeting the Town's Green Building targets.

Fairness: requirements for constructing more efficient and environmentally friendly buildings apply to all applicants.

Accountability: verification for quality of construction is required.

Timeliness: Green Building Regulations are not intended to add significantly to the permitting, inspection and occupancy procedure.

10.1 DEFINITIONS

For the purposes of these Regulations, the following definitions shall apply:

Applicant refers to any property owner, developer or builder undertaking a development that includes construction of a new building in Canmore that is large enough to necessitate a Building Permit, initiating the Green Building Procedure.

Built Green Canada refers to the programs operated by the Built Green Society of Canada "to promote 'green' building practices to reduce the impact building has on the environment". (Source: builtgreencanada.ca)

Can-Quest is a Canadian adaptation of the eQuest building energy simulation software used in the USA, which includes such additions as Canadian weather data and metric measurement units. It allows builders to model whole-building energy performance (building envelope; lighting; heating, ventilation and air conditioning systems; service water heating; and electrical power systems and motors). It is used to help design and demonstrate compliance for commercial and institutional buildings using the performance path under the National Energy Code for Buildings.

Certified Energy Advisor is an individual who conducts EnerGuide home evaluations through service organizations licensed by Natural Resources Canada.

(Information: Energy advisors provide third party expert advice to homeowners looking to improve the energy efficiency of their new homes and can also work with builders who wish to use the EnerGuide Rating System in the planning and design stages of their new constructions. Energy advisors help ensure homes labelled under Natural Resources Canada's energy efficiency housing initiatives meet the requirements of the standard.)

EnerGuide is "the official mark of the Government of Canada for its energy performance rating and labeling program for key consumer items—houses, light-duty vehicles, and certain energy-using products." (Source: nrcan.gc.ca)

EnerGuide Rating System for Homes refers to the program operated by Natural Resources Canada to measure a home's energy performance as evaluated and certified by a Certified Energy Advisor. It is a consumptive-based rating, measured in gigajoules per year (GJ/year).

(Information: "The energy advisor will measure and collect data about all of the elements of your home that impact its energy performance and then enter that data into an energy simulation software program that calculates your home's EnerGuide rating. The data collected includes: the level of your home's airtightness, using a blower door test; the insulation levels of your walls, ceilings and basement; the number, type and location of all windows and exterior doors; the size and efficiency ratings of your space heating, space cooling (air conditioning) and water heating equipment; information about any ventilation equipment; and any other information relevant to your home's energy performance." (Source: nrcan.gc.ca))

Enhanced Green Construction means construction that results in a building that exceeds the Town's Green Building energy targets.

Green Building means a building that exceeds standard construction practices in terms of energy consumption by meeting the Town's targets as set out in this section. Preferably, the building would also exceed standard construction practices in terms of reduced material use and water consumption, reduced greenhouse gas production, and use of healthier and more environmentally friendly materials.

LEED refers to the various Leadership in Energy and Environmental Design programs operated by the Canada Green Building Council. Examples are LEED for New Construction and LEED for Homes.

Reference House means the theoretical reference value (house) that is uniquely created through the EnerGuide Rating System to show the gigajoule per year rating a house would achieve if it was built to meet typical new home energy performance construction requirements.

10.2 APPLICABILITY

- 10.2.0.1 All new buildings constructed in Canmore with GFAs exceeding 10 m² (107.6 ft²) are subject to these Regulations, with the exception of Accessory Buildings and Accessory Dwelling Units.
- 10.2.0.2 Renovations, additions, or reconstruction of existing buildings are not required to meet these Green Building Regulations.
- 10.2.0.3 Compliance with the Green Building Regulations shall be a condition of approval for Development Permits for all new building construction and shall also be necessary for compliance with this Bylaw for buildings for which a Development Permit is not required, pursuant to Subsection 1.9 of this Bylaw.

10.3 APPLICATION AND REPORTING PROCEDURE

- 10.3.0.1 When a proposed new building exceeds 10 m² (107.6 ft²) in GFA, it shall be a requirement of the development approval (including developments where a Development Permit is not

required, pursuant to Subsection 1.9 of this Bylaw) that the Applicant initiate one of the Town of Canmore Procedures or the Third-Party Certification Procedure described below prior to obtaining a Building Permit.

10.3.1 Green Building Procedure for Small Scale Residential and Similar Developments (Detached, Duplex, and Townhouse developments)

- 10.3.1.1 The Applicant shall engage a Certified Energy Advisor to initiate the EnerGuide Rating System for Homes. Evidence of this engagement shall be provided in advance of the Town issuing a Building Permit.
- 10.3.1.2 The Applicant shall work with the Certified Energy Advisor through a process that generally involves the following steps:
 - a. The EnerGuide service starts with an analysis of the new house plans by a Certified Energy Advisor.
 - b. The Advisor recommends energy saving upgrades and works with the Applicant to develop a report that lists detailed options for improving the home's energy performance.
 - c. The builder then estimates the work and provides the Applicant with price information that ultimately leads to construction decisions. Note that the Town of Canmore's target for the EnerGuide Rating is a result that is 10% better than the rating that would be obtained by the Reference House, and that there is a system of incentives and penalties established below encouraging achievement of this target.
 - d. When construction is complete, the Certified Energy Advisor verifies the applied energy upgrades and evaluates the energy performance of the building in accordance with the EnerGuide Rating System for Homes, which includes a blower door test and takes into account on-site renewable energy contributions amongst other measures.
 - e. After the data have been collected and analyzed, the development receives an interim EnerGuide Rating.
 - f. The interim EnerGuide Rating is submitted to Natural Resources Canada for verification and approval. Once that is completed, the owner is provided with an official EnerGuide label to display the rating on the dwelling's furnace or electrical box.
- 10.3.1.3 Following construction and prior to occupancy of the building being granted by the Town, the Applicant or Certified Energy Advisor shall submit to the Town confirmation that the energy performance evaluation has been undertaken, along with a copy of the interim EnerGuide Rating.
- 10.3.1.4 The Town will compare the EnerGuide Rating achieved to that of the Reference House, the target being a rating that is a minimum of 10% less than the gigajoule per year requirement of the Reference House.
- 10.3.1.5 Based on the outcome of the EnerGuide Rating comparison, the Town will determine if incentives or penalties apply to the development.
- 10.3.1.6 When the owner of the dwelling receives the official EnerGuide label from Natural Resources

Canada, a copy should be provided to the Town to verify the interim rating.

10.3.2 Green Building Procedure for Commercial, Industrial and Institutional Buildings, and Residential Developments where the EnerGuide program cannot be applied

- 10.3.2.1 Applicants applying for development approval need to inform the Town prior to commencement of construction whether they are following only the mandatory energy-related requirements of the Alberta Building Code or will follow the Town's Green Building option for construction.
- 10.3.2.2 Applicants following only the Alberta Building Code need to provide no further information to the Town.
- 10.3.2.3 Applicants following the Town's Green Building option shall engage a Certified Energy Advisor or other qualified professional to provide the Town with evidence that the building has been designed to comply with the *National Energy Code for Buildings* as revised to the date of application (*NECB - Current Version*). Compliance can be demonstrated through the prescription, trade-off or performance paths. **[2020-16]**
- 10.3.2.4 Applicants seeking Enhanced Green Building construction under the Town's Green Building option, and the incentives provided by the Town for achieving this, must engage a Certified Energy Advisor or other qualified professional, use the *NECB - Current Version* performance path for building energy design, and submit Can-Quest (or equivalent software) modelling. **[2020-16]**
- 10.3.2.5 Once the building has been designed and prior to a decision on the Development Permit application, the Applicant and his or her Certified Energy Advisor or other qualified professional shall meet with a Development Officer to discuss the benefits available under the Targets, Incentives and Penalties portion of this Regulation. Based on the improved energy performance of the proposed building, the appropriate benefit will be established as part of the development permit issued for the project. The development agreement prepared for the project shall include provisions for guaranteeing that the Applicant meets its commitments regarding building energy performance.
- 10.3.2.6 Green Building target (*NECB - Current Version*) Applicants
 - a. Following construction and prior to occupancy being granted by the Town, the Applicant shall provide the Town with evidence from a Certified Energy Consultant or other qualified professional that the building has been constructed in compliance with the *NECB - Current Version*.
 - b. If the Consultant or professional finds that the building has not met the *NECB - Current Version* requirements, he or she shall specify the percentage by which the building falls below the *NECB - Current Version* in terms of energy use. **[2020-16]**
- 10.3.2.7 Enhanced Green Construction (exceeding *NECB - Current Version*) Applicants
 - a. Following construction and prior to occupancy being granted by the Town, the Applicant's Certified Energy Consultant or other qualified professional shall submit the results of the Can-Quest (or equivalent software) modelling based on final building construction, demonstrating that the building has achieved Enhanced Green

Construction. The Consultant or professional shall specify the percentage by which the building exceeds the *NECB - Current Version* in terms of energy use. **[2020-16]**

10.3.3 Third Party Certification Procedure

- 10.3.3.1 Instead of following the Town of Canmore Green Building Procedures as per Subsection 10.3.1 and Subsection 10.3.2, the Applicant may use a recognized third party to certify that the building component of a development meets the Town's Green Building Principles.
- 10.3.3.2 The Town currently recognizes LEED™ and Built Green Canada™ certifications, and the Town's Development Authority may accept other programs when issuing decisions on a development permit application. In those instances where a development permit is not required (see Subsection 1.9 of this Bylaw), Town Development Officers are hereby authorized to decide as to the acceptability of other third-party certification.
- 10.3.3.3 When an Applicant elects to follow the Town's Green Building option and use third party verification procedures, evidence of intent to submit a third-party certification shall be submitted in advance of the Town issuing a building permit.
- 10.3.3.4 The Applicant shall provide evidence that the third-party certification has been achieved prior to occupancy being granted by the Town. A preliminary notification of compliance provided by the third party shall suffice in this regard, with the official copy of final certification required within 90 days of issuance of an Occupancy Certificate for the building or, as applicable, the final unit.
- 10.3.3.5 When a third-party certification such as LEED™ or Built Green Canada™ is utilized, the applicant is not required to provide evidence that the EnerGuide Rating System target has been met.

10.4 GREEN BUILDING PERFORMANCE SECURITY REQUIREMENT

- 10.4.0.1 This section applies only to:
 - a. Small Scale Residential and Similar Developments (Detached, Duplex, and Townhouse developments) for which the Town of Canmore Green Building Procedure is mandatory for development approval; and
 - b. Applicants developing Commercial, Industrial and Institutional Buildings, and Residential Developments where the EnerGuide Program cannot be applied, and where the Applicants have elected to use either the Town's Green Building or Enhanced Green Construction option.
- 10.4.0.2 If the interim EnerGuide report or *NECB - Current Version* energy calculation or third-party certification have not been submitted prior to occupancy as required above, the Applicant shall provide a refundable Green Building performance security prior to building occupancy being granted by the Town. **[2020-16]**
- 10.4.0.3 Similarly, if the interim EnerGuide report or *NECB - Current Version* energy calculation or third-party certification show that the minimum performance targets established in this Green Building Regulation have not been achieved, the Applicant shall provide a refundable

Green Building performance security prior to building occupancy being granted by the Town.
[2020-16]

- 10.4.0.4 The amount of the Green Building performance security shall be based on a specified dollar amount per \$1,000 of construction value established during the building permitting process, with the specified dollar amount being set annually by Council as part of the Master Fee Schedule approval.
- 10.4.0.5 The Green Building performance security shall be provided to the Town in the form of cash or a letter of credit.
- 10.4.0.6 If the necessary reporting requirements and required minimum target (outlined under Subsection 10.5) are achieved within 6 (six) months of occupancy being granted, the Green Building performance security shall be refunded to the Applicant. The Applicant may also be eligible for an incentive payment as outlined below.
- 10.4.0.7 If the necessary reporting requirements are submitted within six months of occupancy being issued but the required minimum target is not achieved or only partially achieved, the Green Building performance security may be subject to the penalty provisions outlined below in Subsection 10.5.
- 10.4.0.8 Modifications to the development may be undertaken to achieve the required Green Building Regulation target in the six-month period following occupancy, before the decision on a refund of the Green Building performance security is made by the Town.

10.5 GREEN BUILDING TARGETS, INCENTIVES AND PENALTIES

- 10.5.0.1 Where targets are demonstrated to be unreasonable given the special characteristics of a development or a building within it, exceptions may be considered at the discretion of the Development Authority. Where warranted, the Green Building target may be varied.

10.5.1 Small Scale Residential Developments (Detached, Duplex, and Townhouse developments)

- 10.5.1.1 The Town shall reward Applicants constructing Small Scale Residential Developments (Detached, Duplex, and Townhouse developments) who exceed the development approval minimum requirements for Green Buildings established in these Regulations through the provision of incentive payments.
- 10.5.1.2 For Applicants using the EnerGuide Rating System, the Green Building minimum target is an energy usage rating that is at least 10% below the gigajoule per year requirement of the Reference House.
- 10.5.1.3 The minimum Enhanced Green Building target is an energy use rating that is at least 12% better than the Reference House.
- 10.5.1.4 For Applicants using the EnerGuide Rating System, an incentive shall be provided where the required reporting has been received within six months of occupancy and confirms the GJ/ year improvement is as follows in Table 10.5-1 below

Table 10.5-1		
EnerGuide score required	Incentive	BuiltGreen™ equivalent
10% better than EnerGuide Reference House	No incentive	Bronze
11% to 20% better than EnerGuide Reference House	10% of Green Building performance security	Silver
21% to 30% better than EnerGuide Reference House	20% of Green Building performance security	Gold
31% to 40% better than EnerGuide Reference House	30% of Green Building performance security	Platinum

10.5.1.5 Applicants who fail to complete the Green Building requirements or do not achieve the development approval minimum requirements for Green Buildings as established in these Regulations shall face penalties as set out in 10.5.2.6 but will not be required to modify their buildings to achieve the targets.

10.5.1.6 For Applicants using the EnerGuide Rating System, the penalties are as follows:

- a. Failure to submit the reporting requirements – the penalty is 100% of the Green Building performance security. If the necessary reporting requirements and required minimum target are achieved within six months of occupancy being granted, the Green Building performance security shall be refunded to the applicant and the Applicant may still qualify for incentive payments.
- b. Failure to meet the minimum target (10% better than the Reference House) by less than 10% – the penalty is 10% of the Green Building performance security.
- c. Failure to meet the minimum target (10% better than the Reference House) by 10 - 19% - the penalty is 20% of the Green Building performance security.
- d. Failure to meet the minimum target (10% better than the Reference House) by 20 - 29% - the penalty is 30% of the Green Building performance security.
- e. Failure to meet the minimum target (10% better than the Reference House) by 30% or more - the penalty is 40% of the Green Building performance security.

10.5.2 Commercial, Industrial and Institutional Buildings, and Residential Developments where the EnerGuide program cannot be applied

10.5.2.1 The Town shall reward Applicants constructing Commercial, Industrial and Institutional Buildings, and Residential Developments where the EnerGuide program cannot be applied, who exceed the requirements of the Alberta Building Code.

10.5.2.2 Applicants meeting the Town's Green Building target (*NECB - Current Version*) shall be eligible for variances of up to 20% as allowed in Subsection 1.14 of this Bylaw. Those variances may apply to maximum building height, yard setbacks, maximum lot coverage, maximum and minimum densities, and minimum parking requirements. Applicants not meeting the Town's Green Building target shall not be eligible for these Subsection 1.14 variances. **[2020-16]**

- 10.5.2.3 Applicants meeting Enhanced Green Construction by exceeding the Town's Green Building target are eligible for variances as per Subsection 1.14.
- 10.5.2.4 Applicants meeting Enhanced Green Construction are also eligible for reductions in the amount of security required as follows:
- a. 1 – 10% better than the *NECB - Current Version* requirements – the incentive is a reduction of 10% of the development security
 - b. 11 – 15% better than the *NECB - Current Version* requirements – the incentive is a reduction of 20% of the development security
 - c. 16 - 20% better than the *NECB - Current Version* requirements – the incentive is a reduction of 30% of the development security
 - d. More than 20% better than the *NECB - Current Version* requirements – the incentive is a reduction of 30% of the development security plus the potential for additional variances to maximum building height, yard setbacks, maximum lot coverage, maximum and minimum densities, and minimum parking requirements pursuant to Subsection 1.14.3.1 of this Bylaw. **[2020-16]**
- 10.5.2.5 Applicants who have received incentives under the Green Building Regulations shall provide proof to the Development Authority that they have met their objectives in accordance with Subsection 10.3.2 above.
- 10.5.2.6 For Applicants not achieving their Green Building or Enhanced Green Construction requirements, the penalties are as follows:
- a. Failure to achieve the requirements by an energy equivalent of 1 to 5% - the penalty is 10% of the Green Building performance security.
 - b. Failure to achieve the requirements by an energy equivalent of 6 to 10% - the penalty is 25% of the Green Building performance security.
 - c. Failure to achieve the requirements by an energy equivalent of 11 to 15% - the penalty is 50% of the Green Building performance security.
 - d. Failure to achieve the requirements by an energy equivalent greater than 15% - the penalty is 100% of the Green Building performance security
 - e. Failure to submit the *NECB - Current Version* performance results – the penalty is 100% of the Green Building performance security. **[2020-16]**
- 10.5.2.7 Applicants pursuing Green Building or Enhanced Green Construction shall enter into a development agreement with the Town as a condition of development approval, and that agreement shall contain provisions aimed at ensuring compliance with the Applicant's commitments under this regulation. Depending on the complexity of the project and the size of the variances or reductions in development security that were granted, the Town may establish larger penalties through the development agreement than those established in 10.5.2.6 in the event that the Applicant does not meet its commitments.

10.5.3 Third Party Certification Procedure

- 10.5.3.1 When an Applicant has not used the EnerGuide Rating System but has significantly exceeded

the minimum requirements of a third-party certification, the incentive shall be equivalent to that established in 10.5.1.4 for the EnerGuide Rating System.

- 10.5.3.2 When an Applicant has elected to use a third-party Green Building verification rather than the EnerGuide Rating System and has not achieved the minimum requirements of the third party certification, the penalty shall be equivalent to that established in 10.5.1.6 for the EnerGuide Rating System.
- 10.5.3.3 When an Applicant has not used Can-Quest (or equivalent) modelling and the comparison to *NECB - Current Version* requirements but has significantly exceeded the minimum requirements of a third-party certification such as LEED, the incentive shall be equivalent to that established above for the *NECB - Current Version* comparison in 10.5.2.4. **[2020-16]**
- 10.5.3.4 When an Applicant has elected to use a third-party Green Building verification rather than the *NECB - Current Version* requirements and has not achieved the minimum requirements of the third party certification, the penalty shall be equivalent to that established above for the *NECB - Current Version* comparison in 10.5.2.6. **[2020-16]**

SECTION 11 COMMUNITY ARCHITECTURAL & URBAN DESIGN STANDARDS

- 11.1 Preface**
- 11.2 Introduction**
- 11.3 Public realm**
- 11.4 Site Planning & Design**
- 11.5 Commercial & Mixed Use Building Design**
- 11.6 Multi-Unit Residential Building Design**
- 11.7 Definitions**

11.1 PREFACE

Vibrant and liveable towns balance a structured and legible urban form with places that encourage a variety of activities, meetings and transactions. These towns have a distinct identity which is facilitated by protected natural spaces, clearly defined edges, appropriate connections, significant public spaces and a distinct architectural character. Establishing coherence among these physical forms is one of the key objectives of the practice of urban design. Urban design is the multi-disciplinary process of shaping the physical environment. It involves the design of buildings, groups of buildings, spaces and landscapes, and the establishment of a framework to facilitate successful development.

In Canmore, this framework is referred to as the Community Architectural and Urban Design Standards. These Standards are a continuation of Council's and the community's efforts to build a distinct and more sustainable community for future generations.

The purpose of these Standards is to promote distinctive, secure, healthy and high quality spaces that foster a strong sense of community identity and pride. Some critical goals are as follows:

- a. Create spaces, places and buildings that are unique to Canmore and contribute to an identifiable and coherent townscape;
- b. Facilitate creative architectural solutions that fit with their surroundings, yet provide variety and interest over time;
- c. Preserve Canmore's character and scale including traditional mountain forms, while creating new places of lasting quality that reflect their time and place; and
- d. Encourage state of the art resource saving technology including low energy buildings, environmental technology and design practices that reduce the impact of development on the natural environment.

The preparation of these Standards was guided by the fundamental values and strategies identified in the public collaborative Mining the Future visioning process and Municipal Development Plan. While the physical form of the community is the focus of this document, it is recognized that civic pride, enhanced social interaction and economic sustainability can be enhanced by positive contributions to the built environment. As a result, these Standards are intended to produce not only aesthetically pleasing places but places that promote comprehensive community sustainability.

11.1.1 Urban Design Principles

Urban design is about creating places of beauty and distinct identity. It draws together the desires of the community and key place-making principles from the fields of planning, architecture, landscape architecture, engineering, transportation planning and development economics.

The urban design principles outlined below will be an important reference in the preparation and review of plans for new development and redevelopment within the Town.

Key aspects of Canmore's architecture and urban design agenda include a concern with

sustainability, quality of life, safety and social connections. The urban design principles outlined below provide the fundamental rationale for the Community Architectural & Urban Design Standards.

Table 11.1 Key Urban Design Principles:

Principle		Rationale
Identity	Reinforce local development patterns of small store frontages to further community identity.	Beautiful, distinctive and contextually appropriate places where people can live and work will foster a strong sense of community, social equity, cohesion, integration and identity.
Connections	Establish strong connections.	High quality and well-planned public places (including enhanced pedestrian and bicycle networks, as well as streets and interconnected public spaces) promote accessibility and support a high level of social and cultural activity.
Adaptable	Create places that can adapt to changing conditions in the long-term.	Places that are flexible enough to deal with changes in use, lifestyle and demography will contribute to long-term community sustainability.
Durable	Design durable places that will stand the test of time.	Design that creates streets, buildings and places that will handle a variety of uses over time will continue to be destinations despite changing economic and social circumstances.
Enclosure	Enclose public spaces to promote a sense of security and comfort.	Well defined public spaces designed with the human scale in mind should encourage activity and promote opportunities for social interaction while making inhabitants feel safe and comfortable.
Nature	Design with nature.	Working with the site's natural features – climate, landform and landscape will help minimize energy use and lessen the impact on and build connections to the environment.

11.1.2 Purpose

The Community Architectural & Urban Design Standards are intended to reinforce the identity of the Town. They translate the vision embodied in Mining the Future into practical guidance for site planning and building. As part of the Town's Land Use Bylaw, the Community Architectural and Urban Design Standards are a comprehensive framework for the creation of quality places with an emphasis on aesthetics, environmental responsibility, social equity and economic viability. The Standards articulate performance goals relative to new design and major refurbishments, which increases the certainty that the community's vision will be realized.

11.1.3 Applicability

These Standards should be considered and reviewed in conjunction with specific regulations outlined in the Land Use Bylaw and Engineering Design and Construction Guidelines. The Canmore Planning Commission may vary individual Standards for specific projects if the waiver will result in a better design solution than a strict application of the Standards and the variance is in accordance with the variance provisions outlined in the Land Use Bylaw. The Development Authority shall determine that an application is consistent with the Community Architectural and Urban Design Standards before approving an application.

The Community Architectural and Urban Design Standards shall apply to any district in which they are referenced to the extent that the district requires. For example, some districts require complete compliance with all of these standards where others require only compliance with part of the standards such as materials and colours.

There are several design guidelines associated with approved Area Structure Plans (ASPs), Area Redevelopment Plans (ARPs), land use districts and projects (e.g. Spring Creek Mountain Village, SilverTip, Three Sisters). Existing design and architectural guidelines for these areas will supplement these Standards, as will design guidelines developed for specific development projects in place at the time these Community Architectural & Urban Design Standards are approved by Council. Future planning and design documents should use these Standards as a foundation for area specific plans, policies and guidelines.

User friendly text is used in conjunction with photographs of examples in Canmore to illustrate the intent of the Standards and recommendations for implementation.



Although applicants should strive to conform to all Standards, those strategies which are ESSENTIAL to achieving successful design are indicated with this symbol.



Standards that relate to low impact development and contribute to green building design are identified by this symbol.



Examples of design strategies that should be avoided or used with caution are designated with this symbol.

11.2 INTRODUCTION

11.2.1 Community Character

Canmore's sense of place is clearly embedded in its majestic natural setting which is fundamental to the cultural and economic vitality of the community. The Town and its surrounding environment offer numerous opportunities for outdoor recreation and the area has become a centre of athletic excellence attracting people from across the country and around the world.

In addition to its breathtaking setting, Canmore's character is also grounded in its coal mining history. For almost a century the area was the largest coal mining centre in southern Alberta. Remnants of this past are scattered throughout the town and nearby mountainsides. The original settlement was established on the flat lands near the river with easy access to

major transportation routes. All services and amenities were in close proximity to residential development and an efficient grid pattern of development evolved around the downtown core.

As the flat terrain became built out, new development has taken place on the slopes of the mountains. In these new areas the pattern of development has been more suburban in type, and formed around topography and other physical constraints. In contrast, the original town centre is organized according to the traditional grid pattern of development. The streets, blocks and individual buildings create a legible, mixed use environment that is walkable and pedestrian friendly. Preserving Canmore's traditional form while creating places with an enduring quality that suit their time and place is an important balancing act critical to the evolution of any community.

Canmore's unique sense of place is attributed to its coal mining heritage, pedestrian friendly commercial streets, human scale building fabric, creeks and rivers running through urban areas, walking trails and mountain forests. As a result, the urban design and architectural character of Canmore should reflect the mountain setting and be sensitive to the historical vernacular of the town's mountain, railway and mining heritage. These Standards strive to reflect the surrounding environment, encourage sustainable architecture and urban design while promoting creativity and innovation in development. To accomplish these wide-ranging goals, the Community Architectural & Urban Design Standards will address two components of the built environment: the public and private realm.

11.2.2 Components

These Standards address several scales of the built environment – the street, the site and the building. Each section begins with a description of the key element followed by a general statement of objectives and a set of standards that will help achieve the desired result.

Cities, towns and villages have a public realm and a private realm, and how these components come together will define life in the community. At the most basic level, streets are public and the buildings that front them are generally private. The interface between the street and the buildings is often what makes a community work.

The first section of the guidelines focuses on the public realm, which generally consists of the outdoor areas within the urban environment that are held in common (in large part are publicly owned, but in some cases are privately owned but open to the public without invitation); for example, the streets, sidewalks, plazas, parks, open space as well as public buildings and facilities. These guidelines will focus on key elements of the public realm in Canmore including: the street environment, urban plazas, parks & open space, public art and views.

The second major component of these Standards deals with the private realm. The private realm is defined as property that is privately owned and maintained. Although the private realm is not public property, the public still has an interest in maintaining a certain design continuity in their community. As a result, standards associated with protecting and enhancing the qualities and characteristics of the private realm are considered mutually advantageous to the Town and private landowners. In this component of the Standards, developers, designers

and regulators will find direction on site planning and building design. Within each of these categories is a series of elements that impact the quality of private spaces and contribute to the successful transition to the public realm thereby influencing the overall character and coherence of the Town. These Standards are intended to encourage individual expression in the development of land and buildings while maintaining integrity in the design of the urban environment.

11.2.3 Linkage to other plans and policies

This document has been prepared as part of the community's desire to maintain and improve the design quality of the Town. These standards should be used to supplement various plans and policies, and to reinforce the design mechanisms that will help ensure a sense of place is achieved through each new development. Developers, designers and planners should consult this document in conjunction with the following Town policies and plans:

- a. Municipal Development Plan (MDP);
- b. Applicable ASP's or ARP's;
- c. Engineering Design and Construction Guidelines;
- d. Open Space Development Guidelines;
- e. Parking Cash in Lieu Policy;
- f. Administrative Guidelines.

11.3 PUBLIC REALM

Design standards for the public realm address the street, urban plazas, and public open space, and views. These Standards are intended to bring cohesion and continuity to public spaces and assist in creating pedestrian friendly environments.

11.3.1 Street Environment

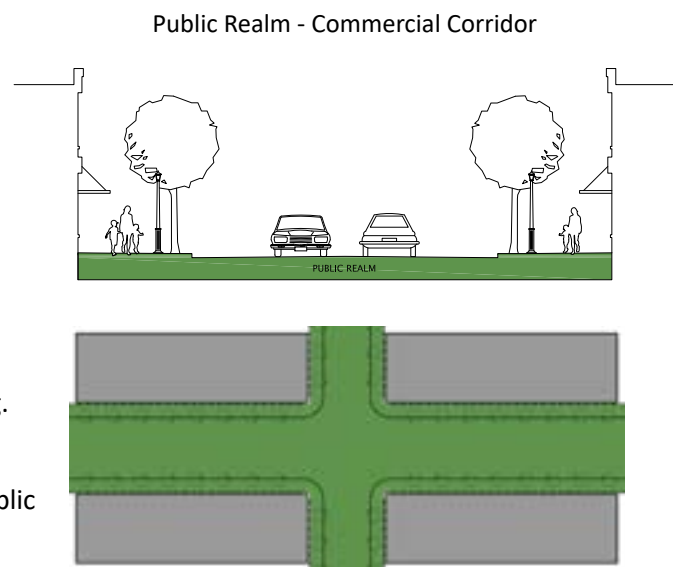
Streets are the skeleton of the town. They provide structure to the Town's form, facilitate mobility, connect a variety of uses and provide opportunities for people to interact. In essence, the life of a community is found on its streets.

Streets are more than roads or places for cars. Streets are a significant component of the public realm. They are framed by buildings and comprise the carriage way, sidewalk, street trees, landscaping and the front yards of buildings that line the street. For example, commercial streets tend to have very small or zero-setbacks, multi-storey buildings with shop fronts and street trees planted in tree wells and are lined by businesses that interact with the street and engage pedestrians, with storefronts that invite the eye of passersby. These areas are clearly "public" and encourage spontaneous social interactions and economic activity. In contrast, residential streets tend to have larger setbacks, lower building heights and residential frontages (porches, stoops, etc.) that help transition from the public into the private realm of the buildings.

Standards for the street environment are intended to address the functional and aesthetic purpose of streets so they can effectively serve a variety of users, multiple purposes and modes of transportation.

Objectives

- a. Make streets multi-purpose.
- b. Make streets pedestrian friendly.
- c. Protect pedestrians from sun, snow and rain.
- d. Provide commercial storefronts that are visually interesting at the pedestrian scale.
- e. Provide sufficient street furniture.
- f. Plant and maintain street trees.
- g. Provide pedestrian scale lighting.
- h. Assist visitor orientation.
- i. Encourage the installation of public art.



Standards

- ★ 11.3.1.1 Buildings should be oriented to define and frame the public realm (i.e. the street and public/communal spaces) and to complement the character or identity of the area by:

 - a. Matching or complementing the massing of adjacent buildings;
 - b. Matching or complementing adjacent building setbacks;
 - c. Creating a pattern that reinforces the continuous character of the public realm; and
 - d. Ensuring buildings face the public realm and all adjacent streets and sidewalks with visually permeable windows and functional access points. (see Fig. 1)



Figure 1

- ★ 11.3.1.2 Parking shall be located behind buildings or underground (refer to Subsection 11.4.2). (see Fig. 2)



Figure 2

- ★ 11.3.1.3 Design new projects with frontages that activate the street by providing direct access to the ground floor commercial spaces, and by providing an appropriate transition between the private realm of buildings and the public realm of streets. (See Fig. 3a - 3b)



Figure 3a

Consideration should also be given to the proposed uses in the building. The aim should be to have those uses (e.g. stores, restaurants, cafes) that both require and stimulate pedestrian use of the street in very prominent and accessible locations so that there can be significant activity moving between the public and private realms. Uses that create less pedestrian interest (e.g. offices and medical services) can be located in less prominent locations.

- 11.3.1.4 Make streets within the Town Centre District pedestrian friendly and communicate the public character and quality of these streets by incorporating street furnishings, (especially seating oriented to allow people watching), landscape features (especially street trees) and subtle, downcast lighting into the street environment. (see Fig. 1)



Figure 3b



11.3.1.5 New buildings situated on significant urban sites (termination of the street, corner lots, adjacent to public or historic buildings) should be designed to reflect the prominence of their location.

11.3.1.6 Buildings on corner lots should interact with all adjacent streets, therefore careful consideration should be given to all frontages that have sidewalks or public access. (See Fig. 4a - 4b)

11.3.1.7 Buildings adjacent to sidewalks should provide structural canopies, awnings and overhangs, especially where there is insufficient mature tree cover. (See Fig. 5)

11.3.1.8 Public sidewalks should be sufficiently wide (3m is optimal) to accommodate pedestrian passage plus street trees and street amenities such as benches and trash receptacles. It may be necessary in some cases for the private realm to supplement the public realm to achieve this.

11.3.1.9 Sidewalk seating is encouraged where appropriate. Seating should not impede pedestrian traffic and should be oriented to allow people watching. (See Fig. 6a - 6c)

Benches should be provided along pedestrian thoroughfares and within public outdoor spaces in a way that will encourage social interaction and street life. Bench design should emphasize:

- a. Comfort;
- b. Ease of maintenance;
- c. Durable finish;
- d. Resistance to vandalism; and
- e. Consideration of recycled or sustainable materials.



11.3.1.10 Street trees and other plantings serve a number of purposes: air filters, shade, spatial enclosure, natural materials in the built environment, soften building mass, plus they add beauty and character to an area.

- a. Plant street trees to define the street and sidewalk; consistent use of species, size and spacing along the street will create a rhythm and further define the space.
- b. Plant street trees to provide cover; selection of species should consider access to both sun and shade along sidewalks.
- c. Use of tree guards and grates in areas with considerable commercial and pedestrian activity to facilitate safety and prevent compaction of the root ball.
- d. Use planters to add variation to the streets and allow seasonal display of flowers and plants.
- e. Where possible, consideration of evergreen trees or planting should be incorporated in appropriate locations to provide year- round vegetation. (See Fig. 7a - 7e)



Figure 7a



Figure 7b



Figure 7c



Figure 7e



Figure 7d

- 11.3.1.11 Use street furniture or other design elements to delineate public space and the transition between the public and private realms. (See Fig. 8a - 8c)
- 11.3.1.12 Consider allowing the use of parking stalls where adjacent to public sidewalks for patios and decks by adjacent buildings and uses, especially for restaurant patios subject to appropriate approvals.
- 11.3.1.13 Coordinate the design and appearance of street furnishings and amenities to create areas with a distinct identity.
- 11.3.1.14 Ensure high quality street furniture and materials are used in the public realm. Street furniture should be sensitively located in relation to vistas, elevations of buildings, pedestrian movement patterns and the use of spaces for social interaction.



11 COMMUNITY ARCHITECTURAL AND URBAN DESIGN STANDARDS

11.3.1.15 Bicycle racks should be provided at all public destinations such as shopping and employment areas, schools, libraries, recreation centres, places of worship and transit stops. (See Fig. 9a - 9c)

11.3.1.16 Encourage a comprehensive program of public signage, including wayfinding signage, within the Town Centre, Bow Valley Trail and Gateway Districts, highlighting connections between the major visitor accommodation area, the Town Centre and any resort centres. Public wayfinding signage should be used to help direct motorists and pedestrians to key points.

A consistent, unique and distinctive style of public signage should be used throughout, to reinforce a distinctive and cohesive identity for the town and other commercial/tourist areas. The design, style and placement of public signage, particularly pedestrian signage, should complement other streetscape elements such as furniture and street lamps.



Figure 9a



Figure 9b



Figure 9c

11.3.2 Urban Plazas and Public Open Spaces

Landscape, topography and buildings define open space. These places can be “green” or “civic” places and include squares, streets, courtyards and playgrounds (parks are dealt with in more detail in the Open Space Development Guidelines). They can combine both hard and soft landscape elements, and can provide a range of functions including both visual and local amenity.

New development should enhance existing open space and contribute to a legible system of parks and open spaces.

Objectives

- Strengthen and extend the network of green and civic spaces.
- Design civic spaces that encourage activity.
- Facilitate social interaction and encounters.
- Provide opportunities for reflection or intellectual surprise or exploration

Standards

- ★ 11.3.2.1 Locate open space in areas that allow for safe access and provide opportunities for informal supervision from adjacent development. Development adjacent to plazas and public open space should provide permeable facades adjacent to the open space.
- ★ 11.3.2.2 Locate urban plazas intended for public use at or within 0.5m in height of the adjacent street grade to facilitate physical and visual connection to the street. Where there are vertical separations between the sidewalk and the plaza, ensure ramps are provided to allow access for all. Within commercial corridors ensure that plazas do not severely interrupt the retail continuity of the street.
- 11.3.2.3 Wherever possible, trees should be planted in outdoor public spaces.
- 11.3.2.4 Urban plazas should provide a publicly accessible focal point and be located in places that generate relatively high levels of pedestrian activity. (See Fig. 10)



Figure 10

11.3.2.5 Use buildings and landscape features to define and create edges for outdoor spaces.

11.3.2.6 Outdoor spaces should be designed so they are proportionate to their surroundings and fit into the context of the adjacent streets, buildings and uses. Avoid oversized spaces that lack a sense of enclosure. The scale should be appropriate to the intended use and the expected number of users. Larger outdoor spaces should utilize design elements to break the spaces into smaller, discrete parts.



Figure 11

- ★ 11.3.2.7 Design plazas and open spaces with consideration of the uses of adjacent buildings that attract people to and activate or animate the space. Provide direct access to the ground floor commercial spaces, and an appropriate transition between the private realm of buildings and the public realm of open space. This is

achieved by designing consistent frontages within the architectural style of the project – addressing the structural expression, scale, proportions and materials of the building. (See Fig. 11)

The aim is to have those uses (e.g. stores, restaurants, cafes) that attract people to use the open space, adjacent or very close to it. Uses that sell or provide food or beverage services can greatly influence use of outdoor public spaces in a positive manner.

- 11.3.2.8 Design outdoor public spaces to include seating. All seating should encourage social interaction and extend the use of the open space. Seating should be oriented to allow for people watching. (See Fig. 12a)

Benches can be provided within public outdoor spaces in a way that will encourage social interaction and street life. Bench design should emphasize:

- Comfort;
- Ease of maintenance;
- Durable finish;
- Resistance to vandalism; and
- Consideration of recycled or sustainable materials.

Moveable seating should be provided when monitoring of the space by adjacent users is provided. (See Fig. 12b)

- 11.3.2.9 Design public outdoor spaces to encourage a comfortable microclimate – allow for maximum sun access and the need for wind-sheltered areas in relation to the intended uses of the space. (See Fig. 13)

- 11.3.2.10 The design of outdoor public spaces should accommodate a variety of possible informal uses and users, as well as programmed or formal uses. Encourage flexible design to allow potential uses that are unintended or unknown.

- 11.3.2.11 The use of water features should be carefully considered given the climate in Canmore. While water features can be attractive elements in an outdoor public space, they should only be incorporated when the element can be converted to an alternate use during the winter months.

- 11.3.2.12 Connect urban plazas, parks, open space and trails with surrounding land uses to create a network of public space. (See Fig. 14)

- 11.3.2.13 Location, programming and design of outdoor public



Figure 12a



Figure 12b



Figure 13

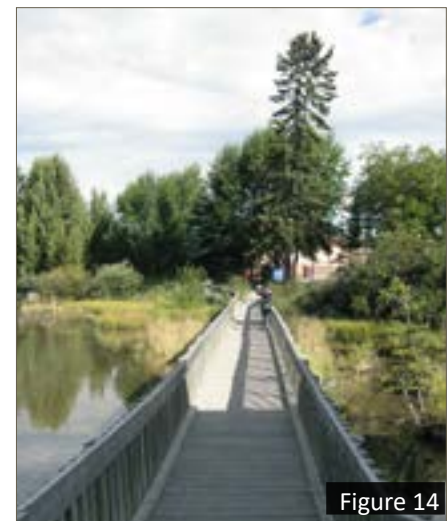


Figure 14

spaces should consider Crime Prevention Through Environmental Design (CPTED) principles, including:

- a. Surveillance from adjacent buildings and spaces;
- b. Definition of public and private spaces;
- c. Adequate lighting; and
- d. Ongoing management and maintenance of spaces.

The design of outdoor public spaces should also refer to the landscaping provisions contained in Subsection 11.4.3 of these Standards, and to the Open Space Development Guidelines.

11.3.3 Views

Views of the natural setting of Canmore are some of the community's greatest assets and contribute to the quality of life and value of properties. These assets should be protected and enhanced whenever feasible. Projects should be planned to reinforce and preserve existing view corridors and to establish new view opportunities.

Objectives

- a. Maintain the streets' visual connections to landmarks, vistas, views and places of public importance.
- b. Preserve views to scenic features (including views of mountains) from select downtown public spaces.

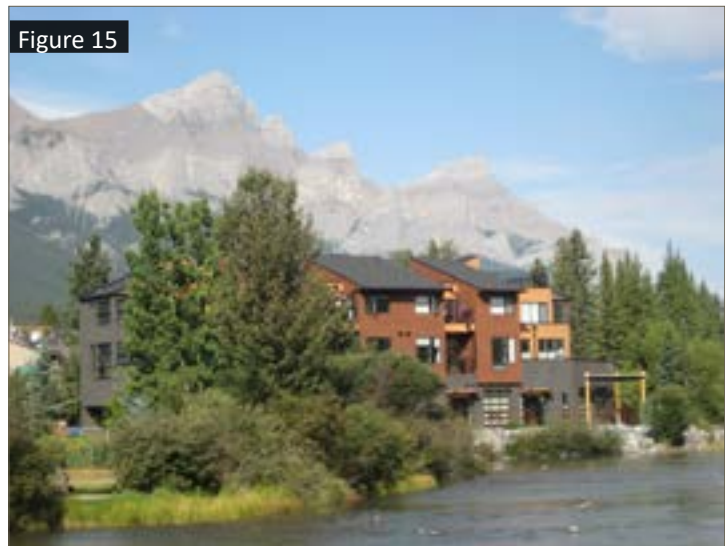
Standards

11.3.3.1 New building forms must maintain existing protected views. (See Fig. 15)

11.3.3.2 Protect local views and vistas throughout the Town from public places by:

- a. Relating new buildings to the topography;
- b. Reducing heights to maintain views of surrounding landscape where necessary;
- c. Stepping upper floors back;
- d. Minimizing use of roof top architectural features that have no practical purpose; and
- e. Adjusting setbacks from regular land use district standards.

Figure 15



11 COMMUNITY ARCHITECTURAL AND URBAN DESIGN STANDARDS

11.3.3.3 The following images represent views that should be protected. The grey portions demonstrate the maximum extension of the building envelope to accommodate new construction allowed under the current Town Centre land use district, and are not presently protected.

11.3.3.4 The impact of future development on these views should be carefully considered. Detailed regulations on building envelopes on corner lots are contained in the Design Requirements section of the Town Centre District in Subsection 4.1.



a) Main Street & 6th Avenue looking North-East



b) Main Street & 7th Avenue looking North-East



c) Main Street & 7th Avenue looking South-West



d) Main Street & 8th Avenue looking South-West



e) 10th Street and 7th Avenue looking South-West

11.4 SITE PLANNING & DESIGN

Site planning and design is critical to the success of any development. Careful consideration must be given to the development of the site and its context. The area surrounding the building will help define the character of the buildings. Site planning and design should integrate the natural and built surroundings with new development to create a connection between the two. Minimizing the impacts of construction on the un-built portions of the site is an important component of effective site planning.

The standards in this section apply primarily to commercial and mixed use development. These standards relate to site planning and design and will provide direction on:

- a. Building Placement;
- b. Vehicle Access, Parking & Utilities;
- c. Landscaping; and
- d. Public Art in the Private Realm.

Objectives

- a. Integrate site planning with the surrounding context and natural environment.
- b. Clearly define public and private spaces (building placement and landscaping).
- c. Manage vehicular parking and access.
- d. Give precedence to pedestrians over vehicles.
- e. Preserve existing site features and restore damaged areas to provide habitat and promote biodiversity.
- f. Consider solar aspect to capture maximum winter solar gain.

Standards

11.4.1 Building Placement

The placement of a building on a parcel affects the appearance of the street and the site. Placement is not only determined by the setbacks stated in the Land Use Bylaw, but also by existing topography and vegetation and the building's relationship to surrounding buildings and streets. The goal of these Standards is to ensure that building placement contributes to an active and visually appealing streetscape. Building placement should encourage pedestrian access and incorporate "people-spaces", particularly in the Downtown.



- 11.4.1.1 Buildings shall be oriented toward the street to strengthen the street edge and positively define adjacent public spaces. This will help promote a vital pedestrian environment. (See Fig. 16)



- 11.4.1.2 Place buildings within the context of the existing streetscape by providing consistent setbacks. Flexibility in building setback requirements will be considered along commercial/retail corridors to encourage the provision of outdoor public gathering spaces within the setback. (See Fig. 17a - 17b)



11.4.1.3 New development must provide a continuous pedestrian environment. The design must take into account the pedestrian experience of walking to and from the building and how spaces are connected (their linkages). There should be places for people to sit, meet, walk and eat outdoors. Outdoor public walkways and sidewalks should provide:

- a. Protection from snow and rain, especially at entries;
- b. Clear path widths (a minimum of 1.5m) free of street furnishings, signage, landscaping and adequate lighting for pedestrian safety and visibility;
- c. Bicycle parking and waste receptacles. (See Fig. 18)

11.4.1.4 Design a compact parking, road and building footprint layout in order to preserve significant natural features, mature tree stands, drainage courses and open space, especially when developing “greenfield” sites. This will limit the amount of clearing and grading required.



11.4.1.5 Reduce stormwater runoff volumes on site by minimizing the amount of impervious surfaces. Some methods include designing a smaller building footprint, installing green roofs, collecting rainwater, and paving with pervious materials.

11.4.1.6 Commercial developments adjacent to residential districts must be designed and intensively landscaped to mitigate their impact on residential properties to the satisfaction of the Development Authority. (See Fig 19)

11.4.1.7 Developments abutting pedestrian pathways and sidewalks must integrate on-site pathways with the public walkway system. (See Fig. 19)

11.4.1.8 Developments adjacent to roads where there are no existing pathways, trails or sidewalks shall provide pedestrian walkways adjacent to the road. (See Fig. 20)

11.4.1.9 Adequate access and circulation for emergency equipment is to be incorporated into the site plan.

11.4.1.10 In the Town Centre, future developments in the 9th Street corridor; on the North side of Main Street; and on the South side of 10th Street must have double frontages. Parking and storage may still be located on these sites; however, special attention must be paid to pedestrian access and the visual appearance of both of the facades. (See Fig. 21)



Figure 17a



Figure 17b



Figure 18



Figure 19



Figure 20



Figure 21



Figure 22a



Figure 22b



Figure 22c

11.4.1.11 Through-block connections are encouraged mid-block to facilitate pedestrian access between blocks and public parking areas located at the rear of buildings. (See Fig. 22a - 22c)

11.4.2 Vehicle Access, Parking & Utilities

Almost all developments require vehicle access and parking. The main consideration is how to integrate access and parking without allowing it to dominate the development, the streetscape or adjacent developments. Parking spaces must be functionally effective and should be designed as an integral component of the space around buildings. Parking therefore affects the setting of the building and in many cases these areas form part of the street scene.

These Standards promote not only high aesthetic values but also the use of environmentally friendly materials to facilitate the Town's sustainability objectives.

Standards



11.4.2.1 Vehicle parking shall be located behind buildings, underground or at the interior of the block.

11.4.2.2 Wherever possible, access to service and loading areas should be from the rear of the building or alley.

11.4.2.3 Driveways should be located at the edge of a parcel rather than in the centre of the parcel, and shared where possible.

11.4.2.4 Parking clusters in excess of 15 stalls must be broken up with landscaped islands to soften the impact of large expanses of asphalt or hardscaping. These islands must be a minimum of 3.0m in width and 6.0m in depth. (See Fig. 23a and 23b)



11.4.2.5 Consider alternative surface treatments to avoid large paved areas and impervious surfaces which affect stormwater run-off and contribute to the heat island effect. Permeable paving materials (e.g. permeable asphalt, concrete and pavers) which allow stormwater to percolate into the soil and recharge groundwater are encouraged. Grass or gravel pave systems, high albedo pavement (i.e. reflective), and the use of recycled construction materials will help reduce negative



Figure 23a



Figure 23b

impacts of parking areas. (See Fig. 24)



11.4.2.6 Parking garage entrances should be designed as an integral part of the building façade so they are in scale and character with the rest of the building. Garage entrances should not interfere with adjacent development or with pedestrian movements. (See Fig. 25)

11.4.2.7 Access to underground parking lots shall be from the side or rear yards only.

11.4.2.8 On-site parking will be discouraged in the Town Centre District in favour of public off-street parking in order to maximize this space for people and for on-site commercial use.

11.4.2.9 In the Town Centre District where on-site parking is permitted it shall be designed, landscaped and screened to be pedestrian friendly and to blend with the design of the building and the surrounding streetscape. (See Fig. 26)

11.4.2.10 Utility installations and furniture should be carefully located and integrated into the design. They are not generally appropriate in front yards or adjacent to public sidewalks. They should be accessible but screened with plantings, and not exposed in setback areas. (See Fig. 27a and 27b)



11.4.2.11 All developments shall include functional and well located parking facilities for bicycles or other non-motorized forms of transportation. Bicycle parking facilities shall allow the frame of the bike to be placed against the rack as opposed to a low rack that only holds the wheels (sometimes known as a wheel bender). The rack shall be affixed in a manner that provides secure bicycle storage and cannot be easily detached and removed. Space for baby strollers, burleys or “joggers” is also encouraged where possible. (See Fig. 28)



Figure 24



Figure 25



Figure 26



Figure 27a



Figure 28b



Figure 28a



Figure 27b

11.4.3 Landscaping

The quality of open spaces on private parcels is only as good as its design and landscaping. Landscaping should complement a building's architectural character, enhance the public realm and facilitate sustainable



Figure 29a



Figure 29b



Figure 29c



Figure 30

water use and drainage strategies. Incorporating landscaping into developments can help them to blend into the natural mountain setting, soften the visual impact of the building and improve the pedestrian experience. Sustainable landscape strategies include using deciduous trees to shade buildings and courtyards in the summer and allow filtered light to penetrate the building in the winter, planting native trees and shrubs to reduce water usage and using sustainable stormwater strategies to clean and infiltrate water into the ground.

Landscaping includes both existing vegetation and topography as well as elements added by the developer. Landscaping is not limited to vegetation but includes fences, decorative rock elements, retaining walls and walkways.

Landscaping can provide:

- a. A buffer to the street and vehicles;
- b. Rest areas for shoppers and strollers off the busy main street;
- c. Areas for street furnishings (e.g. bicycles racks, newspaper boxes, mailboxes, garbage cans, and benches); and
- d. Storage area for snow removal and storage. (See Fig. 29a - 29c)

Landscaping suggestions in downtown and commercial areas:

- a. Trees set into grates;
- b. Planter boxes (small and large) for flowers or year round coniferous planting; and
- c. Surface planted areas designed to resist trampling, vandalism and the collection of debris and garbage.

Standards

- ★ 11.4.3.1 Detailed proposed landscape plans for sites must be submitted with development applications. Open spaces should be designed from the beginning to have meaning and utility and not just space that is left over after the building is designed.
- ★ 11.4.3.2 Landscaping should be used to activate building facades, soften, or highlight important architectural features, screen less attractive elements (e.g. utility installations) and add colour, texture and visual interest. (See Fig. 30)
- ★ 11.4.3.3 Creating semi-public outdoor spaces (plazas, courtyards, patios and gardens) is encouraged in larger projects. These areas should be well-defined by buildings and landscaping to encourage human activity by providing shade, vegetation and sitting areas for social interaction. (See Fig. 31a and 31b)

11 COMMUNITY ARCHITECTURAL AND URBAN DESIGN STANDARDS

- 11.4.3.4 All development applications shall include details on methods of preserving natural systems during construction as well as developing and maintaining future landscaping. Irrigation systems may be considered when deemed necessary by the Development Authority.
- 11.4.3.5 Where possible avoid the installation of permanent landscape irrigation systems. Instead, use captured rain or recycled water (e.g. grey-water from building systems) for site irrigation. Where no irrigation system is required, access to a shared water source should be provided (for example, in a condominium development there should be at least one common water source available to maintain common landscaping).
- 11.4.3.6 Standards for areas of natural landscaping are as follows:
- Trees shall be planted in the overall minimum ratio of one tree per 20m² of landscaped area; shrubs shall be planted in an overall minimum ratio of one shrub per 20m² of landscaped area. On slopes greater than 15%, the Town may consider a minimum ratio of one tree per 35m² of landscaped area.
 - All plant materials shall be of a species capable of healthy growth in Canmore and shall be planted in conformance with the Town's Engineering Design and Construction Guidelines and Open Space Development Guidelines.
 - The mixture of tree sizes at the time of planting shall be equivalent to a minimum of 20% large trees (4m height coniferous; 85mm caliper deciduous); 30% medium trees (3m height coniferous; 70mm caliper deciduous); and 50% smaller trees (2m height coniferous; 50mm caliper deciduous).
 - Coniferous trees shall comprise a maximum of 25% of all trees planted. In the case of conflict with the percentage of coniferous trees stated in the Town's Engineering Design and Construction Guidelines, this guideline shall take precedence on private developments.
- 11.4.3.7 Natural landscaping material shall be maintained in a healthy condition and dead plants shall be replaced with equivalent healthy materials.
- 11.4.3.8 Landscaping shall be used to screen land uses which detract from the aesthetic objectives of the area (e.g. parking, vehicle storage and loading areas). Permitted methods of screening are fencing, berms, and clusters of trees or shrubs. (See Fig. 32)
- 11.4.3.9 Design fencing and walls to discourage loitering and vandalism by planting hedges or other vegetation in front of the fence or wall. Hedges can also be used instead of walls to create a continuous edge, screen parking lots or other uses. (See Fig. 33)



Figure 31a



Figure 31b



Figure 32



Figure 33

-  11.4.3.10 Landscaping must consist of plants and materials that are indigenous to the area and will therefore blend into the natural setting, are less attractive to ungulates and bears, and require less maintenance. Landscaping should also minimize the use of irrigated turf or grass. The

Town can provide a list of appropriate planting materials. (See Fig. 34a and 34b)



Figure 34a

-  11.4.3.11 Restore the native landscape of the site by preserving and planting native species to re-establish pre-development conditions.

-  11.4.3.12 Consider xeriscape (dry landscape) designs in which water conservation is the primary objective. These designs incorporate native plant species that are adapted to local climate conditions.

-  11.4.3.13 Consider using natural treatment systems (that also serve as an Amenity Space) such as infiltration basins and trenches, porous pavement and permeable surfaces, constructed wetlands, vegetated filter strips and bioswales to treat the site's stormwater. (Refer to the Town's Engineering Design and Construction Guidelines for a summary of best management practices). (See Fig. 35a and 35b)

- 11.4.3.14 Use free standing planters to soften solid edges and walls, add greenery and colour to sidewalks and accent entrances to buildings. (See Fig. 36)

- 11.4.3.15 Materials, finishes and colours for retaining walls should complement the materials and design of the primary building on site. Large monotonous expanses of small block retaining walls are not allowed. Gabion basket retaining walls are not allowed in areas where wildlife may become entangled in the wire baskets.

- 11.4.3.16 Community gardens or local food production is encouraged in landscaping plans, provided that fencing is provided to minimize animal attractants. Community gardens or food production should not be located close to undisturbed natural areas that are frequented by wildlife.



Figure 34b



Figure 35a



Figure 35b



Figure 36



Figure 37



11.4.4 Public Art in the Private Realm

Public art is one of the ways in which citizens can express what they feel is important and unique about Canmore. Public art conveys community identity and makes civic spaces unique. It reveals insights about the Town's natural surroundings, cultural history and community connections, and is therefore an important aspect of both the public and private realm.

Public art invigorates commercial areas by establishing new places of beauty and interest. Continuing investment in a collection of site-specific artworks (permanent and temporary) in quasi-public spaces and publicly accessible portions of the private realm is an important aspect of ongoing community development.

Public art in public spaces is dealt with extensively in the Public Art Policy and is not addressed in these Standards. Art installed inside private buildings shall not be subject to these Standards.

Standards

- 11.4.4.1 Public art should be considered in the development of private outdoor spaces used by the public, offering opportunities to integrate artwork into the area. (See Fig. 37)
- 11.4.4.2 Consider the following criteria when locating art within a private development:
 - a. Visibility for pedestrians and/or motorists;
 - b. Proximity to high pedestrian activity areas (e.g. active retail areas), transit stops, places of public gathering, public open spaces, and recognized pedestrian routes;
 - c. Opportunities to expand on existing or future public artworks as part of an existing or proposed multi-artwork concept;
 - d. Places of special heritage or community significance; and
 - e. Appropriate scale (size) of work for the setting.
- 11.4.4.3 When considering public art in the private realm, the Development Authority may refer the proposal to the Community Public Art Committee for comments.





Figure 38a



Figure 38b



Figure 39

11.5 COMMERCIAL & MIXED USE BUILDING DESIGN

Community identity is expressed through architecture and the relationship buildings have to the environment and public spaces. This section provides standards that will facilitate the evolution of Canmore's Rocky Mountain architectural character and help establish an appropriate interface between buildings, public spaces and the natural environment. Key elements discussed in this section include:

- Architectural Character;
- Massing & Scale;
- Roof Forms;
- Green Roofs;
- Details & Windows; and
- Materials & Colour.

Objectives

- a. Maintain and enhance the Rocky Mountain character of Canmore.
- b. Minimize massing and bulk for a given building envelope to reduce the visual impact of the building.
- c. Activate the street edge.
- d. Define building entrances.
- e. Unify and articulate building facades.
- f. Incorporate local natural materials such as rock and timber.
- g. Promote human scale design.

11.5.1 General



- 11.5.1.1 Incorporate amenities to encourage the use of non-motorized forms of transportation into the building design. For example, accommodate:

- a. Secure and adequately sized bicycle racks/storage;
- b. Showering/changing facilities which are easily accessible from the bicycle storage area within commercial developments. (See Fig. 38a and 38b)



- 11.5.1.2 All applications should demonstrate that sustainable building issues have been considered in the early stages of design. These include:

- a. Building orientation in relation to sunlight;
- b. Daylighting;
- c. Stormwater management;
- d. Vegetation and landscaping.

- 11.5.1.3 Commercial buildings should be designed to be adaptable, with appropriate ceiling heights to accommodate a variety of uses, and with a minimum of internal demising walls.

- 11.5.1.4 Developers must demonstrate that the proposed project is visually related to neighbouring

development to ensure continuity in the overall streetscape. This may include complementary massing, setbacks, roof forms, materials, details, landscaping or other elements which achieve this goal. (See Fig. 39)

- ★ 11.5.1.5 The design and location of individual buildings must address and enhance the overall streetscape. The building must have a clearly defined entry area either facing the street or roadway, or where this is not possible, must have a feature window or other element oriented toward the street.

- ★ 11.5.1.6 Buildings on corner sites must address all facing streets, adjacent buildings as well as buildings on opposing corners. Buildings should acknowledge this special site condition by creating visual focal points at the corner such as a circular bay window, a large roof dormer, a front entry porch facing the corner or an overall building form that faces the corner rather than one street in particular. Buildings should “turn the corner”. (See Fig. 40a-b)

This can further be accomplished by continuing the same exterior materials and colours around the building to all street exposures, repeating window pattern on both sides, or continuing elements such as porches, verandahs, roof overhangs and balconies around the corner.

11.5.2 Architectural Character

Canmore’s Rocky Mountain architectural character is essential to its sense of place. The quality of new buildings should be reflected in the consistency of their architecture whether it is traditional or contemporary. Some of Canmore’s most important buildings are the traditional vernacular buildings consistent with a pedestrian friendly urbanism, the local climate and available materials. This vernacular has evolved and new buildings reflecting contemporary mountain architecture and green building techniques represent current values grounded in a sustainable future.

- ★ 11.5.2.1 New major commercial and mixed use developments shall reflect a Rocky Mountain architectural character.
- ▼ 11.5.2.2 New buildings designed in a contemporary style shall be unique and should be approved only when the design proposed accommodates green building initiatives in excess of the required minimums contained in the Town’s green building policy. (See Fig. 41)
- ★ 11.5.2.3 Any building, regardless of the style, should incorporate a full array of elements associated with the chosen style including the appropriate composition, structure, materials and construction typical of that style.



Figure 40a



Figure 40b



Figure 41

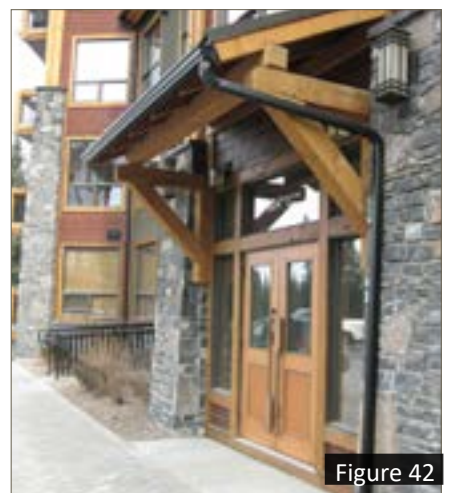


Figure 42



11 COMMUNITY ARCHITECTURAL AND URBAN DESIGN STANDARDS





Figure 43a



Figure 43b



Figure 44a



Figure 44b



Figure 44c



Figure 45a

11.5.2.4 Entrance ways and doorways should be clearly marked as prominent points of access into buildings. They should punctuate the street and offer some form of shelter. It is preferable that doors are modest in scale. The treatment of a primary and/or secondary entry to a building should be obvious and apparent from the street. (See Fig. 42)

11.5.2.5 Buildings should be designed to be attractive from all directions. Rear or side building facades visible from the street or public sidewalk or pathway should receive similar design treatment as the front or main facade.

11.5.2.6 Accessory structures and enclosures (e.g. storage areas, garbage receptacles) should be integrated into the design of the primary building on the site. (See Fig. 43a - 43b)

11.5.2.7 The form of the building and its details should be designed to create visual interest at the street level. Techniques include:

- Recessing doors and windows;
- Articulating the building façade and façade details;
- Visually extending interior spaces outside through the use of the same paving material;
- Providing attractive and varied display windows;
- Providing architecturally integrated, permanent awnings or other devices for weather protection which fit with the overall scale of the architectural details.

11.5.3 Building Massing

11.5.3.1 A high degree of both vertical and horizontal façade articulation is required, incorporating significant breaks which create a dynamic interaction of light and shadow on the façade.

11.5.3.2 To minimize the mass and bulk of the building, articulate the building form by:

- Stepping back the second and upper floors;
- Stepped terraces; and
- Varying roof lines. (See Fig. 44a - 44c)

Use appropriate details around the windows, doors, base and at the cornice to further articulate the façade.

11.5.3.3 Built structures should suggest the pattern of individually owned shops with relatively narrow frontages (7m-15m) rather than one large structure. Building fronts must utilize design elements which divide their expanse. (See Fig. 45a-b)



Figure 45b

11.5.3.4 New construction shall not extend for more than 15m in the

Town Centre area without articulation of at least 3m in the building façade. Building roofs for new buildings or remodelling shall not exceed 15m in length without a substantial alteration in the roof form and/or height.

- ★ 11.5.3.5 Building designs which divide the structure into a distinct base, middle and top are required. Steeply pitched roofs with large overhangs, a transparent (windows) middle section, complemented by a strong stone or masonry base reflect traditional mountain design in Canmore. (See Fig. 46a - 49b)



Figure 46a

- ★ 11.5.3.6 Buildings should respond to their context by sensitively addressing the scale and massing of adjacent buildings. This can be achieved by matching existing building heights or by stepping back the upper floors.

- 11.5.3.7 Where more than one building is planned for a site or where buildings on neighbouring sites will be in close proximity, efforts must be taken to create a rhythm between the structures to ensure buildings relate to one another. This rhythm may be achieved through the use of massing and articulation, compatible roof slopes, materials detailing or other design elements. The intent is not to create a repetitive streetscape but rather a harmonious one. (See Fig. 47)

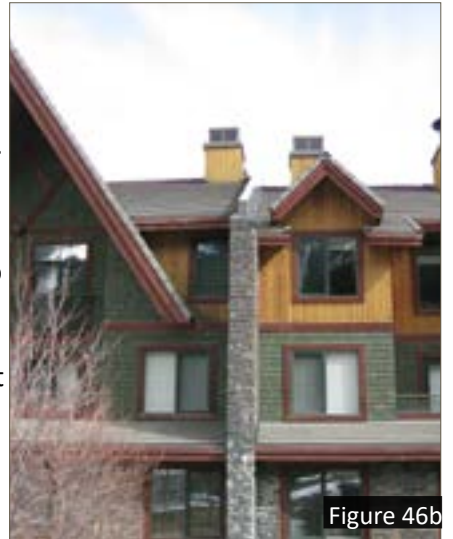


Figure 46b

11.5.4 Roof Forms

Roof forms are important to the look and “fit” of a building in its environment. In mountain architecture the roof is often a prominent feature in the design of a building. The roof reinforces both the functional purpose of protection from the elements and the aesthetic harmony with the surrounding mountains. For these reasons, roofs should be real “working” roofs rather than used simply for appearances.

- ★ 11.5.4.1 Roof forms should be steeply pitched (minimum 6:12 slope) with large overhangs (0.9m). Where this roof slope is impractical due to the depth of the building, a lower slope may be used. (See Fig. 48)



Figure 47

- ★ 11.5.4.2 All buildings and structures must incorporate a cascade of roofs to break up massing and add visual interest. The roofs should reflect function, construction and the architectural traditions of providing sheltering roofs in a mountain environment. (See Fig. 49)

- 11.5.4.3 Areas greater than 15% of the roof that are flat or roofs with very shallow pitches (5:12 or 20 degrees or less) may only be considered when:

- a. They provide architectural variety, not additional



Figure 49

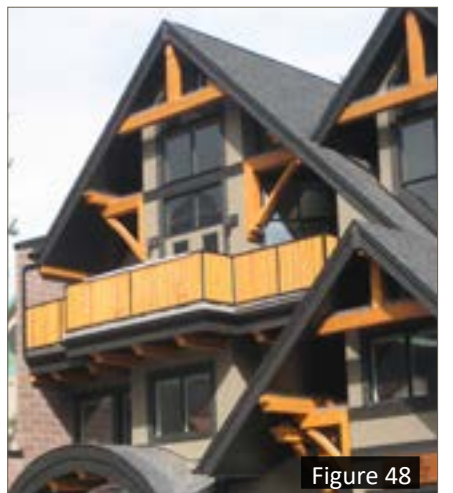


Figure 48



Figure 50



Figure 51



Figure 52



Figure 53a



Figure 53b

floor space; or

- b. They are designed as a green roof; or
- c. When required for the installation of solar energy collection devices; or
- d. When it can be demonstrated that building massing is acceptable with consideration of views, overshadowing, and continuity of scale.

11.5.4.4 Roof detailing such as dormers and cross gables is encouraged to provide visual interest and variety. (See Fig. 50)

11.5.4.5 Roofs should have dormers or other architectural features over entrances to provide shelter. (See Fig. 51)

11.5.4.6 All mechanical equipment located on the roof must be screened from all sides of the building. Noise from this equipment may also require screening.

11.5.4.7 Gas pump canopies may have a mansard roof but the fascia must have a slope compatible with main building.

11.5.4.8 In the Town Centre area especially, roofs should be visible from street level and at least a portion of the roof elements should descend to the first storey even in multi-storey developments unless the proponent can demonstrate to the satisfaction of the Development Authority that an alternative roof treatment is more appropriate to the development and the surrounding streetscape. (See Fig. 52)

- ▼ 11.5.4.9 Mansard roofs will be allowed only when a functioning roof cannot be constructed on a building. In situations where a mansard roof is allowed, it must have the appearance of a functional roof, be placed in or cut through the building volume and not be added or attached to the building walls. (See Fig. 53a and 53b)

11.5.5 Green Roofs

Green roof infrastructure has a significant number of social, environmental and economic benefits that are both public and private in nature. Benefits include:

- Increased energy efficiency (from cooling in the summer and added insulation in the winter;
- Longer roof membrane life span;
- Sound insulation;
- Filters particulates from the

air;

- Retains and cleanses stormwater on-site; and
- Improves the aesthetic or natural quality of the built form.

Standards

- 11.5.5.1 A roof slope between 2.5 degrees and 25 degrees is recommended. (See Fig. 54)
- 11.5.5.2 On a roof slope greater than 20 degrees, ensure the sod or plant layer does not slip or slump through its own weight, especially when it becomes wet. This can be prevented through the use of support grid systems for green roofs or horizontal strapping, wood, plastic or metal placed under the membrane or loose-laid on top.
- 11.5.5.3 Consider the following factors when designing a green roof:
- a. Primary function, e.g. stormwater retention, aesthetics;
 - b. Height of the roof above grade (Refer to the relevant section of the Land Use Bylaw for calculating the maximum height of a flat roof);
 - c. Exposure to wind;
 - d. Orientation to the sun and shading by surrounding buildings;
 - e. General climate of the area and specific microclimate on the roof; and
 - f. Views to and from the roof.
- 11.5.5.4 To mitigate the risk of fire hazard:
- a. Integrate 'fire breaks' at regular intervals across the roof, at the roof perimeter, and around all roof penetrations;
 - b. Use fire retardant plants such as sedums which have a high water content; and
 - c. Use a sprinkler irrigation system connected to a fire alarm.
- 11.5.5.5 **[Repealed by 2020-16]**
- 11.5.5.6 The design of a green roof must comply with requirements for occupancy, exiting, lighting, guardrails and barrier free access if it is accessible to the public.
- 11.5.5.7 Planting material should be limited to hardier or indigenous varieties of grasses and sedums to avoid the installation of shading devices, irrigation and fertilization.
- 11.5.5.8 The use of an extensive or intensive green roof system (or a combination of both) should be dictated by site specific factors such as location, structural capacity of the building, budget, client needs, and material and plant availability.
- 11.5.5.9 Intensive green roof systems should demonstrate diverse utilization of the roof, public accessibility, high energy efficiency and stormwater retention along with a reduced need for irrigation.



Figure 54

11.5.6 Detailing & Windows

Incorporating good detailing is important to the overall appearance of a building. Skillful detailing can reflect the building's mountain setting and/or the historical vernacular of Canmore's railroad and mining heritage. The use of relief and texture can take advantage of the strong sunlight in the Rocky Mountains, which creates strong shadow lines and give texture and depth to building facades. Detailing is an expression of craftsmanship and care in the design, construction and functioning of a building.

Windows also form an extremely important part of building design. Windows will reduce the overall mass and contribute to the overall character of the building. The design and placement of windows should complement the structural character and materials of the building.

The goal of this section of the Standards is to encourage good detailing to create articulated and interesting architecture. Several local examples of appropriate architectural details are provided on the following pages.

Standards

-  11.5.6.1 All new developments shall incorporate some detailing derived from local historical motifs, rather than "imported" motifs. Suggested motifs include: simple, carved wood brackets; special entry doors with carved or sculpted elements; wooden handrails and wooden benches. Details can be incorporated in window and entry design, facades and roof shapes. Examples of this would be partial stone walls; deep set windows with visually strong frames and muntins (bars dividing window panes); curved brackets under roof overhangs and timber detailing on eaves or porches (refer to following pages for examples).
- 11.5.6.2 The use of Rundle stone, river rock or other masonry elements in the detailing of the building is encouraged. This may include a stone base, piers or other architectural elements such as chimneys (refer to following pages for examples).
-  11.5.6.3 The use of heavy timber, log or other traditional local mountain materials are appropriate for entry porches, structural brackets, roof trusses and columns (refer to p. 36-38 for examples).
- 11.5.6.4 All mechanical devices, satellite dishes and signaling devices must be appropriately screened to complement the architecture of the building.
- 11.5.6.5 Roof ventilators are important to the performance of the roof and should be carefully detailed in gable ends or constructed as ridge accents or cupolas.
-  11.5.6.6 Vent placement should be integrated into the overall building design early in the design process, and should not be visible from the street or shared open spaces (e.g. courtyards). Materials for vent grilles or caps should be consistent with the overall style and character of the building. Galvanized metal shall not be permitted and darker colours must be used.
- 11.5.6.7 Incorporate balconies, stairways and other key elements into the overall building mass in a manner which complements the architectural style of the building.
- 11.5.6.8 All metal chimneys shall be boxed in with materials which are compatible to the building.
- 11.5.6.9 Large panes of glass exceeding 1.5m wide and 2.0m high are not permitted unless they are divided into sections using muntins or other design elements. Floor to ceiling storefront

glazing (such as that used in strip malls) is not appropriate for Canmore and windows shall not extend to grade. The base treatment below and between windows shall be significant enough to depict the building material and give the sense that the ground floor provides a substantial 'base' to the building. (See Fig. 55a - 55c)

- 11.5.6.10 No blank walls are permitted. Walls can be broken up using such design elements as varied textures and materials, box out window openings and signage.
- 11.5.6.11 Redevelopment that occurs beside existing buildings must treat the exterior exposed portions of firewalls as finished wall surfaces. It is not acceptable to assume that a fire wall will be hidden by future adjacent development.
- 11.5.6.12 Greenhouse or solarium structures which are primarily comprised of glazing are not permitted if fronting directly onto the street. Exceptions may be permitted if the glazed enclosure is part of a courtyard, plaza or semi-enclosed landscape feature. (See Fig. 56)
- 11.5.6.13 Incorporate awnings into the design to provide shade and protection on the sidewalk. Awnings shall be architecturally designed as permanent features of the building and coordinated into the overall building image. (See Fig. 57a and 57b)



Figure 55a



Figure 55b



▼ Figure 55c

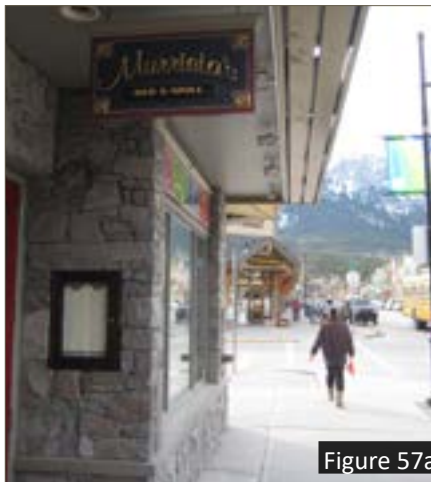


Figure 57a



Figure 57b



▼ Figure 56





11.5.7 Materials & Colours

Buildings should be designed with permanence in mind. The use of quality materials, finishes and details will help long term durability.

The choice of appropriate materials and colours is very important. A selective and innovative use of materials and colours will create unified and interesting streetscapes. Predominant building materials should be from raw materials present in the regional area and ones that have traditionally been used in the Canmore area. While no standard colour scheme is proposed the overall colour schemes of buildings should strike a balance. Strong, bright colours should be used to highlight features while the major portions of buildings should be in 'natural' tones.



Examples
of appropriate
exterior
materials

Standards

- 11.5.7.1 The following is a list of acceptable and unacceptable roofing materials and wall finishes that contribute to the architectural character of Canmore.

Roofing Materials

Acceptable:

- Slate or slate like materials (black, grey or greenish hues);
- Heavy gauge interlocking asphalt shingles (red, green, dark brown, dark grey);
- Metal: dark colours or treated copper. Metal roofs must be selected with standing seams, intermediate control creases and fabricated of a sufficiently heavy gauge of metal to control deformation.;
- Grey, brown or black ballast or exposed membrane for flat roofs;
- Other roofing materials made from recycled materials that emulate cedar shakes or asphalt shingles that shall have a minimum Class B Underwriters Laboratory Canada fire rating; and
- Treated cedar shingles or shakes treated for fire resistance shall have a minimum Class B Underwriters Laboratory Canada fire rating.

Unacceptable:

- Untreated cedar shingles or shakes;
- Uncoated (clear) aluminium or galvanized metal; and
- Large areas of glass.

Wall Finishes

Acceptable:

- Wood siding, stained or weathered;
- Local, real stone;
- Locally manufactured, cultured stone that emulates local stone may be permitted;
- High quality cultured stone may be used with no repetition in pattern or obvious boundaries between "tiles" of cultured stone;
- Stucco finishes may be approved if they are complemented with appropriate detailing;
- Cementitious fibre board or "Hardiplank" materials that are installed in the same manner

as wood siding and not installed in sheets; and

- g. Architecturally designed concrete blocks may be considered by the Development Authority.

Unacceptable:

- a. Metals;
- b. Brick;
- c. Tiles; and
- d. Glass curtain walls.



11.5.7.2 Materials, particularly at ground level, shall be durable and detailed in a manner that provides interest to pedestrians.

11.5.7.3 The colour scheme for all projects shall be suitable to the streetscape, Canmore's mountain environment and the building's style. Design and colours should reflect the range of colours and tones present in the surrounding environment with neutral, darker tones for major surfaces and materials, and brighter colours utilized for building detailing such as window and door trim. See examples provided on this page.

11.5.7.4 Unpainted clear anodized aluminium window frames, door frames and doors are not permitted.

11.5.7.5 Side and rear elevations facing a street shall be of similar colours and materials as the front facades (excepting fireproof walls required as part of the Building Code).

11.5.7.6 Reflective-coated or mirrored glass is not acceptable (except Low E coatings to reduce energy use).



11.5.7.7 The use of salvaged and refurbished materials in new building projects is encouraged. Salvaged materials can add character to the building and can be used effectively as architectural details. Examples of common salvaged materials include: beams and posts, wood flooring, wood paneling, doors and frames, cabinetry and furniture, masonry products, decorative items such as mantels and ironwork.



11.5.7.8 Consider the incorporation of building materials with recycled content as a means of reducing the use of virgin materials and solid waste. Some common recycled products include: metals, concrete, masonry, ceramic tile and insulation. Ensure the recycled materials perform equally or better than virgin materials in terms of strength, maintenance and durability.



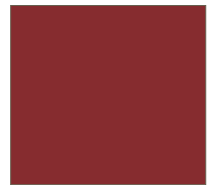
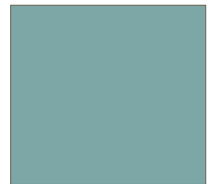
11.5.7.9 Encourage the use of regionally manufactured building materials (supports local economy, reduces transportation costs and environmental impacts).



11.5.7.10 Renewable materials are encouraged to help reduce the use and depletion of finite raw materials and long-cycle renewable materials (for example: bamboo flooring, cotton batt insulation, sunflower seed board, wool carpet).



11.5.7.11 Developers are encouraged to use wood based materials and products certified by the Forest Stewardship Council or similar organization.



Examples of appropriate colors

11.6 MULTI-UNIT RESIDENTIAL BUILDING DESIGN

This section provides standards for the design of Multi-Unit Residential building forms that will facilitate the evolution of Canmore's Rocky Mountain architectural character and help establish an appropriate interface between buildings, public spaces and the natural environment. Key elements discussed in this section include:

- Architectural Character;
- Massing & Scale;
- Roof Forms;
- Green Roofs;
- Details & Windows; and
- Materials & Colour.

Objectives

- a. Maintain and enhance the Rocky Mountain character of Canmore.
- b. Minimize massing and bulk for a given building envelope to reduce the visual impact of the building.
- c. Define building entrances.
- d. Incorporate local natural materials such as rock and timber.
- e. Promote human scale design.

Standards

11.6.1 General



- 11.6.1.1 Incorporate amenities into multi-unit residential developments to encourage the use of non-motorized forms of transportation into the building design. For example, provide secure and adequately sized bicycle racks/storage. (See Fig. 58)



- 11.6.1.2 All applications should demonstrate that sustainable building issues have been considered in the early stages of design. These include:
- a. Building orientation in relation to sunlight;
 - b. Daylighting;
 - c. Stormwater management;
 - d. Vegetation and landscaping.

- 11.6.1.3 Developers must demonstrate that the proposed project is visually related to neighbouring development to ensure continuity in the overall streetscape. This may include complementary massing, setbacks, roof forms, materials, details, landscaping or other elements which achieve this goal.



Figure 58

- 11.6.1.4 The design and location of individual buildings must address and enhance the overall streetscape. The building should have a clearly defined entry area visible from the street.



- 11.6.1.5 Buildings on corner sites must address all facing streets, adjacent buildings as well as buildings on opposing corners. Buildings should

“turn the corner” which can be accomplished by continuing the same exterior materials and colours around the building to all street exposures, repeating the window pattern on both sides, or continuing elements such as porches, verandahs, roof overhangs and balconies around the corner.

11.6.2 Architectural Character

Canmore’s Rocky Mountain architectural character is essential to its sense of place. The quality of new buildings should be reflected in the consistent application of style. Some of Canmore’s most important buildings are the traditional vernacular buildings that are based on a pedestrian friendly urbanism, the local climate and available materials. This vernacular has evolved and new buildings reflecting contemporary mountain architecture and





Figure 59

green building techniques represent current values grounded in a sustainable future.

- ★ 11.6.2.1 New mixed use and multi-unit residential developments shall reflect a Rocky Mountain architectural character. Several examples are provided on this page.

- ▽ 11.6.2.2 New buildings designed in a contemporary style shall be unique and should be approved only when the design proposed accommodates green building initiatives in excess of the required minimums contained in the Town's green building policy.

- ★ 11.6.2.3 Any building should incorporate a full array of elements associated with the chosen style including the appropriate composition, structure, materials and construction typical of that style.

- ★ 11.6.2.4 Entrance ways and doorways should be clearly marked as prominent points of access into buildings. They should punctuate the street and offer some form of shelter. It is preferable if the doors are modest in scale. The treatment of a primary and/or secondary entry to a building should be obvious and apparent from the street. (See Fig. 59)

- ★ 11.6.2.5 Buildings should be designed to be attractive from all directions. Rear or side building facades visible from the street or public sidewalk or pathway should receive equal design treatment as the front or main façade.

11.6.2.6 Accessory structures and enclosures (e.g. storage areas, garbage receptacles) should be integrated into the design of the development site, in an enclosure or adequately screened. (See Fig. 60a - 60b)

11.6.2.7 The form of the building and its details should be designed to create visual interest at the street level. Techniques include:

- a. Recessing doors and windows;
- b. Articulated building facade and facade details; and
- c. Visually extending interior spaces outside through the use of the same paving material.

11.6.3 Building Massing

- ★ 11.6.3.1 A high degree of both vertical and horizontal façade articulation is required to minimize the mass and bulk of the building. Some of the

ways to achieve this include: stepping back the second and upper floors, incorporating stepped terraces and articulated rooflines. (See Fig. 61a - 61b)

- ★ 11.6.3.2 Building designs



Figure 60a



Figure 60b



Figure 61a



Figure 61b

which divide the structure into a distinct base, middle and top are required. This style reflects traditional mountain design in Canmore and can be achieved by using steeply sloped roofs with large overhangs, a transparent (windows) middle section, complemented by a strong stone or masonry base.



- 11.6.3.3** Buildings should be scaled to respond to their context by sensitively addressing the scale and massing of adjacent buildings. This can be achieved by matching existing building heights or by stepping back the upper floors.



Figure 62

11.6.4 Roof Forms

Roof forms are important to the look and “fit” of a building in its environment. In mountain architecture the roof is often a prominent feature in the design of a building. The roof reinforces both the functional purpose of protection from the elements and the aesthetic harmony with the surrounding mountains. For these reasons, roofs should be real “working” roofs rather than used simply for appearances.



Figure 63

- 11.6.4.1** Roof forms should be steeply pitched (minimum 6:12 slope) with large overhangs (0.9m). Where this roof slope is impractical due to the depth of the building, a lower slope may be used. (See Fig. 62)

- 11.6.4.2** All buildings and structures must incorporate a cascade of roofs to break up massing and add visual interest. The roofs should reflect function, construction and the architectural traditions of providing sheltering roofs in a mountain environment. (See Fig. 63)



Figure 64



- 11.6.4.3** Areas greater than 15% of the roof that are flat or roofs with very shallow pitches (5:12 or 20 degrees or less) may only be considered when:

- They provide architectural variety, not additional floor space;
- They are designed as a green roof;
- When required for the installation of solar energy collection devices; or
- When it can be demonstrated that building massing is acceptable with consideration of views, overshadowing, and continuity of scale. (See Fig. 64)

- 11.6.4.4** Roof detailing such as dormers and cross gables is encouraged to provide visual interest and variety. (See Fig. 65)

- 11.6.4.5** Roofs should have dormers or other architectural features over entrances to provide shelter. (See Fig. 66)

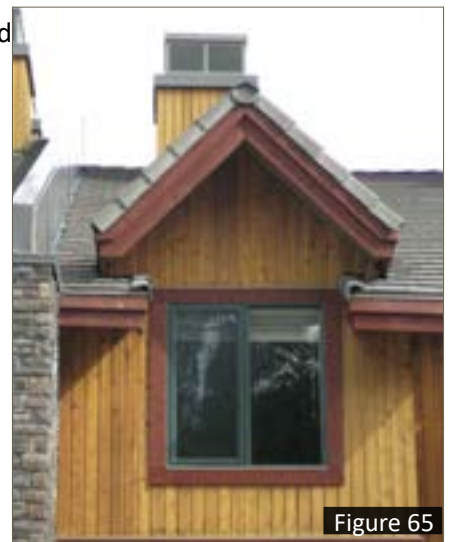


Figure 65

- 11.6.4.6** All mechanical equipment located on the roof must be screened from all sides of the building. Noise from this equipment may also require mitigating.



- 11.6.4.7  Mansard roofs will be allowed only when a functioning roof cannot be constructed on a building. In situations where a mansard roof is allowed, it must have the appearance of a functional roof, be placed in or cut through the building volume and must not be added or attached to the building walls. (See Fig. 67)

11.6.5 Green Roofs

Green roof infrastructure has a significant number of social, environmental and economic benefits that are both public and private in nature. Benefits include:

- a. Increased energy efficiency (from cooling in the summer and added insulation in the winter);
- b. Longer roof membrane life span;
- c. Sound insulation;
- d. Additional Amenity Space for occupants;
- e. Filters particulates from the air;
- f. Retains and cleanses stormwater on-site;
- g. Provides new opportunities for biodiversity preservation and habitat creation; and
- h. Improves the aesthetic or natural quality of the built form.

Standards

11.6.5.1 A roof slope between 2.5 degrees and 25 degrees is recommended for a green roof. (See Fig. 68)

11.6.5.2 On a roof slope greater than 20 degrees, ensure the sod or plant layer does not slip or slump through its own weight, especially when it becomes wet. This can be prevented through the use of support grid systems for green roofs or horizontal strapping, wood, plastic or metal placed under the membrane or loose-laid on top.

11.6.5.3 Consider the following factors when designing a green roof:

- a. Primary function, e.g. stormwater retention, aesthetics;
 - b. Height of the roof above grade (Refer to the relevant section of the Land Use Bylaw for calculating the maximum height of a flat roof);
 - c. Exposure to wind;
 - d. Roof's orientation to the sun and shading by surrounding buildings;
 - e. General climate of the area and specific microclimate on the roof; and
 - f. Views to and from the roof.
- 11.6.5.4 To mitigate the risk of fire hazard:



- a. Integrate ‘fire breaks’ at regular intervals across the roof, at the roof perimeter, and around all roof penetrations;
- b. Use fire retardant plants such as sedums which have a high water content; and
- c. Use a sprinkler irrigation system connected to a fire alarm.

11.6.5.5 [Repealed by 2020-16]

11.6.5.6 Planting material should be limited to hardier or indigenous varieties of grasses and sedums to avoid the installation of shading devices, irrigation and fertilization.

11.6.5.7 The use of an extensive or intensive green roof system (or a combination of both) should be dictated by site specific factors such as location, structural capacity of the building, budget, client needs as well as material and plant availability.

11.6.5.8 Intensive green roof systems should demonstrate diverse utilization of the roof, public accessibility, high energy efficiency and stormwater retention along with a reduced need for irrigation.

11.6.6 Detailing & Windows

Incorporating good detailing is important to the overall appearance of a building. Skillful detailing can reflect the building’s mountain setting and/or the historical vernacular of Canmore’s railroad and mining heritage. The use of relief and texture can take advantage of the strong sunlight in the Rocky Mountains, which creates strong shadow lines and gives texture and depth to building facades. Detailing is an expression of craftsmanship and care in the design, construction and functioning of a building.

Windows also form an extremely important part of building design. Windows will reduce the overall mass and contribute to the overall character of the building. Views of the mountains are also very important. The design and placement of windows should complement the structural character and materials of the building.

The goal of this section of the Standards is to encourage good detailing to create articulated and interesting architecture. Refer to the following page for several local examples of appropriate architectural detailing.

Standards

-  **11.6.6.1** All new developments shall incorporate some detailing derived from local historical motifs, rather than “imported” motifs. Suggested motifs include: simple, carved wood brackets; special entry doors with carved or sculpted elements; and wooden handrails.

Details can be incorporated in window and entry design, facades and roof shapes. Examples of this would be partial stone walls; deep set windows with visually strong frames and muntins (bars dividing window panes); curved brackets under roof overhangs and timber detailing on eaves or porches (refer to following page for examples).

- 11.6.6.2** The use of Rundle stone, river rock or other masonry elements in the detailing of the building is encouraged. This may include a stone base, piers or other architectural elements such as chimneys. (See Fig. 69)



- ★ 11.6.6.3 The use of heavy timber, log or other traditional local mountain materials are appropriate for entry porches, structural brackets, roof trusses and columns. (See Fig. 70)

11.6.6.4 All mechanical devices, satellite dishes and signaling devices must be appropriately screened to complement the architecture of the building. **[2021-24]**

11.6.6.5 Roof ventilators are important to the performance of the roof and should be carefully detailed in gable ends or constructed as ridge accents or copulas.

- ★ 11.6.6.6 Vent placement should be integrated into the overall building design early in the design process, and should not be visible from the street or shared open spaces (e.g. courtyards). Materials for vent grilles or caps should be consistent with the overall style and character of the building.

11.6.6.7 Incorporate balconies, stairways and other key elements into the overall building mass in a manner which complements the architectural style of the building. (See Fig. 71)

11.6.6.8 All metal chimneys shall be boxed in with materials that are compatible with the building.

11.6.6.9 Large panes of glass exceeding 1.5 m wide and 2.0 m high are not permitted unless they are divided into sections using muntins or other design elements. (See Fig. 72)

11.6.6.10 No blank walls are permitted. Walls can be broken up using such design elements as varied textures and materials, box outs and window openings.

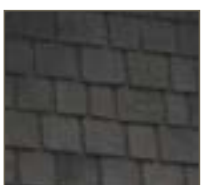




11.6.7 Materials & Colours

Buildings should be designed with permanence in mind. The use of quality materials, finishes and construction detail will help long term utility and contribute to the built form of Canmore.

In striving to develop a built form that reflects and complements Canmore's spectacular mountain setting, the choice of appropriate materials and colours is very important. Dominant building materials should be from raw materials present in the regional area and ones that have traditionally been used in the Canmore area. While no standard colour scheme is proposed the overall colour schemes of buildings should strike a balance. Strong, bright colours should be used to highlight features while the major portions of buildings should incorporate 'natural' tones.



Examples
of appropriate
exterior
materials

Standards

- ★ 11.6.7.1 The following is a list of acceptable and unacceptable roofing materials and wall finishes that contribute to the architectural character of Canmore.

Roofing Materials

Acceptable:

- Slate or slate like materials (black, grey or greenish hues);
- Heavy gauge interlocking asphalt shingles (red, green, dark brown, dark grey);
- Metal: dark colours or treated copper. Metal roofs must be selected with standing seams, intermediate control increases and fabricated of a sufficiently heavy gauge of metal to control deformation.;
- Grey, brown or black ballast or exposed membrane for flat roofs;
- Other roofing materials made from recycled materials that emulate cedar shakes or asphalt shingles that shall have a minimum Class B Underwriters Laboratory Canada fire rating; and
- Treated cedar shingles or shakes treated for fire resistance shall have a minimum Class B Underwriters Laboratory Canada fire rating.

▽ Unacceptable:

- Untreated cedar shingles or shakes;
- Uncoated (clear) aluminium or galvanized metal; and
- Large areas of glass.

Wall Finishes

Acceptable:

- Wood siding, stained or weathered;
- Local, real stone;
- Locally manufactured, cultured stone that emulates local stone may be permitted;
- High quality cultured stone may be used with no repetition in pattern or obvious boundaries between "tiles" of cultured stone;
- Stucco finishes may be approved if they are complemented with appropriate detailing;
- Cementitious fibre board or "Hardiplank" materials that are installed in the same manner as wood siding and not installed in sheets; and

	g. Architecturally designed concrete blocks may be considered by the Development Authority.	
	Unacceptable:	
	h. Metals;	
	i. Brick;	
	j. Tiles; and	
	k. Glass curtain walls.	
☀	11.6.7.2 Materials, particularly at ground level, shall be durable and detailed in a manner that provides interest to pedestrians.	
	11.6.7.3 The colour scheme for all projects shall be suitable to the streetscape, Canmore's mountain environment and the building's style. Design and colours should reflect the range of colours and tones present in the surrounding environment with neutral, darker tones for major surfaces and materials, and brighter colours utilized for building detailing such as window and door trim.	
	11.6.7.4 Unpainted clear anodized aluminum window frames, door frames and doors are not permitted.	
	11.6.7.5 Side and rear elevations facing a street shall be of similar colours and materials as the front facades (excepting fireproof walls required as part of the Building Code).	
	11.6.7.6 Reflective-coated or mirrored glass is not acceptable (except Low E coatings to reduce energy use).	
🌳	11.6.7.7 The use of salvaged and refurbished materials in new building projects is encouraged. Salvaged materials can add character to the building and can be used effectively as architectural details. Examples of common salvaged materials include: beams and posts, wood flooring, wood paneling, doors and frames, cabinetry and furniture, masonry products, decorative items such as mantels and ironwork.	
🌳	11.6.7.8 Consider the incorporation of building materials with recycled content as a means of reducing the use of virgin materials and solid waste. Some common recycled products include: metals, concrete, masonry, ceramic tile and insulation. Ensure the recycled materials perform equally or better than virgin materials in terms of strength, maintenance and lifetime.	
🌳	11.6.7.9 Encourage the use of regionally manufactured building materials (supports local economy, reduces transportation costs and environmental impacts)	
🌳	11.6.7.10 Renewable materials are encouraged to help reduce the use and depletion of finite raw materials and long-cycle renewable materials (for example: bamboo flooring, cotton batt insulation, sunflower seed board, wool carpet).	
🌳	11.6.7.11 Encourage the use of wood-based materials and products certified by the Forest Stewardship Council or similar organization.	

Examples of appropriate colors

11.7 DEFINITIONS

Extensive Green Roofs are typically not accessible and are characterized by:

- Low weight;
- Low capital cost;
- Low plant diversity; and
- Minimal maintenance requirements.

Plant material is usually low and hardy, typically alpine, dry land or indigenous. Examples of plant material include: a mixture of grasses, mosses, sedums, sempervivums, festucas, irises and wildflowers. Plants are usually watered and fertilized only until they are established, then after the first year maintenance consists of 2 visits per year for weeding of invasive species, safety and membrane inspections.

Intensive Green Roofs are often accessible and characterized by:

- Deeper soil;
- Greater weight;
- Higher capital costs;
- Increased plant diversity; and
- More maintenance requirements.

These roofs tend to be more energy efficient and have greater stormwater retention capabilities given the deeper soil; however, there is greater weight loading on the roof and increased need for irrigation and drainages systems which require energy and water. An intensive roof system is more complex and therefore requires additional expertise in the design and maintenance of the system.

SECTION 12 DENSITY BONUS REGULATIONS

Purpose

To increase the number of Perpetually Affordable Housing units constructed and available within comprehensive developments, primarily in new areas of town.

Guiding Principles

The provision of PAH units is optional and voluntary; the provision of PAH units under this section shall be at the option of the developer / builder.

The ratios outlined in this section and the number of units that result are intended to be reviewed from time to time to ensure this section is functioning as intended.

PAH units should be physically constructed on-site or provided off-site. Cash in lieu contributions shall not be accepted as part of this section.

The Town's Planning and Development Department shall consult with the development industry and the Canmore Community Housing Corporation (CCHC) on both the review and implementation of this section.

Goal

To provide up to 10 PAH units annually associated with new developments. This number will be revisited annually and will be affected by demand and rates of development.

12.1 DEFINITIONS

CCHC refers to the Canmore Community Housing Corporation.

CMI refers to Canmore Median Income (see 12.2.0.24).

Disclosure Agreement means all the documents required by law that are to be provided by the Vendor to allow for full disclosure of all aspects related to the sale. These may include floor plans, building specifications, unit interior specifications, condo bylaws, condo fees, common areas, parking, sales agreements etc.

PAH Reserve Fund is an account established by the Town of Canmore through the PAH Policy that currently receives all monies to be used for the specific and sole purpose of developing equity or rental PAH projects or facilitating any aspect of constructing, producing or delivering PAH units.

PAH Unit refers to a range of housing types that shall be maintained as a Canmore resident's permanent primary residence, available to eligible persons at below market purchase prices and rental rates. Details on the current definition shall be consistent with the definition included in the Perpetually Affordable Housing Policy.

12.2 REGULATIONS

- 12.2.0.1 The Canmore Planning Commission may approve variances beyond those allowed for in Subsection 1.14 when an applicant proposes to provide PAH units in accordance with this Bylaw.
- 12.2.0.2 The maximum variance granted shall be up to 30% when granted by the Canmore Planning Commission.
- 12.2.0.3 PAH units are to be made available to CCHC consistent with the terms and policies of the Perpetually Affordable Housing Policy.
- 12.2.0.4 The Developer, CCHC and the Town shall work collaboratively early in the design phase of the project to ensure the type and size of units are appropriate and consistent with current demand and need for PAH.
- 12.2.0.5 An agreement between the developer and the Town (or its nominee) must be in place regarding the terms and conditions of the transfer of the PAH units, and the agreement shall be submitted to Council for approval.
- 12.2.0.6 Both the PAH units and the additional units constructed as part of the “density bonus” or variance shall be in addition to the total allowed density or any unit restrictions contained in the Land Use Bylaw.
- 12.2.0.7 PAH units may be provided off-site from the development they are associated with.
- 12.2.0.8 Any off-site units shall be to the satisfaction of the Town and in consultation and collaboration with CCHC.
- 12.2.0.9 For each PAH unit provided on-site, there will be three (3) bonus/additional market units permitted on the site.
- 12.2.0.10 The Development Authority may accept a different ratio where the applicant can demonstrate that the “bonus” is resulting in a fair benefit to the community through provision of PAH housing.
- 12.2.0.11 PAH units provided or constructed off-site shall be of an age, type and quality deemed suitable to the Development Authority, in consultation and collaboration with CCHC, and reasonably equivalent in size and type (not cost) to those that would be provided on-site.
- 12.2.0.12 Off-site PAH units may not be purchased in existing Employee Housing developments as of the date of approval of this section.
- 12.2.0.13 For each PAH unit provided off-site, there will be two (2) bonus/additional market units permitted on the site.
- 12.2.0.14 PAH units shall be made available concurrently with the construction of the bonus market units. When market bonus units are occupied, then the PAH units shall be concurrently available for occupancy.
- 12.2.0.15 CCHC or the Town will commit to purchasing a PAH unit within a reasonable time to provide the Developer with assurances about the type of unit to be constructed.

- 12.2.0.16 CCHC or the Town shall exercise their right to purchase a PAH unit, by way of an unconditional sales agreement, within six months of the disclosure documents being available, or three months after the Building Permit has been issued, whichever is later.
- 12.2.0.17 CCHC shall be responsible for finding eligible PAH buyers and renters.
- 12.2.0.18 CCHC shall be responsible for the sale of the PAH unit unless the Developer, CCHC and the Town mutually agree otherwise.
- 12.2.0.19 Should CCHC not be able to locate a purchaser by the time specified above, CCHC and the Developer shall come to a lease agreement regarding the interim occupancy of the unit until such time as a purchaser can be found.
- 12.2.0.20 Should CCHC choose not to acquire the PAH unit, and Council also determines that it does not want to acquire the unit under the terms of the agreement described in Subsection 12.2.0.5, the unit may be sold as a market unit by the Developer, to a purchaser at arms length from the Developer and CCHC staff and directors and at a fair market value price.
- 12.2.0.21 The net difference between the unit market sale price and the PAH price shall be divided between the Developer (33%) and the Town (66%), with the proceeds to the Town to be deposited in the PAH Reserve Fund. This amount shall be payable when payment is received by the Developer from the purchaser through an Assignment of Proceeds Agreement.
- 12.2.0.22 The Planning and Development Department will expedite the processing of applications submitted with a request for variances under this section.
- 12.2.0.23 Variances for infill developments in existing developed residential areas, require additional public consultation, through a Land Use Bylaw amendment or Area Redevelopment Plan process, to evaluate the possible impact(s) and their potential mitigation.
- 12.2.0.24 When PAH units are proposed in condominium projects, the cost of condominium fees are to be considered in the calculation of purchase costs in relation to CMI.
- 12.2.0.25 Condominium disclosure documents may be required to indicate lower condominium fees being assessed to PAH units.

SECTION 13 DEFINITIONS

13.1 WORDS AND TERMS

Words and terms used in this Land Use Bylaw shall have the same meaning and definition as those in the *Municipal Government Act* unless otherwise specifically defined in this section.

13.2 DEFINITIONS

A-frame sign means a mobile Sign which is not secured or attached to the ground or surface upon which it is located but supported by its own frame. Generally, the Sign uses two boards that are hinged together at one end (e.g. sandwich board), or a vertical sign face with a horizontal base (e.g. inverted t-frame) that are placed on or near a sidewalk, street or business frontage.

accent lighting means lighting used to emphasize or draw attention to an object or building.

Accessory Building means a building which is subordinate or incidental to the principal building on a site that is not a Dwelling Unit. It must be located on the same site as the principal use and shall not precede the development of the principal building.

Accessory Dwelling Unit means a self-contained Dwelling Unit that is subordinate to and under one title with the principal residential use.

Accessory Dwelling Unit, Attached means an Accessory Dwelling Unit that is located within the principal building containing the principal Dwelling Unit, and is subordinate to and under one title with the principal Dwelling Unit.

Accessory Dwelling Unit, Detached means an Accessory Dwelling Unit, that may include a garage, located on the same property as, and in a separate building from the principal residential Dwelling Unit, and is under one title with the principal residential use.

Accessory Use means a use which is subordinate, incidental and directly related to the principal use of the premises, building, or site and which does not substantially add to the patronage, volume of traffic, or intensity of the use of the premises building or site. An accessory use must be located on the same site as the principal use and may not precede the development of the principal use.

accommodation unit means a room or suite of rooms operated as a temporary place to stay, with or without compensation, and does not include a Dwelling Unit. It usually contains sleeping and sanitary facilities and may contain cooking and eating facilities. This includes all Visitor Accommodation units and any Shared Ownership Accommodation units.

accommodation use means the use of an accommodation unit as defined in the Bylaw.

Act or Municipal Government Act means the Municipal Government Act and any amendments thereto.

adjacent means land or a portion of land that is contiguous to a site and includes land that would be contiguous if it were not for a public thoroughfare, stream, pipeline, public utility lot, powerline, railway, or similar feature.

Administrative/Sales Office means a temporary use which is incidental to the subdivision or development of a parcel of land which has received or is under consideration of subdivision, land use or development permit approval.

Agriculture, Extensive means systems of tillage and or animal husbandry on large areas of land for the raising of crops or the rearing of livestock either separately or in conjunction with another in unified operations and includes buildings and other structures incidental to the operation.

Agriculture, Intensive means a place that employs a concentrated method used to raise crops or to rear or keep livestock, or their products for market, including such operations as horse riding stables, poultry farms, pastures, rabbitries, fur farms, greenhouses, animal sanctuaries, tree farms, sod farms, nurseries and similar specialty uses conducted as the principal use of a building or site.

Airport means the Canmore municipal heliport within the protection area.

airport take-off and landing area means the area of land within the airport that is used or intended to be used for the take-off and landing of aircraft.

airport zoning reference point elevation means the airport zoning reference point elevation of the airport take-off and landing area as described in 7.5.8.

ambient light means the general overall level of lighting in an area.

Amenity Space means an area comprised of on-site, communal or private, indoor or outdoor space designated for social gathering or active or passive recreational use.

Amusement Arcade means a facility where four or more mechanical or electronic games are kept for the purpose of entertainment or amusement to the public for a fee.

Apartment Building means a single building comprised of three or more Dwelling Units with shared entrance facilities.

apartment hotel [Repealed by 2020-16]

architectural lighting means lighting that is primarily intended to highlight architectural feature(s), aspect(s) or face(s) of a building or landscaping. This does not include lighting designed to enhance safety such as the illumination of walkways.

Arts and Crafts Studio means development used for the purpose of small scale, on-site, production of goods by hand manufacturing primarily involving the use of hand tools. Typical uses include pottery, ceramic, jewelry, toy manufacturing, and sculpture and artist studios.

Athletic and Recreational Facility, Indoor means a facility for the purpose of indoor active recreation or athletic activities where patrons are predominantly participants and any spectators are incidental. This includes but is not limited to gyms, athletic studios, skating and hockey rinks, swimming pools, rifle, archery and pistol ranges, bowling alleys and racquet courts.

Athletic and Recreational Facility, Outdoor means a facility available to the public for the purpose of sports and active recreation conducted outdoors. Typical uses include golf courses, driving ranges, ski hills, ski jumps, sports fields, tennis courts, ice surfaces or rinks, athletic fields, splash parks, bowling greens, riding stables.

Automotive and Equipment Repair means a facility for the servicing and/or repair of motor vehicles, motorcycles, snowmobiles or similar vehicles and includes the sale, installation and servicing of related accessories and parts. [2020-16]

Automotive Sales and Rentals means a facility for the retail sale or rental of new or used automobiles and recreational vehicles together with incidental maintenance services and sale of parts. This includes automobile dealerships and car rental agencies.

Auxiliary Commercial Use means uses serving an Employee Housing complex and immediate neighbourhood. This may include, among other potential uses, such commercial facilities as convenience stores, Eating Establishments, and Laundry Facilities, which are intended and designed to service primarily residents of the Employee Housing development.

awning means a retractable structure that projects from a building façade to typically provide shelter over a deck, patio or walkway. An awning may be permanently fastened to a building. [2020-16]

awning or canopy sign means a Sign that is displayed directly on an awning or canopy. Awning or canopy signs are usually made of fabric or are building extensions and are either retractable or permanent. Bubble awnings are either squared off or rounded at the sides.

baffle means an opaque or translucent element to shield a light source from direct view.

balcony means a platform greater than 0.6 m above grade, attached to and projecting from a building, and which may or may not have a supporting structure at grade. A balcony is only accessible from within the building and is enclosed by a railing. A balcony may be covered by a roof or cantilever when compliant with the building yard setback regulations of the Land Use Bylaw. [2020-16]

bank of waterbody means the surveyed boundary line, as determined by a qualified surveyor, where the bed and shore of the body of water cease as further defined in the Surveys Act. Where a dyke constructed by a provincial or other government authority has physically covered or obliterated the original bank of a watercourse, or has, for all practical purposes, effectively replaced the original surveyed bank, the Development Authority may interpret the location of the bank as the river side of the top of such a dyke as shown on a surveyed plot plan.

banner or flag sign means a Sign that is affixed to cloth, canvas, vinyl, paper or other flexible material and is suspended on a wall, roof, pole, between two poles or structures.

bay window means a type of window that protrudes outwards from a wall. [2020-16]

Bed and Breakfast means an ancillary commercial use operated by the permanent resident of the dwelling and providing a maximum accommodation of three guest rooms to a maximum of six persons for periods of 14 days or less.

billboard sign means a Sign that advertises goods, products, services or facilities which directs persons to a different location from the site where the Sign is located.

block face means one side of a street between two intersecting streets.

Brewery/Distillery means a facility licensed by the Alberta Gaming and Liquor Commission where beer, spirits and other alcoholic beverages are manufactured and may include the retail sale of products made on the premises for consumption off the premises. A Brewery/Distillery may include an area where products made on the premises are sold or provided to the public for consumption on the premises but are not considered an Eating and Drinking Establishment.

building means a structure with a roof and walls.

building height means the vertical distance between any grade-point, as defined in this by-law, and the highest point of a building excluding a ventilating fan, skylight, steeple, chimney, smoke stack, exterior firewall, parapet wall, flagpole, antenna, or similar device not structurally essential to the building.

building permit means a certificate or document issued by the Town of Canmore pursuant to the Building Permit Bylaw.

building wrap means a material that covers all or part of a building that is being constructed, renovated, or demolished.

bulb or lamp means the source of electric light. To be distinguished from the whole assembly (see luminaire). Lamp often is used to denote the bulb and its housing.

Bulk Fuel Station means a facility for the purpose of storing fuel for distribution to customers and does not include a service station.

Campground means a facility that has been planned and improved for the seasonal short-term use of holiday trailers or travel trailers, motor homes, tents, campers and similar recreational vehicles, and is not used as year round storage, or accommodation for residential use.

Canmore Planning Commission means the Canmore Municipal Planning Commission constituted pursuant to the Municipal Planning Commission Bylaw.

Cannabis Retail Store means a retail establishment licensed under provincial authority for the sale of any cannabis for consumption off-premises. Full walls must physically separate the premises from any other business.

canopy means a non-retractable, structural projection, which extends from the face of the

building for the purpose of providing shelter, which may have external bracing. [2020-16]

cantilever means a building projection from the wall of a building to increase the useable gross floor area. A cantilever does not have external bracing. [2020-16]

Car Wash means a facility for the washing, cleaning, or polishing of motor vehicles.

Care Facility means a public or private health facility for the care, supervision or rehabilitation of individuals, or for palliative and end-of-life care, containing overnight accommodation and operated in accordance with any relevant Province of Alberta legislation and regulations. Units within a Care Facility may, at the discretion of the development authority, be considered as both long-term care units and Dwelling Units as these may be permanent residences for the occupants.

carport means a building or structure or part thereof, the perimeter or a majority of which is not enclosed and which is generally used for the parking or temporary storage of vehicles.

Cemetery means a landscaped open space for the entombment of the deceased and may include cineraria, columbaria, and mausolea.

certificate of signage conformance means a certificate or stamp issued by the Town of Canmore stating that the proposed Sign is in conformance with the Land Use Bylaw on the date the certificate was signed. A Certificate of Signage Conformance may be issued for a Sign that meets all of the sign regulations of the Land Use Bylaw in place of a Development Permit.

chalkboard sign means a Sign consisting of a dark colour with contrasting letters, that is written on daily and is attached at a fixed location for the purpose of advertising menus, specials, or events at the business.

changeable copy sign means a Sign with an area that facilitates the periodic change of information or content through manual arrangement/writing of letters/symbols.

character defining elements means the materials, forms, location, spatial configurations, uses and cultural associations or meanings that contribute to the heritage value of a resource, and which must be retained in order to preserve its heritage value. These are outlined in the Statement of Significance.

Common Amenity Housing means a building with separate sleeping facilities and common washing, sanitary and kitchen facilities.

compensation is granted upon designation of a building and site as a Municipal Historic Resource, pursuant to the Act. Compensation is in the form of conservation incentives agreed to by the Town of Canmore and resource landowner. The agreement made at the time of designation by the resource landowner is binding on the property, and therefore still applies to future resource landowners of the site.

Comprehensively Designed Multi-Unit Residential Development means a building or group of buildings that shall have a built form of Townhouse, Townhouse, Stacked, Apartment Building,

or Duplex and which may include Accessory Dwelling Unit, Attached or Accessory Dwelling Unit, Detached where they are part of the comprehensive design. [2021-24]

conservation means actions or processes that are aimed at safeguarding the character-defining elements of a cultural resource so as to retain its heritage value and extend its physical life. This may involve preservation, rehabilitation, restoration, or a combination of these actions or processes as outlined in the Standards and Guidelines for the Conservation of Historic Places in Canada.

Contractor Service and Repair means a facility for the provision of contractor services primarily to individual households and the accessory sale of goods normally associated with such contractor services where all materials are kept within an enclosed building, and where there are no associated primary manufacturing activities.

contractor sign means a temporary Sign erected by a business undertaking construction/ maintenance work at an approved construction site.

continuous sign band means a flush-mounted Sign that includes more than one business and where the overall sign area is continuous and there is no separation between business descriptions.

Convention Facility means a permanent facility for meetings, seminars and conventions.

corner site means a site situated at the intersection of two or more streets, or at the intersection of two parts of the same street, which parts have an intersection of not more than 135 degrees.

corner visibility triangle means a triangular area formed on the corner site by the two street property lines and a straight line, which intersects them 4.5 m from the corner where the property lines meet.

Council means the Municipal Council of the Town of Canmore.

Crematorium means an establishment with one or more cremation chambers used for the reduction of the human body by heat.

Cultural Establishment means a development that is available to the public for the purpose of assembly, instruction, cultural or community activity and includes such uses as a place for religious assembly.

cutoff angle of a luminaire means the angle, measured up from the nadir (i.e. straight down), between the vertical axis and the first line of sight at which the bare source (the bulb or lamp) is not visible.

cutoff fixture means the fixture that provides a cutoff (shielding) of the emitted light.

Day Care means a licensed facility for the provision of temporary care and supervision of seven (7) or more children. This includes an out-of-school care program and a pre-school program but does not include a day home.

day home means a facility where temporary care and supervision is provided to a maximum of six (6) children.

deck means a constructed and elevated platform, the height of which exceeds 0.6 m above grade and is accessible from an entryway of a building. A deck is accessible by exterior stairs and may also be covered by a roof, cantilever or canopy when the deck is compliant with the building yard setback regulations of the Land Use Bylaw. A deck may function as a private amenity space. **[2020-16]**

density means the number of dwelling, visitor or resort accommodation units on a site expressed in units per acre or hectare, or alternatively as the site area required per Dwelling Unit.

department means the Town of Canmore Planning & Development Department.

Detached Dwelling means a detached building containing one principal Dwelling Unit.

development means:

- a. An excavation or stockpile and the creation of either of them;
- b. A building or an addition to, or replacement or repair of a building and the construction or placing in, on, over or under land of any of them;
- c. A change of use of land or a building or an act done in relation to land or a building that results in or is likely to result in a change in the use of the land or building; and/or
- d. A change in the intensity of use of land or a building or an act done in relation to land or building that results in or is likely to result in a change in the intensity of use of the land or building

development area means the area to be occupied by a building, plus the area required for excavation and construction.

development authority means the Canmore Planning Commission, Council, or the Development Officer, as the context provides.

development completion certificate means a certificate or document issued by the Development Officer confirming that the requirements and conditions of a development permit have been satisfactorily completed.

development officer means an official of the Town of Canmore charged with the responsibility of receiving and processing applications for development permits, and for deciding upon development permit applications, and issuing development permits and Development Completion Certificates and for enforcing the provisions of this Bylaw.

development permit means a document issued by a Development Authority pursuant to this Bylaw, which authorizes a development and includes the plans and conditions of approval.

development sign means a Sign used to identify residential multi-unit or mixed-use buildings

13 DEFINITIONS

under construction, or a new or future area subject to an Area Structure Plan.

directional sign means a Sign used for the sole purpose of directing an individual to a particular location within a site and shall not include corporate logos or the name of a business (e.g. Reception or Information). Directional signs must be located on the same site as the location that people are being directed to.

directly lit sign means a Sign that is illuminated from a light source located on or near the exterior of the Sign.

directory sign means a Sign that identifies the names and locations of tenants in a multi-tenant building or in a development made up of a group of buildings. Directory signs must be located on the same property as the tenants listed on the Sign.

district means an area of land designated on the Land Use District Maps for which a specific set of land uses and rules have been set forth in this Bylaw or, in the case of a Direct Control District, are determined by Council.

dormer means a roof structure containing a window that projects vertically above the plane of a pitched roof for the purposes of providing light and headroom within a half-storey or a loft.

dormitory [Repealed by 2020-16]

Drive-in/Drive-through Food Service means a facility for eating and drinking which offers a limited menu produced in a manner that allows for rapid customer service and includes one or more of the following features: drive through rapid food pickup services; or parking primarily intended for the on-site consumption of food.

Duplex Dwelling means a single building containing two Dwelling Units either side-by-side with a common wall extending from the foundation to roof, or one above the other, each having a separate entrance.

Dwelling Unit means a self-contained room or suite of rooms not available for public use, which normally provide sleeping, washing, sanitary and kitchen facilities, and which is intended for residential use, as opposed to vacation use. A Dwelling Unit shall not include more than one room which, due to its design, plumbing, equipment, and furnishings is or may be used primarily as a kitchen. Examples of this include upper cupboards, a full size fridge, a stove using 220V, and other aspects that may define a kitchen. A Dwelling Unit is characterized as a place in which a person or persons may reside as their primary or secondary residence, with the intent and ability to arrive and leave at their discretion, with the intent to remain for an undetermined or indefinite period (except in accordance with a tenancy agreement under the Residential Tenancies Act or the Mobile Home Sites Tenancies Act) and with the intent to return to the Dwelling Unit following absences for such reasons as vacations. A Dwelling Unit does not include a Shared Ownership Accommodation.

Eating and Drinking Establishment means a facility where food is prepared and served on the premises for sale to the general public and includes restaurants, delicatessens, and cafeterias but excludes Drive-in/Drive-through Food Services. This facility may be licensed by the Alberta Gaming and Liquor Commission such that alcoholic beverages may be served to the general

public for consumption on the premises.

eave means a building projection extending off a roof and overhanging past the walls of a building. **[2020-16]**

eaveline means the horizontal line on a building that marks the lowest edge of the overhang of a roof. Where there is no overhang, the eaveline shall be the horizontal line at the intersection of the roof and wall. **[2020-16]**

Educational Institution means a place of instruction operated with public or private funds. Can be a private, public, separate, commercial or post secondary school.

electronic sign means a Sign that displays a video or image on an electronically controlled optical device that is visible from the exterior of a building, site or is projected on the exterior of a building.

employee means a person who is primarily employed by an employer within the municipal boundaries of the Town of Canmore. For the purpose of this definition, a person is primarily employed if that person is performing, or is reasonably expected to perform, the services of an employee for an employer, for a minimum of an average of twenty (20) hours per week. The employee shall not be the same person as the employer. This provision may be varied at the discretion of the Development Authority where a proposed development meets the purpose of the applicable land use district and/or meets the intent of the Town's employee housing policies (e.g. in a building designed for a Live/Work Studio where a person is self-employed and living adjacent to their place of employment).

In addition to the above, those individuals who can provide written proof (through such means as lease or rental agreements) of continuous residency within the Town of Canmore for a minimum of twenty-four (24) continuous months and who are primarily employed by an employer within the boundaries of the M.D. of Bighorn west of and including the hamlet of Seebe, or within the Town of Banff or Banff National Park, shall be considered an "employee" for the purposes of this Bylaw and shall be eligible to occupy a unit in an approved employee housing project.

Employee Housing means one or more Dwelling Units used exclusively for the residence of employees and members of their family.

Entertainment Establishment means a facility where entertainment is provided to the public, either exclusively or in combination with other activities and may, without restricting the generality of the foregoing, include a live theatre, bar, dance club, cinema, but does not include an Eating and Drinking Establishment, Amusement Arcade or Entertainment Establishment, adult.

Entry Level Housing means a Detached Dwelling that is subject to specific requirements to construct an Accessory Dwelling Unit.

Entry Level Housing, Multi-Unit Residential means a multi-unit residential development with unit sizes ranging from 28 m² to 84 m² GFA.

13 DEFINITIONS

entry sign means a Sign that identifies the name of a developed area or subdivision located within the road right of way.

environmental education [Repealed by 2020-16]

Essential Public Service means a fire station, police station, or similar municipal, provincial or federal service.

Excavation, Stripping and Grading means development on a site that may include removal of vegetation, re-grading, or the excavation of material in isolation of that authorized as part of a development permit or subdivision.

fence means a vertical physical barrier constructed to provide visual screening or to prevent unauthorized access or both.

Financial Institution means a bank, trust company, credit union or similar establishment.

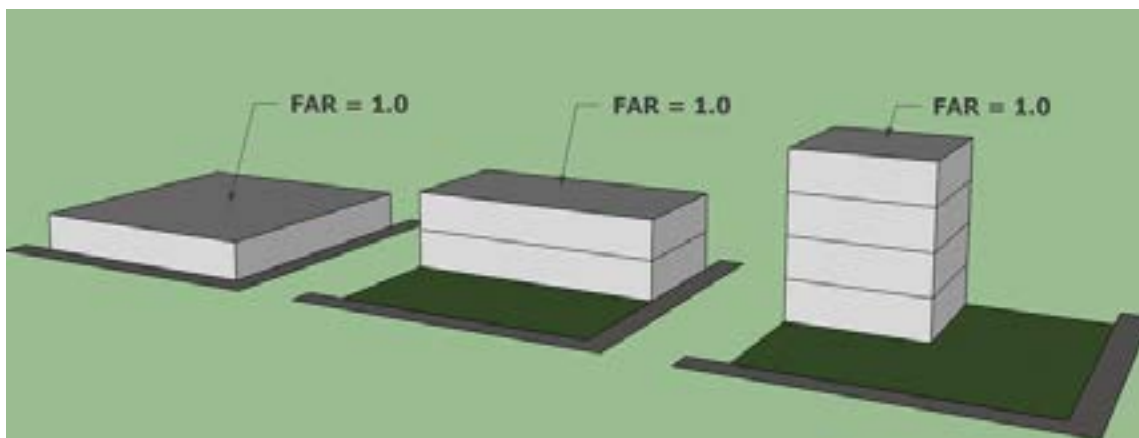
fixture means the assembly that holds the lamp in a lighting system. It includes the elements designed to give light output control, such as a reflector (mirror) or refractor (lens), the ballast, housing, and the attachment parts.

floodway means the portion of the flood hazard area where flows are deepest, fastest and most destructive as determined through the Flood Hazard Identification Program or a flood hazard study undertaken by a qualified professional. The floodway typically includes the main channel of a stream and a portion of the adjacent overbank area.

flood fringe means the portion of the flood hazard area outside of the floodway as determined through the Flood Hazard Identification Program or a flood hazard study undertaken by a qualified professional. Water in the flood fringe is generally shallower and flows more slowly than in the floodway.

floor area ratio (FAR) means the numerical value of the gross floor area of the building(s) located upon a lot divided by the lot area. Parking structures or portions of buildings used for parking are not included in the calculation of gross floor area.

For illustration purposes, each of the drawings below represents a Floor Area Ratio of 1.0 since



the floor area of each building is equal to the area of the lot.

flush-mounted directory sign means a flush-mounted Sign that identifies the names and locations of tenants in a multi-tenant building or in a development made up of a group of buildings. Directory signs must be located on the same property as the tenants listed on the Sign.

flush-mounted sign means a Sign that is mounted directly onto the building fascia and is generally located above the business entrance.

freestanding sign means a Sign that is structurally independent and is not attached to any other building. Freestanding signs are generally mounted on a foundation, one pole or suspended between two or more poles.

frontage means the boundary of a lot which abuts a street. For sites which abut two or more streets, the frontage(s) shall be designated by the Development Officer and may include two or more frontages.

frontage, business for the purpose of determining the location and numbers of signs, means a building elevation of a commercial business which faces a public street or which contains a functional public entrance to a business establishment located on the ground floor of the building.

full-cutoff fixture means a fixture that allows no emission above a horizontal plane through the fixture.

Funeral Home means an establishment for the arrangement of funerals, the preparation of the dead for burial or cremation, the holding of funeral services and the carrying out of cremations, where not more than one cremation chamber is provided.

garage sale sign means a temporary Sign used for the advertisement of used goods for sale at a residential address.

Gas Bar and Service Station means a facility for the sale of gasoline and associated automotive fluids that may also provide services for automobiles.

glare means an intense and blinding light, negatively affecting visibility. Disability glare is glare resulting in reduced visual performance and visibility. It is often accompanied by discomfort. Discomfort glare is glare that produces discomfort, but does not necessarily diminish visual performance.

Golf Course means a public or private area of land laid out for golf with a series of holes each including tee, fairway, and putting green and often one or more natural or artificial hazards. May include a driving range.

Golf Course Clubhouse and Facility means a structure used as an ancillary use to a Golf Course that is used for administrative and/or entertainment purposes. This does not include Accessory Buildings.

13 DEFINITIONS

grade means the elevation of the existing ground in an undisturbed natural state or an approved design grade as described in a development grading plan approved by the Town of Canmore.

grade-point means the point(s) on a site which are used to measure the maximum permitted height of a building from grade. Where grade points have not been established as part of an approved comprehensive grading plan, the location of grade points shall be determined by the Development Authority.

graffiti means a Sign painted, drawn or scratched on a building, structure, or surface with or without the express authorization of the building or landowner.

grant in aid of municipal property taxes or the grant means a grant that is granted by the Town of Canmore to cover a portion or all of the municipal property tax over a single year or multiple years as compensation upon designation as a Municipal or Provincial Historic Resource.

green roof, extensive is typically not accessible and is characterized, in contrast with intensive green roofs, by: relatively low weight; low capital cost; low plant diversity and minimum maintenance requirements.

green roof, intensive is typically accessible to the public or occupants of the building and, in contrast with extensive green roofs, are characterized by: deeper soil; greater weight; higher capital cost; greater plant diversity; and, substantial maintenance requirements.

gross floor area (GFA), non-residential means the sum of the areas of all floors of a building measured to the outermost surface of the exterior walls, and includes all floors totally or partially above the finished ground surface, but excluding mechanical equipment areas, garbage storage areas and areas dedicated to the parking of motor vehicles.

gross floor area (GFA), residential means the sum of the areas of all habitable spaces of a building measured to the outermost surface of the exterior walls, and excludes garages up to a maximum of 60 m². For accessory Dwelling Units, Apartments, Townhouses or other Dwelling Units partially enclosed by common walls, the GFA shall be determined by measuring from the interior wall.

ground floor means the floor of a building closest to grade.

habitable space means the floor space both above and below grade, which includes stairways, mechanical equipment rooms, closets, hallways, bathroom(s) and enclosed areas used for storage. It excludes elevators, areas dedicated to the parking of motor vehicles (up to 60 m²) and areas devoted exclusively to the mechanical or electrical equipment servicing the development.

halo lighting is a specific form of lighting for Individual Letter Signs where LEDs (Light Emitting Diodes) are placed behind the solid (e.g. opaque) letters and directed towards the building face to produce consistent and uniform illumination of the letters against the building. Lights sources for halo lighting shall not be visible to a passerby.

height of sign means the vertical distance measured from the highest points of the Sign or sign structure to grade.

Heliport means a facility for the use of helicopters landing or taking off on a frequent basis and includes development of passenger terminals, service, repair and storage facilities and other necessarily ancillary developments required for the purpose of operating a heliport in accordance with all applicable statutes and regulations.

heritage value means the aesthetic, historic, scientific, cultural, social or spiritual importance or significance of a resource for past, present or future generations.

historic designation means a form of federal, provincial or municipal government regulation that legally protects Historic Resources from alteration unauthorized by the government body.

historic resource means a structure, site, object, cultural or natural feature that is significant by virtue of its design, construction, association with an historic event, person, place, or social movement, or by virtue of the importance of its research or knowledge content; and is included on the Town of Canmore Historic Resources Inventory.

historic resource impact assessment means a report that evaluates proposed impacts on the character defining elements, heritage value and significance of a heritage sites and identifies mitigation alternatives.

holiday trailer or travel trailer means a trailer designed to be transported on its own wheels or by other means (including units permanently mounted or otherwise on trucks) designed or constructed in such manner as will permit its use for temporary dwelling accommodation for travel and recreational purposes only, but does not include a mobile home.

Home Occupation - Class 1 means an accessory use of a Dwelling Unit by a resident for a small-scale business which is incidental to the primary use as a residence, undetectable from outside the Dwelling Unit.

Home Occupation - Class 2 means an accessory use of a Dwelling Unit or private garage by a resident for a small-scale business which is incidental to the primary use as a residence. In accordance with the foregoing, Class 2 uses may include such activities as music lessons, Personal Service Businesses, day homes, Offices and indirect sales, but may not include such uses as Medical Clinics, Veterinary Clinics or Retail Sales, adult entertainment services, automobile repairs, automobile parts sales, automobile detailing, Kennels, Taxi Services and Eating and Drinking Establishments.

Hospital means a facility providing room, board, and surgical or other medical treatment for the sick, injured or infirm including outpatient services and accessory staff residences. Also includes, sanatoria, nursing homes, convalescent homes, isolation facilities, psychiatric hospitals, auxiliary hospitals, and detoxification centres.

Hostel means a facility containing commercial accommodation units operated to provide temporary accommodation with some communal kitchen and sanitary facilities and which may also provide services for longer-term guests. Hostels may include such ancillary uses as cafeterias, meeting rooms and outdoor recreational services as well as one auxiliary residential Dwelling Unit for the purpose of on-site management.

indirectly lit sign means a Sign that is illuminated on any face by reflected light.

individual letter sign means a Sign that is made up of individual letters that are affixed to a surface (usually the building walls) which functions as the sign face.

Industrial Operation means a business engaged in secondary manufacturing, processing, assembling, disassembling, packaging, cleaning, servicing, testing, storing and distribution of materials, goods, products or equipment.

Industrial Sale and Rental means a facility for the sale or rental of equipment typically used in building, roadway, pipeline, oilfield and mining construction or agricultural production. This includes development used for the sale or rental of new or used heavy trucks, motor-homes, and manufactured homes, together with incidental maintenance services and the sale of parts and accessories. Typical uses include heavy truck dealerships, recreation vehicle sales and manufactured home dealerships.

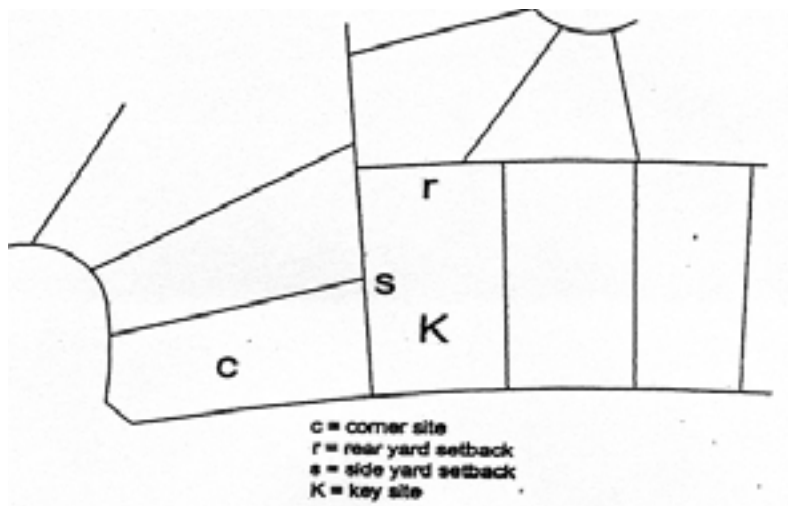
integrity means the ability of a property to visibly convey its significance with reference to location, design, setting, materials, workmanship, sense of place, and: association with historical events, lives of significant persons, or a work or entity of high artistic value.

interior site means a site other than a key site and bounded on both sides by a lot.

internally lit sign means a Sign that is illuminated on any sign face from a light source within the Sign or behind the face area where the face of the Sign and/or letters of the Sign are partially or fully translucent (e.g. channel lettering).

Kennel means a facility where dogs or cats or other domestic pets may be maintained, boarded, bred, trained or cared for or kept for the purposes of sale but excludes a Veterinary Clinic.

key site means an interior site lying immediately to the rear of a corner site.



kiosk means a location or structure housing a Temporary Business.

Laboratory means a facility for the purpose of scientific or technical research, investigations or

experimentation.

landing means a platform that primarily functions as an entrance into a building. Landings are a separate building element to balconies, decks and porches as they are not intended to provide or function as an amenity space. **[2020-16]**

landscaped area means that portion of a site which is to be landscaped pursuant to a development permit, and excludes areas used for parking and driveways.

landscaping means the modification and enhancement of a site or development through the use of the following elements: natural landscaping native to western Canada consisting of vegetation such as trees, shrubs, hedges, grass and other ground cover; hard landscaping consisting of non-vegetative materials such as brick, stone, concrete, tile and wood, excluding monolithic concrete and asphalt; and excludes all areas utilized for driveways and parking.

lane means a public thoroughfare with a right of way width of not greater than 9.0 m and not less than 6.0 m as defined in the Engineering Design and Construction Guidelines.

Laundry Facility means a facility including the cleaning and pressing of clothing or other fabric goods for retail purposes to the general public. This includes a laundromat. **[2021-24]**

Laundry Facility, Industrial means a non-retail laundry facility serving business establishments, usually on a contract basis.

LCD or light sign means a Sign that is displayed on a liquid crystal or similar display or through the arrangement of lights. These signs are considered internally lit and are prohibited.

Light Manufacturing means a business engaged in secondary manufacturing which involves no Outdoor Storage and which causes no environmental disturbances such as the creation of smoke, noise, dust or odors. **[2020-16]**

light pollution means any adverse effect of man-made light, often used to denote urban sky glow.

light trespass means light falling where it is not wanted or needed.

Liquor Store means a retail establishment licensed under provincial authority for the sale of any or all of beer, wine, or spirits for consumption off-premises. Full walls must physically separate the premises from any other business.

Live/Work Studio means a unit, which consists of both a residential and commercial component where the commercial portion of the unit provides ground floor street access. These uses may include small-scale business activities such as Arts and Crafts Studios with direct sales to the general public, Personal Service Businesses, professional services, home office or other businesses that are suitable/sensitive to coexisting amongst residential units allow residents to work from home.

loading space means a space to accommodate a commercial vehicle while it is being loaded or

unloaded.

Lodge means a facility for tourists that complies with the definition of Visitor Accommodation except that a Lodge has a minimum of five (5) accommodation rooms and cooking facilities which are not located in the accommodation rooms and where there are no areas for public retail, public entertainment functions, meeting rooms and public convention rooms. Accessory uses may include rental cabins, accommodation for permanent staff and one or more beverage rooms, dining rooms, Athletic and Recreational Facilities (Indoor and Outdoor) for use by the guests and other similar uses.

loft means the floor space above the eaveline and within the pitch of the roof of a building. The floor area of a loft measured to the walls or where the rooflines meet the floor, shall not exceed 60% of the area of the floor below the loft.

Logging or Logging Operation means the cutting of trees where the total area subject to cutting is greater than 500 m² or where the merchantable timber being cut on the parcel contains over 25 m³ of gross wood volume.

long-term bicycle parking means a variety of facility types and site plan layouts, and includes but is not limited to garages, storage rooms, covered bicycle parking, and lockers located either indoors or outdoors. These facilities are to be located in low pedestrian traffic areas with site design focused on ensuring the safety of users while maintaining high security with preference for exclusive access to these areas.

lot means:

- a. A quarter section; or
- b. A river lot shown on an official plan referred to in Section 32 of the Surveys Act that is filed or lodged in a land titles office; or
- c. A settlement lot shown on an official plan referred to in Section 32 of the Surveys Act that is filed or lodged in a land titles office; or
- d. A part of a parcel described in a certificate of title where the boundaries of the part are described in the certificate of title other than by reference to a legal subdivision; or
- e. A part of a parcel described in a certificate of title where the boundaries of the part are described in a certificate of title by reference to a plan of subdivision.

Lumber Yard means a facility where bulk supplies of lumber and other building materials are stored, offered or kept for retail sale and includes storage on or about the premises of such material but does not include retail sales of furniture, appliances or other goods not ordinarily used in building construction.

lumen means the unit of luminous flux that measures the power of light perceived by the human eye.

luminaire means the complete lighting unit, including the lamp, the fixture, and other parts.

luminance means at a point and in a given direction, the luminous intensity in the given direction produced by an element of the surface surrounding the point divided by the area of the projection of the element on a plane perpendicular to the given direction.

Manufactured Dwelling means a Dwelling Unit or series of Dwelling Units built in an enclosed off-site factory environment in one or more sections and intended to be delivered and assembled at a residential site. New Manufactured Dwellings shall be constructed to either the CSA Z241 or CSA A277 standards and installed to CSA Z240.10.1 standards or on a permanent foundation.

manufactured home park means a site which provides rentable space for long-term parking and occupancy of manufactured homes as defined under Manufactured Dwelling.

Medical Centre means a facility for the provision of human health services but also allows for medical research, testing and educational uses to accompany the provision of health services to the public and includes provision for overnight accommodation.

menu sign means a Sign that displays the food and drink menu prepared and served on-site. Menu signs are typically affixed to a wall or structure near the main entrance.

Medical Clinic means a facility for the provision of human health services by professional, accredited practitioners such as doctors and dentists, without overnight accommodation for patients.

mobile sign means a Sign that is not permanently attached to the ground or other permanent structures or a sign designed to be transported on wheels, or a Sign attached to or painted on a vehicle parked and visible from a public right-of-way, unless such a vehicle is used in the normal day-to-day operations of that business.

monument sign is a type of freestanding Sign that has a low overall height but substantial visual mass. Monument signs are mounted on a solid base rather than on one or more poles or standards. Monument signs are primarily used to indicate the name and/or address of a development or subdivision. Monument signs may also be used to advertise the name of a business where the business occupies the majority of the building (e.g. visitor accommodation).

mounting height means the height of the fixture or lamp above the ground.

multi-unit residential means a building that contains three or more Dwelling Units and includes Townhouse, Townhouse, Stacked and Apartment Buildings.

municipal historic resource means the designation, by municipal bylaw pursuant to Subsection 7.7, of an historic site and/or building.

municipal historic resource bylaw means a municipal bylaw governing a Historic Resource pursuant to Subsection 7.7.

municipal property tax means the tax amount levied by the Town based on the assessment established by the Town Assessor and the mill rate established annually by bylaw by the Town.

13 DEFINITIONS

The municipal property tax excludes the school taxes levied by the Province of Alberta.

municipal wayfinding sign means a Sign constructed by the Town of Canmore or with the Town's permission that is part of the comprehensive municipal wayfinding program. These signs may be on private or public land and may provide direction for people to other locations in the community and not necessarily on the same property as the Sign is located.

mural means a Sign that is painted or sculpted onto a building or site, and is artistic in content.

natural landscaping means the incorporation of native vegetation or local materials on a site and does not include hard-scaped materials.

NEF means noise exposure forecast.

NEF contour means a numbered contour as shown on Schedule 1, Subsection 1.10.5.

neon sign means a Sign that uses exposed tubes that emits light.

non-conforming building means a building that is lawfully constructed or lawfully under construction at the date this Bylaw or any amendment to it that affects the building or land upon which the building is situated on becomes affected, and that on the date this Bylaw or any amendment to it becomes effective does not, or when constructed will not, comply with this Bylaw.

non-conforming use means a specific use:

- a. Being made of land or a building or intended to be made of a building lawfully under construction at the date a land use bylaw or any amendment thereof affecting the land or building becomes effective, and which use
- b. On the date this Bylaw or any amendment thereof becomes effective does not, or in the case of a building under construction will not, conform with the Land Use Bylaw.

Office means a facility primarily for the provision of professional, management, administrative or consulting services.

Open Space means land designated or reserved for active or passive recreational use by the general public, or to be left in a natural state, and includes all natural and man-made landscaping, facilities, playing fields, gardens, buildings and other structures that are consistent with the general purpose of parks and open space. Uses may include tot lots, picnic grounds, pedestrian pathways and trails, landscaped buffers and playgrounds.

Outdoor Storage means the storing, stockpiling, or accumulating of goods, equipment or material in an area that is open or exposed to the natural elements, and includes vehicles, automobiles, recreational vehicles and boats, waste materials, debris or garbage.

overall sign area means the entire area of a Sign that can be enclosed within a single rectangle or combination of rectangles and includes any frame, structure, design element that forms an

integral part of the design.

overland flow means areas that are part of the flood hazard area but are outside of the floodway, and are typically considered special areas of the flood fringe.

PAH (Perpetually Affordable Housing) NOTE: The following description is for information purposes only. For a current definition of PAH contact the Canmore Community Housing Corporation (CCHC).

PAH refers to both equity and rental housing units that, through a variety of restrictions such as those imposed through a restrictive covenant, option to purchase, a land lease, or other document, is removed from the influence of the open real estate market. PAH units are not offered at market rates when ownership or tenancy changes, but remain at levels lower than the market would dictate. This means PAH units are controlled in such a way to make them perpetually affordable over a long period of time, or in perpetuity.

parcel means the aggregate of one or more areas of land described in a certificate of title by reference to a plan filed or registered in the Land Titles Office.

Parking Area means a portion of land, or of a building set aside for the parking of motor vehicles or bicycles as approved by the Development Authority.

Parking Structure means a structure for parking motorized vehicles and bicycles on tiers or floors which may be constructed above, below or at grade.

parking, tandem means two parking spaces, one behind the other, with one point of access to the maneuvering aisle.

patio means a platform, the height of which may be up to but does not exceed 0.6m from grade, that may or may not be attached to a building.

Pawn Shop [Repealed by 2020-16]

peace officer means:

- a. A person appointed as a bylaw enforcement officer pursuant to the Municipal Government Act as amended;
- b. A person appointed as a Peace Officer pursuant to the Peace Officer Act, as amended; or
- c. A police officer.

pedestrian pathway means a sidewalk, trail or other linear development or system designed to accommodate a variety of non-motorized modes of travel including but not limited to walking and riding bicycles.

person means any individual, corporation, firm, partnership, association, body corporate, company, society, owner, or occupant, but unless the context otherwise requires, does not

include the Town, or its employees.

Personal Service Business means a facility for the provision of services which are related to the care and appearance of the body, or the cleaning and repair of personal effects. This may include such businesses as barbershops, naturopathic and holistic services, physiotherapy clinics, chiropractic offices, hairdressers, beauty salons, tailors, dressmakers, shoe repair shops.

Pet Care Facility means a facility for the cleaning, grooming and care of domestic pets where no overnight kenneling or keeping of any animals occurs.

plan of subdivision means a plan of survey prepared in accordance with the relevant provisions of the Land Titles Act for the purpose of effecting subdivision.

plastic panel sign means a Sign constructed of a plastic material usually vinyl, PVC or coroplast.

political campaign sign means temporary Sign used for Municipal, School Board, Regional Health Authority, Provincial or Federal Political elections.

porch see the definition for deck. [2020-16]

poster sign means a temporary paper or similar Sign used generally for the advertisement of concerts or events that may direct people to another off-site location.

primary access means the location and manner of the principal means of vehicular access and egress from a site or building.

principal building means a building which accommodates the principal use of the site and includes any attached private garage or carport.

principal dwelling means a dwelling that is the primary use on a residential property and is larger in GFA than any Accessory Dwelling Unit that may also exist on a property.

principal use means the main purpose for which a building or site is used.

Printing Establishment means a retail business providing photocopying and/or commercial offset printing and retail services, or a facility providing non-retail commercial, industrial printing and publishing services normally using automated, web-type presses or full colour process printing.

private event sign means a Sign used to announce an event at a business. Events may include grand opening, new management, or sale.

product sign means a Sign that advertises a product that directly relates to the principal use of such premises (e.g. a shoe store with the word 'shoes'). Such signs may only advertise a generic product, and not a specific brand or product, unless that product is being manufactured on site.

projecting or hanging sign means a Sign that is double-sided and is mounted on a building at

right angles to the facade or is hung from a building overhang either parallel or at right angles to the facade.

property line means any legal surveyed boundary of a parcel of land.

protection area means Canmore Airport Vicinity Protection Area as shown on Schedule 1, Subsection 1.10.5.

provincial historic resource means the designation, by the Province of Alberta, of an historic site and/or building, pursuant to the Historical Resources Act.

Public Building means a facility owned or operated by or for the Municipality, the Provincial Government, the Federal Government or a corporation which is an agent of the Crown under federal or provincial statute for the purpose of furnishing services or commodities to or for the use of the inhabitants of the municipality.

public event sign means a Sign used to announce events and community celebrations of a public nature. Events may include music festivals, sport events, art events, or provincial health initiatives.

public notice sign means a Sign used by the municipality, or other government body, having a primary purpose of conveying information to the general public for input, guidance, warning, danger, hazard, or for the restraint of persons. These signs may be in the form of either an A-frame sign or a mobile sign.

public thoroughfare means any pathway, sidewalk, bridge, lane, service road, local street, collector street, arterial street, or highway.

Public Utility means any one or more of the following works or systems used to provide for public consumption, benefit, convenience or use:

- a. Water or steam;
- b. Sewage disposal;
- c. Public transportation operated by or on behalf of the community;
- d. Irrigation;
- e. Drainage, including storm water;
- f. Fuel;
- g. Electric power;
- h. Heat;
- i. Waste management; and
- j. Telecommunications; and

includes the product, service or matter that is provided for public consumption, benefit, convenience and use.

quality material means painted or stained wood, stone, painted or nonferrous (brushed, textured or satin) metal and weathered steel.

rapid drive-through vehicle service [Repealed by 2020-16]

real estate sign means a temporary Sign used for the advertisement of real estate that is for sale or lease.

recreational vehicle means a vehicle that may or may not be permitted to be used on the road. This includes but is not limited to motorcycles, snowmobiles, tent trailers, boats, travel trailers or similar recreational vehicles.

Recreational Vehicle Sanitary Pump Out Site means a facility for the disposal of wastes from recreational vehicles.

Recycling Depot means an indoor facility for the buying and/or temporary storage of household items for reuse where all storage is contained within an enclosed building.

relief means when elements of a Sign create depth or layers, and typically include backing material to bring the sign away from the façade, natural timber bordering material, or letters raised/recessed from the sign or building face.

required right-of-way (R.O.W.) setback means the land contiguous to the right-of-way of a public thoroughfare, designated by the Town as being required as additional future right-of-way.

residence has the same meaning as a Dwelling Unit.

residential use means the use of a property for the purpose of a residence by a person or persons, and does not include use of the property for commercial purposes. A residential use is one where the occupant has exclusive use of the specific property for an indefinite amount of time except in accordance with a tenancy agreement under the Residential Tenancies Act or the Mobile Homes Site Tenancies Act and for the use of which GST is not payable in accordance with the requirements in the Excise Tax Act of Canada.

resort means a comprehensively planned and operated development offering recreational, educational, cultural, convention and conference facilities, together with Visitor Accommodation, in a location chosen for the unique qualities and attributes of its natural physical setting. Appropriate uses within a resort could include, but are not limited to: Visitor Accommodation, private residences, Convention Facilities and conference facilities, indoor and outdoor Athletic and Recreational Facilities (e.g. golf courses, riding stables, tennis courts, health spas), retail and personal service facilities and other uses suitable to the location and compatible with adjacent land uses.

Resort Accommodation means a facility for visitors to a resort, which may be in the form of Visitor Accommodation, Lodges, Campground or other forms of tourist accommodation. [2020-16]

Resort Accommodation – TSMV means a building or group of buildings for visitors to the

resort area, which may be utilized for non-residential tenancies, is not intended to be used for permanent living accommodation, and includes Visitor Accommodation and other tourist accommodation, and fractionally owned property. Resort Accommodation may be in the form of Visitor Accommodation units, Apartment Resort Accommodation units, and Townhouse Resort Accommodation units/Townhouse, Stacked Resort Accommodation units, and will in all cases be considered as a commercial land use for the purposes of municipal assessment and taxation, with no restrictions or minimum or maximum occupancy periods.

resource landowner means the owner of a historical resource.

Retail Sales means the use of a building in which the primary function is for the sale of finished goods or products to customers, and also includes rental services.

retaining wall means a vertical structure that serves to hold soils/fill materials and which creates a difference in ground elevation between the faces of the structure.

risk is a measure of the probability and consequence of an adverse effect in relation to health, property, environment or other things.

risk tolerance criteria means the risk-based approach to the management of geohazards established by the Town, as may be amended from time to time, to set out the level of tolerable risks for existing and new development.

roof sign means a Sign that projects above a roofline to which the sign is attached, or is erected upon or above a roof or parapet of a building to which the sign is attached.

rooftop terrace means an outdoor amenity space located on top of a building. [2021-24]

satellite dish antenna means a parabolic antenna including foundation used for the reception of satellite transmitted television or radio waves.

Scrap Yard means a facility where materials are stored temporarily on the site, usually outdoors, for reprocessing into scrap materials for sale or where usable parts for used goods, equipment or vehicles are sold.

screening means a visual separation between sites, districts, or land use activities provided by a fence, wall, berm or natural landscaping.

semi-cutoff fixture means the fixture that provides some cutoff, but less than a full-cutoff fixture.

Shared Ownership Accommodation means a unit or units that may include sleeping, washing, sanitary and kitchen facilities, and which are intended for use by an owner, owners or invitees of the owner, and where the ownership and use of the unit or units is shared between the owners, and includes such things as fractional ownership, residence clubs, resort clubs, points ownership systems, right to use programs and timeshare ownership. Shared Ownership Accommodation is not a residential use.

Shared Ownership Accommodation may demonstrate any one or more of the following characteristics:

- a. The ability of, or need for, an owner to reserve a unit through a reservation system;
- b. The monitoring and tracking of the use of a unit or units by an owner;
- c. The possible collection and remittance of GST in accordance with the requirements of the Excise Tax Act of Canada in relation to the use of the unit or units by the owners;
- d. The ability of an owner to use or have a right to use a unit for a defined limited period of time on a renewing basis;
- e. The ability of an owner to use or have a right to use a unit for a defined period of time within a time period such as a month or a year;
- f. The ability of an owner to use more than one unit within a development or developments;
- g. The ability of an owner to trade or exchange use of a unit or units with other owners in the same or other development or developments;
- h. The ability of an owner to use a unit or units for less than a 28 day period.

Shopping Centre means a unified group of Retail Sales stores or Personal Service Businesses on a site which is planned, developed and managed as a single operating unit with on-site parking.

short-term bicycle parking means simple bicycle racks located near building entrances with a design focus on convenience, utility, and security.

show home means a Dwelling Unit within a residential building, which is used for display or “show” by a developer, realtor or builder as an example of the type of Dwelling Unit which may be constructed within an approved subdivision or development for the purpose of selling Dwelling Units within the development.

sight angle means the angular deviation, measured in degrees, of a sight line from a horizontal plane established from a point of origin.

Sign means a device, structure, or fixture intended for the advertising of, or calling attention to, any person, business, matter, object, event, or activity.

sign face area means the total area around the maximum extent of the letters, advertising message or announcement that can be enclosed within a single rectangle or combination of rectangles.

sign validation sticker means a sticker issued by the Town, and affixed to an approved Sign, that confirms a Development Permit or a Certificate of Signage Conformance has been issued for that Sign.

significance means the meaning attached to a resource; the reason why a resource is important.

similar use means a specific use of land or of a building that is not expressly mentioned in this Bylaw but which the Development Officer, Canmore Planning Commission or Subdivision Development and Appeal Board has determined to be similar in character and purpose to a listed permitted or discretionary use in the district in which such use is proposed.

site means an area of land on which a development exists or for which an application for a development permit is made containing not less than one lot.

site area means the total horizontal area enclosed within the property lines of a site.

site coverage means the figure obtained when the projected area of the outside of the outermost walls, excluding steps, eaves, cantilevered balconies and decks less than 4.0m above grade, of all the principal and auxiliary buildings is expressed as a percentage of the total parcel area.

site depth means the mean horizontal distance between the front and the rear boundaries of the site.

site specific steep creek risk assessment means a risk assessment for a proposed development in a steep creek hazard area that has previously been assessed at an alluvial fan and basin level of detail.

site width means the distance between the side property lines of the lot calculated as the average between the length of two straight lines connecting points located at the front and rear yard setbacks on the side property lines.

slope adaptive housing means housing on slopes 15% or greater which incorporates specific building and site design methods that minimize the impact of site development on the natural environment, ensures slope stability, and responds positively to the aesthetic opportunities presented by construction on sloping lands. Techniques to achieve this normally include: design of rooflines and building massing designs to echo the angles and shapes of the surrounding landscape; breaking up of the building mass to conform to the slope; and the use of indigenous materials and compatible colours.

spotlight means a fixture designed to light only a small, well-defined area.

Staff Accommodation means housing units located on the same site as a business for providing accommodation for employees of that business and their dependents. The maximum occupancy for Staff Accommodation units is 2 adults per bedroom. Staff Accommodation are ancillary to the business for which they are providing housing and therefore are not intended to be on a separate title from that of the business.

statement of significance means a statement as to why a place/object is important and what parts of it must be conserved to understand its significance. This forms part of a formal designation as a Municipal Historic Resource under a Municipal Historic Resource Bylaw.

steep creek hazard area means an area that is subject to debris floods and debris flows.

13 DEFINITIONS

steep creek study area means the area in and around steep creeks for which a hazard and risk assessment has not been completed and for which it can be reasonably expected that a hazard exists.

Storage Facility means a building or group of buildings used for internal storage of materials and goods that are not considered hazardous or toxic.

storey means the space between the top of any floor and the top of the next floor above it and, if there is no floor above it, the portion between the top of the floor and the ceiling above it. If the top of the floor directly above a basement is more than 1.8 m above grade, such basement will be considered a storey for the purposes of this Bylaw.

storey, half means the space between the uppermost floor ceiling and the building roof structure, which is under a gable, hip or gambrel roof, with wall plates on at least two opposite walls; and is no more than 0.6m above the ceiling of the storey below.

street means a public thoroughfare including a bridge affording the principal means of access to abutting sites and includes the sidewalks and the land on each side of and contiguous to the prepared surface of the thoroughfare.

street line means a lateral boundary of a street right-of-way.

street, arterial means a public thoroughfare that carries large volumes of all types of traffic with limited access points as described and identified in the current Engineering Design and Construction Guidelines.

street, collector means a roadway designated in the current Engineering Design and Construction Guidelines for the Town of Canmore as a collector road intended to gather traffic from local roads in order to conduct it to arterials.

street, local or residential means an undivided roadway where all intersections are at grade, having direct access permitted from adjacent properties and designed to permit low speed travel within a neighbourhood.

structure means anything constructed or erected on the ground or attached to something having a fixed location on the ground and may include buildings, walls and light standards, but does not include fences or signs.

studio means a self-contained Dwelling Unit that combines a living room, bedroom and kitchen into a single room.

subdivision means the division of a parcel of land by a legal instrument and the word "subdivide" is the corresponding verb.

subdivision authority means the body designated by the Town of Canmore pursuant to the Municipal Government Act as having the authority to exercise subdivision powers.

take-off/approach surface means a take-off and approach surface as shown on Schedule 4,

Subsection 7.5.7.

taxi services means a person or business who holds a subsisting Taxi Broker's Licence pursuant to the Town bylaws. This can include a taxi broker, taxi broker's office, taxi dispatch office and Taxi Stand.

Taxi Stand means a development used for the stationing of in-service taxis.

Temporary Business means a business which normally is operated for fewer than six months per year.

Temporary Staff Housing means the temporary conversion of a Visitor Accommodation unit to provide housing for employees.

Tourist Home means a Dwelling Unit operated as a temporary place to stay, with or without compensation, and includes all vacation rentals of a Dwelling Unit. The characteristics that distinguish a Tourist Home from a Dwelling Unit used as a residence may include any of the following:

- a. The intent of the occupant to stay for short-term vacation purposes rather than use the property as a residence; and/or
- b. The commercial nature of a Tourist Home; and/or
- c. The management or advertising of the Dwelling Unit as a Tourist Home or "vacation property"; and/or
- d. The use of a system of reservations, deposits, confirmations, credit cards or other forms of electronic payment.

These examples do not represent an exhaustive list of operating practices that may constitute a Tourist Home.

Town of Canmore or "Town" means the corporation of the Town of Canmore or the land lying within the corporate limits of the Town, as the context requires.

Townhouse means a single building comprised of three or more Dwelling Units separated from each other by walls extending from foundation to roof, with each Dwelling Unit having a separate, direct, at grade entrance. This includes all row, linked, patio, garden court or other housing which meet these criteria. A Townhouse development may consist of a group of buildings each of which contains three or more Dwelling Units.

Townhouse, Stacked means a multiple-unit dwelling comprised of three or more Dwelling Units and constructed such that one or more Dwelling Units are located totally or partially above another Dwelling Unit, and each having a separate, direct entrance from grade or a landscaped area. A Townhouse, Stacked development may consist of a group of buildings each of which contains three or more Dwelling Units.

trail means a loose or compact, permeable surface, either natural or maintained, that supports non-motorized transportation.

13 DEFINITIONS

Transportation Terminal means a facility utilizing a building, structure, land or any or all of them for the processing and loading and unloading of passengers and baggage to and from buses, vans, trains or similar conveyances available for use by the general public.

Trucking Establishment means a facility for the purpose of storing and dispatching trucks and tractor trailers for transporting goods.

unsightly sign means a Sign that has experienced 25% or more loss of finish through chipping, fading, discolouration, excessive dirt build up; or, if the sign is physically damaged on either the overall sign area or structure so it is no longer safe or installed in the approved location.

usable yard space means as space that contains amenities to encourage its use, allows for access to the sun, is directly accessible from the dwelling, is fenced or otherwise defined from adjacent public spaces, and has reasonable privacy from adjacent dwellings.

Veterinary Clinic means a facility for the care of animals but does not include outdoor pens, runs or enclosures.

violation tag means a form requesting voluntary payment for a fee respecting breach of this bylaw which form does not commence court proceedings pursuant to the Provincial Offenses Procedures Act and any amendments thereto. This form must contain the information, and be in the format required by the Chief Administrative Officer or the Chief Administrative Officer's designate.

violation ticket means a violation ticket issued pursuant to Part 2 or Part 3 of the Provincial Offenses Procedures Act, and any amendments thereto, which ticket commences court proceedings under that legislation.

visitor means a person visiting someone or somewhere, especially socially or as a tourist rather than for long-term residential purposes or needs.

Visitor Accommodation means a building or group of buildings not intended for residential use where sleeping facilities are provided for persons for periods of up to 30 days and which may also contain a variety of services and amenities for the benefit of guests.

Warehouse means a building for the storage of materials or commercial goods.

Wholesale Sales means a facility for the wholesale or retail sale of a limited range of bulky goods .

Wildlife Corridor means an area which provides or is designed to provide connectivity between patches of wildlife habitat. Wildlife corridors generally do not fulfill the requirements of wildlife habitat patches except for the physical security provided by vegetative cover or other buffers from development.

Wildlife Habitat Patch means an area accessible to wildlife via wildlife corridors or other routes and is an area large enough to provide for one or more of the following wildlife needs: feeding, breeding, thermal regulation, security and resting.

window sign means a Sign that is placed in or on a window of a building and is visible from the exterior of the building.

yard means an unobstructed open space on site.

yard, front means the yard which extends between the side boundaries of a site and in depth from the front property line of the site to the front of the principal building. In the case of a corner site the narrower of the two boundary lines abutting the street may be considered the front yard. In circumstances where the front yard is not clearly defined, the Development Authority may determine what constitutes the front yard.

yard, rear means the yard which extends between the rear property line of a site and the rear yard setback as prescribed in the district. In circumstances where the rear yard is not clearly defined, the Development Authority may determine what constitutes the rear yard or yards.

yard, side means the yard which extends between a side property line of a site and the sideyard setback as prescribed in a land use district. In circumstances where a sideyard is not clearly defined, the Development Authority may determine what constitutes the sideyard(s) of a site.

13 DEFINITIONS

SECTION 14 DIRECT CONTROL DISTRICTS

- 14.1 Bridge Road Townhouse DC District - Lots 12, 13 and 14, Block 1, Plan 3608GP [26(Z)86DC]
- 14.2 Decommissioned Landfill DC District - Lot 2, Block 5, Plan 8211057 – Limited-Use Industrial District [27(Z)86DC]
- 14.3 Mine Manager’s House DC District [29(Z)86DC]
- 14.4 Rundle Crescent Townhouses DC District [3(Z)93DC] Lots 1, 2, 3 and 4, Block 1, Plan 4171JK
- 14.5 Canmore Collegiate School DC District [6(Z)93DC]
- 14.6 Silvertip Golf Course DC District [20(Z)93DC & 14(Z)95DC]
- 14.7 Peaks of Grassi Small Lot DC District [13-96DC]
- 14.8 Country Inn Direct Control District [49-96DC]
- 14.9 Three Sisters Resorts DC District [1-98DC; 16(Z)2001DC; 18(Z)2002 DC; 15(Z)2002 DC; 34(Z)2003 DC; 36(Z)2004 DC; 07(Z)2006]
- 14.10 Seventh Street DC District [Bylaw 09-99]
- 14.11 Silvertip Trail DC District [Bylaw 09-99]
- 14.12 Spray Village DC District [Bylaw 09-99]
- 14.13 Mallard Alley Guest House DC District [23(Z)2001DC]
- 14.14 Civic Centre DC District [27(Z)2002 DC]
- 14.15 Armstrong Place Comprehensive Single Family Residential DC District [28(Z)2004]
- 14.16 GRD Three Sisters Creek Golf Course and Recreation Area DC District [36(Z)2004]
- 14.17 Paintbrush Ridge TSMV Comprehensive Residential DC District [05(Z)2005]
- 14.18 Stewart Creek Golf Course Club House DC District [17(Z)2005]
- 14.19 SCMV-C Spring Creek Mountain Village Visitor Accommodation DC District [25(Z)2005]
- 14.20 TS-RC Three Sisters Resort Core DC District [27(Z)2006 DC]
- 14.21 Woodside Lane Residential Single Family Detached Plus DC District [31(Z)2006]
- 14.22 Silvertip Village Core DC District [Bylaw 37(Z)2007]
- 14.23 Palliser Perpetually Affordable Housing Apartment DC District [03(Z)2008]
- 14.24 TC-1 Town Centre Creekside DC District [03(Z)2009DC]
- 14.25 Palliser Attainable Housing Apartment DC District [04(Z)2009]
- 14.26 R1WL - Residential Single-Family Detached Wetland DC District [18(Z)2009]
- 14.27 SCMV-CR - Spring Creek Mountain Village Comprehensive Residential DC District [22(Z)2009] [2019-18]
- 14.28 Three Sisters Drive-NuWest Townhouse DC District [Based on Development Control Resolution #41 passed June 24, 1980]
- 14.29 Multiplex District [DC 23(Z)2010]
- 14.30 Paintbrush Ridge TSMV Comprehensive Residential DC District [05(Z)2013]

14 DIRECT CONTROL DISTRICTS

- 14.31 Stewart Creek Golf Course Resort Accommodation Comprehensive DC District [2013Z-23]**
- 14.32 Canmore Hotel Direct Control District [2015-15]**
- 14.33 Coast Apartment DC District [2015-25]**
- 14.34 Palliser Moustache Rental Apartment Direct Control District [2016-23]**
- 14.35 Old Daycare Lands DC District [2016-32]**
- 14.36 7th Street & 7th Avenue Direct Control District [2016-28]**
- 14.37 120-130 Kananaskis Way Direct Control District [2017-30]**
- 14.38 Peaks Landing DC District [2018-14]**
- 14.39 Van Horne Direct Control District [2020-14]**

14.1 BRIDGE ROAD TOWNHOUSE DC DISTRICT - LOTS 12, 13 AND 14, BLOCK 1, PLAN 3608GP [26(Z)86DC]

14.1.1 Purpose and Intent

The purpose of this district is to provide for the option of townhouse development at similar density to single family-detached and duplex developments in order to increase the variety of dwelling types.

14.1.2 Permitted Uses

Duplex

Parks and Playgrounds

Public Utilities

Home Occupation - Class 1

14.1.3 Discretionary Uses

Accessory Building

Bed and Breakfast

Cultural Establishment

Day Care Facility

Long-Term Care Facilities

Home Occupation - Class 2

Public and Quasi Public Buildings

Seniors Housing/Supportive Living Facility

Signs

Single Family Detached Dwelling

Stacked Townhouses

Townhouses

14.1.4 General Requirements

In addition to Section 2: General Regulations, the following rules shall apply:

14.1.4.1 Minimum Requirements

- a. Area of Site:
 - i. Single Family-Detached Dwellings: 409 m²
 - ii. Duplexes: 557 m²/278 m² per dwelling unit
 - iii. Townhouses and Stacked Townhouses: 230 m² per dwelling unit
- b. Width of Site:
 - i. Single Family-Detached Dwellings: 12 m
 - ii. Duplexes: 15 m per building with a minimum of 6 m per dwelling unit
 - iii. Townhouses and Stacked Townhouses: 23 m
- c. Front Yard:
 - i. Key Sites: 4.5 m
 - ii. All other sites: 6.0 m

14 DIRECT CONTROL DISTRICTS

- d. Side Yards:
 - i. Principal Buildings: 1.5m for each side yard except 3.0m for one side yard on a laneless site where there is no garage or carport proposed
 - ii. Accessory Buildings:
 - Street side of a corner site: 1.5m
 - All other sites: 1.0m
- e. Rear Yard:
 - i. Principal Buildings: 7.5m
 - ii. Accessory Buildings:
 - Private garages with access off a lane: 1.5m
 - All other accessory buildings: 1.0m
- f. Gross Floor Area per Unit:
 - i. Single Family-Detached Dwellings: 83.6m² with a minimum of 65m² on the main floor
 - ii. All other Dwelling Units: 65m²
- g. Landscaping for Townhouses and Stacked Townhouses: 40% of the site area plus street boulevards

14.1.4.2 Maximum Limits

- a. Height of Buildings:
 - i. Principal Buildings: 2 storeys plus loft or 9.7m whichever is lower
 - ii. Accessory Buildings: 5.0m
- b. Coverage of Site:
 - i. All buildings including Accessory Buildings: 40% of the site
 - ii. All accessory buildings: 10% of the site
- c. Number of Dwelling Units:
 - i. Townhouse: 4
 - ii. Stacked Townhouse: 6

NOTE: The setbacks and other regulations described in this district are minimum requirements. Depending on the location of a proposed development (e.g. a corner lot, a site adjacent to a waterbody or a location within the Wellhead Protection Area) other regulations in the Land Use Bylaw – for example Section 2.4, Setback Regulations - may increase or otherwise vary these requirements.

14.1.5 Development Authority

- 14.1.5.1 The Development Authority shall be the Canmore Planning Commission.

14.1.6 Sustainability Screening Report

- 14.1.6.1 A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with

Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.1.7 Schedules

Schedule "A" shows the location of this District.



14.2 DECOMMISSIONED LANDFILL DC DISTRICT - LOT 2, BLOCK 5, PLAN 8211057 – LIMITED-USE INDUSTRIAL DISTRICT [27(Z)86DC]

14.2.1 Purpose and Intent

The purpose and intent of this District is to provide for a limited range of industrial uses within an area containing a decommissioned landfill.

14.2.2 Permitted Uses

Parks and Playgrounds
Public and Quasi Public Buildings
Public Utilities

14.2.3 Discretionary Uses

Accessory Building
Bulk Fuel Station
Construction Trade Shop
Home Improvement Centre
Industrial Equipment Sales and Rentals
Industrial Operations
Lumber Yard
Outdoor Vehicle Storage
Parking Areas
Recycling Depot
Signs (advertising, directional, identification)
Storage Yards
Trucking Terminals
Warehousing

14.2.4 General Requirements

In addition to Land Use Bylaw Section 2: General Regulations, the following rules shall apply.

14.2.4.1 Minimum Requirements

- a. Area of Site: 929m²
- b. Width of Site: 15m
- c. Front Yard: 30.0m from R3 and PD Districts; 7.5m from all other districts
- d. Side Yard: 30.0m from R3 and PD Districts; 7.5m from all other districts
- e. Rear yard: 30.0m from R3 and PD Districts; 7.5m from all other districts

14.2.4.2 Maximum Limits

Height of Buildings: 11.0m

14.2.4.3 Landscaping: The boulevard and a minimum of 10% of the site area shall be landscaped and be maintained in accordance with the plan approved by the Development Authority.

14.2.5 Special Requirements

- 14.2.5.1 No development application shall be approved and no development permit shall be issued unless a report satisfactory to the Town and Alberta Environment confirms that the development problems associated with the specific proposed development and the land being once used as a sanitary landfill site have been examined and resolved. Such report is to include examination and resolution of possible subsidence problems and possible danger arising from accumulations of methane or other gases.
- 14.2.5.2 Outdoor Vehicle Storage: Outdoor Vehicle Storage shall be approved on an annual basis; and Outdoor Vehicle Storage shall be screened to the satisfaction of the Approving Authority.
- 14.2.5.3 Storage Yards: Storage yards are to be screened and fenced to the satisfaction of the Development Authority.

14.2.6 Development Authority

- 14.2.6.1 The Development Authority shall be the Canmore Planning Commission.

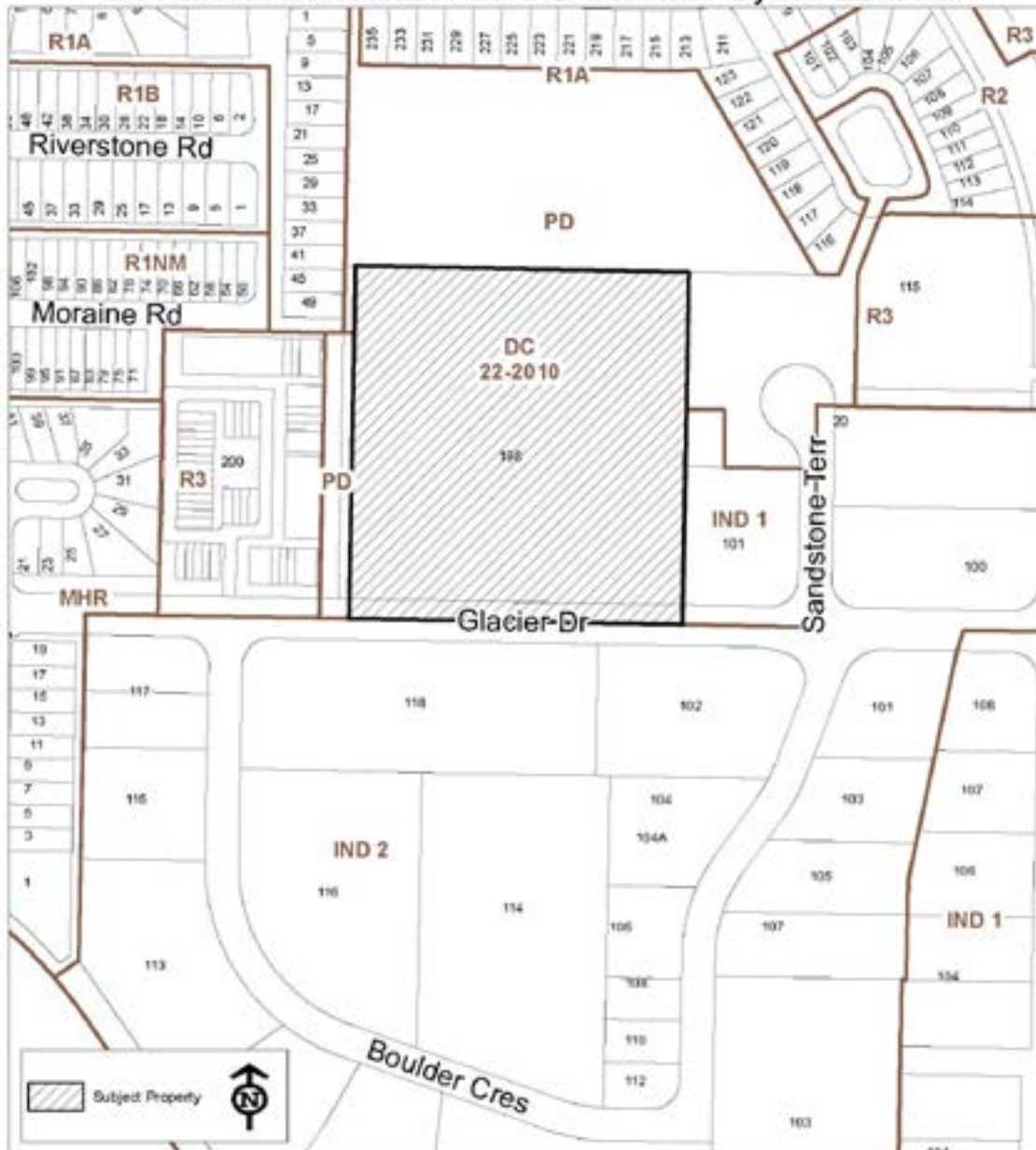
14.2.7 Sustainability Screening Report

- 14.2.7.1 A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.2.8 Schedules

Schedule "A" attached, forms part of this Bylaw.

Schedule "A"
Decommissioned Landfill DC District - Bylaw 22-2010



14.3 MINE MANAGER’S HOUSE DC DISTRICT [29(Z)86DC]

14.3.1 Purpose and Intent

The purpose and intent of this Direct Control District is to provide for the comprehensive planning design of a site (Lot 24, Block 5, Plan 7610775) designated as a Registered Historical Resource under the Historical Resources Act.

This District provides for:

- a. The retention and conservation of a significant historical building (Canmore Mine Manager’s House)
- b. Re-use of the building and its site as a functional and productive element of Canmore; and
- c. The control of new construction to ensure that alterations to the site will be harmonious with the existing building in terms of proportions, materials, mass and building height.

14.3.2 Permitted Uses

None

14.3.3 Discretionary Uses

(Subject to Council’s review and approval of comprehensive development plans)

Accessory Buildings

Eating Establishments

Lodging House

Townhouses

Signs (identification)

14.3.4 Development Concept

The development must complement the existing historical building, minimize the impact on the natural amenities of the site and assure the necessary slope stability and bank retention measures are taken.

14.3.5 Development Requirements

14.3.5.1 Comprehensive Development Plans

Comprehensive development plans including but not limited to the building design, site contours and layout, exterior finishes and colour, landscaping, parking and access shall require approval by Council prior to the issuance of a development permit.

14.3.5.2 Residential Density

The development shall not exceed a density of 11 dwelling units.

14.3.5.3 Height of Buildings

- a. The height of new buildings shall be of a scale which complements the existing historic building. The maximum permitted height limits shall be as follows:
 - i. Townhouses: 9.5m or 3 storeys whichever is lower.

14 DIRECT CONTROL DISTRICTS

- b. Additions to the existing building shall not exceed the height of the existing building.

14.3.5.4 Gross Floor Area per Unit

Minimum requirement for a dwelling unit: 60m².

14.3.5.5 Building Design and Appearance

Design and appearance of the proposed new development shall emphasize the architectural elements of the existing building. Exterior finishes, colour and texture shall be complementary and compatible to the existing building and shall ensure retention of the architectural features of the original design. Modification to the exterior of the existing structure shall only be made in the advent of necessary structural reinforcement or repairs. All mechanical equipment shall be screened from public view.

14.3.5.6 Site Coverage

All buildings including accessory buildings shall not exceed 40% of the site.

14.3.5.7 Setbacks

Buildings and accessory facilities shall be suitably located with respect to slope stability.

14.3.5.8 Landscaping

A percentage of the site area determined by Council shall be landscaped. Existing vegetation shall be retained where possible particularly where removal would affect slope stability.

14.3.5.9 Amenity Areas

There shall be provided on-site amenity areas for recreational and landscaping purposes in addition to those areas needed for residential and non-residential buildings, driveways and parking areas.

14.3.5.10 General Land Use Regulations and Provisions

- a. Approval of comprehensive development plans shall be subject to the relevant Land Use regulations and provisions set forth in Section 2: General Regulations and Section 7.7, Historic Resources, of the Land Use Bylaw.
- b. All signs located on the existing historical building shall conform to the architectural features of the building in terms of location, size and materials.

14.3.5.11 Sustainability Screening Report

A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.3.6 Development Authority

14.3.6.1 The Development Authority for signs and accessory buildings shall be the Development Officer.

14.3.6.2 The Development Authority for all other developments shall be the Municipal Council of the

Town of Canmore.

14.3.7 Schedules

Schedule A shows the location of this District.



14.4 RUNDLE CRESCENT TOWNHOUSES DC DISTRICT [3(Z)93DC] LOTS 1, 2, 3 AND 4, BLOCK 1, PLAN 4171JK

14.4.1 Purpose and Intent

The purpose and intent of this District is to provide for the development of a multi-unit townhouse complex. The Land Use Rules for Residential Low Density Multiple Unit District (R-2A) shall apply unless otherwise specified.

14.4.2 Permitted Uses

Duplex Dwelling
Home Occupation - Class 1
Parks and Playgrounds
Public Utilities
Stacked Townhouses
Townhouses

14.4.3 Discretionary Uses

Accessory Building
Cultural Establishment
Day Care Facilities
Long-Term Care Facilities
Home Occupation - Class 2
Manufactured Homes
Public and Quasi-Public Buildings
Seniors Housing/Supportive Living Facility
Signs

14.4.4 Applications for Development Permit

Applications for development permits shall consist of comprehensive plans. All plans submitted shall comply with Section 1, Administration, of the Land Use Bylaw and without restricting the generality of the foregoing, shall show in detail:

- a. Location of all buildings and structures;
- b. Landscaped areas;
- c. Street design and pedestrian movement through the area;
- d. Provision for emergency access;
- e. Provision for utilities; and
- f. The relation of the site to the surrounding area.

14.4.5 Development Requirements

These requirements are in addition to those listed in the R2A Residential Low Density Multiple Unit District

- 14.4.5.1 The site shall contain an open space/pedestrian system, which integrates with the existing

systems on adjacent lands.

- 14.4.5.2 The site shall be landscaped in accordance with a landscaping plan which shall emphasize the retention, where possible, of existing coniferous trees and native vegetation.
- 14.4.5.3 Alterations of existing natural contours shall only occur in accordance with a detailed grading plan, which will take into account site drainage.
- 14.4.5.4 The height of the building shall be restricted to a maximum height of 8.5m. No height variances will be granted.
- 14.4.5.5 The number of dwelling units shall be restricted to a maximum of thirty (30).
- 14.4.5.6 All buildings located on Rundle Drive shall be setback 9.14m from the property line to building foundation.
- 14.4.5.7 The minimum required rear yard building setback from the west property line will be 3.0m.
- 14.4.5.8 The minimum required building setback from the north and south property lines will be 6.0m.
- 14.4.5.9 A 1.5m relaxation will be granted for building projections or balconies for any structure built on the north corner of Rundle Crescent and Rundle Drive.
- 14.4.5.10 The minimum parking requirements will be 3.5 spaces per dwelling.
- 14.4.5.11 The only vehicle access to the site will be provided by one roadway located on Rundle Drive.
- 14.4.5.12 Except as specifically modified within this Direct Control Bylaw, the provisions of the Land Use Bylaw, including Section 8, General Regulations, shall apply.

14.4.6 Development Authority

- 14.4.6.1 The Development Authority shall be the Canmore Planning Commission.

14.4.7 Sustainability Screening Report

- 14.4.7.1 A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.4.8 Schedule

Schedule "A" shows the location of this District.

Schedule "A"
Rundle Crescent Townhouse DC District



14.5 CANMORE COLLEGIATE SCHOOL DC DISTRICT [6(Z)93DC]

Lot "R" 36 PLAN 7810778; and
PTN OF SW 1/4 SECTION 5, TOWNSHIP 25, RANGE 10 WEST 5 MERIDIAN
(TITLE NO. 1222Y7)

14.5.1 Purpose and Intent

The purpose and intent of this Bylaw is to provide for the development of a comprehensively planned high school.

14.5.2 Permitted Uses

Accessory Buildings directly associated with a Comprehensively Planned High School
Comprehensively Planned High School

14.5.3 Discretionary Uses

Accessory Uses
Signs

14.5.4 General Requirements

- 14.5.4.1 Applications for development permit shall be submitted to the Municipal Council, as Development Authority and shall consist of comprehensive plans for a high school. All plans submitted shall comply with Section 1, Administration, of the Land Use Bylaw and without restricting the generality of the foregoing, shall show in detail:
- a. Location of all buildings and structures;
 - b. Landscaped areas;
 - c. Provision for vehicular and pedestrian movement through the site;
 - d. Provision for parking on site and on adjacent lands;
 - e. Provision for emergency access;
 - f. Provision for utilities; and
 - g. The relation of the site to the surrounding area.
- 14.5.4.2 Development of the site shall be restricted to a high school and ancillary buildings and facilities.
- 14.5.4.3 The site shall contain an open space/pedestrian system, which integrates with the existing systems on adjacent lands.
- 14.5.4.4 A parking study is to be conducted to determine the overall parking requirements. The impact of the use of adjacent municipal parking facilities should be recognized within the parking study.
- 14.5.4.5 The impact of any proposed changes to access provisions in the vicinity of the site are to be documented.
- 14.5.4.6 The site shall be landscaped in accordance with a landscaping plan, which shall emphasize the retention, where possible, of existing native vegetation.

14 DIRECT CONTROL DISTRICTS

- 14.5.4.7 Alterations of existing natural contours shall only occur in accordance with a detailed grading plan, which will take into account site drainage.
- 14.5.4.8 The height of the structure shall be evaluated relative to the surrounding land uses and adjacent structures and should recognize such factors as the high ground water table and the functional requirements of the uses within the buildings.
- 14.5.4.9 Site planning shall incorporate a 30 metre buffer strip running parallel and adjacent to the northeast bank of Policeman's Creek.
- 14.5.4.10 Except as specifically modified within this Direct Control Bylaw, the provisions of the Land Use Bylaw shall apply.
- 14.5.4.11 A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.5.5 Development Authority

- 14.5.5.1 The Development Authority for Accessory Uses and Signs shall be the Development Officer.
- 14.5.5.2 The Development Authority for all other uses shall be the Municipal Council of the Town of Canmore.

14.6 SILVERTIP GOLF COURSE DC DISTRICT [20(Z)93DC & 14(Z)95DC]

PTN. LOT 2, PLAN 8610873

PTN. LOT 3 and 8, PLAN 8610873

PTN. LOT 6, PLAN 8610873

PTN. S. 1/2, Section 4, TOWNSHIP 25, RANGE 10, WEST 5 MERIDIAN

PTN. N. 1/2, Section 33, TOWNSHIP 24, RANGE 10, WEST 5 MERIDIAN

PTN. N. 1/2, Section 33, TOWNSHIP 24, RANGE 10, WEST 5 MERIDIAN

14.6.1 Purpose and Intent

The purpose of the land use district shall be to provide for a comprehensively planned golf course integrated into the adjacent destination resort hotel complex.

14.6.2 Permitted Uses

Comprehensively Planned Golf Course including:

- a. Driving Ranges and Putting Greens
- b. Clubhouse
- c. Equipment Storage Facilities or Buildings

14.6.3 Discretionary Uses

Accessory Use

Signs

14.6.4 General Requirements

- 14.6.4.1 Applications for development permits shall be submitted to the Municipal Council, as Development Authority and shall consist of comprehensive plans for a golf course or of amendments or additions to developments previously approved by development permit. All plans submitted shall comply with the Land Use Bylaw and be generally in accordance with the plans and drawings contained within the Hyatt Regency Canmore at Banff National Park Master Plan Report. Without restricting the generality of the foregoing all plans shall show in detail:

- a. Golf course tees, fairways and green areas;
- b. Irrigation and storm water retention systems;
- c. Landscaped areas and landscaping materials;
- d. Provisions for vehicular movement through the site;
- e. Provisions for roads and utilities; and
- f. The relation of the site to the surrounding area.

- 14.6.4.2 With respect to the golf course clubhouse application for development permit, it shall be submitted to the municipal Council, as approving authority and shall consist of comprehensive plans for a golf course clubhouse or of amendments or additions to development previously approved by development permit. All plans submitted shall comply with Section 1, Administration, of the Land Use Bylaw and be generally in accordance with the plans and drawings contained within the Hyatt Regency Canmore at Banff National Park Master Plan

14 DIRECT CONTROL DISTRICTS

Report, without restricting the generality of the foregoing all plans shall show in detail:

- a. Building design character and appearance
 - b. Site layout
 - c. Exterior finishes and colors
 - d. Landscaped areas and landscaping materials
 - e. Parking areas and facilities
 - f. Provisions for vehicular movement through the site
 - g. The relation of the site to the surrounding area and the relationship of form, massing, structure, materials and spatial relations of the development
- 14.6.4.3 The height of the Golf Course Clubhouse calculated in accordance with Section 2, General Regulations, of the Land Use Bylaw, shall not exceed ten (10) metres.
- 14.6.4.4 Development of the site shall be restricted to an eighteen-hole golf course, clubhouse and ancillary buildings and facilities.
- 14.6.4.5 The site shall have located within it public and private footpaths and or equestrian trails, or both and a system of open spaces which shall be integrated into an overall network of public and private footpaths, equestrian trails and open spaces generally as outlined in the Hyatt Regency Canmore at Banff National Park Mater Plan Report. Existing trails shall be incorporated into the overall network where possible.
- 14.6.4.6 The site shall be comprehensively landscaped in accordance with a plan, which shall emphasize the retention, where possible, of existing native vegetation. The use of indigenous species for additional landscaping is encouraged. Landscaping shall take into account and augment the footpaths and equestrian trails.
- 14.6.4.7 Alteration of existing natural contours shall only occur in accordance with a comprehensive grading plan, which shall take into account drainage and soil erosion concerns.
- 14.6.4.8 Alteration of existing natural watercourses, if any, shall occur only if approved by appropriate agencies of the Province of Alberta. Alteration of existing natural drainage courses or the creation of artificial water courses or drainage courses shall occur only in accordance with a comprehensive plan which shall take into account drainage, slope stability and erosion as it may affect the site or downstream sites.
- 14.6.4.9 Permanent outside storage of equipment, vehicles, goods or materials (other than storage during the course of construction) shall not be permitted.
- 14.6.4.10 The layout of the golf course shall endeavour to protect and when possible enhance, corridors utilized by wildlife to move through the site and general area.
- 14.6.4.11 Except as specifically modified by this Direct Control Bylaw, the provisions of the Land Use Bylaw, including Section 2, General Regulations, shall apply. Reference in this Bylaw to the Town of Canmore Land Use Bylaw as amended or altered from time to time or any bylaw passed in substitution therefore.
- 14.6.4.12 Any development permit for the hotel shall require as a condition of issuance of a

development completion certificate that the developer shall have developed or provided for adequate staff housing within the Town of Canmore to the satisfaction of the Municipal Council.

- 14.6.4.13 A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

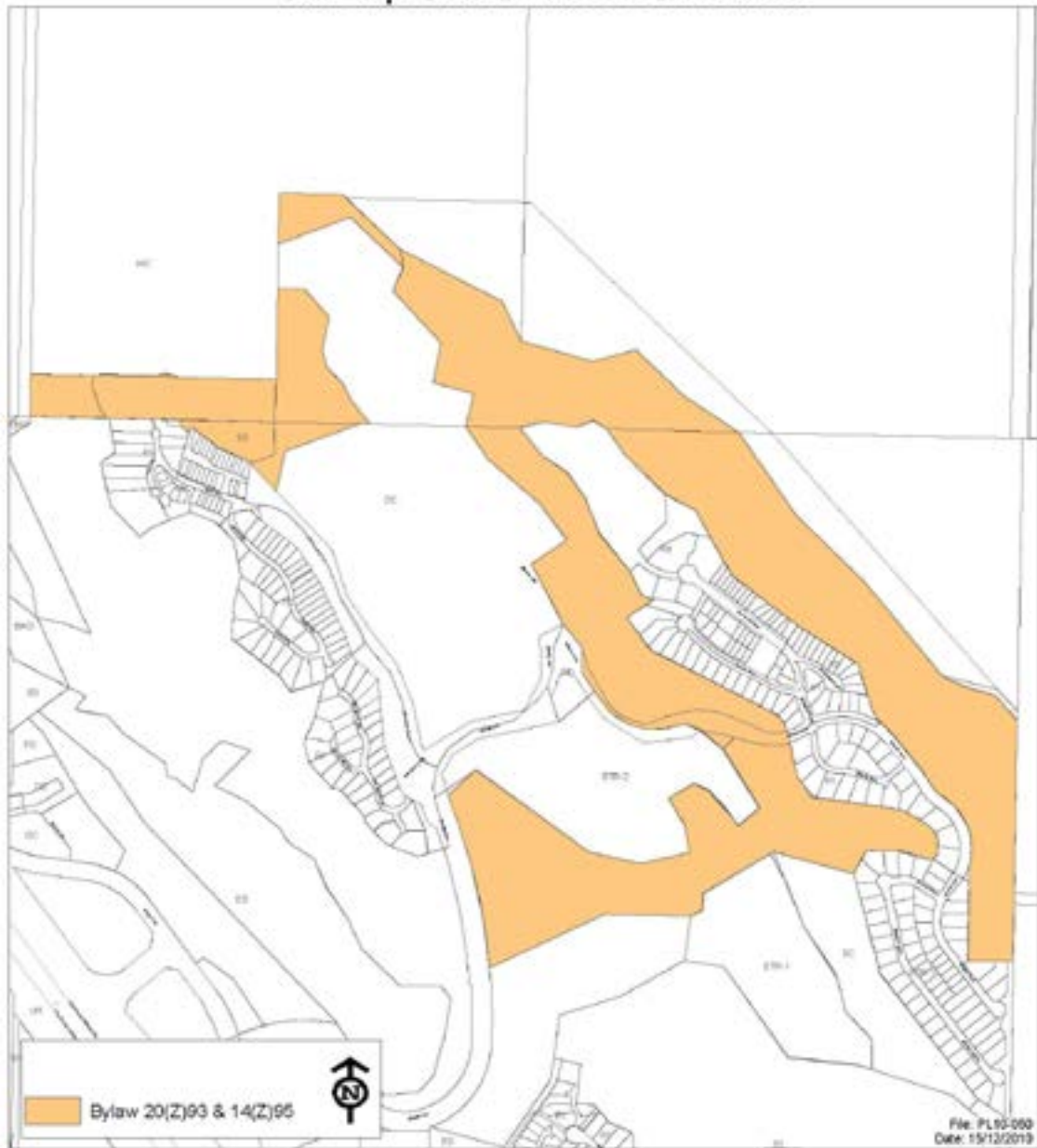
14.6.5 Development Authority

- 14.6.5.1 Council shall be the Development Authority for golf course development.
- 14.6.5.2 The Development Authority for the 3.0 hectare parcel described in Bylaw 14(Z)95, for Accessory Uses, and for Signs shall be the Development Officer of the Town of Canmore

14.6.6 Schedules

Schedule "A" illustrates the location of this District.

Schedule "A"
Silvertip Golf Course DC District



14.7 PEAKS OF GRASSI SMALL LOT DC DISTRICT [13-96DC]

14.7.1 Purpose and Intent

The purpose and intent of this district is to provide for comprehensively designed residential development in the form of single-detached, and duplex dwellings on small lots.

14.7.2 Permitted Uses

Accessory Building

Duplex Dwelling

Home Occupation - Class 1

Parks and Playgrounds

Public Utilities

Single Family Detached Dwelling

14.7.3 Discretionary Uses

Bed and Breakfast, limited to one (1) guest room

Home Occupation - Class 2

14.7.4 General Requirements

14.7.4.1 The general land use regulations and provisions contained in Section 2, General Regulations, of the Land Use Bylaw shall apply.

14.7.4.2 A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.7.5 Minimum Requirements

14.7.5.1 Area of Site:

- a. Single-Detached Dwellings: 200m²
- b. Duplex Dwellings: 400m²

14.7.5.2 Width of Site:

- a. Single-Detached Dwellings: 6.8m
- b. Duplex Dwellings: 12.0m

14.7.5.3 Front Yard: All sites 6.0m

- a. Front Yard Projections:
 - i. Roofed decks and porches may extend a maximum of 1.8m onto the front yard setback and shall be a minimum distance of 4.2m from the front yard property line. Stairs associated with the decks and porches may extend an additional 1.2m into the front yard from the edge of the deck/porch and shall be a minimum distance of 3.0m from the front yard property line.
 - ii. Roof overhangs or eaves over a front yard porch may extend to a distance of 3.6m from the front yard property line.

14 DIRECT CONTROL DISTRICTS

- iii. Bay windows, box out windows up to 3.0m in length and chimneys and porch sills may project a maximum of 0.6m onto a required front yard.
- iv. There will be no encroachments over utility right-of-ways or easements.

14.7.5.4 Side Yards:

- a. Principal Building: 1.2m for each side yard, except;
 - i. For those lots designated as zero lot line and where private maintenance and eave encroachment easements are provided, a 1.2m required side yard may be reduced to zero metres with the approval of the Safety Codes Officer.
 - ii. A minimum width of 2.5m on one side of a single detached dwelling or on both sides of a duplex dwelling in a laneless subdivision where no provision is made for a driveway, garage or carport to the front or side of a building.
- b. Accessory Buildings:
 - i. Street Side of a corner site: 2.0m
 - ii. All other sites: 1.0m, except in the case of a zero lot line which is subject to a Private Maintenance Easement where no garage or accessory buildings can be located within 0.9m of the easement granted to the dominant tenement.

14.7.5.5 Side Yard Projections:

- a. Eaves, bay windows, belt course, box out windows and chimneys and porch sills may project a maximum of 0.3m over or onto a required side yard. In the case of a zero lot line site, the only permitted projection will be a 0.6m projection for an eave and footing as stipulated in the Private Maintenance Easement section of this Bylaw.
- b. Bay windows and box out windows will be limited to one per side yard and shall be a maximum length of 3.0m.
- c. Eave overhangs and eavestroughs on cantilevers may project an additional 0.15m. beyond the cantilever.

14.7.5.6 Rear Yard:

- a. Principal Building: 6.0m
- b. Accessory Buildings: 1.0m
- c. Rear Yard Projections:
 - i. Decks and porches may extend a maximum of 1.8m into the rear yard setback and shall be a minimum distance of 4.2m from the rear yard property line if the deck/porch is higher than 0.6m above grade. Stairs associated with the decks and porches above 0.6m in height may extend an additional 1.0m into the rear yard setback from the edge of the deck/porch to a minimum distance of 3.2m from the rear property line.
 - ii. Roof overhangs or eaves over a rear yard deck or porch may extend an additional 0.6m into the minimum distance of 3.2m noted in 14.7.5.6c(i).
 - iii. Eaves, bay windows, belt course, box out windows and chimneys and porch sills may project a maximum of 0.6m onto a required rear yard.

- 14.7.5.7 Minimum Gross Floor Area per Unit: 55.8m² with a minimum 41.8m² on the main floor not including attached garages and covered carports.

14.7.6 Maximum Limits

14.7.6.1 Height of Building:

- a. Principal Building: 10.0m
- b. Accessory Building: 5.0m
- c. Appurtenances such as chimney's, exhaust vents and roof vents may be permitted to extend 1.0m above the maximum building height at the discretion of the Approving Authority.

14.7.6.2 Coverage of Site:

All buildings including Accessory Buildings: 65% of the site

14.7.7 Zero Lot Line Properties

The Direct Control District makes provision for the siting of residential units on "zero lot line" properties. Private maintenance and eave encroachment easements will be registered on title of all designated zero lot line properties before building permits are issued.

- a. The minimum distance between dwelling units for a zero lot property will be 2.5m.
- b. Exhaust vents, water faucets and electrical outlets will not be located on the exterior side of a building that abuts the zero lot line property line.

14.7.8 Private Maintenance Easement for Zero Lot Line Properties

Where the owner of an adjacent site provides the private maintenance easement for a "zero lot line" property it shall:

- a. be of 1.5m in width,
- b. be registered by covenant against the title of the site proposed for development and the title of the adjacent site,
- c. include a 0.6m eave and footing encroachment easement,
- d. include adequate roof drainage from the building is directed onto the site by eavestroughs and downspouts.

14.7.9 Special Requirements

- 14.7.9.1 The developer will be responsible for the implementation and application of the approved architectural and streetscape design guidelines attached as Schedule "B".
- 14.7.9.2 Private Outdoor Amenity Space: A private outdoor amenity space shall be provided for each dwelling unit at or below the level of the first storey and it shall have a minimum area of 14m² with one minimum dimension of 3.0m.
- 14.7.9.3 Accessory Buildings: Accessory buildings and additions shall not be located in a front yard.

14 DIRECT CONTROL DISTRICTS

14.7.9.4 Parking and Driveways: Two parking spaces per dwelling unit.

a. Laneless Sites

- i. For lots less than 9.0m in width the driveway shall be no wider than 3.5m.
- ii. For lots greater than 9.0m in width the driveway shall be no wider than 5.0m.
- iii. Where no garage or carport is provided a driveway/parking pad shall be a minimum length of 10.0m, as measured from the property line.
- iv. Where a garage or carport is provided a driveway/parking pad shall be a minimum length of 6.0m, as measured from the property line.

b. Laned Sites

- i. Driveways, parking pads, garages and carports are not permitted in the front yard.
- ii. where no garage or carport is provided a driveway/parking pad shall be a minimum length of 6.0m;

14.7.9.5 Those properties identified as Lots 2-9, Block 2, Plan 9711290 and Lots 2-9 Block 4, Plan 9711290, adjacent to boulevards 3.0m wide or greater the front yard requirements shall be reduced to 5.0m and will adhere to the following requirements:

- a. Roofed decks and porches may extend a maximum of 1.2m onto the front yard setback and shall be a minimum distance of 3.8m from the front yard property line. Stairs associated with the decks and porches may extend an additional 1.2m into the front yard from the edge of the deck/porch and shall be a minimum distance of 2.6m from the front yard property line.
- b. Roof overhangs or eaves over a front yard porch may extend an additional 0.6m into the minimum distance of 2.6m noted in 14.7.9.5a.
- c. Eaves, bay windows, belt course, box out windows and chimneys and porch sills may project a maximum of 0.6m onto a required front yard.

14.7.9.6 The Development Officer shall review all house plans to verify compliance with this Bylaw.

14.7.9.7 Except as specifically modified within this Direct Control Bylaw, the provisions of the Land Use Bylaw shall apply.

14.7.10 Bed and Breakfast Establishments

14.7.10.1 Applications for a Bed and Breakfast establishment shall be required to provide a total of three (3) on-site parking stalls in accordance with the provisions of Section 2, General Regulations of the Land Use Bylaw;

14.7.10.2 Bed and Breakfast establishments shall be limited to one (1) guest room per dwelling unit.

14.7.10.3 Bed & Breakfast establishments shall only be permitted within the areas identified in Schedule "A", subject to conditions Subsections (1), and (2), above.

14.7.11 Home Occupation Class 2

14.7.11.1 In recognition of the comparatively narrow lots and street rights of way in this District of the Peaks of Grassi area applications for Class 2 Home Occupations will be subject to

careful review and shall be approved only where an applicant has satisfied the Development Authority that the home occupation will not result in negative impacts in the neighbourhood.

- 14.7.11.2 Applications for a Home Occupation Class 2 shall be required to provide adequate on-site parking.

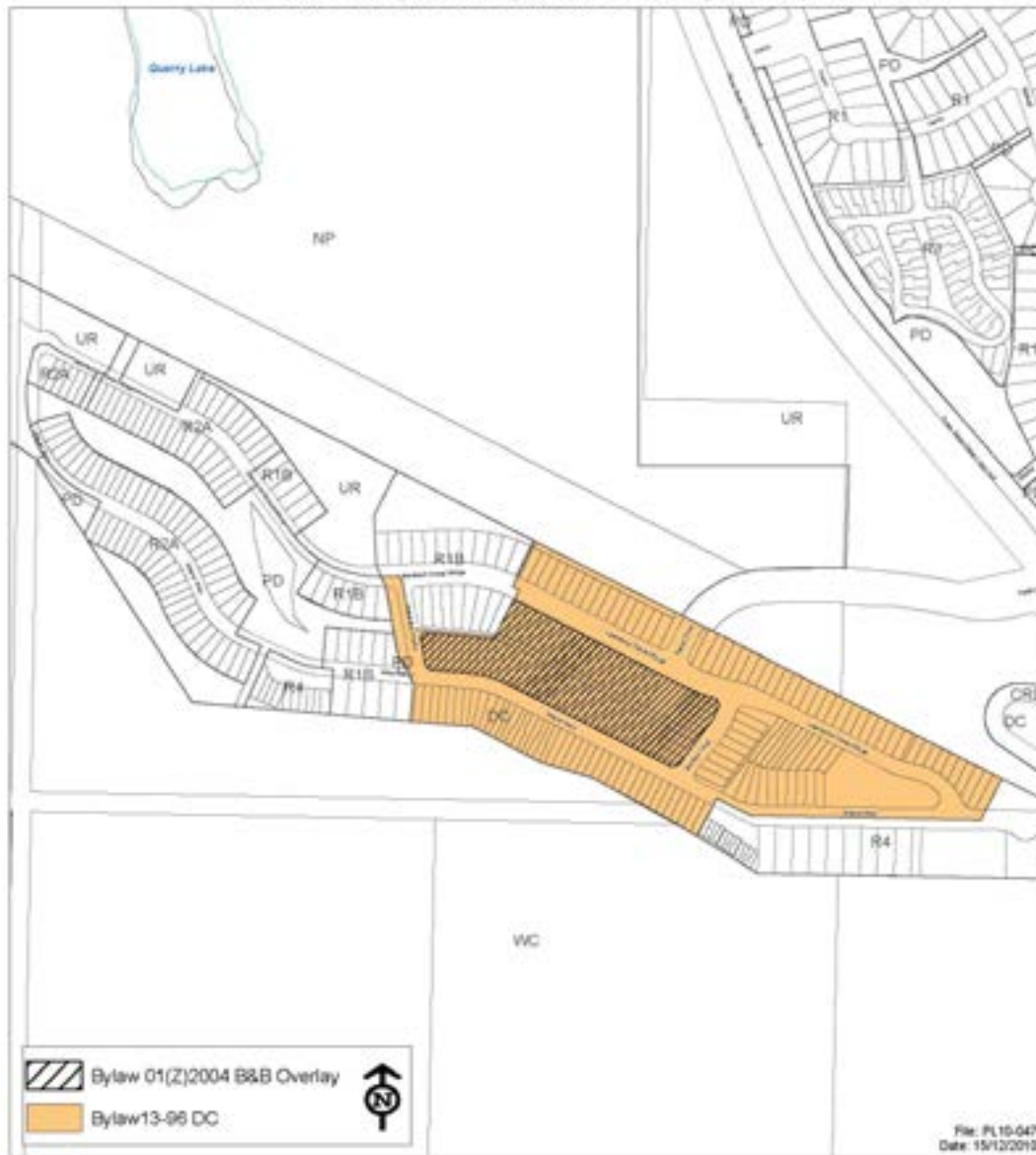
14.7.12 Development Authority

- 14.7.12.1 The Development Officer shall be the Development Authority for this District

14.7.13 Schedules

Schedule "A" shows the location of the District.

Schedule "A" Peaks of Grassi Small Lot DC District



14.8 COUNTRY INN DIRECT CONTROL DISTRICT [49-96DC]

14.8.1 Purpose and Intent

To provide lots for small scale visitor accommodation in the form of a “Country Inn” district.

14.8.2 Permitted Uses

One Residential Dwelling Unit per “Country Inn”

Small Scale Visitor Accommodation (max 12 visitor rooms)

14.8.3 Discretionary Uses

Accessory Uses

Accessory Buildings

Signs

Eating Establishment

14.8.4 Minimum Requirements

14.8.4.1 Area of Site 930m²

14.8.4.2 Width of Site 20m

14.8.4.3 Front Yard 4.5m (no front vehicular access)

14.8.4.4 Side Yards Principal Building 3.0m

14.8.4.5 Side Yards Accessory Building 3.0m

14.8.4.6 Rear Yard Principal Building 3.0m from easement

14.8.4.7 Rear yard Accessory Building 1.5m from easement

14.8.5 Site Coverage

All buildings including Accessory Buildings: 40% of the site.

14.8.6 Height

Principal Building: 3 stories or 10.66m

Accessory Buildings: 5m

14.8.7 Parking

- a. One space per visitor accommodation unit
- b. Two spaces per residential dwelling
- c. Parking for Eating Establishments will be calculated in accordance with the parking requirements in the General Regulations, specifically the General Parking Regulations section.

14.8.8 Vehicular Access

All lots shall have minimum 6.0m rear access easements.

14.8.9 Architectural Controls

All buildings shall conform to the intent and principles of design identified in the Section 11, Community Architectural and Urban Design Standards, to the satisfaction of the Development Authority.

14.8.10 Eating Establishment Guidelines

Eating Establishments must be accessory to the Small Scale Visitor Accommodation use of this district.

14.8.11 Development Authority

Council hereby authorizes the Canmore Planning Commission to issue development permits that meet the intent of this land use district.

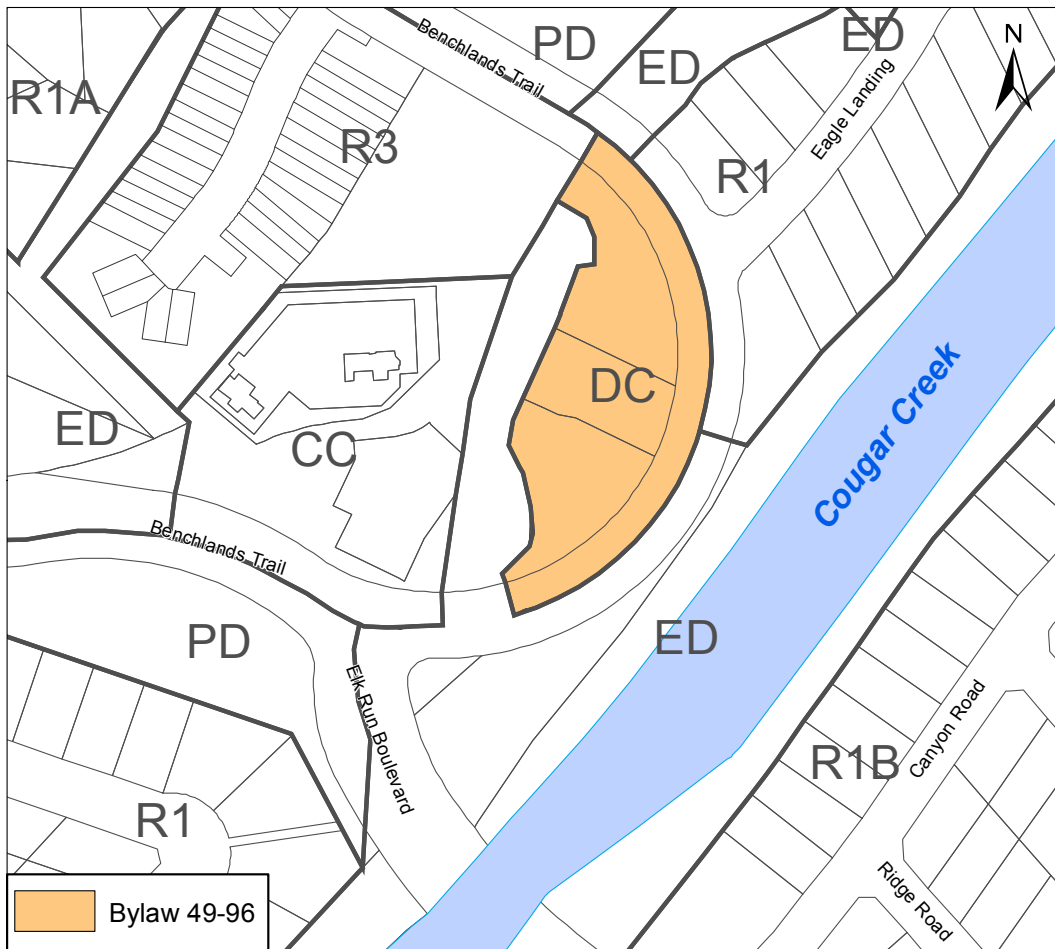
14.8.12 Sustainability Screening Report

A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.8.13 Schedules

Schedule "A" shows the location of this District.

Schedule "A" Country Inn DC District



14.9 THREE SISTERS RESORTS DC DISTRICT [1-98DC; 16(Z)2001DC; 18(Z)2002 DC; 15(Z)2002 DC; 34(Z)2003 DC; 36(Z)2004 DC; 07(Z)2006]

14.9.1 Definitions

14.9.1.1 Business Park

A Business Park contains clean, employment generating land uses that are not predominantly oriented to the retail sale of goods and personal services. Uses such as offices, arts studios, cultural establishments, business services, research and development facilities, health clinics, light manufacturing and light fabrication industries will be appropriate uses in Business Parks. Retail stores over 200m² (2,153 sq. ft.) and uses such as factory retail outlets and warehouses with large retail sales outlets shall not be allowed in Business Parks.

14.9.1.2 Entry-Level Housing Units

Entry-level housing units are residential lots or multi-family housing units intended for full-time residential use which meet the following requirements:

- a. Entry-Level Housing Lots
 - i. Unless otherwise specified herein, Entry-Level housing lots shall meet the requirements of the R-1B Single Detached Plus District; and
 - ii. The average lot width within a subdivision shall be no more than 13m; and
 - iii. Lots will be offered for sale for a selling period of at least 45 days to local residents of Canmore according to criteria established in consultation with the Town of Canmore at the conceptual Scheme of Subdivision or the Area Structure Plan stage; and
 - iv. The sale of lots shall be accompanied by a commitment to build within six months of the lot sale; and
 - v. The sale of lots shall be accompanied by a commitment to build a primary unit with no more than 130m² (1,400 sq ft) of gross floor area, and a secondary suite with no more than 84m² (900 sq ft) of gross floor area; and
 - vi. The secondary suite shall be developed at the time of initial construction of the primary unit.
- b. Entry-Level Multi-Family Housing Units
 - i. Multi-family Residential Units which are approved as Entry-Level Housing Units by the Town of Canmore Council; and
 - ii. Which provide a total gross floor area in the range of 28 to 93m² (300 to 1,000 sq ft).
 - iii. All entry-level multi-family housing units shall be offered for sale for a selling period of at least 45 days to local residents of Canmore according to criteria established in consultation with the Town of Canmore.

14.9.1.3 Gross Developable Area

Gross Developable Area shall include the entire area of a Site excluding:

- a. portions of the Site identified as undevelopable environmental reserve lands or equivalent undevelopable lands retained in private ownership as part of a resort where

a conservation easement or restrictive covenant is registered against the equivalent undevelopable land;

- b. otherwise developable lands approved for golf course or outdoor athletic and recreation activities or open green space where a deferred reserve caveat is registered;
- c. otherwise developable lands that are taken by the Town as Unaccredited Municipal Reserve;
- d. public access roads without developable frontage, where such roads are designed to provide direct access between developable lands and are designed to minimize environmental impact.

14.9.1.4 Parcel

In addition to the meaning in Section 13, Definitions, of the Land Use Bylaw, the term “parcel” shall include one or more title areas, which form a single development site.

14.9.1.5 Residential Units

Unless otherwise specified within this District, a “Residential Unit” includes single-family units, multi-family units, Staff Accommodation and Entry-Level Housing Units. For purposes of calculating maximum density provisions of this District, the following categories of Residential Units shall be excluded:

- a. secondary suite or potential secondary suite within a single-detached dwelling; and
- b. residential units built on Community Land.

Residential Units shall not include Visitor Accommodation units.

14.9.1.6 Staff Accommodation

Staff Accommodation includes housing that provides accommodation primarily for employees working in the Town of Canmore. Staff Accommodation may be:

- a. Accessory housing that is incidental, subordinate and primarily devoted to the principal commercial use or building and located on the same parcel; and/or
- b. Housing units that are not subordinate to a principal commercial use; and which are not located on the same parcel.

In the case of either (a) and/or (b) above, Staff Accommodation units shall be controlled by a Staff Accommodation Authority or similar authority which ensures to the satisfaction of Council that such housing will be maintained and operated to provide Staff Accommodation.

A maximum of six Staff Accommodation bedrooms with shared access, bathroom and kitchen facilities will be considered the equivalent of one “residential unit”. One bedroom will normally be considered appropriate accommodation for a maximum of two persons.

Staff Accommodation that conforms to the above-noted definition will form part of the maximum allowed residential density but will not be subject to annual growth targets contained in this Bylaw.

14.9.1.7 Timeshare Units

A Timeshare Unit is part of a multi-unit commercial development that provides temporary or

interval accommodation on a shared ownership basis.

Each Timeshare room or suite of rooms with separate “keyed” access and self-contained bathroom or kitchen facilities, shall be considered a separate Timeshare Unit. A suite of rooms intended as a single Timeshare Unit shall not anticipate or facilitate conversion to separate units in the future.

Timeshare Units are a form of commercial development that normally occurs in resort center areas along with Visitor Accommodation Units. Timeshare Units will not be subject to annual residential growth targets contained in this Bylaw.

14.9.1.8 Unaccredited Municipal Reserve

In this District the term “unaccredited municipal reserve” shall mean municipal reserve lands which are dedicated, by agreement between the Town of Canmore and the subdivision applicant, in excess of the normal 10% dedication of municipal reserves.

14.9.1.9 Visitor Accommodation Units

Visitor accommodation Units include units in a non-residential building or group of buildings where sleeping facilities are provided for patrons for periods of up to 30 days and which may also contain recreational facilities, commercial uses and additional facilities including but not limited to eating establishments, drinking establishments, room service, meeting rooms, public convention rooms, and laundry service.

Where the majority of Visitor Accommodation Units within a development contain suites of more than 1 room, two or more of the following services shall be provided: eating establishment, drinking establishment, room service, public convention room, and/or laundry service.

For purposes of this Bylaw, each room or suite of rooms with separate “keyed” access and self-contained bathroom or kitchen facilities, shall be considered a separate Visitor Accommodation Unit. A suite of rooms anticipated as a single Visitor Accommodation Unit shall not anticipate or facilitate conversion to separate units in the future.

14.9.2 General Provisions

14.9.2.1 Subject Area

The Town of Canmore Land Use Bylaw map, Section 15, is amended by redesignating these lands from Conservation Area Forestry (CF), Conservation Forestry Area District (CF-1) and Special Recreation District (R) to Direct Control (DC) as shown outlined on Schedule “A”.

14.9.2.2 Purpose

The purpose of this District is to provide for phased development of a comprehensively planned mix of Residential units, Visitor Accommodation units, retail goods and services, recreation facilities, public and private open space, community facilities, wildlife movement areas and commercial/industrial land uses.

14.9.2.3 Gross Developable Area (GDA)

The total Gross Developable Area for all land uses in this District shall not exceed 273 hectares (675 acres).

14.9.2.4 Total Residential Units

The total number of Residential Units within this District shall not exceed 2,847 units except where Residential Units are provided in lieu of Timeshare Units allowed under Subsection 14.9.2.5.

In any case, the total number of Residential Units and Timeshare Units shall not exceed 3,447 units.

14.9.2.5 Total Timeshare Units

The total number of Timeshare Units within this District shall not exceed 600 units.

Where Timeshare Units are not proposed, an equivalent number of Residential Units, in addition to the 2,847 Residential Units stated in Subsection 14.9.2.4, shall be permitted in lieu of Timeshare Units.

Any future conversion of Timeshare Units to Residential Units shall be included in the annual residential growth phasing requirements of Subsection 14.9.2.10 of this Bylaw.

14.9.2.6 Total Visitor Accommodation Units

The total number of Visitor Accommodation Units within this District shall not exceed 1,500 units. Subject to this maximum number, Visitor Accommodation Units may be distributed within this District as follows:

- a. Up to 1,500 Visitor Accommodation Units may be located within Site 1; or
- b. A maximum of 300 Visitor Accommodation Units are indicated as a Permitted or Discretionary use for the Site, or as an intended future use of the site under the Purpose and Intent clauses for each Site.

14.9.2.7 Land Use Clauses

Subsections 14.9.2.3, 14.9.2.4, 14.9.2.5, and 14.9.2.6 are not development standards and shall be considered "land use" provisions in this Bylaw and shall not be subject to relaxation or variation by the Subdivision Approval Authority, the Development Approval Authority, the Subdivision and Development Appeal Board, or the Municipal Government Board. Any change to these sections shall be subject to review by the Town of Canmore through the statutory municipal Land Use Bylaw amendment process.

14.9.2.8 Amendment and Redesignations

Where any part of this District is the subject of a Land Use amendment or redesignation in the future, Subsections 14.9.2.3, 14.9.2.4, 14.9.2.5, and 14.9.2.6, shall be amended as required to ensure consistency throughout the District.

14.9.2.9 Sequence of Development

Development within this District shall occur in a sequence that reflects the availability of required utility infrastructure and access roadways. The provision of necessary infrastructure and roadways shall be demonstrated at the Conceptual Scheme of Subdivision or the Area Structure Plan stage.

14.9.2.10 Residential Growth Phasing

14 DIRECT CONTROL DISTRICTS

By the year 2000, development of at least 200 Residential Units per year will be accommodated within this district. Annual residential growth shall be phased in accordance with the following schedule:

1998: 150 Residential Units

1999: 175 Residential Units

2000 and thereafter: 200 Residential Units

The following types of development shall not be subject to annual residential growth phasing:

- a. Staff Accommodation Units;
- b. Visitor Accommodation Units;
- c. Timeshare units;
- d. secondary suite provided in single family detached dwellings;
- e. Entry-Level Housing Units as specified in Section 14.9.2.12;
- f. Residential Units on Community Land as specified in Section 14.9.2.13

The maximum number of Residential Units that will be assured of approval shall be the entitlement for any particular year, as specified above, plus any unused portions of entitlements from the previous two years. Any entitlements not used within that time frame will not be assured of approval. Monitoring of annual residential growth shall be undertaken by the Town of Canmore with reference to subdivision plans endorsed by the Town and development permit approvals for multi-unit projects.

14.9.2.11 Minimum Proportion of Entry-Level Housing and/or Housing with Secondary Rental Suites

A minimum proportion of 25% of all Residential Units approved during any particular year must:

- a. provide Secondary Rental Suites at the time of construction of the primary unit: or
- b. qualify as entry-Level Housing Units (single and multi-family projects) under the terms set out in the Definitions section of this Bylaw.

14.9.2.12 Entry-Level Housing Incentive

A maximum of 50 Entry-Level Housing Units per year will be excluded from the annual growth phasing requirements of Section 14.9.2.10.

14.9.2.13 Community Land

A total of approximately 12.1 hectares (30 acres) of serviced net developable land within this District shall be provided to the Town of Canmore for community purposes.

Community Land may be distributed among Site 2A, Site 2B, Site 3, and/or Site 7 in a form and location to be determined at the Conceptual Scheme of Subdivision stage or the Area Structure Plan stage.

14.9.2.14 Staff Accommodation

Notwithstanding any other sections of the Land Use Bylaw, Staff Accommodation shall be

provided in accordance with the standards under either (a) or (b) set out below. The standards which generate the greater Staff Accommodation requirements shall apply.

- a. Current Staff Accommodation Requirements
 - i. for Visitor Accommodation developments with fewer than 60 Units – 1 bedroom per 10 Units;
 - ii. for Visitor Accommodation developments with 60 to 100 Units – 1 bedroom per 8 units;
 - iii. for Visitor Accommodation developments with more than 100 units – 1 bedroom per 6 Units;
 - iv. for Timeshare developments Staff Accommodation shall be provided at a level that is 50% of the above-noted requirements for Visitor Accommodation developments.
- b. Possible Future Town-Wide Staff Accommodation Requirements
Any future Staff Accommodation requirements adopted by Town of Canmore Council which are intended to apply uniformly to new employment generating developments in major commercial areas within the Town shall supersede the requirements set out above in clause (a).

14.9.2.15 Wildlife Corridors and Highway Crossings

All wildlife corridors adjacent to Sites 1 through 8 shall be secured and an associated wildlife corridor/highway crossing mitigation strategy shall be prepared and approved to the satisfaction of Alberta Environmental Protection in consultation with the Town of Canmore prior to subdivision and development approvals within this District.

A wildlife corridor adjacent or through Site 9 shall be secured and an associated wildlife corridor/highway crossing mitigation strategy shall be prepared to the satisfaction of Alberta Environmental Protection in consultation with the Town of Canmore prior to subdivision and development approvals within Site 9.

14.9.2.16 School Sites, Public Parks and Public Trails

Sites for public schools, local public parks and a public trail system shall be identified at the Conceptual Scheme of Subdivision stage or the Area Structure Plan stage to the satisfaction of the Town of Canmore Council.

14.9.2.17 Emergency Services Site

Land within Site 4 shall be set aside near the planned mid-point intersection for an Emergency Services site of no less than 0.8 hectares (2 acres).

14.9.2.18 Alteration of Natural Contours or Drainage Courses

Alteration of existing natural contours shall occur only in accordance with a comprehensive grading plan acceptable to the appropriate authority, which shall take into account drainage and soil erosion impacts.

Alteration of existing natural drainage courses or the creation of artificial water courses shall occur only in accordance with a comprehensive plan acceptable to Alberta Environment, which shall take into account drainage, slope stability and erosion as it may affect downstream

sites.

14.9.2.19 Slope Stability

For Visitor Accommodation and commercial land uses the primary criterion for building setbacks from the top or bottom of a slope is slope stability. A slope stability report, acceptable to the Town Engineer, shall be submitted by a qualified professional geotechnical engineer, confirming the adequacy of all foundations.

Where development is proposed that would exceed development otherwise permitted under the Town of Canmore slope Development Policy (1994), a visual impact assessment shall be prepared in accordance with the Town of Canmore Slope Development Policy (1994).

14.9.2.20 Conceptual Scheme of Subdivision and Development Standards for Sites 1A, 2A and 4

Prior to approval of the first subdivision or development with Site 1A, Site 2A, or Site 4, a Conceptual Scheme of Subdivision for the entire Site shall be submitted to the Town of Canmore Council for approval.

All subdivision applications within these Sites shall conform to the approved Conceptual Scheme of Subdivision. All subdivision applications shall conform to the development standards as set forth in this District, or alternate development standards as approved by the Town of Canmore Council. For purposes of a particular subdivision, further application may be made to the Town of Canmore Council to modify or change the Conceptual Scheme of Subdivision or development standards applicable to all or a portion of the Site.

Prior to the approval of subdivision within these Sites, a Conceptual Scheme of Subdivision (illustrating the Development Standards as set forth in this Bylaw that will apply to the proposed subdivision), or the establishment of Development Standards different from those set forth in this District, shall be approved by Resolution of the Town of Canmore Council.

Once a Conceptual Scheme of Subdivision has been approved, it is the intent that subdivision applications which conform to the Conceptual Scheme of Subdivision and the Development Standards and which otherwise conform to the requirements of this District, should be approved.

For purposes of preparing or modifying Development Standards different from those set forth in this District for the particular Site, the following requirements shall govern:

a. Conceptual Scheme of Subdivision

A Conceptual Scheme of Subdivision shall describe the future subdivision and development of all lands within the particular Site and shall describe how the development of the particular Site will meet the requirements of this District. The Conceptual Scheme of Subdivision shall include:

- i. topographic base mapping showing contours at no greater than 1.5m intervals;
- ii. identification of any environmentally sensitive areas or wildlife corridors within or adjacent to the site that have been identified relative to Subsection 14.9.2.15 and provision of a Wildlife Aversive Conditioning Plan to the satisfaction of Alberta Environment;
- iii. a description of the proposed disposition of environmental reserve and Gross Developable Area including credited municipal reserve lands and any Unaccredited

Municipal Reserve lands within the Site;

- iv. information describing the conceptual land uses, sequence of development, population density and general location of major transportation routes and public utilities within the Site;
- v. any reasonable additional information considered necessary by the Town of Canmore Council.

b. Development Standards

At the conceptual scheme stage, or when an application for subdivision is made, a set of development standards and guidelines must be established for each proposed subdivision. Specific standards are provided within this District to accommodate the major land uses that are currently anticipated.

As an alternative to the standards established in this District, the applicant may provide specialized development standards and guidelines to accommodate unique or innovative forms of development. Where such standards are proposed they shall address the following:

- i. streetscape function and aesthetics
- ii. impact on adjacent sites
- iii. outdoor amenity space
- iv. building and yard setbacks building height;
- v. parking and loading standards
- vi. lot size and density standards
- vii. visual impact, and
- viii. landscaping requirements.

14.9.2.21 Development Permits

All development within this District shall require a development permit with the exception of single detached dwellings.

In addition to the requirements for development permit applications specified in Section 1, Administration, of the Land Use Bylaw, comprehensive plans including architectural design, site layout, exterior finishes and colour, landscaping, parking and access shall be submitted to the Approving Authority as part of a development permit application.

14.9.2.22 Development Authority

For Visitor Accommodation developments with more than 200 units, the Town of Canmore Council shall be the Development Authority.

14.9.3 Site 1 Provisions

14.9.3.1 Purpose

The purpose of Site 1 is to provide for development of a comprehensively planned Resort Centre. The Resort Centre is intended to include Visitor Accommodation Units, Timeshare Units, a centralized commercial area and an associated Business Park. Staff Accommodation and golf courses may also be accommodated within the Resort Centre.

14 DIRECT CONTROL DISTRICTS

Prior to approval of the first subdivision or development within Site 1 an Area Structure Plan shall be approved by the Town of Canmore Council. The study area for the Area Structure Plan shall include Site 3 of this District, as well as intervening and adjacent lands designated as "R-Special Recreation District" and those portions of Site 2A located west of Three Sisters Creek. Although within the study area, the statutory area structure plan is not intended to include any portion of Site 2A.

14.9.3.2 Permitted Uses

Apartments
Arts and crafts studio
Athletic and recreation facilities
Convenience Store
Cultural establishment
Drinking establishment
Eating establishment
Entertainment establishment
Golf Course
Office
Parks and playgrounds
Personal services
Public utilities
Retail store (up to 200 m²)
School, public or separate
School, private or commercial
Timeshare Units
Visitor Accommodation (up to 12m in height)

14.9.3.3 Discretionary Uses

Bed and Breakfast accommodation
Brewery/Distillery
Household repair services
Laboratories
Light manufacturing operations
Medical Centre
Printing Shop
Retail Store (over 200 m²)
Townhouses and stacked townhouses
Visitor Accommodation (over 12m in height)

14.9.3.4 Site 1 Development Standards

- a. The maximum Gross Developable Area in Site 1 shall be 47.7 hectares (118 acres) plus or minus 10%.
- b. The total number of Visitor Accommodation units in Site 1 shall not exceed 1,500 units
- c. Although individual projects may vary, the average annual occupancy of the total number of Visitor Accommodation Units within Site 1 should be in the range of 2 persons per unit. Where, in the opinion of Council, the design or configuration of

proposed units appears to anticipate an average annual occupancy well in excess of 2 persons per unit, a socio-economic impact assessment may be required to the satisfaction of Council.

- d. The total number of Timeshare Units in Site 1 shall not exceed 600 units.
- e. A resort commercial centre area with a maximum Gross Developable Area of 10.1 hectares (25 acres) may be centrally located within Site 1 to provide a range of services within walking distance of all Visitor Accommodation uses in Site 1. The resort commercial centre area shall be described in an Area Structure Plan for Site 1.
- f. The resort commercial centre may accommodate a maximum of 13,935 m² (150,000 sq ft) gross floor area of eating establishment, personal service, convenience store and retail store land uses that are not ancillary to a Visitor Accommodation or Timeshare facility.
- g. The resort commercial centre will be designed as a small scale; pedestrian and street-oriented, mixed-use district primarily serving visitors to the surrounding resort area and visitors to the Town.
- h. A single Business Park area with a maximum Gross Developable Area of 4.85 hectares (12 acres) may be located within Site 1. Any proposed Business Park area should be described in an Area Structure Plan of Subdivision for Site 1.
- i. All commercial land uses shall be located in the commercial centre area, the Business park area, and shall be ancillary to a Visitor Accommodation or Timeshare use.
- j. For Visitor Accommodation and Timeshare uses the General Regulations, Section 2 of the Land Use Bylaw and the General Requirements of the CRD, Commercial Resort District, shall apply.
- k. For Commercial and Business Park uses, the General Regulations, Section 2 of the Land Use Bylaw and the Regulations of the TC, Town Centre Commercial District, shall apply. Within the Business Park area, the boulevard and a minimum of 15% of the parcel shall be landscaped and/or retained as natural area and maintained in accordance with the plan approved by the Development Authority.
- l. At the subdivision plan endorsement stage, all lands to be dedicated as municipal reserve and/or environmental reserve shall be redesignated by the Town of Canmore to the appropriate land use district in the Town of Canmore Land Use Bylaw.
- m. For residential uses the General Regulations, Part 2 of the Land Use Bylaw and the Regulations of the R-3, Residential-Comprehensive Multiple Unit District shall apply.
- n. Where the above-noted standards are not appropriate to a proposed subdivision or development, the landowner may propose the use of alternative standards as contemplated under Section 14.9.2.20. Proposed alternative standards must conform to all provisions of this District and be provided at the subdivision application stage.
- o. A Business Park area shall be separated from nearby Visitor Accommodation, Timeshare and/or residential uses to the satisfaction of the Development Authority.
- p. Where a Commercial or Business Park use is proposed:
 - i. the design, character and appearance of all buildings shall be appropriate to and

- compatible with the surrounding area;
- ii. the treatment of the interface in terms of distance, visual screening and landscaping shall be to the satisfaction of the Development Authority;
- iii. operations on the site shall not cause or create conditions, which may be objectionable or dangerous beyond the building, which contains it (e.g., noise, odour, vibrations, heat, dust, etc).
- q. The visual impact of development from the Trans-Canada Highway should be minimized by maintaining a building scale and profile that is screened by surrounding vegetation.
 - i. Notwithstanding the above, a maximum of two Visitor Accommodation buildings will be allowed to extend beyond 12m in height such that the upper floors will be visible from the Trans-Canada Highway. Proposals for Visitor Accommodation buildings over 12m in height will be evaluated as Discretionary Uses. A visual impact assessment for these landmark buildings shall be prepared by the applicant to demonstrate the architectural treatment to be used to ensure that the building is an architecturally attractive landmark.
- r. Building design and construction materials shall be consistent with architectural guidelines based on a mountain resort theme and with Section 11, Community Architectural & Urban Design Standards of the Land Use Bylaw. Wherever possible, finishing materials shall comprise indigenous wood and rock products so that the development blends with the surrounding environment. The finishing colours should also blend with the natural environment so that the building does not stand out in stark contrast.
- s. Parking areas should be landscaped and separated from adjacent uses by screening. Where appropriate, surface parking areas shall be terraced to conform to the natural terrain.
- t. Developments should include footpaths, equestrian trails and a system of open spaces, all of which may be publicly or privately maintained as appropriate. Trailheads should be provided for public paths and equestrian trails located on Crown lands.
- u. Each development site shall be comprehensively landscaped in accordance with a plan acceptable to the Development Authority which shall consider:
 - i. the retention, where appropriate, of existing native vegetation;
 - ii. the use of indigenous species for additional landscaping; and
 - iii. augmentation of existing and proposed footpaths and equestrian trails with additional indigenous species.
- v. Vehicular access to and from the Site shall be provided in accordance with a traffic plan for the Site, acceptable to the Town.
- w. A social and economic impact statement shall be provided in support of all Visitor Accommodation developments.

14.9.4 Site 1A Provisions

14.9.4.1 Purpose

The purpose of Site 1A is to provide for development of a comprehensively planned mix of residential dwelling units comprised of low-density single dwellings with a provision for some two-family and multi-family dwellings.

14.9.4.2 Permitted Uses

Home Occupation - Class 1

Parks and playgrounds

Public Utilities

Single Detached Dwellings

Single Detached Plus Dwellings

14.9.4.3 Discretionary Uses

Home Occupation - Class 2

Bed and Breakfast

Duplex Dwelling

Tourist Home

14.9.4.4 Development Standards

- a. The maximum Gross Developable Area in Site 1A shall be 7.88 hectares (20 acres) plus or minus 10%.
- b. For Single Detached Residential uses the General Regulations, Section 2 of the Land Use Bylaw and the General Requirements of the R1 Residential Detached District shall apply except that the maximum site coverage shall be 20%.
- c. For Duplex Residential uses on sites up to 0.2 hectares (0.5 acres) in area, the General Regulations, Section 8 of the Land Use Bylaw and the General Requirements of R-2A Low Density Multiple Use District shall apply except that the maximum site coverage for all buildings shall be 20%.
- d. At the Subdivision Plan Endorsement Stage, all lands to be dedicated as municipal reserve and/or environmental reserve shall be redesignated by the Town of Canmore to the appropriate land use district in the Town of Canmore Land Use Bylaw.

Where the above-noted standards are not appropriate to a proposed subdivision or development, the landowner may propose the use of alternative standards as contemplated under Subsection 14.9.2.20. Proposed alternate standards must conform to all provisions of this District and be provided at the Conceptual Scheme of Subdivision, the subdivision application, or Area Redevelopment Plan stage.

14.9.5 Site 2A Provisions

14.9.5.1 Purpose

The purpose of Site 2A is to provide for development of a comprehensively planned mix of residential dwelling units comprised mainly of low-density single and two-family dwellings with provision for some medium density multi-family dwellings. Site 2A is also intended to accommodate a school site and golf course.

14.9.5.2 Permitted Uses

Duplex Dwelling

14 DIRECT CONTROL DISTRICTS

Golf Courses
Parks and Playgrounds
Public Utilities
Schools, public and separate
Single-detached Dwellings
Single-detached Plus Dwellings
Home Occupation - Class 1

14.9.5.3 Discretionary Uses

Accessory Buildings
Apartments
Athletic and Recreational Facilities
Bed and Breakfast
Convenience Store
Cultural Establishments
Home Occupation - Class 2
Townhouses and Stacked Townhouses

14.9.5.4 Site 2A Development Standards

- a. The maximum Gross Developable Area in Site 2A shall be 47.3 hectares (117 acres) plus or minus 10%.
- b. For Single Detached Residential uses the General Regulations, Section 2, and the General Requirements under the R-1B Residential Detached Plus District shall apply.
- c. For Duplex Residential uses and for Townhouse Residential uses on sites up to 0.2 hectares (0.5 acres) in area, the General Regulations, Section 2 of the Land Use Bylaw and the General Requirements under the R-2A Low Density Multiple Use District shall apply.
- d. For Townhouse Residential uses on sites greater than 0.2 hectares (0.5 acres) in area and Apartment Residential uses the General Regulations, Section 2 of the Land Use Bylaw and the General Requirements under the R-3 Comprehensive Multiple Unit District shall apply.
- e. For a Convenience Store use, the General Regulations, Section 2 of the Land Use and the General Requirements under the Local Commercial District shall apply.
- f. At the Subdivision Plan Endorsement Stage, all lands to be dedicated as municipal reserve and/or environmental reserve shall be redesignated by the Town of Canmore to the appropriate land use district in the Town of Canmore Land Use Bylaw.
- g. Where the above-noted standards are not appropriate to a proposed subdivision or development, the landowner may propose the use of alternative standards as contemplated under Section 14.9.2.20(b). Proposed alternative standards must conform to all provisions of this District and be provided at the Conceptual Scheme of Subdivision, the subdivision application, or Area Redevelopment Plan stage.

14.9.6 Site 2B Provisions

14.9.6.1 Purpose and Intent

The purpose of Site 2B is to protect land from premature subdivision and development until such time as urban development of the land can proceed in an orderly fashion consistent with an approved Area Structure Plan.

Site 2B is intended to accommodate a comprehensively planned mix of Residential Dwelling Units comprised mainly of Low-density Single and Two-family Dwellings with provision for some Medium density Multi-family dwellings. A golf course and accessory uses may also be accommodated within this Site.

14.9.6.2 Permitted and Discretionary Uses

The only permitted uses shall be golf courses and accessory uses in accordance with the provisions of the Special Recreation District of the M.D. of Bighorn #8 Land Use Bylaw No.11 of 1988 as amended to December 1991.

Except as noted above, there are no prescribed permitted or discretionary uses within Site 2B. Specific additional land uses will be determined at the Area Structure Plan stage and implemented by appropriate redesignations under the Town of Canmore Land Use Bylaw.

14.9.6.3 Site 2B Policies and Standards

- a. The maximum Gross Developable Area in Site 2B shall be 10.5 hectares (26 acres) plus or minus 10%.
- b. An Area Structure Plan shall be approved by Council for all lands included in Sites 2B, 5 and 6 prior to subdivision or development approvals in Site 2B.
- c. Prior to the adoption of an Area Structure Plan for Sites 2B, 5 and 6, a fiscal impact analysis shall be prepared to assess the municipal costs and benefits of all development contemplated under this Bylaw for Sites 2B, and 5 to 9.
- d. Development permits issued by the Town of Canmore prior to the adoption of this Bylaw shall be considered conforming land uses under this District.
- e. Prior to new development in Site 2B, appropriate development standards will be established through the land use redesignation process under the Town of Canmore Land Use Bylaw. Future land use designations shall be in conformity with the required Area Structure Plan.

14.9.7 Site 3 Provisions [Rescinded by Bylaw 22(Z)2003 and Bylaw 36(Z)2004 DC]

14.9.8 Site 4 Provisions

14.9.8.1 Purpose

The purpose of Site 4 is to accommodate a highway commercial service area at the west side of the intersection of the Three Sisters Parkway and Trans-Canada Highway mid-point interchange. In addition, this Site is intended to accommodate an emergency services site located on the east side of the Three Sisters Parkway.

14.9.8.2 Permitted Uses

Accessory Buildings
Convenience Stores

14 DIRECT CONTROL DISTRICTS

Drinking Establishments
Drive-in Food Services
Eating Establishments
Gas Bars
Laundromats
Offices
Parks and Playgrounds
Personal Services Businesses
Public and Quasi-Public Buildings
Public Utilities
Public, Separate, Private or Commercial Schools
Visitor Accommodations

14.9.8.3 Discretionary Uses

Accessory Uses
Arts and Crafts Studios
Athletic and Recreational Facilities
Automobile and Equipment Repair
Entertainment Establishments
Medical Centres
Retail Stores (up to 200 m²)
Service Stations
Veterinary Clinics

14.9.8.4 Site 4 Development Standards

- a. The maximum Gross Developable Area in Site 4 shall be 4.5 hectares (11 acres) plus or minus 10%.
- b. Development shall incorporate a high standard of architectural appearance, appropriate to the entrance to a residential and resort community. A visual impact assessment to the satisfaction of the Approving Authority shall be prepared in support of all development applications with Site 4.
- c. Commercial development shall be separated and screened from nearby residential and/or Visitor Accommodation areas to the satisfaction of the Approval Authority.
- d. The General Regulations, Section 8, of the Land Use Bylaw and the General Requirements of the Bow Valley Trail Commercial District shall apply.

14.9.9 [Repealed by 2020-19]

14.9.10 Site 6 Provisions

14.9.10.1 Purpose and Intent

The purpose of Site 6 is to protect land from premature subdivision and development until such time as urban development of the land can proceed in an orderly fashion consistent with an approved Area Structure Plan.

Site 6 is intended to accommodate a golf course clubhouse facility and associated Visitor

Accommodation along with Residential Units.

14.9.10.2 Permitted and Discretionary Uses

The only permitted uses shall be golf courses and accessory uses in accordance with the provisions of the Special Recreation District of the M.D. of Bighorn #8 Land Use Bylaw No.11 of 1988 as amended to December 1991.

Except as noted above, there are no prescribed permitted or discretionary uses within Site 6. Specific additional land uses will be determined at the Area Structure Plan stage and implemented by appropriate redesignations under the Town of Canmore Land Use Bylaw.

14.9.10.3 Site 6 Policies and Standards

- a. The maximum Gross Developable Area in Site 6 shall be 5.7 hectares (14 acres) plus or minus 10%.
- b. The maximum number of Visitor Accommodations units shall be 150.
- c. An Area Structure Plan shall be approved by Council for all lands included in Sites 2B, 5 and 6 prior to subdivision or development approvals in Site 6.
- d. Prior to the adoption of an Area Structure Plan for Sites 2B, 5 and 6, a fiscal impact analysis shall be prepared to assess the municipal costs and benefits of all development contemplated under this Bylaw for Sites 2B, and 5 to 9.
- e. Development permits issued by the Town of Canmore prior to the adoption of this Bylaw shall be considered conforming land uses under this District.
- f. Prior to a new development in Site 6, appropriate development standards will be established through the land use redesignation process under the Town of Canmore Land Use Bylaw. Future land use designations shall be in conformity with the Area Structure Plan contemplated in Section 14.9.10.3(c), above.

14.9.11 Site 7 Provisions

14.9.11.1 Purpose and Intent

The purpose of Site 7 is to protect land from premature subdivision and development until such time as urban development of the land can proceed in an orderly fashion consistent with an approved Area Structure Plan.

Site 7 is intended to accommodate a comprehensively planned mix of residential dwelling units. A golf course and accessory uses may also be accommodated within this Site.

14.9.11.2 Permitted and Discretionary Uses

The only permitted uses shall be golf courses and accessory uses in accordance with the provisions of the Special Recreation District of the M.D. of Bighorn #8 Land Use Bylaw No.11 of 1988 as amended to December 1991.

Except as noted above, there are no prescribed permitted or discretionary uses within Site 7. Specific additional land uses will be determined at the Area Structure Plan stage and implemented by appropriate redesignation under the Town of Canmore Land Use Bylaw.

14 DIRECT CONTROL DISTRICTS

14.9.11.3 Site 7 Policies and Standards

- a. The maximum Gross Developable Area in Site 7 shall be 88.2 hectares (218 acres) plus or minus 10%.
- b. An Area Structure Plan shall be approved by Council for all lands included in Sites 7 and 8 prior to subdivision or development approvals in Site 7.
- c. Development permits issued by the Town of Canmore prior to the adoption of this Bylaw shall be considered conforming land uses under this District.
- d. Prior to new development in Site 7, appropriate development standards will be established through the land use redesignation process under the Town of Canmore Land Use Bylaw. Future land use designations shall be in conformity with the Area Structure Plan contemplated in Subsection 14.9.11.3(b), above.

14.9.12 Site 8 Provisions

14.9.12.1 Purpose and Intent

The purpose of Site 8 is to protect land from premature subdivision and development until such time as urban development of the land can proceed in an orderly fashion consistent with an approved Area Structure Plan.

14.9.12.2 Permitted and Discretionary Uses

There are no prescribed permitted or discretionary uses within Site 8. Specific additional land uses will be determined at the Area Structure Plan stage and implemented by appropriate redesignations under the Town of Canmore Land Use Bylaw.

14.9.12.3 Site 8 Policies and Standards

- a. The maximum Gross Developable Area in Site 8 shall be 11.3 hectares (28 acres) plus or minus 10%.
- b. The maximum commercial floor space shall be 21,831m² (235,000 sq. ft.) gross floor area.
- c. Provision shall be made at the Area Structure Plan stage for provision of a school and joint-use recreational site to the satisfaction of the Approval Authority.
- d. An Area Structure Plan shall be approved by Council for all lands included in Sites 7 and 8 prior to subdivision or development approvals in Site 8.
- e. Development permits issued by the Town of Canmore prior to the adoption of this Bylaw shall be considered conforming land uses under this District.
- f. Prior to new development in Site 8, appropriate development standards will be established through the land use redesignation process under the Town of Canmore Land Use Bylaw. Future land use designations shall be in conformity with the Area Structure Plan contemplated in Subsection 14.9.12.3(d), above.

14.9.13 Site 9 Provisions

14.9.13.1 Purpose and Intent

The purpose of Site 9 is to protect land from premature subdivision and development until such time as urban development of the land can proceed in an orderly fashion consistent with an approved Area Structure Plan.

Site 9 is intended to accommodate a wildlife corridor, a highway commercial service area in the vicinity of the Dead Man Flats/Trans-Canada Highway interchange and low-density single family residential uses. Medium-density multi-family dwellings and a limited number of Visitor accommodation units may also be provided in Site 9.

14.9.13.2 Permitted and Discretionary Uses

There are no prescribed permitted or discretionary uses within Site 9. Specific additional land uses will be determined at the Area Structure Plan stage and implemented by appropriate redesignation under the Town of Canmore Land Use Bylaw.

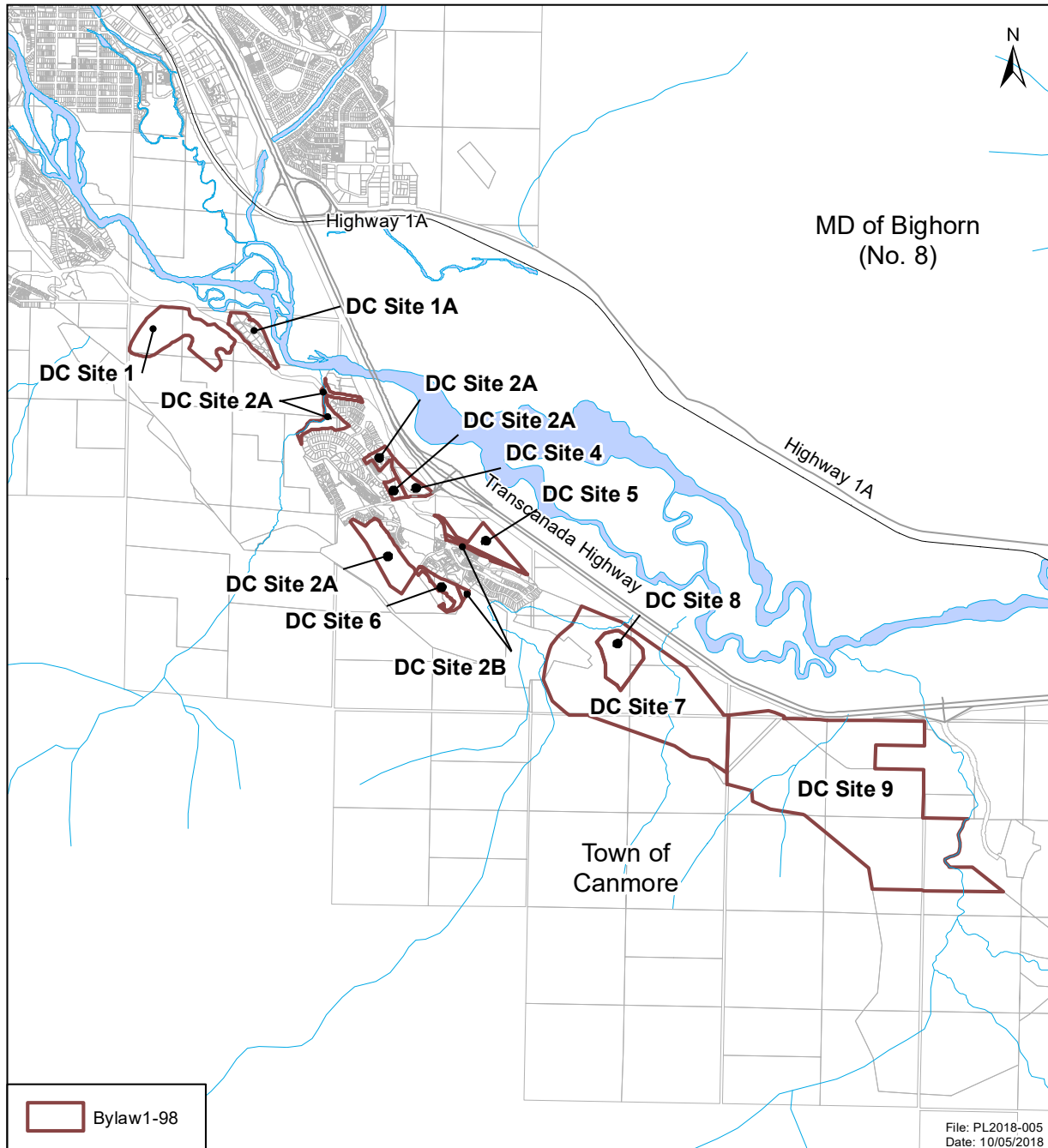
14.9.13.3 Site 9 Policies and Standards

- a. The maximum Gross developable Area shall be 39.7 hectares (98 acres) plus or minus 10%.
- b. The maximum number of Visitor Accommodation Units shall be 150.
- c. A wildlife corridor adjacent or through Site 9 shall be secured and an associated wildlife corridor/highway crossing mitigation strategy shall be prepared to the satisfaction of Alberta Environmental Protection in consultation with the Town of Canmore prior to subdivision and development approvals within Site 9.
- d. A single highway commercial area with a maximum Gross Developable Area of 7 acres may be located with direct service road access to the Dead Man's Flats highway interchange.
- e. An Area Structure Plan shall be approved by Council for all lands included in Site 9 prior to subdivision or development approvals in Site 9.
- f. Development permits issued by the Town of Canmore prior to the adoption of this Bylaw shall be considered conforming land uses under this District.
- g. Prior to new development in Site 9, appropriate development standards will be established through the land use redesignation process under the town of Canmore Land Use Bylaw. Future land use designation shall be in conformity with the Area Structure Plan contemplated in Section 14.9.13.3(e), above.

14.9.14 Schedule

Schedule "A" forms a part of this District

Schedule "A"



14.10 SEVENTH STREET DC DISTRICT [BYLAW 09-99]

14.10.1 Purpose

To allow for the redevelopment of the 700 Block on the north side of Seventh Street in accordance with the Town Centre Enhancement Concept Plan.

14.10.2 Permitted Uses

Parks and Playground

Public Utilities

14.10.3 Discretionary Uses

Accessory Buildings

Accessory Uses

Developments existing prior to third reading of Bylaw 09-99

Parking Structures

Public and Quasi Public Buildings

14.10.4 Regulations

14.10.4.1 The minimum site area shall be 500.0m²

14.10.4.2 The maximum site width shall be 15.0m

14.10.4.3 The principal build-to-line shall be the front property line

14.10.4.4 The minimum rear yard depth shall be 5.4m

14.10.4.5 The maximum building height shall be 11.0m

14.10.4.6 The maximum eaveline height shall be 7.0m

14.10.5 Requirements

14.10.5.1 Building design requirements for the District shall conform to the 1998 Town Centre Enhancement Concept Plan.

14.10.5.2 The impact of development on residential and other uses in the 700 Block of Seventh Street shall be in accordance with Subsection 4.1.5 of the Town Centre District.

14.10.6 Historic Resources

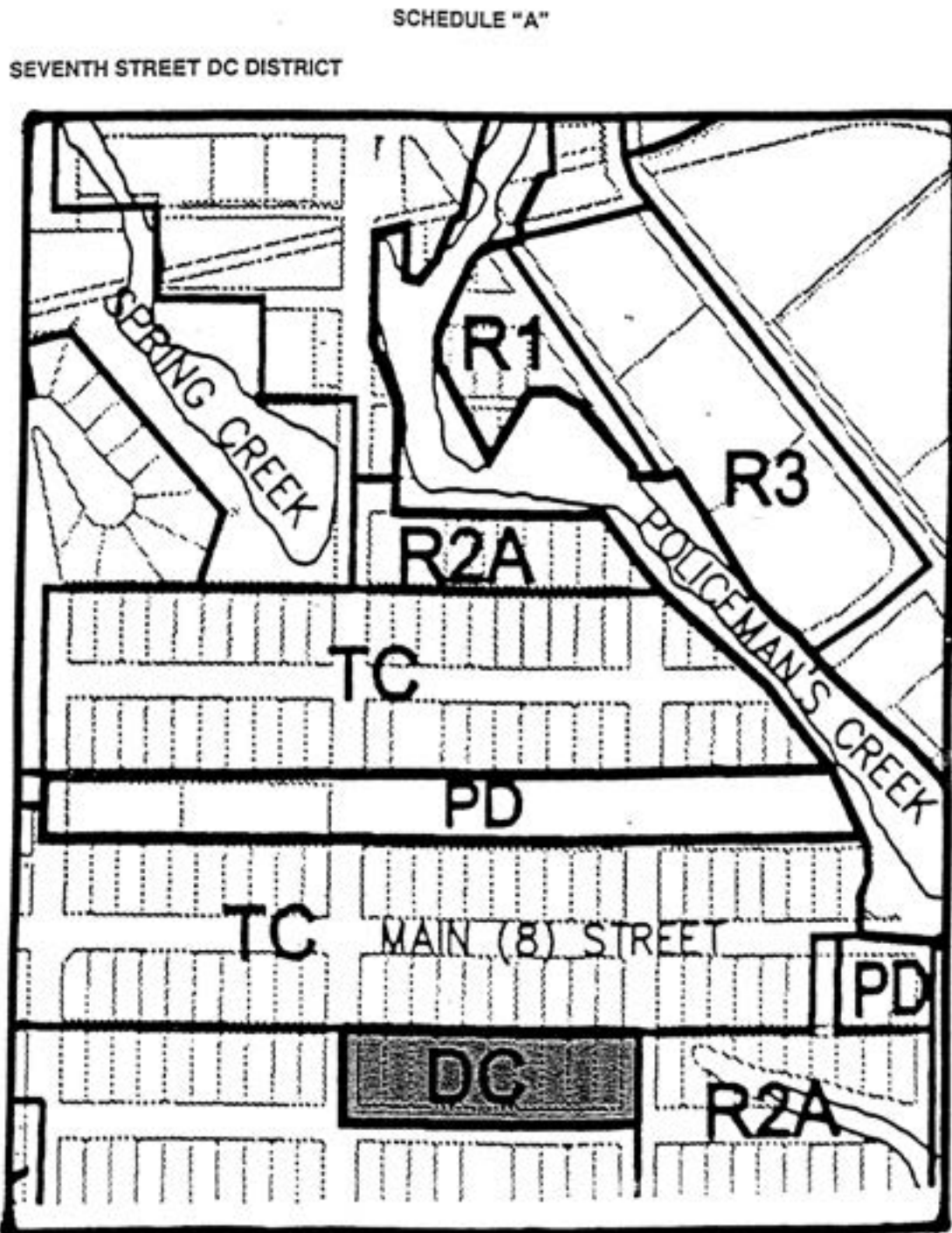
The Union Hall, located on 738 Veteran's Way (7th Street), is listed in Subsection 7.7.7 as an Historical Property of Interest. Therefore the Union Hall and the adjacent properties are subject to the development review provisions described in Historic Resources, Section 7.7, of the Land Use Bylaw.

14.10.7 Development Authority

Council shall be the Development Authority.

14.10.8 Schedules

The following schedule forms a part of this District



14.11 SILVERTIP TRAIL DC DISTRICT [BYLAW 09-99]

14.11.1 Purpose

To provide for visitor accommodation and associated uses which conform in regard to uses and architectural design to the intent of the Silvertip Area Structure Plan.

14.11.2 Permitted Uses

Public utilities

14.11.3 Discretionary Uses

Accessory Buildings

Accessory Uses

Arts and Crafts Studios

Cultural Establishments

Employee Accommodation

Signs

Visitor Accommodation

14.11.4 Regulations

14.11.4.1 The minimum site area shall be 1000.0m²

14.11.4.2 The minimum site width shall be 30.0m

14.11.4.3 The maximum gross floor area shall be 1.5 F.A.R.

14.11.4.4 The maximum site coverage of all buildings shall be 55%.

14.11.4.5 The minimum front yard depth shall be as follows:

- a. Adjacent to the Trans-Canada Highway: 15.0m
- b. All other locations: 4.5m

14.11.4.6 The minimum rear yard depth shall be as follows:

- a. Adjacent to the Trans-Canada Highway: 15.0m
- b. All other locations: 6.0m

14.11.4.7 The minimum side yard depth shall be as follows:

- a. Adjacent to the Trans-Canada Highway: 15.0m
- b. In all other locations side yards shall be 3.0m except in the case where the side yard abuts a public roadway other than a lane in which case the minimum yard depth shall be 4.5m.

14.11.4.8 Maximum building height:

- a. West of Palliser Trail: 11.0m peak with maximum eaveline of 7.0m
- b. East of Palliser Trail: 14.0m peak with maximum eaveline of 9.0m.

14.11.5 Design Requirements

- 14.11.5.1 A pedestrian-oriented streetscape shall be established to allow for or encourage pedestrian traffic. The streetscape shall incorporate design elements such as: wide sidewalks, separation of pedestrian use areas from vehicle use areas, outdoor furniture, patios, pedestrian scale street lighting, bicycle parking, canopies, vestibules, formal trail connections, façade treatments that are sensitive to sidewalk location on a site specific basis, and permeability of facades by the use of glass and doors subject to Section 11, Community Architectural and Urban Design Standards.
- 14.11.5.2 Design of buildings shall complement the mountain community of Canmore and must be in conformity with Section 11, Community Architectural and Urban Design Standards.
- 14.11.5.3 In order to achieve a pedestrian oriented streetscape, parking shall be designed to effectively screen vehicles when viewed from streets. Techniques to achieve this may include structured parking, shared parking and intensive landscaping. Where structured parking is provided, it shall be integrated into the building design, preferably underground.
- 14.11.5.4 Signage shall not be oriented to or be legible from the Trans-Canada Highway.
- 14.11.5.5 Where the Development Authority is satisfied that the architectural integrity of a building would be enhanced, variances may be granted to allow 20% of the building to exceed the maximum height by up to 20%. No height variances shall be granted beyond the 20% relaxation.
- 14.11.5.6 The location, orientation and design of buildings and uses on a site shall take into consideration their potential impact on any wildlife corridors which may be adjacent to the property.

14.11.6 Landscaping

- 14.11.6.1 A minimum of 25% of a site shall be landscaped. Outdoor amenity space including, but not limited to, plazas, patios, and other pedestrian gathering places may be substituted for some natural landscaping to the extent that it achieves a blend of natural environment and value as a people place. Outdoor amenity space must be located adjacent to a sidewalk or public trail in order to be considered as landscaping.
- 14.11.6.2 A minimum of 50% of the front yard shall be natural landscaping.
- 14.11.6.3 A landscaping plan prepared by a professional landscape architect shall be submitted prior to the completion of a development agreement.
- 14.11.6.4 Every application must submit, to the satisfaction of the approving authority, a visual impact assessment which includes:
 - a. professionally produced three dimensional simulation of the overall development from important viewpoints along the Trans-Canada Highway, Palliser Trail and/or Benchlands Trail showing the impact of the development on the site;
 - b. a view analysis and discussion of the visual impacts as Trans-Canada Highway motorists approach and pass a proposed development;

- c. consideration of site design, building architecture, roof treatment, and landscaping as it relates to the view from the Trans-Canada Highway above or level with the site;
- d. a demonstration of the harmony of form, materials and exterior finishing with the surrounding natural environment when viewed from the Trans-Canada Highway;
- e. mitigation measures proposed to minimize the negative impacts of parking and massing through the application of natural landscaping, building articulation and roof treatment.

14.11.7 Employee Housing

- 14.11.7.1 On-site Employee Housing, where accessory to a principal use, may be integrated into the principal building or constructed as free-standing accommodation at the discretion of the Development Authority.
- 14.11.7.2 Employee Housing for “visitor accommodation” uses may be located on the main floor of the principal building.
- 14.11.7.3 When incorporated into the principal building, Employee Housing shall be functionally separated from visitor accommodation units.
- 14.11.7.4 Apartment style Employee Housing shall meet the following criteria:
 - Maximum unit size:
 - Bachelor - 35.0m²
 - One bedroom- 47.0m²
 - Two bedroom - 65.0m²
 - Three bedroom - 83.0m²
- 14.11.7.5 The maximum number of persons per bedroom in all forms of Employee Housing shall be two.

14.11.8 Parking, Loading and Storage

- 14.11.8.1 All parking and loading areas not incorporated into the building or a parking structure shall be provided to the side and/or the rear of the site.
- 14.11.8.2 All parking and loading areas not incorporated into the building or a parking structure shall be visually screened with fencing or landscaping in a manner that would render it not visible from the main access road and to the satisfaction of the Development Authority.
- 14.11.8.3 For Visitor Accommodation uses, up to 30% of the required parking may be dedicated bus parking provided that adequate bus maneuvering space is incorporated into the site design. One bus parking stall shall be equivalent to 15 car parking stalls.
- 14.11.8.4 For Visitor Accommodation uses, on-site surface parking must be provided for anticipated over-sized vehicles or vehicle powered by propane.
- 14.11.8.5 All garbage and waste material shall be stored and located within the principal building.
- 14.11.8.6 All outdoor storage is strictly prohibited.

14.12 SPRAY VILLAGE DC DISTRICT [BYLAW 09-99]

14.12.1 Purpose

To allow for the continued use of the Spray Village Site for Trans Alta Utilities' residential, administrative and operational functions required for the surrounding hydroelectric operations.

14.12.2 Permitted Uses

Public and quasi-public buildings

Public Utilities

14.12.3 Discretionary Uses

Accessory Developments

Uses existing and approved prior to 3rd Reading of Land Use Bylaw 09-99 of 1999

Signs

14.12.4 Regulations

New development and the expansion of existing public utilities within the District shall be evaluated with regard to their potential impact on wildlife corridors connecting the Wind Valley and the Georgetown/Canmore Nordic Centre regional wildlife habitat areas and in accordance with the policies in PART 4, Section 8.0 of the 1998 Canmore Municipal Development Plan.

14.12.5 Development Authority

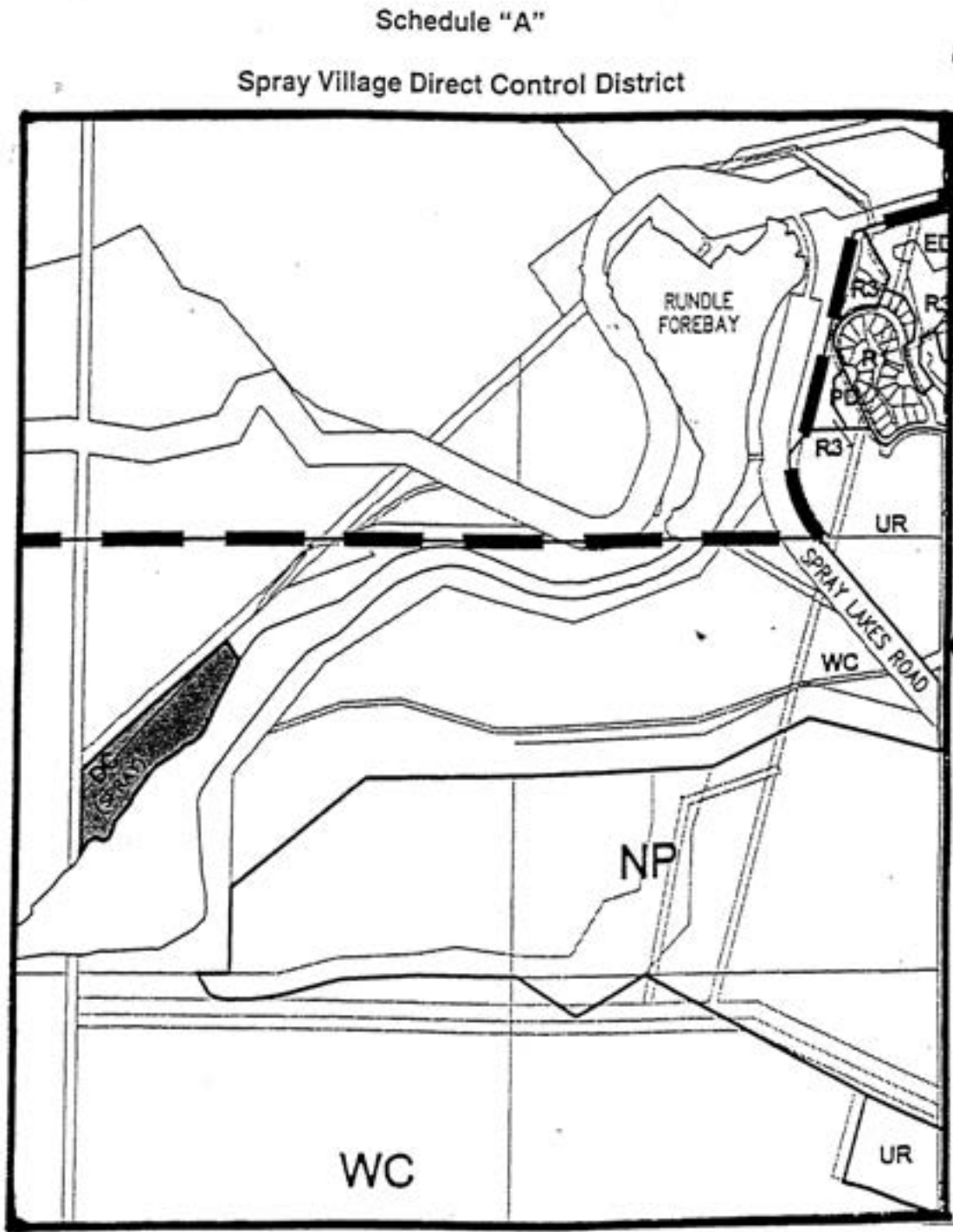
The Municipal Council of the Town of Canmore shall be the Development Authority for the "Spray Village DC District"

14.12.6 Sustainability Screening Report

A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.12.7 Schedule A

Schedule "A", attached, forms part of this "Spray Village Direct Control" District.



14.13 MALLARD ALLEY GUEST HOUSE DC DISTRICT [23(Z)2001DC]

14.13.1 Purpose and Intent

To provide for the development and operation of small scale commercial visitor accommodation in the form of a five room guest house, known as the “Creek House,” whereby visitors and guests may occupy self-contained suites and prepare their own meals, or occupy guest rooms with meal service provided in a common area by an on-site permanent resident proprietor or manager.

14.13.2 Permitted Uses

Duplex Dwellings
One Residential Dwelling Unit per “Guest House”
Guest House (with a maximum of 5 guest rooms)
Home Occupation - Class 1

14.13.3 Discretionary Uses

Accessory Uses
Signs

14.13.4 Minimum Requirements

14.13.4.1 Area of Site: 530m²

14.13.4.2 Width of Site: 15m

14.13.4.3 All minimum front, side and rear yards shall be determined by the existing building envelope on the subject property (Lot 20, Block 56, Plan 1095F) as shown in Schedule B attached to this Bylaw, and no increase of the building size or decrease of the front, side or rear yards as shown on Schedule B shall be permitted.

14.13.5 Regulations

14.13.5.1 Site Coverage:

All buildings: 37% of the site.

14.13.5.2 Height:

Principal Building: 2 storeys plus loft or 11.0m.

14.13.5.3 Parking:

- a. Parking shall be provided in the following amounts:
 - i. One space per visitor accommodation unit or guest room;
 - ii. Two spaces per residential dwelling unit;
- b. All parking stalls are to be clearly identified and delineated to the satisfaction of the Development Authority.
- c. The required parking in this district may be satisfied through the following:
 - i. On-site parking stalls; and

14 DIRECT CONTROL DISTRICTS

- ii. At an off-site location approved by the Development Authority, within 50m of the proposed development; and
- iii. The provision of a cash-in-lieu payment for the difference between the total number of required parking stalls and the number of parking stalls provided within the development.

14.13.5.4 Landscaping

- a. A minimum of 40% of the site shall be “soft” landscaped with plant materials and other vegetation.
- b. Rear yard landscaping shall wherever possible, retain the existing natural vegetation along the creek bank.
- c. No disturbance of native or natural vegetation shall be permitted below the top of bank of the creek.
- d. Amenity areas for guests and residents may be provided in the rear yard, subject to the restrictions contained in clauses (b) and (c), above.
- e. All parking areas are to be appropriately landscaped to assist in screening of parking areas and improving their appearance, to the satisfaction of the Development Authority.

14.13.5.5 Architectural Controls

All new buildings and development following the adoption of this Bylaw shall conform to the intent and principles of design identified in Section 11, Community Architectural and Urban Design Standards.

14.13.5.6 Signage

Signage for the commercial guest house shall be provided to the satisfaction of the Development Authority, to identify the business and assist in guests locating the premises.

14.13.5.7 Sustainability Screening

A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.13.6 Guest House Development

- 14.13.6.1 Any guest house development shall contain no more than two (2) self-contained suites for visitor accommodation.
- 14.13.6.2 No more than one (1) kitchen shall be provided within each self-contained guest suite of the guest house.
- 14.13.6.3 Any guest house development shall include an on-site permanent resident manager’s suite within the principal structure.

14.13.7 Development Authority

- 14.13.7.1 Council hereby authorizes the Canmore Planning Commission to issue development permits

for applications for guest house and/or small scale visitor accommodation development proposals in this land use district.

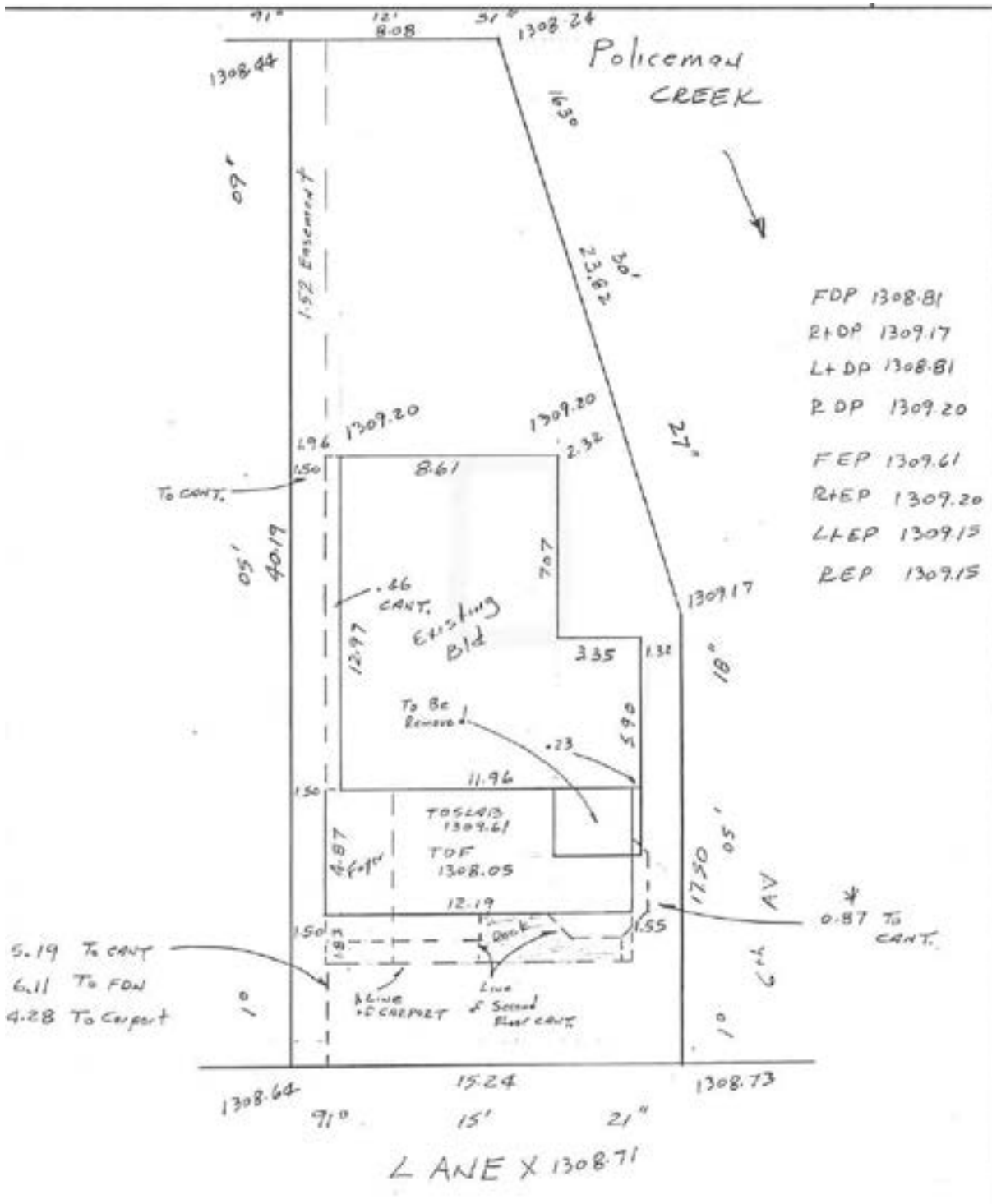
- 14.13.7.2 Council hereby authorizes the Development Officer to issue development permits for applications for all other uses in this land use district.

14.13.8 Schedules

Schedules “A” and “B” form a part of this District.



Schedule“B. Existing Building & Setbacks – Mallard Alley Guest House District



14.14 CIVIC CENTRE DC DISTRICT [27(Z)2002 DC]

14.14.1 Purpose

To allow for the development of a closed portion of Ninth Street for a Multi-use building comprised primarily of a civic centre and Town Administration offices, with accessory uses, in accordance with the vision of the Town Centre Enhancement Concept Plan, and to serve as a focal point for the downtown area and civic activities. This district shall be developed to ensure a high standard of architectural appearance and landscaping, and as a commencement of implementation of the Town Centre Enhancement Concept Plan.

14.14.2 Permitted Uses

Cultural Establishments

Public and Quasi-Public Buildings and Uses

Parks and Playgrounds

14.14.3 Discretionary Uses

Accessory Buildings

Accessory Uses

Offices

Parking Areas and Structures

Signs

14.14.4 Regulations

All development and landscaping regulations shall be determined at the discretion of Council.

14.14.5 Design Requirements

14.14.5.1 All building and site design requirements for the District shall consider Section 11, Community Architectural and Urban Design Standards, of the Land Use Bylaw, and shall conform to principles of the 1998 Town Centre Enhancement Concept Plan, as determined by Council.

14.14.5.2 All signage shall be oriented to the adjacent pedestrian sidewalks.

14.14.6 Development Authority

14.14.6.1 The Municipal Council of the Town of Canmore shall be the Development Authority for applications for all structural development within this District.

14.14.6.2 The Development Authority for all non-structural development, including changes of use or signage, within this District, shall be the Development Officer.

14.14.6.3 The Development Officer may, at his/her discretion, refer any development permit applications for non-structural developments, to the Canmore Planning Commission.

14.14.7 Schedules

The following schedule forms a part of this District



14.15 ARMSTRONG PLACE COMPREHENSIVE SINGLE FAMILY RESIDENTIAL DC DISTRICT [28(Z)2004]

14.15.1 Purpose

To provide for comprehensively designed single-family residential accommodation within a small-lot single family detached dwelling units on Lots 4 and 5, Block 10, Plan 0410094 on Armstrong Place. The district allows the arrangement of single-family dwelling units in a comprehensively designed cluster configuration, with common vehicular access provided to clusters under a bareland condominium. Non-single family residential uses or developments may be allowed in accordance with the list of “discretionary uses” when such uses are compatible with the single-family residential purpose of the District.

14.15.2 Permitted Uses

Home Occupation – Class 1

Parks and Playgrounds

Public Utilities

Single Family Detached Dwelling

14.15.3 Discretionary Uses

Accessory Building

Duplex

Day Care Facility

Signs

14.15.4 Regulations

14.15.4.1 The minimum lot area shall be 165.0m²

14.15.4.2 The maximum lot area shall be 360.0m²

14.15.4.3 The maximum lot width shall be 20.5m.

14.15.4.4 The minimum front yard depth shall be 2.75m.

14.15.4.5 The minimum separation between buildings within the district shall be 2.4m.

14.15.4.6 The minimum rear yard depth shall be 2.0m abutting the Stewart Creek Golf Course, and 4.5m abutting an MR lot.

14.15.4.7 The maximum building height shall be as indicated on a site grading plan approved as part of a subdivision plan. In the absence of an approved site grading plan, the maximum building height shall be lesser of 2 storeys plus loft or 9.5m as determined in accordance with Section 8, General Regulations.

14.15.4.8 The maximum site coverage for all buildings shall be 55%.

14.15.4.9 Maximum footprint of a residential building shall not exceed 85.0m² including garage where such units are intended to be part of a bareland condominium development. Minor variances to the residential building footprint may be granted at the discretion of the Development

Authority, provided the footprint of the living space does not exceed 65.0m².

14.15.4.10 The maximum number of dwelling units for this District shall be 42.

14.15.5 Additional Requirements

14.15.5.1 All development shall conform to Section 2, General Regulations.

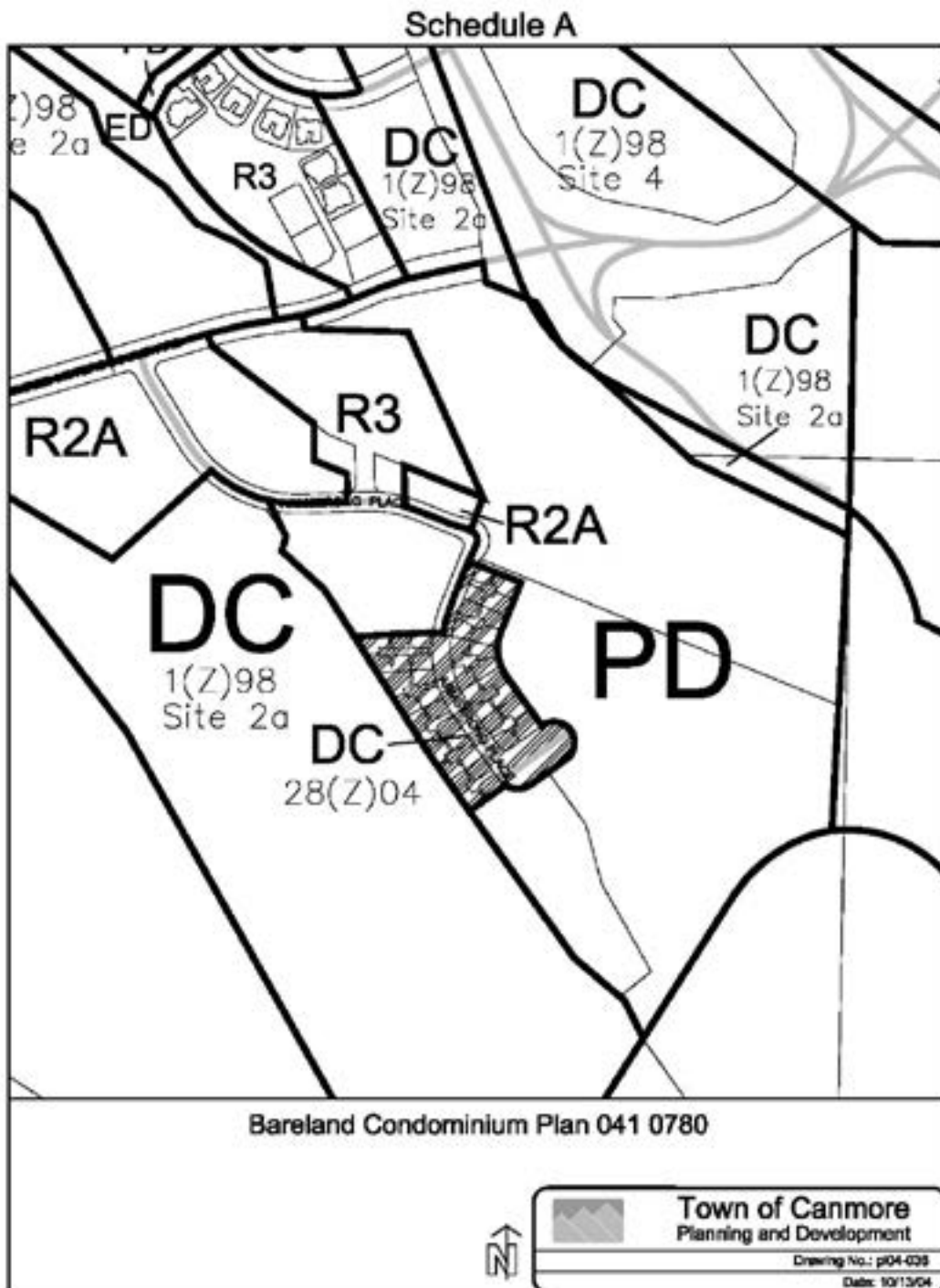
14.15.5.2 A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.15.6 Development Authority

The Canmore Planning Commission shall be the Development Authority for this District.

14.15.7 Schedules

The following schedule forms a part of this District



14.16 GRD THREE SISTERS CREEK GOLF COURSE AND RECREATION AREA DC DISTRICT [36(Z)2004]

14.16.1 Purpose

To provide for the development, operation and management of a golf course and other recreational facilities in accordance with the objectives and policies of the 2004 Town of Canmore Resort Centre Area Structure Plan including the provision of land for animal movement during times when the area is not being utilized for recreational activities.

14.16.2 Permitted Uses

Golf Course, Daily Fee

Golf Course Clubhouse Facilities

Golf Course Maintenance Facilities

Public Parks

Public Utilities

14.16.3 Discretionary Uses

Accessory Building

Cultural Event

Fencing

Signs

Trails

14.16.4 Regulations

14.16.4.1 Minimum setbacks:

- a. Golf courses: 6.0m from property line or boundary of land use district.
- b. Golf maintenance facilities: 300m from any boundary of a designated wildlife corridor. Council, in its role as the Development Authority, may at its discretion, approve a lesser setback for a maintenance facility, if unique site constraints are discovered, or the recommendations contained in a relevant Environmental Impact Statement (EIS) and any relevant independent review of the EIS conclude that a lesser setback will not adversely affect the movement of wildlife through the designated wildlife corridor.
- c. Golf course clubhouse: 450m from any boundary of a designated wildlife corridor. The Development Authority may approve a lesser setback for a clubhouse if unique physical site constraints are discovered, or the recommendations contained in a relevant Environmental Impact Statement (EIS) and an independent review of the EIS conclude that a lesser setback will not adversely affect the movement of wildlife through designated wildlife corridors adjacent to this District.
- d. The minimum development setback for all buildings from the top of an existing natural or constructed bank of Three Sisters Creek shall be 20.0m.
- e. Minimum setbacks for other developments shall be determined on a site-specific basis by the Development Authority having due regard to potential on-site and off-site visual, auditory, wildlife or other impacts in the context of the Purpose of this District.

- f. The location and setbacks for golf course clubhouse facilities and golf maintenance facilities shall be assessed in an Environmental Impact Statement (EIS) as well as in the independent review of the EIS within the context of the design of the entire golf course and adjacent wildlife corridors.
- g. Safety considerations to minimize potential conflict between golf and other uses such as trails and residential development will also be considered in determining setback distances.

14.16.4.2 The maximum building height shall be determined on a site-specific basis by the Development Authority having due regard to potential on-site and off-site visual or other impacts in the context of the Purpose of this District.

14.16.5 Definitions

For the purposes of this District, the following definitions shall apply:

Golf course, daily fee: means a golf course (e.g. tees, greens, fairways and cart paths) operated primarily as a “pay as you play” facility open to the public.

Golf maintenance facility: means a facility for the storage and maintenance of vehicles and equipment, and the storage and handling of goods, fuels, fertilizers and other products required for the operation and maintenance of a golf course. A maintenance facility would normally include but is not limited to yard areas, buildings and structures, and infrastructure for maintenance staff such as office space and parking areas.

Golf clubhouse facilities: means a facility which provides a variety of day-use services such as equipment sales and rentals, meals and meeting facilities to golfers and other recreational users of the golf course and resort area but which does not contain visitor accommodation, resort accommodation or dwelling units.

Cultural events: means special events such as music festivals, art fairs and similar activities which are of relatively large scale and short duration. Such events may occur when the Town is satisfied that the event does not conflict with the Purpose of this District.

14.16.6 Additional Requirements

14.16.6.1 Applications for development within the District shall include the submission of an Environmental Impact Statement which shall evaluate whether the development proposal conforms to the relevant environmental policies of the Town of Canmore Municipal Development Plan and Bylaw 23-2004 Resort Centre Area Structure Plan. In addition, the EIS shall evaluate whether the development proposal conforms to the relevant recommendations contained within the November 2002 “Golder Report” and the 2004 Wildlife-Human Interaction Prevention Plan (WHIPP). The EIS shall address the following issues:

- a. How the proposed golf development has been designed to minimize wildlife habituation.
- b. Revegetation and vegetation management measures within the golf course and in adjacent private lands in wildlife corridors;
- c. Trail closures and realignments within the golf course and in adjacent wildlife corridors;

- d. A description and assessment of the impact of maintenance operations such as pre and post golf season activities and golf-season early-morning or nighttime maintenance activities on wildlife movement in the area.
- 14.16.6.2 The design of a golf course shall provide for integration with the natural setting by maximizing retention of natural landforms, unique natural vegetation and open space including the protection of natural drainage channels.
 - 14.16.6.3 A development permit application shall include a vegetation management plan showing existing vegetation on the development site, vegetation to be removed, landscaping and ongoing vegetation management techniques such as removal of food sources or altering levels of hiding cover.
 - 14.16.6.4 The development of a golf course shall require a site-specific WHIP Plan to be completed prior the issuance of a development permit.
 - 14.16.6.5 A development permit application shall include a site plan showing the location(s) of any Environmentally Sensitive Areas identified in an EIS.
 - 14.16.6.6 A development permit application shall address, in conjunction with the relevant Provincial authorities and to the satisfaction of the Development Authority, the requirements for physical closure of non-designated human use trails within the golf course and adjacent private lands within wildlife corridors. The ability to impose such closures may be influenced by applicable conservation easements.
 - 14.16.6.7 A development permit application for a golf course shall include a system of recreational public trails to accommodate trails displaced by the development and to facilitate pedestrian and cyclist movement outside of the adjacent wildlife corridors. The trail system shall be designed and constructed as Nature Trails in accordance with the definitions of the Town of Canmore Open Space Guidelines. The trail system shall include an east-west trail connecting the point at which Transmission Line Rights of Way 553 GI and 114 JK leave the cross-valley corridor, to Lot 4MR, Block 8, Plan 041 0718 east of the District.
 - 14.16.6.8 A development permit application shall address the potential requirement for limiting the seasons and hours of operation, including maintenance activities, for a proposed development. These could include seasonal or other temporary closures.
 - 14.16.6.9 A development permit application shall address the potential requirement for fencing of the development for wildlife management and/or human use management purposes.
 - 14.16.6.10 A development permit application shall include a detailed construction management plan which shall address, among other things:
 - a. proposed hours, days and seasons of clearing, grading and construction;
 - b. provision during the period of construction of an interim east-west recreational trail if the construction and use of such a trail is feasible with due regard to safety considerations.
 - c. provisions for non-motorized access to the public portion of Three Sisters Creek to the satisfaction of the Development Authority.

14 DIRECT CONTROL DISTRICTS

- d. The construction of an interim trailhead for the Three Sisters Creek trail until a permanent location for a comprehensive trailhead is constructed for the larger trail system in the area.

The Development Authority may impose restrictions on the season(s) and hours of clearing and/or construction for any development in order to minimize potential impacts on wildlife use in accordance with the recommendations contained in a relevant Environmental Impact Statement (EIS) and any relevant independent review of the EIS.

14.16.6.11 An application for a golf course shall include comprehensive plans to the satisfaction of the Development Authority for the management of water on the site including:

- a. demonstrate that sufficient water will be available for on-site firefighting purposes;
- b. a storm water management plan demonstrating how storm water will be handled on site and its potential impacts on existing or proposed downstream development;
- c. a water conservation plan showing that the golf course is designed to minimize the need for irrigation and other uses of water.

14.16.6.12 An application for a golf course shall include a site plan showing the bed and banks of that portion of Three Sisters Creek which is a permanent waterbody, plus a 10.0m wide strip above each bank. In order to meet the intent of PART 4, Section 8.6(f) of the Municipal Development Plan and to ensure the future availability of these areas for public reserves, those areas within 10.0m of the banks of Three Sisters Creek shall remain undeveloped and undisturbed except for public trails or other linear development, or for creek training works required by the Town to protect downstream residential development, as may be approved by the Development Authority. For the purposes of this District it is estimated that the portion of Three Sisters Creek affected by this provision include 450m of the right bank and 350m of the left bank measured downstream from where Three Sisters Creek leaves the designated across-valley wildlife corridor, and will not include that area under permit for gravel extraction.

14.16.6.13 An application for a golf course shall include a chemical management plan that has been designed to minimize the operational use of chemicals on the golf course.

14.16.6.14 A development permit application shall show areas for the long-term storage of equipment and vehicles.

14.16.6.15 Based on the policies in the 2004 Resort Centre Area Structure Plan, the Development Authority may require an applicant to enter into long-term agreements with the Town of Canmore and/or other appropriate authorities to ensure the effective implementation and ongoing maintenance of actions identified in the EIS or EIA. Agreement(s) may include such topics as: maintenance of signage and fencing; closure of human use trails, completion of re-vegetation efforts, and establishment and maintenance of wildlife trails through the private lands in the wildlife corridors.

14.16.6.16 In accordance with Policy 5.7.2(k) of the 2004 Resort Centre Area Structure Plan a development application for a golf course shall demonstrate to the satisfaction of the Development Authority that public recreational opportunities in addition to golf have been considered as part of the design and operation of the proposed development.

14.16.6.17 All developments shall conform to Section 2, General Regulations of the Land Use Bylaw.

14.16.7 Development Authority

14.16.7.1 Council of the Town of Canmore shall be the Development Authority for all development permit applications for a golf course, golf maintenance facilities, golf clubhouses and trails in this District.

14.16.7.2 The Development Officer shall consider and make decisions on all other development permit applications in this District. The Development Officer may refer any development permit applications in this District to the Canmore Planning Commission.

14.16.8 Schedules

Schedule "A" shows the location of this District and forms a part of this Bylaw.



14.17 PAINTBRUSH RIDGE TSMV COMPREHENSIVE RESIDENTIAL DC DISTRICT [05(Z)2005]

14.17.1 Purpose

To provide for a residential district that will accommodate a wide range of residential dwelling types. The district allows the arrangement of a variety of dwelling types in a comprehensively designed area.

14.17.2 Permitted Uses

Duplex

Home Occupation – Class 1

Parks and Playgrounds

Public Utilities

Townhouses

14.17.3 Discretionary Uses

Accessory Building

Signs

Parking Areas

Public and Quasi-Public Buildings

14.17.4 Regulations

14.17.4.1 The minimum front yard depth shall be 2.5m.

14.17.4.2 The minimum rear yard adjacent to the ER shall be 3.0m, otherwise the minimum rear yard depth shall be 1.0m.

14.17.4.3 The minimum side yard depth shall be 1.0m.

14.17.4.4 The maximum building height shall be as indicated on a site grading plan approved as part of a subdivision plan. On the development grading plan, the maximum building heights and number of storeys shall be as follows:

	Eaveline	Maximum Height		Maximum Storeys
		Front Elevation	Rear Elevation	
Duplexes	6.0m	11.0m	11.5m	2 plus loft
Townhouses	9.0m	12.5m	14.0m	2 plus loft

The elevations are calculated at building face using design or existing grade, where appropriate, to roof ridge.

14.17.4.5 The maximum number of dwelling units for the overall comprehensive development area shall not exceed 24 dwelling units.

14.17.4.6 Additional units may be permitted beyond the maximum number of dwelling units provided such units meet the requirements of entry-level units.

14.17.4.7 A minimum of 40% of the comprehensive development area shall be landscaped.

14.17.5 Additional Requirements

14.17.5.1 The comprehensive development area shall be developed in accordance with the following, as identified in Subsection 14.17.8, Schedule “A”, as follows:

Unit 6: Townhouse, to a maximum of 8 units

Unit 7: Townhouse, to a maximum of 8 units

Unit 8: Duplex/Triplex, to a maximum of 8 units

14.17.5.2 All developments shall conform to Section 2, General Regulations.

14.17.5.3 Slope-adaptive housing design shall be utilized on sloped sites.

14.17.5.4 Townhouse and Apartment Design and Landscaping.

The design of Townhouses and the landscaping of sites shall be in accordance with Section 11, Community Architectural and Urban Design Standards.

14.17.5.5 Slope Stability

Where development is proposed that would exceed development otherwise permitted under the Town of Canmore Slope Development Policy (1994), a visual impact assessment shall be prepared in accordance with the Town of Canmore Slope Development Policy (1994). Based on the information provided by the applicant in accordance with the Canmore Slope Policy, Council may approve relaxation(s) to the Canmore Slope Policy for the subdivision land designated under this Bylaw.

14.17.6 Development Authority

The Development Officer shall be the Development Authority for all development permit applications in this district. Development permit applications may be referred to the Canmore Planning Commission at the discretion of the Development Officer.

14.17.7 Sustainability Screening Report

A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.17.8 Schedules

The following schedule forms a part of this District



14.18 STEWART CREEK GOLF COURSE CLUB HOUSE DC DISTRICT [17(Z)2005]

14.18.1 Purpose

To provide for development of a golf clubhouse and accessory uses including but not limited to eating establishments, drinking establishments and retail stores, as part of the comprehensive development of the Stewart Creek Golf Course area.

14.18.2 Permitted Uses

Accessory Building

Driving Range

Golf Clubhouse

Golf Course

Golf Course Maintenance and Storage Facilities

Public Utilities

Signs

14.18.3 Discretionary Uses

Drinking Establishment (freestanding)

Eating Establishment (freestanding)

Parking Areas and Structures

Personal Service (freestanding)

Private Club

Office (freestanding)

Retail Store (freestanding)

14.18.4 Regulations

14.18.4.1 Regulations applying to lot area, site coverage, lot width or front, side or rear setbacks shall be determined at the time of an application for a development permit.

14.18.4.2 The golf course clubhouse and other uses shall be located no less than 18.0m from the southern boundary of this land use district, so as to minimize the impact on the nearby wildlife corridors. The EIS for these uses shall address the impact of the proposed location of these uses, and shall also address alternative locations, if such locations would result in significantly reduced impacts on the wildlife corridors.

14.18.4.3 The terms of reference for the independent environmental review of the proponent's EIS described above, shall be approved by Council.

14.18.4.4 Applications for discretionary uses shall be ancillary to and associated with the principal use of the golf course clubhouse.

14.18.4.5 The maximum gross floor area of the golf course clubhouse shall be 2000m².

14.18.4.6 The maximum building height of the golf course clubhouse shall be as indicated on a site grading plan approved as part of a subdivision plan. In the absence of a development grading plan, the maximum building height of the golf course clubhouse shall be 16.0m, not exceeding 10m at any eaveline.

14.18.4.7 The maximum gross floor area and maximum building heights of all discretionary uses shall be determined by the Development Authority at the time of an application for a development permit.

14.18.4.8 Parking and Loading

- a. Parking requirements for the golf course clubhouse shall be 3 parking stalls per 1 golf hole.
- b. Parking requirements for other uses shall be as outlined in Section 8, General Regulations, of the Land Use Bylaw, including consideration of shared parking arrangements between uses.
- c. The Development Authority may allow a portion of the parking required by the development to be provided on-site or in an off-site location.

14.18.4.9 General Design Requirements

- a. Architectural controls for development within this district shall be developed and administered by the Developer.
- b. Building materials and colours shall be in accordance with Section 11, Community Architectural and Urban Design Standards, as a minimum.

14.18.4.10 Slope Stability

- a. Alterations of existing natural contours and grades shall occur in accordance with a comprehensive grading plan, which shall take into account drainage and soil erosion.
- b. The criteria for building setbacks shall be slope stability.

14.18.4.11 Landscaping

- a. The design guidelines and planting schedules described in Section 11, Community Architectural and Urban Design Standards shall apply as a minimum.
- b. The site shall be comprehensively landscaped in accordance with a plan which shall emphasize the retention, where possible, of existing native vegetation. The use of indigenous species for additional landscaping is encouraged.

14.18.4.12 Additional Requirements

All developments shall conform to Section 2, General Regulations.

14.18.5 Sustainability Screening

14.18.5.1 A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.18.6 Development Authority

14.18.6.1 The Development Authority for all uses shall be the Canmore Planning Commission.

14.18.7 Schedules

Schedule "A" shows the location of this District.



14.19 SCMV-C SPRING CREEK MOUNTAIN VILLAGE VISITOR ACCOMMODATION DC DISTRICT [25(Z)2005]

14.19.1 Purpose

The purpose of this district is to provide for visitor accommodation and associated limited scale commercial development in accordance with the policies and design guidelines set out in the Spring Creek Mountain Village Area Redevelopment Plan, and Urban Design Guidelines. The district will include a clearly identifiable pedestrian scale streetscape visually in keeping with the general theme of the Spring Creek Mountain Village area.

14.19.2 Permitted Uses

Convention Facilities contained within a Visitor Accommodation building

Convenience Store

Eating Establishments contained within a Visitor Accommodation building

Employee Housing

Entertainment Establishments contained within a Visitor Accommodation building

Health, Wellness, and Spa Facilities [2021-23]

Offices contained within a Visitor Accommodation building

Parks and Playgrounds

Personal Service Business [2020-16]

Public Utilities

Retail Stores ground floor (max. gross floor area 150m²)

Visitor Accommodation

14.19.3 Discretionary Uses

Accessory Building

Drinking Establishment contained within a Visitor Accommodation building

Public and Quasi-Public Buildings

Signs, Awnings and Canopies

14.19.4 Specific Definitions

Health, Wellness, and Spa Facilities: means a facility or facilities that provides personal or medical services such as treatments, therapies, massage treatments, alternative treatments, research, product development or sales, education, fitness centres or classes, assessments or other activities associated with health, wellness, or spa services. For this use, the general operating hours will be between 8:00 a.m. and 9:00 p.m. **[2021-23]**

14.19.5 Regulations

14.19.5.1 The minimum site area shall be 500m².

14.19.5.2 The minimum side yard depth shall be 1.5m with building design in accordance with Section 3 of the SCMV Architectural and Landscaping Guidelines.

14.19.5.3 The minimum rear yard depth for development backing Spring Creek or Policeman's Creek Environmental Reserve shall be 6.0m.

14.19.5.4 Creek Setbacks: The minimum setback for buildings backing onto Spring Creek or Policeman's

14 DIRECT CONTROL DISTRICTS

Creek shall be 20.0m, measured from the creek Top of Bank. Due to lot depth, the minimum development setback shall be 15m for the two most northerly hotel/commercial sites. Site design (landscaping and pedestrian pathways) will complement the adjacent riparian area. Encroachments into this setback area shall be allowed for landscaping, retaining walls, patios, and outdoor health, wellness, and spa facilities up to the property line, and for decks projecting 1m from the building facade. **[2021-23]**

14.19.5.5 The front property line of each entire block shall be the principal build-to-line with allowable variations as follows:

- a. A minimum of 25% of the main floor street frontage shall be set back 0.3m to 3.0m for facade articulation.

14.19.5.6 All sides of a block that front a public or private street shall be considered front property lines.

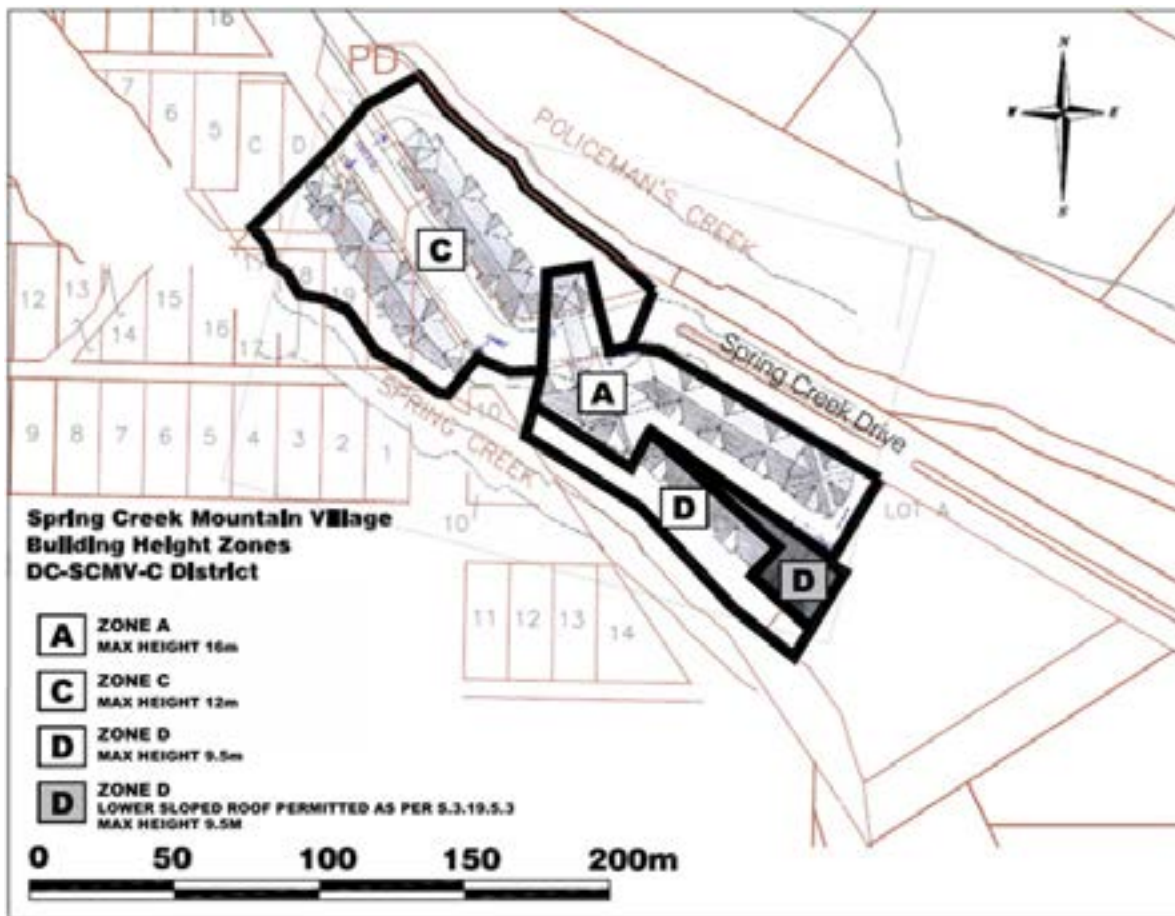
14.19.5.7 Height Zones: Maximum building heights within the Spring Creek Mountain Village Commercial District shall be in accordance with Figure 1. Architectural elements up to 12m in Zone D may be permitted.

Zone A maximum height 16.0m (4 Storeys)

Zone C maximum height 12.0m (3 Storeys)

Zone D maximum height 9.5m (2 Storeys plus loft)

Figure 1



14.19.5.8 Building Height Measurement: Maximum building height shall be measured from the finished grades outlined in an approved site-regrading plan to the roof ridge line. Where the Development Authority is satisfied that the architectural integrity of a building would be enhanced, variances may be granted as outlined below:

- a. Height Zones A, B, and C: 20% of the building may exceed the maximum height by up to 10% and 5% of the building may exceed the maximum height by up to 20%.
- b. Height Zone D: 10% of the building may exceed the maximum height by up to 10%.

14.19.5.9 Visitor Accommodation Units: The number of visitor accommodation units shall not exceed 250 units in this District unless a policy revision is approved by Council. **[2021-23]**

14.19.5.10 Parking, Loading and Storage

Visitor accommodation guest rooms will be served by structured parking within each building block. Visitor accommodation related commercial parking will generally be on-street but the Approving Authority must be satisfied that sufficient street parking is available to meet an average of 1 parking space per 46m² of commercial floor space. Loading for visitor accommodation buildings will be off-street and in accordance with Section 8 General Regulations. At the discretion of the Development Authority, Bus parking shall be provided at

14 DIRECT CONTROL DISTRICTS

a ratio of 15 stalls to 1 bus stall.

Section 2, General Regulations will apply except that for this District, the following will be provided: **[2021-23]**

Unit Type	Number of Parking Spaces	Type of Parking
Visitor Accommodation	1.0 per guest room (car)	Private on-site
Visitor Accommodation related Commercial	1.0 per 46m ²	On-street
Covered Bike Parking	1 bike stall per 5 vehicle stalls	Private on-site

14.19.5.11 Employee Accommodation: Visitor accommodation operators shall provide for 25% of full time and seasonal staff housing needs or at a ratio consistent with any Town policy for Staff Accommodation for other similar developments on the Bow Valley Trail or Gateway Districts that is adopted by the Town of Canmore from time to time. Employee Housing Units may be provided at another location within or outside of Spring Creek Mountain Village subject to the approval of the Development Authority. **[2021-23]**

14.19.5.12 Notwithstanding any other provision of this Bylaw, if a variance is granted under Subsection 14.19.4.4 of this district, then at-grade parking is not permitted within the 15.0m rear yard setback area, and the Development Authority is satisfied that the remaining setback area between the building and the top of bank will be landscaped in accordance with Section 12, Community Architectural and Urban Design Standards.

14.19.5.13 Excluding hotel room decks and balconies, all outdoor common or private hotel amenity spaces shall be designed to minimize the impacts of noise on adjacent residential areas to the satisfaction of the Development Authority. **[2021-23]**

14.19.6 General Design Requirements

14.19.6.1 Area Redevelopment Plan Compliance: The development shall follow the planning principles and urban design guidelines set out in the Spring Creek Mountain Village Area Redevelopment Plan, September 2004.

14.19.6.2 Pedestrian Scale: Building design shall be orientated to a community pedestrian scale and integrated into a comprehensive open space and trail network as shown in Figure 7 of the approved ARP. Pedestrian bridge corridors and pedestrian underground corridors may be used onsite to encourage pedestrian mobility between the hotel sites.

14.19.6.3 Roof Design: Roof design shall reflect function and the architectural requirement and tradition of providing sheltering roofs in a mountain environment. Minimum roof pitch shall be 8:12 for all visible portions of the roof and dormers; where a 8:12 roof slope for a real “working” roof is impractical due to the depth of the building, a lower slope may be used; lower slopes may also be used on smaller portions of roof such as dormers, canopies and gables; roof lines shall be articulated and larger structures shall incorporate a cascade of roofs to break up massing and add visual interest. A minimum 2:12 roof pitch shall be permitted in Zone D as illustrated on Figure 1.

14.19.6.4 Building Massing: Lower, less dense development shall be located within the identified Height

Zone D with increasing massing through Height Zones C and A (See Figure 1)

- 14.19.6.5 Landscaping: Landscaping design and materials shall be in accordance with Section 11, Community Architectural and Urban Design Standards, of the Land Use Bylaw
- 14.19.6.6 Signage, Canopies and Awnings: Signage, canopies and awnings shall be in accordance with Section 9, Signage Standards and Regulations, of the Land Use Bylaw. Notwithstanding Section 9, ground floor businesses within this district are permitted to have signs located at the building frontage.
- 14.19.6.7 For the most northwesterly visitor accommodation development adjacent to Spring Creek (Plan 1810013; Block 9; Lot 2), the following uses shall not be permitted: Convention Facilities; Drinking Establishment; and Entertainment Establishment. This prohibition prevails over the general listing of Convention Facilities and Entertainment Establishment within a Visitor Accommodation building as a Permitted Use. **[2021-23]**

14.19.7 Wellhead Protection

Developments in this district shall conform to Subsection 7.4, Wellhead Protection Area Regulations, of the Land Use Bylaw.

14.19.8 Environmental Considerations

The environmental policies identified in the Spring Creek Mountain Village Area Redevelopment Plan Section 4.3 shall be implemented with each stage of development. The implementation process shall include as part of the subdivision servicing agreement the following plans:

- a. Construction Management Plan
- b. Creek Bank Reclamation Plan
- c. Landscaping Plan

14.19.9 Development Authority

- 14.19.9.1 The Council of the Town of Canmore shall be the Development Authority for any application that involves a variance to heights beyond the height variances listed in Subsection 14.19.4.8 and any variance to the 15m creek setback established in section 14.19.4.3. **[2021-23]**
- 14.19.9.2 The Development Authority for new commercial buildings over 500m² shall be the Canmore Planning Commission.
- 14.19.9.3 The development authority for all other developments, including but not limited to signs and changes of use, shall be the Development Officer, unless the development officer chooses to refer these applications to the Canmore Planning Commission.

14.19.10 Sustainability Screening Report

A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.20 TS-RC THREE SISTERS RESORT CORE DC DISTRICT [27(Z)2006 DC]**14.20.1 Purpose**

The purpose of the Resort Core area is to provide for a broad range of uses including health spas, hotels, employee housing, accommodation, restaurant and other supporting commercial uses consistent with the health, wellness and recreation functions. The resort centre is envisioned as the focal point of the entire Three Sisters Mountain Village area, and is intended to provide uses and facilities for both visitors to the community and residents of the community.

14.20.2 Permitted Uses (Subject to Subsection 14.20.4)

Amenity space / Plaza

Arts and crafts studios

Athletic and recreation facilities

Convenience Stores

Cultural establishments

Day care

Eating establishments

Entertainment establishments

Golf Course Clubhouse and facilities

Resort accommodation - TSMV as defined in this Bylaw and including the following built forms:

- i. Apartment resort accommodation units
- ii. Stacked townhouses resort accommodation units
- iii. Townhouse resort accommodation units

Health, wellness and resort spa facilities

Hostel

Medical Centre

Medical Clinic

Office

Outdoor recreation facilities

Parks and playgrounds

Personal services business

Private club

Public and Quasi-public buildings

Public utilities

Retail stores (1,000m² or less gross floor area)

Seasonal and temporary business

Souvenir shops

Taxi stand

Visitor Accommodation (up to 16m in height)

14.20.3 Discretionary Uses (Subject to Subsection 14.20.4)

Amusement arcades

Automobile rentals

Brewery/Distillery

Cannabis Retail Store
Drinking establishments
Employee housing
Hostels
Light manufacturing operations
Liquor store
Parking areas and structures
Retail stores (over 1,000m² gross floor area)
School, private or commercial
Signs
Transportation terminal
Visitor accommodation (over 16m in height)
Visitor accommodation (small scale)

14.20.4 Development Scheduling

Non-compliance with this Subsection 14.20.4 constitutes a valid reason for the refusal of any development permit application made within this district, notwithstanding the permitted or discretionary use proposed. Variances to this section are specifically prohibited by Council, and shall be altered only through the Land Use Bylaw amendment process.

- 14.20.4.1 Prior to the 150th visitor or resort accommodation unit within the boundary of the Resort Centre ASP shown in Bylaw 23-2004, being given approval through the development permit process, the developer shall establish an “Employee Housing Authority.”
- 14.20.4.2 Prior to the 150th resort accommodation unit within the boundary of the Resort Centre ASP shown in Bylaw 23-2004, being given approval through the development permit process, the developer shall establish a resort accommodation reservation system for resort accommodation units within this district, in accordance with Section 5.4.2(c) of the Resort Centre ASP.
- 14.20.4.3 Prior to the 300th visitor or resort accommodation unit within this district being given approval through the development permit process, the developer shall submit a development and building permit application for a health, wellness and resort spa facility or facilities in accordance with Section 5.3.2(b) of the Resort Centre ASP.
- 14.20.4.4 Prior to the 300th visitor or resort accommodation unit within this district being given approval through the development permit process, the developer shall submit a development permit application for a community amenity space. Examples of community amenities that could be located within this area are parks and plazas, an amphitheatre / band shell, public promenade, and climbing walls. Public access to any community facilities shall be ensured to the satisfaction of the Development Authority.

14.20.5 Specific Definitions

Resort accommodation – TSMV: means a building or group of buildings for visitors to the resort area, which may be utilized for non-residential tenancies, is not intended to be used for permanent living accommodation, and shall include visitor accommodation and other tourist accommodation, and fractionally owned property. Resort Accommodation may be in the form of visitor accommodation units, apartment resort accommodation units, and resort

townhouse accommodation units / stacked townhouse resort accommodation units, and shall in all cases be considered as a commercial land use for the purposes of municipal assessment and taxation, with no restrictions or minimum or maximum occupancy periods.

Health, wellness and spa facilities: means a facility or facilities that provides personal or medical services such as treatments, therapies, massage treatments, alternative treatments, research, product development or sales, education, fitness centres or classes, assessments or other activities associated with health, wellness or spa services.

Medical centre: means a facility for the provision of human health services but also allows for medical research, testing and educational uses to accompany the provision of health services to the public and includes provision for overnight accommodation.

Visitor Accommodation (small scale): means a development which contains a maximum of twelve visitor accommodation units without cooking facilities and one unit with private cooking facilities for the on-site management and operation of the development, and a common kitchen and a dining facility for the provision of meals to guests of the development.

Resort accommodation reservation system: means a mechanism by which the general public can readily access via phone or the internet, for the purposes of renting or leasing a resort accommodation unit. The reservation system is intended to facilitate a regular turnover in the occupancy of the resort accommodation units, and to minimize the number of units that are privately owned and not accessible for rental or reservation by visitors.

14.20.6 Regulations

- 14.20.6.1 The minimum side yard depth shall be 4.0m between buildings.
- 14.20.6.2 The minimum rear yard depth shall be 2.0m. Rear yards should allow for any surface parking, where appropriate.
- 14.20.6.3 The location of the building and the depth of the front yard should be determined as part of a development permit to allow buildings that contain retail commercial frontages with the opportunity to address the street and offer the potential for interaction between the uses in the building and the public realm. Where some privacy is desired for a use adjacent to a street, then setbacks should be adequate for landscaping to provide a sense of privacy. The minimum front yard depth shall be zero where appropriate, such as retail commercial frontages, increasing up to 3.0m as a minimum where appropriate.
- 14.20.6.4 The location of the building and the depth of the side and rear yards should be determined as part of a development permit. Side yards should allow for a building to address a side street or pedestrian thoroughway where appropriate, and create a continuous commercial frontage where needed.
- 14.20.6.5 The maximum building height shall be 16.0m.
- 14.20.6.6 The maximum building height for two (2) landmark visitor accommodation buildings shall be the lesser of 28.0m or six storeys.
- 14.20.6.7 For buildings with a maximum building height of 16.0m or less, where the Development

14 DIRECT CONTROL DISTRICTS

Authority is satisfied that slope-adaptive design is being utilized on a site, and upper floor units are integrated into the roof design, variances may be granted to allow a total of 20% of the roof areas to exceed the maximum height by up to 20% in order to allow additional design flexibility. No height variance will be permitted above the 28.0m limit for the landmark visitor accommodation buildings.

14.20.6.8 Maximum eaveline height for the 16m building height limit (exclusive of landmark buildings) shall be 11m.

14.20.6.9 A minimum of 15% of the site area shall be landscaped.

14.20.6.10 The maximum gross floor area ratio shall be 3 times the site area.

14.20.6.11 Buildings, parking areas, loading areas and vehicle driveways shall be set back a minimum of 5m from the public natural surface trail located on the southern boundary of the district adjacent to the golf course to allow for natural landscaping to be installed between adjacent buildings and the trail, to provide a trail user an alternative route and experience to an urban environment.

14.20.6.12 No less than 450 resort and/or visitor accommodation units shall be provided within this district.

14.20.6.13 Development for the health/medical, wellness and spa facility or cluster of facilities shall be no less than 5,574m² gross floor area, and no more than 13,935m² gross floor area within this district.

14.20.6.14 Commercial-retail development supportive to the health/medical, wellness and spa development shall not exceed 2,332.5m² of gross floor area.

14.20.7 Additional Requirements

14.20.7.1 All developments shall conform to Section 2, General Regulations and Section 11, Community Architectural and Urban Design Standards. Where there are contradictions in the regulations, those stated in this district shall have precedence.

14.20.7.2 All development shall be consistent with the principles and policies of the Resort Centre Area Structure Plan (Bylaw 23-2004), unless additional details have been described in this Bylaw.

14.20.7.3 For any visitor accommodation development permit application for a landmark building in excess of 16m and less than 28m, or adjacent to the north slope of the district (adjacent to and above the Three Sisters Parkway), a visual impact assessment shall be provided. It is recognized that such a development is specifically intended to be visible from most areas of the Bow Valley, the intent of the visual impact assessment is to ensure an aesthetic design cognizant of the surrounding visual landscape. The visual impact assessment shall provide professionally produced images of the proposed development from:

- a. adjacent streets or development sites;
- b. the Trans-Canada Highway; and
- c. a similar elevation on the opposite side of the valley.

The results of the visual impact assessment may be utilized by the Development Authority to

require amendments to the building design to address issues raised.

14.20.7.4 Environmentally Sensitive Areas identified in the 2005 Environmental Impact Statement for the Three Sisters Golf Resort shall be reviewed for potential impacts and mitigated through the design of the subdivision or other mitigation techniques.

14.20.7.5 Development applications in this land use district shall comply with any requirements to undertake or complete a review using the Sustainability Screening Matrix as required by approved policy of the Town.

14.20.8 Use Performance Guidelines

14.20.8.1 Automobile Rental is a commercial use which is limited to the automotive sales and rentals excluding any automotive services, sale of parts and outdoor storage. This use is limited to a gross floor area of 150m².

14.20.8.2 Seasonal kiosks and businesses can be erected in this district for commercial uses and for the purpose of assembly, recreational, social, educational events in accordance with the Land Use Bylaw.

14.20.8.3 Light manufacturing operations shall be limited to those that are compatible with adjacent uses with respect to such issues as hours of operation, nature of traffic visiting the site, noise, odour and other emissions.

14.20.8.4 The district is not intended to provide large format retail stores. Any single proposed commercial retail space, with the exception of health / medical, wellness and spa facilities, larger than 1000m² shall require a retail impact study to be managed by the Town of Canmore, but paid for by the applicant, and consider prior retail impact analyses. Where an undue economic impact on existing commercial areas in the Downtown (TC District) and Gateway (GD District) is identified, measures such as the following may be undertaken:

- a. Restrictions on particular commercial uses;
- b. Restrictions on the size of commercial uses or types of uses;
- c. Phasing of commercial development with the area;
- d. Other methods deemed mutually acceptable to the Town of Canmore and the Developer/Applicant;
- e. Refusal of development permit.

Where commercial tenancy in a single commercial retail space over 1000m² changes, a revised retail impact study may be required at the discretion of the Town of Canmore.

14.20.8.5 Amenity spaces and plazas should be visible from public streets and trails, and be surrounded by uses that add to the use of the space, including uses such as restaurants, cafes, and retail uses. Amenity spaces should have (a) clearly defined use(s) and purpose and be designed according to the intended use(s).

14.20.8.6 A community transportation node shall be provided within walking distance (optimally no more than 400m) of the principal health, wellness and spa facilities and major visitor accommodation developments. This node shall be located on the principal street through the

district.

14.20.9 Urban Design Guidelines

- 14.20.9.1 Traffic calming measures may be employed in appropriate locations in order to reduce vehicle speed, enhance the aesthetic appearance of the road, and enhance pedestrian safety and comfort, while maintaining roadway capacity.
- 14.20.9.2 Major gateways may receive special treatment including the prominent placing of structures and key pedestrian linkages and open space areas, intersection design, formal landmark, changes in building scale, signage and orientation to capitalize on prominent views.
- 14.20.9.3 Development within this district should provide an interconnected system of amenity spaces and public places that provide key activity areas and focal points, and function as zones of commercial and transportation foci within the district where possible. Assurances of continued public access to outdoor amenity spaces shall be provided by the Developer to the satisfaction of the Town.
- 14.20.9.4 Major public spaces, plaza areas and key amenity features should be located at intersections of important resort centre activity.
- 14.20.9.5 Development should provide for open space elements of the Area Structure Plan that serve as a focus for visitor, community cultural and recreational events and activities, including components such as health and wellness facilities, water features, an amphitheatre, a trail system and components of the golf course.
- 14.20.9.6 Surface and above-grade structural parking areas should be terraced to conform to the natural terrain, where feasible.
- 14.20.9.7 Entry feature design and construction materials shall be consistent with or complimentary to architectural themes established for the district.
- 14.20.9.8 Wherever practical, key buildings and primary open space areas should be oriented to maximize solar exposure, particularly during the winter months.
- 14.20.9.9 Service, access and loading areas shall be provided toward the rear of buildings.
- 14.20.9.10 Streets should form vistas of key activity nodes, parks and natural or constructed features in order to establish a series of landmarks focused on key activity nodes within this district.
- 14.20.9.11 Views of the Bow Valley and the mountain range to the south from major developments, key activity areas and key public places should be encouraged wherever possible.
- 14.20.9.12 Landscaping and tree planting should be provided in the boulevards and / or medians of public streets where appropriate.
- 14.20.9.13 Site design shall make provision for active space and passive outdoor public space for community activity within this district and use building siting to create a sense of place and define the space.
- 14.20.9.14 On the principal street through the district, or directly in front of where commercial retail frontage is orientated, the sidewalk should be a minimum of 1.8m in width.

14.20.10 Detailed Design Requirements

- 14.20.10.1 Building design and construction materials shall be consistent with architectural guidelines, which shall be established for the district and enforced by the developer.
- 14.20.10.2 All development within this district shall comply with any “green building” standards or policy adopted by Council of the Town of Canmore. The standards or policy will establish construction standards which achieve, as a minimum, a “Built Green” silver certification or equivalent. Monitoring requirements by the developer for “green building” standards shall be a condition of any development permit issued in this land use district. Variances for parking, setbacks and building heights may be considered by the Development Authority for “green” buildings.
- 14.20.10.3 Slope-adaptive building design shall be utilized on sloped sites.
- 14.20.10.4 Roofs shall reflect function and the architectural requirement and tradition of providing sheltering roofs in a mountain environment, but may also incorporate flat sections where architecturally suitable. Minimum roof pitch shall be 6:12 for all portions of the roof and dormers; roof lines shall be articulated and larger structures shall incorporate a cascade of roofs to break up massing and add visual interest.
- 14.20.10.5 Any development above a third storey, except landmark buildings over 16m in height, shall incorporate some stepping back of the building face to ensure consistency with the Massing and Scale section of Section 11, Community Architectural & Urban Design Standards.
- 14.20.10.6 Major developments and amenity spaces shall provide facilities for visitors and employees to secure bicycles. Bicycle racks or storage should be located in convenient, visible, well lit areas.
- 14.20.10.7 Electrical and mechanical equipment located on rooftops shall be enclosed and screened so as not to be visible from public sidewalks or commercial areas of similar elevation.
- 14.20.10.8 A comprehensive site signage package including proposed architectural details for freestanding, directional, and fascia signage shall be developed as part of a development permit application.
- 14.20.10.9 Up to a maximum of 50% of the required landscaped area may be in the form of hard landscaping including recreation facilities (e.g. tennis courts) at the discretion of the Development Authority.
- 14.20.10.10 Resource-saving design and building techniques, such as optimizing solar exposure, xeriscaping, and ecological landscaping should be considered in all landscaping plans.
- 14.20.10.11 All garbage storage areas except streetscape pedestrian containers shall be located inside the principal building, or designed and located on a community or collective basis inside buildings.
- 14.20.10.12 Construction Management Plans shall be prepared as part of all new subdivision and significant development permit applications.
- 14.20.10.13 The primary entry of all buildings shall face a street or a public space.
- 14.20.10.14 Ground floor façades along the principal through street or plazas shall incorporate a

14 DIRECT CONTROL DISTRICTS

high degree of visual interest through articulation including such design features as enhanced building or unit entries, arcades, display windows, porches, patios, projected windows, colonnades and canopies or other such features along no less than 40% of the horizontal length of the building. Horizontal articulation in the façade should be no less than 1.0 metre;

14.20.10.15 Side and rear elevations that are highly visible should include architectural features, materials and treatment that complement the principal façade of the building;

14.20.10.16 Buildings shall incorporate through access providing connections to the parking areas behind the building where appropriate.

14.20.11 Subdivision Requirements

14.20.11.1 A conceptual site plan for the district detailing the open space plan and trail linkage plan shall be provided with the first application for subdivision or development within the land use district to demonstrate the functional relationship between systems of public and private open space in accordance with the Resort Centre Area Structure Plan. The site plan shall be to the satisfaction of the Town.

14.20.11.2 Prior to subdivision on or adjacent to steep slopes, suitable geotechnical analysis shall be provided to the Town to determine that the proposed development can be safely constructed.

14.20.11.3 Setbacks along the north slope of the district (adjacent to and above the Three Sisters Parkway), shall also consider a visual impact assessment as viewed from the Three Sisters Parkway.

14.20.12 Employee Housing

14.20.12.1 All applications for visitor accommodation uses within the district shall include an employee generation study. Employee housing for visitor accommodation shall be provided to the satisfaction of the Development Authority in accordance with the greater of the following calculations:

- a. For visitor accommodation developments <60 units: 1 bedroom / 10 units;
- b. For visitor accommodation developments 60-100 units: 1 bedroom / 8 units;
- c. For visitor accommodation developments > 100 units: 1 bedroom / 6 units;
- d. 50% of the new direct employment for the development.

14.20.12.2 Employee housing requirements for commercial uses other than visitor accommodation shall be determined on a case by case basis between the Town and the developer at the development permit application stage, and provided at no less than 50 %) of the anticipated new direct employment for the development.

14.20.12.3 Employee housing for resort accommodation shall be provided in the following manner:

Size of Resort Accommodation Unit (m²)	Employees Created (FTE)
< 92.9	0.1
92.9 – 185.8	0.15
185.9 – 371.6	0.25
371.7 – 557.4	0.5
557.5 – 650.3	0.75
650.4 – 743.2	1.0
743.3 – 929.0	1.5
929.1 – 1021.9	2.0
1022.0 – 1114.8	2.5
1114.9 +	3.0

These numbers shall be reviewed from time to time to ensure that adequate employee housing is being provided. When calculations are completed and result in a partial Full Time Equivalent (FTE) number, this number shall be rounded up to the next highest whole number.

- 14.20.12.4 Employee housing shall be constructed concurrently with any new development proposal and available for occupancy at the same time as the commercial development.
- 14.20.12.5 At the request of the developer, Employee housing provided in the form of perpetually affordable housing or other alternatives (such as proven leasehold arrangements) may be accepted at the discretion of the Development Authority to provide ownership opportunities for employees.
- 14.20.12.6 The employee housing requirement generated within this district may be provided within the Stewart Creek Area Structure Plan or, alternately, other areas offsite to the satisfaction of the Development Authority.
- 14.20.12.7 Any future employee housing requirements adopted by Council intended to apply uniformly to all new commercial development throughout the Town shall supersede the requirements noted above.
- 14.20.12.8 All employee housing units provided pursuant to the regulations of this district shall be managed by an Employee Housing Authority or similar organization. The Employee Housing Authority shall ensure that employee housing is maintained and operated as employee housing, and shall ensure to the satisfaction of the Town that employee housing is maintained and operated as employee housing (including the possible use of restrictive covenants or other methods) as long as the commercial development operates and requires housing for its staff. The Employee Housing Authority shall also be responsible for periodic verification that employee housing is being occupied as intended.
- 14.20.12.9 The Employee Housing Authority shall report on an annual basis to the Town or to the Canmore Community Housing Corporation, indicating the number of units currently under its management, the commercial operation to which those units are attached, and the results of its verification efforts.
- 14.20.12.10 The Employee Housing Authority shall also be responsible for ensuring that appropriate remedies and enforcement action is taken should verification efforts reveal that employee housing units under its management are not being used or occupied as intended.

14.20.13 Slope Stability

14.20.13.1 Alteration of the existing natural contours and grades shall occur in accordance with a comprehensive grading plan, which shall take into account drainage and erosion impacts.

14.20.13.2 The main criteria for building setbacks from the top or bottom of slope should be slope stability.

14.20.14 Transportation System

14.20.14.1 Road right of way widths for the principal through street only shall be designed to accommodate stops or pull outs for transit vehicles. These need only be constructed when transit services are extended to this district.

14.20.14.2 Road, sidewalk and trail designs shall be undertaken to accommodate comfortable, safe pedestrian and cycling environments.

14.20.14.3 Road design should employ traffic calming measures in appropriate locations in order to reduce vehicle speed, enhance the aesthetic appearance of the roadway, and enhance pedestrian safety as required, while maintaining roadway capacity.

14.20.14.4 The design of pedestrian and cyclist routes should provide for convenient connections and multiple route choices to origin / destination points within the plan area, and inter-connected pedestrian and cyclist systems within the district.

14.20.14.5 Alternative design standards for public roadways shall be encouraged with respect to:

- a. pavement widths for travel and parking lanes;
- b. potential to provide bicycle lanes;
- c. boulevards / green space areas;
- d. stormwater drainage;
- e. snow removal and snow storage management;
- f. building setbacks from the property line; and
- g. horizontal and vertical curves and design grades, where deemed appropriate.
- h. detailed design and storm water, emergency access and utility line assignment analyses.

14.20.14.6 The trail system shall also connect to hiking and cycling paths in areas adjacent to this district.

14.20.15 Parking

14.20.15.1 Ultimately day use parking requirements shall be limited on-site and generally provided through the construction of “intercept parking facilities” in the Stewart Creek Area Structure Plan area. Day use parking areas may be provided on-site until such time as the amount of commercial development warrants the construction of intercept parking facilities. Intercept parking facilities must be provided upon the construction of the 300th resort accommodation unit or upon the construction of 2,787m² or more gross floor area of commercial retail, health / medical, wellness or spa facilities.

- 14.20.15.2 The development of surface parking facilities should be minimized in this district.
- 14.20.15.3 Parking areas and structures should be located in such a manner as to not adversely affect the pedestrian streetscape. Surface parking areas should be located behind buildings and parkade structures ideally would have other uses on the ground floor that contribute to the public street.
- 14.20.15.4 The design of roadways other than the principal through street adjacent to commercial / retail uses within this district should provide for on street parking where appropriate.
- 14.20.15.5 Larger parking areas and structures for this district should be located on the periphery of this district, at major transportation nodes wherever possible, to promote non-vehicular transportation.
- 14.20.15.6 Consideration of shared use of parking facilities shall be included in any development permit, with the intent of reducing the overall amount required by maximizing their ability to serve daytime, evening and weekend demands.
- 14.20.15.7 Parking for resort accommodation shall be provided in the same manner as residential developments outlined in Section 8, General Regulations, of the Land Use Bylaw (with the exception of “guest” parking which shall not be required).

14.20.16 Municipal Infrastructure Servicing

- 14.20.16.1 A developer shall review the potential for the application of alternative techniques for municipal infrastructure at the subdivision application stage.
- 14.20.16.2 A developer shall assess, as part of the preparation of a Stormwater Management Plan, alternatives for stormwater quality and quantity enhancement, including:
- a. source controls as opposed to end-of-pipe solutions
 - b. off-site solutions; and
 - c. naturalized methods, such as natural wetlands.
- 14.20.16.3 All Stormwater Management Plans shall follow best management practices in the application of erosion and sedimentation controls.

14.20.17 Development Authority

- 14.20.17.1 Council shall be the approving authority for any development permit application for a visitor accommodation building over 4 storeys plus loft in height.
- 14.20.17.2 The Development Officer shall be the Development Authority for all other development permit applications within this District, who may refer to the Canmore Planning Commission any application at his/her discretion.
- 14.20.17.3 Notwithstanding Section 1.10 of the Land Use Bylaw, a development permit shall be required for a proposed change of use within an existing commercial building, in order to determine if the employee housing requirements have altered.

14.20.18 Schedule

Schedule "A" shows the location of this District.



14.21 WOODSIDE LANE RESIDENTIAL SINGLE FAMILY DETACHED PLUS DC DISTRICT [31(Z)2006]

14.21.1 Purpose

To provide for single-family residential accommodation within single family-detached plus dwelling units on irregular bare land condominium lots where the appearance of the homes from the street are similar to single family-detached dwellings. Non-single family residential uses or developments may be allowed in accordance with the listed “discretionary uses” when such uses are compatible with the single-family residential purpose of the District.

14.21.2 Permitted Uses

Attached Accessory Dwelling Units, associated with single family detached dwellings

Home Occupation - Class 1

Parks and Playgrounds

Public Utilities

Single Family Detached Dwellings

Single Family Detached Plus Dwellings

14.21.3 Discretionary Uses

Accessory Building

Bed and Breakfasts

Home Occupation - Class 2

Signs

14.21.4 Regulations

14.21.4.1 The minimum lot area shall be 500m².

14.21.4.2 The minimum lot width shall be 9.6m.

14.21.4.3 The front, side and rear yards for each condominium unit shall be as follows:

Minimum Yard Regulations for Woodside Lane				
Units	Front (m)	Side Right (m)	Side Left (m)	Rear (m)
1	6.0	1.5	3.0	7.5
2 to 6	6.0	1.5	1.5	7.5
7	4.0	1.5	1.5	7.5
8	4.0	1.5	1.5	7.5 & 4.0
9 to 11	4.0	1.5	1.5	4.0
12	4.0	1.5	3.0	4.0

14.21.4.4 The maximum building height shall be the lesser of 2 storeys plus loft or 10.0m.

14.21.4.5 The maximum site coverage for all buildings shall be 40%.

14.21.4.6 The maximum floor area of an attached accessory dwelling unit shall not exceed 40% of the gross floor area of the residential building or 80m², whichever is less.

14.21.5 Additional Requirements

14.21.5.1 All development shall conform to Section 2, General Regulations, with the following exceptions or clarifications:

- a. All required parking stalls shall be located on the same condominium unit site as the development.
- b. Notwithstanding any other provisions of this Bylaw, the minimum driveway length shall be no less than 6.0m, measured from the centre line of Woodside Lane to the garage along the centre line of the driveway.
- c. The following exceptions to projections for the purposes of decks less than 2.0m high are permitted.

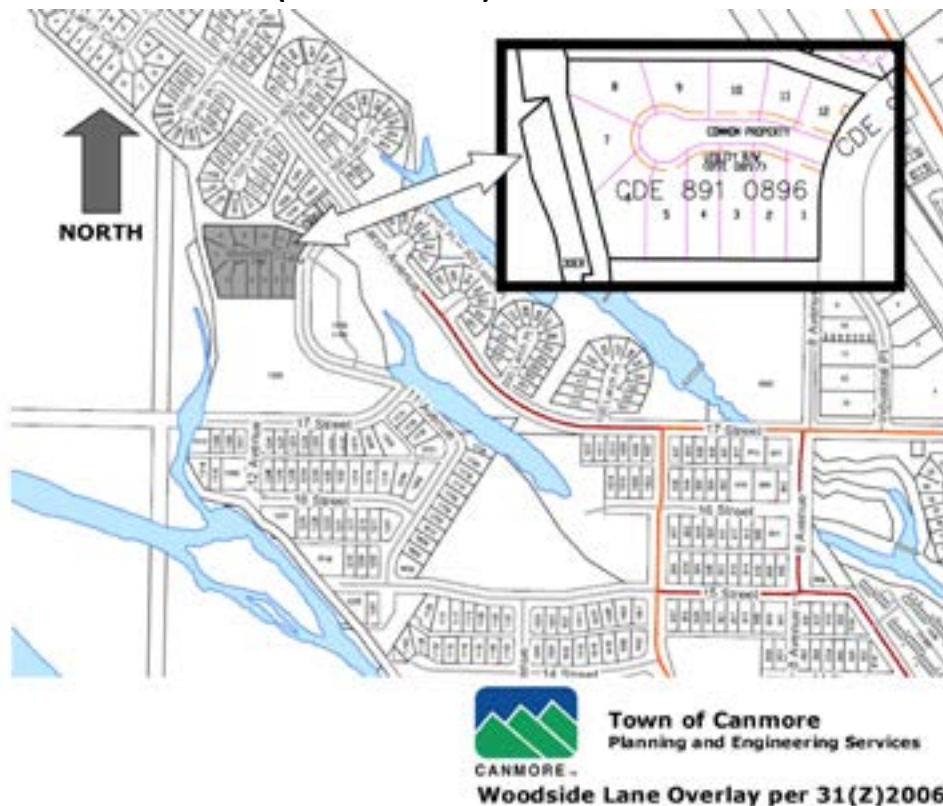
14.21.5.2 A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.21.6 Development Authority

Council hereby authorizes the Development Officer to issue development permits for all uses in this land use district.

14.21.7 Schedules

Schedule A - Woodside Lane (CDE 891 0896)



14.22 SILVERTIP VILLAGE CORE DC DISTRICT [BYLAW 37(Z)2007]

14.22.1 Purpose

To provide for a comprehensively planned resort village core at Silvertip that is based on the Silvertip Area Structure Plan and offers a wide range of uses associated with a resort.

14.22.2 Permitted Uses

Accessory Building
Amenity Space/Plaza
Arts and Crafts Studios
Athletic and Recreation Facilities
Bed and Breakfast
Cultural Establishment
Convenience Stores
Convention Center
Day Care
Driving Range
Eating Establishments
Entertainment Establishments
Golf Course Clubhouse and Facilities
Golf Course Maintenance Facility
Health, Wellness and Resort Spa Facilities
Hostels
Laundromat
Lodge
Medical Centres
Medical Clinics
Offices
Outdoor Recreation Facilities
Parks and Playgrounds
Personal Services Business
Plazas
Private Clubs
Public and Quasi-Public Buildings
Public Utilities
Resort
Resort Accommodation (TSMV)
Retail Food Stores (GFA up to 2,000 m² per building)
Retail Stores (GFA up to 2,000 m² per building)
Souvenir Shops
Taxi Stand
Visitor Accommodation
Visitor Accommodation (small scale)

14.22.3 Discretionary Uses

Amusement Arcades

Apartment
Automobile Rentals
Cannabis Retail Store
Drinking Establishments
Employee Housing
Laundry
Liquor Store
Parking Areas and Structures associated with activities or uses in the Village Core
School, Private or Commercial
Signs
Seasonal and Temporary business
Shopping Centre
Townhouse
Townhouse, Stacked Apartment
Transportation Terminal
Winery

14.22.4 Definitions

Health, Wellness and spa facilities means a facility or facilities that provides personal or medical services such as treatments, therapies, massage treatments, alternative treatments, research, product development or sales, education, fitness centres or classes, assessments or other activities associated with health, wellness, or spa services.

Medical Centre means a facility for the provision of human health services but also allows for medical research, testing and educational uses to accompany the provision of health services to the public and includes provision for overnight accommodation.

Resort accommodation (TSMV) means a building or group of buildings for visitors to the resort area, which may be utilized for non-residential tenancies, is not intended to be used for permanent living accommodation, and shall include visitor accommodation and other tourist accommodation, and fractionally owned property. Resort accommodation may be in the form of visitor accommodation units, apartment resort accommodation units, and resort townhouse accommodation units/stacked townhouse resort accommodation units, attached and detached resort accommodation units, and shall in all cases be considered as a commercial land use for the purposes of municipal assessment and taxation, with no restrictions or minimum or maximum occupancy periods.

Winery means a facility that is used to produce, manufacture or bottle wine and may include retail sales.

14.22.5 Regulations

14.22.5.1 Regulations applying to lot area, site coverage, floor area, lot width or front, side or rear yard setbacks shall be determined at the time of an application for a development permit. The siting of buildings and the location of parking shall be consistent with the provisions of the Village Design Guidelines as per Appendix A of the Silvertip Area Structure Plan.

14.22.5.2 Resort accommodation and visitor accommodation structures (including mixed uses) of

up to and including 7 storeys plus loft spaces, and excluding underground or basement parking structures built in conjunction with and that form an integral part of any resort accommodation or visitor accommodation, shall be permitted.

- 14.22.5.3 A development permit application for a larger or visible resort accommodation or visitor accommodation shall include the submission of a visual impact assessment in conjunction with the requirements of the Silvertip Area Structure Plan.
- 14.22.5.4 The maximum building height for townhouse, stacked townhouse or attached resort accommodation units shall be 3 storeys plus lofts excluding underground or basement parking structures.
- 14.22.5.5 The maximum building height for detached resort accommodation units shall be 2 storeys plus lofts.
- 14.22.5.6 The maximum building height for all other structures shall be subject to acceptance by the Development Authority based on an evaluation of the building's visible features submitted as a visual impact assessment in conjunction with an application for a development permit.
- 14.22.5.7 The maximum dwelling and resort and/or visitor accommodation unit density within the Silvertip Village Core District shall be 1,290 resort and/or visitor accommodation units.
- 14.22.5.8 Parking and Loading
 - a. Parking and loading spaces shall be provided, recognizing that the Village Core is a comprehensively planned, pedestrian area where parking will be shared amongst the various uses.
 - b. Notwithstanding Section 2 of the Land Use Bylaw, the number of parking stalls in the Silvertip Village Core shall be provided in accordance with the following:
The required parking stalls for a development are based on gross floor area unless otherwise specified.
 - i. Resort Accommodation
 - 0 - 100 units: 0.75 per unit
 - 101 + units: 0.65 per unit
 - ii. Athletic and Recreational Facilities: 4 / 100m²
 - iii. Conference Facilities: 4 / 100m² of assembly area
 - iv. Cultural Establishments: 4 / 100m²
 - v. Drinking Establishments: 5 / 100m²
 - vi. Eating Establishments: 5 / 100m²
 - vii. Offices: 4 / 100m²
 - viii. Private Clubs: 4 / 100m²
 - ix. Retail Stores: 4 / 100m²
 - x. Spas and Health Clubs: 4 / 100m²

Where a use is not listed in 14.22.5.8 above, the Town of Canmore Land Use Bylaw parking requirements as per Section 2, General Regulations, shall apply.
 - c. Surface parking areas shall be landscaped and separated from adjacent uses by

screening, and whenever possible, shall conform to the natural terrain.

- d. When determining the number of car parking stalls, the Development Authority may reduce the number of car stalls required by 15 for every bus stall provided within the plan area of the Silvertip Area Structure Plan.
- e. Resort accommodation uses may accommodate no more than 40% of its car parking requirements through the provision of bus parking stalls.
- f. Bus parking should be provided as required with each stage or phase of construction of resort accommodation development.
- g. All parking structures and areas shall have a proportion or number of stalls acceptable to the Development Authority open and available to the general public at all times.

14.22.5.9 Design Requirements

The design of the Silvertip Village Core shall be consistent with the Village Design Guidelines attached as Appendix A of the Silvertip Area Structure Plan.

14.22.5.10 Employee Housing

- a. An employee generation study shall be completed for each resort accommodation, visitor accommodation, or commercial development permit application within the Village core.
- b. Where a single resort accommodation or visitor accommodation development is to be phased, the employee generation study for that development may consider the phasing and must identify the employee housing required for each phase and be completed and submitted as part of the development permit application for the first phase.
- c. The employee generation study shall specify the total number of employees anticipated. The number of employee housing units may be phased according to the phasing of the development, and shall be based on the number of employees, to satisfy the needs of the resort, visitor accommodation or commercial development and associated uses during each phase of the development. The stated conclusions of the number of housing units required shall include the detailed information and interpretation thereof that the conclusions are based on.
- d. The location of the employee housing shall be in accordance with the Silvertip Area Structure Plan. Employee Housing located within this District shall be within the principal structure as an accessory use to the resort and visitor accommodation uses.
- e. Employee housing shall be constructed and available for occupancy and use simultaneously with occupancy being granted for the resort or visitor accommodation, or commercial development to which it is associated.

14.22.5.11 Slope Stability

- a. The criteria for building setbacks shall be slope stability. A soil stability report sealed by a member of the Association of Professional Engineers, Geologists and Geophysicists shall be submitted confirming that all setbacks and foundations are adequate.
- b. Alterations of existing natural contours and grades shall only occur in accordance with a comprehensive grading plan, which shall take into account drainage and soil erosion

concerns.

14.22.5.12 Landscaping

Each development permit application for resort or visitor accommodation or commercial uses shall be accompanied by a comprehensive landscaping plan, that wherever possible, makes use of indigenous landscape species and retains existing native vegetation that will not attract wildlife.

14.22.5.13 Trails

- a. All development permit applications shall incorporate a comprehensive public pedestrian trail network proposal in accordance with the trail system outlined in the Silvertip Area Structure Plan.
- b. All developments within this District shall incorporate an internal public trail pedestrian system to allow for pedestrian movement throughout the site, in accordance with the Silvertip Area Structure Plan.

14.22.5.14 Storage

Except for golf course related equipment and maintenance facilities, permanent outdoor storage of equipment, goods or materials, other than storage during the course of construction, shall not be permitted.

14.22.6 Other Regulations

14.22.6.1 Prior to the issuance of a development permit, the development authority shall refer to the Land Use Bylaw and the Silvertip Area Structure Plan. When referencing the Silvertip Area Structure Plan, provisions that shall be considered include, but are not limited to:

- a. development adjacent to wildlife corridors;
- b. the potential to locate employee/perpetually affordable housing within the area addressed by the development permit application;
- c. an indication of the cultural and recreational facilities being proposed and those that will be available to the public;
- d. prior to the approval of the 651st resort accommodation unit, require the developer to conduct a study that examines the feasibility of initiating a shuttle/transit service within the resort and from the resort to the Town;
- e. prior to the approval of the 351st resort accommodation unit, the developer shall examine applying Low Impact Development principles and techniques, particularly minimizing the generation of runoff at the source for the area east of Silvertip Trail;
- f. the visual impact of the development;
- g. the socioeconomic impact of the development; and
- h. consistency of the development with the Town's policies relative to green buildings.

14.22.7 Development Authority

14.22.7.1 The Municipal Council shall be the Development Authority for the first resort or visitor

accommodation development permit application to be located in Silvertip Village Core, and any building having more than 5 storeys, and applications for townhouses, stacked townhouses, and apartments.

14.22.7.2 The Canmore Planning Commission shall be the Development Authority for all other resort or visitor accommodation development permit applications. The Canmore Planning Commission, may, at its discretion, refer such applications to the Municipal Council.

14.22.7.3 The Development Officer shall be the Development Authority for all other development permit applications.

14.22.8 Sustainability Screening Report

A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.22.9 Schedules



14.23 PALLISER PERPETUALLY AFFORDABLE HOUSING APARTMENT DC DISTRICT [03(Z)2008]

14.23.1 Purpose

To provide for medium to high density multi-family perpetually affordable and market equity and rental residential accommodation within townhouse, stacked townhouse and apartment buildings. Non-residential uses or developments such as locally oriented commercial development may be allowed in accordance with the listed “discretionary uses” when such uses are compatible with the residential purpose of the District.

14.23.2 Permitted Uses

Apartment Buildings
Home Occupation - Class 1
Parks and Playgrounds
Public Utilities
Stacked Townhouse
Townhouse

14.23.3 Discretionary Uses

Accessory Buildings
Convenience Store
Day Care Facilities
Dwelling Units above Commercial Establishments
Eating Establishments
Employee Housing
Home Occupations – Class 2
Laundromats
Liquor Stores (maximum 150m²)
Live/Work Studios
Offices
Personal Service Business
Signs
Small Scale Retail

14.23.4 Regulations

- 14.23.4.1 The minimum lot area shall be 900.0m².
- 14.23.4.2 The minimum lot width shall be 25.0m.
- 14.23.4.3 The minimum front yard depth shall be 6.0m.
- 14.23.4.4 The minimum side yard depth shall be 2.0m, except on the street side of a corner site it shall be 3.0m.
- 14.23.4.5 The minimum rear yard depth shall be 7.5m.
- 14.23.4.6 The minimum yard depth adjacent to an environmental reserve parcel shall be 15.0m.

14.23.4.7 The maximum building height shall be 16.0m.

14.23.4.8 A minimum of 25% of the site area shall be landscaped.

14.23.4.9 The minimum density shall be 49 units per hectare.

14.23.4.10 The maximum density shall be 148 units per hectare.

14.23.4.11 The maximum site coverage shall be 50%.

14.23.5 Perpetually Affordable Housing Requirements

14.23.5.1 For the purposes of this district, the following definition will be used for PAH:
PAH refers to both equity and rental housing units that, through a variety of restrictions such as those imposed through a Restrictive Covenant, Option to Purchase, a land lease, or other document, is removed from the influence of the open real estate market. PAH Units are not offered at market rates when ownership or tenancy changes, but remain at levels lower than the market would dictate. This means PAH Units are controlled in such a way to make them perpetually affordable over a long period of time, or in perpetuity.

14.23.5.2 Developments in this district shall include a mixture of perpetually affordable and market housing building or buildings, principally in the form of apartments and townhouses.

14.23.5.3 A minimum of 58 perpetually affordable housing units shall be constructed, in addition to market housing units.

14.23.5.4 Perpetually affordable housing units shall provide adequate assurances in terms of leases and other registerable instruments to ensure that the Town's perpetually affordable housing eligibility requirements are satisfied.

14.23.5.5 Any future re-development within this district shall consider the inclusion of both perpetually affordable and market dwelling units.

14.23.6 Local Commercial Development Performance Standards

14.23.6.1 Any locally oriented commercial developments shall be a freestanding building.

14.23.6.2 The interface between residential and commercial uses shall be addressed with appropriate screening and landscaping.

14.23.6.3 Local commercial establishments shall provide services to the neighbourhoods in the general vicinity of the District.

14.23.6.4 The maximum height of any freestanding commercial buildings shall be the lesser of 2 storeys or 9.0m with a maximum eaveline height of 7m.

14.23.6.5 All parking and loading areas not incorporated into a building or parking structure shall be provided to the side and/or rear of the site.

14.23.6.6 Any local commercial developments should address the street and provide enhanced public spaces and social meeting spaces including plazas, patios and decks.

14.23.6.7 Any local commercial developments should comply with any architectural and urban design

guidelines contained in this Bylaw.

14.23.7 Residential Design Requirements

- 14.23.7.1 Roof design: Roofs shall reflect function and the architectural requirement and tradition of providing sheltering roofs in a mountain environment. Minimum roof pitch shall be 6:12 for all portions of the roof and dormers; roof lines shall be articulated and larger structures shall incorporate a cascade of roofs to break up massing and add visual interest.
- 14.23.7.2 Building facades: The facades of buildings shall incorporate substantial articulation in order to break up the massing of buildings with more than two dwelling units fronting onto a public roadway.
- 14.23.7.3 Building height: Variances may be granted to allow a total of 20% of the roof areas to exceed the maximum height by up to 20% in order to allow for additional design flexibility at the discretion of the Development Authority.
- 14.23.7.4 Building materials and exterior colours: Building materials and colours shall be in accordance with Section 11, Community Architectural and Urban Design Standards, of this Bylaw.
- 14.23.7.5 Landscaping: The design guidelines and planting schedules described in Section 11, Community Architectural and Urban Design Standards, of this Bylaw shall apply to all townhouses and apartment developments. Screening from Palliser Trail needs to be addressed.
- 14.23.7.6 Parking: Parking shall be designed to effectively screen vehicles when viewed from Palliser Trail with, for example, the use of intensive landscaping. The following parking standards shall be applied to a residential development permit application, to facilitate the construction of PAH.

Unit Type	Required Stalls per Unit
Studio	0.50
1 Bedroom	0.75
2 Bedroom	1.25
3 Bedroom	2.00
Visitor Stalls	0.15

- 14.23.7.7 Signage: Signage shall not be oriented to or be legible from the Trans-Canada Highway.
- 14.23.7.8 Site Design: A pedestrian-oriented site design shall be established to allow for or encourage pedestrian traffic throughout the development. These pedestrian connections must link to the Town's existing and future trail networks surrounding the development.

14.23.8 Additional Requirements

- 14.23.8.1 All developments shall conform to Section 2, General Regulations, with the exception of parking requirements which are governed by Section 14.23.7 of this district. Amenities shall be provided in accordance with Section 2, General Regulations in addition to the landscaping requirements for the district.
- 14.23.8.2 Class 2 Home Occupations shall provide for the potential of operating less intensive home-based businesses with, for example, commercially registered vehicles or vehicles with

advertising, but no direct correlation with an increase in business associated visits to the site.

- 14.23.8.3 Animal proof waste containers must be located on-site and screened with, for example, artificial or natural screening. The location of all animal proof waste containers is subject to Town approval.

14.23.9 Environmental Impact Statement

- 14.23.9.1 An environmental impact statement shall be prepared and will form part of the first development permit application for residential development in this district for Council's consideration, as per the Town of Canmore's Municipal Development Plan.

14.23.10 Development Authority

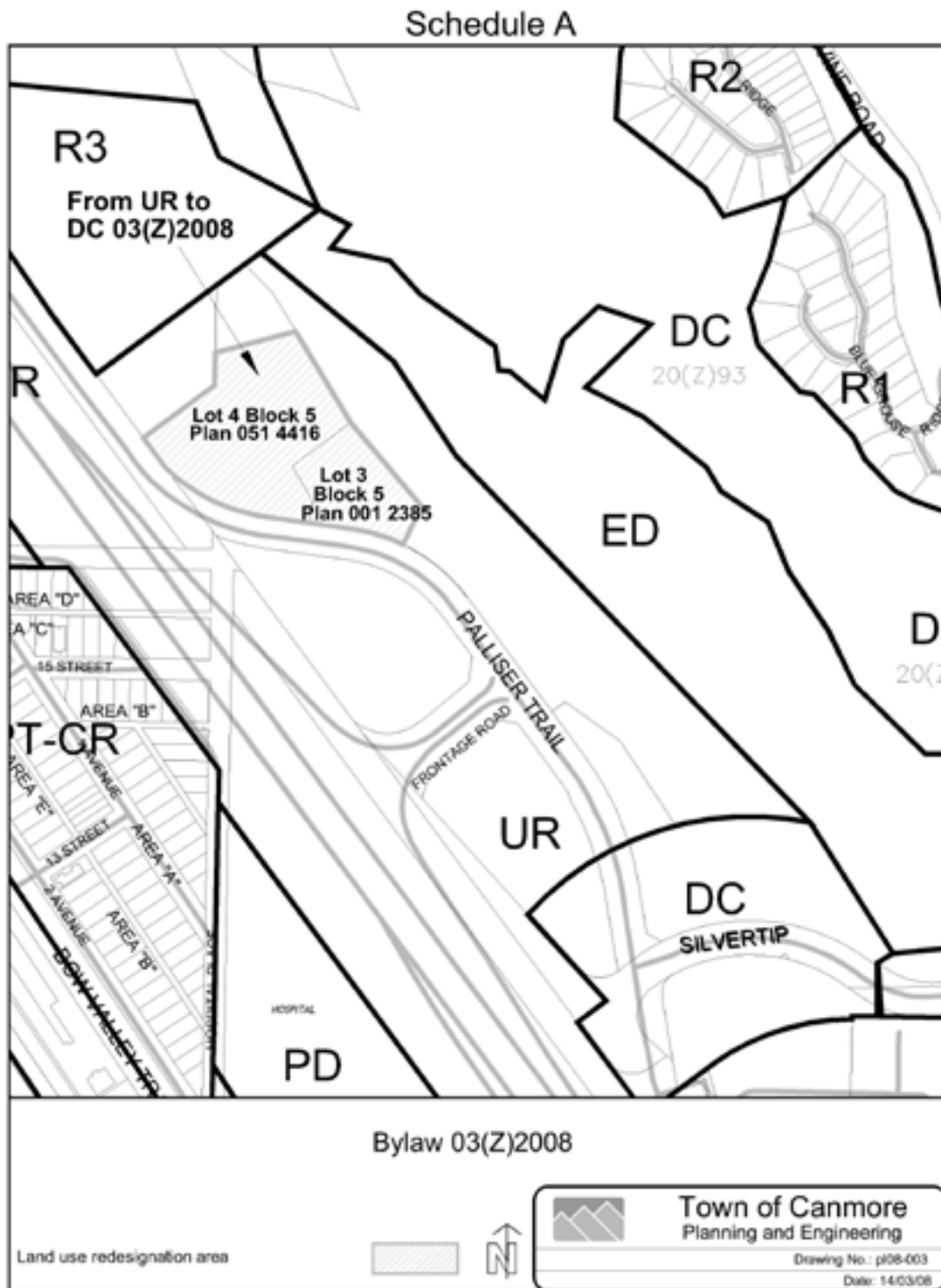
- 14.23.10.1 The Municipal Council of the Town of Canmore shall be the Development Authority for applications for all residential structural developments within this District.
- 14.23.10.2 The Development Authority for all commercial, non-structural development, including changes of use or signage within this District, shall be the Development Officer.
- 14.23.10.3 The Development Officer, at his or her discretion, may refer any development permit applications for non-structural developments or other non-residential uses to the Canmore Planning Commission.

14.23.11 Sustainability Screening Report

- 14.23.11.1 A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process..

14.23.12 Schedules

The following schedule forms a part of this District



14.24 TC-1 TOWN CENTRE CREEKSIDE DC DISTRICT [03(Z)2009DC]

14.24.1 Purpose

To provide for a broad range of commercial, entertainment, cultural, and residential uses in mixed-use buildings on Lot 3, Block 70, Plan 1095F. The District provides for site-specific setbacks from Policeman Creek and the eastern boundary of Lot 3 to ensure that future development is integrated with adjacent lands.

14.24.2 Permitted Uses

Amusement Arcades
Arts and Crafts Studios
Athletic and Recreational Facilities
Convention Facilities
Commercial Printing Establishments
Cultural Establishments
Dwelling Units in Mixed Use Buildings
Eating Establishments
Employee Housing
Entertainment Establishments
Financial Institutions
Home Occupation - Class 1
Medical Clinics
Offices above the main floor
Parks and Playgrounds
Personal Service Business
Public and Quasi-Public Buildings & Uses
Public Utilities
Retail Stores
Visitor Accommodation

14.24.3 Discretionary Uses

Cannabis Retail Store
Drinking Establishments
Employee Housing
Home Occupation - Class 2
Hostel
Liquor Stores
Offices on the main floor
Parking Areas
Private Clubs
Schools, Commercial
Schools, Post-secondary
Schools, Private
Seasonal/Temporary Business
Signs
Taxi Stands

Tourist Homes

14.24.4 Regulations

- 14.24.4.1 The minimum site area shall be 300.0m².
- 14.24.4.2 The minimum site width shall be 7.6m.
- 14.24.4.3 The maximum gross floor area shall be 2.0 F.A.R.
- 14.24.4.4 The minimum gross floor area shall be 1.25 F.A.R.
- 14.24.4.5 The front and rear property lines shall be the build-to lines.
- 14.24.4.6 The minimum side-yard depth on the west property line shall be zero
- 14.24.4.7 Notwithstanding any other regulations in the Land Use Bylaw in regard to minimum development setbacks from the top of bank, the minimum side-yard depth from the east (creekside) property line shall be as follows:
- a. For structures and development on the first floor (where the top of the first floor is no more than 4.0m above grade and “grade” is determined by the geodetic elevation of the sidewalk on Main Street): 2.0m for a maximum of 30% of the length of the east elevation of the building and 5.0m for a minimum of 70% of the length of the east elevation of the building.
 - b. For structures and development on the second floor (assumed to be approximately between 4.0m and 7.0m above grade): 6.0m for a maximum of 40% of the length of the building elevation and 8.0m for a minimum of 60% of the length of the building elevation.
 - c. Notwithstanding these setback requirements, the Development Authority may approve a development permit for patios or other open, public-oriented spaces within the 5.0m at-grade setback if such spaces are less than 0.3m above the elevation of the adjacent Main Street sidewalk and provided that such public spaces provide direct access to the adjacent public property.
 - d. Any roof structures above the maximum eaveline height shall be sloped away from the sideyard in accordance with Section 11, Community Architectural and Urban Design Standards. Although dormers may be allowed above 7.0m, these projections should be minor and allow the majority of the elevation to be roof.
- 14.24.4.8 The minimum setback for any surface parking or loading areas shall be 5.0m from the east (creekside) property line.
- 14.24.4.9 The maximum building height shall be 11.0m with a maximum eave-line height of 7.0m.

14.24.5 Design Requirements

- 14.24.5.1 A pedestrian-oriented streetscape on the south (Main Street), east (Policeman Creek) and north (laneway) sides of the site shall be established in accordance with the “Town Centre Enhancement Concept Plan” incorporating such design elements as: wide sidewalks, arcades, pedestrian scale street lighting, bicycle parking, canopies, vestibules, façade treatments that

are sensitive to sidewalk location on a site specific basis, and, subject to the requirement for permeability of façades by the use of glass and doors in Section 11, Community Architectural and Urban Design Standards.

- 14.24.5.2 A creek-oriented pedestrian environment which integrates both the private and public realms between development on Lot 3 and the banks of Policeman Creek shall be created along and adjacent to the entire eastern portion of the site.

14.24.5.3 Variances to Height

Where the Development Authority is satisfied that the architectural integrity of a building would be enhanced, variances may be granted to allow 20% of the building to exceed the maximum height by up to 20%. No height variances shall be granted beyond the 20% relaxation.

14.24.5.4 Potential Variances to Setbacks from East Property Line.

If the Development Authority is satisfied that:

- a. A proposed development would make significant contributions to the public realm in excess of the normal landscaping requirements for adjacent boulevards and open space; and,
- b. A proposed development would result in an equal or improved aquatic habitat in Policeman Creek as determined by Alberta Fish and Wildlife and/or an independent third party biologist acceptable to the Town of Canmore, variances may be granted as follows:
 - i. For the first floor of structures: A maximum variance of 0.5m (to allow a 1.5m setback) for 30% of the length of the building and a maximum variance of 1.0m (to allow a 4.0m setback) for 70% of the length of the building.
 - ii. For the second floor of structures: A maximum variance of 1.0m (to allow for a 5.0m setback) for 40% of the building elevation and a maximum variance of 1.0m (to allow for a 7.0m setback) for 60% of the building elevation.
 - iii. No further sideyard setback variances shall be granted by the Development Authority.
- c. In considering whether or not any of the above-described variances may be warranted, the Development Authority shall take into consideration the following:
 - i. Whether the proposed enhancement is compatible with design ideas for the area in the 1998 Town Centre Enhancement Concept Plan;
 - ii. The quality and quantity of the integration between the private and public spaces proposed between the building and the bank of the creek;
 - iii. The extent to which the design would connect with Main Street and the existing pedestrian system adjacent to Policeman Creek, and;
 - iv. The feasibility of proposed enhancement on Crown lands and bed and shore of Policeman Creek.

14.24.5.5 Offices on Main Floor

A successful pedestrian oriented and interesting downtown streetscape requires main-floor businesses that engage pedestrians. A proliferation of offices on the main floor may not

achieve this objective. Therefore, proposals for main floor offices will be evaluated in regard to their effectiveness in maintaining or improving the pedestrian-oriented design requirements described in Subsections 14.24.5.1 and 14.24.5.2. Specifically, development permit applications for main floor offices will be evaluated in accordance with the following criteria in determining a proposal's effect on the streetscape:

- a. At least 66% of office space should be located on the second floor with a relatively small main-floor office area at the storefront;
- b. If more than 25% of the existing block face on which the proposed development is located is non-retail and/or non-restaurant frontage, then additional storefront office space should not be approved;
- c. Proposed main floor office space may be approved notwithstanding (a) and (b) above, if it faces an alley;
- d. Proposed main floor office space may be approved notwithstanding (a) and (b) above, if more than 25% of the existing block face on which the proposed development is located is vacant at the time of the application;
- e. Proposed main floor office space may be approved notwithstanding (a) and (b) above, if the development proposes a substantial enhancement to the public/private realm adjacent to the building.

14.24.5.6 Design of buildings shall complement the mountain community of Canmore and must be in conformity with Section 11, Community Architectural and Urban Design Standards.

14.24.5.7 In order to achieve a pedestrian oriented site, parking and loading shall be designed to minimize visual impact, impacts on pedestrian activity and shall be setback a minimum of 5.0m from the east (creekside) property line of Lot 3. Techniques to achieve this may include structured parking, shared parking, cash-in-lieu of parking, and intensive landscaping. The developer/builder may be required to identify any proposed or possible parking sites. Where structured parking is provided, it shall be integrated into the building design, preferably underground.

14.24.5.8 The building elevations facing Main Street, Policeman Creek and the laneway shall all be considered as frontages.

14.24.5.9 Signage shall be designed to be oriented toward pedestrians and may be allowed on each of the three lot frontages.

14.24.5.10 Development permit Applications shall include professionally produced streetscape drawings or three-dimensional simulations of the overall development as viewed from public sidewalks and other public areas.

14.24.5.11 Garbage containers and waste material shall be stored either inside a principal building or, at the discretion of the Development Authority, in a weatherproof and animal-proof garbage enclosure as part of an approved collective garbage facility. Garbage enclosures shall be designed and located to be visually integrated with the site.

14.24.5.12 Outdoor storage is strictly prohibited.

14.24.6 Dwelling Units and Tourist Homes shall:

- a. have an entrance that is separate and distinct from the entrance to any commercial component of the building;
- b. not be located below the second storey;
- c. not be located on the same floor as a non-residential use unless there is a physical separation of uses and separate entrances to the satisfaction of the Development Authority;
- d. parking for tourist homes shall be provided on site as for residential dwelling units in accordance with Section 2, General Regulations.

14.24.7 Employee Housing shall:

- a. be accessory to a principal use.
- b. be integrated into the principal building.
- c. not be located below the second storey of a mixed use building but may be allowed in the basement of a mixed use building at the discretion of the Development Authority.
- d. not be located on the same floor as a non-residential use unless, there is a physical separation of uses and separate entrances to the satisfaction of the Development Authority.

14.24.8 Parking Alternatives

14.24.8.1 The Development Authority may, at its discretion, approve cash-in-lieu of parking for the difference between the total number of required parking stalls and the number of parking stalls provided within the development.

14.24.8.2 The Development Authority may allow a portion of the parking required by a development to be provided in an off-site location within the TC District only.

14.24.9 Additional Requirements**14.24.9.1 Green building Standards:**

Prior to the issuance of a development permit, “green” building standards must be established; that is, construction standards which achieve, as a minimum, a “Built Green” silver certification or equivalent. Monitoring and reporting on compliance with the “green building” standards shall be the responsibility of the developer. The development of standards and the monitoring requirements shall be a condition of any development permit issued in this land use district.

14.24.9.2 Construction Management:

A detailed Construction Management Plan shall be required as a condition of a development permit in order to ensure that the bed and banks of Policeman Creek are protected during and after construction and that the public walkways adjacent to the site, including Main Street, are not unduly obstructed.

14.24.9.3 A Sustainability Screening Report is required by the Town as part of the Development Permit

application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.24.10 Development Authority

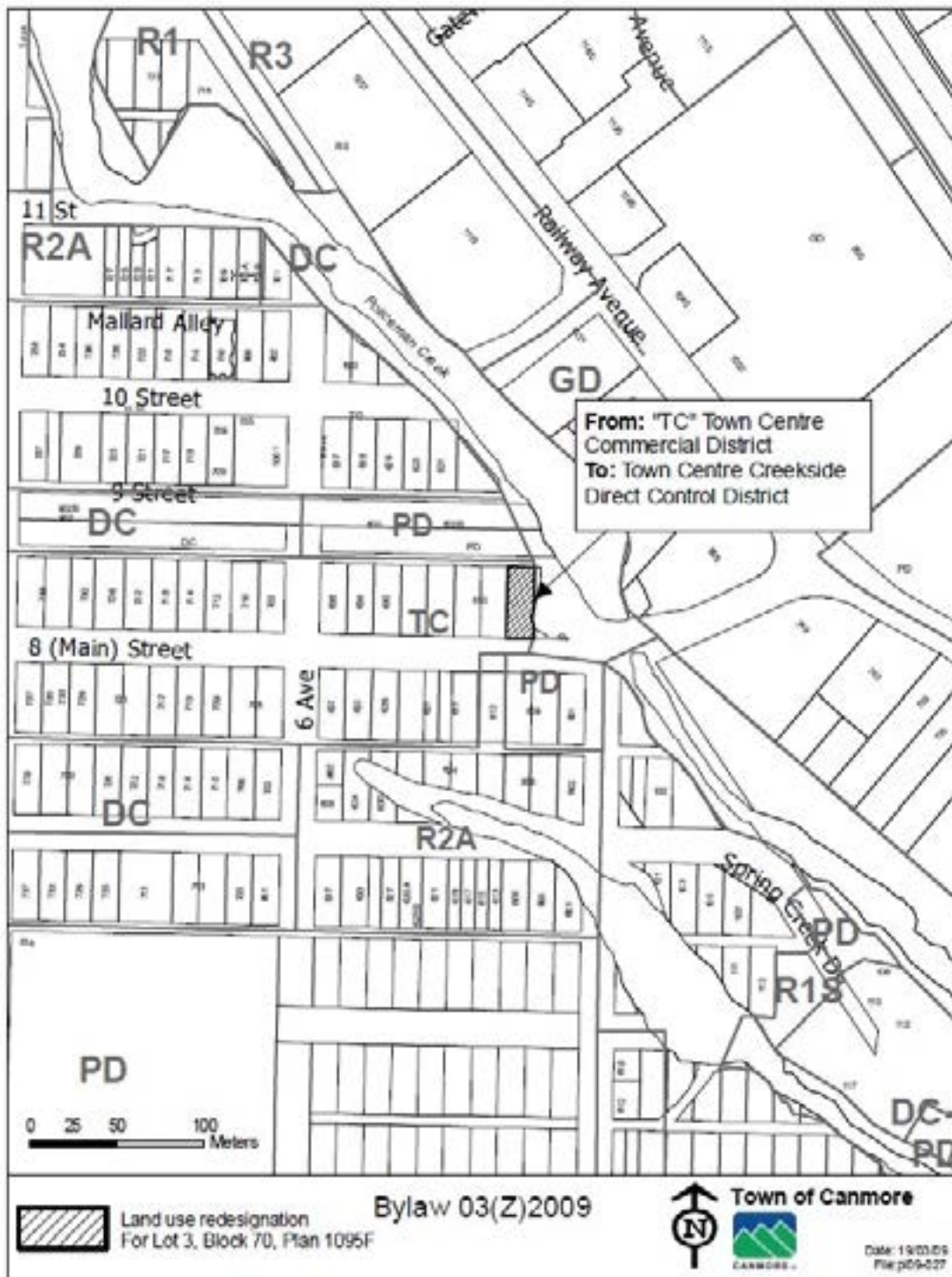
14.24.10.1 The Municipal Council of the Town of Canmore shall be the Development Authority for applications for all structural developments within this District.

14.24.10.2 The Development Authority for all non-structural development, including changes of use or signage within this District, shall be the Development Officer.

14.24.10.3 The Development Officer, at his or her discretion, may refer any development permit applications for non-structural developments to the Canmore Planning Commission.

14.24.11 Schedules

The following schedule forms a part of this District



14.25 PALLISER ATTAINABLE HOUSING APARTMENT DC DISTRICT [04(Z)2009]

14.25.1 Purpose

To provide for medium to high density multi-family perpetually affordable and attainable housing within an apartment building. Non-residential uses or developments such as locally oriented commercial development may be allowed in accordance with the listed “discretionary uses” when such uses are compatible with the residential purpose of the District.

14.25.2 Permitted Uses

“Attainable Housing” in the form of Apartment Buildings

Home Occupations - Class 1

Parks and Playgrounds

Public Utilities

14.25.3 Discretionary Uses

Accessory Buildings

Apartment Buildings

Cannabis Retail Store (maximum 150m²)

Convenience Store

Day Care Facilities

Dwelling Units above Commercial Establishments

Eating Establishments

Employee Housing

Home Occupations – Class 2

Laundromats

Liquor Stores (maximum 150m²)

Live/Work Studios

Offices

Personal Service Business

Signs

Small Scale Retail

14.25.4 Regulations

14.25.4.1 The minimum lot area shall be 900.0m².

14.25.4.2 The minimum lot width shall be 25.0m.

14.25.4.3 The minimum front yard depth shall be 6.0m.

14.25.4.4 The minimum side yard depth shall be 2.0m, except on the street side of a corner site it shall be 3.0m.

14.25.4.5 The minimum rear yard depth shall be 7.5m.

14.25.4.6 The minimum yard depth adjacent to an environmental reserve parcel shall be 15.0m.

14.25.4.7 The maximum building height shall be 16.0m.

14.25.4.8 A minimum of 25% of the site area shall be landscaped.

14.25.4.9 The minimum density shall be 49 units per hectare.

14.25.4.10 The maximum density shall be 148 units per hectare.

14.25.4.11 The maximum site coverage shall be 50%.

14.25.5 Attainable and Affordable Housing Requirements

14.25.5.1 For the purposes of this district, the following definitions will be used:

“Attainable Housing” means a developer offered and Town approved program that assists home purchasers through direct down payment contributions and/or mortgage subsidies. A purchaser may receive a subsidy to reduce the required down payment, as well as a monthly subsidy for a number of years to reduce mortgage costs, condominium fees and utilities.

“Perpetually Affordable Housing” or PAH will have the same definition as that approved by Council as part of any approved PAH Policy.

14.25.5.2 Developments in this district shall ensure, to the satisfaction of the Town, that all dwelling units qualify as Attainable Housing and are part of programs designed to assist in making affordable housing available.

14.25.5.3 Once mortgage subsidies provided for Attainable Housing have ceased, there shall be no further restrictions on these dwelling units.

14.25.5.4 Any future re-development within this district may allow for the inclusion of both Perpetually Affordable Housing and attainable dwelling units.

14.25.5.5 Perpetually Affordable Housing units shall provide adequate assurances in terms of leases and other registerable instruments to ensure that the Town’s perpetually affordable housing eligibility requirements are satisfied.

14.25.6 Local Commercial Development Performance Standards

14.25.6.1 Any locally oriented commercial developments shall be a freestanding building.

14.25.6.2 The interface between residential and commercial uses shall be addressed with appropriate screening and landscaping.

14.25.6.3 Local commercial establishments shall provide services to the neighbourhoods in the general vicinity of the District.

14.25.6.4 The maximum height of any freestanding commercial buildings shall be the lesser of 2 storeys or 9.0m with a maximum eaveline height of 7.0m.

14.25.6.5 All parking and loading areas not incorporated into a building or parking structure shall be provided to the side and/or rear of the site.

14.25.6.6 Any local commercial developments should address the street and provide enhanced public spaces and social meeting spaces including plazas, patios and decks.

14.25.6.7 Any local commercial developments should comply with any architectural and urban design

guidelines contained in the Land Use Bylaw.

14.25.7 Residential Design Requirements

14.25.7.1 Roof design:

Roofs shall reflect function and the architectural requirement and tradition of providing sheltering roofs in a mountain environment. Minimum roof pitch shall be 6:12 for all portions of the roof and dormers; roof lines shall be articulated and larger structures shall incorporate a cascade of roofs to break up massing and add visual interest.

14.25.7.2 Building facades:

The facades of buildings shall incorporate substantial articulation in order to break up the massing of buildings with more than two dwelling units fronting onto a public roadway.

14.25.7.3 Building height:

Variances may be granted to allow a total of 20% of the roof areas to exceed the maximum height by up to 20% in order to allow for additional design flexibility at the discretion of the Development Authority.

14.25.7.4 Building materials and exterior colours:

Building materials and colours shall be in accordance with Section 11, Community Architectural and Urban Design Standards, of the Land Use Bylaw.

14.25.7.5 Landscaping:

The design guidelines and planting schedules described in Section 11, Community Architectural and Urban Design Standards, of the Land Use Bylaw shall apply to all townhouses and apartment developments. Screening from Palliser Trail needs to be addressed.

14.25.7.6 Parking:

Parking shall be designed to effectively screen vehicles when viewed from Palliser Trail with, for example, the use of intensive landscaping. The following parking standards shall be applied to a residential development permit application, to facilitate the construction of attainable housing or PAH.

Unit Type	Required Stalls per Unit
Studio	0.50
1 Bedroom	0.75
2 Bedroom	1.25
3 Bedroom	2.00
Visitor Stalls	0.15

14.25.7.7 Signage: Signage shall not be oriented to or be legible from the Trans-Canada Highway.

14.25.7.8 Site Design: A pedestrian-oriented site design shall be established to allow for or encourage pedestrian traffic throughout the development. These pedestrian connections must link to the Town's existing and future trail networks surrounding the development.

14.25.8 Additional Requirements

- 14.25.8.1 All developments shall conform to Section 2, General Regulations of the Land Use Bylaw, with the exception of parking requirements which are governed by Subsection 14.25.7.5 of this district. Amenities shall be provided in accordance with Section 8 of the Land Use Bylaw in addition to the landscaping requirements for the district.
- 14.25.8.2 Class 2 Home Occupations shall provide for the potential of operating less intensive home-based businesses with, for example, commercially registered vehicles or vehicles with advertising, but no direct correlation with an increase in business associated visits to the site.
- 14.25.8.3 Animal proof waste containers must be located on-site and screened with, for example, artificial or natural screening. The location of all animal proof waste containers is subject to Town approval.

14.25.9 Environmental Impact Statement

- 14.25.9.1 An Environmental Impact Statement shall be prepared and will form part of the first development permit application for residential development in this district for Council's consideration, as per the Town of Canmore's Municipal Development Plan.

14.25.10 Development Authority

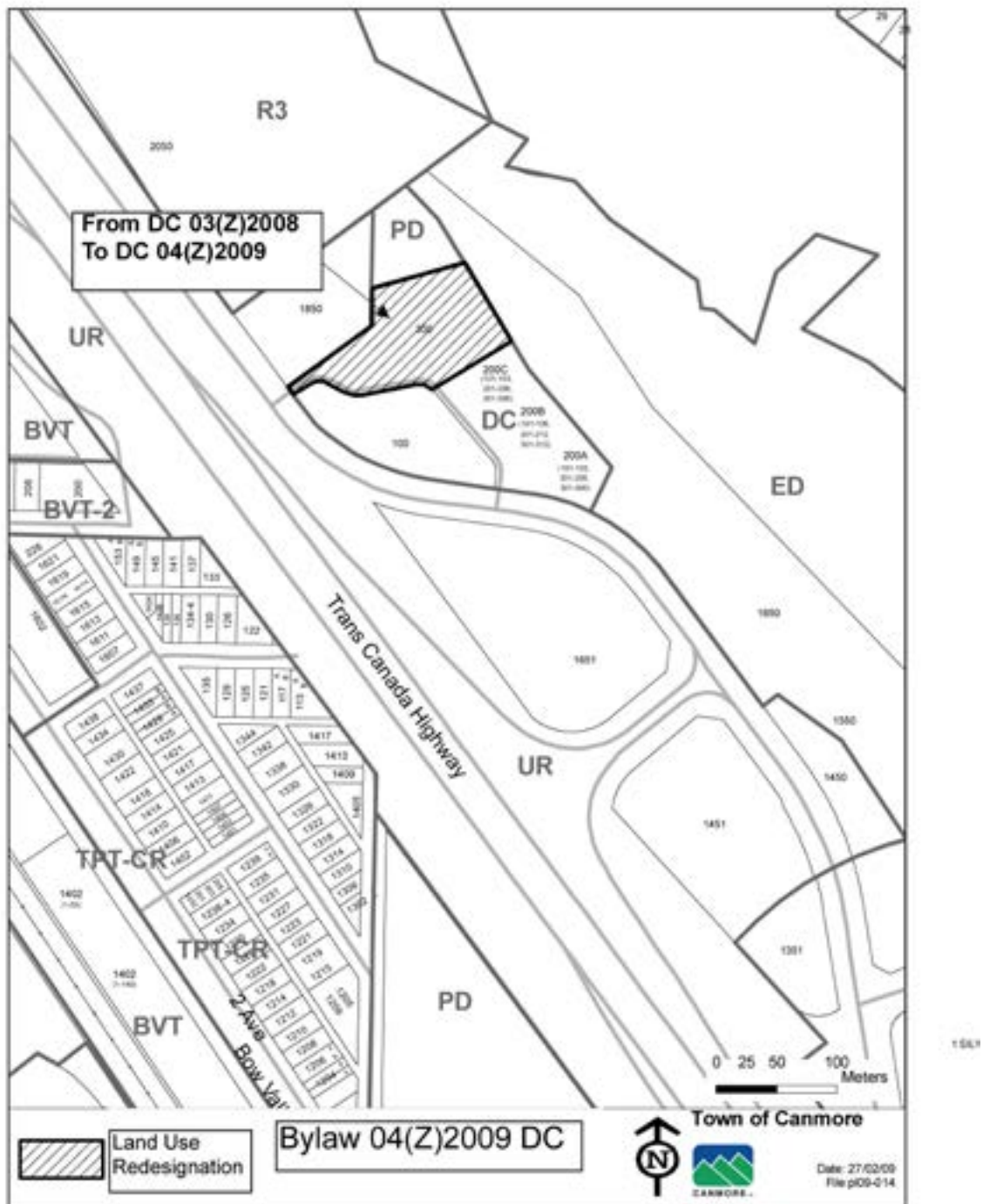
- 14.25.10.1 The Municipal Council of the Town of Canmore shall be the Development Authority for applications for all residential structural developments within this District.
- 14.25.10.2 The Development Authority for all commercial, non-structural development, including changes of use or signage within this District, shall be the Development Officer.
- 14.25.10.3 The Development Officer, at his or her discretion, may refer any development permit applications for non-structural developments or other non-residential uses to the Canmore Planning Commission.

14.25.11 Sustainability Screening Report

- 14.25.11.1 A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.25.12 Schedules

SCHEDULE A



14.26 R1WL - RESIDENTIAL SINGLE-FAMILY DETACHED WETLAND DC DISTRICT [18(Z)2009]

14.26.1 Purpose

To provide for single-family residential accommodation within single-family-detached dwelling units on Lots 19 & 20, Block 39, Plan 1095F the development of which are affected by a wetlands area to the north. Non-single family residential uses or developments may be allowed in accordance with the listed “discretionary uses” when such uses are compatible with the single-family residential purpose of the District.

14.26.2 Permitted Uses

Home Occupation - Class 1
Single Family Detached Dwelling

14.26.3 Discretionary Uses

Accessory Building
Bed and Breakfast
Cultural Establishments
Day Care Facilities
Home Occupation - Class 2
Long-Term Care Facilities
Seniors Housing/Supportive Living Facility
Signs

14.26.4 Regulations for Lot 19

14.26.4.1 The minimum lot area shall be 450.0m².

14.26.4.2 The minimum lot width shall be 12.0m.

14.26.4.3 The minimum side yard depth shall be 1.5m for each side yard.

14.26.4.4 The minimum rear yard depth from the lane shall be 7.5m.

14.26.4.5 Front Yard:

The minimum front yard depth shall consist of all of that area between the surveyed right bank of Policeman Creek and a line drawn parallel to and not more than 18.0 metres north of the lane delineating the south property line of Lot 19.

14.26.4.6 Minimum Setback from Policeman Creek:

The minimum setback for all buildings from the surveyed right bank of Policeman Creek shall be 12.0m.

14.26.4.7 Minimum Setback from Creek prevails over Front Yard Setback.

Where the Front Yard setback and the Minimum Setback from Policeman Creek conflict, the building setback which results in the greater setback from Policeman Creek shall prevail.

14.26.4.8 The maximum building height shall be the lesser of 2 storeys plus loft or 9.5m as determined

14 DIRECT CONTROL DISTRICTS

in accordance with Section 2, General Regulations.

14.26.4.9 The maximum site coverage for all buildings shall be 40%.

14.26.4.10 Maximum building size:

Notwithstanding any other provision in this Bylaw, residential buildings located on Lot 19 shall have a maximum permitted gross floor area of 200m² with a maximum footprint of 110m², excluding areas used exclusively for parking.

14.26.5 Regulations for Lot 20

14.26.5.1 The minimum lot area shall be 380.0m².

14.26.5.2 The minimum lot width shall be 16.0m.

14.26.5.3 The minimum side yard depth shall be 1.5m for each side yard.

14.26.5.4 The minimum rear yard depth from the lane shall be 7.5m.

14.26.5.5 Front Yard:

The minimum front yard depth shall consist of all of that area between the surveyed right bank of Policeman Creek and a line drawn parallel to and not more than 15.5m north of the lane delineating the south property line of Lot 20.

14.26.5.6 The maximum building height shall be the lesser of 2 storeys plus loft or 9.5m as determined in accordance with Section 2, General Regulations.

14.26.5.7 The maximum site coverage for all buildings shall be 30%.

14.26.5.8 Maximum building size:

Notwithstanding any other provision in this Bylaw, residential buildings located on Lot 20 shall have a maximum permitted gross floor area of 200m², with a maximum footprint of 73m² excluding areas used exclusively for parking.

14.26.6 Additional Requirements

14.26.6.1 LEED Construction Requirements.

The dwelling for Lot 19 shall be of LEED Silver standard or higher. In the event of reconstruction, the dwelling for Lot 20 shall also be of LEED Silver parameters or higher.

14.26.6.2 Mature trees. Trees over 0.3m in diameter shall be protected on both Lots 19 and 20 in perpetuity where they exist between the building footprint and the surveyed right bank of Policeman Creek.

14.26.6.3 Non-disturbance Area Adjacent to Right Bank of Policeman Creek. The existing undisturbed areas adjacent to the right bank of Policeman Creek shall be protected as non-disturbance zones. These areas shall be a minimum width of 3.7m on Lot 20 and 5.0m on Lot 19. No soil disturbance or removal of vegetation shall be allowed in the non-disturbance zone except for treatment of noxious weeds in accordance with the Weed Control Act or for the enhancement of the aquatic and/or riparian habitat as identified and approved by the Town of Canmore and

Alberta Natural Resource Development.

14.26.6.4 Development permits

Notwithstanding any other provisions in the Land Use Bylaw accessory uses and buildings as well as single-detached dwellings shall require development permits.

14.26.6.5 Construction Management Plan

All development permit applications shall require a Construction Management Plan (CMP) to the satisfaction of the Development Authority. As a minimum, the CMP shall include the construction management provisions described in the July 2009 Corvidae Environmental Consultants Environmental Impact Statement and Summit Environmental review for the site and, for Lot 19, a 10m no-construction zone from the bank of Policeman Creek to ensure the protection of the wetland area during construction.

14.26.6.6 Landscaping

Any proposed landscaping associated with development shall meet the Town of Canmore's requirements to reduce the likelihood of wildlife/human encounters or conflicts. Plantings shall be limited to those plants that are not attractive to wildlife and shall be outside of the non-disturbance areas adjacent to Policeman Creek.

14.26.6.7 Wildfire Assessment

Landscaping plans may address landscape and vegetation modifications undertaken for the purpose of wildfire control and management.

14.26.6.8 Fencing

No perimeter fencing shall exist within the front yard areas of Lot 19 or Lot 20.

14.26.6.9 All developments shall conform to Section 2, General Regulations.

14.26.6.10 A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.26.7 Development Authority

14.26.7.1 The Development Authority for this District shall be the Development Officer who may refer any applications to the Canmore Planning Commission at his/her discretion.

14.26.8 Schedules

Schedule "A" shows the location of this District.



14.27 SCMV-CR - SPRING CREEK MOUNTAIN VILLAGE COMPREHENSIVE RESIDENTIAL DC DISTRICT [22(Z)2009] [2019-18]

14.27.1 Purpose

To provide for the development of a comprehensively designed predominantly residential pedestrian urban neighbourhood that will accommodate a variety of residential dwelling types and mixed use buildings (including limited commercial components) with a high standard of appearance and landscaping. The district will include clearly identifiable street types, development blocks and open space components following the pedestrian orientated design principles set out in the Spring Creek Mountain Village Area Redevelopment Plan and Urban Design Guidelines.

14.27.2 Permitted Uses

Apartments
Duplex Dwellings
Employee Housing
Home Occupations - Class 1
Long-Term Care Facility
Public Utilities
Parks and Playgrounds
Seniors Housing/Supportive Living Facility
Stacked Townhouses
Townhouses

14.27.3 Discretionary Uses

14.27.3.1 Discretionary Uses in All areas:

Accessory Development
Day Care Facilities
Home Occupations - Class 2
Public and Quasi-Public Buildings
Signs, Awnings and Canopies
Tourist Home (to a maximum 300 in the ARP area)

Discretionary Uses Street Level, Spring Creek Drive, Spring Creek Gate and Village Square

Only:

Athletic and recreational facilities
Arts and crafts studios
Cannabis Retail Store (maximum gross floor area 150m²)
Cultural establishments
Drinking establishments
Duplex Plus Dwelling
Convenience stores
Eating establishments
Liquor stores (maximum gross floor area 75m²)
Live/work studios

14 DIRECT CONTROL DISTRICTS

Medical clinics

Offices

Personal service business

Retail Food Store (maximum gross floor area 1,100m²)

Retail Stores (maximum gross floor area 75m²)

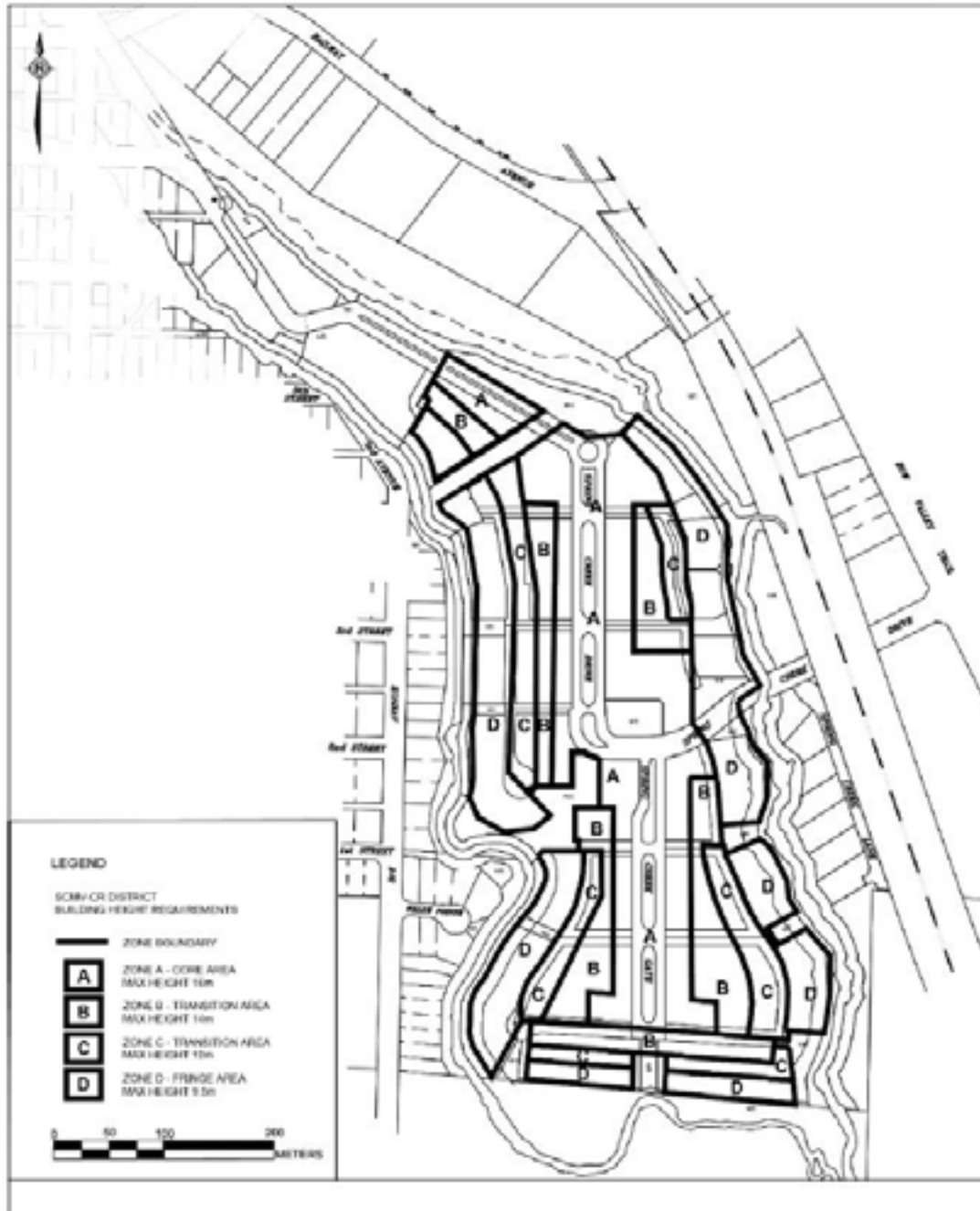
School, Commercial

14.27.4 Regulations

- 14.27.4.1 The minimum site area shall be 500.0m²
- 14.27.4.2 The minimum side yard depth shall be zero, except when adjacent to public space. Then it shall be 1.5m with building design in accordance with Section 3 of the SCMV Landscaping and Architectural Guidelines.
- 14.27.4.3 The minimum rear yard depth for development backing onto Spring Creek or Policeman's Creek shall be 6.0m.
- 14.27.4.4 The minimum setback for buildings backing onto Spring Creek or Policeman's Creek shall be 20.0m, measured from the creek bank.
- 14.27.4.5 The front property line of each entire building shall be the principal build-to-line with allowable variations as follows:
- 40% to 75% of the main floor block frontage shall be within 1.5m of the property line.
 - A minimum of 25% shall be set back between 1.5m and 3.0m for facade articulation.
 - No part of the main floor frontage shall be further than 3.0m from the property line.
 - Notwithstanding 14.27.4.5c, entry ways may be exempted from this requirement if they are obvious from the street and are distinct and prominent parts of the building.
- 14.27.4.6 Mews streets shall have a minimum driving lane width of 6.5m. The impact of garage doors should be minimized by varying door setbacks, size, design, textures and colours of finish materials in accordance with Section 8 of the SCMV Landscaping and Architectural Guidelines. The minimum building setback for any building fronting onto a Mews street shall be 1.0m from the designated driving lane.
- For units with individual garages backing onto either Spring Creek or Policeman's Creek the driveways must have a minimum length of 6.0m to accommodate a second vehicular parking space. Where a double garage is provided, driveways may be less than 6.0m. The front of buildings shall be setback a minimum of 2.0m and a maximum of 6.0m from the designated driving lane.
- 14.27.4.7 All sides of a building that front a public street shall be considered front property lines.
- 14.27.4.8 Maximum building heights within the Direct Control Spring Creek Mountain Village Comprehensive Residential District shall be in accordance with Figure 1.
- Zone A maximum height 16.0m (4½ storeys) [2020-16]
- Zone B maximum height 14.0m (3-4 storeys) [2020-16] [2021-23]
- Zone C Maximum height 12.0m (3 storeys) [2020-16] [2021-23]
- Zone D maximum height 9.5 (Generally 2½ storeys) [2020-16] [2021-23]

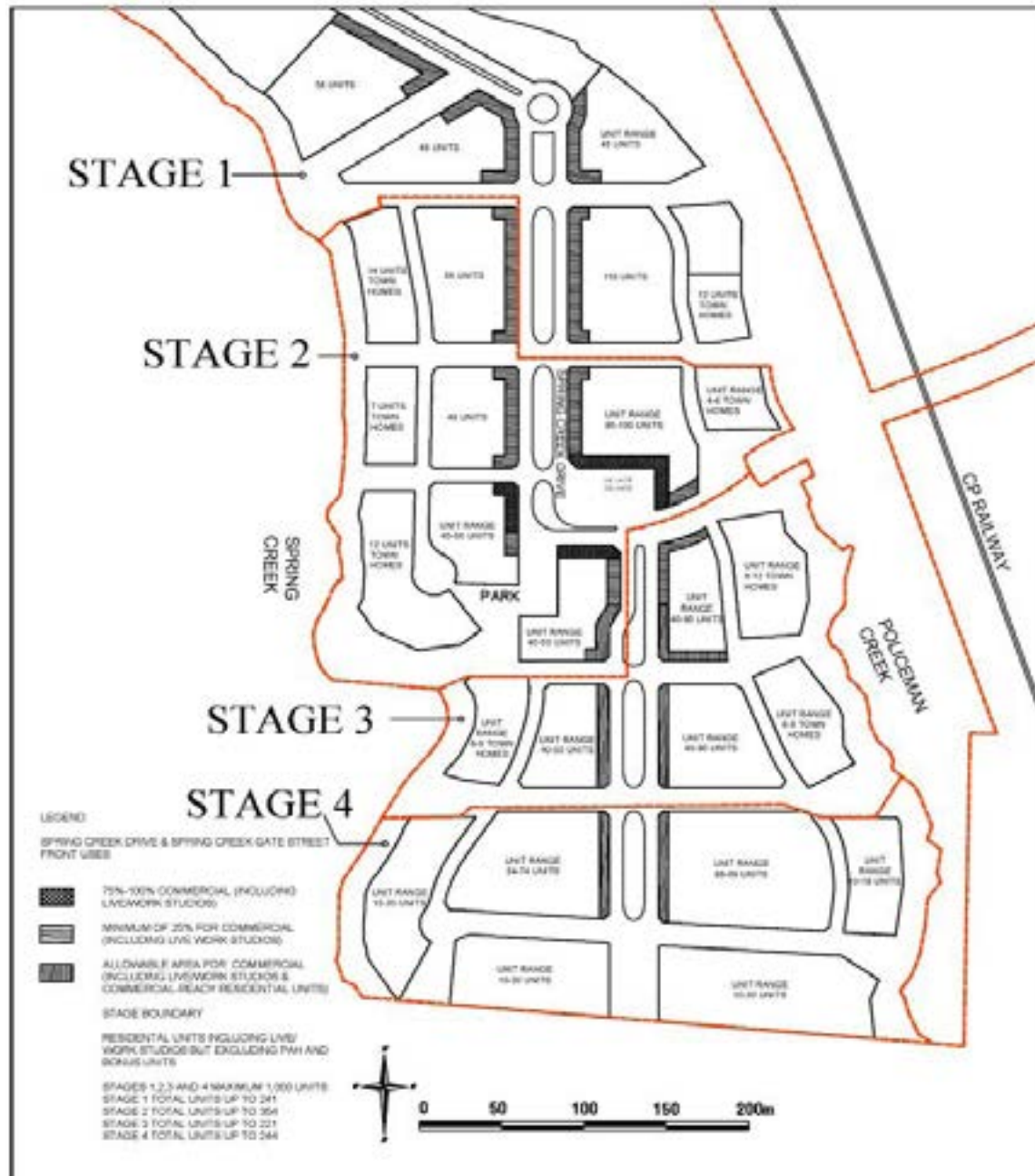
- 14.27.4.9 Maximum building height shall be measured from the finished grades established in an approved site-regrading plan to the roof ridge line. Where the Development Authority is satisfied that the architectural integrity of a building would be enhanced, variances may be granted to allow for additional roof articulation. The allowable variances are:
- Height Zones A, B and C: 20% of the building may exceed the maximum height by up to 10% and 5% of the building may exceed the maximum height by up to 20%.
 - Height Zone D: 10% of the building may exceed the maximum height by up to 10%.

Figure 1. Maximum Building Heights



14 DIRECT CONTROL DISTRICTS

- 14.27.4.10 The number of residential units for all stages of this District is estimated to be 970 including Perpetually Affordable Housing (PAH) Units and bonus units. For calculation purposes, 2 bedrooms will equal 1 unit for Senior Citizen Housing where the development includes lodge style units with communal dining facilities. Figure 2 shows the unit range for each residential block. The maximum number of residential units within the SCMV site at build out will have an absolute total not to exceed 1000 units. The unit ranges in Figure 2 are estimates and may vary slightly as detailed design progresses at the discretion of the Development Authority.
[2021-23]

Figure 2. Unit Range and Street Front Uses

14.27.4.11 Parking, Loading and Storage:

Residential Units and Tourist Homes will be served by structured parking within each building block. Townhouses and single family units will have private spaces typically garages. Due to the abundance of street parking available on Spring Creek Drive, street front commercial uses will be permitted to use the public streets for their parking requirements. Live/work studios and convertible space along Spring Creek Drive will be treated in a similar way to residential apartments typically with structured parking for the residential component and street parking for the visitor/commercial component. Section 2.3, General Regulations will apply except for the following: **[2021-23]**

- a. Spring Creek Drive Commercial
1.0 per 46m² On public street
- b. Loading Spaces
All loading spaces related to residential apartments and street front commercial will be permitted on-street.
- c. Parking Review at Development Permit Stage
Parking availability for commercial uses shall be reviewed with each related development permit to ensure adequate on-street parking is available. A Parking Management Plan may be required, at the discretion of the Town of Canmore, for the on-street parking located on the public road.
- d. Monitoring of Parking Standards
With the land use redesignation for each development stage, the applicant may be required to provide a parking survey at the discretion of the Development Authority to monitor parking usage against the standards set out in this district. If a shortfall is identified the Development Authority may require an adjustment to the standards to make up for any identified shortfalls.

14.27.4.12 If not already collected directly by the Town, traffic counts at the access and egress points to Spring Creek Mountain Village shall be provided annually and the Traffic Impact Assessment (TIA) report shall be updated by the applicant and submitted along with the third (3rd) and fifth (5th) development permit applications within Stage 4. If during the redevelopment process it is projected in a TIA that traffic generation on Spring Creek Drive at Main Street will exceed 3000 vehicle trips per day (VPD) prior to buildout based, the ARP or LUB or both shall be revised as appropriate to incorporate additional measures to restrict traffic flows at this access to 3,000 vehicle trips per day. This may include road design changes or a reduction in density for remaining developments or both. VPD is defined as the average daily vehicle traffic on Spring Creek Drive at Main Street as measured during an 8-month period including dates between May 1 and October 31 in the most recent 12-month period of measurement. **[2021-23]**

14.27.5 Additional Requirements

14.27.5.1 Landscape and Architectural Guidelines: The developer has prepared landscape and architectural guidelines which are registered on the subject titles. These guidelines may be modified as development proceeds but should retain a consistent theme.

14.27.5.2 Floor Area Ratio (FAR): The maximum FAR shall be in accordance with the policy statements

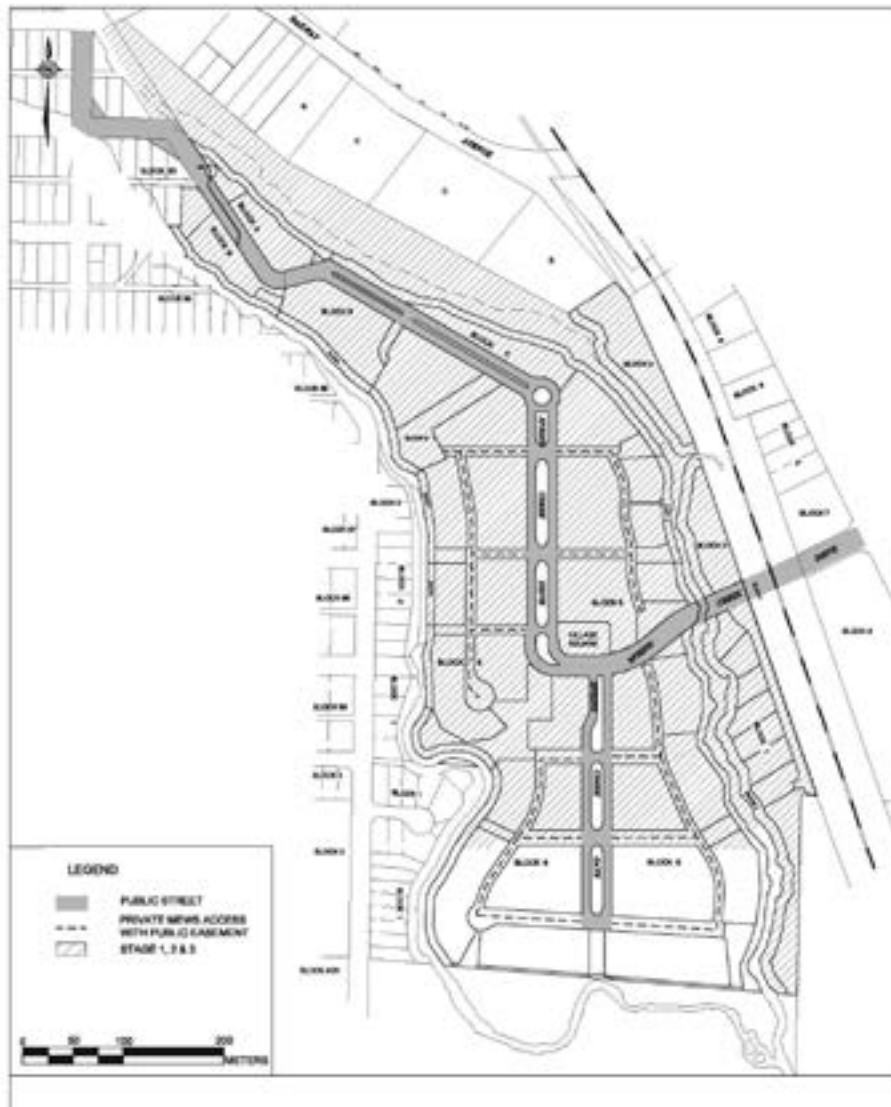
contained within the Spring Creek Mountain Village Area Redevelopment Plan, September 2004. The overall FAR for the Spring Creek Mountain Village ARP area shall not exceed an overall average of 1.65. The FAR calculation is based on the net developable area, which excludes creeks, ER, MR, residents' association open space and public roads.

- 14.27.5.3 Perpetual Affordable Housing (PAH): Concurrent with the development of Spring Creek Mountain Village, the developer will make available a minimum of 5% of the maximum number of residential units for this District as PAH units. The provision of these units shall be in accordance with the Town of Canmore PAH Policy. The location of the PAH units should not be concentrated within one or two buildings but distributed throughout the various development stages and buildings. The protocol for the provision of PAH housing shall be established in an agreement mutually acceptable to the Town and the Developer. This agreement shall include, but is not limited to, the following: **[2021-23]**
- a. A time frame for the offering of PAH units for sale.
 - b. An initial PAH offering period for SCMV residents.
 - c. Employees of Spring Creek Mountain Village.
 - d. Subsequent PAH offering period for sale to CCHC.
 - e. Initial and resale pricing formulas
 - f. Phasing of PAH development
- 14.27.5.4 Live/Work Studios: Live/work studios are Discretionary Uses and shall be restricted to street level locations for the studio part of the unit along Spring Creek Drive and the Village Square. A live/work studio is a residential unit, which also permits the street front ground floor portion of the unit to be used by the resident of the unit for their own personal commercial purpose. These Discretionary Uses may include business activities such as work or craft studios with direct sales to the general public, personal services, professional services, home office or other businesses where residents can work from their home and have public street frontage. Live/work studios shall be identified at the development permit stage and require that the residential portion of the unit be occupied by the owner or an employee of ancillary business.
- 14.27.5.5 Pedestrian Scale: Building design shall be orientated to a community pedestrian scale and integrated into a comprehensive open space and trail network as shown in Figure 7 of the approved Area Redevelopment Plan.
- 14.27.5.6 Roof Design: Roof design shall reflect the direction provided in the Landscape and Architectural Guidelines and support the function, architectural requirement and tradition of providing sheltering roofs in a mountain environment. Roof lines shall be articulated and larger structures shall incorporate a cascade of roofs to break up massing and add visual interest. Minimum roof pitch shall be 8:12 for all visible portions of the roof and dormers. Lower roof slopes may be used, at the discretion of the Development Authority, and without a variance requirement, when this does not significantly add to the mass of the building.
- 14.27.5.7 Roof overhang encroachments up to 2.0m beyond the property line into the road Right of Way and Municipal Reserve for architectural elements in Height Zone A (Figure 1), may be granted where the Development Authority is satisfied that the architectural integrity of the

14 DIRECT CONTROL DISTRICTS

building would be enhanced, and if applicable, the municipal reserve land would not be negatively impacted.

- 14.27.5.8 Building Massing: Lower, less dense development shall be located within the identified Fringe Area (Zone D) with increasing massing through the Transition Areas (Zones C&B) to the higher density Core Area (Zone A).
- 14.27.5.9 Road System: The road system may include public and private roads. Roads identified as private shall make provision for public access. Utility easements will be provided where necessary. Gated roads shall not be permitted. Figure 3 shows the proposed public and private streets within all 4 stages and the overall Area Redevelopment Plan area. The construction access for this development will be restricted to Spring Creek Drive - Bow Valley Trail access only. **[2021-23]**

Figure 3. Public and Private Streets

14.27.5.10 Building Materials and Exterior Colours: Building materials and exterior colours shall be in accordance with Section 11, Community Architectural and Urban Design Standards, of the Land Use Bylaw.

14.27.5.11 Landscaping: Landscaping design and materials shall be in accordance with Section 4 of the Spring Creek Mountain Village Landscape and Architectural Guidelines.

14.27.5.12 Signage, Canopies and Awnings: Signage, canopies and awnings shall be in accordance with Section 9, Signage Standards and Regulations, of the Land Use Bylaw.

14.27.6 Zone A (Core Area) and Zones B&C (Transition Areas) Design Requirements

14.27.6.1 Block Creation: All buildings shall front onto the streets creating defined 'blocks'.

14 DIRECT CONTROL DISTRICTS

- 14.27.6.2 Street Access: Wherever possible, main floor units shall have street access and addresses.
- 14.27.6.3 Block Interior Space: A minimum of 25% of the interior space of each block shall be contiguous, well-programmed and landscaped open space.
- 14.27.6.4 Spring Creek Drive Street Front (excluding Village Square and adjacent buildings): A minimum 25% of the street level uses shall be Live/Work studios or commercial in accordance with Figure 2.
- 14.27.6.5 Village Square: Commercial and Live Work studios shall comprise 75% to 100% of the street level frontage of the Village Square and adjacent buildings, in accordance with Figure 2.
- 14.27.6.6 Spring Creek Gate Frontage: Where possible, part of the street level uses shall be either commercial, live/work studios, or commercial-ready residential units, in accordance with Figure 2. The commercial-ready residential units shall be constructed to a 1 hour fire rating, so they may be converted to a commercial space in the future, as market demands. The intent is for Live/Work studios and commercial uses to phase out as development extends south on Spring Creek Gate. This will keep the bulk of commercial services in the vicinity of the Village Square. A letter of verification confirming this design standard shall be required from the project architect as a condition of the Development Permit. **[2021-23]**
- 14.27.6.7 The total Local Commercial area at plan build out shall be no more than 3,000 m², excluding Live/Work units. This may be increased by an additional 500 m² to facilitate a Daycare. **[2021-23]**

14.27.7 Tourist Homes

The number of Tourist Homes shall not exceed 300 units within the entire ARP area. They shall be located within identified floors within apartment buildings, or Townhouses adjacent to designated Tourist Home apartment buildings. Tourist Home locations shall be identified by the developer at the Development permit stage. Tourist Home permits will not be considered for units designated as employee or perpetually affordable housing. **[2021-23]**

14.27.8 Wellhead Protection

Developments in this district shall conform to the Section 7.4, Groundwater Protection Overlay, of the Land Use Bylaw.

14.27.9 Environmental Considerations

The environmental policies identified in the Spring Creek Mountain Village Area Redevelopment Plan, Section 4.3, shall be implemented with each stage of development. The implementation process shall include as part of the subdivision servicing agreement the following plans:

- a. Construction Management Plan
- b. Creek Bank Reclamation Plan
- c. Landscaping Plan

14.27.10 Growth Management**14.27.10.1 [Repealed by 2021-23]**

~~14.27.10.2 Irrespective of Section 14.27.10.1, The Spring Creek Park Connector trail and bridge shall be constructed prior to any development of any buildings in Stage 3.~~

14.27.10.3 No development shall occur in Stage 4 until Stage 1 and Stage 2 are completed and Construction Completion Certificates accepted by the Town of Canmore, with the exception of the existing residential parcel in Stage 1 (Legal: 1810013;9;1) two remaining hotel parcels in Stage 1 (Legal: 1810013;8;1 and 1810019;9;2) and two municipal reserve parcels (Legal: 1810013;9;3MR and 1810013;8;2MR). A temporary pedestrian trail system shall be provided until these parcels have been completed. Development on Spring Creek Gate will be in an orderly manner and continue in a southerly direction. **[2021-23]**

14.27.11 Evaluation Criteria for Previous Stages

Prior to the amendment of this Bylaw, the applicant in consultation with the Town of Canmore, shall provide an evaluation of the previous stage of development as part of the application process for the bylaw amendment. This evaluation shall include, but is not limited to, the following:

- a. Architectural and Neighbourhood fit, including heights and setbacks which include any overshadowing of adjacent yards;
- b. A review of the density on the previous stage of development to ensure the appropriateness of the development to the site;
- c. A traffic impact analysis performed through monitoring of the previous stage of development;
- d. Sight lines from within the project as well as from outside the project;
- e. Flow of pedestrian traffic and vehicular traffic on adjacent neighbourhoods into south Canmore and impact on south Canmore residents;
- f. Pedestrian flows in South Canmore Habitat Patch; and,
- g. Review of Discretionary Uses in this District.

This evaluation will be used to guide all future land use amendments and mitigative measures as the project proceeds.

14.27.12 Development Authority

The Council of the Town of Canmore shall be the Development Authority for any application that involves a variance to heights beyond the height variances listed in Section 14.27.4 of this District. The Development Authority for all other applications shall be either the Development Officer or the Canmore Planning Commission.

14.27.13 Sustainability Screening Report

A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with

14 DIRECT CONTROL DISTRICTS

Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.28 THREE SISTERS DRIVE-NUWEST TOWNHOUSE DC DISTRICT [BASED ON DEVELOPMENT CONTROL RESOLUTION #41 PASSED JUNE 24, 1980]

14.28.1 Purpose

To provide for multi-family residential accommodation at medium densities on larger sites for comprehensively designed developments. Non-residential uses or developments may be allowed in accordance with the listed Discretionary Uses when such uses are compatible with the residential purpose of the District.

14.28.2 Permitted Uses

Apartments

Duplex Dwellings

Home Occupation – Class 1

Parks and Playgrounds

Stacked Townhouses

Townhouses

14.28.3 Discretionary Uses

Accessory Building

Public and Quasi-Public Buildings

Public Utilities

Signs

14.28.4 Regulations

14.28.4.1 The minimum front yard setback shall be 6.0m

14.28.4.2 The minimum side yard setback shall be 2.4m

14.28.4.3 The minimum rear yard setback shall be 3.0m

14.28.4.4 The maximum building height shall be lesser of 3 stories plus loft or 11.0m as determined in accordance with Section 8, General Regulations.

14.28.4.5 The maximum site coverage for all buildings shall be 36.5%

14.28.4.6 The minimum landscaping requirements shall be 35% of the total site area

14.28.4.7 The maximum density for this District shall be 62 units per ha

NOTE: The setbacks and other regulations described in this district are minimum requirements. Depending on the location of a proposed development (e.g. a corner lot, a site adjacent to a waterbody or a location within the Wellhead Protection Area) other regulations in the Land Use Bylaw – for example Subsection 2.4, Setback Regulations - may increase or otherwise vary these requirements.

14.28.5 Additional Requirements

All developments shall conform to Section 2, General Regulations and Section 11, Community Architectural & Urban Design Standards.

14.28.6 Existing Development

All developments and land uses existing at the adoption of this Bylaw that are in conformance with Development Control Resolution #41 of 1980 are deemed to be conforming developments and uses.

14.28.7 Development Authority

The approving authority shall be designated as the Development Officer for the Municipality.

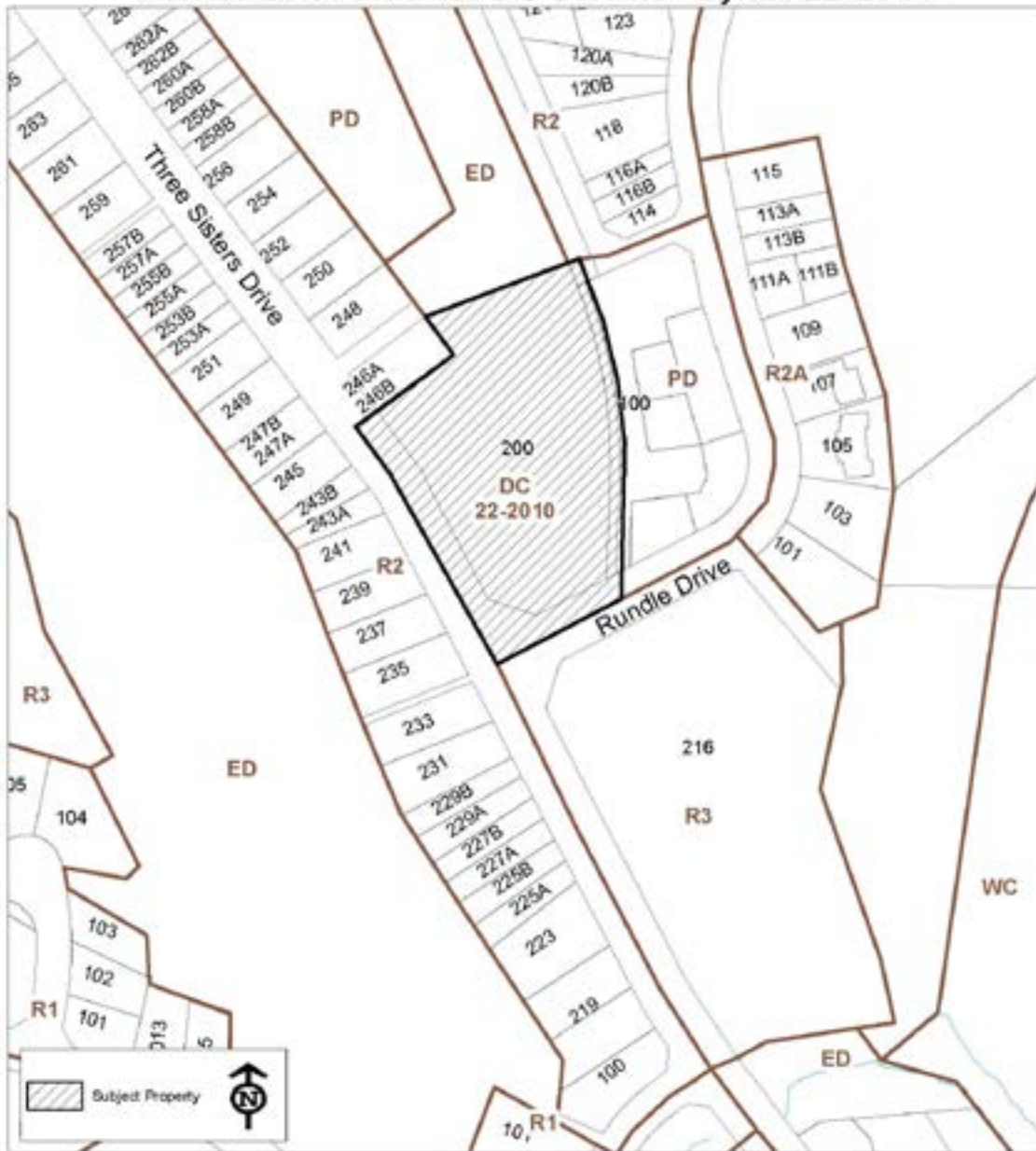
14.28.8 Sustainability Screening Report

A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.28.9 Schedules

Schedule "A", attached hereto forms part of this District.

Schedule "A"
Rundle Drive Nuwest DC District - Bylaw 22-2010



14.29 MULTIPLEX DISTRICT [DC 23(Z)2010]

14.29.1 Purpose

To provide for the development of a major community facility on municipal lands.

14.29.2 Permitted Uses

Athletic and Recreational Facility

Cultural Establishment

Parks and Playgrounds

14.29.3 Discretionary Uses

Accessory Building

Convenience Store

Day Care Facility

Dwelling units above the ground floor

Eating Establishment

Public and Quasi-Public Buildings

Public Utilities

Public Transportation Terminal

Recycling Depot

Retail Store

Signs

14.29.4 Regulations

14.29.4.1 The minimum front yard setback adjacent to Railway Avenue shall be 5.0m.

14.29.4.2 The minimum side yard setback shall be 3.0m.

14.29.4.3 The minimum rear yard setback shall be 3.0m.

14.29.4.4 The maximum building height shall be 17.0m or 3 storeys plus loft.

14.29.5 Additional Regulations

14.29.5.1 Vehicle parking for this district shall be provided in the following ratios:

Swimming Pool 1 stall per 46m² of floor area

Day Care Facility 1 stall per 2 employees

Library 1 stall per 46m² of floor area

Climbing Wall 1 stall per 46m² of floor area

Offices 1 stall per 46m² of floor area

Art Gallery 1 stall per 46m² of floor area

Meeting Rooms 1 stall per 46m² of floor area

All other uses shall provide parking in accordance with the general provisions of the Land Use Bylaw.

14.29.5.2 In calculating the required number of parking stalls for this district, if parking stalls may be shared by off-peak uses or due to other daily, weekly, or seasonal differences, the parking

requirements may be reduced, as the Development Authority deems appropriate.

14.29.5.3 Parking may be provided off-site for facilities and development constructed within this District where the Town is satisfied that such parking will be available for the life of the development.

14.29.5.4 Bicycle parking shall be provided close to the main entrance to the community facility. Bicycle parking shall be provided at a minimum of 1 bicycle stall per 5 parking stalls.

14.29.5.5 The following uses:

Convenience Store

Day Care Facility

Eating Establishment

Retail Store

Are intended to be accommodated as accessory uses within community buildings constructed in this district.

14.29.6 Development Authority

14.29.6.1 A development permit shall not be required for the construction of the major community facility (including any accessory uses within the principal building) in this district. Any decision made by Council on the major community facility will be made not in its role as the Development Authority, and shall not be subject to review by the Subdivision and Development Appeal Board.

14.29.6.2 All other developments within this district shall require a development permit in accordance with the requirements of the Land Use Bylaw.

14.29.6.3 Except as noted above in 14.29.6.1, the Development Authority for this district shall be the Development Officer for the Municipality. The Development Officer may refer an application to the Canmore Planning Commission.

14.29.7 Schedules

Schedule A: Location of Multiplex DC District

Schedule "A"
Multiplex DC District



14.30 PAINTBRUSH RIDGE TSMV COMPREHENSIVE RESIDENTIAL DC DISTRICT [05(Z)2013]

14.30.1 Purpose

To provide for a residential district that will accommodate a wide range of residential dwelling types. The district allows the arrangement of a variety of dwelling types in a comprehensively designed area.

14.30.2 Permitted Uses

Apartment Buildings

Duplex Dwellings

Home Occupation – Class 1

Parks and Playgrounds

Public Utilities

Stacked Townhouses

Townhouses

14.30.3 Discretionary Uses

Accessory Building

Signs

Parking Areas

Public and Quasi-Public Buildings

14.30.4 Regulations

14.30.4.1 The minimum front yard depth shall be 2.5m.

14.30.4.2 The minimum rear yard adjacent to the ER shall be 3.0m, otherwise the minimum rear yard depth shall be 1.0m.

14.30.4.3 The minimum side yard depth shall 1.0m.

14.30.4.4 The maximum building height shall be as indicated on a site grading plan approved as part of a subdivision plan. On the development grading plan, the maximum building heights and number of storeys shall be as follows:

	Eaveline	Maximum Height		Maximum Storeys
		Front Elevation	Rear Elevation	
Duplexes	6.0m	11.0m	11.5m	2 plus loft
Townhouses	9.0m	12.5m	14.0m	2 plus loft
Stacked Townhouses	10.0m	14.5m	14.5m	3
Apartments	10.0m	14.5m	14.5m	3

The elevations are calculated at building face using design or existing grade, where appropriate, to roof ridge.

14.30.4.5 The maximum number of dwelling units for the overall comprehensive development area shall not exceed 71 dwelling units.

14 DIRECT CONTROL DISTRICTS

- 14.30.4.6 The minimum number of dwelling units for the overall comprehensive development area shall not be less than 40 dwelling units.
- 14.30.4.7 The number of units provided which meet the requirements of entry-level units shall be twelve (12). Entry-level units shall be defined as:
- multi-family Residential Units which are approved as Entry-Level Housing Units by the Town of Canmore Council; and
 - which provide a total gross floor area in the range of 28 to 93m².
 - All entry-level multi-family housing units shall be offered for sale for a selling period of at least 45 days to local residents of Canmore according to criteria established in consultation with the Town of Canmore.
- 14.30.4.8 Additional units may be permitted beyond the maximum number of dwelling units provided such units meet the requirements of entry-level units.
- 14.30.4.9 A minimum of 40% of the comprehensive development area shall be landscaped.

14.30.5 Additional Requirements

- 14.30.5.1 The comprehensive development area shall be developed in accordance with the following, as identified in Section 14.30.8, Schedule "A", as follows:
- Unit 1: Apartment, Stacked Townhouse or Townhouse units
- Unit 2: Townhouses or Duplexes
- Unit 3: Townhouses or Duplexes
- Unit 4: Townhouses or Duplexes
- Unit 5: Townhouses or Duplexes
- 14.30.5.2 All developments shall conform to Section 2, General Regulations.
- 14.30.5.3 Slope-adaptive housing design shall be utilized on sloped sites.
- 14.30.5.4 Townhouse and Apartment Design and Landscaping. The design of Townhouse and Apartments and the landscaping of sites shall be in accordance with Section 11, Community Architectural and Urban Design Standards.
- 14.30.5.5 Slope Stability: Where development is proposed that would exceed development otherwise permitted under the Town of Canmore Slope Development Policy (1994), a visual impact assessment shall be prepared in accordance with the Town of Canmore Slope Development Policy (1994). Based on the information provided by the applicant in accordance with the Canmore Slope Policy, Council may approve relaxation(s) to the Canmore Slope Policy for the subdivision of land designated under this Bylaw.

14.30.6 Development Authority

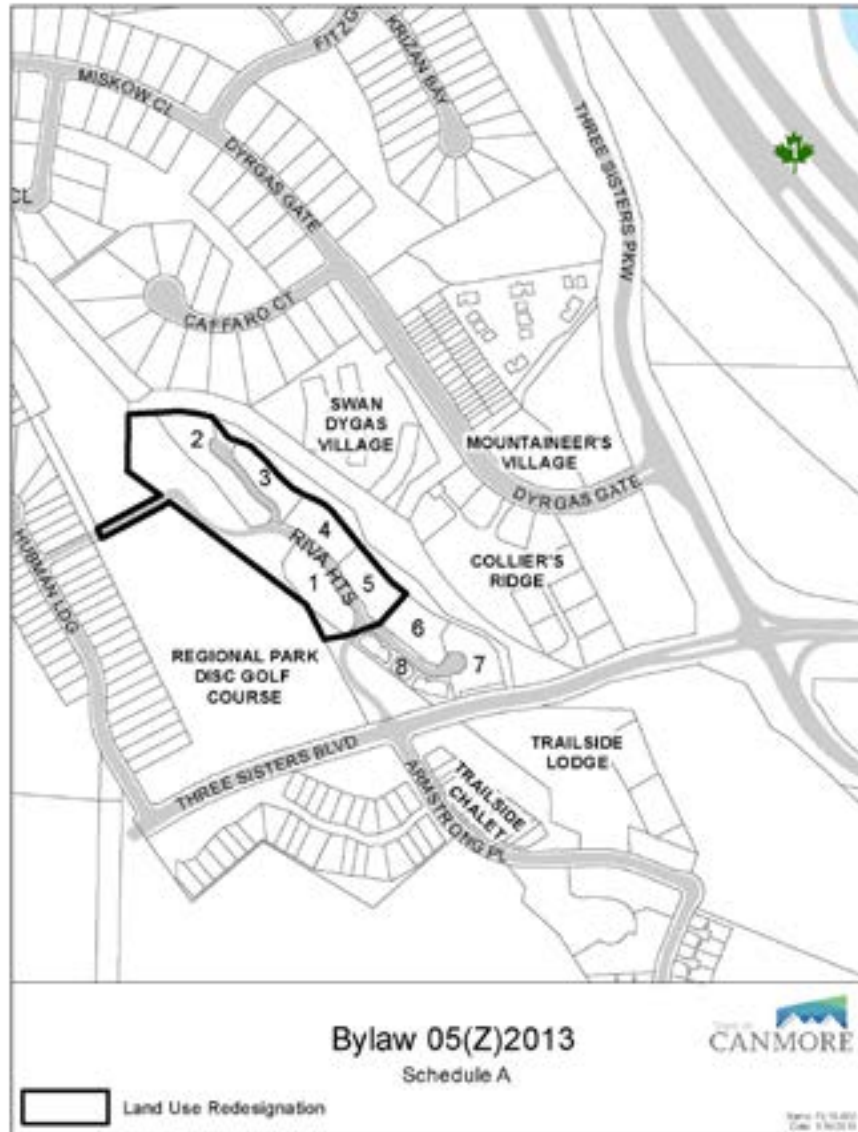
The Development Officer shall be the Development Authority for all development permit applications in this district. Development permit applications may be referred to the Canmore Planning Commission at the discretion of the Development Officer.

14.30.7 Sustainability Screening Report

A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.30.8 Schedules

The following schedule forms a part of this District.



14.31 STEWART CREEK GOLF COURSE RESORT ACCOMMODATION COMPREHENSIVE DC DISTRICT [2013Z-23]

14.31.1 Purpose

To provide for a Resort Accommodation District that will accommodate comprehensively designed Resort Accommodation unit types in a planned development. Resort Accommodation uses defined in the District will be considered as a commercial land use for the purposes of municipal assessment and taxation, with no restrictions on maximum occupancy periods.

14.31.2 Permitted Uses

Accessory Developments

Golf Course

Golf Course Maintenance and Storage Facilities

Parks and Playgrounds

Public Utilities

Resort Accommodation – TSMV

Home Occupation - Class 1

14.31.3 Discretionary Uses

Parking Areas and Structures

Shared ownership accommodation

Personal Service Business (freestanding)

14.31.4 Specific Definitions

Developable Footprint means the habitable main floor area within which development of 20 Resort Accommodation – TSMV units may occur within this District.

Height means with respect to a building, the maximum vertical distance between the grade immediately adjacent to the building and the midpoint between the eaveline and ridge of a sloping roof; provided in such cases the ridge is not more than 3.0m above this mid-point; (see the Interpretative Diagrams contained within this Bylaw).

Resort Accommodation – TSMV means a building or group of buildings for visitors to the resort area, which may be utilized for non-residential tenancies, is not intended to be used for permanent living accommodation, and shall include visitor accommodation and other tourist accommodation, and fractionally owned property. Resort Accommodation may be in the form of visitor accommodation units, apartment resort accommodation units, and resort townhouse accommodation units/stacked townhouse resort accommodation units, and shall in all cases be considered as a commercial land use for the purpose of municipal assessment and taxation, with no restrictions or minimum or maximum occupancy periods.

14.31.5 Regulations

14.31.5.1 The maximum number of Resort Accommodation – TSMV units shall not exceed 20.

14.31.5.2 The minimum yard setback for buildings within this District is zero, subject to being located at

a distance of 50m (or greater) from the north boundary of the Along Valley Wildlife Corridor, as defined and approved by the Province of Alberta in 1998.

14.31.5.3 The total landscaped and existing forested area required within this District shall be an amount indicated within the table below. Where a mix of forms is proposed, the lower requirement shall be used.

14.31.5.4 The total landscaped and existing forested area shall be calculated by:

$$\frac{\text{existing forested area} + \text{landscaped area}}{\text{total area of this District}}$$

14.31.5.5 The maximum height within this District shall be indicated within the table below.

Building Form	Landscaped/ Naturalized Area	Height
Duplex	40%	10m
Townhouse	40%	12m
Stacked Townhouse	45%	14m
Apartment	45%	14m

14.31.5.6 The minimum roof pitch shall be 6:12. Small roof elements or dormers may have a roof pitch of less than 6:12 where it does not result in significant increases in building mass.

14.31.5.7 The maximum Developable Footprint is 2100m² within this District; this does not include garages and parkades, but additional structured parking shall be limited to a maximum of 2 stalls per unit. The average Gross Floor Area of all units in the District shall be 250m² or less.

14.31.5.8 All developments shall conform to Section 8, General Regulations except where stated within this District.

14.31.5.9 At the Development Permit stage, the applicant shall demonstrate a mechanism for encouraging short term stays, such as a central property management system, a reservation system, and key disbursement, to the satisfaction of the Development Authority.

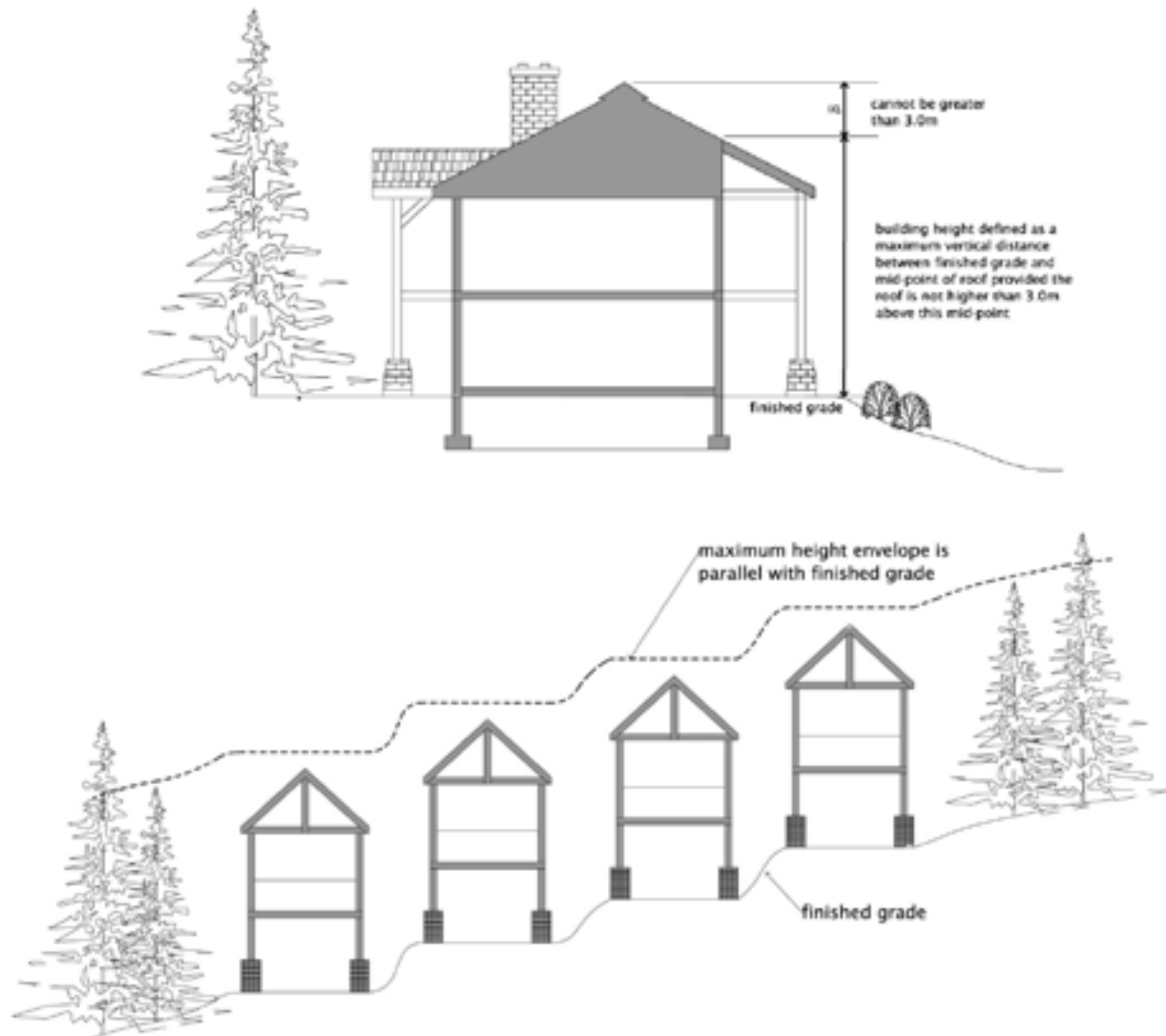
14.31.5.10 A review of the proposed locations of Resort Accommodation uses within the Golf and Recreation Area by an independent wildlife biologist shall be required at the subdivision application or development permit application stage.

14.31.6 Additional Requirements

14.31.6.1 At the time of Development Permit application, a construction management plan shall be submitted to the satisfaction of the Development Authority that satisfies the recommendations outlined in the Biophysical Impact Assessment submitted with the land use designation and as expressed in 2005 Three Sisters Mountain Village Construction Management Handbook.

14.31.6.2 At the time of Development Permit application, operational mitigations for wildlife-human conflicts as recommended in the approved Biophysical Impact Assessment, such as signage, post and rail fences and downcast lighting, shall be demonstrated to the satisfaction of the Development Authority.

14.31.7 Interpretive Diagrams



14.31.8 Development Authority

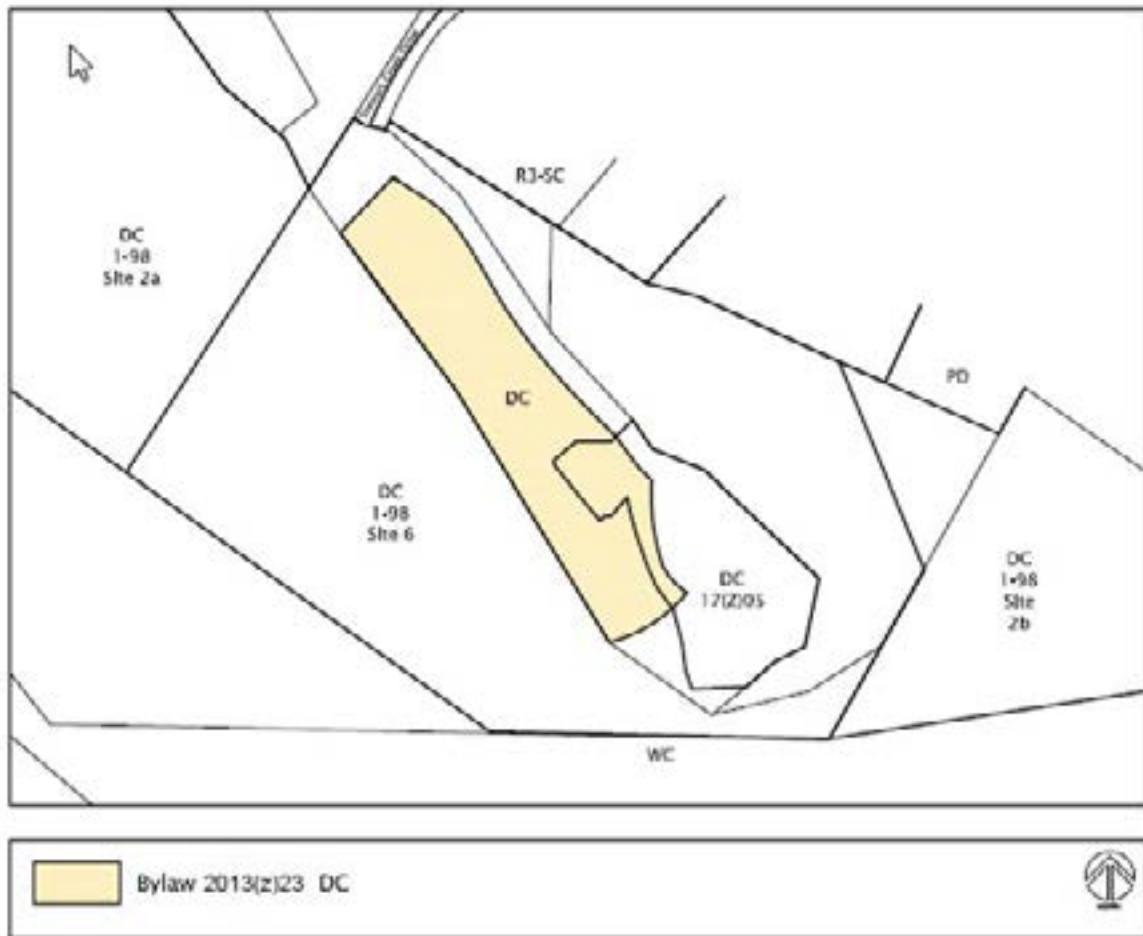
The Development Officer shall be the Development Authority for all development permit applications in this district. Development permit applications may be referred to the Canmore Planning Commission at the discretion of the Development Officer.

14.31.9 Sustainability Screening Report

A Sustainability Screening Report (SSR) is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.31.10 Schedules

Schedule "A" shows the location of this District.



14.32 CANMORE HOTEL DIRECT CONTROL DISTRICT [2015-15]

14.32.1 Purpose

To preserve the heritage and character of the Canmore hotel and allow for complementary development on those areas of the site not considered part of the historic development.

14.32.2 Area Differentiation

The subject property shall be divided into two sites for the purpose of differentiating uses and architectural regulations that apply to each site as shown in Figure 1. Area A shall be defined as the western portion of the parcel including the historic Canmore Hotel but excluding the shed addition to the east of the building as existing on site on January 1, 2014. Area B shall be the remainder of the property.

14.32.3 Area A - Permitted Uses

Eating Establishments

Visitor Accommodation

Drinking Establishments – Main Floor

14.32.4 Area A - Discretionary Uses

Arts and Crafts Studios

Athletic and Recreational Facilities

Cannabis Retail Store

Convention Facilities

Commercial Printing Establishments

Cultural Establishments

Day Care Facility

Drinking Establishments – Above the
main floor

Dwelling Units in Mixed Use Buildings

Employee Housing

Entertainment Establishments

Financial Institutions

Laundromats

Liquor Stores

Home Occupation - Class 1

Home Occupation - Class 2

Hostel

Medical Clinics

Offices

Parking Areas and Structures

Personal Service Business

Private Clubs

Public and Quasi-Public Buildings & Uses

Retail Stores to a maximum GFA of 2,000 m²

Retail Food Stores (maximum GFA 1,100m²)

Schools, Commercial

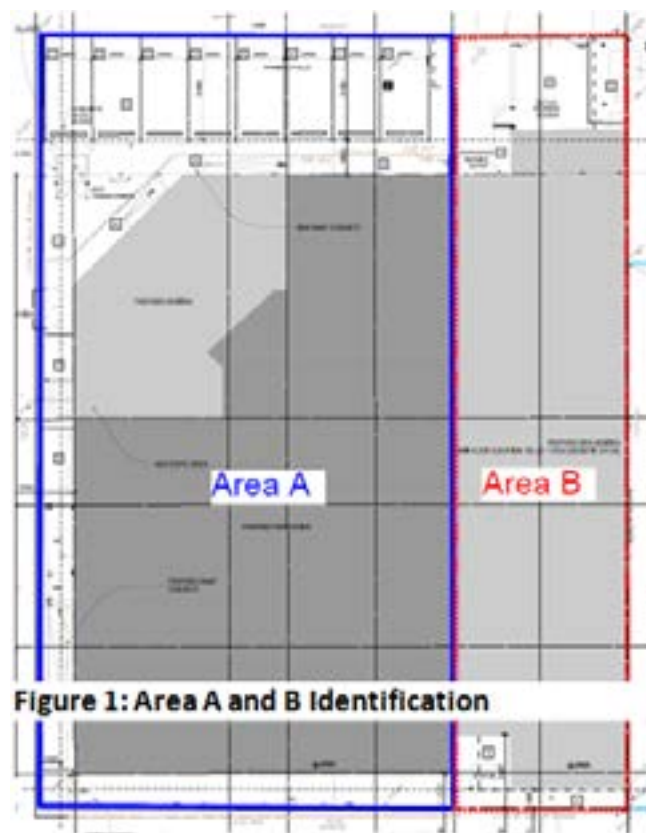


Figure 1: Area A and B Identification

Schools, Post-secondary
Schools, Private
Seasonal/Temporary Business
Signs
Taxi Stand
Tourist Home

14.32.5 Area B Uses

The permitted and discretionary uses for Area B shall be the same as those of the Town Centre District (TC).

14.32.6 Regulations

14.32.6.1 The minimum site area shall be 1224m². No further subdivision of the site shall be permitted.

14.32.6.2 The maximum floor area ratio shall be 2.0.

14.32.6.3 The minimum floor area ratio shall be 0.8.

14.32.6.4 The development footprint for all buildings on site shall be no greater than the total footprint identified in Subsection 14.32.13.

14.32.6.5 Maximum building envelope for Area A

- a. The maximum building height shall be 9.52m as measured from the grade of the property where it intersects the sidewalk at the southwest corner of the lot as shown in 14.32.13. No alterations are permitted to the roof form and building mass of the Canmore Hotel unless approved by the Town pursuant to the Historic Resource Designation Bylaw 2015-16. Roof Form and massing shall be consistent with the historic image attached as 14.32.14 to this district.
- b. Chimneys shall be allowed to exceed the maximum height of the building at the discretion of the development authority.
- c. Mechanical systems, satellite dishes and other building systems shall not be visible from the street.
- d. The maximum building footprint shall be as shown on the plot plan in Section 14.32.13.
- e. The boundary between Areas A and B is not considered a yard with respect to setbacks. Buildings shall be permitted to straddle this boundary or extend past it.
- f. At the discretion of the development authority and with consent of the Town of Canmore, encroachments may be permitted into the road right of way to preserve the historic verandah along Main Street and the historic eave line. Such encroachments shall not be considered a variance to the Land Use Bylaw. No encroachments shall be permitted into the rear lane.

14.32.6.6 Maximum building envelope for Area B

- a. The maximum building height in area B shall be 13.57m as measured from the grade of the property where it intersects the sidewalk at the southeast corner of the lot as shown in 14.32.13 and where the roof of the building steps back from the perimeter of the

building in a manner similar to the illustrations in Figures 2 and 3.

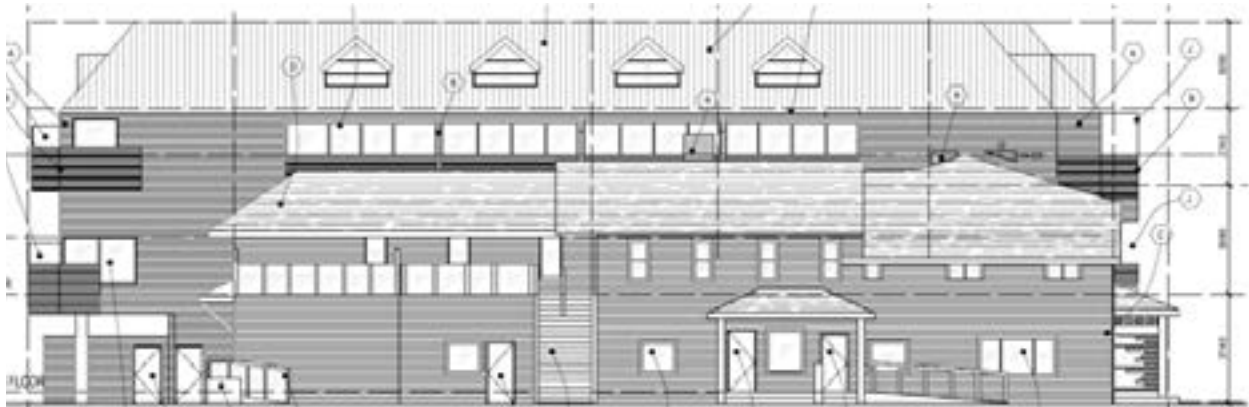


Figure 2. Area B west elevation building mass sample

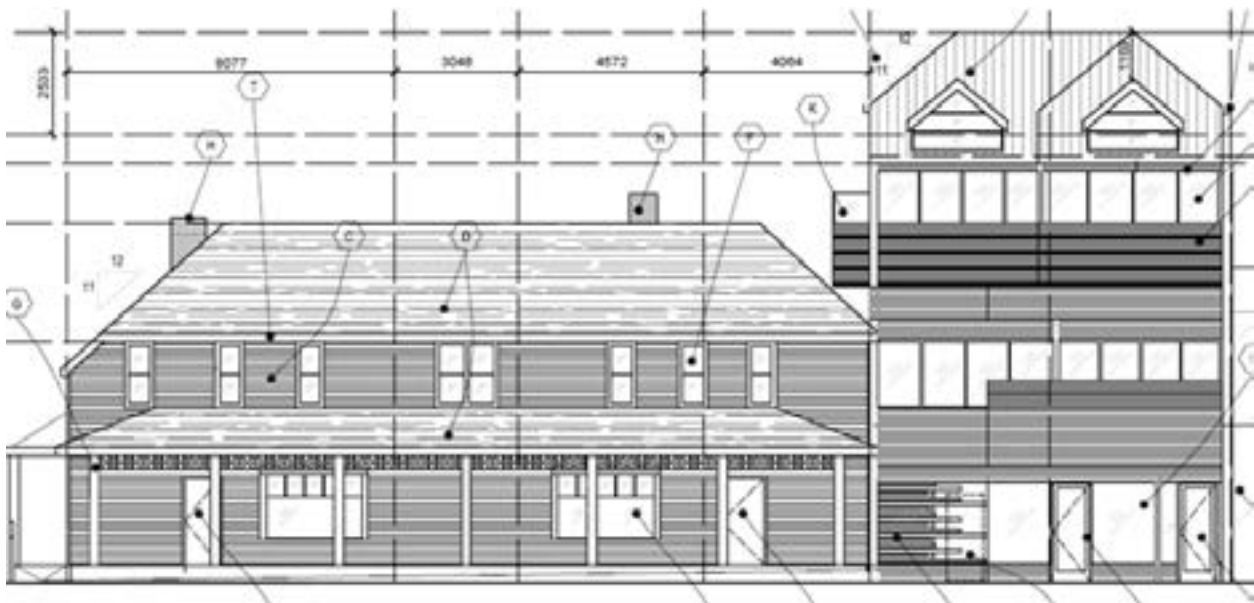


Figure 3. Area B south elevation building mass sample

- b. The maximum building footprint shall be as shown on the plot plan attached in Section 14.32.13.
- c. Encroachments into the road right along Main Street may be permitted in accordance with Section 11. No encroachments shall be permitted into the rear lane.
- d. Chimneys shall be allowed to exceed the maximum height of the building at the discretion of the development authority.

14.32.7 Design Requirements**14.32.7.1 General**

- a. All businesses adjacent to a public street and/or sidewalk shall have a functional entrance that faces that street/sidewalk. No business shall be permitted to turn its back to a street or public walkway. Where businesses have multiple street frontages, functional entrances may be required for each frontage at the discretion of the Development Authority.
- b. Signage shall be oriented to the pedestrian sidewalk.
- c. Garbage containers and waste material shall be stored either inside a principal building or, at the discretion of the Development Authority, in a weatherproof and animal-proof garbage enclosure if such an enclosure is required to accommodate a Town-approved solid waste management system. Garbage enclosures shall be designed and located to be visually integrated with the site.
- d. Outdoor storage is prohibited.

14.32.7.2 Area A

- a. Notwithstanding Section 11, building design for Area A shall be consistent with heritage character of the historic Canmore Hotel. Building massing, roof form, materials and colours shall reflect the heritage of the building. Where there is a conflict between historical elements and design and Section 11, historical elements and design shall prevail.

14.32.7.3 Area B

- a. Design of buildings on Area B shall be sensitive to the historic character of the Canmore Hotel and shall conform to Section 11, the Community Architectural and Urban Design Standards. Where conflict may arise between design sensitivity to the historic character of the Canmore Hotel and Section 11, design sensitivity shall prevail.

14.32.8 Discretionary Use Regulations

- 14.32.8.1 The criteria for offices on the main floor as a discretionary use shall be the same as those of the Town Centre District (Subsection 4.1.4).
- 14.32.8.2 The criteria for dwelling units and tourist homes as a discretionary use shall be the same as those of the Town Centre District (Subsection 4.1.4).
- 14.32.8.3 The criteria for employee housing as a discretionary use shall be the same as those of the Town Centre District (Subsection 4.1.4).

14.32.9 Required Parking and Parking Alternatives

- 14.32.9.1 Notwithstanding Subsection 2.7, the total parking stalls required for development of Areas A and B is ten (10) stalls. Two (2) stalls have already been provided as cash in lieu therefore eight (8) physical stalls are required within the district.
- 14.32.9.2 The Development Authority may, at its discretion, approve cash-in-lieu of parking for any of

14 DIRECT CONTROL DISTRICTS

the required 8 physical parking stalls.

- 14.32.9.3 Four vertically stacked parking stalls shall be permitted with access to the lane on the north-eastern side of the site. At the discretion of the development authority more than 4 vertically stacked parking stalls may be permitted where in the opinion of the development authority, they do not create excessive negative impact on views from the civic plaza.
- 14.32.9.4 For the purpose of calculating required parking per Subsection 14.32.9.1, vertically stacked parking stalls shall only be credited as a single parking stall rather than two and any on street stalls shall not be credited.
- 14.32.9.5 Secure and permanent parking for bicycles shall be designed in conformance with Section 11 for a minimum of 10 bicycles.

14.32.10 Historic Resource

- 14.32.10.1 This direct control district has been crafted to facilitate the preservation of the Canmore Hotel historic resource. No further variances shall be granted pursuant to Subsection 7.7.5.6. Any variance request must conform to the criteria for variances set in Section 1.14.
- 14.32.10.2 Those portions of the development in this district identified as significant under a municipal historic resource designation bylaw shall be protected in accordance with the historic resource bylaw. All development applications that impact these historic portions of the development shall require prior consent of the authority designated by the Town of Canmore in accordance with Bylaw 2015-16.

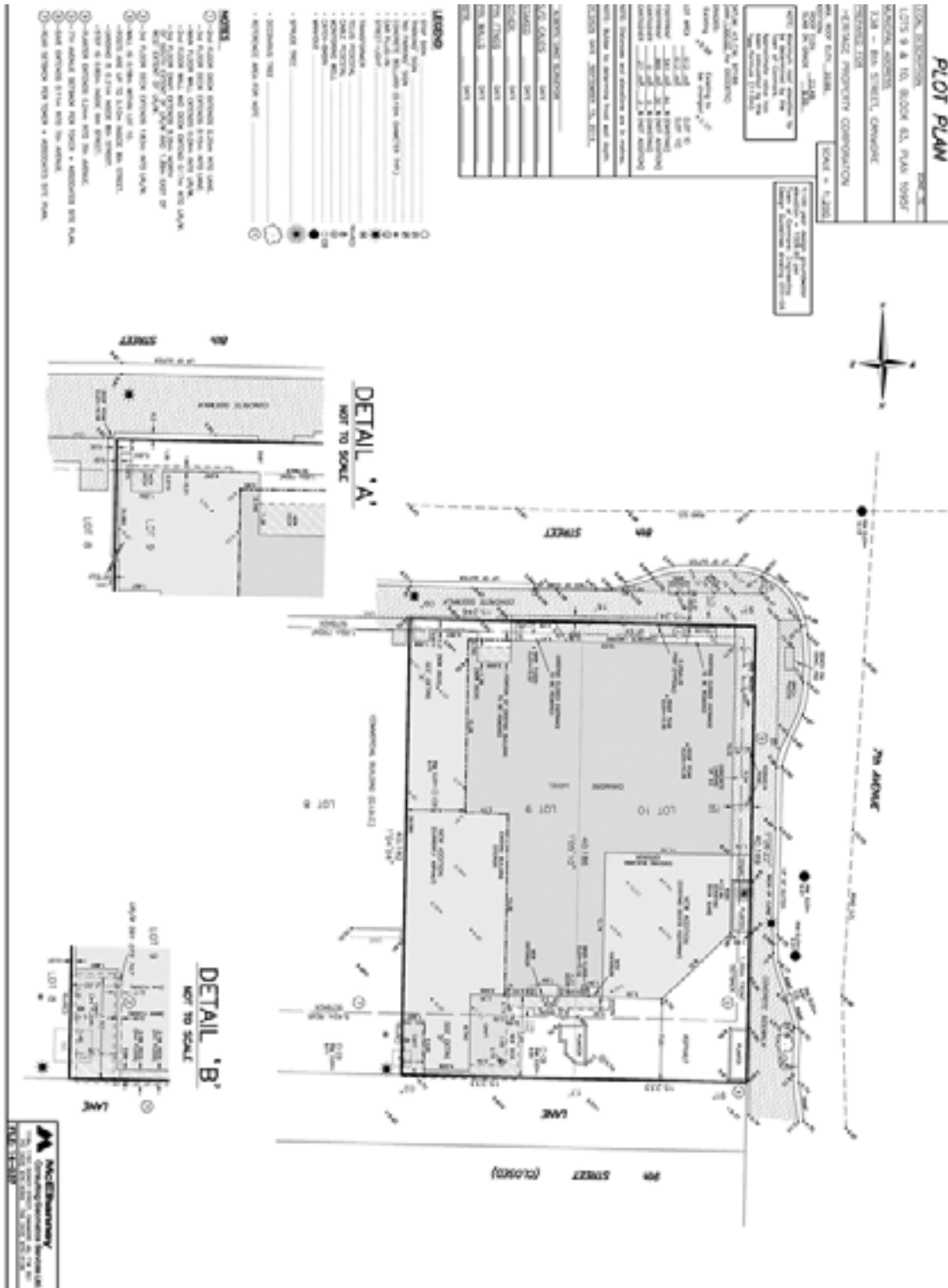
14.32.11 Development Authority

- 14.32.11.1 The development authority for the initial restoration of the Canmore Hotel (Area A) and initial development of Area B shall be Council.
- 14.32.11.2 The development authority for any subsequent development or change of use shall be the Development Officer.

14.32.12 Sustainability Screening Report

No Sustainability Screening Report is required within this district.

14.32.13 Detailed Yard Setback and Grade Information



14.32.14 Area A Historic Building Form and Mass



14.32.15 Schedules

Schedule A: Location Map of DC2015-15 Canmore Hotel Direct Control District



14.33 COAST APARTMENT DC DISTRICT [2015-25]

14.33.1 Purpose

To provide for high-density multi-family residential development within rental apartment buildings. Non-residential uses or developments may be allowed in accordance with the listed Discretionary Uses when such uses are compatible with the residential purpose of the District.

14.33.2 Permitted Uses

Apartment Buildings
Home Occupation - Class 1
Parks and Playgrounds
Public Utilities

14.33.3 Discretionary Uses

Accessory Buildings
Eating Establishment
Home Occupation – Class 2
Office
Parking Areas and Structures
Signs
Retail (<150m²)

14.33.4 Regulations

14.33.4.1 The minimum lot area shall be 6200m².

14.33.4.2 The minimum yard setbacks in this district shall be as follows based on the illustration in Figure 1:

- a. Areas shown in black shall be 3m
- b. Areas shown in grey shall be 6m

Figure 1:



- 14.33.4.3 The maximum building height shall be 21m.
- 14.33.4.4 A minimum of 20% of the site area shall be landscaped.
- 14.33.4.5 The minimum number of dwelling units in this district is 80 and the maximum is 105.
- 14.33.4.6 The maximum site coverage shall be 55%.
- 14.33.4.7 The minimum floor area ratio is 0.75 and maximum is 1.5.
- 14.33.4.8 Developments must complement the mountain community of Canmore and must conform to Section 11 the Community Architectural and Urban Design Standards in addition to the regulations of this district. Where there is conflict between Section 11 and this district, the regulations of this district shall prevail.

14.33.5 Design Requirements

14.33.5.1 Roof design

Minimum roof pitch shall be 6:12 for all visible portions of the roof and dormers; lower slopes may be used on smaller portions of the roof such as dormers, canopies, and gables.

14.33.5.2 Building facades

The facades of buildings shall incorporate substantial horizontal articulation in order to break up the massing of buildings with more than two dwelling units fronting onto a public roadway. Vertical articulation below the eaveline is not required.

14.33.5.3 Parking

- a. The following parking standards shall be applied to a residential development where all of the units within the development are on a single property, under single ownership and operated as rental units:

Unit Type	
1 bedroom	0.75 stalls/unit
2 bedroom	1.15 stalls/unit
3 bedroom	2.00 stalls/unit
Visitor stalls	4 stalls total
Bicycle parking	0.5 stalls/unit
Loading stalls	1 stall total

- b. All other development, including residential development on multiple titles (eg condominiums) shall be required to meet the parking standards set out in Section 2.
- c. Parking may, at the discretion of the development authority, be permitted in front of buildings on this site.
- d. All parking and loading areas must be visually screened with fencing or landscaping so as to screen it from view from the street to the satisfaction of the development authority.
- e. Parkades, underground parking, and structured parking and parking within residential buildings is not permitted within this district without express approval from the

development authority.

14.33.5.4 Signage: Signage shall not be oriented to or be legible from the Trans-Canada Highway.

14.33.5.5 Site Design: A pedestrian-oriented site design shall be established to allow for or encourage pedestrian traffic throughout the development. These pedestrian connections must link to the Town's existing and future trail networks surrounding the development.

14.33.6 Additional Requirements

14.33.6.1 All developments shall conform to Section 2, General Regulations of the Land Use Bylaw. Where standards differ from those in Section 2, General Regulations, the standards of this DC district will be applied.

14.33.6.2 Animal proof waste containers must be located on-site and screened with, for example, artificial or natural screening to the satisfaction of the development authority.

14.33.6.3 The following shall be the maximum average size for dwelling units in this district:

Unit type	Maximum average size
Studio	50m ²
1 bedroom	64m ²
2 bedroom	83m ²
3 or more bedrooms	115m ²

Average size shall be calculated for each unit type as the average gross floor area of all units of the same type within the development.

14.33.6.4 Private outdoor amenity space must be provided for any residential dwelling unit development on this site in accordance with Subsection 8.7.

14.33.7 Development Authority

14.33.7.1 The Municipal Council of the Town of Canmore shall be the Development Authority for applications for all residential structural developments within this District and any parkade(s).

14.33.7.2 The Development Authority for all non-structural development, including changes of use or signage within this District, shall be the Development Officer.

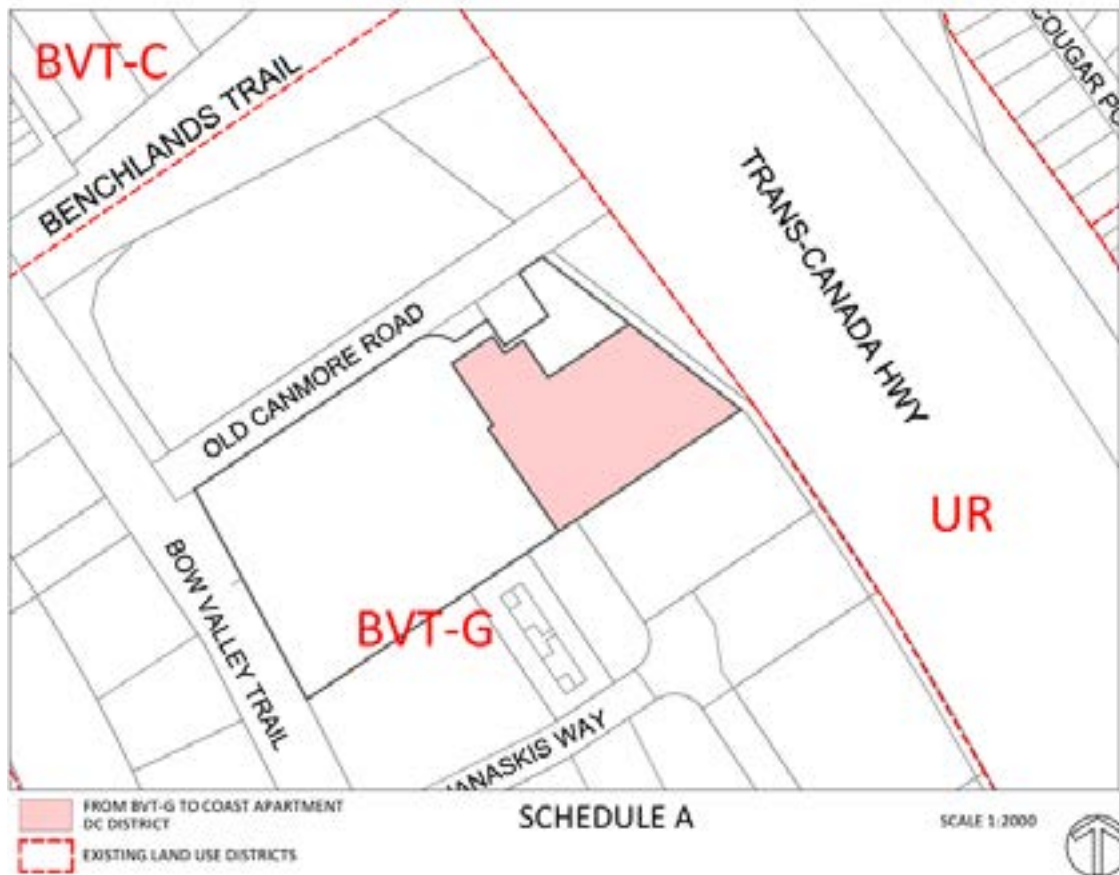
14.33.7.3 The Development Officer, at their discretion, may refer any development permit applications for non-structural developments or other non-residential uses to the Canmore Planning Commission.

14.33.8 Sustainability Screening Report

A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.33.9 Schedules

Schedule "A" shows the location of this District.



14.34 PALLISER MOUSTACHE RENTAL APARTMENT DIRECT CONTROL DISTRICT [2016-23]

14.34.1 Purpose

To provide for a comprehensive medium to high density multi-family rental housing development. The district regulations are intended to provide a basic outline for development in this area; however, it is anticipated that Council when acting as development authority may choose to alter any of these regulations. Commercial uses are intended to provide residents with basic retail, personal and food services that can be readily accessed without motorized transportation.

14.34.2 Permitted Uses

Comprehensively designed multi-family residential rental development
Convenience Store
Day Care Facilities
Home Occupations – Class 1
Parks and Playgrounds
Public Utilities

14.34.3 Discretionary Uses

Apartment Building
Athletic and Recreation Facilities
Cannabis Retail Store (maximum GFA 150m²)
Eating Establishments
Employee Housing
Home Occupations – Class 2
Laundromats
Liquor Stores (maximum GFA 150m²)
Live/Work Studios
Medical Clinics (maximum GFA 150m²)
Offices
Personal Service Business
Retail Stores (maximum GFA 150m²)
Signs
Townhouse, stacked
Townhouse

14.34.4 Regulations

- 14.34.4.1 The minimum lot area shall be 2500m².
- 14.34.4.2 The minimum yard setback shall be:
- a. Adjacent to the Trans-Canada Highway and off-ramp: 12m.
 - b. All other yards: 6m
- 14.34.4.3 The maximum building height shall be 16.0m.

14.34.4.4 The minimum density shall be 49 units per hectare.

14.34.4.5 The maximum density shall be 148 units per hectare.

14.34.4.6 The maximum site coverage shall be 50%.

14.34.5 Local Commercial Development Performance Standards

14.34.5.1 Commercial uses listed in 14.34.3 shall only be allowed where they provide services to the neighbourhoods in the general vicinity of the District.

14.34.5.2 Commercial uses should address Palliser Trail or a courtyard internal to the development and provide enhanced public spaces and social meeting spaces including plazas, patios and decks.

14.34.5.3 No commercial development shall be oriented to the Trans-Canada Highway

14.34.6 Design Requirements

14.34.6.1 Developments shall conform to Section 11 of the Architectural and Urban Design Standards.

14.34.6.2 Building height: Variances may be granted to allow a total of 20% of the roof areas to exceed the maximum height by up to 20% in order to allow for additional design flexibility at the discretion of the Development Authority.

14.34.6.3 Signage: Signage shall not be oriented to or be legible from the Trans-Canada Highway.

14.34.6.4 Site Design: A pedestrian-oriented site design shall be established to allow for or encourage pedestrian traffic throughout the development. These pedestrian connections must link to the Town's existing and future trail networks surrounding the development.

14.34.6.5 Landscaping: in addition to the requirements of Section 11, a minimum 12m wide strip of land adjacent to the Trans-Canada Highway and off-ramp shall be landscaped.

14.34.6.6 Sound: Residential development should not be permitted where the outdoor sound level exceeds Leq 24 of greater than 75dBA. Where the outdoor sound level exceeds Leq 24 55dBA an acoustic analysis of the residential development must be undertaken. All bedrooms must achieve a noise level less than 35dBA.

14.34.7 Parking Requirements

14.34.7.1 Parking shall be designed to effectively screen vehicles when viewed from Palliser Trail with, for example, the use of intensive landscaping or strategic building placement.

14.34.7.2 Parking areas shall not be located adjacent to Palliser Trail and shall include visual screening in accordance with Section 11, the Architectural and Urban Design Standards.

14.34.7.3 Notwithstanding Section 2, the following automobile parking standards shall be applied to comprehensively designed multi-family residential rental development:

Unit type	Required stalls per unit
Studio	0.50
1 bedroom	0.75
2 bedroom	1.25
3 bedroom	2.00
Visitor stalls	0.15

Parking requirements for all other uses shall conform to Section 2.

- 14.34.7.4 Notwithstanding Section 2, secure and permanent parking facilities for bicycles designed in conformance with Section 11 shall be provided at a minimum ratio of 1 bike parking stall/ dwelling unit. The development authority may, at its discretion, accept dwelling unit storage areas as bike parking stalls.

14.34.8 Additional Requirements

- 14.34.8.1 Unless specifically exempted in this district, all developments shall conform to Subsection 2, General Regulations.
- 14.34.8.2 Animal proof waste containers must be located on-site and screened with, for example, artificial or natural screening. The location of all animal proof waste containers is subject to Town approval.
- 14.34.8.3 Notwithstanding 8.7.0.1, a children's playground or other outdoor recreational amenities shall be required for all comprehensively designed multi-family residential rental developments in this district to the satisfaction of the development authority. Such amenities may be credited by the development authority whether they are on private land or Municipal Reserve.
- 14.34.8.4 Developments within this district shall conform with Section 4.2.13 of the Municipal Development Plan.
- 14.34.8.5 An environmental impact statement (EIS) shall be prepared as part of any comprehensively designed multi-family residential rental development application. This EIS shall be prepared in accordance with the Town of Canmore EIS Policy.
- 14.34.8.6 A risk assessment pursuant to Section 3.5.16 of the Municipal Development Plan is required as part of any development proposal for new residential development in this district.

14.34.9 Definitions

- 14.34.9.1 Comprehensively designed multi-family residential rental development means a building or group of buildings on a parcel of land that are designed and managed as rental housing. Such buildings may have a built form of apartment buildings, townhouses, or stacked townhouses and all units in a particular building must be on a single title and not part of a condominium.

14.34.10 Development Authority

- 14.34.10.1 The Municipal Council of the Town of Canmore shall be the Development Authority for applications for all residential structural developments within this District.

14.34.10.2 The Development Authority for all other developments shall be the Development Officer.

14.34.10.3 The Development Officer, at his or her discretion, may refer any development permit applications for non-structural developments or other non-residential uses to the Canmore Planning Commission or Council.

14.34.11 Sustainability Screening Report

14.34.11.1 A Sustainability Screening Report is not required by the Town as part of any Development Permit application.

14.34.12 Map

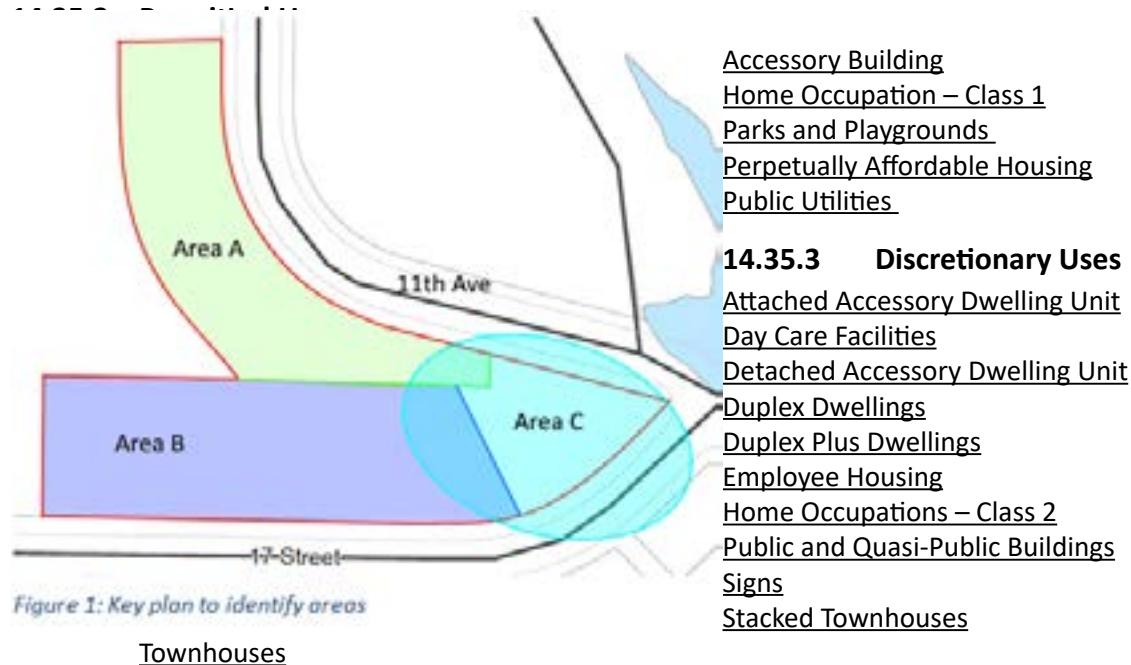
The following Map forms a part of this District



14.35 OLD DAYCARE LANDS DC DISTRICT [2016-32]

14.35.1 Purpose

To provide a comprehensively designed perpetually affordable housing development. Non-residential uses or developments may be allowed in accordance with the listed uses when such uses are compatible with the residential purpose of the district.



14.35.4 Regulations

14.35.4.1 The minimum number of dwelling units within this district is 30.

14.35.4.2 The maximum number of dwelling units in this district is 50.

14.35.4.3 Sections 14.35.5, 14.35.6, and 14.35.7 provide area specific regulations which apply to the areas identified in Figure 1. The area boundaries are intended to be for illustrative purposes and exact boundaries will be determined by the development authority as part of a development permit application.

14.35.5 Area A Specific Regulations

14.35.5.1 The minimum yard setbacks in are:

- Front Yard (Adjacent to 11th Ave): 6.0m
- Rear Yard (West): 6.0m
- Side Yard (North) 3.0m
- Side Yard (South) 1.5m
- Interior side yards: 1.5m

14 DIRECT CONTROL DISTRICTS

14.35.5.2 Buildings shall have a maximum of 3 storeys.

14.35.5.3 The maximum building height shall be 10.0m in accordance with Section 2.

14.35.6 Area B Specific Regulations

14.35.6.1 The minimum yard setbacks in are:

- a. Front Yard (Adjacent to 17th Street): 3.0m
- b. Rear Yard (North): 7.5m
- c. Side Yard (West): 1.5m
- d. Side Yard (East): 1.5m
- e. Interior side yards: 1.5m

14.35.6.2 Buildings shall have a maximum of 2 storeys.

14.35.6.3 The maximum building height shall be 8.5m in accordance with Section 2.

14.35.7 Area C Specific Regulations

14.35.7.1 The minimum yard setbacks in are:

- a. Adjacent to 17th Street: 3.0m
- b. Adjacent to 11th Ave: 3.0m
- c. Rear Yard: at the discretion of the Development Authority
- d. Interior side yards: 1.5m

14.35.7.2 Buildings shall have a maximum of 2 storeys plus loft.

14.35.7.3 The maximum building height shall be 9.5m in accordance with Section 2.

14.35.8 Additional Requirements

14.35.8.1 All developments shall conform to Section 2, General Regulations.

NOTE: The setbacks and other regulations described in this district are minimum requirements. Depending on the location of a proposed development (e.g. a corner lot, a site adjacent to a waterbody or a location within the Wellhead Protection Area) other regulations in the Land Use Bylaw – for example Subsection 2.4, Setback Regulations - may increase or otherwise vary these requirements.

14.35.8.2 No Sustainability Screening Report is required in this district.

14.35.9 Design Requirements

14.35.9.1 The development authority may grant variances to allow roof areas to exceed the maximum height, either:

- a. To allow a total of 10% of the roof areas to exceed the maximum height by up to 10% where it is of the opinion that the architecture of the development would be enhanced,

or

- b. Where the view shed from immediately across the street is not impaired more than would be created by a building of the maximum height as measured at the point of the front setback.

14.35.9.2 The use of building materials and colours shall meet the intent of Section 11, Community Architectural and Urban Design Standards.

14.35.9.3 The development authority may grant variances to allow buildings to have greater than the stated maximum storeys where variance has been granted pursuant to 14.35.9.1.

14.35.10 Perpetually Affordable Housing

14.35.10.1 Perpetually affordable housing within this district may take the form of Townhouses, Stacked Townhouses, and Duplexes.

14.35.10.2 In addition to 14.35.10.1 perpetually affordable housing may include accessory dwelling units.

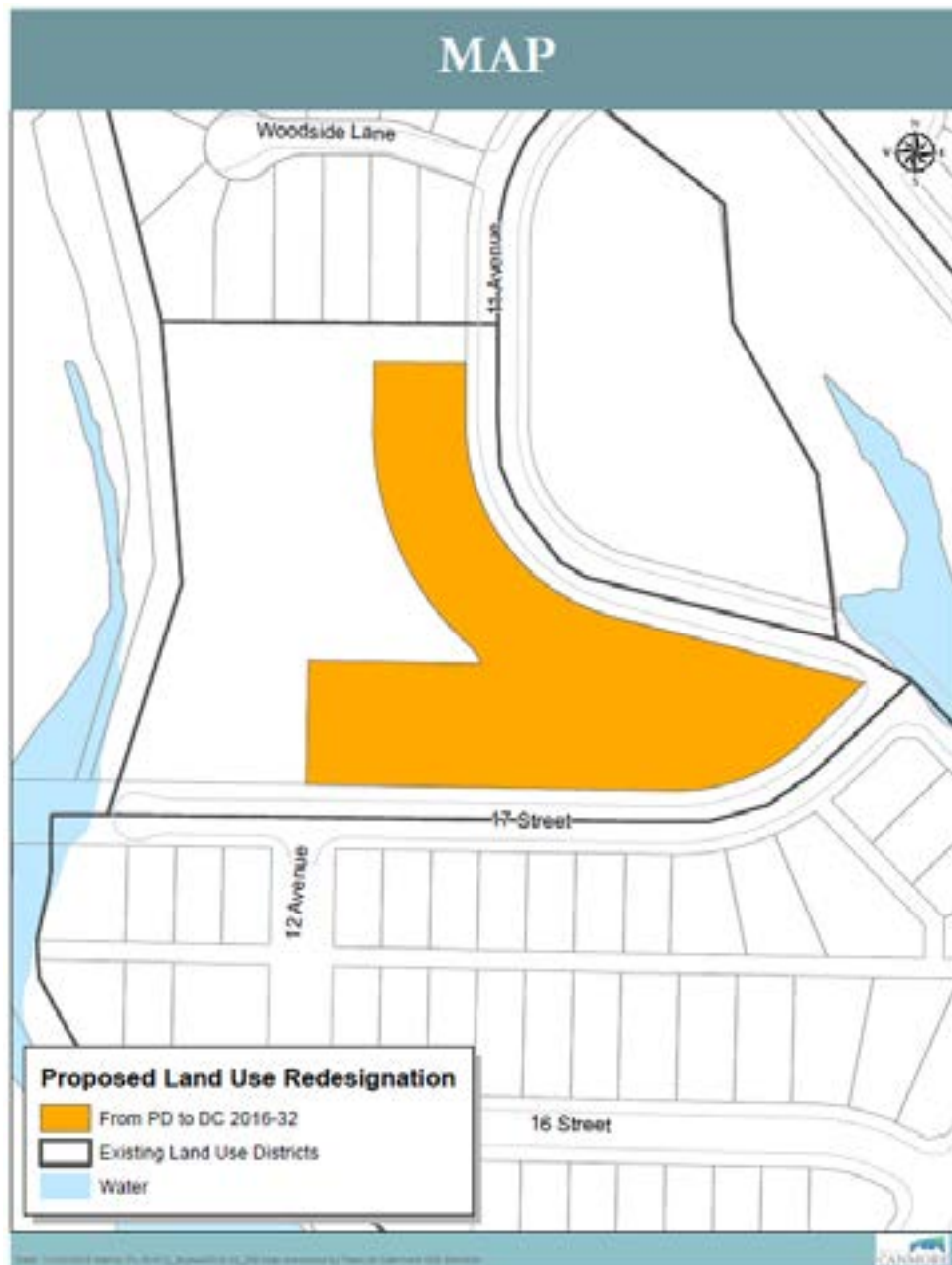
14.35.11 Development Authority

14.35.11.1 The Municipal Council of the Town of Canmore shall be the Development Authority for the initial application for residential development within this District.

14.35.11.2 The Development Authority for any subsequent development or change of use shall be the Development Officer.

14.35.12 Map

The following Map forms a part of this district



14.36 7TH STREET & 7TH AVENUE DIRECT CONTROL DISTRICT [2016-28]

14.36.1 Purpose and Intent

The purpose and intent of this District is to provide for medium density multi-unit residential housing and affordable housing that is complementary to the surrounding neighbourhood and downtown core.

14.36.2 Permitted Uses

Apartment Buildings

Employee Housing

Home Occupations – Class 1

Parks and Playgrounds

Public Utilities

Stacked Townhouses

Townhouses

14.36.3 Discretionary Uses

Cultural Establishment

Home Occupation – Class 2

Parking Areas and Structures

Public and Quasi Public Buildings

Signs

14.36.4 Regulations

14.36.4.1 The minimum front yard depth along 7th Ave shall be 1m.

14.36.4.2 The minimum front yard depth along 7th Street shall be 3m.

14.36.4.3 The minimum side yard depth shall be 3m.

14.36.4.4 The minimum rear yard depth shall be 2.5m.

14.36.4.5 The maximum building height shall be 14.5m. Maximum building height shall be measured from grade to the roof ridge line.

14.36.4.6 The maximum eaveline height shall be 7m for building frontages along 7th Street and 7th Avenue (2 storeys plus loft) and 11m for the remainder of the building.

14.36.4.7 Habitable loft space shall be permitted above the second storey when designed into the attic space under pitched roofs.

14.36.4.8 The minimum number of dwelling units within this district is 28.

14.36.4.9 The maximum number of dwelling units in this district is 40. This number includes PAH units.

14.36.4.10 Parking:

The following parking standards shall be applied to residential development within this district:

Unit Type	Market Units	PAH Units
Studio	0.75 stalls/unit	0.5 stalls/unit
1 Bedroom	1 stalls/unit	0.75 stalls/unit
2 Bedroom	1.25 stalls/unit	1.25 stalls/unit
3 Bedroom	1.75 stalls/unit	1.5 stalls/unit
4 Bedroom	1.75 stalls/unit	1.75 stalls/unit
Visitor Stalls	0.15 stalls/unit	0.15 stalls/unit
Bicycle Parking	1 stalls/unit	1 stalls/unit
Loading Stalls	1 stall total	

14.36.4.11 Where parking for townhouse or apartment buildings are provided in a common parking area, a maximum of 35% of the parking stalls for such dwelling units may be tandem. A tandem parking stall shall only be assigned to one dwelling unit at a time.

14.36.4.12 All parking shall be located on site.

14.36.5 Design Requirements

14.36.5.1 Development shall be consistent with Section 11, Community Architectural and Urban Design Standards, unless otherwise stated in this DC District.

14.36.5.2 Building form shall step down towards 7th Street and 7th Avenue to match the contextual building scale of the neighbourhood.

14.36.5.3 Building design should incorporate a central courtyard or similar feature to break up the building massing, encourage pedestrian movement through the site and provide additional amenity space for residents.

14.36.5.4 A minimum of 30% of the site area shall be landscaped.

14.36.5.5 A minimum of 60% of the landscaping shall be at grade. The balance of the landscaping may be integrated into the development as part of an extensive or intensive green roof.

14.36.5.6 A pedestrian oriented streetscape shall be established incorporating such design elements as: wide sidewalks, sidewalk bulbs, arcades, pedestrian scale street lighting, bicycle parking, canopies, vestibules, façade treatments that are sensitive to sidewalk location, and subject to Section 11, Community Architectural and Urban Design Standards.

14.36.5.7 Development abutting residential districts shall be designed to minimize the impacts of parking, loading, garbage storage, sun shadow, lighting, noise and privacy on the residential environment to the satisfaction of the Development Authority. Such developments shall be designed and constructed as follows:

- a. Where a proposed development is adjacent to or across a lane from residential or Town Centre, the façade facing the residential and Town Centre district shall be considered an additional frontage for the purposes of architectural design and materials.
- b. No mechanical equipment shall be mounted on walls adjacent to or across a lane from

residential or the Town Centre district.

- 14.36.5.8 The developer shall contribute to streetscape enhancements in the public realm immediately adjacent to the development, which may include but is not limited to improvements such as sidewalk bulbs, street furniture, pedestrian scaled street lighting, street trees, and bicycle parking.
- 14.36.5.9 Development permit applications shall include professionally produced streetscape drawings or three-dimensional simulations of the overall development as viewed from public sidewalks and other key public areas as identified by the Development Authority.
- 14.36.5.10 Residential units along 7th Street, 7th Avenue, and within the rear lane shall provide distinct at grade unit entrances.
- 14.36.5.11 The building design at the rear lane shall respect the pedestrian realm through attractive architecture, lighting, building mass, and front door access to units from the laneway.
- 14.36.5.12 Terraces and rooftop amenity spaces shall be strategically placed and designed to reduce the impact on existing adjacent residential.

14.36.6 Perpetually Affordable Housing (PAH) Requirements

- 14.36.6.1 If any PAH were provided, then the approving authority shall consider input from the Canmore Community Housing Corporation (CCHC) regarding the preferred PAH unit types prior to making decisions on development permits, to ensure they're in accordance with community needs and demands.

14.36.7 Additional Requirements

- 14.36.7.1 All developments shall conform to Section 2, General Regulations unless otherwise stated in this DC District.
- 14.36.7.2 A Sustainability Screening Report (SSR) is required by the Town as part of the Development Permit application process for developments with a GFA of 500m² or more in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.
- 14.36.7.3 A shadow study is to be provided at the time of the Development Permit to ensure that adjacent residential properties are not unduly impacted by the proposed development.

14.36.8 Development Authority

- 14.36.8.1 The Canmore Planning Commission (CPC) shall be the Development Authority for the principal development application within this district.
- 14.36.8.2 The Development Authority for all minor revisions to the principal development, which includes but is not limited to signs, accessory uses, change of uses, and buildings shall be the Development Officer.

14.36.9 Schedules

Schedule "A" shows the location of the District

14 DIRECT CONTROL DISTRICTS



14.37 120-130 KANANASKIS WAY DIRECT CONTROL DISTRICT [2017-30]**14.37.1 Purpose**

To provide for high-density multi-family residential development within rental apartment buildings in a primarily commercial district, as is articulated in 5.1 of the Bow Valley Trail Area Redevelopment Plan. Non-residential uses or developments may be allowed in accordance with the listed Discretionary Uses when such uses are compatible with the residential purpose of the District.

14.37.2 Permitted Uses

Apartment Buildings
Employee Housing
Home Occupation – Class 1
Parks and Playgrounds
Public Utilities

14.37.3 Discretionary Uses

Accessory Building
Eating Establishment
Home Occupation – Class 2
Office
Parking Areas and Structures
Retail (<150m²)
Signs

14.37.4 Regulations

- 14.37.4.1 The minimum lot area shall be 8400m².
- 14.37.4.2 The minimum front yard depth shall be 3.0m.
- 14.37.4.3 The minimum rear yard depth adjacent to the Trans Canada Highway shall be 15.0m.
- 14.37.4.4 The minimum side yard depth shall be 3.0m.
- 14.37.4.5 The minimum number of dwelling units in this district is 140 and the maximum is 170.
- 14.37.4.6 The maximum building height shall be 21.0m.
- 14.37.4.7 A minimum of 25% of the site area shall be landscaped.
- 14.37.4.8 The maximum site coverage for all buildings shall be 55%.
- 14.37.4.9 The minimum FAR on the site is 0.75 while the maximum FAR is 1.5.
- 14.37.4.10 Development shall complement the mountain community of Canmore and must conform to the rules and regulations of Section 11, Community Architectural and Urban Design Standards. Where there is a conflict between Section 11 and this District, this District shall prevail.

14.37.5 Design Requirements

14.37.5.1 Pedestrian connections are required to facilitate bicycle traffic to and from the site which include:

- a. Providing pedestrian connections from the building to existing and future sidewalks and pathways adjacent the site. These connections must be a minimum of 3.0m wide on-site where use is shared, with a minimum of 0.5m clear to vertical obstructions on each side of the path.
- b. Connection of an uninterrupted sidewalk from the subject site along the north-west side of Kananaskis Way to Bow Valley Trail, with a minimum width of 1.8m.
- c. Connection of a 2.5m wide asphalt pathway from the subject site to the pathway along Old Canmore Road within the Municipal Reserve (MR) and the Old Canmore Road right-of-way.
- d. All on-site and off-site pedestrian connections must be approved by the Engineering Department and are to be designed, constructed, and paid for by the developer. The Town shall be responsible for the concept design, stakeholder engagement, and land approvals necessary to complete the pedestrian connections and may contribute financially to the upgrading of the MR pathway paving.

14.37.5.2 Roof Design

A single pitched roof design may be used and deemed acceptable when the roof form gathers mass away from neighboring buildings and achieves a combination or all of the following design principles:

- a. Is combined with a split unattached mono-pitched roof which gives the appearance of intersecting planes;
- b. Provides a “saw tooth” roof aesthetic, which allows for vertical window glazing to meet the roof pitch;
- c. Provides for large detailed eaves ($\geq 1.0\text{m}$ in length)
- d. Where the Development Authority is satisfied that the architectural integrity of the building would be enhanced, a distinct architectural element may reach a height of 23.0m when located to the centre of the site.
- e. In addition to the above design principles, no roof plane shall exceed 45.0m in length.

14.37.5.3 A massing diagram will be required at the time of the Development Permit to demonstrate how the proposed building has been contextually designed with regards to existing and approved/future adjacent developments to the satisfaction of the Development Authority.

14.37.5.4 Building Facades

The facades of buildings shall incorporate horizontal articulation in order to break up building mass. This articulation shall be not less than 0.6 metres when building walls are more than 10.0 metres in width. Vertical articulation below the eaveline is not required.

14.37.6 Parking

- 14.37.6.1 The following parking standards shall be applied to a residential development where all of the units within the development are on a single property, under single ownership and operated as rental units:

Unit Type	Parking Type: Vehicular
Studio	0.50 stalls per unit
1 bedroom	0.75 stalls per unit
2 bedroom	1.25 stalls per unit
3 bedroom	2.00 stalls per unit
Visitor Stalls	15 stalls total
Loading Stalls	1 stall total

Unit Type	Parking Type: Bicycle
Studio	1 indoor stall per unit minimum
1 bedroom	1.2 stalls - 1 indoor stall minimum
2 bedroom	2.0 stalls - 1 indoor stall minimum
3 bedroom	3.0 stalls - 1 indoor stall minimum
Visitor	0.15 stalls per unit

- 14.37.6.2 Both indoor and outdoor bicycle parking shall be provided on the main floor, directly adjacent to primary building access. Bicycle parking stalls and design specifications shall be to the satisfaction of the Engineering department.
- 14.37.6.3 All other development, including residential development on multiple titles (eg. condominiums) shall be required to be provided in accordance with the general parking requirements of the Land Use Bylaw (Section 2 as updated).
- 14.37.6.4 Parking may, at the discretion of the Development Authority, be permitted in front of buildings on this site when reserved for visitor parking.
- 14.37.6.5 All parking and loading areas must be visually screened with fencing or landscaping so as to screen it from view from the street to the satisfaction of the Development Authority.
- 14.37.6.6 At the time of the Development Permit submission a Traffic Impact Assessment (TIA) will be required at the expense of the developer, which includes detailed information for a Parking Management Strategy to ensure that parking for the development is managed appropriately and will minimize the potential for adverse impacts related to on-street parking.

14.37.7 Additional Requirements

- 14.37.7.1 All developments shall conform to Section 2, General Regulations of the Land Use Bylaw. Where standards diverge from those in Section 2, the standards of this DC District will be applied.

14 DIRECT CONTROL DISTRICTS

14.37.7.2 The following shall be the maximum size for dwelling units in this District:

Unit Type	Maximum Unit Size
Studio	50.0m ²
1 bedroom	65.0m ²
2 bedroom	88.0m ²
3 bedroom	115.0m ²

14.37.7.3 Private outdoor amenity space must be provided for any residential dwelling unit development on this site in accordance with Section 8.7.

14.37.7.4 Tree protection measures will be required along the property line of the Municipal Reserve (MR) lands and be surveyor verified for location, prior to the start of any construction on site.

14.37.7.5 Signage shall not be oriented to or be legible from the TransCanada Highway.

14.37.7.6 Animal proof waste containers must be located on-site and screened from Kananaskis Way with natural materials or similar to the satisfaction of the Development Authority.

14.37.7.7 A children's playground or other outdoor recreational amenity shall be required within the landscape area to the satisfaction of the Development Authority.

14.37.7.8 Public Art shall be incorporated into the site design to the satisfaction of the Development Authority.

14.37.8 Development Authority

14.37.8.1 The Municipal Council of the Town of Canmore shall be the Development Authority for applications for all residential structural developments within this District and any parkade(s).

14.37.8.2 The Development Authority for all non-structural development, including changes of use or signage within this District, shall be the Development Officer.

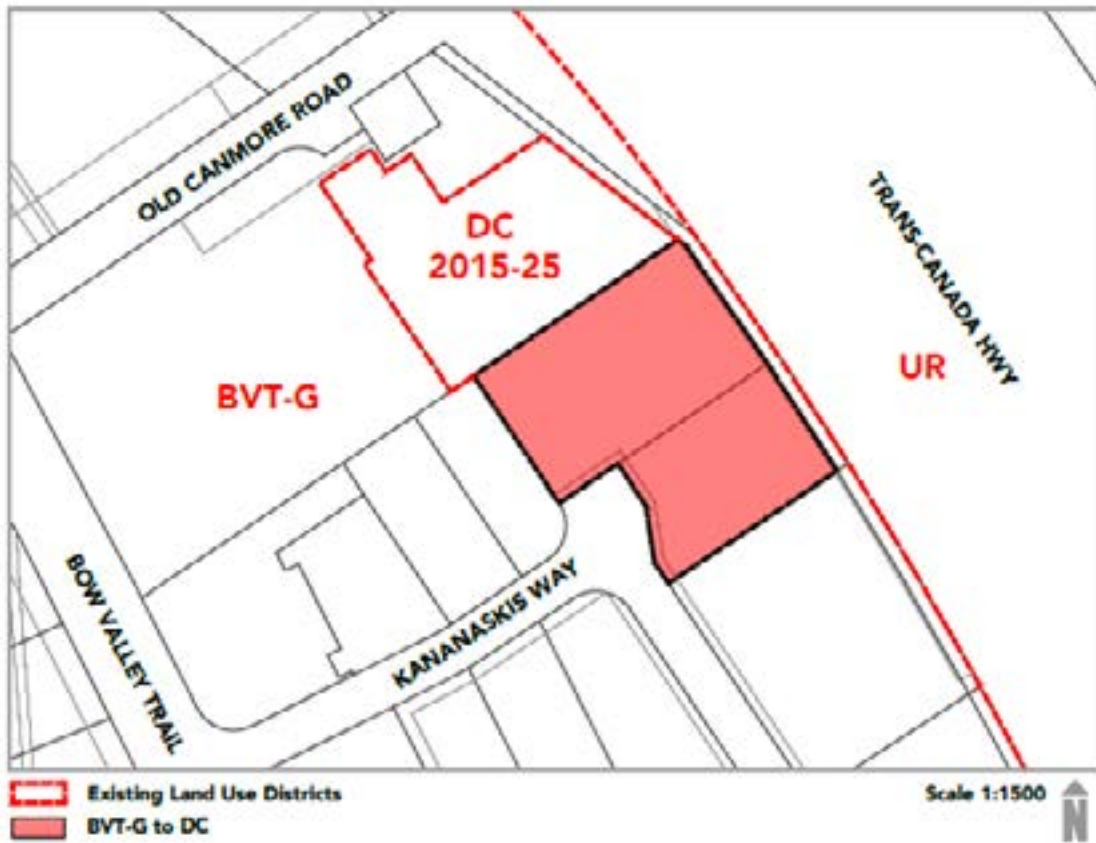
14.37.8.3 The Development Officer, at their discretion, may refer any development permit applications for non-structural developments or other non-residential uses to the Canmore Planning Commission.

14.37.9 Sustainability Screening Report

A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments exceeding a Gross Floor Area of 500m², in accordance with Section 1, Administration, and the Town of Canmore Sustainability Screening Process.

14.37.10 Schedules

Schedule "A" shows the location of the District



14.38 PEAKS LANDING DC DISTRICT [2018-14]

14.38.1 Purpose

To provide for duplex plus dwelling units, townhouses and secondary suites where the built form of the homes from the street are complementary to the existing dwellings currently constructed on Lawrence Grassi Ridge.

14.38.2 Permitted Uses

Accessory Building

Duplex Plus Dwellings - Site 2 Only

Home Occupations - Class 1

Parks and Playgrounds

Public Utilities

Secondary suites within Duplex Dwellings

Townhouses - Site 1 Only

14.38.3 Discretionary Uses

Home Occupations - Class 2

Public and Quasi-Public Buildings

Signs

14.38.4 Regulations for Site 2

14.38.4.1 The minimum lot area for each dwelling unit shall be 230.0 m².

14.38.4.2 The minimum front yard depth shall be 6.0 m.

14.38.4.3 The minimum side yard depth shall be 1.5 m for each side yard, except on a common property line where it shall be zero.

14.38.4.4 The minimum rear yard depth shall be 7.5 m.

14.38.4.5 The maximum building height shall be as indicated on a development grading plan approved as part of a subdivision plan. In the absence of an approved development grading plan, the maximum building height shall be a lesser of 2 storeys plus loft or 10.0 m as determined in accordance with Section 2, General Regulations.

14.38.4.6 The maximum site coverage for all buildings shall be 45%.

14.38.4.7 Notwithstanding Section 2.7.7.2 front yard parking shall be permissible for all duplex plus dwellings and there is no minimum front yard landscape requirement.

14.38.4.8 The maximum number of principal dwellings in site 2 is 8. Secondary suites shall not be counted for this maximum.

14.38.4.9 All duplex plus dwelling units in this district must have a secondary suite.

14.38.5 Regulations for Site 1

14.38.5.1 The minimum lot area for each dwelling unit shall be 140.0 m².

- 14.38.5.2 The minimum front yard depth shall be 6.0 m.
- 14.38.5.3 The minimum side yard depth shall be 1.5 m for each side yard, except on a common property line where it shall be zero.
- 14.38.5.4 The minimum rear yard depth shall be 7.5 m.
- 14.38.5.5 The maximum building height shall be as indicated on a development grading plan approved as part of a subdivision plan. In the absence of an approved grading plan, the maximum building height shall be the lesser of 2 storeys plus loft or 10.0 m as determined in accordance with Section 2, General Regulations.
- 14.38.5.6 Notwithstanding the maximum building height, where the architectural integrity of a building would be enhanced, 10% of the building may exceed the maximum height by up to 10%.
- 14.38.5.7 The maximum site coverage for all buildings shall be 45%.
- 14.38.5.8 Notwithstanding Section 2.7.7, the following parking regulations shall apply to this site:

a. Townhouse Parking

Number of bedrooms	Required stalls/unit
Studio	0.75
1	1.0
2	1.5
3 - 4	2.0
> 4	Additional 0.5/bedroom

b. Perpetually Affordable Housing Parking

Number of bedrooms	Required stalls/unit
Studio	0.5
1	0.75
2	1.25
3+	2

c. Visitor parking is not required

- 14.38.5.9 The maximum number of dwelling units in site 1 is 14.

14.38.6 Additional Requirements

- 14.38.6.1 All developments shall conform to Section 2, General Regulations. Where the general regulations conflict with the regulations of this district, the regulations of this district shall prevail.
- 14.38.6.2 A Sustainability Screening Report is required by the Town as part of the Development Permit application process for developments with GFA of 500 m² or more in accordance with Section



1, Administration, and the Town of Canmore Sustainability Screening Process.

- 14.38.6.3 Notwithstanding 2.8.1.2, where raising the elevation of a lot is required to meet the Town's Engineering Design and Construction Guidelines for development in steep creek hazard zones, building height shall be measured from finished grade. If such an elevation does not result in positive drainage toward the adjacent street, the grade may be further adjusted to allow for such drainage. [2021-24]

14.38.7 Landscaping

- 14.38.7.1 Notwithstanding Section 11 regarding landscaping standards, landscaping shall be Firesmart and shall include the use of low-combustible plant materials and non-combustible ground cover adjacent to all buildings.
- 14.38.7.2 A detailed landscape plan shall be submitted with development applications.

14.38.8 Development Authority

- 14.38.8.1 The development officer shall be the development authority for development permit applications.

14.38.9 Schedules

The following schedule forms a part of this district.

14.39 VAN HORNE DIRECT CONTROL DISTRICT [2020-14]

14.39.1 Purpose

To provide for the orderly development of Detached Dwelling units on: Lots 11, 12, 13 and 14, Block 9, Plan 9611299; Lot 20, Block 9, Plan 9910555; and Lots 21 and 22, Block 9, Plan 0011541; all on Van Horne road and shown on the attached Schedule "A", by maintaining a common setback of 60.0 m from the Bow River.

14.39.2 Permitted Uses

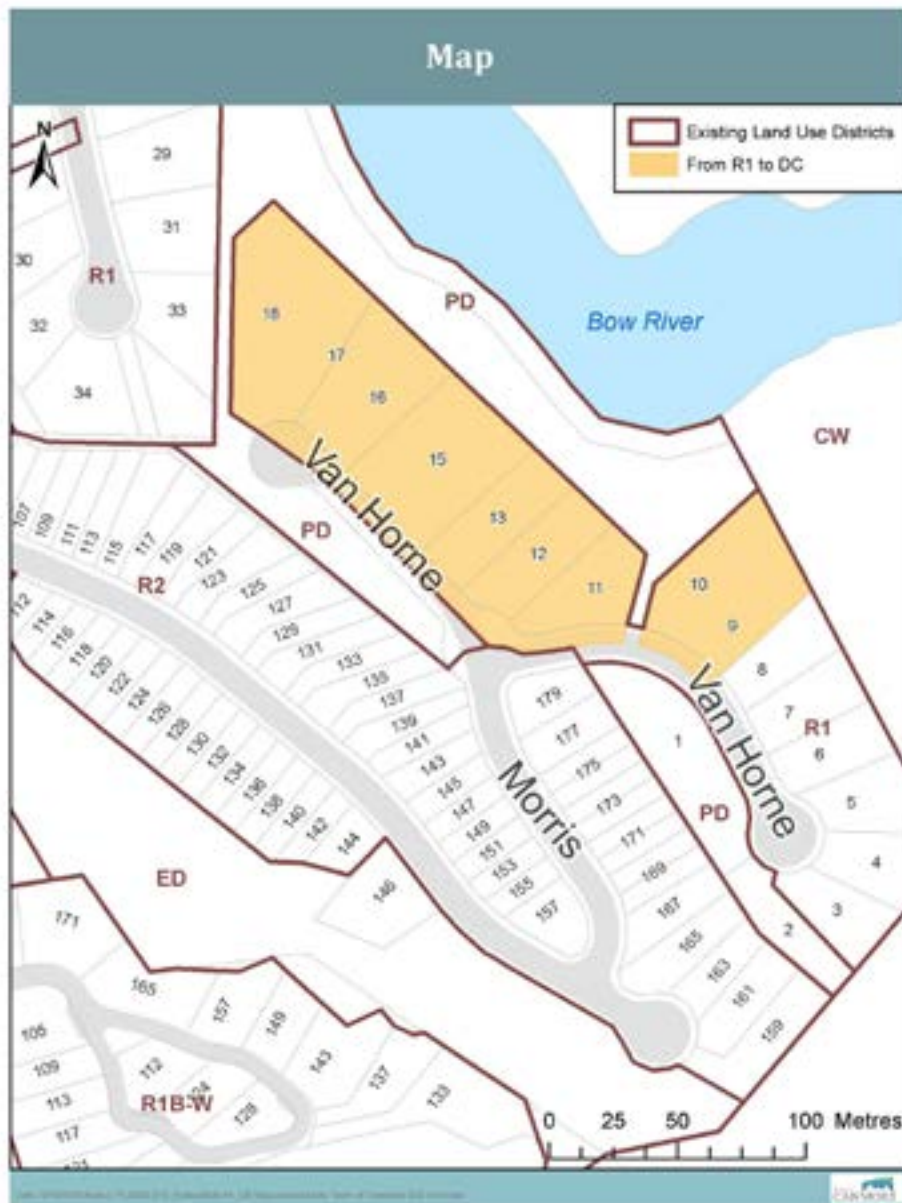
Accessory Building
Accessory Dwelling Unit, Attached
Accessory Dwelling Unit, Detached
Detached Dwelling (with an Accessory Dwelling)
Home Occupation - Class 1
Open Space
Public Utility

14.39.3 Discretionary Uses

Detached Dwelling
Bed and Breakfast
Care Facility
Common Amenity Housing
Cultural Establishment
Day Care
Home Occupation - Class 2
Manufactured Dwelling
Public Building

14.39.4 Regulations

- 14.39.4.1 The minimum lot area shall be 1,200 m².
- 14.39.4.2 The maximum lot area shall be 2,500 m².
- 14.39.4.3 The minimum lot width shall be 20 m.
- 14.39.4.4 The maximum lot width shall be 45 m.
- 14.39.4.5 The minimum front yard setback shall be 6 m, except on key sites where it shall be 4.5 m.
- 14.39.4.6 The minimum side yard setback shall be 1.5 m for each side yard, except on the street side of a corner site where it shall be 3 m.
- 14.39.4.7 The minimum rear yard setback shall be 60 m from the southwest bank of the Bow River.
- 14.39.4.8 The height of a building may be determined by using either the Hmax formula or the envelope method, in accordance with Section 2: General Regulations. When the Hmax formula is used, a building shall be maximum of two (2) storeys plus a loft. When the envelope method is used, there is no maximum number of storeys.



SECTION 15 LAND USE DISTRICT MAPS

15.1 INTRODUCTION

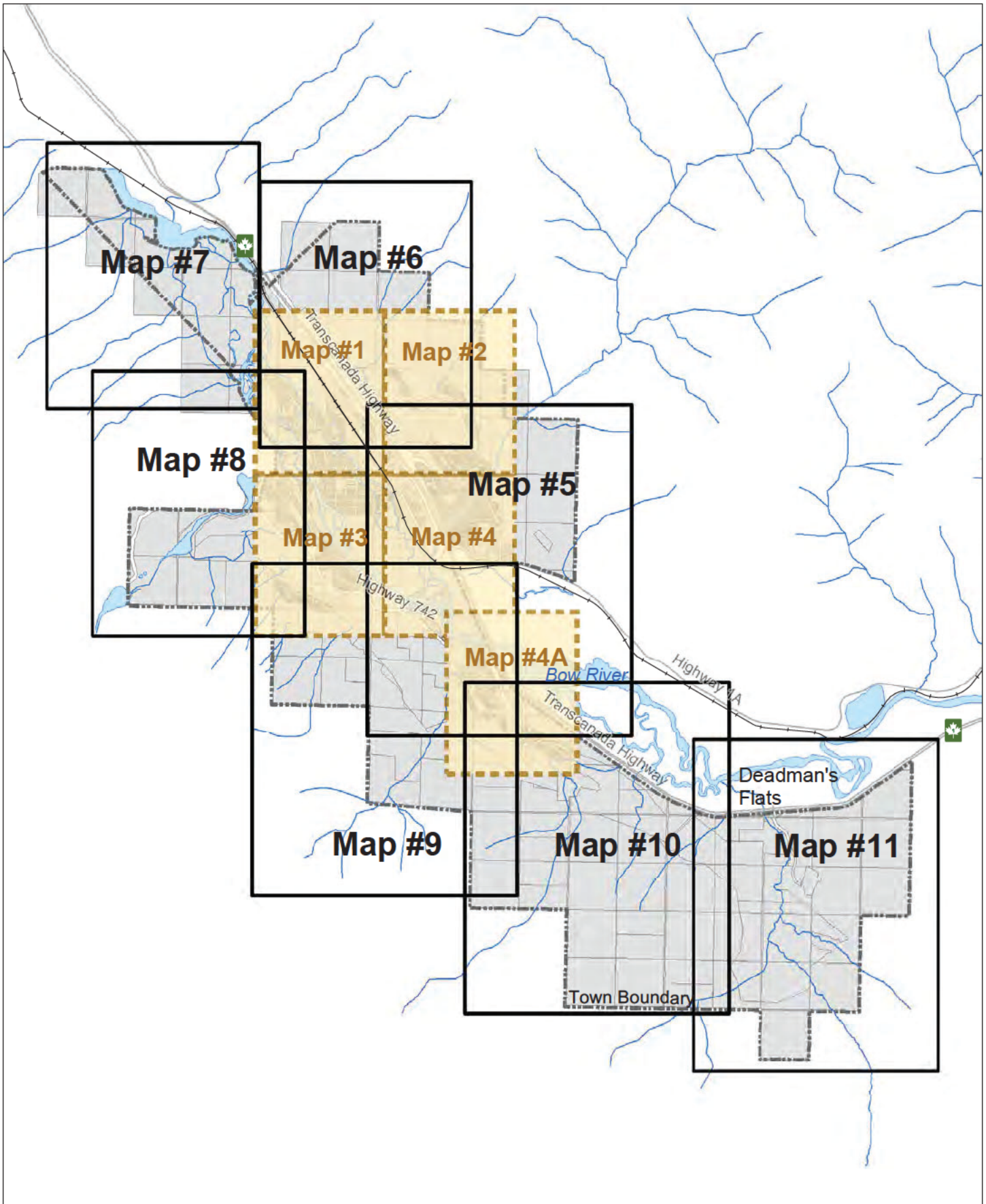
The Town of Canmore is hereby divided into land use districts and the boundaries of each and every district are delineated on the Land Use Bylaw Maps which form part of this Bylaw.

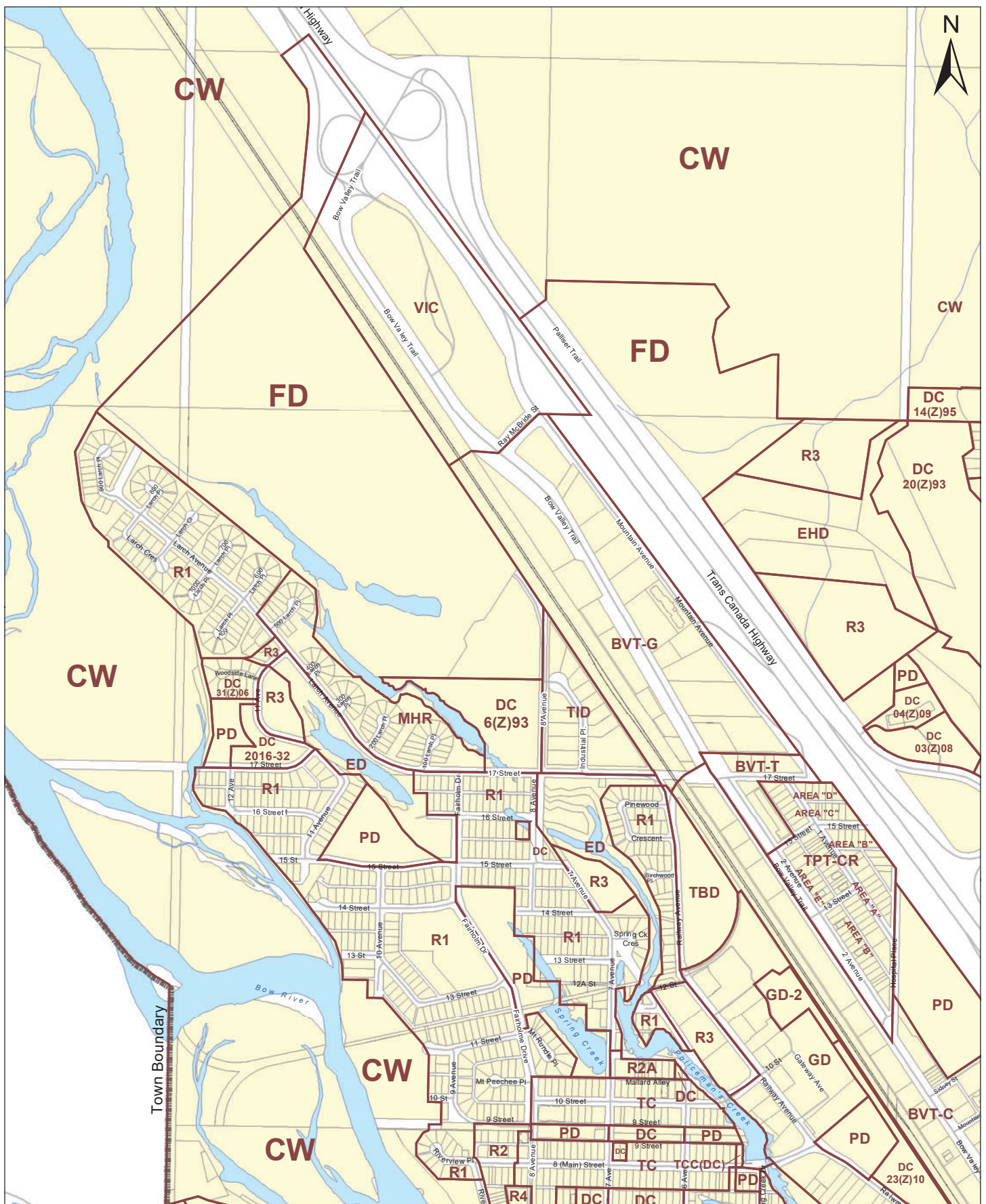
15.2 INTERPRETATION OF LAND USE DISTRICT BOUNDARIES

In the case of dispute over any portion of the boundary of any land use district as shown on the Land Use Bylaw Maps, its location shall be determined by the following rules:

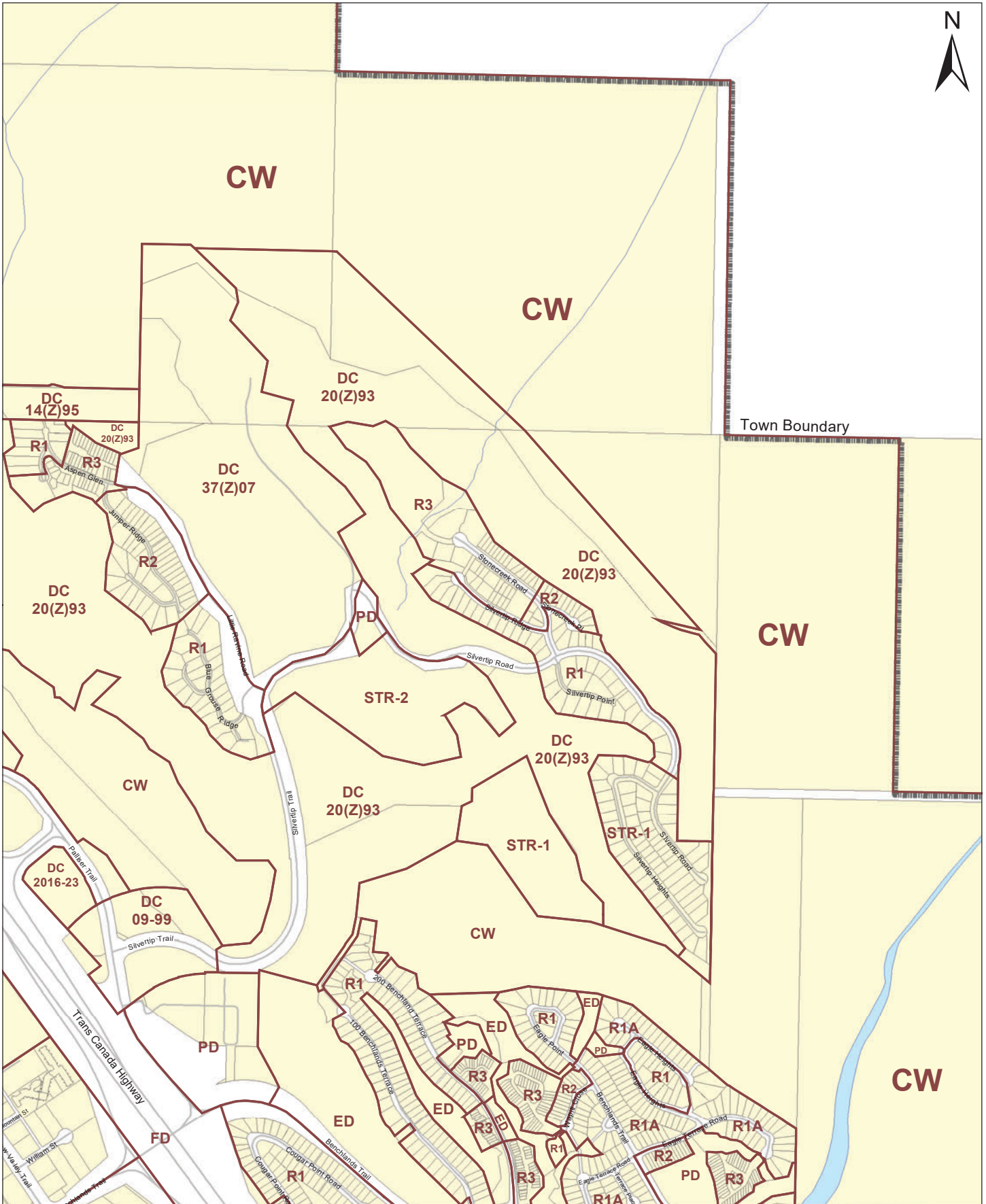
- a. Where a district boundary is shown as following a public roadway, lane, pipeline, powerline, easement, utility right-of-way or railway, it shall be deemed to follow the centre line unless otherwise clearly indicated on the map;
- b. Where a district boundary is adjacent to or contiguous with a lot line, the boundary shall be deemed to be the lot line.
- c. Where a boundary is shown to follow the shoreline or bank of a body of water it follows that line.
- d. Where a district boundary divides a lot into parts, the boundary line shall be determined by survey at the time of the establishment of the Land Use District.
- e. In circumstances where the above rules do not adequately determine the location of a boundary, such boundary may be located by measuring the Land Use Map.
- f. Where none of the above rules are conclusive, Council shall establish the boundary.

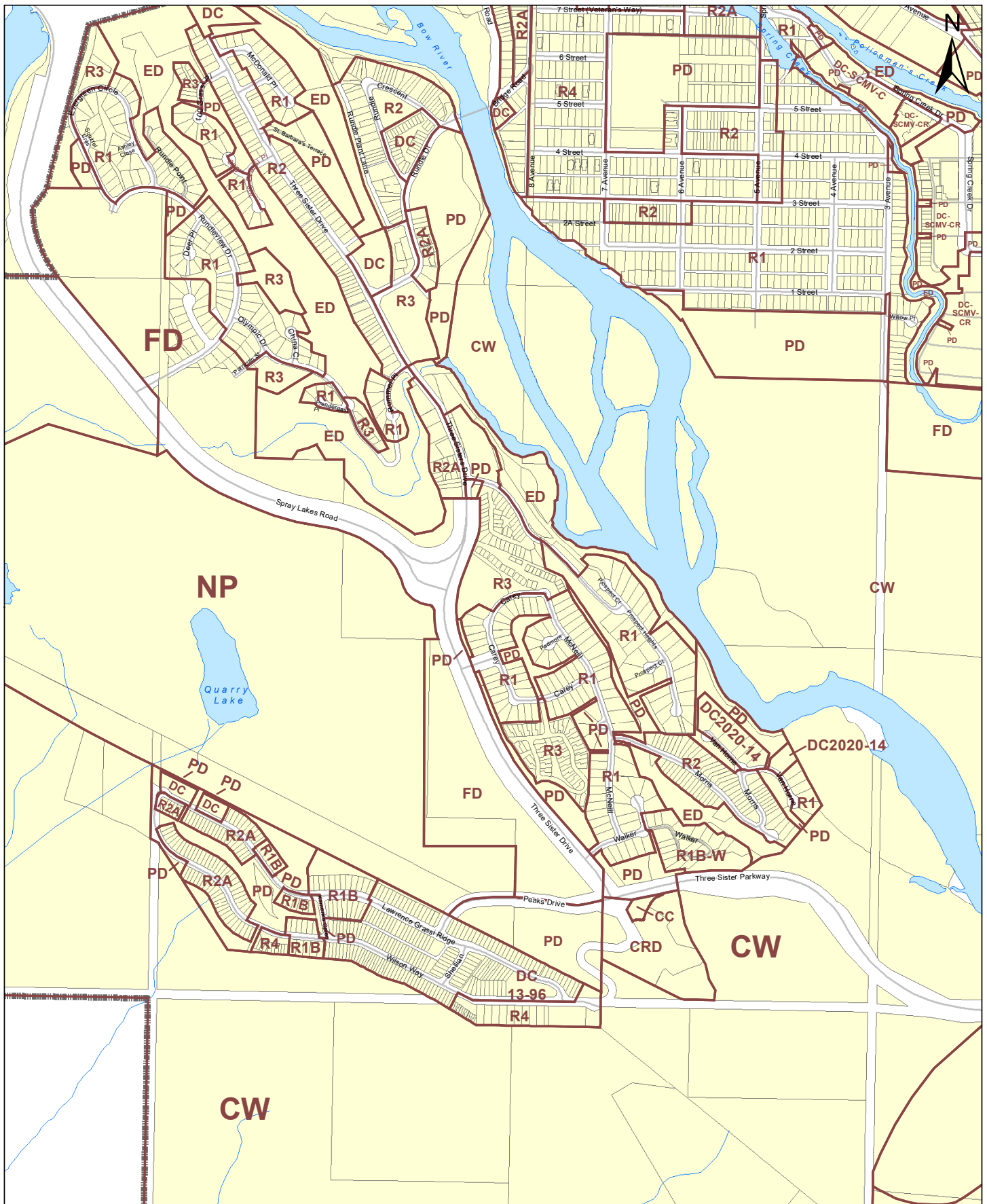
LAND USE BYLAW KEY MAP

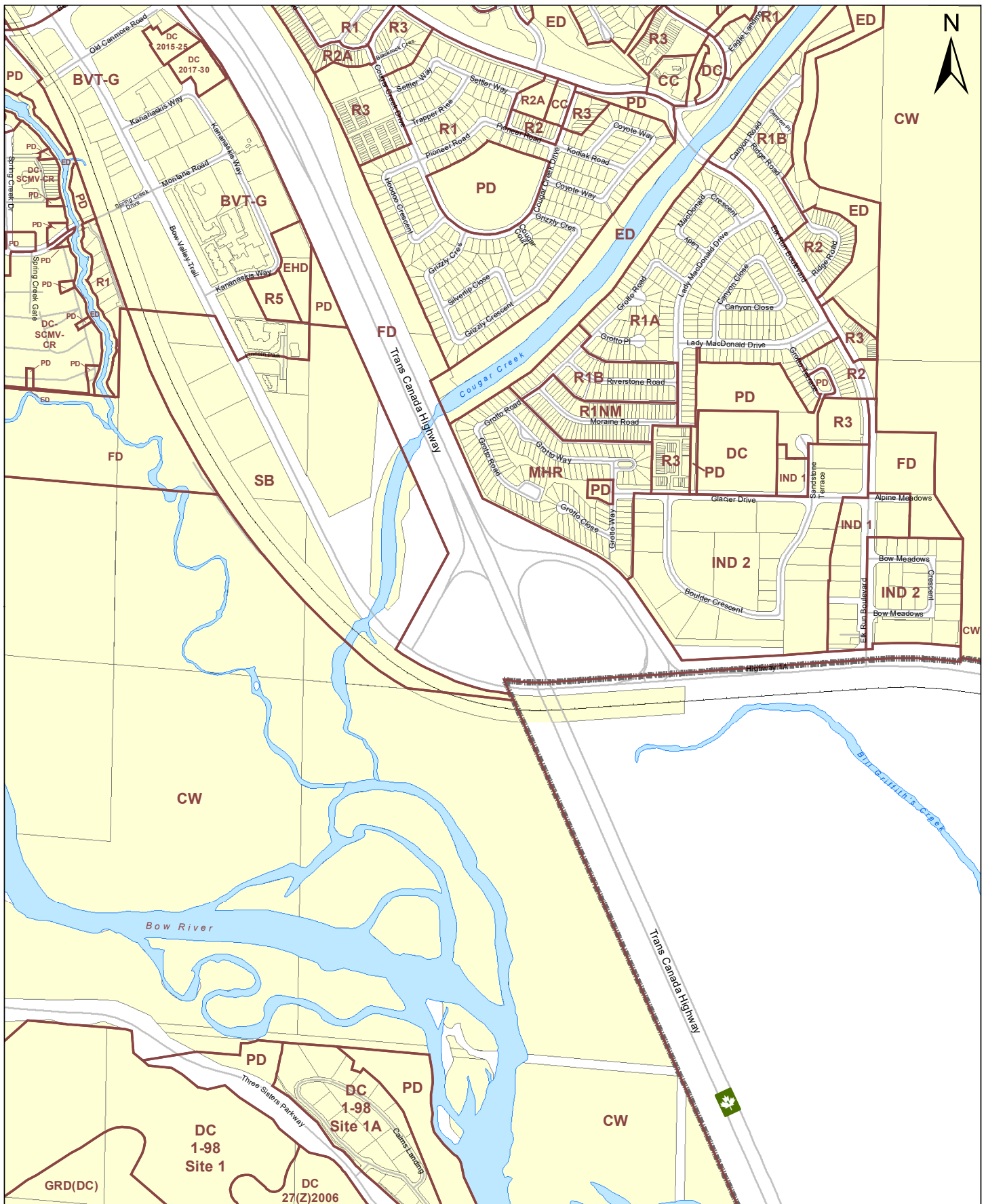




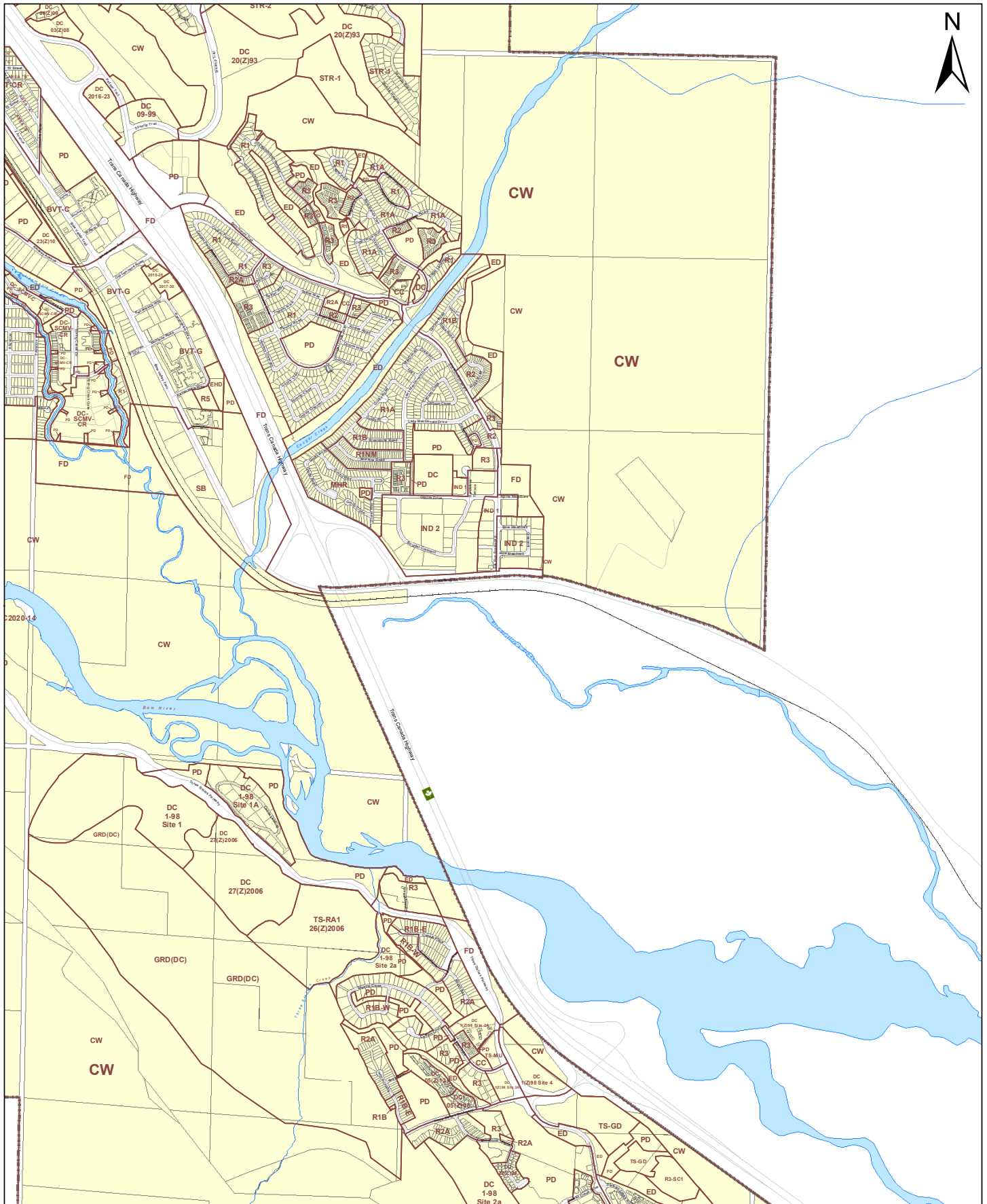
LAND USE BYLAW MAP # 2



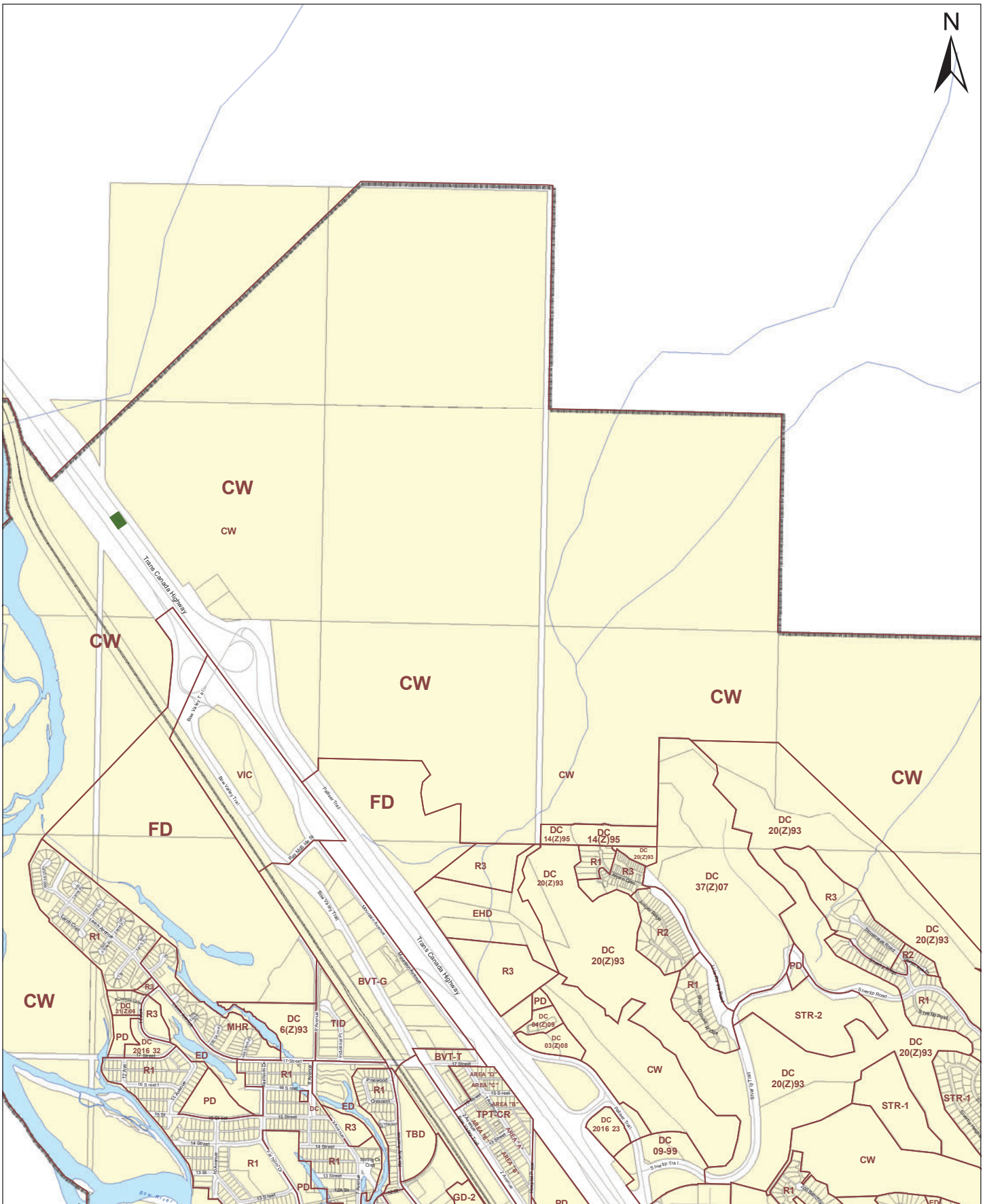








LAND USE BYLAW MAP # 6

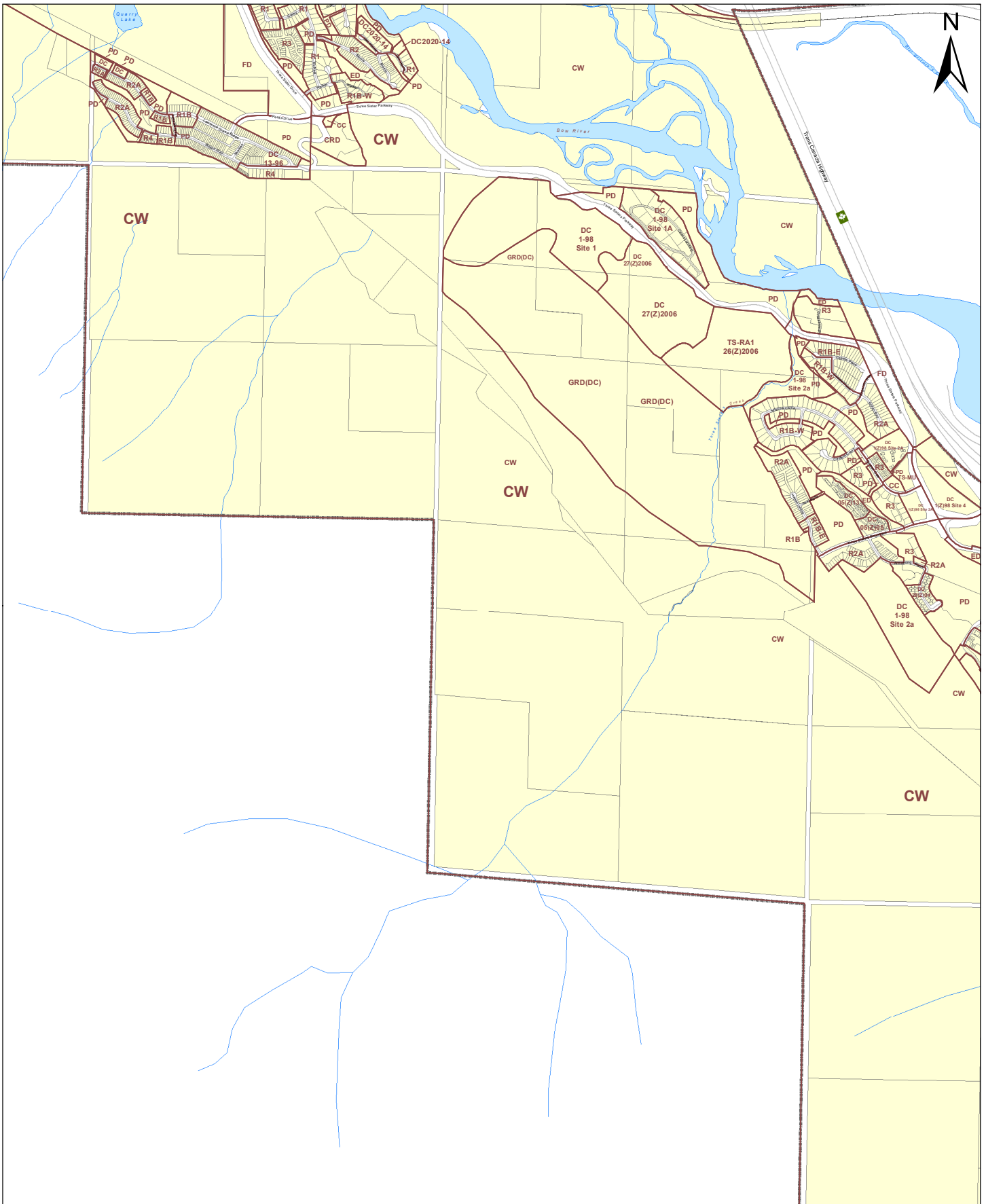


LAND USE BYLAW MAP # 7

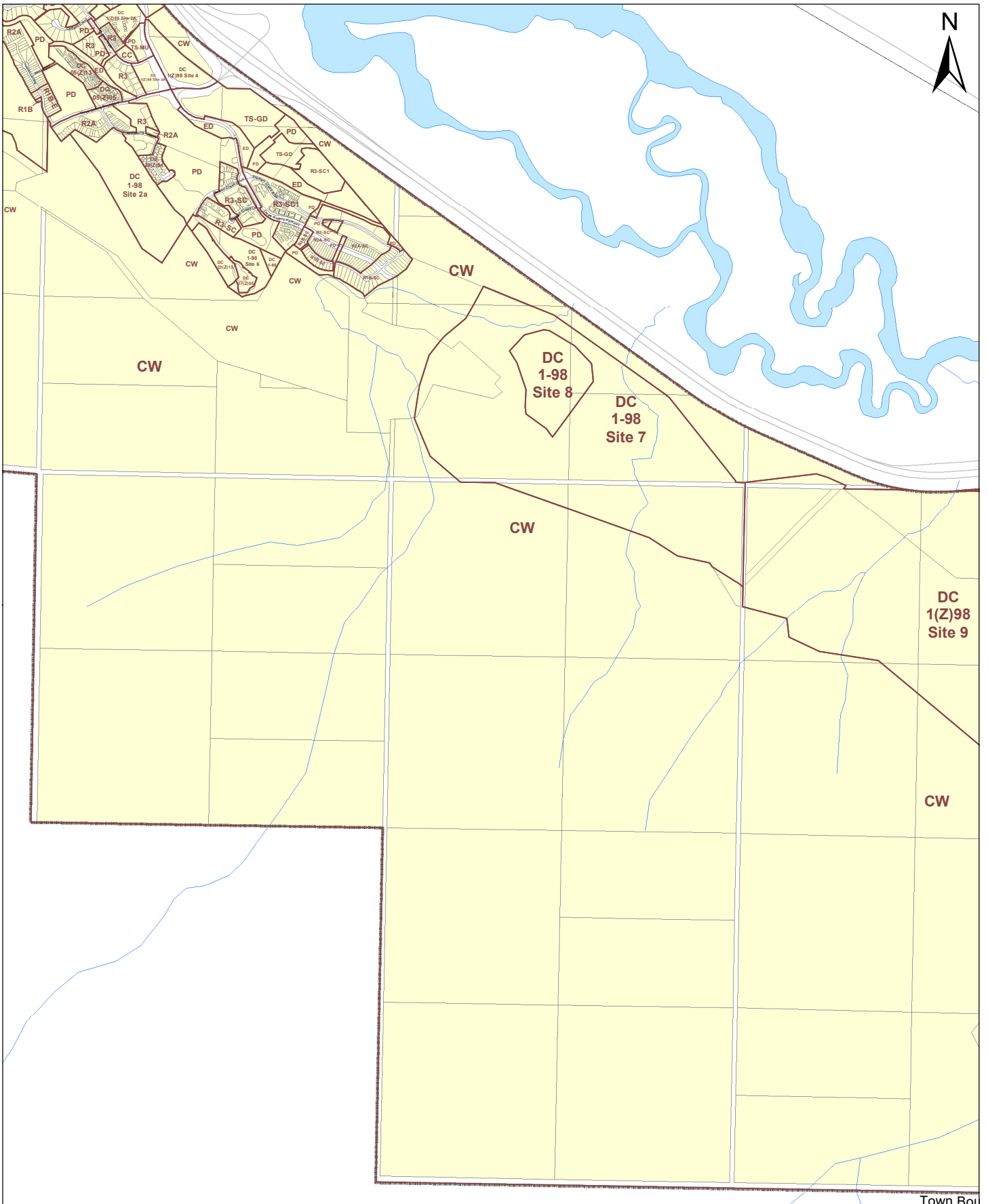




LAND USE BYLAW MAP # 9



LAND USE BYLAW MAP # 10



LAND USE BYLAW MAP # 11

